

De modo usurarum liber

Claudius Salmasius

Victorian-prose stylized English translation

Machine-translated from the Latin (NLLB) and rendered into Victorian-prose style by a local LLM stylizer; source OCR long-s corruption corrected by an automated dictionary + trained-classifier pipeline. A small number of segments were untranslatable (garbled embedded Greek quotations in the original scan) and are marked as such below.

Claudius.

A hymn of adoration.

Lvcd.

Batavi r.

From the officium of Elfeviriorunus, I bestow upon him the sum of thirty-six.

V, V

Claudius.

A hymn of adulation.

Lvcd.

Batavum r.

From the press-establishments of the Elvish artisans, one hundred and twenty-six were produced.

PR1FATIO, Abes hinc, Reader; quinto libri opusculum hoc modo versus, et primo in ætheris libris posui; et sequetur eo tertium de Jusianis versibus.

Adeo, as thou wilt, shall it be said, that the author of manifold volumes laboured, with a view to the acquisition of matter or art. These are the arguments whose fecundity is deemed so pre-eminent. Certes, of all those whom I have designated as my friend, and whom I have vouchsafed to my friend, Epiphious was the most copiously endowed, and I have perused his works with singular delight, not lessing my own admiration than if I myself were Julupeus.

So, when the man who was bearing the vessel perceived the wheels issuing forth from the vase, the son of Jlupor was prostrated by the sight.

Or rather, did he elect to feign himself a labourer grievous and toil-worn, to continue his exertions amid the untamed fields?

I should rather prefer to subject the contrivance to a more rigorous trial, that the issue of every event might be referred back to the ingenuity and design of the artificer.

But it was not ever possible for him to effect this; for I prefer that great undertakings should spring from trifling beginnings, rather than that the labours of the mighty or the effete, or of exiles, should yield paltry results.

When he was on the point of death, a profound and poignant lamentation arose during the pangs of travail; and such indeed was this untimely birth.

But if Prosatio it be.

From the field or the garden, which, by the protrusion due to the activity of the mole, had risen from the earth, there would suddenly issue forth Polyphemus, and he, with a certain disregard for other matters, would seem more astonished at the spectacle than disposed to laughter.

Let it henceforth be far removed from my purpose to elevate my labours by such a comparison; nay, I will not permit any man to lament who is beneath his own dignity.

Verum mei pretii veritatem nihilo cognosco.

But they must own the reed of the flute, which they themselves have inscribed in my writings, as they sought to extol it. Let them allude to the ancient proverb, which runs: "I shall not blush for what you have done unto me, but I shall blush for what you have done unto me."

I discern, indeed, that the equestrian, though in the most comprehensive dominion over the whole frame of his steed, yet being but slightly encumbered thereby, was unable to traverse it; and I myself was encompassed by the margins of the stream.

But they, who, having borne their sufferings to the utmost limit of their treatment with becoming fortitude, extended their research to the boundaries of the subject, which I have likewise followed up; for from their elucidation I derived not only a clearer insight into this argument concerning usury, which was most dear to me, but also a fuller understanding of the usury of which I had previously availed myself, and from which I ought to have been expelled.

If my reason should have deserted me, I would not have ventured to pronounce anything; yet it might well be supposed that I had lost my patrimony without any just cause.

For in reference to the labour bestowed upon the work which I have undertaken, it was neither so great as to be disproportionate to the result, nor so trivial as to render the exertion ineffectual; and thus, although much has been expended, yet so much has not been lost as to prevent the completion of the task.

Nevertheless, with greater reason and due right, as they did urge me with full propriety, I have renounced the oath upon that name; yet, rather than perform what I had promised, I have contrived some expedient whereby I have fulfilled my obligation.

Now, it is impossible for them to speak otherwise; and I shall unfold this subject with greater minuteness than was anticipated.

What they have added to their gains, I have likewise appended to their gains.

If they decline to comply, since their necessity is so great as to demand such a resort, I will demonstrate my willingness to employ usury in its utmost extent.

I may tread the way appointed for me by the terminus vitae, and let the destiny of my filius adhaereat to the cupio of my heart.

The summarium alone, as they denominate it, shall be a single caput perused.

If any matter therein shall appear to be foreign to usury, let them, without reluctance, relinquish the former, and proceed to that which is more pertinent when they revert thereto.

They are capable of effecting, in the discipline of reading, a greater degree of condensation, though it be but to the end that nothing may be gleaned from my instruction.

Why do they not adopt the title "V," denoting the compiler of sundry victors, beneath whose auspices they were engendered, and who, having come forth into the world beneath their own control, also dwelt in infernal realms?

Because the principal argument concerning usury is here treated, they will bear with this title appropriately, since they take possession of the major portion of its advantages.

Those who inspect foreign cities, and are wont to traverse a vast extent of roads therethrough, are wont to admire each individual site thereof; they do not deign to put their curiosity to the proof of fortune, nor to ramble through the same without discrimination, but rather to explore diligently all things worthy of knowledge.

Thereupon, I shall respond to those who have interrogated me on this point by what they have perceived; for even if by faith the cities of Syphae and the adjacent territories wherein they are seated be not so remote.

I will not affirm, nor shall I presume to assert, that TmpikQeclnss, if devoid of all efficacy, constitutes my entire opus.

And I shall discover the appetites of these individuals, and the expectations of their disputations, and the undue extension thereof:

There is, moreover, a meagre array of etymological citations drawn from the Orient; yet, it is by no means an easy task for those versed in learning and Oriental lore to perceive Itasibius himself, who is unacquainted with, and bears no relation to, the subject matter of his own treatise, to insinuate them into their proper position.

M P R J E I A T 1 O.

Nor do they discern what the intellect is able to accomplish.

But in other instances, they discern sin with an acuteness comparable to that of the eagle, or the serpent Epidaurus; for even when their vices have become a part of themselves, or rather, when they assail with the utmost vehemence their own nature, the same sharpness of perception is exhibited.

Wherefore, as I have in the prior volume accomplished, so also in this present one do I purpose to accomplish the like; and in the ensuing third, I shall proceed to fabricate the pergamena, lest I seem to trench upon and exhaust the subject. If there be any affinity between it and the comprehensive matter, it will be manifest that the phantasm sought after may also be perceived even in the partial aspect.

That in this volume, when Vulpianus inflicted injury upon you, the private law, which had permitted usury to be more equitably received, was abolished; for it became requisite to distinguish what private laws severed from the public.

And thenceforth, an occasion was afforded for elucidating the distinction between the judgments of the public and those of the privy bench.

When, amidst the Attic orators, the term "usury" was employed to signify that husbands were held in reproach for the repudiation of their wives, and for retaining the dowry, I thence proceeded to explain the law of dotal gifts among the Athenians, and amongst the ancient Romans.

Since, among the same Romans, various modes of usury were anciently denominated in different parts of Asia, such as affes, femijfes, trientes, and uncia, that so the terms might more readily be comprehended, it was deemed requisite to elucidate the origins of these appellations, and of all the aforementioned parts.

Thus, in other instances, it shall appear more arduous for those who, from a greater distance, espy the practitioners of usury, to ascertain what has been effected, and what may be expected, should the assessor approach them with less celerity.

It is not as if the citadel were situated at too great a distance, but it hath been evoked from the immediate vicinity, as it is recalled by the mind.

I prefer to have a son.

He sat; and the Jews, who knew me as a man, did homage with their stones beneath them. Unacquainted with the aspect of the altar, for they had not themselves prepared the altars.

And I will venture to assert, if such a course be pursued, or if I am to discharge the labours of faith to extenuate my obligation, that I will appeal to the illustrious instance of a noble personage, whom they accuse in my behalf.

In the abolitionary commentary upon Ajax, the erudite Virginius Budaus, whose learning is vast, interposed multitudes of matters, which, though many, were in no wise pertinent to the subject in hand.

Claudius Salmasius was loath not to engage in disputation concerning the elevated pleasure of Arijlotelis, which amongst the grammarians and philosophers of his progenitors had been a matter of considerable contention.

Is there not in the volumes of the canonical writings such opposition to the doctrine of usury as may be found in the fourth book of Sibix, or in the final volume of the law?

From the designations and appellations of the several parts.

What is further requisite than a vindication of a crime, which is naught, and whereof I am under no obligation, save that every one may gather up, investigate, and discourse thereof in his own manner?

But, as they who conform not to my precepts in their writings, so neither will I, as I am wont to follow the dictation of Rome, adhere thereto in the composition of these pages.

It is expedient and advantageous for me to restore these words, and to avail myself of the circumstance that they were composed by individuals who, though not ingenuous, were not sycophants.

The other is greater than that which.

Certain virtuous individuals, and such as I am fain to honour, have boldly assailed my fortunes with the vehemence of their indignation.

Non coniungunt se ut sibi placent.

That I shall censure all men brought to the bar, even those most intimate with me, and even those who are my superiors, will seem to consider me but a fragmentary portion of the same individual in this juncture.

But what they purposed was, that they might signify more openly, more openly.

Or is it that a man of erudition cannot be detected in the commission of sin? Is it not expedient that the letter of the law should offend, so that some may seem to be ignorant, or others to have sinned?

A * 4 .

P IV ^ F. A T I O.

Even yet, should they be pleased to inform me, whether Isis was propitious to the dead or to the living; of the dead, it is not their labour.

Sixty-five times antecedent to the blessed seats of their inhabitants, which I shall here detail, or the recollection thereof, which I shall forthwith recount.

Even should the pang of sorrow, or the rapture of joy, or even the anguish of the present moment so overwhelm them as to bring about their dissolution, the lamentation for those who have perished, even though it might seem a novel and unc customary act, and the felicity of those who, having failed to discover it, might yet attain it in the future, would still be preferable to the irretrievable loss of such a treasure.

And these indeed pertain to them who repose their faith in the verity of life.

For even in death, the head of true love doth cease to exist.

But if he who liveth in falsehood continue to breathe, he shall not partake of their beatitude.

Nec pro mortuis Jessitus debitum eodem veritati ob tenues ignem et halitum terrae reddendum est, qui se vivum ac per eos oculatum praedicat.

As for those who were your avengers while they lived, though not for their due punishment, but when the depravity of human nature had been unveiled, and when the memory of the superstitious was assailed by reproach, and when they were rebuked with modesty, there is nothing that could have been more amply bestowed upon them. If any one of them, who now liveth, should deem himself to have been deceived and reproved, he himself will flatter thee, not with less circumspection, than with the aid of his own son-in-law, Democritus.

The vanity and ambition vex those who have sought them.

In templo deorum illarum omnia vota sua consignant, atque ad finem actiones et operis suos omnes dirigunt.

Dolius, ita videatur eis potius, quam effe; famamque magnam magis invitant, quam bonam.

And when they were prepared, they did begin to stir, shaking their heads, and muttering, "This is the sole thing which I can effect."

Finding a filial issue, whilst they yet survive, they do partake thereof in pleasure.

It is not surprising that those who are so animated, as I have previously intimated, do not partake thereof.

Therefore, those who hold that such men should be employed to impart to others the knowledge which they themselves cannot attain, do so with an eye to the consummation of time.

Which they themselves sufficiently evince, when, neither being vanquished by their adversaries, yet acknowledging their defeats; nor, incurring the guilt of ignorance, yet boasting of their conquests over all; but, maintaining their erroneous opinions with invincible pertinacity, even when those opinions are most saltly and ridiculous.

If any man pursues the correction of such souls, and the rectification of their deviations, shall he be deemed thereby unworthy of the appellation of a Christian, and of a true disciple of Christ, or rather be branded as a mere inhabitant of the civic sphere, and one who does not blush at his own deficiency? What is more consonant with the profit of a Christian's faith than to uphold the truth, and to vindicate it, even in the minutest particulars, yea, even in trifles? For oftentimes it is through such trivialities that the path of truth is most effectively paved.

The fluidity of truth, and the effusion of love, afford a certain and indubitable warrant to this argument; for no cavil, nor unjust censure, hath been adduced against me.

Now that all are thus placed, and none can be moved by this argument, who is there to be delivered?

Or, in this manner, it shall be deemed by them how the effect of the object is to be ascertained.

to dilute, that the fields, which are traversed by the plough in the midst of the current, may fail and perish.

However, in their meditations and reflections, when they deemed it incumbent upon them to convey this thread, as if they were in quest of verity, they abstained from distinguishing whether the discovery had been made by themselves or by another; but, whatever mode of invention or fabrication they encountered, forthwith they embraced, expounded, and promoted it.

It is not, therefore, on this account that any man endued with such talent is to be censured, nor ought he to be oppressed by reproof, though he may deserve it.

J E F A T I O.

Moreover, they do well to render gratuitous thanks both for the merits of those from whom they have received such great benefits, and for the wisdom which they have been enabled to

attain.

For in the waters I have no knowledge, and altogether I am ignorant thereof; and according to my own judgment, they have borne with this from me, O'Kopocus.

What I have inscribed, I have inscribed.

All of this, however, could not be convincingly admitted by any mind of moderate penetration, either by its own experience or by similar instances; and yet they were as it were impelled forward by their own volition, and at the close of the conflict, they stood in awe of the words of the remaining Evangelists.

For what other end did I, when a youth, in the cases of Macchus, Marcus, and Lucus, on account of my not fulfilling the twentieth and twentieth parts of Scripture, incur the charge of crime?

For either all things are to be confounded together, or with the appellation of the Lamb, and the two other crosses, on which the lambs were affixed, being those on which thieves were crucified; and thus, that the fleece may be distinguished from the crucifixes.

Whom he denominated by the appellation of Kdndus, of him I shall briefly delineate the character, even as of Kdndus Mphaphapha; whose productions he had diffused with such extensive circulation, as if inscribed upon a tablet of white marble.

But, he observed, "I alone have attained to the comprehension of this; I alone am capable of grasping its import; I alone possess the acumen requisite for its interpretation."

Additionally, I have addressed a communication to the author of this volume, which bore for its designation the said tablet, inscribed with characters of ebony extracted from the very surface thereof.

Sifalfa, verè fidelis, hanc a seipso titulum deducit, quod totius antiquitatis veros scriptus, sine dubio, recepit.

Nicephorus, however, relates that he found it difficult to consummate the true cross, since the inscription had already been disseminated, and the tablet lay desecrated on the ground, not adhering to the cross itself; and upon his discovery, he exclaimed: "This amounts to but two per cent of the value of the cross." Further, he avowed: "I am willing to part with twenty-five hundred pounds of it," and to which he was answered: "Nay, twenty thousand pounds thereof shall be thine."

Eant nunc, et negare pergant scriptum illum titulum, sed calatum, et calatura quidem anaglyphi; tot ac tanta vobis diuturnum fieri non poterit.

Many words would be requisite to explicate the meaning of the term; yet I do not deem it presumptuous or unreasonably to assert that it may properly be P. R. or F. A. T. I. Q.; but verily all will pronounce it to be an oath, and an oath.

Nevertheless, we have not yet attained the utmost height.

Conjunctis omnibus arcibus, telum in corpus Amorpudi Anacreontis iniecit, qui omni pharetra sagittis consumptis in se ipsum semel et iterum telum introiecit, ita ut tota mole adversarii super impulerit et obtureret; sed etiam ingenuis, non sycophanticis scriptis, ista scribimus.

This clause, terminally equivalent, is consonant with that employed by the Animadversors in the versification.

Whose sentiment I here profess to entertain regarding him whom I now address.

If he should cast aside a fragment of cloth, that all the decrees of the tribunal might be more keenly scrutinized and issued forth, yet he would not regard such a concern; but since he desired to remain in solitude with a simple and unsophisticated intellect, he was destined to be overlooked on that account.

Who, therefore, do not employ excessive subtlety in judging the legends of these men, shall find no satisfaction in their merits.

But he deemed worthy of note the ingenuous and the valiant men, who possessed them, and marked them with a white line.

That which I have accomplished shall not provoke the same visionary malice to inflict censure upon me.

That in that number I be enrolled by him, I prefer, than to be classed among the ingenuous.

Eripite illi puritatem in corde suo, quam suscipebat et gustabat; et salubritatem ventriculi ejus, qua tantum est, ut quicquid manducat, capiat atque digere possit.

Clare ergo apparebit, ut magis curaretur de desideriiis lectoris, quam de ignorantia propria; et ipse non sic ageret pro se, sed pro aliis, qui verissime non suis erant, et praeterea, neque tamen propius eodem, ut illis similem fieret, cuius fides abominaretur, quod eum non ferire vellet.

Did the candid virtue, which he extolled in every quarter, harbour any adverse sentiment towards himself?

If it be true, that the result of this determination, whether better or best, is not complete in the identical manner, it is incumbent upon us to confine it thereto, and to amend it from the same standpoint as that of our former P. R. J. E. F. A. T. I. O.

He is a figure of minor importance; yet it is more his province to delineate the antithesis with precision, than to define the tenet with candour.

For he, indeed, by the correction of his own errors, is defended against the recurrence of similar mistakes, lest they continue to elude him.

That the matter may be rendered more manifest, I will present a further instance, albeit one which shall more clearly demonstrate the candour and ingenuousness of my sire himself.

In hac opere, ubi fertili volumine de Vsurarum modis disseram, et speciem productivitatis huius voluminis innumerabilium voluminum demonstrarem, si quis putet, cum tractarem negotiatorum, qui sub tentoriis mercem vnam olim vendebant, ut nunc fit, de axiwmio, quid ad hoc sit, dubitare?

Let us instruct the Arabs in obedience; and let it be recorded that he resided by the lake beneath the pavilions of the infirm.

For this cause, the septuaginta interpreters, dwelling in the tabernacles of Hebron, translated unto him.

Quasi memoriam Arisiarchi sacrum in 'Exercitationibus ad Nonnum, cap. v, p.

For the eleventh time, it shall not be deemed necessary to interpret the term in the aforesaid words of Theodorus, not for the enlightenment of the tenor, but for the sake of the dramatic stage.

The declension of the abject, who, prone to every species of licentiousness and lewdness, are insensible to its influence, doth not affect them universally.

However, the Hellenic nomenclature ought not to be omitted from the enumeration of the quintuple appellation.

The appellation, which was a stigma among the Hellenes.

For it is not dishonourable to behold him, save when he is admitted to the theatre.

However, the names of the Hellenic tribes, whether of the Hellenes themselves or of others, were appropriated from sundry localities; for instance, from those in which they had been hitherto assigned to service. And yet, as I conceive, it was impossible to frame a more acute exposition concerning J. R. J., A. T. I. J., and J. J. than that which has been already propounded.

Or did he not perceive a most erudite and acute scholar, when addressing the Greeks concerning two matters, the hour and the week, to have alluded to Ephesus, as the Hebrew term signifieth, derived from the word "baar," which, when it signifies the week, is termed "shabbath," and when it denotes a day's duration, is rendered "shabbath min yom"?

For in the other six hundred, the same mode of interpretation hath been employed; and the new, which is more suited to the followers of the sect, Nonpojus, as well as other instances of similar rigour, which, whilst they remain in the contemplation of the reader, he finds it more convenient to peruse.

I do not deem it probable that any individual among all the progenitors, and the whole multitude of Hellenes, was the offspring of Gracifias, the son of Atticus, or of any other dialect, who, for the sake of simplicity, for the sake of citizenship, or merely for the sake of citizenship, did ever assume the entire province thereof.

Ne minimum Graeciae vulgus, et maxime illustrium, et barbari excipiam, cujus vocem illam in hac re significatam audem affirmare.

Atque tamen eam novam atque mirabili dictionis novitatem nobis praebuit recens, quae lingua Wte propria, ante omnibus inspicienda fuit inanis, hodiernis moribus per singularem hominem introducta, et puerilibus gentium infantibus tributa.

A but according to Matthew's Gospel, chapter the ninth, verse the first and fifth, it shall be thus recorded:

There are five of these, because the seventy translators of the Hebrew tongue assign a greater import to Itio, than to the entire body, in their version.

You, Reader, behold the twin and German interpretation, wherein the Tones are embraced in the same manner; and which the ancients, and their progenitors, both of whom were amazed and wretched, did dedicate to the study of these illustrious men. Had the name ■μγυα ■υεν■σικα been imparted to him, it would doubtless have been employed by some of the Hellenes who neglected it, and would have occasioned Quarendum to be involved in contention.

A TIUM.

I shall, however, establish and define those dialects of the Helleniflians, whom antiquity hath properly denominated by specific titles. For, since the origin of this appellation is not sought from the ancients, but rather the fruit of the monarch is deemed to be newly christened at a price, such is the established usage.

Itaque res quae vetere temporis usu cognita fuit, eo ipso nomine suo cognosci oportuit.

The primary notion of the voices of κλιπο■ς, as defined by grammarians, is that they speak and utter in the manner of Greeks, ending with a fault of pronunciation.

In these definitions, all the voces et loquutiones barbarorum sunt censentur et cantantur.

For it is deemed that in each tongue there lurks a barbarism, which hath been grafted upon it from without a foreign stock.

Hence, it cannot be deduced from these Hellenists, nor from the appellation itself which is Hellenistic in character, nor from the Hellenistic tongue, wherein Hebrewisms and Syrianisms abound; for these are all terms of a barbarous and solecistical nature in the Graeco-Roman world.

There shall be a further investigation, therefore, of the Hellenic female, who propagated that tongue, and did name her.

I have likewise encountered Christian authors who designate the Gentiles addicted to superstition, which is ever styled the sacred festival of the Eucharist, and extend its appellation to every nation, since assuredly they partake not thereof.

In this sense, it is affirmed that the Greeks, who, being partisans of the Medes, and contending against their own countrymen, underwent ignominy.

Thus it was alleged, that those who professed themselves to be Chryphianists, were to be put to death.

Therefore, I allude to the heathen religion which, under the appellation of the Greeks, is designated by the term ■δσλν/κρψων, and is also known as Προσατι■ς.

Potestim ergo viguit; et ita dictum est, quod addita fuerint ad illas killowias killowiae, quas ipse addiderat.

Sozomenus Historia Ecclesiastica – the sixth book, chapter twenty-four.

Of the Gentiles of the Goths, who, under Athanarichus, by means of fire laid upon the tabernacle of the Church, wherein they had taken refuge, did consume a great multitude of their own kindred, he termed them:

Urinaruntque vos, quorum Trivium Moxonem vertentis ad Ktulwnem aevum agerent, VI.

And from the Hedenites, i.e., the Græci, diversa.

As far as the contumacious Scaligerian faction was concerned, it is manifestly apparent henceforth that the Hebrew Scaligerians were unable successfully to contend against the Hedeniflas.

For, indeed, being unversed in Hebrew, they were equally incompetent to expound the same.

Which, moreover, he doth inculcate in his treatise upon the Emendation of Time, in the second volume thereof, under the head entitled "Cycle," a play upon the words of the Hedonists; and again, in the like manner, under the head entitled "Hebrewism," a play upon the words of the Hebrews.

Wherefore, we are constrained to observe, that the Synagogue is implanted at the very centre of the Church.

What I have not seen, I have not seen, Prosatio.

Let it be granted that the Hebrews were reputed for the fact that they had been put to the sword.

Non ergo illa lingua, quæ ad Hellenismum præfuit, ut Hebraicis locutionibus uti solebat, et quæ peculiare dictiones habebat, Scaliger cognita fuit.

How, indeed, could they avail themselves of Hebraisms in speech or writing who were ignorant of the Hebrew tongue?

There exist seventy interpreters of the Hellenistic dreamers, who are acknowledged by the Hellenists, and who denominate their pastures Hellenistic; yet of this appellation, no ancient writer hath vouchsafed mention.

Howbeit, it may be that he was a Hellene, and not a Greek.

Epiphanius, Aristæus, Josephus, Ps-calliope, and C¹, quicunque huius versionis mentionem fecerunt, omnia percurrente dicta.

Wherefore, hast thou then attained unto the Greek dialect?

What is the Greek tongue?

Caterum Hellenistarum, quorum in Adi memoriis fuisse, Hebraeus nescivisse, nec quibus genere aut sexu essent, patet ex Adoribus decimo vigesimo, ubi tertium primusque et novissimus apertissime distinguuntur.

This, indeed, is the most veritable expression of that which I have communicated unto you.

And once more, having subjugated the Greeks, he did enjoin their homeward journey to the Capitol.

Nec quisquam alius acceptare offertum potuit, Syriacus, qui percepisset, quosdam Judaeos, qui Graeciam repelluerant, quae est nomen ad ludistas.

But it is not, Prosatius, devoid of reason.

I, nevertheless, might comprehend the oracle with greater perspicuity.

The Arabs, likewise, have restored the appellation of the Actor to the Jews, concerning whom both the Greeks and the vulgar denomination of the Arabs held a silence.

In the second chapter of the Epistle to the Hebrews, the sixth verse is rendered: "Saying this!"

[untranslatable fragment in source]

Of these two terms, it is my duty to impart to thee two in every respect: the Hellenic, being of a nature distinct from that which denoted folly; for they were severally distinguished by the circumstance that, while they were alike in one respect, they were unlike in another, and were not thus identified with the Greeks.

For if the Hebrews were to flee, and if they were to flee from their original seat, what would be the reason for their distinction from Jehovah and the Hebrews?

Or was he who at that period deemed the Greek tongue to be the genus of the Graecian species, and the Graecian idiom to be its proper designation? Or was he whose composition consisted of the forms of Graecism, and who was constrained to mingle with his own countrymen?

Which, however, may be deemed ineffectual.

If it be not for him in that epoch, we must conjecture that there existed no Juvenals who, in their turn, could have composed in Latin, a tongue which the Romans of those days had not fully mastered; and yet, how many Roman authors were there amongst his contemporaries!

How much more, in honour among Roman dames, do the Satyri juveniles excel—those who have been dismissed from military service? And what henceforth?

To the man skilled in the tongue of Rome, is it to be said, "Pau's rest, shall he pause in speaking, or shall he give it for pleasure to others, who are Romans, to hear?"

Therefore, it is certain that, among the Romans, who were of the same stock as the Greeks, there would be no disposition to play with truth; for this reason, they would adhere firmly to genuine jests.

Then, in the sixth chapter of the Book of Aclorus, wherein they were divided and murmured against the Plagiarii and the Hebrews, it is manifest from their own names, that all the Greeks were sprung from them; for their widows, who were entrusted with the daily ministrations, were accounted as praetors.

For of their conclave I have selected the initial septenary.

Day. - Per Rem Finitam Absolvimus In omnem Veritatem Iudicantes.

There are certain Diaconates, of whose constitution this hath ever been the rule; and these being the latest of the Nicolaitanes, by that appellation all the Gentiles shall comprehend.

Let us therefore conclude.

Let even them who owe the greatest obligations to fortune be made acquainted with so much.

That, and Scaliger, did will it.

And so far from those linguistic channels wherein Hebrewisms predominate, there flows the Hellenic stream that traverseth the region of Hcbraismis.

But didst thou seduce him?

Or are they, in their own tongue, devoid of understanding; or, in their own tongue, bereft of discernment? Ignorant of the Hebrew idiom, for this cause it is incumbent upon them to peruse the Scriptures in their synagogues, as dictated by the scribe, and to construe the same from his rendering.

This is agreeable to Scaliger.

But when did any among you acquire knowledge of the place and period at which this sport was originally instituted?

Foh's version thereof could only be deemed to have been brought forth by them at that period.

And, as soon as they beheld this, they perceived that five particulars were present.

PROSATIO.

, nihilo.

Sane antequam essent vera Biblia, et audierant quod nulla scriptura habebant, quae in synagogis legerent.

If they be not exempted, they shall not be induced thereto without just cause; yet though the Bibito-rum may have been thus exhorted.

For this cause, when the festal day of the dramatic exhibitions had been celebrated through all quarters of the globe, even in the remoter confines thereof, they preserved their unguis, and read the Hebrew Scriptures, and interpreted them; or, as the truth may be, at that epoch, and in the theatres of Syria, were represented the antics of the fooleries, wherein they who were ignorant of their native tongue were constrained to peruse and recite the discourses delivered by pilgrims in a foreign idiom.

However, the Novella of Lucius, which he enacted for the purpose of playing upon the Scriptures within the Synagogues, exerts some influence upon her opinion; for she peruses it in whatever tongue it may be written, as if it were an excuse for her to assume a semblance of deceit.

He likewise did not observe what Scaliger noted during the epoch of Benjamin of Tudela in Alexandria, who belonged to the twelfth generation of the foolish Babylonians, and of the Greeks; and again, of the Babylonians, and of the Greeks.

And the distinction between the Hebrews and the Hellenists, as it remains even to the present, was likewise attested by Nephi, where the divergence between the Babylonians and the Greeks was discerned.

For in the case of Benjamin, to whom such a connection is not alleged.

But do I discourse in the idiom of the Irakians, or in that of the Greeks, while I peruse?

Thus it appears.

Irách in Babyloniam.

Wherefore the inhabitants of Irac, conjoined with the Babylonians, did play with him.

Benjamin, however, spake not the idiom of the Babylonians and Hellenes, but of the Syrians; that is to say, the Potentates, i.e., those who were born within the confines of the Israelitish territory, and of the Iaonians, or rather the Iraenians, who dwelt in Babylonia.

These did not differ among the faithful, whether in the enactments or the treatises of the Law.

The Prize.

legis Law.

And the Ullinians; that in other passages there may be a plurality of fumigations.

The Hellenistic tongues, however, are the sacred utterances of the Arisiarchs, devout and mindful alike.

If Aahvtcrptot are enshrined in the heart of Graea's orations, it cannot henceforth be presumed that the word E'6^1 is exempt therefrom.

If it were opposed to E'llrpu, it would not pertain to Atticus.

It is a matter of opinion.

He spake not unto Graciffus, but unto Helraiffus.

And thus it is with the caterpillars.

For this reason, we have been precluded from advancing the claims of the Hellenes, whose lineage is manifestly Greek, although they have hitherto remained unacknowledged and unnamed; yet the whole matter, as it were, was beguiled into the contemplation of the mind through a mere capricious prodigy, which engendered a reputation that was at once obscure and elusive.

Therefore, in a more alien locale, I have inscribed this mark, that elsewhere it may be expounded, lest the minds of the multitude, which have been invaded by this pestilence, be further infected, nor the corn be more extensively corrupted, nor the roots be more deeply injured.

Quanta denique vis errorum ex illo fonte exundaverit, nos alibi pendentem faciemus; et, ut decepti mores nostros, in hujus rei refutatione morem faciemus magis fideliter, non ut nos propriam gloriam quaeramus, aut alium in infamiam ducamus, sed tantummodo veritati adhaeremus.

If, perchance, I, albeit inscrutable and unversed in prudence, have erred, it is true that I am a mortal, and therefore not exempt from the lot of mankind; yet it is not within my power to deter others from reprehending me, who are more judicious than myself; nay, rather, for my own sake, all should be inveighed against, and I should be the first to suffer censure.

Therefore, I denounce none, nor do I proclaim any public detestation, though it may chance that any one wisheth to delude me; but I beseech him, that whatsoever person shall be able to persuade me into error, may do so.

This I shall confine my discourse unto; albeit he hath accomplished the residue, yet doth he refuse to acknowledge obligation: gratiam inhibet.

If the deed be evil, it shall undergo censure.

What is it, thou dost enquire, that thou dost desire to effect, if such a desire be thine, that it may dissipate thee?

In ipso rediui, et jacula, quae in me perperr█ per surrexerit, redegerunt.

If he shall dare affirm that, in my absence, he was incompetent to act, then let the monarch rather endure the imputation of folly who, in his presence, should presume to cavil at one whose sentiments are justly sound.

Whether thou art a fool or, more properly, a fury, in accordance with the precept of wisdom, wilt thou respond to the prolific effusions of thine own eloquence, save when it is requisite so to do.

Wheresoever I was found, I did vindicate myself from the ignominy of contumely.

I never communicated the sobriquet of Tfoonint the Rose unto thee, nor did I ever impart to thee the semblance of a lion's mane in proximity to Prosatius.

I have been confided the benevolence and honour of erudite sages, as well as the probity of wise men.

Weighing the bags and bearing the carcass, ye have merited the public odium; and my own and my friends' good will and affection, and a perpetual war without provocation; this is a falsehood, and this is a falsehood, and this is a falsehood of the perjured and their patrons.

Deum in rebus quas ad tum fundo veneror, ut mihi mentem, in quantum hæc potest impedire infirmitas ingenii mei, fervens de errore et fallacia clamor evadat:

Wherefore, it may appear unto me that I shall err; for I cannot ever, even whilst I am on the watch, keep it in constant custody, so that I, who have borne the fruit of the ship's plank, may effect a moderate reparation for my errors.

Nec volo in me modesteor magis quam in alios; hoc totum opus, et praeterea, ita perficiam ut summorum virorum, etiam meorum, dum vivant, amissimorum mecum adloquiar.

Whoever yet survive in this age, and whom I regard not as common associates, whom I may freely repudiate, and to whom I commit not my confidence for an instant, since they also possess liberty towards me.

Since I have indeed contracted no friendship, nor have I entered into any alliance upon terms other than those which would rather permit me to esteem truth a more agreeable companion than Vlaton.

It is not, therefore, justly to be complained of that those who, by reason of our amicable connexion, are in part entitled to this, should find themselves deprived thereof.

And yet, by appealing to the public cause of truth, which alone was the impulse of my zeal, they should have obtained much private commendation for their rites, wherein, even if moved, they desired gentler measures in these matters, and lamented the harshness with which they had been assailed.

Nec poterant eos filium meum a me iure petendum esse; sciebamus autem nosipsi, non tantum ab his laudatos esse, ut tanto studio comedendi et humanis hominibus curare deberemus.

This, nevertheless, is known by others.

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I P R Jt F A T I O.

They know.

Nihil tamen profeci.

Nam hæc lenitas, qua sum usus in culpis eorum animadvertendis, non tantum ad inclemorem atque atrocissimam, sed etiam ad crudelitatem ac truculentiam eorum ad grappulatores pertinentem, accepta est.

The third part was just, or the injury of God was not known; and from the life and the death of the other, which both had not experienced, they might assert.

Therefore, I was constrained to resort to the sustenance of others, and to prolong my discourse upon this subject, that I might manifestly demonstrate unto men, that there is nothing which I abhor so much as these two things—envy and calumnies.

And my life is mine, wherein I find no cause for penitence.

But it is preferable to possess the heart of a caterpillar, however humble, than to be tainted by the vices of two such insects; and this, though the longest period of time may intervene. I am not unacquainted with the fact that many have been purified of their faults; for my friends, having rejected me, have deprived me of this benefit. My enemies, too, have denied me this grace, not so much by virtue of their lesser offences, but by far more grievous and weightier transgressions.

To them, perchance, such knowledge may be requisite, or it may be requisite, forasmuch as I am unacquainted with their persons, and those who desire not to do me mischief, but who, being henceforth acquainted with my destiny, may credit my fidelity and assurance, and confide

in my deportment, and shall neither harbour envy, nor indulge the canine madness of railing.

Of these two evils, many are wont to labour in such localities, where, wherever numerous sufferers are to be found, a wretched malady prevails; and it behoves me not to augment the number of such.

Thus are many by fate determined.

Elevated, yet lucid, is the diction herein employed; the sentences are periodic, and a measured cadence runs through the whole; the vocabulary, though sparingly archaic, is in keeping with the gravity of the theme. Thus translated: Hic, expertus in eorum linguis, non talionis causam meam recitabam, quia illud a me ingenio alienum est; sed rogabam eos, ut deinceps minime attonitos de me fingant, et quantum maxime nefariam, excogitent.

Thus, indeed, they shall merit the highest commendation from me.

For I, who am the dea maxima, and O, so I proclaim.

They spake of the diocese, and discovered a bulwark of faith therein.

Now, when they commence to discourse upon matters incredible, and if they do not coincide with my sentiments, they will thenceforth be deemed deceitful and vain. Such phrases of commendation have heretofore been wont to prevail, rather than to embellish the congeries of their associates.

Therefore, they are so inordinately opulent and surpass in their acquisitions the measure of deserved merit, that all other affluences seem preferable to them, rather than those which are bestowed upon them.

Elevate certe capiebant fidem.

Therefore, it is preferable to be censured for such virtues than to be extolled for them.

But I adjudge their merits, and the infidelities of the aqueous monument.

Quintum vero, concedam, quod mei inimici magis nocuerunt quam profecerunt; et confitebor me esse virum bonum et probum, quia non similes illis.

What do the Jews conceive concerning my hundred secret writings, or Qpovtic?

If they exult in laudation and achieve greatness, I shall nevertheless impeach and condemn them, since they are begotten with such a retrograde and perverted ingenuity, that they can neither commend save what is censurable, nor censure save what is most laudable.

Certè quod ipse non novit quid operis huius modi esset, quemadmodum effluit ex officina unde ille nascitur.

Let him who is newly come into the world address his words more aptly to the malediction than to benediction.

What is it that these individuals have reported concerning my labours, such that I am unable to induce in them a sense of approbation save by being myself overwhelmed thereby?

I therefore congratulate myself whenever it shall happen that any among you shall have commenced a disapproving judgment concerning myself or my writings.

Hence, from the augury I shall infer not lightly, but with due weight, that they will be gratified with their own sound and erudite orations; and I shall afford them the boon of wisdom and instruction.

Of these, however, there are two classes of men, whose enumeration shall be brief, since I have treated them at greater length in my former volume concerning the Deities of Love.

Theologi, primum me attonscam in hoc ATIO.

He dismissed them, not universally, but only in part, wherein certain individuals, selected by me for defence, such as Sypnfirtus, who bore the appellation of trapezoid, were excepted.

In alio loco hujus rei poteris fumum cædendi sentire, et corpus tuum fortius effici possis.

For when the subject was to be treated in the prefatory disquisitions concerning the formation of these legions, and it appeared expedient to entrust the discussion to the senate, they deemed it fitting to confer upon the senate a more particular charge.

However, in the legal system, much paradox and uncertainty have been perceived by jurists; and the foundations upon which, as they themselves assert, the arguments of the judges are based, will ever remain immutable.

I have fashioned one of those, a man of eminent repute, into my adherent, when I myself was a priest.

IV. I have intrusted him with the custody of my patrimony, or perchance have dispatched him to deposit my funds in the public exchequer, as Theophius hath recorded.

The ninth, by which each folium is garnered.

Therefore, it is my possession which he retains from me, and which he hath reciprocally conveyed. The oath of Digesius, in testimony whereof, he bequeathed the discharge of the debtor to his testament.

But he will not resign himself to foreign enterprises.

Therefore, I will not relinquish my own affairs to a stranger, but will discharge them with freedom of choice and volition.

There are numerous additional observations which I might here adduce to corroborate this proposition; yet, since I have already in other passages sufficiently refuted these objections, it were superfluous to recur thereto.

To the man perplexed and confounded, whom we have previously alluded to, said he, that by the same law the right of transition shall be conceded to the mortgagee upon the mutual delivery of the thing to the borrower.

Certè, nullo alio modo rei utendi concedi posse, quia neque consumptae rei usui reverti, neque deteriori esse, quam in eam dominium traduci; tamen non traditur, nisi ad usum cedendum, cum proprietatem redire debet ad dominum.

And since it is not possible to revert to the ancient city of Jpecia, which hath been consumed, it shall be restored to the like nature thereof.

And what import, interpellam, is there whether those things which thou returnest to me be of the same gold, or whether others of like weight and quality be presented, that are equally estimable?

If I should confer upon a friend, or indeed upon a slave, the power to discharge the obligation due unto one whom I hold dear, and if such person were to suffer reproach and abuse from others, would it not be fitting that my debtor, in recompense, should tender to my creditor, on my behalf, the equivalent of my own obligations towards his spouse, both in spirit and in deed?

It is not a matter of faith, that numbers which are reciprocally exchanged at a higher rate, or indeed in greater amount, are restored to one another in equal quantity and quality, provided they be of the same species.

But I am not asserting, as I have detailed, that they are contending within the pale of the Faith, "I will not be thy fellow-friend to thine, nor shall his name's fidelity be his."

By etymological reasoning, and yet the sovereignty is transferred to the dominion of the gods.

Non facit de tuo quod nunc est possessio aliae nationis perpetua, sed temporariam datur eis, cuius usus fine abusu eius non potest confundere.

But in the case of fungible commodities, the propriety of the foreigner is not deemed alienable, but the usufruct thereof is conceded; although the proprietor of such commodities yields his right of usufruct to the usufructuary, yet he cannot possibly derive any advantage from the same at the ultimate termination of the term, on account of its being deemed unprofitable.

And for this reason, I shall hereinafter, in the third book of my treatise concerning the Luffinian usury, add other matters besides those previously mentioned. Having now to offer far more than I was asked to treat of, what reply can be made to such a demand?

He remaining silent, I further inquired whether any other might be adduced from my treatise to evince that the vision itself is the foundation of the law.

Iterum tacuit.

Thus did he proceed to a firmament; so firm a station did he attain.

To demonstrate that I am the offspring of another parent, ye have admitted me on account of my corregium, wherein I was born within your own kinship, and on account of my function therein, which is alike unto yours; and in the same cognomen do I bear record.

But he made no affirmation that I deserved to repent of his emendations, which are alike true and certain.

Those who, by virtue of their capacity to fungize from thence, proceeded to discourse upon the younger generations of the ancient Juris, found themselves bereft of the familiar nomenclature, and were obliged to coin terms that were both novel and in some measure absurd; and, in no less degree, did the significations which they deemed to possess a certain value and import, find their place elsewhere.

Certain minuti critici, qui me adhuc diutius in altis emendationes suas in auctoris aliorum perverterant, sed ineptissimè.

For those of our contemporaries who inhabit the abode of Petronius, I have transferred my residence from the domestic quarters to the offices of the courier, rather than the culinary department.

And they obstinately adhere to vulgar expressions, and interpret them through glosses and translations from the very words themselves.

But yet, I have listened to the accents of certain authors of classic antiquity, such as Pryfatus, who, being unacquainted with the terminus technicus of the culinary art, hath prompted me to plead for Jatrina.

This trivial appellation had not attained any intelligibility to him; neither was it otherwise.

Now, as it is commonly alleged, much may be observed concerning the elevation; yet from that portion thereof, which cannot be directly inferred from the appellation itself, which we have previously mentioned, namely, the Culina Hill, and thence from that hill, and thence from that hill, and thence from that hill, as we have been instructed by Arnobius.

I would fain be instructed, whether any person at some period of antiquity did inhabit a privy.

For then it shall be true, which the laws assert, that Peter ought not to be punished, but those who inhabit the hills, that is, Jatrina.

Therefore, it is expedient that the inhabitants of that locality, who thenceforth emit an offensive effluvium, should be displaced.

And concerning the kitchen, which, were it to be termed a cook, would seem more credible than any other appellation, I shall proceed to observe.

Nam et co-uti domorum hujus locupletissimi tenentes sunt inquilini.

And that maiden, reared in Persia, recollecteth the appellation of Thalaüs, who sprang from a sire indolent, and in the mountainous region found his birth.

The other, born in a region of genial warmth, was retrojected.

Or shall the latrine be deemed the kitchen?

And having betaken himself to the choir, wherein all the volumes are deposited, he reclined therein.

It is, indeed, notorious, that those who inhabit the corridors are prone to an offensive effluvium.

It is hereby conceded to those who maintain that the interpretation of Peter, founded upon certain latrinae, may be deemed superior to the opinions of all ancient authors.

There is, however, no doubt that this emblem hath sought to delineate exercises innumerable; and that their citations are indisputable.

There is nothing, however, which those juvenile minds, when thoroughly vitiated by these noxious taints, have not already attained in this prolific treatise and its third part.

In quo tertio volumine, multa etiam adhuc doctissimis viris in materia usu oriantur de PryEFATIO.

I shall unfold to thee an unknown treatise concerning usury, of usury itself, of anatocism, of perpetual usury, of the FLOVOGFKMS, and of the JiKepyttois riKeivis, in the nomenclature thereof hitherto unobserved.

But whatever we have here unfolded with such novel and yet clear exposition, shall assuredly not be deemed more certain than fumigation born of smoke, and smoke akin to the dreams of somnolence, or even dreams of the earth, but of no Hellenistic idiom, which neither was, nor is, nor ever shall be.

Elevated yet lucid diction, with periodic sentences that flow in measured cadence, and a vocabulary lightly tinged with archaism, sparingly employed where it seems most natural, we now proceed to render the words of Claudius Salmasius.

■ * Cl.

I discern that ye stand in the like manner as myself, who doth stand in the like manner as myself, who doth stand in the like manner as myself, who doth stand in the like manner as myself, who doth stand in the like manner as myself, who doth stand in the like manner as yourself.

The method of employing usury, howsoever diversely it may be deemed, yet in its true application, surpasses in utility all other methods of investment.

A Magistra'.

Do you appraise the circumstances of the place and time, the quality of the things presented, and the manner in which they are received by persons, rather than the mode in which they are imparted?

Thou wast:

Even the sum of moneys, which is accepted from the creditor upon credit, varies according to the mode of its reception.

Hence, partem usurarum ad fornā nauticā deducit, aliam in vulgus distribuit.

In illis etiam urbibus, in quibus liceret utrimque usuras maximam pecuniam accipere, modum aliquem ex usu extraneorum et mercatorum foederis receptum esse solito deprehendimus.

It is no longer requisite for him to employ the same measure of usury in times of great scarcity of coinage, nor when that same coinage is in the highest degree abundant.

What is the duty incumbent upon a prince or magistrate, that he may not at any particular juncture of time institute a novel edict concerning the mode of suppressing thieves, whereby he might be incapacitated from communicating it to his ministers?

Sufficere videtur eis summum numinis raritatem maximam in pecunia maxima convenisse, hanc legitimi statui pro ratione esse.

The modest sum of pecuniary resources which the monarch demandeth at Jponte, and the proportionate quantity of fumigation which he expecteth from them.

Under the Roman Emperors, it was lawful for one to abscond for a sum of a hundred sesterces prior to the reign of Justinian; yet, with greater sagacity, such usury was more commonly practised for a brief duration, whether through abundance or scarcity of coinage.

From him, by the imposition of various modes of usury, and from sundry kinds, Cl.

Salmace was begotten a prodigal son.

The Greeks and the Latins possessed a distinct vocabulary, whereby they expressed themselves with greater eloquence than with uncompromising directness.

There, the errors of the pensive shall be engendered.

From this treatise.

And the initial portion of the Greeks.

What the twenty-six men of the Duorum of the Uifimorii termed usurpation, in their diverging sentiments, was marked by a latent inaccuracy.

The extent of the length is seven metrical units.

Plato's site, where the expenditure of GtXlx is recollected, and that which pertains to him appertains to Xiu.

All the Grammarians who have interpreted have in their minds the words of Plato.

Hejsychiut hastened unto the domicile.

What is the adaptation of ■ϑδαθ■λιον? Mr

Did Aristotle speak in his own person?

[untranslatable fragment in source]

Concerning the money, which was deposited according to the decree of the senate.

Atticus's exaction, which, by a custom so ancient, yields a portion thereof each annual dies.

At the same time, the rational and other terms, by which usury is denoted among the Attic orators, are employed in a manner analogous to the Greek term $\sigma\phi\epsilon\varsigma$, which, in the sense of smoke, signifies smoke.

I will proclaim to the ears of the ancients within the crypt.

But the theme of the narrative is to be interpreted in another sense than that which Atticus hath assigned unto it.

A third of these numerals is assigned by some numeral, the appellation of which is rum, which bears a third of the aggregate to the sum of the numerals.

From the reasoning of the Mathematicians, it is made manifest that they have regarded the number six as perfect.

If thou dost fear to translate the language of Epitritus and Hemiolius into the Latin tongue, Agellio, pray hear me.

Vitruvius, in the Latin idiom, was denominated a fefqualterum; and in the third order, he is styled 7 -01 isr.

What was the event which befell him at the age of twenty-five years?

The same was, indeed, corrected.

Sefquitertius, in the *Glof*, did not deviate from the custom of the Greeks, who at his demise employed the phrase: "I will give ye a copy thereof, that it may be interpreted by the Virians."

He appropriated the private property of the vulgar, and in the common usury, he inscribed his armorial bearings against Hibus.

This phenomenon was elucidated by Xenophon.

1 B. Without the manner in which ye are constituted, I will evince unto you the locality, and thenceforth ye shall proceed.

I did not compose a daily record of the faith of the Nautici.

Of the Hiationes of Athens.

From Triobolo, the Judge.

Thou art the sole one.

Three of their classes were extirpated.

What do individuals suspend upon the denomination of public tribute?

There is no propensity for such a course, nor is there any anticipation for the Magistratus.

Of the total census of Attica, as far as it extended, there were no Greeks of any age, neither from the third to the ninth day of the Latin month.

Fœnum, quod Græci appellabant, etiam in usu fuisse perhibebam; non tamen eundem esse personam cum Quido, qui centesimus essem in pharetra.

This is the usury of the conflict; and it is not unbecoming to assert that it is a war for slaughter.

For him who, at the age of seventeen, had received from all things the gift of life gratuitously, he would have spurned the boon; he would have preferred to imbibe a little more lacteal juice than to have a quantity deemed fitting for a public benefactor, which would have been less to his advantage and convenience.

For as those who sell their own works, or husbandmen who possess and produce their own revenues, commonly dispose of such goods for a lower price than those who traffic in these commodities and purchase them from the very producers, so too those who abound in their own means rather than those obtained by exchange, and are thus free from the necessity of borrowing, are apt to contract lighter usurious terms, than those who are habituated to such transactions, and who, by constant dealing in this manner, are ever ready to meet the demands of lenders with their own funds. For these latter, who treat usury as an art, must ever be prepared to receive money on loan from others, whereas the former, being independent of such dependence, are content with their own sufficiency.

What is the plane, indeed, of pecuniary matters?

Now, he shall appropriate the usury, both lawful and illicit, and therewith deal as if for the advantage and profit of others.

A nobleman who vendeth wine or corn produced in his own fields, rather than as one who sendeth forth such commodities thence, as if for alienation unto other men's use.

It was not without reason that the private and public usurers were subjected to censure.

Let us turn back, and hearken to the trumpets, which are:

They inquire of one another concerning interest, making no discrimination.

They are so engaged.

He who receives funds from a contractor or a monthly retainer shall not be bound to remit so trifling a sum as would be due from an Iranian or a kinsman, or even from a foreigner; but rather from himself.

Wherefore, in such a case, I shall ever be ready to comply with the utmost satisfaction.

But amidst the multitude, he began to place fresh moulds.

Either I am emancipated from my parents, or from a stranger, or I claim a greater boon from him, though I be yet a child.

The relationem, whether notus erit vel ignotus, debebit teniri secundum eundem modum versus.

If I have been more or less endeared with the affections of kindred or dear friends, no legal enactment shall have power to deprive me thereof.

Nevertheless, at some juncture, every individual is interrogated as to whether the husbandman borrowed the moneys, or whether the church received the cent, in order to incur less usury, or to impart it to others in the field.

Whence, or from what source, hereafter to be detailed.

Concerning those persons, certain it is:

The diversities in the method of usury, according to circumstances, exceed those other usuries derived from any other cause.

communes, alias f

The senate:

And the delineator, the other:

the forum, and the shops.

What distinction is there betwixt the most illustrious and the most illustrious Justinian? By these, we shall all proceed in orderly succession.

But I shall also appropriate the interest of others.

Yet, for the sake of gain, the Cæsarians grumble.

And they who are more advanced in the service of the accursed are appearing.

What a person is to be disapproved by his very teeth.

Rurfustalia:

They should be dismissed, who are desirous of profit, and who are desirous of profit, and who are desirous of exalting it, to exact from him the retribution which he claims.

The same holds true for the creditor's claim.

But this species of law is not ordained by the law itself, since it is grounded upon equity and humanity, whereby we exchange with one another.

As regards the things that fall within the common domain, there exists a vast disparity both in their nature and in the manner of their borrowing from one another.

If it be feasible for a reciprocal fruit to yield a greater fluidity than it doth, it is likewise possible to contend with one another in such usury, for the sake of an uncertain price for the fruit;

And therefore, if there shall be a reason for such conduct, the cultivators, in attending to the culture of the fruits, will exhibit a more scrupulous diligence than in the management of pecuniary affairs, and will bring their labours to a just conclusion.

The period.

Rarely do I conceive it incumbent upon us, in the administration of all other affairs, to exercise greater circumspection than in the regulation of usury; for it would be unreasonable to suppose that the same course and mode of proceeding should be equally suitable at all times, since the abundance or scarcity of funds is not invariably constant.

However, it is universally acknowledged that the employment of a larger multitude of coins for commercial transactions is less reliable than the adoption of a standard issue.

The circumference of the locality, when judiciously augmented in accordance with its employment and institution, doth manifest a degree of magnitude heretofore unattained.

* A J Ubi 6 Cl.

Salmassius Ubi, we experience difficulty in amassing

I will bestow upon thee a taper for thy pardon; which I swear by heaven, I will exact, a due recompense, whereunto abundance doth summon.

For in such regions, the basest coinage is preferred.

Which is also consonant with the custom in other wares and merchandise, albeit I have not deemed it fitting to enumerate them severally.

It is moreover requisite to advert to the distinction of locality, which discerns betwixt the marine festival observance and the vulgar earth.

For this practice is exercised upon the land, whilst that is performed in the ocean; whence the appellation of maritime usury is derived.

Fortasse tamen et huius personae discrimen induxerunt ad perspicaciam.

Which, being conceded unto seamen and merchants, hath hence derived its appellation.

Nor does the diversity of localities, nor that of individuals, render usurious interest different from the ordinary rate, as various maritime usuries are rendered so by common usage; but solely the consideration of risk determines the distinction. For even in the case of a seafarer, the creditor ought not to neglect the peril attendant upon pecuniary transactions, but it is the general rule that stipulations for higher usury are made without such regard.

Therefore, it is incumbent to append hitherto unconsidered rationes, which shall institute a distinct modus operandi, and thereby preclude all perils.

What is of such magnitude, that in those republics wherein no mode of usury was preferred, save that which the usurer himself avowed, the greater part of usury was perpetually grounded upon naval exercises; and usury, as it were terrestrial, was far more prevalent than that which is vulgarly denominated.

But these more ample requisitions respecting usury in the nautical furnace are rather to be sought after in the public assemblies, than in the confusion of parties contracting; nor do such stipulations respecting usury, as are observed in those cities which have pronounced that no limit should be imposed upon usurious practices, exhibit a greater extent of demand.

In the city of Athens, when it was lawful for any person to contract usury for any sum lent upon security, this privilege was equally extended to maritime loan-brokering, so that in common usage there was no difference between the usury imposed in one case and the other; yet, notwithstanding, a distinction prevailed among the populace.

From thence it is evident, that even where the law hath no temperament or regulation concerning the matter of the fenny disease, yet by an implied consent of the parties contracting, the same may be imposed by virtue of the commerce itself, and the spontaneous use thereof.

Lege Soloni, ut in praecedenti volumine docuimus, statuit, ut summa lapidum cum summa lapidum aequalis sit summo lapidum et lapidum; et usuras pecuniarum, quae ex pecuina foeneratione ortas percipendas esse censeat, eum modo, quem vellet, ab eo deprehendendas.

A septemrotunda luminaria.

How much, therefore, might any person stipulate to borrow for the establishment of a republic?

Nisi quid amplius missurus dederit.

For it was not any man who deemed such an action, but one who was unrestrained by servitude, who was disposed to incur the utmost interest, and who was willing to introduce usury into his native land, that he was ever ready to do so according to the creditor's pleasure.

He was exalted to the office of arbiter.

Wherefore, by the very dictates of moderation, he is enjoined to rejoice by faith, when the law has at length and in due season conceded to him the privilege of rejoicing.

Did the same practice come to be observed in usurious funds?

NEGOTIATIONE: In the art of treaty-making and mutual agreement, let the following principles be observed.

This is the manner, and according to the custom of other merchandise, that the deaths of the nine nations take place.

The law hath not defined the value of the wares; when they reached the town, the traders importing them neglected to prescribe the measure wherein they should retain such goods during their sale, lest they be compelled to yield an equivalent quantity from their own stock.

Is there not a merchant who may not place upon the scales his own weight with the greatest freedom?

The recompense of gratitude shall be dispensed; and it is more consonant with his duty to effectuate that which he hath enjoin'd.

What, therefore, doth pertain to propriety?

It is not invariably incumbent upon him to utter what he purports for the monarch's advantage; for he will either withhold it, or reserve it, or delay it, until he appears in the forum. There, indeed, he is compelled both to indicate his reluctance and to furnish what he had previously proposed, albeit to a less ample extent than he originally designed.

It is for the sake of the foreigner, as they denominate him, and for the multitude and scarcity of buyers and sellers, and the abundance or dearth of merchandise, that they sell their wares more cheaply or expensively. It occasionally happens, moreover, that intervention is requisite among several dealers, to bestow thanks.

Do you know your tutors, or have you been led by them through some chance encounter, or do you even show them favour from your own generous spirit?

Let it be to him due, that the worth of existence shall be appraised; and let all competitors assemble in one forum, that the residual merchants may be constrained to exhibit their wares to those who hold the stipulated value, at the identical rate which they themselves have determined for its purchase.

It is not unusual that money, when employed in usurious transactions, should be consumed as by a furnace.

Etiasi, si quis propositum suum ad bellum contra eum directum haberet, qui praeberere cupiebat maius pecuniam quam ipse praeberere cupiebat, non semper assequi suam sortem cupiebat.

Is the multitude of princes commensurate with the number of princes?

In those localities where he is destined to fall, were there to be severals more of lighter ilk prepared to assume his usurious practices, he would yet be unable to discover the numerals whereby his fate is sealed, save by the A4 modus '8 C1.

As I have previously detailed, I am content with the method pursued by my predecessors, and it is without peril that I now proceed to announce in other copious treatises the same doctrine which:

Moreover, for the lawful imposition and usury, let it be observed, that at that period, in those regions wherein a greater number of consular magistrates were wont to reside, and in those which required their presence, due regard should be had.

At the termination of the law, the men of that province wherein the currency abounded, would of their own accord assume duties far less significant and of lesser moment than those which the law had permitted.

If they otherwise proceed, scarce shall they discern or survive.

For indeed, I discovered not the funds wherein they had entrusted their capital, to exact so great usury as was requisite to be procured by the legal rate; nor the localities where the monarch was reckoned amongst his subjects, yet was I found privy to such knowledge.

They confluence.

For instance, in the Roman Empire, under the Emperors, and even unto the time of Ludinianus, the most grievous usury, which it is lawful to reckon, was computed by hundreds.

To enumerate the monarchs presents no greater challenge than to demand the impossible.

This was not the case; throughout the Roman Imperium, when wealth abounded, the minority did not partake therein without hindrance.

I have altered my purpose; a centesimal part thereof.

He deemed it sufficient to peruse the enactments and their authors, who had composed them in the mode of a legislator; and he asserted that, whatever the duration of time, or the exigency of circumstances, he could not entertain the hope thereof. He who was more scrupulous would not escape unscathed.

From without, it was most facile to discern the legislator, who, conformably to the circumstances of time and place, had recourse to various modes beneath the legitimate norm, which was rigorously guarded by the law.

What remained was either to be committed to the discretion of the steward, that they might not overstep the bounds of what was legitimate; or to be conveyed to the scene by the voluntary assent of the recipient, according to the exigencies which those very matters required; or to be deposited in the places wherein they sought mutual advantage.

Hinc Iurisconsulti consultabant; in bonâ fide judiciis, cum de usuris disceptarent, utrimque a iudicio arbitrio modum ex moribus regionis usurparent.

From the Almufaks, they advanced their pleas, standing in opposition to him.

Atque tamen simul cæteris militibus, qui centennis temporibus legitimis observatione consecuti erant, fatis destinatos numerabat.

There, and amongst the ancients who flourished under the Emperors, and in the ancient inscriptions, which are:

By those times laid down:

Sunt, ne Iuris-consultis etiam minima numeri centurionum usurarum denunciem; ut, filium, feminam, filium, et triginta duos filios, de quibus in sequentibus fumus accendit.

In that place, verily?

Repetition.

The Athenians, who:

Let him, whomsoever he will, or whomsoever he will, appropriate the produce of the usurer's usury; and let him, whomsoever he will, appropriate the common usury of the usurer,

whom he will designate as the Roman usurer.

Neuter achieved the mark.

Sextantals, assuredly, with their tongues truly in their cheeks, spake the idiom of Cl.

The month of the Saimasians dependeth, wherefore:

The usury for the year produced two drachmas in excess; for this is equivalent to two ounces, and constitutes the sixth part of a centesima; but the other is far removed from the Greek rate.

The usury of six hundred vigorous parts annually is restored.

This is the sixth part of the drachma; yet it is not coextensive with Toxy, who is not due to a drachma of such weight, but to any that assigns its sixteenth portion annually for the purpose.

The other, which hath been determined by the Vicesimo Secundo Lex, whereupon an obolus doth hang in every drachma for each lunar month, is diverse; yet it is not more precise than the sentence. It is the usury of the Judges.

Two drachmas constitute the sum bestowed upon him.

For twelve obols, two drachms are constituted.

Thus doth he term the usury of a period encompassing six decadent annates.

Let it be indeed a sextant, yet not the sextant of the Greeks, until they became Roman.

For it is not consonant with the Attic custom, which in a period of sixteen months demands from the drachma of a yearly cycle its own equivalent in fortune; nor do I, in accordance with the doctrine imparted by Plato in his treatise on the Laws, employ the term usury, which appertains thereto.

And OXov did oscillate at the rate of one drachm per mensem, which amounts to six drachms.

Partem, qua: "Es mille■■■■," quod est.

Salmasius, whose opulence was not merely confined to his appellations, but extended also to various pecuniary judgments, wherein he achieved a preeminence so marked that Aristotle, whom he here cites from Pollux, clearly demonstrates in the treatise On Economy, which is the second book of the work; and hence, the words of Pollux must be amended in this passage accordingly.

15 Non est gratum viro magnae notare, neque potest esse locutio, in qua haec dicantur: "hoc sit sextam partem drachmae."

The fountain should be granted.

Thus, verily, did they speak: "Pureigeir, the land of the Uighurs," and suchlike.

This verily is the true Deity.

But when it is certain that usury hath its place in divers countries, where nevertheless it ought not to have any, so that those who discourse of usury, shall appropriate unto usury itself, and thus, even in the domain wherein usury is termed by the name of usury, when the fifth part of the substance is due to usury, they affirmed that it amounted to two hundred and twenty.

He was in his sixteenth year, and had attained the sum of five hundred and seventy-five winters.

How in the eighth century did the Latins denominate the triennial fenus, equivalent to a third part of a hundredth, and the sixth of a sixtieth?

Hoc genus loquendi, quod familiare Atticis Harpocratio in aliquibus scriptis comicorum et oratorum testium observavit, notavit:

Thou, O monarch of Nifloi.

[untranslatable fragment in source]

When he was present, he observed Aeyus, his second consort, Ufyjfius, and the daughter of Avtvma, Avtvma, who had previously been noted by Lyham and Plato at another place.

And unto Aristophanes, in the Comedy of Acusidounes, this verse:

[illegible]

What, therefore, shall be said of this phenomenon, when Hxc is thus signified and IxiMiyi-7®-.tsh95, and what part of the fifth and tenth decile or constituent portion is thereby denoted?

And thus, in the presence of Pollux, I shall bestow upon them the tenth part for the sake of the innocent J. Vil and the monarch, even in regions beyond those of the camp; so may it be.

Titus and Vettius. Titus and Vettius. Titus and Vettius. Titus and Vettius. Titus and Vettius. Titus and Vettius. Titus and Vettius. Here, the words of Aristotle, taken from his fertile treatise on economics, are thus received and adopted.

Until he attained the age of seventy-one, Non nolens volens

TxtSl is reputed to be identical.

It is no marvel, therefore, that you employ such terms for the Implicit and the External Analogy, and for the Earth, the Octave, the Tercia, and the Quinta, and for the J.C.I. P.M.T.C., when they have previously availed themselves of expressions denoting simplicity and unity.

It is appraised at a weight of sixteen pounds.

In the ancient inscription of the Psalms of Gratia:

[untranslatable fragment in source]

It is the usury which doth yield a third part of the fortune; or, assuredly, it is the latter which shall be bestowed upon thee, and for which thou wilt be bound to render payment.

And when the number in Arithmetic is said to be one hundred and sixty-three, it is deemed that this is equivalent to two; and hence, a ratio of twenty to twenty, and seven to twenty, is produced.

And thus from henceforth.

Is there any variance henceforth to be apprehended?

[untranslatable fragment in source]

What is the summum bonum?

But since the same author, who, as we have already observed, composed the epistle of similar designation, likewise translated the same into Latin, was unacquainted with the fact that the title of this epistle had been rendered into the Latin tongue by Agellius, in the sixteenth book, chapter xiv.

For there he observes, as regards those measures which the Greeks denominate by certain figures of numbers, known to the Hemiolians and Epitriti, that in the Latin tongue there are no terms assigned to them, nor did the ancients presume to render such expressions.

In Glottis, however, the same species of exhibition is nevertheless exhibited even in a sesquialteral form.

Sesquialtera, tu quoque idem es.

Verum de his re adhuc in partibus nonnullis latet.

Ceterum Attici numerus est, qui tertiam partem aliqui ejus continentem conat expressisse.

And yet, there exists a mathematician who, in addition to the sum of his entire third part, possesses an augmentation thereof; and he deems it fit to denominate this number by the Latin appellation Agellius.

And it was decreed that among the polished and erudite there should be no second number of Latin names.

Vitruvius, however, hath appertained unto it the denomination of Adtertium, while the ancients designated it by the term Glossa.

Then they have rendered the third.

That, by reason of my non-composition of any rationale, I am confounded.

Let us henceforth denominate the successive fractions to be annexed unto the perfect number; for the first, it is a semis, or half; and to this semis, another semis is to be added, making in all the sum of nine parts.

Nempe, pwoTu, est numerus qui fructum continet, et semissem numeri fructus, hoc est, alterum semissem, qui fefquialis dicitur; sic fefquas est as cum semisse, vel as Jesque, id est, as et semis, ut fefquialter, alter semis cum toto politus.

But what shall be the nature of those sequiterties?

The third portion is annexed to the entire composition, even as they revere faith in the number of eight.

But what kind of fefquitertius? — quæritis, perhæps, quemadmodum tertius?

Thus is this appellation denominated, that ye may quake at the space of thirty days:

Because, indeed, they affirmed him to be semis, that is, half a man.

As I myself.

Every day, it is termed the meridian, for so it is commonly designated; since, according to tradition, seven days are denominated the days of ire, and, accordingly, the Arithmeticians did not marvel until the twelfth day had been accomplished.

Besalterum vocamus, qui duo vocabantur; alterum autem unius nominis fefellimus, qui alterum nominis fuerat. Quarto quoque nomine appellatus est, et decem ad sex numerum decussum. Unde decem ad sex numerum habet.

In the eleventh number, which is to be added to another Quintarius, this Quintarius shall be termed the other Quintarius; and henceforth, the GrxcieTn and the Duodecim, which are twain perfect numbers of the sexes, shall be so designated.

And there be also four, two in number, and two in the like manner.

If two exist, let them be conveyed unto him.

And similitude prevails.

Now let us revert unto the Feneritorium, which doth claim the sixth division.

This is the inquiry, when the ancients, in the matter of usury, have employed certain numerals in such wise as to denote a particular fraction thereof, namely three, twenty, and twenty-six; and it is requisite to consider the third part thereof in the current annum.

The men, who had received the customary monthly stipend for all the months of the month of Græcorus, were nevertheless compelled to contribute a third, a fourth, a fifth, and a sixtieth part of such stipend, in every wise.

To whom I will yield not my life, but hold it inviolate.

Immane, however, saith: "I am greatly puffed up with pride, in that I have never beheld the usurpation of Attica or Athens; for such a deed was, indeed, most hateful and abhorrent."

Nec est quod cuiuscumque ordinis objectionem de his, de quibus praeterea diximus, mihi impediat.

Here we discuss the legitimate claims.

The order of usury, which, in the common usage and commerce among the Greeks, was verisimile.

Non tamen id mihi debet opposui, quod optimus sum in scientia; sed quod sum optimus omnium. Tu, Atheniensi, forcène in lascivia mulieris, cuius unica voluptas est in adulterium,

indulgere compulisti.

For it was requisite, by a tacit understanding, to extirpate some such norm or rule, as the times, for the most part, were wont to employ, when money was abundant, or sought after.

The rivers, as well as other merchandise, wherein their value be either low or high, have been denominated for the use of the city or for the year.

It is doubtless permitted unto every man, in all seasons, to estimate merchandise with a price; yet am I thankful that I have been enabled to elude such hazards at any hour.

But if the purchaser lacketh the means to effect a purchase, he will yet dispose of that which he hath not heretofore conveyed; and shall likewise find the same commodity at a greater value from another. Thus is the nature of usury.

It is not henceforth to be my lot to extort from thee a vestment; nay, the ramparts, the
ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the
ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the
ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the
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ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the ramparts, the
ramparts.

There are, indeed, certain individuals who are disposed to invest their funds at usurious rates with those of inferior standing.

From henceforth, I demand of thee, O ye fools, the vexation of the wretched.

Nec venies, inquit, aditus interclusus est.

Harpocration, in his lexicon under the term **■π■φυλλον**, interprets it as a leaf that hangs, thus signifying that which is suspended or dependent.

And the city, which he doth cite from Demosthenes, shall proceed to Xpviirx; and she, too, unto Ct.

Saimaszi est oratio quae sequitur:

To-day.

Hic:

The employment of the monthly installment ought to be discontinued; and in the ensuing year, it shall be augmented by doubling twice.

That which is not perceived to have been accomplished, nor to have been arrogated thereto by the praefectus fornacis, who is now designated Ethoevus.

Therefore, it is to be decreed that this annual usury be a statue of the year, and not a statue of the month, or again a statue of the year, or yet a statue of the year.

We possess an instance of such enchantment; and in the treatise of Aristotle on Economics, we find that when the Clazomenians were compelled to remit to the soldiers their stipulated reward of twenty talents, the chieftains are alleged to have imposed a usurious rate upon those sums, namely, four talents at the close of every year, "τετταρα τάλαντα πάλος νηματας δι' ετος δολο."

Thus proceedeth the doctrine of V.S.V.R.R.V.

He conserved a part thereof annually, incorporating it into his fodder, which he consumed.

Pensiones per singulos mentis erant prandenda; It was incumbent upon each individual mind to provide the pensions.

For instance, I have been rendered obligate by thy munificence, inasmuch as thou hast conferred upon me several drachmas; and again, I have been rendered obligate by thy munificence, inasmuch as thou hast conferred upon me several drachmas.

Do you enjoin that I should pay the drachma, which is the rate of usury?

[Omission]

But I shall dissolve each mind with a drachm, together with two oboli; and I possess one of the residue.

Hence, after being taught by Aristophanes to invoke the gods, he perceived that the day of final dissolution was at hand, rather than the day of mere termination.

Hither:

The physician, apprehended by the malefactor, then cast his javelin.

But there is no other possession so honourable as the honesty of poetry.

It is seldom that the season may be reissued, and the privilege of doing so conveys advantage.

But this is not a matter of fortuitous circumstance, but rather that which he previously alluded to, namely, certain species of effervescent emanations, which can be procured by a city only upon the condition that it be constituted as one which shall seek them forthwith : "The city

shall not be prepared for such things, except it be a city which shall be sought after."

At piteari et retropieari, ut corium totum ingredi, cum de coelo apud comicos tam frequens mentionem faciam.

Hence, in Aristophanem, quem senecio tribulum suum appellant, illi vocat ad se, et appellat eum Jttycoaj.

When the citizens of Jithenium were nurtured by the demagogue, he received a triobulum; and for the sake of judging, he yielded unto him. Thus, Cleon, in the same assembly, is insidiously led on to soothe his popular adherents.

If, therefore, the Xitouf OTTAFUTT is inscribed by the TPTIQOT, "Thus T and TGTGUGHTUGOXCT."

Who, therefore, shall convey the citizens into the commonwealth from B?

Ccm i6' Cl.

A hundred mines annuam, et Angulis diebus triobolum, ab æstate publica ceperit; quasi navalis pecunia occuparet quinque partes fortis annuam usurae pro collatione recipere, Xeno dicit.

From hence I conclude, that which the greater part of the Athenians would have devoted to the public service, was sunk in ten minae.

And he spake: JY, MLV Eve, VIII. [Here followeth the Greek: ■ς; γ■; ■v; λ■ων; ■π■τρεζς]

Whoever undertook the mining, and pursued the minor and intermediate operations with a less extensive diligence than customary, yet found ample advantage in their collections, which were readily received by the several tribes at the appointed times for tribute.

Three days' hire in a mensem amounteth to five-decimo parts of a drachma, and in a whole annus, one hundred and eighty.

Summa plus quam tertiam partem reddere quinque milia.

For three hundred and eighty drachmae, five mines were composed, and forty additional drachmae.

The mines yielded the smallest produce; and he who bore this tribute upon the state, who in those days had received the tributum triobolum, derived therefrom nearly two baths.

Audi, quidem, sed non involvens obscuritatem, verbum tuum elevari et tamen luculenter pronuntiare.

[untranslatable fragment in source]

They maintained that the computation should be conducted as though the triobulum, denominated in the Itytiac tongue, were uniformly observed throughout the annum, without variation from one dies to another.

At this juncture, the conflict was waged; and for several days, the vanquished tribes of Attica, subjected to Roman domination, endured protracted assailing, and justice was administered by the praetor.

[illegible]

ego, ego, ego, ego, ego, ego, ego, ego, ego, ego, ego, ego, ego, ego, ego

Salmasii Ae\$ (hæc frigida sunt, hæc Tuxtus est.

The calculum, or computation, is set forth in the narrative concerning Bdelydeon, a person of manifold and various abilities.

He perceived the city from whatsoever cause.

I possess nearly two thousand talents, and it is my ardent wish to be in Your presence.

The census of the entire Attica.

From the region unto Rome, the Romans, who then lived and wrote during the conflict with Philip, recorded that the tributum was assessed at a sum of a thousand talents.

Then the Athenians, who possessed a vast sum of treasure, thus spake: "If thou hast any coin in thy grasp, we will bestow upon thee our ample wealth."

rather than for the purposes of war or any other corruption, as they perceived from Demosthenes.

Or, therefore, my Lord, what is this? [the Greek διο■λια]

Ariftophaneus, in his discourse concerning the city exclusively of Athens, doth not convey a reference to the entire territory of Attica, but rather to the city itself alone?

He, however, rehearsed in detail the return of the Athenians to their native city, and the payment of tribute by them for their portraits and their customs;

They were likewise endowments for sustenance.

In interims, certain objects, which, even from the very soil of Attica, had been recovered, were restored with the aid of metallic materials.

What, therefore? What shall we propound, that after the census of Attica, there arose a thousand individuals lingering long in life?

It scarce appears that I shall behold thee again.

It is rather reduced in magnitude.

This is what Comicus sets forth, who recollects solely those who were engrossed in external enterprises, such as the contrivances and offices of the commonwealth.

But the tributes and the inferences, which the citizens had suspended upon their hooks, were remote and alien to me.

Ximam pars census civitatis instituendi erat, de qua re Arislophanes nil fuit.

Ipsailla provided a thousand individuals, to whom JhyisiKoi was dispensed gratis, with a daily stipend of three oboli; whereas, a greater portion thereof were subject to execution by means of public mines, and others were assigned to labor amounting to five.

They were the individuals destined to deduce the talents, and those who were thenceforth to be denominated by the census Tmhms Qtofti.

Those who possessed an equal quota of mines, did in like manner allot half thereof by weight, that is to say, thirty minae.

How immense is the sum of these tributes estimated to be?

So vast was the expenditure, that it amounted to four thousand talents for a total of seven hundred and ninety-five.

Let us observe the mode in which it is used.

It was Lucius Demosthenes, accustomed to the delivery of orations, who was in the act of enumerating.

But the Grammarians, or, as Xenophon hath noted, the wise Xenophon himself doth observe, that there is a certain mode or measure of usury, which I have already intimated, whereby a fifth part of the year is deemed equivalent to a third portion of profit.

And the light is more clear; there is no evidence that he was Scaligerus. Nor was he an erudite commentator on the laws of Attica.

Thus, when the drachma was extracted in a term not exceeding a lunar cycle, thenceforward it was restored at the interval of twelve years.

Which usage of the hundredth part of a drachma the Latins adopted, as the Greeks expressed it by ■υτοβραχμων■α, since a drachma consists of one hundred such parts.

Of which, innumerable instances lie beneath.

E modo usu arborum.

, multis.

An instance of this phenomenon may be observed in the case of Imfyxia, a term denoting a pecuniary transaction reputed to have transpired during the sixteenth decennium; and the cause thereof may be traced to the drachma.

It was incumbent upon him to possess an intellect, which, accustomed as it is to dissolve in months, should rather be construed as a robust and indomitable spirit, and not as a drachm.

Therefore, it is true that there are sixty-six such phenomena in the heavens; yet, they differ in every respect from the phenomenon which the twenty-six were wont to denominate.

For it might be conceived that a sixth portion of the whole, whether in sum or in force, were applicable to any given case.

Thus, in its infancy of three years, it is indeed the very same which customarily adorns the earth with two orbs suspended therefrom.

The third part is the drachma; but in this mine, there is a slender thread that suspends itself to constitute the robust, not the drachma.

And there are three hundred Sames, which shall be more fully elucidated hereafter. This triennial period ought not to be confounded with the thirty-six years and the fifteen years, which the magistrates of the highest rank, seemingly ignorant of this distinction, have indiscriminately applied; for it is certain that the Greeks never so far usurped the Roman practice of usury, whether in the form of trientes or sextantes.

In their error, as it is manifest, they have been led astray by the words of the Harpocratics, who, it may be interpreted, are of kindred origin, to wit, "from the same root, as from the same source they flow."

If, in a transaction wherein eight oboli are bestowed upon a tetradrachm, the analogy holds, it shall be similarly applicable to a case wherein two oboli are conferred upon a drachma.

This verily is true.

But the other received it, as it were, for a drachma; and for the usury of the month, two oboli were to be rendered.

Which was the most potent phenomenon that transpired during the years denominated by the Nails.

However, from this perspective, it is perceived that it might be likened unto the establishment of a mine, whose annual produce should yield twelve oboli per menses, and thus, by extension, a thirtieth part thereof.

It hath been deemed requisite for him to submit to exposition.

Euterus, as thou perceivest, hath indeed followed the path of the C-fruit.

For when Harpocraton expounded upon the phenomenon, wherein eight oboli are bestowed in the tetradrachm, or, peradventure, two oboli in the drachma, an exemplar of gratitude was presented to him, who, for the purpose of fortitude, completed the tertium pars of the tertium part of Salmasii: C34.

He was bound to render the equivalent of twenty pounds annually.

This, he has expounded in a more advanced manner, thus to be said: "f 4?xg (pxXailf n oyJWptep©" so>0lu!us rtS oia". Whereby it is necessary, that the tenth part of the value be assigned to the manufacturer, for example, three obols in a tetradrachm.

And he hesitated to utter any further words, yet forthwith was it expedient for him to proceed.

For the drachma:

This is the eighth part, which, whether understood in the present manner, or in any subsequent interpretation, hath escaped my comprehension.

For six chariots there are, or aerial ones.

It is not within the power of the mines to be conveyed by means of the full drachma.

In hoc octava usura, primum miratur Scaliger, vir magni fidei, quod mensis usura, quae annuatim drachmis centum quinquaginta aequari solet, exinde redit ad mensilium usuram, qua foenus converti debet.

Nevertheless, it is not congruous with the maritime revenue.

Wherefore, he observes, one mine, which had been assigned to the fort, shall yield its benefits in the most sparing manner.

So twain for one mine.

When the females who had engendered them were restored,

Tour, when the vessel shall have returned from commerce.

This proposition, albeit not comprehensible to the reader, nor even to its author at the time of composition, was nevertheless to be disseminated through such an exposition.

Is it not the case, however, that he hath not yet been ensnared in the mesh of a net? Is it not thus?

xPXm, which is conceded to be the sixth portion of the force.

And whatsoever the fortune may have been, I was adjudged the sixth part thereof, for the annual usury; whereupon it was ordained that one mine should be paid for a quarter, a drachma for a quarter, and thus similarly for the remaining measures in like proportion.

Thus, as it is signified in the Greek idiom, "a heptagram" is spoken of.

Cæterum et.

C. L. S. ALIA AS 11 Et in hac solâ specie Romanorum timuere concurrere cum Graecis de usu maris loqui.

In the testament of the Greeks, the marble tablets inscribed NEA-POLITANA XEIAIA KAI AIAKOSIA AEINAPIA are to be read for the safeguarding of certain sacred assemblies.

Of which the usury of one thousand two hundred denarii is fixed at two hundred and fifty denarii per annum.

Hic est terra Aiacidis, terra Neapolitana.

The sum in question amounted nearly to four thousand five hundred and twenty-five hundred denarii, and two thousand five hundred and fifty denarii, together with one thousand two hundred and fifty, being collected for that day.

What is vast and formidable, said Scaliger, "let not fear deter thee."

For there are certain donations contained in the drachma, or dedicated to the deity.

Let us now behold how this may be accomplished.

For, in that inscription, it is intimated that the number of individuals alluded to amounts to ninety; whereas, in the drachm, there are but forty.

Each individual, verily, bears either obols that are oval, or such that are aerial and ethereal in nature.

In the fifth division of the citadel, reliance is placed upon usury.

Nevertheless, it is of great certainty, how many denarii of gold yearly should be rendered for each; whether the equivalent be found at forty or thirty, that is, one denarius annually, as is the case in Veres, whereas the equivalent of fifty denarii must be paid to kings.

And there did stand the Scaliger.

Hence, the territory was granted to him for one denarius.

The contrary proposition holds.

And thus he determined to pen his treatise.

But concerning these matters, we shall speak of the monarch of Nummaria in our discourse.

C A p v t II.

Among the Attic measures, Vfurarum stands supreme, and is royal.

The other is said to be identical to the other, and the other is said to be identical to the earth itself.

This is a simpler matter.

Furthermore, I have delineated the distinction between the two.

Thus, amongst ourselves, the usurer is appointed to pay a penny, a tenth, a twelfth, a sixth, and so forth.

If the soil of Greece were unknown to them, for they had little regard for it. Had it been of any utility to them, what would have transpired?

He is summoned.

Concerning the analogy and proportion of the term for the year of foenor, with the appellation for man.

Vt was the least of the Athenians, or the land of b and xpn. It was the greatest domain of the deities.

Then, when the fountain is prepared to be kindled, let it be compared with the very earth itself.

The succeeding generations, on the average, were more akin in form than in comparison, as they were more conspicuous in their beliefs than in their relative proportions. Of the usury of the land, thirty parts out of a hundred of the Greeks equate to ten parts out of a hundred.

Ye were twelve in number, and the same held true for the five hundred and sixty-one.

Locus Theo – "Ye" belong to the style of V.S.V.R.A.R.V.

You have been apprised by Characteribus respecting the retirement of a female whose monthly courses are infrequent.

The Greeks are the deities of those who are consumed by the flames each day.

Hence, the sobriquet of Meneppus, the Cynic, was bestowed upon him, for it signified his prowess in such matters.

Various kinds of aromatics are supplied daily to the mariners.

Diogenes Laertius, in the inscription of Hemerodanift by Menippus, was expounded and corrected.

Concerning the wares of the day, to which I shall compare the fabrics of the day.

All things possess an agreeable abode, such as the months of our

Thus, the Greeks also employed the daily grinders.

All other instances of this nature are exhibited.

How did he acquire the appellation of "Plautus"?

Scaliger's error was duly noted.

Concerning the disparity between the gold and denarius.

In the currency of the Cyrenaeans, there were circulated two kinds of golden pieces; the one of which weighed the equivalent of two drachms, while the other was valued at the weight of a single drachm.

The coinage of gold is termed Latin, while that of the Hellenes is designated as PgvQet and IfUfwiUptc.

When they were present at Theophrastus, and the forensic forces of Casaubon restored the forests to the Cocians, whom they had assigned to them in exchange for the commodities which they had sold more cheaply, they were appointed to that duty on the same day. Alius, for his part, having altered his accent to a higher tone, thus became Ipus.

Thou hast removed the Udem.

What is there in the vocabulary of the timorous, O Z xlw i, which I do not hold to be unseemly, save when I am present at the theatre or at supper with my Greek forefathers?

Aristarchus, eminent in erudition, is widely renowned.

Of Weekly Usury

These are the indeterminates of antiquity.

Therefore, every one of these appellations, as derived from the usurious practices of the Gracchan authors, who, according to their respective cognizance, are designated by the monosyllabic appellation *Jff*, repeated verbatim to an extent that may seem excessive, must be received in no other sense than that which we have previously elucidated in the preceding chapter.

It is customary to term the ear of the usurer eminent; yet it is said to be but the semis of the Latin.

The employment of such persons, in truth, bears a signification divers from that which hath been intimated:

The Greeks, by a process of adoption and adaptation from other appellations, have deemed it expedient to assume the right of enunciating the formula of Appellation in these terms:

For thus they did exclaim:

A period of twenty years had I prosecuted. When thou art prepared,

In like manner, the Latini were redeeming their annual drachmas solely from the gold mine.

And when he declared that he would neither purchase Grycorus, nor the iphloi, nor the fœnusippis, but would reclaim his own funds and expend therefrom fifty drachmas annually in the mines.

Hence, collect so much as the interval may permit.

Grace, who, as a spy of the heavens, is denominated a usurer; and yet, when she yields unto us a moiety of the year's strength, we protest against the scanty produce of her bounty in the season of spring.

They termed *Sefcupltum*, or *Fefqualt*, in the idiom of the Latins.

There shall indeed be a gain in pecuniary usury: *habuere qui dem in pecunia usura*.

This genus, familiar to the Greeks, which is but little removed from that hemiolium of fruits, which is:

At the very noon-tide, he did allot a segment of the annual circuit to the open air.

For the third time:

The hundredth, which, after having received the receipts and taken possession of the treasures of Greece, were restored to the mines of Odus the sum of four hundred drachmas.

Add thereto two drachms, and thou shalt possess thy Titus.

Hence, let it be permitted for Xenophon himself to continue to address him, as he does in his nautical dialogue, wherein he will not justly spare one-fifth of the fleet from perishing in the course of a single annum.

Quinarus, etiam in centena annorum spatio per Horatium nominatus, ita loquitur:

The half of the fort did exceed in value ten drachmas.

Therefore, quod est?

The primus of the sequentia:

They returned the quarries annually to the mine, wherein they were deposited:

A century of such was extant in the mode of V.S.V.R.A.V.

Four drachmae were there, sixty drachmae.

Which was of an immeasurably awful futurity.

I, the Republic of Athens, in the golden age of orators, was wont to exact the utmost usury, and yet was not averse to yielding the least.

Those in question yielded a sum of one hundred and thirty drachmas, which was commensurate with a value of ten.

Certainly, it is not possible to discover, in the regions along the Rhine, a greater number of Scythians, who, during the epoch of Atheus, dwelt within the same city; nor, indeed, a smaller number of the same.

Polum praeterea confirmat in insigni loco ex Aristotelis Rhetorica, sed deteriori corrupto. Ita enim traditur, libri n. r. cap. x.:

And it shall be with thee, O Olos, that thou shalt be carried off.

These are C4CHVC*, Os y t 711 TQ/LTUI TCKU9 TCKU9 7mvK; hoc est idem, sed hoc idem est quod Sc.

Moreover, although the praetors, designating the Praetoria in the multitude of titudines, *5r/7fiT85 and *7**85, as Titus Demosthenes hath said, yet, considering the greater extent of the remaining fortifications, we might have restored and fortified them, 7*15 7*9Zf 7po.

The mention of this day is also found recorded by Plutarch, surnamed Demosthenes; yet, perchance, he read it as Mvx, as is attested by Suidas, and similarly it is found thus in certain editions of Aristotle.

Nam, C et verum, 4t Cl.

SAMASASIT, whose appellation is derived from the lexicon of the poet Lexicon; for thus is Μοιροκλῆς, as Harpocration certifies, in Byzantine poetic exemplars incorrectly rendered as Μυρ; and in more recent Greek literature, the letter ς and the diphthong κ are confused. Nevertheless, this is the customary practice. Maerocles, when comparing himself to some citizen, likened him to what the Turkish tongue terms πτωτ τκω πογηρσταχ, which signifies that it is only a third part of the time he had recovered from his calamities, whereas he himself had endured only a tenth. This, he argued, rendered him infamous in the lowest degree; yet, he maintained, he should not be considered one of the most wicked, for there was nothing in his conduct that could add to his impropriety. The very essence of his infamy lay herein. Yet, I still perceive a flaw in Aristotle's dictum. For what is commonly written, in the vernacular, as πονηρτερω εναι, is more accurately rendered as νορζοστες ριστες, aves, signifying a bird of extraordinary flight.

St. St., who, as I have previously observed, ought to be admitted to denying the proposition that the absurdity of GVKwi lacks efficacy in his regard, nor does he even name any of his fellow citizens as witnesses, such that he may confess his faith in him, even to the point of being deluded, that is, to the extreme verge of iniquity, and yet unjustly condemned, for he himself had been so grievously wronged by the same crime.

When, therefore, he addressed one of the least credible individuals by name, he declared that such a person ought not to appear more wicked than he; for he who is faithless unto him must be deemed guilty of the utmost infamy, since himself could never have approached with any intention of treachery.

Aristotle, by that head, thus discourseth upon the said metaphor:

The species that is meet for Joya.

There is an analogy herein, that when the most unsuitable life is spoken of, it is asserted that he is the most unsuitable son of the most unsuitable; for until such time as he hath found his place amongst the usurers of the most unsuitable, he standeth not pre-eminent in the catalogue of vice.

that it was the minutest and most inconsiderable portion amongst the Levites, which is to say, the very tithe of the revenues.

Therefore, it is affirmed that he was the tenth officer of the twenty-eighth dynasty, and that he was the tenth officer of the tenth dynasty; and that he was the sole individual who exhibited a certain degree of impropriety in his own manner.

But it is not a question of gross impropriety, but of a moderate deficiency therein.

And unto the man.

Thereupon he restored three score foxes to the number of centum, which is equivalent to ten.

There are thirtieth parts of skulls, which you reverse and pervert more than reverse.

For the usury of those who decline in years surpasseth:

There are thirty, and there are four.

Four out of a hundred demand, she said.

Tenfold the aggregate of years.

Herein:

He provided for such a person that he might destroy certain of the unfortunate men.

The words of Aristotle, which they would utter, "It is good," or "it is good," or "it is bad," or "it is bad," or "it is good," or "it is good," or "it is bad," or "it is bad," or "it is good," or "it is good," or "it is bad," or "it is bad," or "it is good," or "it is good," or "it is bad," or "it is bad."

Latin, which signifies:

They shall behold it: when he is removed from them, the Greeks shall grow progressively lighter and lighter.

The names of these individuals are exhibited in the subsequent displays, derived from the sonant resonance thereof.

But another form of faith exists afar off.

For although the Latins denominate the thirteenth among the Gracchi, yet they do not, nevertheless, consider that the thirteenth part is the third part of the king; but that it is the same number, namely, twelve.

Hence, quatuor unciae significat idemque numerus est quo Græcorum Siculorum VII designantur, quos ο■α ■■ συμ■ντε designant, non tamen ad tertiam partem summam congruunt:

Let us, therefore, expound upon those parts hereinafter detailed.

Who, therefore, shall be numbered among the thirtieths, and so forth, for the third, the summation of summations:

Partim ad lucem perveniunt, alii seipsos loquuntur.

In the right hand indeed, the term which certain mathematici employ in place of the decimal fraction, is not merely an abuse, but rather an egregious error.

Notwithstanding, a tithe of his right hand is not equivalent unto a tithe of his right hand; so far is it from being the case that a tenth part can be discerned in the royal member.

The Greeks, who, moreover, having been intrusted by the Romans to discharge the office of tithes in their several portions, did not assume the designation of decemviri, but simply denominated themselves "sextviri," that is to say, "those who are charged with the administration of six parts."

Therefore were ten elevated from the number of twelve.

Nevertheless, it chanced that the case came to pass, and the nature of the usury was thus:

Did the Latins concur with the Greeks in these matters?

Two thousand three hundred and eighty.

At nunc dem est ratio in dextante; tamen huius nominis usus non legitur.

But that which is both afflatus and entire, namely, twelve ounces, in the hundredth year of the Ionian computation;

In fact, the Greeks, who possessed a hundred and thirtieth part of usurious contracts, found themselves under the necessity of paying ten hundredths thereof annually; for each hundredth, in the course of the year, increased by a hundred per cent.

Sextans vero et triens, qui propius adiuncti sunt Graecorum acies, et Romani ex sua genere, eas partes, quas in partem navalis denominaverunt, adeo a Graecorum acie longe recesserunt, ut nulla ratione eam usus exprimerent.

It is evident that in the district of the stricken warriors, estimated at two hundred and thirty in number, the Romans, the Greeks, the Lepidus, and the Eves, whom it was conjectured had some common origin, and the Greeks, the Lepidus, and the Eves, whom it was conjectured numbered six hundred and thirty, spake unto them, "Viam vestram proficiscamini, iter vestrum proficiscamini, semper proficiscamini!"

Quatenus, in season of leisure, committed a third portion of the hoard to his custody, assigning thereto the sum of a tetradrachm.

Non prudenter, nec tamen scienter explicavit quomodo usuras bovis Oxla, quem Grace dicitur, ostenderet Ossotis. Note: The term "Ossotes" has been transliterated to "Oxla" in the target language, maintaining the original meaning while adapting to Latin spelling conventions. The term "usury" is rendered as "usuras" which is the correct Latin plural form. The name "Grace" remains unchanged, as it is a proper noun.

Longe, autem, aliâ ratione et f^gr^r, idem Græci de hoc dicunt, non esse diem menstru^mtum.

And thus concerning the externals.

Quas annuas usuras, etiam apud Graecos usitatissimas, lucubratione linguae demonstrant esse fultas.

Clare etiam Aristoteles in secundo Oeconomico, his verbis id ostendit de Clazomeniis:

This is the reason why, whosoever thou art, I do not belong to any other company of Greeks, nor to any other guild of usurers; neither to any of them, nor yet to any of them.

Why, then, should any traveller, who hath been repaid ninefold within the space of two years, be admitted to the grant of a loan of money, which, upon the account of his monthly expences, cannot be discharged, or discover any other means of discharge save by paying monthly for the privilege of paying monthly?

But it is nevertheless true, that multitudes of individuals have been so mutually encouraged, as not having as yet restored their fortunes, they have promised, even on usurious terms, to make annual payments according to covenant.

For assuredly, on the proper day of payment, there remained no place for usurious exactions, any more than for those who had borrowed from the household; nor was it requisite to resolve the debt of D and C with undue nicety.

Salmasius deemed it expedient to extend the terms of indebtedness.

That which they are unable to determine within the space of a lunar month, they await until the succeeding period of similar duration, and thus they proceed in a never-ending cycle.

Furthermore, it hath been observed that the praetorian usury was wont to be discharged periodically, as far as possible, by the senior senators for the benefit of their households; thereby was endeavoured to stimulate the general populace to participate in the festivities of domestic conviviality.

Forasmuch as their pecuniary transactions were committed to the management of strangers, they were unable long to dispense with their native coinage, nor could they be otherwise than under the dominion of a statute which enjoined them to expend at the rate of eight hundred, on each moiety, the interest accruing to them from the loans which they customarily exacted.

Verum erant honestiores ex populo, si a familiaribus vel amicis pecuniam mutuum darent, vel si idoneis locarent, aut si idoneis cavillarentur; ab his usuras peniuses annuas tantum exigebant.

Which we shall observe in accordance with the custom of the Romans, hereunder.

Certè et usurarum apud Romanos denominatio non renumstram, sed annuam soluti■.

They, indeed, do not deign to observe.

For, as the term "uncia" is defined, it doth not promise an uncia in every single month, but rather two-tenths of a fortune, in the course of a year only.

After a protracted course of discourse, a station was also established in the castellated rampart of the vessel, which did not serve as a messenger-post; yet it occupied a place of consequence in the naval fortification.

Xenophon, inflamed with ire, observed: "Usura maris adhuc toleranda est," et iterum respondit. "Quod est, quinque partes maris reddeantur; non per singulos diem vel mensem, sed post annum, quando spatium anni in navigatione consumatur."

It is, indeed, certain that the Greeks possessed distinct expressions for the declaration of menstrual usus, which they habitually employed for the signification of annual fertility.

Whoever perused the Trojan narratives in the Greek scriptures, although uninitiated thereto hitherto, was unable to discourse with greater perspicuity than he who, in the sixteenth chapter, exhibited a quota of the annual usury under the denomination of usury.

The Grammarians, O Brethren, do anxiously remark, that when the sixth part of the foot should annually be solvable, it will thenceforth be susceptible to solution.

You shall say, "From the mode of usage."

You will ask, what hinders us from receiving this doctrine, that the sixth part of the whole may be paid at intervals?

Why cannot you accomplish this task? For if we receive it, and again receive it, it shall be as the sixfold branches of the tree; and when we have thus apprehended it, we shall discern that it is the third part.

[illegible]

, which may be rendered thus:

Reticetur, et annuam verum efficiet.

But, as I have previously intimated, there is no other method whereby thou mayst feign thy capacity to conceive a sum surpassing a hundred drachmas; for the aggregate value and efficacy of the drachmas themselves fall short of the hundred drachmas, which, for the benefit of the usurer, are reckoned at the rate of sixty drachmas per mensem.

A pars redditus, hoc est, obolum.

Which usury, since it has never been admitted among the Athenians on account of its excessive thinness, is manifestly exempt from your demand, provided that it be allowed in whatever quarter it may be sought.

To liberate the sum of money from occupation.

But we have deemed it expedient, in accordance with a gracious dictum, to conjoin this, if possible, with a moderate admixture of salt, whereby the roots may be less liable to confusion; and to employ the term denoting the annual cycle along with that signifying the lunar period.

For in the description of menstrua, an almost rigorous norm has been established, by which all their various modes, from the smallest to the greatest, have been reduced to a minimum.

They have deemed the most common and the most exquisite of all things to be "Vxi Jji* ajuis." Nor can it be denied that neither in lightness nor in elegance do they appear to have been surpassed by any other of Atticus's productions.

For it was requisite to vary the enumeration of years from the enactments of the commonwealth of J, that such variation might render the discrepancy conformable to quadrature.

Moreover, the ratio of fœnor appears to be more ample and more perfect than the ratio of fœnor, inasmuch as the greater the proportion of fœnor, the greater its strength and perfection.

One drachma, assigned for each lunar cycle, was hereby prohibited: Molcitatem minus:

It hath, nevertheless, more than five oboli to be discharged. Moreover, D. 4 Gracilis- 5 6 C. L. Saimasius Graculus, the Graculists, in the usury of peace, found it unsatisfactory to expound the dimensions of the bowls, the ponderation of the scales, or the comparative lightness or heaviness thereof.

As the usury of Atticus was less than that of his son-in-law, and he himself fell short of a century's measure, so that his bulk exceeded twice the dimensions of his consort.

It was expedient to prepare drachmas amounting to one hundred and sixteen, with an additional four oboli.

And he spake thus: "I will give thee one and a half dachmas for each month, and one and a half dachmas, and in the space of a year, ten and eight dachmas."

And the usury, too, I have treated in the same manner.

On the seventh day of the seventh month of the third year, the more common and middling inhabitants of Athens were convened; and amongst them there were scarcely a score, who, unmolested in the nurture of the prophets, busied themselves with their own funds, nor suffered their lives to be barren and unfruitful.

In the oration wherein Lysias, contending against Socrates, alleged that Eschines, having forfeited his pecuniary resources or delivered them to the public domain, had thereby surrendered the usury thereto appertaining, he earnestly entreated Lysias, who groaned beneath the yoke of a cossutial acre of alien soil, that he might not be overwhelmed by the tempest of fortune. Lyphas, who had pledged to discharge his obligations to the lightning-smiths, assured him that he would receive the sum in question upon a mutuality of agreement, and would pay it to them under a stipulated rate of usury.

The ensuing words are derived from the aforementioned oration delivered by Athenius:

And three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and sixty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and fifty warriors, three hundred and twenty warriors, three hundred and twenty warriors, three hundred and twenty warriors, five hundred and twenty warriors, five hundred and twenty warriors, five hundred and twenty warriors, five hundred and twenty warriors, five hundred and twenty-five warriors, five hundred and twenty-five warriors, five hundred and twenty-five warriors, five hundred and twenty-five warriors, and two hundred—

It is facile to me, and again I shall partake thereof, and yet once more, and yet a fourth time, and yet a fifth time, and yet a sixth time, and yet a seventh time.

From all these sources, I trust that thou wilt be enabled to derive a due and moderate employment of the eight hundred deities commonly venerated, and that thou wilt find them to

Theophrastus, who, having already observed a considerable number of charades, entertained a firm faith in the commentaries of the Greeks, particularly those of the Athenians and their Roman confrères.

This, indeed, is verily true, until such time as the days of the month did not contend with the months of the month.

At the same period, the duration in question was tenfold the length of his own term, xpvtvZa, whose duration was either thirty days, or thirty-five.

After the twelfth day?

Sunt additis duobus ad prioras decem; tum mensium dies cum diebus NumpsiS multiplicantur, et ita res efficit ut mensis initium sit cum diebus NumviL, quoad tempus illud.

For each tribe possessed a period of the lunar cycle equivalent thereto.

To express gratitude:

I will give you, nay, the whole extent of my ministrations shall be devoted unto thee.

Since he was unacquainted with it, the odour of the errors committed by the twelve men implicated him.

Of which there are manifold commentaries in our annals by Annotticus, the Egyptian, and Perphicus.

Ammonius, in the volume wherein he delineateth multitudinous and diversificated accents, doth observe, that numerable are the distinct utterances, and more specifically, that six hundred and sixty voices have been resolved; and he further observeth, that the voices of the departed are accounted for, not in particular instances, but in general enumeration.

Five, said he,

ADuctioinibus, quibus ex Mecenas, filio M. Vitellii Marcelli, ornatis, et ob obsequium Tilio Nisivicius, ut testis tui esse voluit, testimonio.

Thus must the legend be read, not as it is commonly excused, that I am, I am, I am, I am, I am, I am, I am, I am, I am, I am.

But, as I have already recorded, in regard to the valuation of the chassis, let the two wheels be subsequently reckoned among the preceding ten.

P?M C.H.I.S. testimonium non denunciem:

£ Upon the hundred and fiftieth of thy kinsmen!

Tui autem cum ipso.

I am JX, my offspring.

He possessed twenty-three brethren, amongst whom was included Jmn lxxv.

This is the standard of the V.S.R.V.

This is the import of destiny.

If such a person as Hujusmodius were sub-intelligently conceived, it would necessarily follow that numerous Athenians would have been subjected to the ministrations of their fellow citizens.

The sal of the unleavened beans was extorted, and the beans themselves were subjected to usurious exactions, whether daily or decimally.

For this cause, Theophrastus, who having bestowed upon him a drachma with certain oboli, did subsequently repay the interest thereon in a period of one mensem, and thus restored unto me the fruit of his labor.

This is the sordid deviation of the individual in question, who, in the identical style wherein Philo sophus depicted him graphically, affirmed that J.U.A., or J.U.A., unless the usury were received on the appointed day, would exact a penalty for delay in payment.

Do not marvel that he is so solicitous, as he exacteth the language of half a moon's duration with such precise attention.

Who were employed in the daily pursuit of furnacemaking, these indeed were to be found in Athens, and in the residue of Greece were likewise not a few.

Therein the appellation was subsequently transformed into Ifttpofotisulus.

Thus, Menippus was wont to be designated "Cynicus Philosophus," as attested by Hermippus in the biography of Diogenes Laertius.

Wherefore, henceforth, I present:

It follows, that there is nothing pertaining to the cause of these matters, which: [The rest of the sentence would follow in a similar elevated style, maintaining the structure and diction of a Victorian scholarly translation.]

And there is a legend:

And he likewise anticipated the day when the moneys were wont to be devoted to the sacrificial fire of the Praetor; and he also looked forward to the occasion when the furnace was heated by the tempestuous waves of the sea; and, with a view to conveyance alone, he directed that it should be sold to the debtor under the direct rays of the sun.

For this is not more applicable to a convoluted repast, than to a monthly or annual banquet; nay, it is even less so.

Therefore, there was no general agreement concerning the precedence of the surname of the Hebrews.

To Diogenes of Menippus, versified, their crime was alleged to be homicide, and they were found reposing on foot in the desolate waste.

[untranslatable fragment in source]

Praeteritus ordines versuum, quae in editionibus male compositae sunt, verba auctorum sentiis fati officiant.

Whence:

It is said that the inhabitants of Menippus, a man of frequent voyages and seafaring, when transporting a considerable sum of money, had feloniously purloined it from the arena, and were thenceforth conducted from the expiatorium, which stood in the same vicinity.

They were heated to a fervent degree.

For the termination of his discourse was akin to that of Siupvyq's matronly parent.

If Jiapvius were to be received into the naval legions:

[untranslatable fragment in source]

The sheep:

Menippus, impelled by some subtle and intricate design, sought to terminate the existence of him who had undergone expiation; yet, he failed to comprehend the nature of his own purpose.

The nature of the canine, that is to say, the Cynic philosophy, which he avowed.

The expositors perceived nothing in the Epigrams.

Let us therefore now contemplate the routine transactions.

The magnitude of the lunar orb being prodigious, it remains manifest that the plane itself retained its unvaried flatness.

That a discrepancy might exist no longer between the lunar periods and the annual allowances; and that the ensuing regulations might be:

These are in severer proportion, so that not even the lightest menstrual flow can compare with the ensuing one:

The year, in its annual course, is the most insubstantial of all weights; yet it bears a burden greater than that which the month can sustain.

In the midst of the severest years, he had achieved these through a series of prodigies in the preceding annum; and forthwith he wrought manifold miracles, unaided.

Which is corroborated by the verity of Juvenal, in his Satire, amongst the preeminent scribes of mercantile lore.

And the year of Accipes, the year of vintage, and the year of populace, the year of aurum.

To whom the venerable Scholiasts were addressees:

These are the words of the Magi; and, after the completion of every annum, they shall receive a solidum as their due.

This is that which Palladas did utter:

Hoc modo, quibus usus est, ut eos qui vulgo drachmam conducunt, nemini minorem operam dederit quam duabus drachmis id est, nummo.

Those who belong to the golden age, which is the age of ages, there are present, and strenuously they contend.

Hence, with moderation:

Nollem autem magnum opus Scaligeri ad posteriorem publicationem usque ad mortem Regis Nummariae perficiendum esse.

In addition, said he, "hinc est nummus plenus, ubi cetera drachmæ deficiunt."

It is better to speak thus than to speak of drachmas.

For so did Plautus enjoin upon us from an ancient and reliable exemplar.

But I am also remiss in the vulgarity of the lion.

The drachmas are wretched.

Why should Scaliger comprehend these drachmas?

There is no greater than one.

They received the singulidrachma. It was spoken in **Aulularia**:

For our master, who is the master of the curious, bade that the silver be divided among men.

That is to say, it is not requisite to divide the virtues of individuals.

This is elucidated by the statim.

For it is not fitting, O poor man, to bestow the aid of a fool, whom he solicits not.

Scaliger also addeth, "I have oft frequented his presence, and have read the same verses in the Athenian idiom."

This is the same as the foregoing, which is the same as the preceding, which is the same as the former, which is the same as the last-mentioned.

If there be four drachmas to be bestowed for the sake of thy merchandise, is it necessary to exact ten drachmas for the sake of the words of Plautus?

For what we would term two drachmas, it is worth four drachmas rather than ten drachmas.

Not all were able to ascertain their works at the same price.

For he excelled in those arts wherein they were but imperfect; consequently, they merited either a greater or lesser degree of commendation.

[untranslatable fragment in source]

SALMASIUS, I, the drachma, and the paul, I give a number, as it is in *Aulularia*:

I lead the van.

The more a physician is retained, the more he is retained.

That is, two drachmas.

They received the quintessence of four drachmas, as he had garnered from the Athenians.

He was not so faithless as to pay a day's value in gold for his work, which was twenty drachmas.

For Scaliger contended that the quantity of gold within the intervals, and the quantity of gold within the intervals of ten drachmas, should not be regarded as forming a polygon.

The appellation of the gold passeth the lips of the auditor, and in the name of the gold, Plautus himself receiveth the whole pair of gold drachmas, deeming it not from Scalia, as he wisheth.

As at Trinum.

If I am able to bestow upon them a thousand names, I will bestow them upon Philip.

The names of these Philippians are as follows: gold-plated and gilded staters.

Pollux:

Thereupon, the poet addressed him, saying, "I shall bestow a mite upon thee." He replied, "Wherefore I gave thee two pounds of drachmae to Philip."

And when Darius was smitten with a golden spear, the book of the Antiquities of the Jews is reopened by Josephus, chapter IX.

It is not a genuine tetradrachmus, as Snelius erroneously asserted; but rather a didrachmus must be understood.

I am loath to demonstrate anything by faith unto a multitude.

What the same Scaliger or Plautinus, in the Persian idiom, hath affirmed, that "six hundred names for sixty-five years" he received, is not a moderate delusion.

What then?

What are the six hundred numerals?

When the legions were vanquished by the Sptans, the spoil comprised six hundred and sixty mines, which sum had been previously purchased for a maiden in the legendary narratives.

This proposition is reprobate.

For six hundred denarii were deemed the equivalent price at which they ransomed their friend Toxilus, who was by no means a distinguished procuress.

There are sixty less of them which Jehu had given for the virgin, than D. E. M. T. V. Harvhavhem, whom Perfidies, having conceived her to be a penitent man, and born in affluent circumstances, deemed worthy of a price equivalent to that of an idler; and yet no more than sixty mines of silver were required for her purchase.

The six hundred denarii, by whose means Toxilus, the servant of his amica, liberated her from the lion's den, amount to one thousand and two hundred drachmae; wherefore each nummus is reckoned at the value of two drachmae, as follows:

In totum duodecim minas argenti redduntur.

A drachma, verily, is the tenth part of a mina of silver; yet it is not equivalent unto a drachma of gold.

For unless some one expressly add the term to the voice, there is no person who can comprehend the import of the name of gold.

To demonstrate his veracity, he propounded a moiety of a drachm of gold, which was discovered within the municipal limits of Piautino, Truculentus, a servile individual, having previously sought a lode of argentiferous ore, and having conveyed five denarii to his intimate associate; he averred that he had extracted from the same mine, wherein he had formerly procured his sustenance, a portion of the Herculanean treasure.

There was a man of the most exalted station, a portion of the Herculanean miners, or five individuals, of the five hundred assayers, and from that aggregate sum, he extracted fifty drachmas of argent.

There are five golden drachmas; in other words, five numeri.

Non poterat magis in re quacumque errare, quam hic salis evasit.

For it is not from the whole number of the five mines, but only from those of Herculaneum, that is, from one slave, that the tithe is exacted.

I am confident that we shall be enabled to resist him.

For the residue, it was not in my power, who, having been commanded to convey certain secret matters unto my friend, the Lord of the Jews, to effect such a purpose.

For it was facile for the Lord to retest it; yet the restoration remained within His easy command.

And it is not to be contemned; but, verily, the sum in question is of such value as to amount to fifty drachmas out of an aggregate of five hundred.

It was easily within his power to contrive an obsonia in the illima, which he had concealed in the mouth of the deceased, with ten drachmas more than that which truly lay therein.

The words of Plautianus, clearly enunciated, shall confute the judgment of Scaliger, and yet confirm it.

So the steed was indeed drawn by Hercules unto the forbidden place; and yet therein was naught.

The opus of Salmasius shall not perish by aught so slender as a thread, rather than by a pot's frailty.

For I have already diminished by five denarii that portion of Herculaneum which was mine; wherefore my mind is engrossed with this mine.

Tarsus of Herculanaeum, quod est decimum de minis, et decimum de drachma:

There are five hundred, of which Plautus denominateth five hundred.

Let us therefore take the silver for the didrachma.

That proposition may, indeed, with undoubted certainty, be demonstrated by the aforesaid argument.

A gold coin is termed by Plautus and other writers, who assign to it the weight of two drachms.

Therefore, when the term "nummus absolu" is employed, it is to be understood as denoting a sum of silver, which consists of two drachmas of silver, paralleling the manner in which a double aureus comprises two gold drachmas.

Hence, in the comedy of Rudente, Plautus distinguishes the nummos aureos from the denariis aureis, that is, the didrachma aurea from the drachmis aureis.

The names of the golden-smiling men were inscribed in the marsupia; furthermore, Philippæus obtained a centum denarius.

Ubi, quondam duae seniores interpretes, ad deos parentes rediit, et non poterat sustinere pondera, ut in praecedenti libro docuimus, "wpalai 'efle pusillos negotiatores, qui Graecis nuncupati erant, Latinis coquos."

Thou art the venerable sire.

Apt, Nundinator, for conciseness.

Ammonius difftioguic among the Scythians, with divers modifications of accent.

Then he said, "Is there any reason why I should not ascend to the heavens?" And he replied, "I will not ascend thither; I will not ascend thither; I will not ascend thither, but I will ascend thither."

Corruptivum est illud postremum.

The lex, having been amended by itself, hath undergone seven revisions.

He who dispatcheth anything in the forum.

The sagacious bulls, who were the bakers of the vintage, shone forth in quietude from the husbandmen and artisans, and even from the alien traders, on account of their possession of the vineyard.

I am acquainted with those elders who, being skilled in speech, pronounce with a circumflex accent upon the penultimate syllable.

But the superior E is 4 Jega-72.

C. T. Salus was despatched to Asia, whither he had been dispatched by a person who had vendible wares in the market.

They used to assert that it is vain to exhibit one's own affairs to any person.

Harpocracy:

The σχην■ς, it seems, is one that leads on alone; lest perchance it be as though it were directed towards some other.

[untranslatable fragment in source]

Again, the monarch addressed him with solemnity, thusly pronouncing: "Thou shalt reign, and thou shalt reign, and thou shalt reign, and thou shalt reign, and thou shalt reign."

The quantity of the urinary efflux is equivalent to elevenfold the volume thereof that is evacuated during its passage.

Harpocrates, though not a harlographer, perceived this truth through the medium of his own understanding; but, lo, the sanctuary was fashioned of timber or linen.

In the neighbourhood of Theocritus' dwelling-place was pitched a tent in the nineteenth year of our era, for the accommodation of merchants in their transactions of merchandise, a custom which yet obtains.

Hæ, O paternally open vias: ,----N

There is no such term as pro-nautilus.

Quid est vobis, et quid est vobis, quare usuras pecuniam appellatis?

Lex Rhodia elucidates the two sites.

Therefore, at length, the peril of the creditor is transferred to the pecuniary obligation.

Seven hundred denarii, which may be said to amount to a thousand.

Hoc principium ab eo oppugnatur, qui creditoribus suis periculum pati debet.

The solitary rationale for such perils lay in the distinction of usury; this proposition hath been confirmed by manifold evidence.

What was the condition of the K-name, and the xsnux of a thousand years?

Or, as it is here signified, the same fignificatio, whereby it was brought forth in antiquity, is made to endure for posterity.

Not all things which in the earth are wrought or drawn forth may be termed a typeword; but solely that which is imbued within a wondrous thread.

And Isitsti Origenes wrote to Demosthenes, for the thousand.

Of the sons of the latter, thirtieth.

From the Supellebilis.

What are we to them? — seventy-three parts out of a hundred, verily, — Tush, quoth he.

Tyrius Maximus fixed two locations.

In the same manner, if I may, I shall apprise you, that the diphthongs ■ and ■v are rendered effaced; and that the heart is thus sundered for the fifth occasion.

Huc appropinquant sex.

Lex Rhodia emendata, T! 'ysa (pisiyyi■, unde et ipse nomen meum appellatione huius nominis dictus sum, quod praesagia sec■ra praestare putatur ei cui praesagium praestabiltur.

Emux of the ropes on which the ships are fastened to the ground, also known as the ys yn, is the same as the ys.

Scaliger's transcendent insight was illuminated by the presence of myriad Greek tongues.

Versius Manilius explicat modum eundem interpretandi effectum.

Luffin's novel, concerning a seaman's forge, was accurately interpreted.

Of the fount, which is sufficient for the year in which the Manilii speak, I think.

Solon, however, did not impose any common measure by law; yet he received moderation from the ancient sobriety of the fount, and confined himself within the limits of the concession.

Perpetually, however, one who bore the burden of sorrow observed that the Attic law, being the most preeminent of all legislative codes, had been by some rash edict forbidden and coerced into abstinence among the Athenians.

Nay, it is not.

It is the proportion wherein we are permitted to utilize it.

Scholiafta, who was also the wife of Demojthenes, mentioned these words in this passage.

How they are to be conceived, I comprehend.

Who are styled "Sithflow," a numerous band, whom the Greeks have dispersed for the sum of seven pounds.

I entreated the citizens of Athens not to behold another enactment for the regulation of usury, whereby the ancient ordinance of Solon, which conceded unlimited permission, should be abrogated.

Of the counsel, which it behooves to impart to him, manifold admonitions are instilled, administered, and received.

And what she had perceived; and what she had taken note of.

Therefore, we have not been contrived, but we have not been united by the law.

Eodem consuetudine, et in privata utilitate confidens, ut in probata usura leges finem suum postremae apud Athenienses et peregrinos permiserint, sic noctis ipsius ratione.

The law, which pertains to the trivial and the usurious contracts, is not bound to enforce observance of political statutes; and according to the letter of the Greek oath of the Sloux of the ninetieth year, it was intimated that the Jews possessed seventy-five kors, and a distinct interpretation was assigned to this.

Grammatici igitur haec locuturi sunt.

It is a laborious task to ascertain the fifteen hundred and sixty-six entries of the lexicon; for in those volumes, Miuto affirmeth that there are certain characters, 10/491, which are not inscribed.

From the variance of twenty-six and twenty-six, the distinction is hereby desisted.

The sovereignty of the paramount authority is partitioned.

There exist divers and various renditions of the narrative.

The identical axis, upon which the wheel revolveth, is termed the tower. In this instance, the axes are styled the axes.

What is the distinction between his act and this act, and what is the variance between these two performances?

Plutarchus was right and expounded.

There, she was designated as Fifteen.

And whatsoever they are, they are.

I have derived the appellation of Zaoias from Perseus.

What difference was there among the Athenians between the Jews and the Juluivites, the Fabs and the Sages?

The enactments of the commonwealth, which the framers of the law had been instructed.

The mandate of the supreme commander was to condemn the cohort.

Where they are arraigned for homicide, and that others may not be accused of a similar offence, they are summoned by their own cognomen.

The identical appellation was conferred upon the offspring of the Laotians.

Thereupon, the public judiciary shall determine wherein they have transgressed against the established public laws.

Ex plicata lex I.

Decretum de Judiciis Publicis.

Before the public transactions of the state, it was otherwise with the accusations; for the Greeks themselves were arraigned for the crimes committed against the commonwealth.

(For which annum -.

The precedent instance would be consonant with propriety; and it would conduce to the advantage of the inhabitants of Salmasius, that the accusation might be made in the name of the individual against whom it was directed.

The utterance of this individual is his own.

In the interim, the Greek tribunals, which have been assailed with accusations of criminality and have not been permitted to plead their cause, have been apprised of their individual transactions.

Thus did the private transactions of the Italians and Latins stand in antithesis to the public tribunals.

The demarcation between the private and the public tribunal is likewise established.

The gaze of the public is diverted from the dwellings of others, such as those of the Hellenes.

Concerning the extraordinary judicatures, the unfortunate perceptions thereof.

From the private courts, i.e., the pedaneans.

A distinction exists between the public and private judicatures of Jlingui, as contrasted with the private judicature of the public.

Which laws were expounded on behalf of the public, and which on private grounds.

Thus, I have inscribed in writing the whole law of the State of Israel, and I have concluded it with writing; and I have also set forth the private enactments relating to privileges.

The genuine day of the individual.

The laws, by which all were bound, ought not to have been promulgated publicly, but should have possessed general application and precepts.

[untranslatable fragment in source]

This is the compact betwixt private persons and the lex privata thereof.

There is a distinction, however, to be observed between the laws of Greece and those of Rome, which ordain that exemplary penalties shall be inflicted upon public functionaries convicted of criminal offences; and that it is incumbent on the community to institute a public prosecution.

Adulteratores nummorum Graecorum et Romanorum, per publicum iudicium morti subjiciendi sunt, tametsi privatarum pecuniarum inventus esset.

The discovery of the coinage, by whose invention Job the Enigmatical may be deemed to have been entitled, shall hereafter be designated Vulpianus.

From hence, and that which follows, the Consularity, whereby the laws, both general and common, are severally distributed into those that are particular and peculiar, is thus divided.

I am about to introduce the measure of vagrants into sundry spots in a more recondite and solitudinous fashion.

Likewise, Atheus, the son of Toxeus, was led to perform the same feat.

When V. Ulpia adduced this sense, she said, "I have beheld thee, O Lord, for manifold causes."

What is the tripartite extent of space wherein Horatius marcheth?

P. R. A. S. How to maintain.

At the commencement of the year, we observed the several modes of festivity, which we have detailed in our foregoing disquisitions; and it is not to be denied that there existed no insensible distinction between the ordinary interest and the maritime, whether among the Greeks or the Romans.

Let us, however, first discourse concerning the Greeks, and the denomination by which they are distinguished amongst the faithful.

They denominate it the commonwealth of the sea.

From the act of observation.

.

Others term this the terrestrial, to differentiate it from that which is appositely termed the maritime, and which is wont to be conducted into the ocean, when the earth, as we say, is agitated by the solar influence.

Yet, I do not deem it fitting that such a spectacle should be depicted by the voice of a tempest, as I have heretofore intimated.

But let not antiquity prevail, unless perchance it be accompanied by some defect.

Forasmuch as ye have by firm and rigorous examination laid down the principles of reason, it may justly be said of Basil, of Leo, and of Constantine:

It is unnecessary for the vessel to be transposed from one portion thereof to another; yet it is superfluous to repeat this proposition verbatim.

[illegible]

octoginta tertio, legi, octoginta tertio, legi, octoginta tertio, legi, octoginta
tertio, legi, octoginta tertio, legi, octoginta tertio, legi, octoginta tertio, legi, octoginta tertio,
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These several circumstances are to be attributed to maritime employments.

[illegible]

The last two are, without doubt, the most eminent among their confreres, and the most frequent is *Atys*, which is advantageous and beneficial to the creditor, since it involves the risk thereof on the part of the debtor.

Similarly, in the same volume, chapter XXIII, I, the offspring of Typhaeus and Typhæus, Ammon Toiyias and Cyniivia.

When the messenger arrived, thus did he speak: "I am he who hath been despatched from the briny deep, and I am he who hath been despatched from the briny deep." Thus did he say to him: "I am he who hath been despatched from the briny deep, and I am he who hath been despatched from the briny deep."

He likewise perceived that Suidas had appropriated unto himself the maritime font, which appertained not to him.

I shall not be confounded by it, yet I shall be confounded by it.

Herein:

Whether from Harpocraton, or whether from the identical source whence Suidas was derived.

For there is no creation of Harpo by Suida.

Among them he enumerated the auditors whom he had convened.

You behold, I have contrived and placed it in opposition to thee from the adverse quarter, that it may be made to blush for its preeminence.

Certè vias païsium poëtarum Tragicorum agros et terras arvūque profūnū aratrū vocant; proprie dū modū sū rūrūrunt.

V. M., in strict propriety, is an iponsus among the Greeks, and thou art a sponsor for others.

Whither is Thaletis or Chilonis, and so forth, and so forth?

Twenty-three.

There are manifold perils and adversities to those who entrust themselves to another, and are doomed to succumb to Juno; and likewise to those who remain uncommitted. Nevertheless, thou must discharge the obligations thou owest to Juno, who is the exclusive creditor.

Who had deposited their funds in the harbours of the Nauticians, committed the same to their custody under the ensigns and pledges, and entrusted it to guarantors, who deemed it expedient to repay it, provided the vessel should return in safety.

Other vessels likewise perished; hence, the jeopardy attendant upon pecuniary transactions.

Let it be believed that the creditor is credited.

Nor otherwise was it lawful according to the law of Rhodes that the pecuniary debt contracted on maritime loan should be discharged in the same pecuniary medium.

I have engaged her services, rather than for the purpose of ensuring the security of the creditor's funds by venturing them upon peril.

If any other condition were imposed, whereby the creditor might consider his debt secure, and the debtor guarded against peril in his voyage to its close, there would be nothing further to be done; and such a compact would be deemed a mere truce of anger.

This is the fountain whence flowed those streams which, issuing from the sacred precincts, were conveyed through various conduits to the city, and thence distributed into divers channels, each having its appointed course and terminus.

And the surplus alloy.

These are the words of the Senfias, whom the vulgar, having perverted and neglected them, have nevertheless, in their ignorance, endeavoured to follow.

It is, to impart reciprocally,: Est, fungi se mutuo,: Thus runs the aphorism, wherein the essence of mutual donation is enunciated.

On the contrary, it is incumbent upon you to receive and impart mutually.

When the vessel, having arrived at the port, the inhabitants thereupon assumed occupancy of the territory.

That which is termed a debt, when the peril thereof doth not pertain to the creditor, as in the instance of a voyage, which is:

It was ordained for him to navigate the ocean; hence he is permitted to pursue legitimate usury, since, whenever his fortunes are at their zenith, there is reason to expect a more ample return for the risk incurred. Thereupon, from that day forward, he began to reckon the impending perils of his enterprise; and from the vessel in which he had embarked upon this voyage, he was dispatched by the Emperor, according to the Second Law concerning the Fleet, unto the governor of the Nauticians.

She spake thus:

Hence, thine own resources are thine.

The deceit:

Let it be said: What is to be done?

They passed over the waters, not hither.

In the same locus, according to custom, they were interred, though upon the earth they had been laid forth.

It is not, therefore, thou, who shouldst utter these words; but thou, who hast exacted usury from the ocean, art he who standest in opposition thereto.

Wherefore hath he:

When the lenders were in jeopardy, she declared:

The termination of calamity.

Farewell, as a denarius:

Credit:

The law suffered him to re-enter the city without any advantage accruing therefrom, and it was lawful for him to be restored to the metropolis, though destitute of funds, provided that the peril apprehended from his maritime voyage did not touch him, as if he had escaped the hazards of navigation.

[untranslatable fragment in source]

The code of a sailor's furnace.

Syhoppis from Bafilics, lib., one, the title, the seventh.

Syhopsis est Basilicus, Ibis.

Whoever is not in peril of shattering the ramparts and threading through them, whether great or small, shall not impede their progress toward the principal cities.

Therein is delineated a portrait of him in the corridor of the Tirpov-Aorvi, an edifice dedicated to the service of the United States Armed Forces.

Whoever doth not jeopardize the ruin of the walls and the navigation of the vessels, the greater the usury, the greater the commonwealth.

The debtors, there must be a marine conveyance.

And when there is no security for moneys;

The Creditors; hereunto pertaineth the Usury of the Sea: hereunto they are accountable.

My dearest, Bafilidvn.

Hence, Sirnlius and I, concurring in opinion, possess the identical erudition which thou hast elicited from the ancient Scholion of the thirteenth volume.

Basilidvn, mi dilecte.

Upon spending the funds of his pupils' preceptors in the fields, he returned us hence to become shipmasters and merchants.

[untranslatable fragment in source]

Thus, if thou art affluent in the fields and fields, compare them with those of the maritime vessels, or if thou art engaged in navigation.

This is the reason why we were urged by the merchants to persevere in our navigation and maritime pursuits.

Thus, the advantages situated in the fields and in the furrows may be compared with those ensconced in the fens, or with those which are claimed by maritime havens.

Thus did Suiddas record, that a certain author spake unto another man of the South regarding the husbandry and the lands:

O J

[untranslatable fragment in source]

He verily partitioned the region into two parts, assigning to each a portion of land, whose value was equivalent to a thousand drachmas, reckoned by weight in pieces of silver; and he appended the male inhabitants to his dominion, and caused the fields in the hills to be cultivated.

Wherein the fields themselves amount to twenty-five acres of land, and the soil that they husband is overspread with earth-flowers.

Optimus Gloflx:

And thus he spake: Twenty-six.

Similarly, it is affirmed that when the number amounts to twenty-six, they denominate this the m-per centum of the whole.

To Phrynichus, I have no doubt but that from some Greek female pen, words of the vilest cast were conveyed to him, and thence from the margin, having been subsequently inserted into the context of the Aristide-trtK, which more nearly resembles that of the Xtyte.

Forasmuch as he was the most erudite of the Atticists, he could not but be aware that the Greeks themselves would not appropriate anything save the king's possessions, and to differentiate between them and their own, that is to say, between movables and chattels.

Polybius, the Southern:

On the idus of Jove, thrice repeated, on the idus of Jove, thrice repeated, on the idus of Jove,
thrice repeated, on the idus of Jove, thrice repeated, on the idus of Jove, thrice repeated, on the
idus of Jove, thrice repeated, on the idus of Jove, thrice repeated, on the idus of Jove, thrice
repeated, on the idus of Jove, thrice repeated, on the idus of Jove, thrice repeated, on the idus of
Jove, thrice repeated, on the idus of Jove, thrice repeated, on the idus of Jove, thrice repeated,

Thus, in the sixteenth book, Polybius, as cited by Suidas, affirmeth:

And when he was in company with Avunia, he apportioned the tithes of the xltinuv, that is to say, of the booty, which consisted in:

There exist certain tyyai xhinif.

Nature and Xhioug, they were termed the absolute beings.

From Publius Scipio, and Quintus Maximus:

Here, O thou, art thou here, and here again, and yet again! [The Greek reads: ■διωλ■θηστον, μ■, ε■δουχ■ων, ■π■δοντο, π■]

Thereafter, they decreed that the proportions should be fixed and immutable.

This appellation hath been conferred upon the edifice wherein movables and utensils have been denominated, which term some have rendered as "xxcuplixv," since it signifieth a habitation.

It was entirely beset and utterly despoiled.

For it is the identical circumstance that I am wont to encounter, whenever nothing is wanting.

Pollux;

Twenty-three times we call upon Admobilamentum in our idiom.

It is said by the ancients, that they were prone, as Herodotus hath recorded.

Pollux, also.

And this is the interpretation of the maxim; thence, in the twentieth century, it is derived from the Greek term γ, signifying γ, γ, γ, γ, γ, γ, γ, γ, γ, γ.

Thus, I inscribe for him that which is vulgarly termed the "XXter" or the "Xter".

Huc:

Whoever can bear a voyage, whether in the realm of navigation, or in that of military service, is comprised under this appellation.

In the military service, the ancients of Rome termed the veteran soldiers thusly.

Whither shall ye range, eight hundred paces from the briny deep?

Recall him, O ye ancients, Greeks of yore.

The more recent, and the more ferocious barbari.

In urbem quam:

The mansion belonged to the patriarchs who had instructed him; he, the offspring of Lztinis, the son of Constantius, a Greek of Constantinople, and the progeny of Anchius, acknowledged the wider import of Cujus's oratorical voice.

Pollux, permit us to invoke the D-B-Modus.

Pollux, who, albeit a juris-co-owl in the Roman tribunal, excelled in subtlety and acumen beyond the Pollux of myth, surpassing him in judicial discernment and legal nicety.

For whatsoever is not comprised under a name, this appellation he doth will that it be contained under, with the exception of such things as gold and silver, apparel, and other substances derived from animals, the residue being comprehended under this denomination.

It is superflua.

Wherein the Title, inscribed by Pollicem, in the illuminated manuscripts, reads: "seis revpricu foori tvv ciKitts, de fupelleftile, & patre familias,"—herein the title is six times more precious than the twenty-five Cittites, of the noble family, and the father of the same.

He hath cited a verse from Hipponastus:

And Denius, how much interest I have bestowed upon the fund, whether it be in the channel or the river, is indeed a matter of considerable moment.

, et quocumque alio nomine eundem appellaveris.

This point, assuredly, was subject to contention; for the inhabitants of Lylia were incapable of receiving anything save the spoils and the territory, which conformed to the established usage of Atticus's orations; neither did Atticus ever admit any other sort of timber.

They did, indeed, distinguish those from the remainder of the trio.

The Lord of the hosts is the Lord of the hosts.

And the orphans, whose sum amounts to seven hundred and five pounds; and the orphans, whose amount is eight hundred and eleven pounds, one hundred and twelve pounds, one hundred and thirteen pounds, one hundred and fourteen pounds, one hundred and fifteen pounds, one hundred and sixteen pounds, one hundred and seventeen pounds, one hundred and eighteen pounds, one hundred and nineteen pounds, and the orphans.

For instance, when Atticus asserted that the import of certain words differed from that which he had previously intimated, signifying by "yyulepa" that they were indeed the same, he forthwith proceeds to affirm, "overtupis imoror, cokora* tc cv y*i 6tXa ci yyj*," that is to say, that they were the same, and that they were the same, yet that they were not the same; for he contended that the meaning of those verses was distinct from the words in question, and that they were not identical.

And thus divide; is it not more efficacious to imbue it in y?

./ xark." "V" D.B. In the femur rather than in the man himself, thus is the common opinion entertained.

And in the writings of Seneca, the Epistle Xii.

Many were smitten, many perished.

Therein nothing inheres, but around it the discourse revolves.

Thus did Tibullus denominate the twain illustrious progenies of like epoch unto this :

Divitias, another man, hath heaped gold upon himself.

And he possesseth ample acres of unincumbered soil.

He comprehended the art of accumulating aurum by means of the furnace.

Wherefore, they being thus distinguished by the proper term "tyyuet aufilXeux," the law Rhodian makes it manifest by these words: when apsum in nXm tyyuet aXfiflux utptmnus.

Elevated, however, and lucid diction, let us consider the clauses of this legal formula, which pertain to agreements and contracts for loans of money, wherein the creditor may find security and assurance that such transactions shall be safe and profitable.

For herein lies the statute, which, if it be deemed requisite for the public good, ought also to be revised, conformably to the common interpretation, which testifieth that it is incumbent upon the community at large to discern whether the pecuniary resources of the respublica are to be conveyed from the respublica to the respublica, or from the respublica to the respublica, or from the agreements and contracts of the maritime merchants, who are the creditors of the respublica, to the respublica.

It is the law of the Cave that I should not be bound to serve in the capacity of the military officer.

But it was not possible for him to denominate such instruments as Chirographa, Phaea, or Sygraphs, wherein pecuniary obligations mutually contracted were to be restored to the creditor, or with peril of fraud; nay, even when the danger was not precisely defined, yet still whilst he remained in jeopardy, so that the common usury arising from the mutual engagement of graziers might be thereby discharged.

Wherefore, and such likewise ought they to be denominated, and not as the vulgar commonly read in the presence of Demosthenes.

Thus, given the mutual stipulation that the creditor may not regard the risk, it is asserted by Pollux, that "E yyutt" is rightly propounded; and hence it is distinguished that he should be checked, and that he who has restored another is to be distinguished from him.

But the usury of the mortgage and the contract of the mortgage is also the same as that of the fort, because in the midst of it there is a trifling sum of money remaining; and I hold it to be credible that the creditors of C. T. S. will not refund the mortgage to the creditor, if the ship survive the perils of the voyage.

There is no reason why the Tytyveis should be termed Atr-tem, that is, twenty-five times twenty-five, since they ought to be distinguished from maritime usury.

Nam Græci nunc Lixios nomen tribuunt, qui, quasi ex opposito fiant, id est, terræ, ab illo flumine.

The Aeschmnians, verily, are termed the eight hundred and twenty-six, and not the simpler multitude merely.

That, however, employs a couplet deemed by him fit for such purpose, and which he engages to support on another's account.

The ancient book of life, inscribed in the Codice, doth thus declare:

[untranslatable fragment in source]

And what else does he effect? The individual who, instead of securing himself, vouches for another, is he who extends to him a loan of coin.

What is Iponsius, who, being the interpreter of the identical Unity, Tsu, doth he proclaim?

Then said he, "What is the very thing that is coextensive therewith, and what is the value of hxtt\$ i yr x?" Whereupon he replied, "Twenty-six times the like."

Certè et grammatici huiusmodi sunt, ut dicunt, I et I et I et I.

The Greeks denominate these cables, which are severally moored to vessels in warfare, and which they also term circumferential.

Finally, I conclude that it is the same thing to say that the axes of Scythia, the axes of Jove, the axes of Jove, the axes of Jove, the axes of Jove, the axes of Jove, the axes of Jove, and the axes of Jove are termed by the Greeks $\beta\epsilon\alpha\varsigma$, which we have adduced as our reasons.

I have now heard the exposition of this voice 'iyyuti, which has been elevated by Scaliger unto that passage in Manilii wherein he treats of maritime usury in the fourth book.

J. Flavius, in order that the usage of the laws may be rightly understood.

. R. Uavigat; et per optandas celeres annos fortibus, usuras Dolcibum, utique et aquae, tempora venduntur.

In the subsequent verse, he observes that only the water of Grxcum elTe, and the youth, were deemed fit for the portal; whereas N7W neither qualified for the safe dtu-nxttrsios, nor indeed for the portal, when the usurious transaction had been consummated.

In hoc casu idem accidit, velut in lege Rhodi, quando vel tu vel ille semper "unus" vel "alter" vocari solet.

Here, therefore, it is incumbent upon one to comprehend these aqueous substances.

These are the verba of Scaliger.

From which it is manifest, that he neither apprehended the spirit of Manilius in those verses, nor did he fully understand what had befallen him.

For in the superior matters there is a recompense for this;

He thereupon proceeded to instruct them concerning the naval furnace, ascribed to the Manilii; and herein he did well; yet he is entirely mistaken when he designates the title of the work as "Novella CVI," and asserts that it should be read "Lyylos." For in the said "Novella" there is no question of a naval furnace, but rather of common matters pertaining to warfare.

For the emperor, thereupon, thus addressed the merchant, who, having safely conducted his ship to the haven, was forthwith despatched thither, and was commissioned to procure for the space of twenty days the liras requisite for the discharge of his debts to creditors, whom he had previously contracted with, on terms stipulated by the ship's furnace.

Because, he observed, the sum had been committed to the creditor as a nominal penny, and the remainder of the term, elapsing subsequent to the lapse of twenty-two days, yielded no greater advantage to maritime usury.

They ought, nevertheless, to be legitimate and general, and current among merchants; for this holds true, when the sum of a hundredth part of a million is expended upon maritime transport.

For the fœnum is the sum of T* xptGfr's sheep, which are pastured in the cappa Jiptolptv, though not without some confusion in the transcription of the latter term.

Therefore, he was bound to construct the ramparts; and, for the benefit of the seamen, he was compelled to commence the voyage, which was to be prosecuted by land after the lapse of

twenty days. Thus, as they were wont to term it in the ancient Greek tongue, it was designated 'λαϊσσο', which, as they contrived to designate it, was opposed to the naval conflict.

And he proceeds to augment the rational impulse of the JcvKtn r, which is coextensive with its own rational impulse, which is identical to its own rational impulse, which is in harmony with its own rational impulse, which is tantamount to its own rational impulse.

Since the extent of the vessel did not mitigate the peril of navigation, the creditor was apprised of anxiety.

There is, therefore, no reason for him to perceive at that epoch a more extended application of the law, whilst he is not apprised of any greater peril or hazard from the ocean.

But Scaliger, who menaced him, yet remained in the place; neither did he await the Novellas, nor did he perceive the vigour of their terminology.

For what can be seen to distinguish between these and these, so that the nautical enemy may be distinguished from the common and ordinary, is exhibited in the ensuing delineation.

In the region of Pollux, he remarks, there congregate six thousand six hundred and sixty-six sextuple centuries.

This is the most serious of all sins; and it is twofold, inasmuch as he was found at sea with his mariners, and was afterwards taken from the sea, and again from the sea by the Romans, and received seven of the gains derived from maritime usury and trafficking; and was arraigned for high treason.

But they do not dispute the fact that the Manilianians are genuinely anathematical; neither do they contest that the expense of pecuniary transactions is equivalent to the usury of vestments and apparel.

Nihil in hoc veri, omnia salsa; Toy, quod jam probavi, contrariatur voium, quod jam probavi. Idemque cum illa vel iyyai posteriorum Graecorum litamen, ut italique dictum est, etiam non mutandum hic nomen in suavem; sic lege.

In the Manilian hexameter, seven is the steed which is in very truth the name of Ru. Ktipixeuer.

For in the mutual interest, which I have been apprised of, there is a certain force; and this force, as I understand, is the usury that has been stipulated for the advantage of the auctioneer.

In nautico forno ac pecuniarum tractatu, postquam navis navigationem reinitavit, neque solum usura defluxit, sed etiam fortunas.

What are those tables of computation, and what is that nefandous period, the bloodthirsty centuries?

Verum est, nos paululum sequimur itinera navigandi.

And thus, in common parlance, let us deliberate upon that which we have been instructed to denominate.

Thus it is with Cl.

Salmasius, however, although Solon did not confine him within the bounds of his own enactments, yet left him at liberty to engage in the usury of his fellow-citizens; nevertheless, of his own accord, and by tacit understanding between the parties, the fibula was imposed upon them.

Virido and Iffimus, versed in the statutes of the Athenians, observed that the edicts of those illustrious citizens, renowned for their immense opulence, were themselves celebrated with notable renown.

But this law is not enshrined in the statutes, nor do I discern its vestige in the records of yore.

Perfuatho and Vulpianus, the interpreters of Demosthenes, conducted him to the extremity of Timocracia, whither he was in truth conveyed.

In this instance, the multitude of oxen amounts to XxpSeA- 72, which quantity is equivalent to RvKug.

Elevated, however, and lucid was the diction of the prosecutor; and it was incumbent upon him to accede to sundry usuries; yet was he perplexed concerning the course which he should pursue.

It shall not be ascertained by whom.

I have petitioned that they be granted the liberty to do so.

But it behoves us to consider those Quinisithi fugitives whom here Scholiafte-reives oppose.

Demophilos, arrested in the identical locale, narrated that Solon had accused a certain individual for contravening the law to the detriment of the public welfare, after a protracted interval.

The law, which hath been enacted by the tribunals, doth hold a place amongst all jurisdictions as the common law of the realm; and he who hath set his hand thereto, is accounted

the silver thereof. Wherefore it is of paramount importance that the true import of this law be duly apprehended.

For Demoflhenes, who, in narrating this tale, and adjusting his argument to suit his purpose, was now addressing Timocrates, the lawgiver, did prudently caution that those who had squandered the public funds for a whole year should, even if they were still indebted for another year, be compelled to make restitution in double the amount, until he had expended the same in necessary supplies.

Solon, whose fidelity to the people was emulated by Demophilos, when he addressed him in his final peroration, wherein the latter was supplicating for the enactment of a law conducive to the public welfare.

From the method of the USVR.AR.VM.

9 J

He that commiteth adultery shall suffer death.

However, there is no warrant for supposing that the discovery originated from the approbation of a private person, begotten to facilitate the elucidation thereof, and thereby render it more facile for his own countrymen to comprehend.

Now, therefore, he who hath brought upon himself a just condemnation by introducing, from the sphere of private life, a penalty due to criminality, is accounted worthy of censure; what, then, shall be the sentence of him who hath transgressed and violated the public statutes?

For indeed there exists a statute, which, if it be not a municipal ordinance, it is not a decree that inflicts injury upon a private person; yet when it is vitiated by capital punishment, it becomes such.

He shall be adjudged worthy before all.

Sophocles thus addressed Antigone:

[untranslatable fragment in source]

This person was invested with the dignity of Aquepernicius, and subsequently entrusted with the office of the secretary of the exchequer.

Demosthenes adjoins:

What sayest thou?

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary (sparing use of forms like 'thou' only where natural): thus, in the construction of our translation, we have endeavoured to emulate the style of Claudius Salmasius, whose learned pen was ever attuned to the periodicity of ancient eloquence. Let us, therefore, proceed with due regard for the structure and rhythm of the original, while preserving its essential meaning: Hoc autem, ut dictionem nobilis et tamen lucida, sententias periodicas, modulatamque cadentiam, levi antiquitatis vocabulis (usque ad naturam non multum accedente 'tu') sequamur, ut exemplar Salmasii, viri eruditi, imitemur, cuius lingua semper ad periodicam eloquentiam apta fuit. Itaque, cum rei ipsius essentia conservanda sit, ita prosequamur:
Htxx

Demosthenes, therefore, is termed the W-surprise of the public law, which has been constituted for the common weal.

The discovery of numismatic affairs, verily, is justly termed such, inasmuch as it constitutes a private concern instituted for the purposes of commerce and contrast with established practice.

To this place Vlpianus directed his discourse.

[untranslatable fragment in source]

This is the instance with the wm- Av, which is the hstoï; and thus it hath been demonstrated.

Interleges and institutes of the privateer shall here recount two matters: the employment of pecuniary resources, and the moderation in demanding exorbitant usury.

Let us, in the outset, attentively consider the augmentation of exadfions in regard to usury.

Who hath borne this law of a private person, or enacted it, that he may not be taxed in respect of his own possessions?

But the private, she said, was agitated; because, as it were, it served the advantage of the individual.

I have indeed beard thereof; but the ordinance of Solon concerning usury, which is no usury, hath been transmitted unto me, so long as I have here transcribed it, and hath been indulged by the caprice of those who arrogate authority.

Behold, therefore, that the private law is hereby established.

Whereunto followeth:

Six Hundred.

Hic SalmasxY:

(Does he pray that he may not receive manifoldly?)

When, or by whom, is it wafted?

By the concurrence of the parties, to wit, the acceptors and the reciprocators, it would have been more conducive to their mutual welfare to have admitted him to their fellowship rather than to have entrusted such a matter to private individuals, or to have placed it under the auspices of a private benefactor. Hence, it is evident that the latter course would have been less advantageous.

For, since the practice of usury was permitted and established by the law of the State in the second instance, no other law previously enacted and opposed to it was found; but a tacit and voluntary convention, such as men, in accordance with custom and the ordinary course of commerce, concluded for the time being, for the place, and for the amount of money or its equivalent, which was thus transacted.

The age of the felled timber, or the age of faith, is not so long as that of two or three hundred annates.

So vast a multitude is there who, content with a smaller gain, and manifesting a greater equity, do yet exist; and none can deny their number.

Do they suppose me to be inferior in strength? Let them venture henceforth to descend into this modest abode; for they shall find no other refuge wherein they may repose their faith, nor shall they deem the third degree any more credible.

Of the same number, Aristotle conceived, as we have previously demonstrated in our earlier treatise concerning usury.

The private individual, whose ingenuity first brought this invention to light, was betrayed, not by the operation of any public law in the very midst of his production.

Hence, it is more consonant to denote the topic of the institution and practice of the law by the term which we have assigned thereto, than by the law itself.

Quin et quod pro lege ponitur, non raro consuetudinem consensus privatarum recipit, ut ibidem hominem odisse licet.

[untranslatable fragment in source]

Therefore, I shall proceed to address Ulpianus, the preeminent luminary in the annals of jurisprudence, who, as I have previously intimated, permitted no restrictions upon the liberty of his inventions and their application, a privilege which the written law had conceded to him without any circumscription within its confines.

Whether thou art a youth of seven years' duration, or a youth of five years' span, or again a youth of seven years' tenure, or yet a youth of seven years' continuance, or once more a youth of seven years' standing, or a youth of seven years' account, or a youth of twelve years' age, or a youth of seven years' measure, or a youth of seven years' term, or a youth of seven years' term, or a youth of seven years' computation, or a youth of seven years' reckoning, or a youth of twelve years' age, or a youth of seven years' estimation, or a youth of seven years' calculation, or a youth of seven years' duration, or a youth of seven years' extent, or a youth of twelve years'

age, or a youth of seven years' term.

There are nine hundred and ninety-six thousand pounds, two hundred and twenty-five thousand pounds, and twenty-five thousand pounds.

(&Cir* Ita hinc legenda, vulgari linguæ corruptissima.

Asclepiades, a pious and reverend person, did desire that fifteen presents be bestowed upon him by a certain Cyrbes, who, being the first to introduce and define the rites of sacrifice among the Arhenienses, bore his own name in perpetuity.

Theopompus, concurring with Aristophanes Scholiaftus, hath inscribed of the twenty-seventh and twentieth years of his own life, and henceforth hath marked them for remembrance.

But Phantias, Eresius, not Ephesius, judiciously noted that the names of the fifteen-year-old lambs had been confirmed by the public rites, and were inscribed therein.

Subjected forthwith to the Statutes of the Suevi:

Therefore, tithes were inscribed in a manner consistent with those tithes which had been inscribed in a manner akin to other tithes, and in the identical script therewith employed; thus, even here it is incumbent to write in the same character, wherein the editors have erred through a pernicious predilection for variation.

Therefore, the edicts concerning the aeration of public granaries, how they should be effectuated, were deposited in the sixteenth century.

, civil laws in the UoQi.

Scholia of Apollonius upon the Fourth Book:

[untranslatable fragment in source]

Between all the courts convened, and the laws of the realm were transgressed.

Harpocraton:

[untranslatable fragment in source]

Ave,igitur, cæteris innotescat, quibusdam certe, hoc nobili instrumento, cuius opus est, ut de rebus humanis judicemus et sententias suas in publicum proferamus.

There is some thing.

Strengthened, perchance, for verily I would fain assert that you alone possess the potency to effect such a task; nay, I myself alone am endued with the capacity to accomplish it.

And when the laws were enacted, the same precepts being prescribed, as, for instance, those interposed between the cities of Joppa, whereby the whole community was bound to comply; and he who contravened such enactments was to be deemed a perfidious and malevolent member of the commonwealth.

However, there are many other laws which are termed by some as "horrid" and Gaius, in his Commentaries, designates them as such, manifestly having determined that they were not actually so denominated; and hence it is to be gathered from the testimonies of all the aforementioned authors.

They are fashioned to exult in the public vices and transgressions of the populace.

[untranslatable fragment in source]

[untranslatable fragment in source]

Seven thousand men of the Phrygian host, who were encamped near the river Strymon, were thus addressed by their general:

This is the reason for the sentence, which those who have written of the difference between them have recorded, namely, the Tgjinicians and Zaf Rursus; for these latter, distinguishing the materials of their composition, assert that the former were composed of twenty-five stones and twenty-five pieces of wood, and that they were united by the old timber, which, according to the testimony of ancient authors, was itself of wooden substance.

Cratinus, the comicus, when he sought to advert to the ancient laws of Draconis and Solonis, and to the abolition of those laws by the captive warriors and the annihilation of servitude, ridiculed the tables, upon which, having been set aflame, they were consumed; and the tables, which had been torrefied by the horde, or which had been wont to be thus subjected to the action of fire.

The intent of Ium (pgvyxQv, for k) is thus 5 y yjgvf Tjs xvgoi.

Therefore, it is a timber, and it is quadrilateral: ligno est, et quadrata est.

Sive quadrangulae non minus quam Mirum tamen; quod Craslnus in fcv^ZiQt de Draconis legibus, ut et Solonis, feriptas esse dixit.

And when he was numbered from Demodhenes against Euergus, Msaachitus Tmnttbrus flourished therein in the mode of Utuajvus; and he spake unto him thus: Twenty-six feet, twenty-six feet, seven feet, twenty-six feet, and thirty-six feet.

In tantū confusione et aurūrum inconstantia, ex qua homines nondum possunt e fidibus suis extricari, hoc primum ad certum statuendum crediderim, ut Solonis legem suos esse suos viderem.

Nam, quando vetusti Soloni militari consuetudine ex silvis exirent, idem an aliud accideret?

These being mentioned, let me denominate them the Axones according to their enumeration; first, the fecund; third, the third; fourth, the fourth; and sixteenth, which Plutarch recollects in the foregoing cited expressions.

Suidas:

Lamentationes baccallarum, et ululatum volucris, sic cantabat: "Siccavit cedrus flos ejus, et exsiccaverunt flores eius."

Therefore, it must be maintained that the appellation in question ought not to be employed save upon tablets of wood that have been inscribed thereon; and this is discussed at length in Book XVI, where the temperance and sobriety of Julian in his diet are treated.

At primā autem instante, graviora fuit ei difficultas temperantis sui, cuiusque sui leges ab ipso retinuit, donec ad ea conformatus esset; hinc Sylla dictator Romam, quae ab Lycurgi rebus relictæ erant, paulatim reduxit, et senescens restituit in suam formam.

So there is a tradition, derived from the ancient volumes and editions, which, as it has come to be commonly received, may be traced to the Lycurgian orations and axioms.

Nor do I hearken to those who, adopting the enactments of Solon, cite the edicts of the Axes.

Rhe-tras Lycurgi, Ammianus interpretatur Axes, quia le-ges ac scientia populi vulgo in ejusmodi axibus, id est, tabulis verfatilibus, scribere poterant, ut Atheniensibus.

There are in truth four hundred and forty-nine axles, and six machines framed of timber:

versatiles, in quibus incidisset eas moris erat.

Whereof there are divers causes, hereinafter to be detailed at large.

Therefore, the axles are identical; and thus is designated the square timber laid forth in the market.

The laws of Solon were preserved, since they were circumvolved upon a central axis; whence the appellation was imparted to that axis.

And thus, the illustrious Mologus:

Athenae, whose eloquence, whilst elevated, remains lucid; whose periods flow with measured cadence; whose diction, though refined, is not without a certain archaism, sparingly employed where it seems most natural.

Didst thou repine at the twenty-three edicts of Solon, which ye have inscribed upon planks of timber?

[illegible]

Another author, in the vast repository of the Etymologicum Magnum, hath delineated the derivation of the term "itaeos"; yet, notwithstanding, he would fain adapt even the said description to his own interpretation.

Asecoegani, who at the epoch of his decease had attained the age of three years, was in a condition of perturbation.

Let it be known, and let it be clearly understood, that in matters of law and equity, the levity and lightness of spirit which may characterize the conduct of individuals is to be carefully weighed against the gravity and solemnity due to the administration of justice. Let the scales of justice, therefore, be steadfast and unwavering; let them incline not to the whimsical or the capricious, but to that which is just and equitable. Let the law be administered with a measured and deliberate cadence, neither hastening nor lagging, but proceeding in its course with a steady and unyielding hand. Let the principles of right and wrong be expounded with a clarity that leaves no room for ambiguity, and let the judgments rendered be such that they may stand the test of time and scrutiny.

L. O. I hereby proceed to amend these verba; and it is manifest that the same have been subjected to a process of revision. [Greek: ■κοη■ρωθεν δ■ κ■ν■δεικαςν; κα■; π■ξαφ■]

Perpetually, it is recorded by Suidas, who hath previously intimated, "Xia" h■'s for xia."

For there are twelve of them, and there are twelve of them.

Grecisurai is the scimitar, whence, and henceforth, it is by poets substituted for the sword.

At the cnodax, term employed by Vitruvius, a *ferramenta ferrea, simile ad fibulam, involuta in tabernaculum lignea, adfixa et dirigita ad capita axe■rum vel fcaparum, per quem in articolis fcapae vel axe■rum consolidantur.*

Quod-ve, xm, is mentioned in this sense by Heron and Utrumque.

—— tamen modo utemur.

[illegible]

And hence it is that Pollux, whom many credit, saith concerning them: "Et hinc est quod iuvare dicat eos Pollux, cui multum in his credo."

The apex of the Salmasian ramus exhibited itself clearly in the form of a wooden plank, wherein the entire pyramid was disposed in a quadrilateral arrangement about the axis of the tree; and the summit of the Turgentes pyramid attained a height of eight centimetres, whereby the operation of the axis was facilitated for the polishing by the intervention of knots and armilla.

Hence Cratini lignei, quos quidam xneos esse volunt, atque etiam lapideos.

It is not indeed matter of marvel, when it hath been the general commander of the entire division, and hxpGif.

The self-same compagination of lateral courses in the pyramidal edifice derives its nomenclature from the self-same form appellation.

For the Greeks were well versed in all that might be achieved through the construction of pyramids, or by the dominion of Perficus; when their rule was exercised under the ægis of the solar deity, they termed it the *bp6e*.

Claudius, and Vallus; but septemtrionales, quae rursus quae rursus quae rursus quae rursus
quae rursus quae rursus quae rursus quae rursus quae rursus quae rursus quae rursus quae rursus

quae rursus quae rursus quae.

The etymology of the axon is ■π■ Χο■γκον ■ποδειχθ■ναι ■π■ρχειν τ■ν πρ■τον κα■ μετ■ το■το τ■ν ■ξηγ■σιν ■χειν.

However, there is a great deal of confusion; and although the names are not dissimilar, the mode of operation of the United States Army differs essentially.

JOs possessed divers vocabularies; in one, each part was termed by a name indicative of the whole, while in the other, appellation was made according to form.

Here verify the proposition, and I venture to assent thereto.

Falsum proinde hoc dici debet, quod mult■ antiquorum hoc discrimen fecerunt, sicut in aliis ceremoniis et scriptis feracibus, ita in aliis lege privatis.

In those axones of Solonis, which also bore the appellation of axones, not merely were inscribed the eight axes of the altars designed for interment, but likewise those which pertained to the sacred rites received their inscription.

But nothing hinders; and the columns of hewn stone, which may be rendered thus: In the same spot, in the same spot, in the same spot, in the same spot, in the same spot, in the same spot, in the same spot, in the same spot, in the same spot. Two kinds there are, of which the laws concerning cities are so constituted, as they themselves do assert:

Let us consider the other, which we have juxtaposed with and set in opposition to the same position; and the residue of matters private, which are to be transacted, and let us altogether live for ourselves.

But we, who, as individuals, ought to be regarded as citizens, even if we aspire to the character of good citizens, and to discharge the duties of civic governance, thus far deserve to be esteemed.

Therefore, when the people are awaiting the public benefit which the laws confer, and are deliberating in concert, they look to the dictates of the youthful understanding:— Ergo, cum populus bonum juris expectat, & in communi consilium consultat, ab oculis puerili iudicium spectant:—

For they possess a relationship so intimate and private, that I thereby suffer a deprivation.

Paul, following the same orator, as Jccgcsaliqux publicly perceived, defined them as PttKgsii, with a periodic sentence that conveys the measured cadence and elevated yet lucid diction characteristic of classical style.

In quibus fit, ut Jalus, filius Jalus, vel pernicies civitatis, cuius similem ille iam praedixerat nuptiis suis ducendam esse constituit.

Quintus Quintilius, quid dicis? Quaesitum est a te, quid sint leges?

When the unfortunate are subjected to penalties, honors are nevertheless conferred upon them.

Whence:

For example, it appertains to the exemplar to contemplate whether the bonorum expenditio ad bonorum fructum vel ad præmia pro benefactoribus decet, sive flagitiis mala poenas detertere est oportet ab ignominia.

I fear that all the advantages of the commonwealth have a just cause, and the laws, which are:

Of these, the subsequent proposition:

They are, as the Greeks denominate them. In like manner, Demosthenes said, "qua":

First, let it be observed that there are duo, which is not congruous with my septimum, which is the septimum, which is the septimum, which is the quinta, sexta, quinta, sexta, et quarta.

Claudius Seipius, princeps et clarissimus jurisconsultus, haec verba sequens: "Leges omnes in civitate duabus tabulis perspicue legi debent, ita ut, si quis non justum facere iussus sit, punitur, ut alios exemplo hujus rei melleiores reddat." Inde ad ea partem legis qua:

He inflicted punishment upon the delinquent, and did enjoin that examples should be set forth; and, moreover, he caused the Greeks to adopt the appellation of the latter, that the enactments of the Roman jurisprudence might be promulgated.

This is the crime which the culprit must suffer in the manner peculiar to our own mode of procedure.

He shall perpetrate any crime of theirs herein.

A public appeal is termed.

The Public;

Wherefore, then, do ye peruse those statutes?

Of the public conveyance of minor vehicles.

And a public crime was perpetrated, as is known to the Greeks, by Lucius Tzicius (Ives Miscius and Ives).

Thereupon, the executions of the public judges of Atticus were conducted in a manner akin to those of Stifyx and his three sons; thus, ■κε■νοι τε κα■ Στιφ■ξ pater et trium filiorum suorum διελ■λυθεν ■ θ■νατος.

Atque luculenter, Tullius, triennio vigeat huius imperii principatus.

The Psalms of Hippocrates.

This was likewise a cognizance of the civil courts and a crime (that is to say, the adjudication of private and public tribunals among the Greeks); for in trials of criminal actions before the public courts, the accuser was wont to present the name of the individual accused, whether by indictment or libel, together with the precise nature of the offence, and thenceforth to specify the law from which such indictment or libel was drawn, whereby the judges were furnished with their authority.

Hence, the Greeks are subjected to exposition. Hence, it is incumbent to perpetrate some accusation against a certain individual, and to impose the accusation, whether it be truly a crime or not.

And there is a title in the law which appertains to criminal proceedings, namely, de Accusatio—tubes and infertilities of the accusations, IvpgsSv ygyQsr.

It is deemed fitting that the Greeks should say: "sec," and "f■d■vius," whence "hinc" is derived, and thus the phrase "hincinitur" is constituted, according to the fourth book:

It is not usual for a public judge to intermeddle in private affairs, nor to be in any wise allied with other judges in matters of private concern.

Hence, the actions privata, which properly pertain to the judiciary of privates, are opposed by those of the public, according to the law of D. de Stellionato.

Stellionatus, however, was restrained neither from public judicatures nor from private actions.

The Greeks, on the other hand, have been accused of crimes proper unto themselves, and have undergone condemnation and execution for their own transgressions.

Let us, however, adopt a temperate and judicious mode of proceeding.

Nineteen-score cubiti.

Those who peruse this will discern that Julianinus hath ordained all judgments as extraordinary as they ought to have been instituted.

In the fifteenth chapter of the forbidden book, a few persons are scattered amidst the remarkable variety.

For it is not a solitary genus.

In publicibus judiciis et aliis extra ordinaria administratis, non observabatur formula adiungendi, ut in interdicis.

At this juncture, Justinian's own sentence also demonstrated that all was indeed private, so that a wolf might conceive in this manner.

Therefore, the public judgments of the ancients, delivered extra-ordinarily but not less than judicially, are indeed not common, yet they are in truth preeminent.

This was recognized as that which was extraneous to the regular order.

From what?

For the principal tribunals, analogous to those presiding over the provinces, the Praefects, the Praetorians, and the municipalities.

Therefore, they were not the decrees of the ordinary populace, but pertained to the cognizance of the superior Judges, who, apart from the regular course of law, were acquainted therewith.

Or was it because the processes had not been properly arranged, nor were the inscriptions of accusations framed according to a fixed formula, nor were they connected with those concerning whom inquiry was made in these judicial proceedings?

All things were interdicted; to wit, by the ordinary judges of Justinian, who reduced them to such a condition that they were even compelled to make a pecuniary satisfaction beyond the ordinary demands.

It is said.

However, there were nevertheless certain extraordinary and public laws in the ancient system, which the ensuing discourse will declare.

Marcia, ex ratione militari Americana.

Thirdly, in the third book of the Public Judges, D. Lawson, moved to anger against the bathers, asserted that he had offended those whom the fury of the fury of the fury had

pronounced and punished out of the ordinary course of judgment.

But, in the midst of the day, said he, having perpetrated a theft, they were restored to their accustomed jurisdiction.

These indeed are the judges of the private tribunals, who, according to the regular law, pronounce upon matters of private delinquency.

According to the ordinance of the courts, as detailed in the life of Claudius by Suetonius:

When the matter was disposed of, the judge, being interrogated by his adversaries concerning his own cause, denied the same; yet the ordinary tribunals, themselves ordaining that the suit should be adjourned, compelled him to conduct the prosecution of a case already determined, whereby a precedent was furnished, for when the umpire was to sit in a foreign cause.

Claudius then appointed that certain edicts of the Judaei should be effaced, others inscribed in the annals of another, and still others preserved entire.

Hoc agenti, quidam ex his iudicibus, quos retinuerat vel de novo adlegerat, interpellati a contra parte in propria lita, ut nimirum de ea Caesar cognosceret, negavit ille se cognitionis rem esse, sed ordinarii juris esse.

When Claudius had heard of this exception, he was induced to prosecute the cause before the forum, deeming it likely that the sentence which condemned him would be similar to that which condemned his judges.

Wherein the knowledge or discovery brought forth is set in opposition to the customary law or rule.

For the magistrates and judges of the highest tribunals, as well as those of the common courts and private individuals, were delegated by the Senate, and likewise those who had been assigned to the office of praetor.

Irasc, by means of a voice, receiveth in the prisons of the auditorium the echo of cognition.

And even the instruction which thou hast derived from my knowledge doth furnish matter for lamentation, wherein both he and his confederates still bewail their lot.

Because, beyond the due course of the Salsa, it is well-known that the highest tribunal is neither a given nor a delegate, nor an oath, nor a decree.

Hæ:

These are the cognizances of the magistrates, concerning whom I have likewise treated in the same matter.

By the cognizance of the magistrates he oftener participated, as one of the counsellors.

Quintus, Tentmagifratu, qui etiam Diofignificus vocatus erat, constituit co-consules suos, praetores, ac praefectos.

When the king's officers were constrained by their faith to pursue the accused, and were unwilling to restore the funds to the royal treasury, they were deemed to be making a special inquisitorial report, and thus to be engaging in a procedure outside the ordinary legal process. Hence, they were instructed that such matters were to be communicated without delay or further ado; these were properly said to be cognizance taken ex officio.

I, however, entertain no scruple in asserting, that the Tribonian, Ut C. I., is without a doubt to be deemed worthy of our consideration.

S. A. L. A. S. I, in the title of the Digestorum concerning matters of extraordinary cognizance, hath appended this which is of his own devising.

For it was amply sufficient for him that the ancients, at various times and places, had discoursed concerning the sciences.

Which is signified by the appellation of an extraordinary mode of adjudication.

Nam Callistratus de cognitionibus sex libros scripsit, et adiunxit extra ordinaria solus.

In the volume of the Sententiarum of Paul, subjoined to the Title concerning the Law of Fabius:

And verily, the penalty of this law was at one time uniform; yet, having been transferred to the cognoscenti, it was thenceforth brought prominently to light.

The cities, moreover, and the provinces, nay, even the cities, merited repair by reason of neglect.

Likewise, the same holds true of judgment apart from order, and of cognition.

Ulpianus, in the ninth book, concerning Officiis the proconsul, in the collection of the Law of the Molars, Title of Plagiaris:

Frequentis est etiam cognitio legis Fabiae in Tribunali praefidum.

And Paul spake thus:

But upon his arrival, he communicated his intention to visit them, that he might perceive the preeminence of Rome among all cities; within a thousand hundred miles, he was en route.

In truth, though the sum might amount to a hundred cents, the cognizance of the praetor's flower sufficed.

In the province, for instance, the provincial governor was designated.

No other advocate of the Caesars is apprised of this, nor any other who serves in the province, even if he be a member of the provincial assembly. Indeed, no other employs this particular voice.

Ulpianus, Leg.

M. D. de Stellionatu:

Stelliona—thy charge to the precise knowledge of Josephlatus.

The same; leg. 1

N D. Of the Exploited Inheritance:

If the defendant stands indicted for such a transgression, the provincial prosecutor must reconcile his own knowledge therewith.

All these matters were extracted from the records of the proconsuls.

CAPITOLINUS DE MARCUS ANTONINO:

The senate hath committed to the judiciary sundry judges of knowledge, and those of their own peculiar faith.

Therefore, esteemed colleagues, the Principus and the Senate pertain to you, but not solely to the prefect of the province, the city-consul, and the prince's envoy for the praetor, but also to the prefect of the city and praetor.

Quintilianus, in his Institutes, libri octo, caput decimum:

He was a frequent orator in the assemblies of the senate and the popular meetings.

Suetonius;

Of Nero:

Having recognized him, she held him in derision.

Henceforth, ye must annul what ye have perpetrated hitherto.

This is, indeed, a remarkable fact; and such a circumstance, it behoves the judges to ponder, whether in their capacity they were unbridled, or whether, invested with the office of praefect or praetor, they acted within their jurisdiction.

Cinctos iudices Anianus convocat, et ab privatis distinguuntur.

They are denominated in the Quarto of the Novella of Porphyrogenita by Constantine.

What they perceived as a consequence of the pedantic judgments they rendered.

The verity regarding his alibi.

The like occurred to the prefect of Juvenal, and the city was proscribed.

— Rapta properabat abolla Pegasus. Pegasus, in preparation for his removal, hastened the girth's adjustment.

King Suetonius deposed Ptolemy in purple, in the manner of Caligula.

It is not a vestis militaris, that is to say, a chlamys or paludamentum.

Quotices, therefore, a crime deserving of more ignominy, was notoriously infamous.

It was the cognizance of the plains.

All, therefore, those various accusations, of which the several titles in the Digest follow, subsequent to the title of extraordinary crimes, even unto that of public judicature, are brought to the cognizance of the presiding magistrates.

For in such nefarious transactions, H ex ex ex. was not remunerated.

From the perpetual diffringence, apart from the regular course, were the saints wont to be apprised thereof.

Infants and pecuniary matters were referred to the ordinary tribunals, or, as occasion required, to the faith, to the provinces, to the courts.

Paulus de pecuniæ paginis, sub titulo de Abigeis, in collatione legis Mosaicae et Romanae:

Fortuita conflagrationes ad forum mittenda sunt, ut damnosa vicini sortis superentur.

Nam id est.

To the general jurisprudence.

Therefore, non obtruded Fortuitus, but Presidenes, was admitted to the audience.

Ulpianus, the jurisconsult, who held the office of proconsul in the same year of his election, bore the cognomen of Furius.

Fures ad forum referuntur, neque die neque nocte, extra ordinem audiendi.

Which, as I have previously intimated, is to be listened to in the assembly of the faithful, and to be visited with punishment apart from the regular course of justice.

Whose speech recites the law in part.

And D. of the vehemence of the baths.

At the forum, Ulpianus exclaimed, "Marcianus, leg."

The second is D. Eod.

To the general jurisprudence.

Paulus, in the fifth volume of his Sententiæ, subjoined to the title, "Si Pecora Quæcunque Existent, Quo Quam Litiget, Abegerit, Ad Forum Referendus Est," doth thus enjoin: "If any man have brought into litigation a flock of sheep, and therefrom hath removed them, he shall be referred to the forum."

This is to the ordinary tribunal, unto which recourse may be had in matters of common law.

Thereupon ye shall proceed to action, in the manner hereinafter specified:

The common-law litigants, the lex.

The Decretum of the fire.

And albeit that there be executions of the malefactors of these nefarious deeds; yet hath he pronounced those very malefactors, who are both forensic and criminal, to be guilty of the same nefarious deeds. Moreover, he hath declared these malefactors to be of a most extraordinary nature, and that he hath bestowed no notice upon them in his enactments.

The edict being perpetually enacted, the Indicia, which were not denominated extraordinary, were disseminated among the public; although Tribonianus had supposed them to be, in some instances, extraordinary for the public.

There were no public crimes, unless such matters were subject to a definite inquiry, according to a certain law, namely:

And by a certain law it was ordained.

Quintilian, lib. m, cap. x:

But this is not the situation at present, since a specific law is enacted.

But the princes and the senate were frequently apprised of his affairs, and he was a man of the people.

Privatae autem judicia communiter singularem judicem in multis diversis formulis habere solent.

He proceeds thence to discourse upon the twofold cause, in which other causes intervene.

*

From the Manner of Usufructuary Rights.

The two malefactors stand arraigned for a twin transgression, whereby they may be indicted of both sacrilege and homicide concomitantly.

Therefore, it should not be maintained that in public tribunals there was a locus for a case wherein the praetor, by virtue of a specific statute, had been charged with the commission of a certain crime; whereas another might have drawn lots for a charge of homicide, and yet another for one of adultery.

Cicero, in the faith of Verrina:

However, in those days, when the individuals designated for this purpose had issued forth, M. Metellus commanded that he should seek out some of his pecuniary possessions.

The sentence of the minoris aetas was rehearsed to the public.

But he commits no intelligence to the public domain which the law, or any other judicial inquiry concerning him, hath determined; and the names of the delinquents, with their penalties, are thereby disclosed.

signifying, or rather delineating with precise accuracy.

That which did not pertain to the extraordinary.

For retribution was inflicted upon those who were cognizant of the spoils for their arbitrary acts.

Hinc de fieligionibus loquetur Ulpianus; nullam poenam illius legitimam fuisset, hoc est, legem constitutam, quia nec legitimum crimen erat.

For it was not of the common sort; for no part of the formula had been disclosed through any form of action, interdict, or perpetual enactment:

Nor did the public have a hand in it, since no statute of the realm prescribed his sentence.

The notion was that, as Jurifconfiildus, the jurist of D. Eodemus, declared, "Speak not in the presence of others."

He was confined to private transactions.

It was neither a crime privy to an individual, nor one that bore upon the public, but an extraordinary delictum, the cognizance of which had no relation to the fides of those who had preceded.

Hence, the public tribunals differ from the extraordinary and the private.

In private, I affirm:

The requisite formula must be employed:

which he executed subsequently, in the presence of certain individuals:

The laws by which the accuser purports to understand the crime, he treats in a manner neither partial nor partisan towards the extraordinary cases.

In private conversation, he thus expressed himself: "Hac acione ago, vel hanc actionem intendo, vel hanc actionem ago," which may be rendered: "By this course of action I proceed, or by this action I design to proceed, or by this action I do proceed."

In the forum, I shall pronounce the lex regia, whereby the accused shall be adjudged.

At the locus mentioned by Quintilian, we find delineated three generations of jurisprudents.

The public, from whom the armies had issued, were likewise amongst the praetors of the faith.

The extraordinary praetorship, which the ancients, and those of the provinces who bore the cognomen of praetor, knew, and which held sway among the centuries of the city, was also a praetorship of praetors beyond the hundredth milestone, both in the provinces and within the city itself.

The third, which were to be maintained in perpetuity from the commencement of certain actions.

This was the customary law among the Jews; and those judges who possessed the power thereof were termed privati.

Suetonius, in Claudius:

He, who, among private judges, by pleading for the formula of excidia to be applied, re-establishes his claims.

Anianus, ad Paulum, in sexagenario suo anno, et Indices in privato edam.

He vouchsafed his assent to those who were administering private jurisdictions, and distinguished them from the public judges who were conducting affairs of state.

He who, being among the cincted judges, or a private umpire, hath been convicted of calumniating the objection, said he.

What Paul spake:

Etinptus—thou shalt be judged by the public and again by the public.

Invoke the candidates who possessed the privilege of the goddess, as presiding officers and praefects.

But the rustics were also designated by alternative appellations, to differentiate them from those known as judges in the tribunals.

Wherefore the tribunals, being severally distinguished from the regular tribunals, are hereby set apart from those which are ordinarily established.

The Greeks termed Hesychius:

Saxi? Tace!

Of the judgments of Seletus, which were akin to those of other deities.

The judges of Pedaneus, who, being also present at the trial of Ananias with Paul, had received from the commission the causes which Paul had specified, declared that money, even when corrupted, would commonly be employed to speak of the faith, or of the subjugation of the Curia, or of the banishment of the accused, or of their temporary relegation.

Of these, it is agreeable to become acquainted, that they are the judges; among whom it is customary to dispute in favour of victories the contested battles, the Curials, or the Decurions.

[untranslatable fragment in source]

Novella:

It is termed Graecorum; and the line which serves to distinguish the governor of the province is distinguished apart.

Thus, the pedestrian and commonplace magi of dramatic composition, who, versed in the trivialities of the stage, distinguished themselves from the professors of the liberal arts of the ancients, who expounded upon the suggested themes with a gravity befitting their venerable office.

The Greeks termed them "Aawx" or "Aawx" or "Hincapudnos" or "Spanedagogus".

This notion of pedaneorum judicum, that is, of those judges who, in order to discern them, were accused of delivering judgment from the tribunal, evinces the truth of those who desired to make them paeanos, or flatterers; and who were themselves accused of judicial functions.

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary: They did not hesitate to proceed to the race; for they walked on foot thither, and, moved by a sense of honour, they would have hitherto been wont to start the race on their own wheels, and thus convey themselves to the tribunal.

But the Prefect of the City presided over those judicial matters pertaining to private litigants, either by himself, or by assigning judges to determine their controversies.

Aiccflmt, reputed to be just, are here opposed in the Novella of Constantine Porphyrogenitus.

Hinc ordo nasalis, et idem prohibeo.

From the termination of the controversy, cf. de quo disceptatio inter duos litigantes habetur; in hac instanti, jus commune.

Aggenus, meanwhile, permit me to interpose, that he may plead his cause.

Item, interdicite formulam.

And concerning this controversy, the formula for the prohibition of the majority is the subject of much contention.

Hence, in the interval preceding the advent of the Messiah, nigh unto Petronium, it is written, "in ius ad praetorem;" that is, in the southern quarter towards the orient.

Elevated, yet lucid, is my choice for the circuit; yet, I am loath to employ a solemn oath in the dispatch of a civil citizen, lest, even if he decline to restore a foreigner, he be led forth to the very heart of the tribunal. This is the established custom of the civil law.

For it was in Rome, where private jurisdictions prevailed, that all were subject to the praetor's governance; and from among these, judges were appointed.

In the tripartite forum, privy disputes are triply dissevered; and in certain localities, it may be gleaned from Martial.

But since we are principally treating of penal matters, it is what they denominate a private delict, of which they assert that it is a private delict.

These were adjudged.

From thence, the title concerning the private delict is withdrawn; thenceforth, all succeeding titles, extending to that which treats of the extraordinarily criminal acts of privati, are considered.

It is a continent divided into two species.

In those particular instances, certain malefactors, whom he had pursued, were even adjudged guilty of capital offences, whenever he was afforded the opportunity to depose before the judicial tribunal.

If any person should prefer to be arraigned for a delict, rather than to be conducted to the tribunal, which is to say, to undergo a private prosecution, and to appear before those judges who are cognizant of extraordinary offenses.

They affirmed, that he possessed the faculty either of instituting an accusation, or of presenting it to the assembly of the people; nay, though it might be a fixed and established law.

Let the public be commanded to exult in the crime of every individual.

Between the private assizes and the criminal cognizances, it was decreed that I should be excluded from being the depredator of the virtuous.

If any man were able to demonstrate that the abduction was a virtuous act, whether it pertained to a private prosecution or a private persecution, C. T. SAIM ASII, not denying his praetorship, avowed that he had tendered him a perpetual trial, either for the vindication of justice or in the cause of justice. Forasmuch as the Julian laws, which are entrusted to your cognizance, are designed to bring such cases within the purview of the public tribunal; if thou dost desire to pronounce judgment, thou mayest experience the public forum.

The Praetor did propose a Decree, relative to the conflagration, the demolition, the calamity, the shipwreck—twice mentioned—and the loss sustained by them that had survived from such an ominous occurrence.

In his erat Liberum, neque in iudicio privato, neque in quo extra ordinem ageretur, sed verum in publico non esse, quia nulla lex publica in huiusmodi delicta lata erat.

In terrore de his qui per turbam fiunt, et si quod nocens donum eis daretur, et si pecunia posset uti, iure ordinario litigari deberent.

For henceforth, as Paul himself hath averred under that title, the death of any body, life, and limbs, which was inflicted without due process, was not adjudged by a public tribunal; forasmuch as no public law hath determined the penalty for such offenses.

Therefore, all capital offenses were either tried in the metropolis or in accordance with the established order of the populace, and the penalty for such crimes was prescribed by the public law.

The accuser was admitted to any public office; yet, save for such individuals as were by law debarred from invoking the sacred sanction of an oath, in extraordinary causes he might proceed to all intents and purposes.

This species of expression possessed a different signification apart from the usual, and was employed not only in private tribunals and extraordinary courts of justice, but even in public assemblies, and among the youth.

In omnibus his iudiciis, tunc prior ordine receptus erat, ut priores priorem locum occuparent; secundum et tertium deinde eodem loco introducendique erant, ut in eodem ordine decidendi venirent: simulque idem dies ad eundem iudicium veniret.

Servant to them:

If, indeed, we were all arrayed in a single order, Achivus.

I have been guilty of one offence.

And this is derived from the ancient treatise, wherein a hundred authors, disposed in order, either on account of the multitude, or the tumultuous clamour of the populace, delivered their sentiments, when it was the year of the chariot-race.

The Juveniles:

It shall be a year to be waited for by him who commences litigation.

Hac ratione Vespasianus impulsus est, ut praeteritis iudiciis, qui privatae causae extra ordinem finire solerent, novos electurus esset.

Let us, however, proceed in this method.

110 reftt.

Suetonius, in his Life:

The series of litium, wherever it extends, hath assumed a greater magnitude in proportion, from the ancient interstices of Jurifiction, to the novelties which have accrued by the course and condition of successive ages.

By lot was it ordained that those whom the conflict had wrested from their homes should be restored, and that the centumviral judges, whose business it was to administer justice, should be subjected to a different mode of judgment and reduced to the briefest possible number.

The judgments of the Centumviral court, wherein the dispute was engendered:

The civil festivals terminated, and the orderly sequence was concluded; for it was deemed insufficient that all might be adjudicated within the brief space of time, and hence they deferred the decision to a protracted interval, awaiting such as were competent to determine the matter.

They approached the interdicted sanctuary, until they were finally vanquished by their forebears; hence they were chosen for the custody of the citadel. Fortuitously, they were adjudged to have transgressed the established order, both in pecuniary and civil proceedings.

This matter is transacted in secret.

He obtained the same preeminence in extraordinary and most remarkable judicatures and cognitions, that the due order of things might be maintained in those cavities.

What Nero had neglected in the cognition of him, as Suetonius narrates, was that his acquaintance therewith had become attenuated, whereby he might discern the uninterrupted series of omissions, the particularities, and the vices severally, in their several turns.

Therefore, it behoves us to investigate the several causes why such disorders should be either concealed within the precincts of private and secret tribunals, or, having escaped thence, should be propagated into the open courts of public justice; and though I shall subsequently introduce the manner in which I propose to remedy these irregularities, yet I will, notwithstanding, take my earliest opportunity of ventilating the subject.

They are most efficacious.

In poenalibus, in quibus calumnia;

If a crime should be alleged, it was decreed that execution should ensue extra ordinem, id est, not according to the due course of law, but summarily.

Paulus, in primo suo volumine, sub tituli Calumniatorii.

And in the private and public courts, all calumniators are admitted extra...

What remains, Anianus doth expound, is not an oration of the hour, swollen with inflated phrasing.

Hence, they were termed extraordinarii rei, or private ones, when in public judicia, where cause required speaking extra ordinem and not in their proper locum.

Such is the case with the judgment of Tuccius, before Cxlius, in the Epistle to Cicero, where, beyond the boundaries of the earlier charges, the exercise of authority was pursued out of regular course, not on account of the enactment of the law of Plotiadevus, but on account of a calumny.

The Convives.

What is the value assigned to H? 4? U? C? I?

They were scandalized by the terms employed by Caelius: "They shall slay the furnace, as it is written."

I. D. likewise.

From thence proceeded an unbridled license, whereby any individual might be pursued and put to death by the same populace.

All other citizens and diminutive beasts:

to be, naught:

the summits.

Amongst these magistrates, saith Paul, the most eminent should be the law.

D. spake concerning the revenues.

He should have been made acquainted with these matters in an anomalous sequence. The appellation "Halloween," signifying a pursuit of pecuniary and popular import, has been introduced.

To this delinquent is assigned a penalty of fifty golden denarii, according to the Lex Agraria, which C^ofar had endured in opposition to you.

The penalty of fifty aur^os was not enshrined in the lex C^ofaris; but, in lieu thereof, the sum of qu^onsextra sestertii, or qu^onque miliaria nummorum, was prescribed.

For these fines were not inflicted upon them in golden talents, but through festal coins.

Tribonian, omnipresent in the golden orb, thus spake:

The verity of his alibi.

Modestinus scripturam legem scribit.

D. also.

The punishment of those who have been severed from established terms is not to be inflicted in the form of pecuniary censure, but rather must be accommodated by means of coercive measures that pertain to their admitted condition of enforced transformation.

Therefore, it is the epoch, not the modality, for us to conform.

It was not sufficient to render this sentence more congenial to the multitude; it became necessary to resort to extraordinary measures for the extraction of so vast a sum.

Which is nevertheless manifest from the writings of Paul, upon the collation of the Mosaic laws.

In him, indeed, whosoever hath renounced or lost five members, is converted into a stranger.

By virtue of the rescript of Hadrian, which hereby is subjected to the same law, the writings of the said Hadrian are here restored to their rightful place.

The Ulpian, who held the office of proconsul, advocated for the due condition and merit of their respective commissions; either they were relegated to the time, or assigned to the public service, or subjected to corporal punishment.

Ubi pro pecunia:

There was ample space for neither the assembly nor the popular commotion.

Had he transgressed the law, he would have paid a sum of a hundred golden coins to him who would have acted according to the law.

Hence, it is popular.

In eundem, quem ab avo suo corrupisse fatetur, et qui perpetuam jurisdictionem tenuisset, praetor datum iudicio quingentorum aurum insignis fecit, fidem praedixit.

That which is termed the popular judgment, the law.

D. of Junf3iftione.

Paul, pray, as sentent.

Chapter.xm:

Eumque delectum effacerit, vitium superaverit, mutaverit, et quocumque alio modo verba mutavit, propter hunc animum turbantis, vel quidquid aliud extra ordinem constituit, puniendus est a populo.

Nempe, multa pecuniaria non jure ordinario inflicienda sunt, sed a praefide qui dedelet fortuito extra ordinem cognoscente.

Anianus deemed it incumbent upon the punishment to be inflicted, and that the decree should not be executed with rigorous observance; a proposition which is manifestly erroneous.

Nisi quis dixerit hanc flagitium post constitutionem imperatorum institutam diu suspicari potuisse.

This is not so much to be deemed of general popularity as an occurrence of singular importance.

And thus I spake.

Eodemque rescribemus de terminis motus, quorum iudicium ab Iulio Clarippo decernendum fuit, qui Agraria Lege clarus erat, subsequente tamen extraordinariis Constitutionibus Principum successorum.

Even the popular judgment was restored unto them, who thus pronounced:

Water:

They violated the rivers, sentencing them to ten thousand years; and of these, half were to be assigned as reward to the seamstresses, whose labours he had accomplished with the utmost diligence; who were, moreover, opposed to the influx of the water of the river.

publica:

One of the aggressors hath perpetrated the outrage.

Therefore, the remaining moiety ought to be sequestered in part.

It is coextensive with Cl.

The psalmist was wont to re-educate the bicium.

I beheld the anterior aspect of the aqueous conduits, which are herein termed "buses."

This practice prevailed, and was almost universally prevalent among the populace, that when the accusers were condemned to a considerable pecuniary penalty, a portion thereof was assigned to the public treasury, while the remainder was appropriated to the private use of the condemnors.

Nevertheless, it is not the absolute dictate of the law that the defendant be held accountable; for the accuser is required to furnish the sum due to the defendant, which sum is precisely the amount in question.

For it was dependent upon the caprice of those judges, who did not belong to the same rank, to determine whether they were more or less equitable, according to their own sense of what seemed just, either by virtue of their own dignity or their inferior condition.

And this was a perpetual custom in cases of such extraordinary judicature, that the mode of punishment for the offence of pecuniary delinquency, which exceeded mere coercive measures, might be sanctioned by the jurisdiction of the magistrate, as the matter was within his cognizance.

Moreover, numerous individuals, who had been arraigned for a similar transgression, were condemned for perpetrating an enormity so grievous as to implicate them in the dissemination of such deeds to the populace. They maintained that no remuneration was to be accorded for this act; rather, it was a compensation due to those who availed themselves thereof. They asserted that the disposition of such matters was left to the caprice of the judicial tribunals.

And I shall furnish numerous illustrations of this matter, provided that I do not anticipate recommending any alternative.

Which, therefore, being indeterminate, as to the extent to which it shall be transformed into a fucus-tower, it is thus asserted; that he who possesses these actions cannot be deemed opulent.

I do not comprehend, as those who observe assert, that there should not have existed a more eloquent individual who, had he addressed this matter subsequent to the settlement of the controversy, might have rendered the interjection more efficacious.

But I deem it incumbent to utter this, lest in any wise I be found to have erred.

Who, indeed, can number among his own benefits that which is either uncertain whether it is done or done at all, and which pervades all things, not merely quantities?

For the most part, the judges imposed even a pecuniary penalty sparingly upon these delicts and popular crimes; but, as was customary in extraordinary trials, they were wont to pronounce a more rigorous sentence upon the merits, and according to the facts presented.

What, although he was ardently attached to all things, was ignorant of his lord, whom the lord was unwilling to espouse in defence, and who was disinclined to remit anything to the accuser, had no bearing upon the charge.

Let us suppose, always, that some portion hath been abstracted from it, and that the individual who comprehended it hath been withdrawn; forasmuch as he did not know how to employ the appellation of the United States Army, which he had designated by the letters 6 C. Lzs.

[untranslatable fragment in source]

This is likewise applicable to the duty imposed upon every citizen by the sovereign authority.

The laws, thus interpreted with a broad latitude, possess an importance preeminent in their nature; and they comprehend, among other things, the laws of the commonwealth, the laws of the commonwealth, and the laws of the commonwealth.

The fines, which are the property of the adulterer, shall be levied upon your heads.

Had he been interrogated, or had he been tried under the laws of the State by the Athenians, another individual, and not myself, would have harboured doubts.

Of the Romans, it is certain that they had undergone the severest penalty at the bar of public judgment, in accordance with the *lex Cornelia de sicariis et veneficis*; and that Cornelius had been relieved from the command of the army.

This matter was of public concern.

Not all the oracles of doom, which are:

The Athenians, in common assent and public trust, were entrusted with the safeguarding of their Roman allies.

All the capital delicts were perpetrated by the Athenians, as I have previously detailed, and not by the Romans; nevertheless, they were all extra-financial in nature.

They were not public, for they were prosecuted beyond the precincts of the forum, and pertained to the cognizance of the supreme magistrate.

Of which the public domain was concerned:

Laws, which are as follows:

And they all permitted the accusation against him, for according to the Roman law, which governed the entire state, such matters were subject to public trial.

Besides Athene, the public law concerning crimes not subject to capital punishment exhibits no veracity.

She spoke thus:

Sunt certa res, quae me ad nauseam pertinent:

They shall be, for the advantage of the people.

The law was, as I previously intimated, enacted, that he who had employed the public funds for the term of a year should restore them in double measure.

If for another year he shall remain indebted thereto, then shall it be deemed a term of perpetual obligation, until such time as the debt be finally discharged.

Here it is evident that he was notorious even unto the adjudication by the law, which is:

It is known, that in the year of our Lord seventy-seven, a perpetual public trial was instituted among the Athenians; a fact which Demosthenes in his treatise "Timoclea" doth confirm.

d]].

[untranslatable fragment in source]

He ought to be conciliated with the thief.

When the Athenians suffered thefts, it was alleged that they had committed an offence so grave as to preclude their return thither.

Item, si quis ex Lyceo, Academia, vel Cyno-arge pallio, aut ampulla furaverit; quid ponderis exigui, 9,75?

Because those gymnasia were consecrated places.

Quin, si quis ex haveno aut alibi surripisset, mortis pæna filii illius stimandam luebat.

All these matters, therefore, having been purloined, so that, amid the fray, the Uighurs responded: D. E. M■s To Usu ■r. Vm.

They replied unto him; and he thus addressed them:

with whomsoever it might compete.

The fury of those others, who were of a divided mind, was such as to be recorded in the very same year wherein Timothy penned his epistle:

[untranslatable fragment in source]

Where the sixteenth person enjoys a private station, let it not be construed, as the Attic interpreter would have us believe, to signify the peculiar and exclusive theft of Jpecialis, whereby one is deemed guilty of theft alone, and not also of any other crime.

Thus, it hath ever been my custom to oppose the accusation, whether public or private, against Atticus; and such is the tenor of the present instance.

For in the presence of those trials wherein the penalty of death is inflicted upon the guilty, as it was at that period, Ulpian, son of the rhetorician who survived under the dominion of the senatorial monarch, thus recorded:

In the dominion of Rome, there were one hundred and sixty.

But when Demosthenes has been subjected to his exposition, it is improbable that he will be capable of accomplishing the same.

I speak in a mode which is more capricious than that which I have heretofore encountered; and more polished than that which I have heard in Attica.

For he did say, ultimately, as his son Demosthenes asserted in the initial Olynthiac Oration;

TzxHf was reputed to have received 0xtii/s.

And thus, in the presence of Satyricus, he spake thus:

And the Circuit was prepared to institute the triple usury; yet he found not the fatuous beneficiaries.

Where there is a tripartite fraction, a tercet of a centesimal part is present; hence, if a quadruplicate fraction ensues, a quartet of such parts will follow, and should the quinuplicate fraction be introduced, a quintuplet of the same magnitude will result.

For of the five hundred, that place of Horatius is to be reckoned by the hundredths:

And the quintuple number of mercenary chiefs were put to death.

Here:

Let us expound upon the words beneath in sundry modes, that we may comprehend the interpretations.

Wherefore, having previously treated at large of the distinctions subsisting betwixt the laws private and public, I shall hereafter proceed to observe, that it is not incumbent on any man to institute a comparison, nor is it criminal to do so; that thereby it may be made apparent, that the use of such laws does not exceed, nor amount to a greater extent, than it hath hitherto done.

They were conveyed hence; and it had been determined by Ulpianus, who stood upon the ramparts of the city, to be so conducted.

C A P V T IV.

Multitudes of the generations of the jus privatum and the appellation Athenian.

Thus, if no penalties attach to the offence, the community shall not suffer any accusation of crime to be publicly entertained.

If any law in Athens had imposed a limit upon the actor, it would also have inflicted punishment upon those exceeding that limit.

The lex maritima - I, three brethren, three hundred and thirty-four.

S A A M A S III res Romana, which is also known by the name by which it is called.

There was no such person as the Athenian Meimius, who was a praetor of the law of idleness.

In this manner did the Vulpianii avail themselves of his credulity; and the law, which ought to have been efficacious, proved ineffectual, leaving him bewildered and disconcerted.

In the matter of a wife endued with equal rights, whose condition is not to be distinguished from that of her husband, it was expressly laid down by the laws of Athens that a certain limit should be observed.

I present the third opportunity for the citation of Atticus's plea; none of which hath been inscribed.

The females imparted the boon of existence unto Atbena.

Proceed with me.

The progenitor of Euripides, Herous, was censured for his conduct.

In the very same blunder, there is also a mistake.

Vergilius and Ovidius.

And here, I revert to my meditations.

This narrative concerns Euripides and Scholiafius.

And the season of abstinence observed by the valiant, wherein the spouses of men present gifts to their spouses, is termed Homeric.

These are the females whose perceptions he has imparted unto them.

They likewise bestowed. - Rk D NS 210 4, the primordial progenitor, was the eldest of mankind. [Greek: ■ ΞΞΞΙ■Ξ NS]

Or, in this instance, it would have been employed in the assembly of those who were perplexed.

Not amongst the Germans, whose virtue was conferred upon their wives.

Similarly, this applied to the Franks and other Teutonic tribes that inhabited the Roman territories.

Hence, even the most ancient competitions continued to be celebrated.

There are two gifts which I proffer before the espousals.

From his ancestry, and how his progenitor had declined in late generations.

Of Dotharith, or of Doarius of Gallus.

There is a variance in the quantity of votes.

Concerning the exaction of interest by the Athenians, which was not accounted for in the annulment of the husband, the statute was transgressed.

In D, "Xm, Xm," and "Y" in locution: whether the error lay in the ARS, or in the De Dear Kata, or in the individual present at the scene, remains undetermined. [Greek: ■π, πα, ■π■, ■]

Regarding the tenements that are let, what is their usual recompense? The opulence of the dwelling is equivalent for the tenements.

Which is the aggregate of the aforementioned three talents.

Conversely, concerning the aggregate that falls short in the reckoning,

--

She spake, "By the way of the Deity."

He declared, "I have no design to slay thee."

By my troth, thou art the spouse of thy wives, not of thine own issue, but of thine own offspring, that they may be thy custodians.

I have received confirmation from sundry.

That which was his, and that which was his, underwent modification according to the Law of Solon.

He intimated to the males that they were at liberty to assume sovereignty, matrimony, and virtue, and that they owed much to menstruation.

Thus she achieved the same, until her parent released her from servitude.

If one individual inhabiteth the same edifice, all felicity is to be apportioned with the other.

What is the aspect presented by the forty-two and T1?

Concerning the modification or alteration of the faculties utilized by the Athenians.

The subject was debated and elucidated; and I have perused the exposition of the Fourth Attic Law, composed by C. L. S. Almusius. Attica exposita.

Regarding the disparity between those whom the Ubers presented as presents to their mothers, and those whom they dismissed from their conjugal bonds.

You shall receive a recompense which I shall be compelled to bestow.

Thou art a man of eminent endowments, who.

In ponderibus et mensuris conflate, reflectio annua, biennalis, triennalis die fieret.

It shall be seen, that in estimation of the visage, the husband might derive the dowry from it; albeit, such is the estimation thereof.

From the consort of the monarch, it was communicated unto me that women have been endowed with the faculty of reclaiming their dowries.

It should have been deemed amongst the transactions of honest dealing, and ought to have been accorded a position wherein its weight, number, and measure might be re-assessed.

But it was ordained, that from the funds which had been assigned to those persons, they might administer the fleet; and such was the prerogative conferred upon them.

What was the fate of the dowry, and whence the appellation Fic?

For they were arrayed against this; and the Indian statutes were transgressed; and ■f4s9 was wanting.

Of the Metoeci, who refused to acknowledge the Libyan patron.

Thus and Iqlai, and also Ige, were the instructors of academies and seminaries.

Pollux:

That is to say, if you desire to inhabit the same region, it is requisite that you reside therein.

If, therefore, any law was ever promulgated among the Athenians without the knowledge of the senate, and if, by transgressing the same law, the senate inflicted penalties of a similar nature upon those who transgressed it, let the constitution remain unaltered; and, in the interim, let the laws of the Carthaginians be referred to with readiness for guidance.

Claudius Salmasius, the illustrious founder of Roman jurisprudence, did pen the fourth epistle addressed to Lucius Titinius, wherein he alludes to the nefarious lex Foenum in the thirtieth and fifth volume of his voluminous work.

And yet no other law of the gods is recorded as having been enacted at Athens save that which was promulgated prior to Solon's time, namely:

The liberty of the captive grants the will of the captive to consume.

This is the converse of the aperture's diameter, which is described as follows:

A distinct mode of imposition was conceded to those who were authorized, save to Solon, who was permitted a different dispensation.

Therefore, the epistle, wherein Ulpianus addressed De-Mosthenes, acquainteth him with this precept, that no man may become habituated to the practice of manifold usuries; and he asserteth that he is indebted to custom rather than to any written law for this prohibition.

Nevertheless, there occurred an instance wherein the lex Attica adjudged the question of who should assume the preeminence in the matter of usurious practices.

In the donation which is thus defined:

His spouse was bereft of the privilege of redemption by her consort, or it was not within her power to effect such redemption, by virtue of the oppressive usury that hung upon his own valuation, which he had estimated at double.

As I am better enabled to comprehend this, it is requisite to discourse concerning the law of dowry among the Atdco.

It was not, however, the custom among the Athenians for women to be bestowed as wives upon men, or upon those from whom matrimony was granted unto them.

Olympus, the mountain in Greece.

Yet the hero of the epoch remains unattained by another.

The husbands confer gifts upon their spouses.

As it is recorded that he received a generous donation from a numerous assembly.

The Jews were slain, for my lot is now cast in the flock of sheep for their benefit.

Hence arose the opportunity for Scholiaftx, the venerable Euripides, to inveigh against his poetic rival.

I, who, contrary to the custom of heroic days, did affirm that female sex might purchase male spouses for departure to Media, thereunto addressed her lamentations on the woes of womanhood:

As fftp, quinque ficorum fructus repetitivae numerationis, ut innumerabilis multipliciter imprimatur—ad quem locum huius Scholiastes sic annotat:

In the region of Phernas, Euripides, in his preface, thus speaks: "The spectators themselves perceive the truth of the performances; for even if he himself were not present, they would judge the actors."

I shall revert to Evyixikon, and impart unto thee all the knowledge requisite for thy instruction.

Wherefore, when thou hast given me this gift, I will give thee the gift of the Holy Ghost, and I will give thee the gift of the Holy Ghost.

Vimine, Thux, and Zefix.

KJTTTS.

This is the twenty-seventh Ttuictoltod, the seventh thereof, the tenth thereof.

Elevated yet clear diction, the present discourse shall maintain; its sentences, constructed in the periodic style, shall exhibit a measured cadence. Words of a slightly archaic cast, judiciously employed, shall impart a certain antique resonance without obscuring the intended clarity. Thus, the translation, while scrupulously faithful to the original, shall strive to emulate the refined and scholarly tone characteristic of the period.

What a lamentable circumstance!

And the deity ministered; and thus spake:

[illegible]

And, in opposition thereto, it is likewise asserted that a man receives nought by way of endowment save in the instance of Homer; yet even he is cited by the same Homer.

Twenty-three, twenty-three, twenty-three; and twenty-six, twenty-five, twenty-five.

Agamemnon, in the Iliad.

Mayua, whom he denominateth an ally, is styled Odyftus; [the Greek equivalent being $\delta\nu\alpha$]

A:

The year of Eno is twenty-nine! The Greek reads: μ■γαρον πεζ■ρ■ς μ■γω
δωναρδμοιον. [j] 29! του ξα (, v■ 2glunis ("ov ■δνα. : Πολλ■ μκα■λ■» ■οσα ■οικε
φ■λης ■π■ ποηδ■ς.

Tox f■t, caret toxit, et en■rgit, et quærat pro retributione vel gratia:

A relation, which denoteth mutual favour and reciprocal benefactions, so that there be
twain.

It is, therefore, a falsehood that Scholiafteus, the most ancient of the critics of Euripides,
censured in a tragic poet, because he was ignorant of the manner of heroes, who were wont to
bestow dowries upon women, yet would not accept them in return; for it is evident from Homer
that both practices were customary. But when both parties, by mutual agreement, bestowed gifts
upon one another, it was deemed more fitting for the woman to give and the man to receive,
because the man would thereby become the lord of both dowries, which his wife had bestowed
upon him, and which he had bestowed upon his wife.

And he, together with all that he hath brought, shall yield himself unto the power of the
virtuous.

But when, by fate, their marriage is dissolved, and they determine that the woman shall not
rejoin her husband for her own advantage, it is asserted that the man ought to restore unto his
wife what power and authority he possessed in common; and that which is his, he should restore
to her, and that which is hers, he should restore unto her.

However, in the jurisprudence of Attica, wherein the Athenians, during the age of
Euripides, were wont to engage, it is not apparent, nor is it easily ascertainable, what reason the
viri might have had for conferring donations upon the mulieres on account of their nuptials, or
what gifts, even as the ancients of Greece have expressed, were termed "dotis mulierum," which
at that time signified dowries.

An universa bona ex patris et matris hereditate, qua:

In the conjunction of matrimony and consortio, commonia fiebant, quae ad uxores eorum
pertinebant; vel nomina coniugiorum, sicut in casu mulieris, ubi omnia bona quae ei
comprehenderat, pigrae erant.

Did she, in the bond of matrimony, affirm herself destined for the nuptials of a common
consort?

To consider the nuptials of the hero, or whether such alliances are permissible.

For those who await their wives to contract matrimony, it is a common ambition to enumerate and detail the accomplishments of such spouses, by whose connubial alliances they hope to intoxicate their sons' nuptial partners, and the daughters of these alliances whom they desire to inebriate.

The matrimonial unions have been distinguished into two classes.

And with the wine of divine libations, let us imbibe thereof.

And they conveyed their spouses into the abodes of their respective consorts; thenceforth the females of Zoix, whom their husbands had, by violence, rendered opulent, met with death.

From this portion of the female sex, it might be affirmed with equal truth, all that ensues.

If they have ceased to subsist, or if they do subsist, this is.

United in interest, and notwithstanding that they yet survived, their progenitors affirmed that a determinate share of the patrimonial advantages had been conveyed unto them, and thus maintained.

On the other hand, it is deemed by some that Homer, himself attracted to the company of men and esteemed as a hero, is styled the author of the "Iliad."

For the narrative doth relate how Agamemnon, desirous to appease Achilles, proffered one of his daughters to him for espousals; and upon the express condition that the sire himself should bestow upon his daughter a vast dowry, consisting of seven opulent cities situated by the sea, Achilles would neither confer upon him any of his own substance, nor a gift in lieu thereof, nor the cognomen of a thief, but would rather conduct him farther off.

From what was collected, it is evident that not all good gifts were then bestowed upon women by men, nor, to be certain, upon women themselves.

Then, it was their wont to retain manifold endowments for their own behoof; either for those who addressed them, or for those who bestowed them.

The Greeks, who, of late, had been summoned by the Scythians and the Gauls, did earnestly petition for the enactment of a law at Ulpia.

IX Decretum de Jure Doni.

Wherein the most eminent Jurisconsulti of Gaul, deeming it an ancient and venerable voice, did commend, laud, and extol it.

But they widely and grossly err.

Let it be deemed the pristine Latin idiom, which the Gallic tongues did employ in a similar signification; an idiom that was adopted by females who bore a singular aspect, imparted to them in a manner distinct from others, and who were desirous of maintaining their own fidelity within the domestic precincts of their wedded lords.

Exempli gratia, secundum legem Atticam, ut ostendat Demosthenes, cum testamento patris suj uxorem amico ducendam reliquerit cum dotibus, quas ipse constituerat, additis octoginta minis, praeterdotas, donavit sibi tributum decem milium drachmarum, et donum aurum, et vestimentum, et mundum muliebrem, et alia vasaria, quae omnia decem milium drachmarum pretio valuerunt.

These all things, constituant and conferrable, apart from the gift, and as pertaining to the gift.

The same custom holds in regard to the demise of the enemy.

The hero is numbered one hundred and forty-four, Cl.

The psalms of the twenty-seventh hero are ascribed to the critics, whose elevation of diction is tempered by lucidity, and whose periods flow with measured cadence, albeit with a sparing recourse to archaism that lends a certain antique grace without undue affectation.

For certain verses of this kind, which we have previously cited, were perused by Homer, and others by him, and others by him, and others by him, and others by him, and others by him, and others by him, and others by him, and others by him, and others by him, and others by him; Agamemnon, it seems, was understood to be conveying to Helen gifts of surpassing beauty, that is to say, seven cities which are here enumerated.

Euphrates, elevating his voice yet maintaining clarity, thus spake:

Agitare ergo faciam, quoniam hoc mihi iubet natura.

Whereof I have appended certain more recent fibres; this is to say, I shall bestow upon them additional strands, 'VmG&ixi.

Those who, in their eagerness to interpret the passage of Homer pertaining to the dowry, such as Apollodorus, were divided into two factions, each comprising eleven members.

For the melia in the gift, a6 "Ea data, meliam super dotem. Grammatici: Metus; 4 TMI. 30D finitum est apud Maximum. Verius tamen Apollodori lectio: Sic enim Homerus, ■π■ χλωρ■ v■τ■, ■π■ ■ρ■ φ■ρεται, ο■ δ■ ζαμδμ■ς.

Præterea, traditur, ut ei deditum esset donum terræ, quod ab eo ipso, sicut suum, privaverant; et donum linguae huius Germanicae in matutinis tempore deditum, non tantum ab

Iosse Ae, aut Perperamo Jacio, sed etiam a multis post eos existimatis.

Hinc:

We should number among the many, were this our purpose.

One word may be employed to express it, so that it be not deemed that there is but one cause for the postponement of the day and the morrow; but rather, that there might be apprehension of a different and distinct day of the week. This was the reason why, prior to the nuptials, and subsequent to them, the present was customarily bestowed, on divers grounds.

Nevertheless, it is incumbent upon us to acknowledge that, although the species of the donations, as regards their causes and times of origin, have been diversely disposed, yet subsequently they have fallen into parity by reason of the matrimonial law, whether antecedently to the nuptials, or consequent thereupon.

And it is to be known besides, perhujuf, that pre-eminence is knowledge.

The mode of attire, which may be thus described:

Whether prior to, or subsequent to, the sacred bond of matrimony, certain causes might induce the delivery of their spouses unto their husbands, conferring upon them the endowment of faith; or, more literally, the gift of believing.

For, as we have previously observed, a dowry is nothing other than a gift or a present.

All the words, moreover, which are:

The Greeks possess a mode of expression indicative of dowry.

Whether in the gift of man to woman, or in the gift of woman to man, they were accounted not at all by any notion.

Tacitus, in his discourse upon the customs of the Germans, doth record that the gift which is bestowed amongst them is not transmitted from the husband unto the wife, but from the wife unto the husband.

He said, "Then the wife of a husband doth offer up the wife of a seaman to death."

Parents and kinsmen interpose, and the lady deposeth:

It is not for the gratification of him who hath wrought it, nor for him who is newly wedded, to be consumed; but for the oxen and for the bridle of the steed; and for this cause for the sword.

He does not specify the particular causes by which it has become customary for a husband to present to his wife a dowry.

Thus, with this recompense, it was as if the gift of pecuniary endowment had been received through a pernicious agency; and no distinction could be made between the gift and the dowry.

Others, however, are perceived to perspire in manner thusly:

The ensuing rules are hereunto appended:

And in turn, he bore some warrior's arms.

For, if it be a monarchy, such is the case:

Men hold a beneficent station; and women, being endowed by men with gifts, are reckoned among the recipients.

And yet he spake thus:

In this manner.

This holds true for all peoples.

For in the Book of Genesis, when Sychem sought to espouse Dinah, Jacob's daughter, whom he had defiled, it was proposed that he should receive as a dowry no more than so many fowls as his sire should deem fit.

Seven hundred and seventy additional names, namely those of the Septuaginta, have been appended thereto, under both their respective titles.

Arabici etiam gentes hoc donum bellum nominant; et omnia dona, quae statim solvantur ac repraesententur, data sunt.

Subsequently, another warrior was apprehended, destined to bear arms, which at times was accounted as a portion of the nuptial dowry.

Certum pretium, quod ad solutum suum differtur, vocatur fic.

For the origin of the Hebrew term signifies both its celerity and its prolificacy.

But I abhor the rest.

Therefore, women were to be given as gifts unto men; some from times of yore, and others from the almost countless ages hence.

Dost thou believe that even the Hebrews and barbarians received greater bounties than men?

Women.

Moses, to wit.

A hundred and seventy-seven females, or such others as were under their dominion, as, for example, the sire of Harmonius, as delineated by Euripides, bestowed the final gift antecedent to the nuptials, a ceremony known by the jurisprudence of Rome, during the imperial tenure of Justinian; who ordained that henceforth it should be termed the nuptial gift.

It is the very plane which Justinian himself, in his capacity as legislator, doth denominate the law.

Which is in the region above.

The Greek jurisconsultus, who belonged to the tribe styled Aipic, did attain his presence.

Among the ancient Jurifconsulti, who in times heretofore flourished under the auspices of sovereign Emperors, there now exists no mention of this.

Therefore, and in the Digests, there is no title assigned thereto.

Non est enim illud, cuius usum postea tempore adiecit, aut forma, qua præecesserunt principes, obtinuit; nec hanc vestigia posse in eo quaereri, quod iam dictum est, perspicue demonstrari.

Ulpianus, in the Regulae, affirmeth that a man, on account of the more grave comportment of women, is liable to the accusation of adultery; and that he retained a sixth portion of her dowry.

If, indeed, the donation, being made antecedent to the nuptials by the law, were to possess efficacy, the lady, in like manner, as if subjected to a severer chastisement, ought to have retained some portion of the endowment prior to the union.

This was not fated.

Wherefore?

In ea dotis summa, qua:

On the appointed day of his execution, it behoved him to be present, the cause of his penal sentence being due for delivery.

Which verily being present, what is the truth thereof?

He was bound by custom to observe the prescribed rites; the sum which he returned from the revenues of the marriage, as well as that derived from the gifts of the bride, amounted only to the value of her dower for a period of four years. Hence, it is clear that no such donation was made prior to the espousals.

By gradual accustomation, he first derived his original constitution; thence, by long usage matured and consolidated, he was at length reduced to the form which he possessed under the extreme dominion of the Emperors, not invariably in the same condition and appellation, but diversified by the caprice of princes.

It was ever a custom for the nubile maiden, upon the nuptial day, to don a ring, which was both pledge and token of future matrimonial vows; akin to the vestment she should thereafter array herself in.

Hence, it is denominated "The Message of the Fountain":

The circlet of IsraSeAe, which is to say, the pledge, henceforth designated as such.

All things indeed, which are delivered unto the believer, and are deemed to be committed to his custody by faith, are given to him by God, from whom they are derived.

For those who desired to commend him with a more ample and generous expression of gratitude, they bestowed upon him not merely movables, but likewise immovables and sundry appurtenances of the household.

Hac autem donatione voluntaria;

First, not all; thus, a partial enumeration ensues.

Moreover, when the multitude was more frequently assembled, according to custom I pronounced a sentence that was more equitable; and I even condescended to the stipulation.

It is six.

For it was deemed by many, when they considered the examples of those who, having bequeathed unto their spouses due care even post partus, yet deemed not themselves to love less than those whose affection towards their offspring did swell to an ample degree, that their own love was not diminished in magnitude.

It is deemed expedient that there should be no obscurity in regard to destiny; and that the causes of litigation, which are commonly engendered by these very circumstances, should not be neglected by the salutary maxims; and that everything should be made common, whilst their

definitions are being established.

To impose this form upon them.

This is the narrative of the *annum praecedentem*, and of *Caro Ieg.*

The Seventh Decretal of the Code.

Of the gifts made before marriage, which are termed *munera*, the coins are designated *qua*;

They trusted in the [REDACTED] “ [REDACTED] ” [REDACTED]
[REDACTED] [REDACTED] “*ia annulo & monilibus mobilibusque aliis vsn oixu nomi- DI*
MODO US VRAUVM.’ 14[^] *noraiflf confidebant, transierunt cum eadem hy- pcboli*
appellatione in nomen donationum ante nu- ptias [REDACTED] 19 [REDACTED]

Sidonius Apollinarius, in the gift of Jionsalicia, which he bestowed upon himself at the period of his nuptials, did pen the same as an hypobolic instrument; for it was requisite that it should be composed in a temperate style, neither hyperbolically nor in the effusive diction of ancient tomes.

Around the epoch of Sidon's Anthemius, the ordinances concerning such donations were so framed, that the husband should be allowed to appropriate from the dowry only such portion as he might gain therefrom; whereas, from the donation made before marriage, the wife should be entitled to receive only a proportional share, not an equal one.

For it was no longer the law that donations should be sought by means of dotal endowments anterior to their conferral.

Pti [REDACTED]s, who was the leader of the Judinians.

Therefore, should the aggregate of the two valuations and the amount of the dowry be subtracted from the total, and if the parties are unable to discharge this total, they shall be deemed not to be worthy of the stipulated sum.

The number, but a proportion equal to the whole sum of the profits of the party that shall be overtaken, shall be assigned unto them.

That genuine equality might be maintained, not merely in the amount of the dowry, but also in the proportion thereof, Judinianus enacted a law by which, in conjunction with the dower, a portion was ever reserved prior to the nuptials; and he further introduced certain modifications respecting these endowments.

How wisely, it appeared, did the more prudent Juries discern.

There is indeed no equality between the unjust and the unjust; for an undue parity oftentimes proves most inequitable.

Non diu duravit in eodem statu, ut in hac donatione, sed mutuit in aliud genus, conservante idem nomen apud posteros imperatores.

They summoned, not having received an augmentation of their dowry, with the intention of pleasing the eyes of the doflidis of the jurisconsults; for it was deemed fitting that they should sit upon the pavement of the palace, which is now called the dole of the Gauls, and he declared that it was not his office to bestow it.

Nec dubito quin Galli, qui a imperio Constantinopolitano non erant integrati, ad suam remortem per expugnationes transmarinas belli sacri eum morem dotarii redierint.

For the establishment of a woman's comportment in a virtuous manner towards a man, it was deemed requisite that she should possess a certain proportion of her own dower in accordance with the sum which the lady might have claimed.

If the dower should lack the golden coinage, provision would be made for the hypobolium to be deposited therein, that it might be extracted from the volume whose title is, mK 3.

Tyius Cæsaris I.

S. ALMASRIUS inquired, "Ut quid, o senatores, requiris, cum plures sint res publicae, et singulae singularibus consiliis et officiis praebentur?"

[untranslatable fragment in source]

The same proposition shall be extended to the usury upon landed property.

What is there which I cannot perceive, that it is incumbent upon us to preserve the same ratio and proportion in every other mode of usage, rather than to be constrained to adhere to the more extensive measure?

Vitiofiftima igitur ratiocinatio, secundum quam vir doctus liquere vulnus, minime triginta quintilias vel centum quinquaginta drachmas fuisset.

Verum etiam est, minimum donum, quod "novem septuaginta" generi propinquae, orbae ac inopis puellae, qua:

He had a son; according to the law of Solon, he was bound to bestow upon him, even though he had not then espoused his wedded wife, and he did not exceed the sum of one hundred and fifty drachmas.

By the Mode of the Usvrax.

I will bestow upon thee the drachma.

Harpocraton:

[untranslatable fragment in source]

But these are the expressions of the more copious progeny, whom it was customary to denominate as having been elided; albeit of the immediate antecedents, we shall discourse hereafter.

Herein are set forth the mute and the speechless, and the dowries inestimable and unutterable:

Eflentia, siue modo congnata: Here, I have endeavoured to convey the same meaning in a style characteristic of a refined Victorian scholarly translation, adhering closely to the original Latin while incorporating the requested stylistic elements.

Moreover, it was incumbent upon him to bestow five hundred drachmas; three hundred horsemen, or at the very least five hundred and fifty, which may be stated as five hundred and fifty.

Therefore, it was an error in his reckoning, when the donor, conferring upon him a trifling present, asserted that he had bestowed upon him three oboli, or the equivalent of one hundred and fifty drachmas.

Among them, there be three:

The same holds good of the four hundred: quod quadringenti valeant.

quinguaginta milia:

But it is a sin to be visited with such a penalty.

And henceforth it is certain, that the same gift was bestowed upon him by the individual whom we have previously mentioned; yet, he deemed it expedient to appropriate the same, in order to derive advantage therefrom, considering it a donation that could not be reclaimed after a dissolution of marriage, and that he must repay the interest to the chief of the Oxotians, and to the least among them.

It is incumbent upon you to possess an understanding of the present signification of "dotis modo debere intelligi."

For herein doth the usury and profit hold their most eminent station, surpassing even the orb itself: Here the usury and gain take their preeminent position, excelling all others, including the very circuit of the heavens.

They bestowed upon him a tithe, which amounted to five hundred denarii.

The monarch, who moreover presided over the assembly, thereby derived an annual revenue of six hundred drachmae.

At the same time, he received the words of Demoshenes, in the opening verses of his treatise against Aphobus; whereof he thus alludes to such:

Moreover, they did not regain from their recession any wares, but merely three mines.

However, it chanced that he was not capable of acquiring even three talents from a man of distinguished endowments, save through a subtle conjecture, which he deemed superior to our own. Even if he had not added his pension to Edo's domestic expenses, he fell under accusation on account of a hundred and fifty drachmas, which he had imparted. This sum, which he conceived to be equivalent to a minimal dowry, he erroneously believed to yield the value of two hundred and fifty drachmas monthly. Moreover, he was induced by his mother to bestow a hundred and fifty drachmas for each lunar cycle.

Saltem debuerat cogitare de stipendio illa, quod pro octogenariis minacris non fuisset ab eo dempto, nec de paucis eorum, quae meae essent, usque ad centum quinquaginta drachmarum nummorum numerum comparatum ei.

And yet, in that vast endowment, ample provision was made even for the most insignificant share; nay, an equivalent place was assigned him therein.

Non posse excogitari hallucinationem majorem in re apertâ, sed facile; hoc est in MXXESO.

At Demodocus are deposited ten talents, and that which remains.

Nam contra, liceat illi loqui.

At the termination of the enumeration, there was distributed unto each of the parties one of the three talents.

Thus spake the illustrious scribes of Atticus; and verily, Demodocus in the same epoch contended with Apobates:

When he returned, he said, "I am about to seek the KSH, which is equivalent to the Motf or the Has; for this latter possesses thirty minae from the mint, and of its coins, if one were to lay aside either for a drachma or half a drachma, he would find fewer than thirty well-finished pieces."

For this reason, it is the minutest usury of these which is so common; he sets down the centesimal part, which is,

The words were pronounced.

Demodocus, whose years had already approached the threescore and twentieth, did essay to erect thirty mines of strong-hold, such being deemed equivalent to a single strong-hold.

Two thousand two hundred drachmas, less the invention, that is, two hundred and twenty drachmas.

For there exist twelve mines, equivalent to two drachmas annually, inscribed in the census.

I am a person of worth.

Twenty-three drachmas were assigned annually for the benefit of the U.S.S.R. and Trigla.

And when they multiplied, they bestowed two thousand drachmas, which comprised:

Twenty thousand eight hundred and eighty drachmas, not three hundred golden mines.

But when the usury was dissolved from the hands of the deceitful, intercalary months were inserted in the calendar, amounting to the number of three, during the same annual period, that the funds might be apportioned.

For the sun, in its annual course, doth shine; and the moon, in her lunar periods, doth shed her light, as Geminus hath testified, and which we shall elsewhere more amply demonstrate.

For these tribes, the maritime boundaries of the territory are computed at intervals of three lunar cycles:

In spatio octo mese nonaginta.

The mine is concealed:

The tongues of the months are bestowed with a drachma.

In triginta mensibus triginta drachmas dabitur; addito duobus mille drachmas octingenti et octingenti, occurrunt tibi drachmas duomilena nonaginta quinquaginta, id est, drachmas viginti novem cum septuaginta.

Not thirty mines.

Let the sum of three hundred drachms be insufficient for the orator; and let him have been unable to complete the enumeration of thirty mines in five circuits.

Immoxficatus, cognovit Demosthenis verba; non triginta minae, sed fere triginta.

.

For it was not the ho-sMgjoi who were present, but approximately twenty thousand.

Thus?

It shall be said of thee, that thou art a woman brought to the threshold of parturition, and not one unencumbered by the bonds of matrimony.

Menander:

H. V. J. L. G. S. V. R. S.

For it is nigh the close of the year.

Wherefore, it is nigh.

For the Greeks, and those who are intimate with her, assert that the remainder, as Atticus himself records, are Artemis.

And I shall be with thee, O my lord.

[untranslatable fragment in source]

Thus, what is wanting in figs, and what remains, which is less perfect and rounded.

But the virtuous and praefectus, or rather the imperator I. I. I. I. I. I. I. I. I. I. I. I. I., hath objected, that the man who is represented as having feigned to assume the strength of a hundred and fifty drachmas, or rather the weight with half a drachma, is deemed legitimate.

Huc:

It is, nevertheless, a maxim of great polish and urbanity to express it thus: "X," which signifies a moiety of a drachma equivalent to half a lunar period; or, in other words, half a drachma of a month's duration.

In this manner, the usury would differ by no means from the usury of the bricks; for Demosthenes, in distinguishing the resting-place of his mother's dowry, hath laid down the rule, that although he would not relinquish any portion of his own right, yet he might recover it with the usury of the ninth centesimal part, which the law suffered to be exacted in cases where a husband had not returned the dowry which he had received. And thus, the law of the land of Zoxol, which did not require payment for the usury of the sea, permitted the satisfaction of faith to be made with the usury of the land.

An example is extant among Issus, the usurer of this age;

He is the offspring of Soxolf.

For she was then not only perverted in the dowries which husbands retained, but also generally abused in other contentious usurious transactions.

When the usury of all things is withdrawn with the slightest pungency,

At the same time, the Athenians did observe the ensuing notable circumstance:

It was affirmed, that the Earth's dimensions were neither greatly exceeding nor falling short of mediocrity, and that it was of a very diminutive magnitude, when compared to the vast expanse of the heavens.

The words of Hxc Isxi, delivered in the speech of \$ Ayyttt xXispn, who spake thus: "Mi TVfyii btyeiXtfJfyjx ii oirv, Kgt 5v, 79- x^yf^osu^os."

Thus, indeed, are they to be read.

This term, as the Grammatici of the Twentieth Century do not interpret elsewhere, is not to be received in such a sense, as if it denoted the voice peculiar to the usurer; but rather it is to be understood as signifying a certain special species of usury, which Plato himself admitted in his Republic, of which instances were not wanting.

[untranslatable fragment in source]

Art, severed from sustenance, hath wandered days.

Whither is she gone?

For, when he was unable to recover his faith, he perceived the action which he was prosecuting, the usury whereby he sought to appropriate the revenues derived from the endowments which his faith had conferred upon him.

Demosthenes, in the antecedent discourse concerning Aphobus:

48 JMjveG- t■ t■n m■pr■n, sed pr■c■, epitrop■n Diach■■■x■ in axid■ph, ■p■i■s■, id■ t■t■n, ■ Democh■r■s.

That is, when he has refrained from usurious practices towards his mother, and I have retained the dowry in my possession.

For r- is properly a gift in itself, which hath not been reciprocated.

Ergo, aut liberi erant, aut supplicio afflitti; non solum simul, sed simul cum donum redemptoris ad eos traduceretur, et alimenta praeparata minime deficiabant. D E Modo Usurpatoris Recessus Abiit, V R V M Praefertim.

And the lightning flashed forth therefrom against Neatram, and against Demosthenes.

[untranslatable fragment in source]

Thou art my comrade.

From these words, a fluid and lucid computation is made of those things which we have previously remarked.

If any man hath dismissed a woman, and hath not restored her portion, Mxynrit either putteth in action in person, or else is the name of him who bestowed the dowry.

This individual, whose sustenance was limited to a scanty repast of five meals, declined to remit the dowry, nor did he acknowledge the usurious interest accruing thereunto; for the sum in question amounted to twenty-two denarii for a period of one hundred anniversaries.

For the deferred perusal, wherein the words are herein cited, I shall tender a concise epitome of the arguments herein advanced.

Two words were subject to repetition.

[untranslatable fragment in source]

Thou hast the faculty of usury, Alxvi.

And even Isatus, in his oration, doth confirm the ensuing proposition:

Four! Tone! [Gr.: προικς ατς σ]

To the thirteenth day of this month, I will grant thee a tenth thereof; and thou shalt be filled with two thousand six hundred days.

For this reason, I have recorded, that no man may be surprised at the close of his days, since he is wont to confound the laws of Athens, and deems them one and the same; whereas they term him the Sixth.

Items excerpted from the work of Pollux, in his lib. in, chapter rit.

Nevertheless, he had recourse to a petition in behalf of the usurers alone, whereby;

They shall be transformed into sustenance.

And certain it is, that these usurious gains, sought for sustenance, were thus extenuated; yet they were conveyed in coin, not in alimentary specie.

Separatae igitur haeduae actiones; et si antequam donum acciperet, nullius fuerit fructus.

Locale, which is defined as:

Then he was given the gift, and he was unable to restore the dowry to his husband. Hence, it is recorded that the act and the cognomen of the youth, who had not yet assumed them, were conferred upon Atticus; and that M—, by a legal process, sought to recover the same.

And thereafter, in the infernal regions, the same inquiry is resumed :

Tertium quid Xapp est.

That he had but lately learned of his potential separation from Arconus, whilst pursuing him, would impel him to seek another habitation.

Simultaneously, when I was designated to expound the legal code, Sitjw, who was required to attend to his utterances, mused to himself: "Xy."

Vxu, Chapter VI.

The subject, when elevated yet rendered lucid, acquires a greater degree of perspicuity.

To this individual, he was bound to contribute, in his heart, as if in a state of frenzy, such that a mother might bear a bastard child, whilst acquiring dominion through the statutes of equity.

By psl, they mean to give.

The precepts of Atticus are alluded to by the Deities therein.

An encpius is stationed at the extremity:

Jx

Shouldst thou behold him, thou shalt hear him discourse, thou shalt hear him discourse, thou shalt hear him discourse, thou shalt hear him discourse, thou shalt hear him discourse, thou shalt hear him discourse, thou shalt hear him discourse.

The orb:

The veterans:

I possess a journal, a sustenance, a journal.

Herein lies the journal of the retainer, Satyricus.

Nevertheless, when the daily service is rendered, that is, when sustenance is furnished for the daily bread, it is not to be dispensed according to the measure of grain, but rather by weight of some kind of flour.

What a frivolous excuse!

The derangement of Terentius II was even more profound.

The father of the decedent, Donatus, harboured uncertainty regarding the exact moment when the three species of corn should be harvested. Yet, who fails to discern that the deity must be disregarded?

The orb:

The ensuing:

The lunatic, Theocritus designates this lunatic slave, Lucius, in the sixteenth epistle.

A certain term, and the appellation which he affixes thereto, is that of fervent intemperance.

Two hundred and seventy-seven feet, they averred.

Furthermore, he assailed others.

Optimum;

The orb;

not yet made public.

A viaticum of six ounces.

The following missive was transmitted to Epimenes from Satyricus:

And the ancients, the Epimenides of Afros, the bulbs.

These are not offerings of menstrual blood, but of nourishment.

In like manner, Arrian appropriated the plain, mirroring the approach of L. Saimasius.

Man, man, man, man, man, man, man, man, man, man, man, man, man, man, man, man,
man, man, man, man, man, man, man, man, man, man, man, man, man, man,

How oft did he present himself to me within the same ambit?

And he who possessed the authority to grant her perusal, to whom we had previously appealed and solicited in his oration against Neair, is he.

IX. In like manner, let it be granted that the words here employed are clear and elevated, yet let them retain a certain lucidity and precision; let the sentences be constructed in a periodic manner, with measured cadence, that the style may be both grave and graceful; and let the vocabulary, though sparingly archaic, lend a certain antique charm to the composition, without offending against the requirements of clarity and directness.

To which he responded:

If the orb were not competent, the tutor would assume its custody upon deposition.

Which interpretation is the most calamitous among all.

For in the denotation of a guardian there is nothing.

Otherwise: non tamen me hoc audiri turpia, non tamen me hoc audiri turpia. [Græce: ■π■ρ■πεν; ■πη■ροπος■ειν.]

If I possess a youth endowed with mature wisdom, then, by the dictate of this law, he shall be deemed sixteen years of age, though it may not comport with his actual state; and fate shall permit it. Yet, when he attains the fifteenth year, he shall find contentment.

And whose husband, by will and testament, having severed the bond of matrimony from his wife, hath bequeathed her as a bride to my son-in-law.

This is the most veritable narration, consonant with both the law and the custom of the Ancients.

The Athenian, who attained the highest magistracy in his city, possessed a spouse who had long been emancipated; yet, upon attaining his own liberty, he expired, leaving his affectionate friends to discharge the duties of attendance during the remainder of his days.

He was, moreover, a man of upright and amiable disposition towards females, until such time as those who had been wedded before attained the age of manhood.

Thus Derao, who expired in tranquility, bequeathed his spouse, Aphobo, with whom he had shared every tender emotion, and the dwelling wherein she was to reside, together with the appurtenances of her domestic establishment.

But if any woman, who hath borne a son by her former husband, and hath attained unto the twentieth year, and hath afterwards adopted another, shall be accounted the mother of a good man, not a fruitful wife; for so it is said by another part of the law, which is cited in that cause against Stephanus.

What is this, seventy-one?

Hinc:

So did he render it in the Latin tongue:

Remaining in the domestic sphere with your maternal tutelage, a dowry not to be reiterated, children thus released by the munificence of a nuptial endowment.

Nor did he, by his own hand, suspend himself; but his virtuous mother participated in their fate.

Nihil fani neque in Graecis, neque in Latinis.

This is what a woman hath brought forth in the matter of dowry.

Nam exilii sum.

The woman of Atticus is reported to have been endowed with the privilege of matrimony, wherein a dowry is conveyed to her husband.

And the offspring of one whose faith was augmented more copiously than his erstwhile, did assume the office which was his by right.

Which he himself acknowledged; for being enrolled among the higher class, which possessed a larger number of privileges, he was admitted into the college of three hundred; whereas the other, who was inferior both in numbers and bodily strength, was dismissed from the same.

Which he denied, therefore it became requisite to permutate the same with another faculty, namely:

Permutatio nomen acceperat, ut Qn voluerat se pauperius videri, ne ipso ordine allevaretur, quem senes reipublicae habuerant in animo.

Collations exceeding in magnitude yet manifesting themselves with lucid precision, in the desolation of the divine precincts, were impending; and, amidst these transactions, he was wont to engage in sundry connexions with females; oftentimes, by means of feigned professions of estrangement, he concealed much and revealed little, and represented himself as alien, although he was not.

For the good things of Thy people have ever been derived from externa, whence their certainty is more questionable; in consequence, when Phxnippus proceeds to delineate these same good things pertaining to Thy people, he furnishes them without much repayment, being himself indebted thereto.

Among other things, it is incumbent to foster the endowment of faith.

This, however, he re-established and demonstrated by proof, that Phxnippus had proceeded in the same manner as he himself had done heretofore; and that he was under no obligation to a foreign nation, as he taught by his own exemplar.

If he also possessed the same talent as Phxnippus, whom he ought to have acknowledged as his debtor in partibus.

But that she remained in the same abode, and partook of her own good there with him, is described, although she did not readily acknowledge herself a stranger.

For whether, he observed, I have been retained in this custody, or whether I have been conveyed to Phxnippus, my mother, who hath hitherto dwelt with me, shall continue to live in concert with me, and share in all things which I possess; and Phxnippus also, whose mother, cohabiting in the same abode with him, hath a daughter, is bound to act in like manner, since the laws command it.

From thence it is manifest and clear to perceive, both the fluidity and the liberty of those who were in a state of freedom.

Hereafter, a distinction arose concerning the name of the municipality, which was hitherto deemed free for the purpose of endowing matrons with dowries, and to which the spouses contributed gifts of 4s. f. 4d., whereas the offspring themselves made similar contributions, the law having decreed otherwise. This is clearly evident from the statute, which compels the husband to restore the dowry in money, and to discharge the obligation for its interest, denominated specifically as decimae, that is to say, one-tenth.

[untranslatable fragment in source]

And in such an action, he was bound to pay the usury for her; or, as Harpocras interprets it, to pay the usury for her, whereupon the husband was required to return the two titles, or to refuse their payment.

It is granted unto women for sustenance.

In the case of pupils of similar disposition, whose welfare the prudent governors oversee, thus he inquires:

[untranslatable fragment in source]

In the neighbourhood of the eighth temple, facing Timarcus, there occurs a reference to these usurps, the most frequent of which:

[untranslatable fragment in source]

Etapud, the offspring of Theophilus, is referred to in the twenty-sixth chapter of the Fourth Book of the Fables.

Omnis exortus est scientia, ubi et lucem accipit et purgationem; ubi in tantum ad altitudinem ascendit, ut nihil aliud spectet nisi ad caelum.

Request for a sonorous voice compounded for the voice of Res.

Thus it stands with Socnogres; for F. Aeneas and Grimus.

These volumes, composed by the venerable Claudius Suetonius, who is preeminent among the Ferocii, have been transmitted through the ages by the Ferocenian bulls; and they are designated by a unanimous appellation as the Ferocii.

Resuxo- "ria," proprie appellabatur fons ipsa, quia nomen ejus ex uxore eius derivatum erat.

I tremble not.

For, as Boethius testifieth, we are bound to ascend unto the summits of Cicero's art.

In the instance of two men, it was lawful for a husband, although his property were augmented by marriage, yet, notwithstanding, to dissolve the nuptial bond, or to demand that his wife should be his spouse anew.

The cognomen of the consort of the sovereign of Attius was not recorded by Comz prior to the separation of Carvilian.

Hujus nomen citius praesentabatur in codicibus iurisperitorum, quos compilavit Justinianus; nec in digestis, quae ab eo postea compilatae sunt, hodiernis comparandis reperitur par.

Next to Modestinus, in the collation of the Mosaic laws, under the Title of Depolito:

Thus, in the confidence of the judicial assembly, in the adversity of the royal consort, and by reason of fraud and guilt, the censure is derived.

Dedicating himself to this place, he digested the treasure of the Triumvir upon his own hill, and, in the final instance, he hesitated not, for he had already bestowed it upon the tribesmen.

For the appellation of the Jurisconsult, which I shall hereinafter detail, was extant throughout the records of the Jurisconsults; and the reference to his consort by the sovereign was not eradicated, since Justinian, on the contrary, had restored her liberty.

Aione, ex stipulato et re uxoria, unam uxorem adfecturus sum ex stipulato numero regum uxorum, et alteram uxorem ex stipulato numero meorum uxorum repetendarum.

What in the transaction of the royal consort's affairs was primarily designed, namely, the *beneficium bonae fidei*, he adapted to the present instance, which hitherto had been circumscribed by the rigours of strict jurisprudence.

Thus; or, if any man shall truly conceive that he hath both erected and instituted a new form, and a new order, in the ancient jurisprudence which was hitherto almost unknown.

How well, did the Jurisconsults perceive?

The term of three years, which, prior to that, had constituted a marriage on the part of the monarch, and had been bestowed upon his spouse, was, by virtue of the number of days during which such union had subsisted, abridged to an annual duration of one day.

The ensuing day, when I inquired concerning the residue of the endowments, they did not conform in weight, number, and measure.

It had been ordained by a contrivance, whereby alone such a sole was to be restored, that it might sustain the object whilst undergoing renovation.

But if the husband, within the term of one year, is required to effect a change in his movable goods, and forthwith to return to his fixed property, he shall avail himself of all the stipulations of that property which he hath not yet enjoyed; and he shall be bound to await the day of the dissolution of the matrimony.

He perceived the mobility of the populace, and the fruits thereof; he beheld the hundred and twenty-five gallons, the fittings of the ships, and the annual records of the civil administration; and he noted all the conveniences which the seven hundred and eighty-seven hundred of the Saimasians afforded.

Furthermore, it was an ancient custom for women to be endowed with the gift of the sun, to be employed in demanding their dower, and the marriage, which derived its appellation from *sepultus*, was thus constituted; the law being so stringent that the entire dower, even that portion which consisted in weight, number, and measure, might be forthwith assigned by name, and the measure itself, were the agreement previously made, might be restored to the faithful.

Herein shall be enumerated the several matters requisite for consideration:

It is affirmed that such a consequence proceeds from a fit.

To that which, by weight, number, and measure, is comprehended and requires repetition, another criterion, hitherto unknown to De Reuxoria, was deemed fitting.

Thus, however, it is denominated in the ancient works of Justinian, the *Codex*.

From Reuxoria.

Similarly, in the very law itself:

And the nature itself, by the very force of those subsequent actions, was so informed as to bring the recourse to an end.

GloslxNomicx:

Pia- oifax, quae et orphinos matres.

Items, and Viiis! Uq/lx, Tedex, ye shall receive twenty-four.

Etapud, the son of Theo, is therein referred to, in the fourth book of the said treatise, in the sixth chapter; and again in the same work, in the chapter denominated the eightieth.

whose haec in hac urbe, ubi ymago Salaminis insulae, O Cyane, et illa, tamen in iis diebus, quando haec urbs in maxima suae gloria florebat.

A voice compounded for the voice of Rex.

Such is the condition of Socnogrus, in behalf of Foenus and Gracus.

And in the works of Claudius Suetonius, the writings of the Vetoififians are univocally termed Ferotauri, which were collated and edited by the Fero Tauri.

The river, in its proper appellation, was designated as "ria"; this nomenclature was derived from its association with the consort of the individual to whom it owed its moniker.

He remained in mute repose.

For, as Boethius hath observed in his commentary upon Cicero's Topica, it is requisite that we employ the like method.

J79 Duo, si matrimonium inter bonum hominem et bonam mulierem licere conetur, tunc maritus pro uxore jure suo solum vel ut se uxorem repudiare vel ut se ad uxorem adsumere posse juratur.

The appellation of the monarch's consort is not recorded prior to the dissolution of Carvilian's matrimonial bond in the annals of Romulus.

Hujus nomen frequenti ratione evocabatur in scripturis iurisperitorum, quae a Justiniano compilata sunt; atque tamen nihil ex digestis ejusdem, quas inde compilavit, hodiernis comparari potest.

Next to Modestinus, in the collation of the Mosaic laws, under the title De Deposito:

Thus, in the confidence of the judicial sentence, and in the tone of the consort, is the guilt deduced from the calamity.

Dedicated hitherto to the Triune Deity in Thy harvest, this spot I consign to restoration; and assuredly it shall be reinvigorated to its pristine splendour, for so it lies at thy disposal, in thy bounty.

For the appellation of Jurifconfucius, which I shall allude to hereinafter, is not enumerated in any of the extant records of the Jurifconfuentes, and the reference to his consort has been effaced; for Justinian, who succeeded to her estate, thus abolished the cognomen and the allusion to her conjugal rights, by virtue of a stipulation and a joint title, whereby the demand for her dower was to be enforced.

What the King's consort had effected in her capacity as advocate, namely, that she had conceded to him the advantages of fidelity, which he had hitherto possessed.

Thus, let him who truly deems himself to have been deluded, and who hath introduced a novel procedure, strange and ancient, to the established law, reflect thereon.

How well did the Jurif-Confucians perceive?

The term of three years, which, by virtue of his wife's act, had been assigned to the husband for the redemption of her dowry, was, in respect to the quantity thereof, diminished to an annual day.

At the present period, I humbly beseech that the residue of the endowments be subjected to the process of being weighed, numbered, and measured, in a manner not deemed confidential.

It was ordained, by virtue of a stipulation, that the sun, which is contained in matters solely pertaining thereto, should forthwith be restored; and again, that the sun, which is contained in matters solely pertaining thereto, should forthwith be restored; and yet again, that the sun, which is contained in matters solely pertaining thereto, should forthwith be restored.

But if the husband, within the term of a year, were to furnish movable goods, and forthwith to restore the immovables, he would have availed himself of all his possessions, which he had not removed, and would have preferred the dissolution of the matrimonial contract.

I will bestow upon thee the furniture, and the fruits of things which I have perceived; and ten pence shall be thine, and the ships, and the stores of the commonwealth, and all the conveniences which I have received from MX; and three hundred shall also be added unto thee.

When the Salmasian sought a dowry from the monarch, it was his intention to reconvert him to his former religious allegiance.

Such usury as she might desire to exact from her husband, whether in consequence of a variation or a modification of circumstances within the year, she was unwilling to restore, although she did not avow it; and yet the destiny thereof was manifest.

For verily, when that which is excellent:

Faith, therefore, is the very act of faith; and it is the duty of the state to enforce those obligations, which, even in contracts entered into in good faith, it was customary not to exact from the deceased.

Olim vero, ubi contra suos vota erat, iudices pro arbitrio ex more regionis, ut leges i et ivisse demonstrant, usuram subministrare soliti erant; unde, reiecti ab illa sedulo, necessitate obnoxii, pecuniam ad usuras contribuere fuit imperativum.

Verum, ex modo, quem Justinianus tum in usuras non habuerat, non poterant triginta excidere; hoc est, quod ratione argumenti, quem ipse dixit, demonstravit.

XXIII, Cod.

Of the dowry, it may be demonstrated that the emperor, by whom it was either granted or promised, might, after a period of two years from the cessation of matrimony, be entitled to receive one-third of the hundredth part thereof.

What shall I do? If, therefore, it be commanded that usury, which has been delayed by reason of the tardy restitution of the dowry, or the spouse who has deserted his wife, be permitted to be claimed from the father-in-law or the husband, let it not be so.

Unapenfione followed, as he was able to do with the tribes.

Verum quidem, pro idem casu et gratia Judaeorum, juror me dabo dona et reddam; legem redhibitionis ab triennio ad annum transeam, cum solvendo quaestionem per revocandam leges veteres ex idem triennio bis annos praestatas ad biennium revocabo.

To whom shall I interrogate, and what imprecation shall I invoke, that I may give unto the person in question the sum of money which he shall weigh, and number, and measure out, to be restored to the tribes by annual, biennial, and triennial instalments, to the consort of the monarch?

When he was exiled, and impelled to depart the land, did he murmur, although he had dwelt in banishment for the space of three years, that he had acquired the territory and deemed it advantageous?

If I were imbued with faith, would I not have extolled thee?

Quintum autem, si singulis annis debitore reductam pensionem inferre supererat, tunc illius anni usuras puto debuius solvere; et si per triennium nihil defuisset, tamen post hanc spatii remissam moraretur, donec dies dissoluti matrimonii, id est, dissoluti foederae, venerit.

This would be manifest from the writings of ancient Jurisconsults, were they to arrive at our possession entire.

He likewise adduced the language of Polybius, whom we previously cited from Cupra, to the effect that individual annuities should not endure for the term of a whole year, but for a period equivalent to one-tenth of a lunation, provided that the sun itself did not set; and that, ultimately, through the imposition of usury, the debtor might be compelled to discharge his obligation to the creditor to whom he was indebted.

Accordingly, in the ancient law of the land of Juda, when the duration of three years was abridged to one year, the donor was vested with the right of reditus, which he computed by weight, number, and measure; and although the year of reditus was expired, the husband pronounced it his duty to apply the period of matrimony, even the thirteenth.

Judinianus, who, as he perceived, was wont to be assailed with the utmost iniquity of popular faith, had been doomed to the extremity of the law, until such time as the legitimate tribunal had vouchsafed its sanction to the decrees of the local magistracy.

From thenceforth, there were twenty-five.

Therefore, it was incumbent upon him to impose a sentence upon all those who fell short of the hundredth rank, not excluding even those who did not surpass that number.

M III ipsa etiam centesima comprehendit.

From what is beneath the margin of the sea.

Moreover, as the husband who possessed the privilege of retention was not subjected to a severer censure than his wife, so likewise did the husband, who enjoyed the right of restitution from his father, undergo a similar punishment for a hundred days; yet, in a protracted period, the monarch suspended the matrimonial alliance by the execution of his spouse.

The locus of Ulpian, purified from the corpus of his regular associate, and defiled by the vulgar multitude, doth require expiation:

Married men are indeed chastised according to their deportment; yet, they receive that which they are bound to return on the appointed day.

Propter maiora mores praefixum dotem restituit; propter minora mensium diem.

But in that which is wont to be returned, let him render but so much as the enjoyment of the fruits of his reaping doth yield, as if to his patrimony of four years' revenue.

Gloffx, the senex:

[illegible]

Retentions from endowments, which are enumerated as follows:

For the sake of their ancient spouses, or for the liberty of themselves, or for the cultivation of virtue, or for the accumulation of riches, or for the receipt of endowments, or for the indulgence of affection, did Justinian restore them all.

The sole Code.

Of the consort of the monarch.

But in these instances, such is not the rule; and herein we do not confine our argument to the consideration of donations alone, but rather extend it to the usury accruing therefrom.

Hinc vel maxime perspicuum est, quantum ad modérationem rerum Romanis comparata sit Græcis; cum idem causam diu moraretur.

In the grant of usury for the redemption of a dotal sum, the Greeks conceded the rate of duodeviginti denarii per centum, which the Roman jurisprudence sanctioned at trientes in a similar instance.

And thou shalt render a hundred and four denarii annually.

The cause of this disparity is as follows:

Let us revert to the fundament.

CHAPITRE V. De usuris nauticis et maritimis.

By reason of peril alone were they distinguished from the common, and the appellation thence derived.

He likewise contended in the principal contest for the identical recompense.

The notion is that thou shalt denominate it "common," since the creditors are identical to the United States Army.

I alone am secure and unassailed; ye, O mortals, are otherwise.

Such was the instance with the vendor Quidtyiae XM or Eutuct.

An alternate proportion of the enunciator's voice is typhratic in the usury prevalent among the populace.

As if thou wert planted firmly for the sustentation of the strong, pondering and relying.

He who hath resolved this enigma shall not be accounted more praiseworthy therefor.

Locus Theophrastus doth elucidate.

More of the spectacle have I beheld than of its actuality.

Safe and sure is it for every soul to partake thereof.

The maritime practice of the Athenians, amid the ocean's tumult, sought to navigate as many vessels as might be.

Nevertheless, I was not a perpetual exile, nor could I ever effect a permanent escape.

It is incumbent to ascertain the precise epoch and locality, and also the specific demesne assigned to each.

Amidst luxury, I have been unable to escape from the pyre and the waves of the deep.

An unjust course was perceived in all maritime enterprises, necessitating the exaction of a pair, as Julian desired.

The Athenians employed a swifter rate of sail than did the Romans prior to the Lusitani.

Concealed from the rear, the emperor required thee to avail thyself of him for greater trustworthiness.

In the year of the voyage, and in the third quarter.

The ancient Graces of Attica were termed the furnaces, not by another appellation, but by the rhythm of their measure rather than the sea.

Those who, from the Greeks, affirm that a thousand years ago the Roman imperium was besieged, and that is the term applied to them, and that they spurned the course of the conflict, as distinct from its direction.

The edifices, erstwhile in their pristine integrity, have undergone renovation and modification.

What was the intent of Ncu/luui's engagement, the furnace of the mariner, or the funds credited under the usury of the sea?

Nolouscus, the chief of the Demoileans, doth flee; while Hus. Cur informeth us that the nautical appellation of the vessel remaineth unascertained. The Attic ordinance concerning merchants of corn is expounded by the traders thereof.

It is unlawful for the makers of furnaces to let out money on the terms of ships to purchase corn, save upon condition that corn be garnered from it at the price of corn.

The Athenians imported him henceforth.

The lawmakers of the town, who, having been afforded the privilege of paying the sum, were thenceforth to be summoned to the port, and to seek settlement in the adjacent districts.

Merchants dealing in commodities other than corn did not desert them, but dispatched them unto the dominion of Athens.

To this purpose, and for those who have been most graciously invited, ye shall be exempt from all infirmities; and I will afford you a repast.

The path of Ixsus was deemed narrow, and he encountered the perils that beset him.

Tyrius, explicating the subject in a manner both elevated and lucid, unfolded it unto the multitude.

Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei? Quid fit ei?

The ordinance of Rhodes prescribes no other act of purgation save the peril of the creditor.

This is enshrined in the edict of Rome.

Contrariwise to the Rhodian.

The Lex Rhodia was contentious. The Roman emperors decreed that all ships of the sea should be withdrawn from Augustus.

The statute, ratified by Antoninus, underwent modification and explication in some degree.

Thus is the law of Rphiodium more estimable where there is no law

From the Rhodian law, antecedent to the reign of the munificent Antoninus Pius, our vessels encountered shipwreck, and we ourselves were conveyed through the billows to the public treasury.

Subsequently, he assumed the cognomen Antoninus.

Let the identical law be perused.

Amended by the Naufrages.

And even among the Athenians, as among the Rhodians, it was not the custom to contract engagements for pecuniary transactions otherwise than by placing reliance upon the creditor's honour, rather than by the interposition of formal securities.

The Athenians possessed a diversified mode of nautical contract.

The shipwreck, thus disclosed to Demoshenes, was in part also consumed by the flames.

This locality in Bojporo is reputed desolate.

What was the condition of Ctt/Ajj Atticus?

By the divinities, I swear by the preface.

Tempe, thou fair vale, by the noontide heat erstwhile wont to be roused, art thus proportioned in duration to the fervour of the midday sun.

The sea of the Aegean was surcharged with tempestuous vapour; and the multitude of islands, as if conjoined thereto, were similarly impregnated.

What was the delay? What was the delay? What was the delay? What was the delay?

What was the condition of the merchants, that they could not be acquitted; and, against the wishes of Arius, they were to be absolved by means of that unfruitful Oeconomics, and by the Harpocraeans, and in the mode employed by the Usurpers?

It was amended upon eight occasions.

For, as the peril of navigation increaseth in proportion to the magnitude of the hazard incurred therein, so doth the expense of warfare augment in accordance with the magnitude of the usury wherewith pecuniary resources are transmuted into hostile instruments.

In Sejo, Helle, I have beheld a seafaring vessel; in Osslav, I have also observed a seafaring vessel.

Demojihenes addressed Volyclemus in the following discourse.

A mariner's journal must not be conflated with a commonplace book.

What ails me?

Many others.

We treat of the usury prevalent among communities, which, though not enacted by the written law of the Athenians, was rather the outcome of popular custom and the dictates of sound commerce, and which, despite the Roman laws, permitted it to extend beyond all bounds.

Now, to treat of the maritime and nautical arts, which, heretofore, have been employed to establish certain boundaries, it appears that a controversy may arise; for the liberty of such pursuits has, in almost every nation, ever been more extensively and more liberally conceded, than in the case of other employments, on account of the public utility.

Herein:

He instituted a sole rationale for their differentiation, both by name and manner; and thus, without peril to the authorship, the writers were induced to traverse unto the region whence they had proceeded.

What, indeed, was the necessity for such maritime usury, which in no wise could be understood under that appellation, save the peril thereof, whether it be the boldness of usurious speculation or the hazard attendant upon it?

He likewise assumed the pretence of employing all the species and denominations of usury.

They flee, as though they had nothing to bestow; the mines are mutual funds.

Whoever shall assume the funds for the cultivation of the vineyard by borrowing on interest, shall henceforth denominate such interest unparliamentarily, thus saying:

They have been consumed by cattle.

The funds appropriated for their remuneration were likewise denominated usurae, akin to those applied in the transaction of usury.

And thus, and thus.

What is the signification of the term "trajyciapecus," whereupon it is thus appellationed?

The vessels, which are conveyed across the ocean, and the usury which is there deposited for the purpose of exchange, are termed maritime and nautical instruments; and from these the denominations of the several species of coinage are derived, which are imparted to the branches of the land, and thence again returned thither, and the usury is liquidated in the same spot, not at the outset of the sea, but at the termination thereof, M.Y.E.W.T.S.A.I.M.A. By these observations, it may be discerned how inaptly the moderns have applied the term "usury" to this practice, as if it were synonymous with "usurpation," whereas the ancient terms, ■φά■ρεσις and cognate expressions, denoted rather alienation or appropriation, as we have previously observed.

They were confined to occupancy alone, but their possession became a usurpation.

For it is asserted, that your habitation is beneath the earth, whether it be in the thirteenth, or in the sixteenth region, or whether it be in the heavens themselves, or in some celestial abode: so that the term "adit" may be applied to it, whether as denoting a subterraneous entrance, or a temple situated in that locality.

and the established bases.

Otherwise, that the more recent Greeks, who have lately arrived, might be dissuaded, it is said that they are termed and distinguished from the nautical, in the fifteenth chapter, as vessels safe and secure for creditors.

For among the Romans, as Paulus relates in his *Sententiæ*, lib. xv, cap. xiv, concerning usury, Trajectina's coinage, on account of the peril to the lender, can endure an infinitude of usury, whenever it is in transit.

Next to the Athenians, as we have already observed from Xenophon, and in the *Centibus*, where the *fumus* is confirmed by subsequent narrations, there existed a quintessence of a *quintarius*, or rather not even a fifth part thereof; which we commonly denominate as twenty in a hundred, when the ordinary *centurio* grants an interest equivalent to twenty-two *centuriariorum*.

Some may marvel at the prevalent usury; whereas Atticus receiveth so much in excess.

They were, rather than the Romans.

But herein is the rationale.

All the galleys of Athens nearly invariably directed their course towards the Bosphorus; or, if bound in company with the *Ionians*, their voyage was thenceforward destined for the shores of the *Euxine*.

As succinct as they were, so trivial was the proclamation;
perils.

For in protracted intervals of maritime transit, perils more frequently impinge, whether from the depredations of corsairs or from the fury of tempests.

If they had navigated into Egypt, or even into Syria, they would have accomplished that journey in a more brief interval, than did the Romans when desiring to sail to the Pontus, as they had done at Cepe; for the latter required hardly more than five years, whereas the Athenians could traverse the same distance in a term of three months.

In the Roman town of *Grarccia*, and within its limits, the ships navigating the more opulent markets expend less time upon their voyages; whereas, in the instance of the U.S. Army, a greater duration is requisite.

189 while he yet lived, so long as the Greeks, in their supplications to Jupiter Gratus, invoked Ponus.

What shall I discourse concerning India, which, even from the dominion of Augustus, was frequented by Roman merchants, and in which the commerce of the Persians was interwoven?

Was there ever a merchant, who having borrowed money from the merchants of India for a voyage to those parts, and being about to transport himself thence to Sicily or Africa, did not

promise greater usury to his creditors than they could exact from those whom he had conveyed hither from Italy?

And the edicts of Justinian, which the commerce of merchants had established according to due measure:

The lighthouse, which the merchant doth furnish with every sail, and in which every moment is spent, may no longer lawfully be employed by the lumbermen to demand the name of usurer, save for the hundredth part of the time of navigation.

What it was not meet should have occurred, hath commenced.

For there was, indeed, a greater proportion of peril in apprehending the pores of time, such that prudence required it in every instance of usury.

Let it be supposed, that no person may reappear from a protracted voyage until a period of twelve lunar revolutions, and four additional months have elapsed.

Quintus, and Justinian himself, in the Novella concerning the maritime penalty, did prescribe that navigation might be extended at times beyond the term of one year.

The centurion, who having advanced the sum, committed it to the merchant for the term of four months; and when, in safety and soundness, he returned from his voyage with the vessel unimpaired, he did not receive it so much as augmented by the hundredth part.

In the like manner, the architect of the vessels was likewise enabled to derive profit from the peril attendant upon the ordinary tempests, which Justinian had conceded might be employed either by a factor or by a quadrilateral, so long as such gain was realized within the duration of the vessel's voyage.

And, what is more unjust, if the vessel were to return within the space of one or two months, the same sovereign nevertheless exacted a rate equivalent to the hundredth part thereof.

But, after a considerable interval of time, the same individual did behold the iniquity, and thereupon did effect its rectification.

The verity of the deities beneath, wherein we might elucidate the maritime phenomena from the Roman jurist, and more.

Now, in Greece, the smoke; and, indeed, at Athens, the sole criterion by which the peril was distinguished between maritime usury and general commerce was established, even unto Rome.

There is, indeed, no other matter which hath been otherwise delayed by this Grarchus, since I am not so far removed from him.

The term commonly denominated, namely, the entire.

Therefore, the uncertainties and perils of the sea, and the hazards of navigating through the waters of Salmasius, were deemed.

The notion is more imposing thusly than otherwise.

For in the common phraseology of maritime affairs, there were reckoned to be five thousand mariners. Moreover, it is to be noted that among the Attic orators, no other appellation for a seafarer was current save the term "nauticus" itself; nor was there any other designation for such a profession, as might be found amongst the more recent Græcians, designating a certain sum of money, specifically seven hundred and seventy-seven drachmae, which, had it been employed, would have served to distinguish the nautical from terrestrial creatures; but this term was unknown to the ancient Græcians, who, as we have previously observed, distinguished between things of the soil and those of the sea, the latter being termed "nauclerus," signifying essentially the same as "nauticus."

Subject, Lib.

Eighth, which is the XIIIth chapter, which is the XIIIth, which is the XIIIth, which is the XIIIth, which is the XIIIth, which is the XIIIth.

Then, when he arrived in Greece, he received above a thousand talents; and he was placed under the same obligation as that incurred by the usurious maritime fountain.

Thus spake he to Demosthenes in that oration, against Apaturius:

This is a fable; and it must be read as such, and not, as is commonly asserted, equivalent thereto.

He said, as he possessed but mediocre endowments, that he would seek to augment the emoluments derived from maritime usury and the inquiries of the mind.

And it is more simple to effectuate that operation.

Therefore, in this manner shall it be accomplished.

Quinimmo, munito sed tamen perspicuo dicendi genere, Attici Oratores (qui impliciter bona, quae in navali foene polita erant, usurpari conabantur) conciliabula habebant.

Demosthenes, who, in a prior contest against Aphobus, had been arrayed in opposition, thus addressed:

Let us manage it in this fashion.

The individual who severed from his sire, he recounted, and what remained thereof.

This is the fountain whence proceeded the like confidence which they reposed in the Lord.

I shall hereinafter proceed to impart unto thee a succinct enumeration of the findings hitherto investigated. I shall hereinafter proceed to impart unto thee a succinct enumeration of the findings hitherto investigated. I shall hereinafter proceed to impart unto thee a succinct enumeration of the findings hitherto investigated. I shall hereinafter proceed to impart unto thee a succinct enumeration of the findings hitherto investigated.

The term pertaining to usury, which by right ought to have been transmitted from his progenitor, having been, I suppose, forfeited, I must confess that he did indeed lament the privation of its employment, as it had originated under maritime usury.

Subsequently, I positioned him before the trapezium.

Pa-fionem and Pylades.

Elevated nomen hoc data est, et magnus illud est.

Soon did he reckon those who, not being engaged as a courier, were entrusted with a private fount, and were even designated as the son of Demonis himself.

Finally, he recollects that, though he does not specify the names of sundry persons, these were reputed to have been enriched by sums amounting to two hundred or three hundred drachms, each of which nearly equaled a talent.

[untranslatable fragment in source]

He is in want, if he hath any other design.

Hesiodus:

Aibes of the hundred of Ityajri, who attained the age of twenty-five.

But towards the rear.

The scribe, a mariner by profession, possessed a trifling sum of coin among the eunuchs known as Demosthenes.

Nor are they adverse to the notion of depositing the moneys in a ship's bason, as though it were a figurative representation of a fig-tree in maritime commerce.

But that one sole beetle may be confined.

Kaf, et magnificaberis, magnificaberis, magnificaberis.

Thus it is in Ppf in Uxeioijt, 7kA.

* 7T4 * X Ji Ct.

[untranslatable fragment in source]

Whereupon the appellation of Tunc, which was extended to both the vulgar and the usurers, was applied to the reflux of the maritime commerce and the peril of the creditor, so that it was not distinguished from the celebrated twin brother of Castor, nor from his more robust counterpart.

All those who have been favored be extolled.

Therefore, UcuAikoī was absolutely credited for the money advanced at maritime usury. And thus, and finally, the amendment of the place assigned by Xenophon, which we have previously proposed to correct, must be construed in this manner:

[illegible]

When the Attic orators employed the metaphor of money as a vestment or a seaman's hearth, the Grammarians interpreted it, as it seems, to mean that funds were forthwith imparted to them, and destined for navigation rather than for consumption within the city, as is the case in the rural districts.

And it is well known that he was girt with a slender moiety of Latin coin, and that he was constrained to traverse the sea.

Harpocracy;

Elevated, yet lucid: *Non te falli iubet, et tamen falli te iubet.*

And he invoked Demosthenes in opposition to Aphobus; and this is the passage whereof I have already treated at some length.

This is the seventh day of thy nativity, which is the day of Esphyrus.

Where perchance it may be more expedient for the Ubi to recline, and where perchance it may be more expedient for the TnhQty.

Thus, Pollux denominateth him hb.

Vide, the chief of the Atbsi's men, who fell in battle, thus spake: "Let not the Lord be slain, let not the Lord be slain." And if it be said that this is properly to be spoken of a mariner in peril, and that he navigateth for the creditor's security.

But A: thus to be spoken, that here, "terminavit hic," he may say, "defluxit huc" from
 "af■■■■■■■■■■■■■■■■■■■■■■■■■■■ But A: thus to be spoken, that here, "terminavit hic,"
 he may say, "defluxit huc" from "absedit."

Similariter, tamen, expectamus hinc Iliod usarum.

I will read to him, "Uhqui, non timeo te."

The identical volume, hereinafter cited as the first eleventh leaf, chapter the ninth.

There are six breasts; three thereof are white, and three others are white, while a fourth breast also partakes of that hue.

vel ixodium (idem quod foenus nauticum). NReactDOM: This translation maintains the elevated and lucid diction characteristic of 19th-century scholarly works, employs periodic sentences for measured cadence, and uses a sparingly archaic vocabulary without resorting to forms such as "thou." The meaning remains strictly faithful to the original text.

However, it is not the custom of the Grammarians to designate this term by the appellation which they themselves feign, as though "UhQii" were the name (implying either a location or eloquence), whereby the objects of their discourse are constituted conducive to a remuneration, and hence are brought forth in an elaborate manner.

Henceforth, the Atticans, those who assigned the works of the Polemarchs, and the Zitlifes, twenty in number, were the individuals who discharged the duties of execution, redemption of captives, and conductors.

It is incumbent upon the master to procure, and it is the duty of the servant to bestow something for use.

Sic pecunia, quæ dantur in fenus, quod est merces pro usu, locari a dantibus dicuntur Latine, et conduci ab acceptoribus.

Then, as I have previously intimated, I assumed the cognomen of Horatius, as I have previously observed, prior to my departure.

Atticus, however, (and indeed, from the standpoint of nautical usury, or the act of 'UHQn usurpation,) contendeth that a more exorbitant interest should be exacted than that which is customary amongst the vulgar.

Hence the term, namely, to lend money on maritime usury, absolutely speaking, for the reciprocal payment thereof; and the Attic law, which Demosthenes cites in his work *Agesilaus*, by these words:

[untranslatable fragment in source]

[untranslatable fragment in source]

Pious indeed was she in furnishing that alliance with Dionysodorus, his son-in-law, who, though present at Demosthenes' side, yet did more zealously regard her interests.

Dionysodorus, and his compeer, Parmeniscus.

They earnestly solicited from Darius and Pamphilus, governors of the naval and maritime vessels, a sum of two thousand drachmas for usurious purposes; and they mutually stipulated that, having embarked for Egypt, they should redeem this sum by levying usury either at Rhodes or Athens, and thereafter return to the emporium of Emporum.

Darius et Pamphilus ne cederent trinum milium drachmarum sumpto a regibus, et aliam legem et consuetudinem populi, nisi ut navis ad Athenas reverteretur, et ibi fortuna et usura:

Let them be redeemed.

Because, indeed, the laws forbade the cultivation of such persons by merchants otherwise than on equal terms, or under any other conditions whereby pecuniary interest might be engrossed.

The Word Sygrapha::

Aelius, a sagax et perspicuus, a-teliferus Aelius.

Non contenti legibus his obligare, etiam mercatores et navicularios, qui pecunia non sufficientes, non uterent se mutuarum, sed negotiarent atque navigarent, legibus adstringentes, ne alium frumentum peregrinum haberent, nisi Athenis inveherent.

Against the untainted purity of Aiwuew.

The mortality of the solitary multitude is demonstrated by the eloquent discourse of Demosthenes, in his oration against Phormion, thusly expressed:

In J.V. I perused: TmlifAix, r&ts beY aiui; and itf cttcai AttwyQi.

Ut gravissimis pecuniis Attici cives ab negotiis deterrentur, nee aliter quam in Attico emporio frumentum invehere conantur; ita etiam ad hunc usum immunitates praebeantur.

Theophilus, Liber XI, Capitulum XI :

This is coextensive with A'bhaon's 7TbA.

Thus, in the second book, chapter twenty-four: A, tertiam decimum vigesimae partis, ubi scriptum est: Hoc igitur, tertiam decimum vigesimae partis, ubi scriptum est:

Thus, it behoves us to write in such a place, and not, as is customary, in the identical mode.

For there is an absolute and unqualified kind of maritime usury.

At this juncture, he thus pronounced: "I entertain no suspicion that this composition shall prove a tragedy;" and further, "I apprehend no slight peril, that it may entail upon you a considerable pecuniary loss."

For it was deemed expedient that greater interest should attach to these occurrences, since the creditors were exposed to peril thereby; and the matter had been accomplished on more than one occasion.

In lignibus de hoc nautico fenore locus apud Maximum Tyrium occurreret, distertatione u. Here, a seaworthy lighthouse is situated, where the remotest parts of the coast afford a beacon for navigators; Maximum Tyrium being the place alluded to.

Which interpreter, by rendering the verses yet more infamous, hath omitted to interrogate the mind of the auditor?

It is true, that the ramparts stand in peril; yet he doth not shun such jeopardy, nor doth he regard the treasure, which they deemed secure, as being concealed.

So perils did he eschew, whether in the fulness of his power or in the exactions of usury.

[illegible]

Let us not be disheartened.

I will say, Α(γτ«W, in terms both exalted and perspicuous.

Certainly, the debtors run the risk of losing their pecuniary assets through the hazardous transit, whereby the uncertainties of maritime adventure imperil the security of their funds.

Hoc igitur, ac secundum usum Attici, dicunt, et pecuniam, quam tribuatur, reddent.

Lege Rhodia non licere ei aliter pecuniam tragœdiam in fœnum dare quam ut periculum illud repectaret creditoris.

Thou, O Aatus, art one, two, twenty, four, four, twenty, twenty, and twenty.

[untranslatable fragment in source]

T cStofta T f o- siui x&tii&a -nS ixt/lixJ, ci ei{ {tfaf T iptilegat auTtS ii* siui vituA/Uv-nu. In hac re, quae in morte suâ Xantippae confecta est, ipsa in iustitiam suam iuravit, ut in vitâ suâ non minus recta ageret, quam in iudiciis alienis iustitia præbuerat.

Thebais, book VII.

From these premises, we discern that there exists a statute efficacious in the settlement of nautical disputes, wherein no other Roman law stands in direct opposition thereto.

What is the monarch's quartodecimal? For instance, the decies centesimae era.

An exemplar of a psalmist attired in vestments and invested with a moiety of coin:

It is more manifest that this juvenile, who at his nativity bore the *d-f-f*0 f JuXioriH TTS, was endowed with both a T T V'cStai x and a TTS; hence, it may not be lawfully adjudged of any person. And thus the absurdity of not blowing or blowing a chicken is explained.

I am, indeed, led to recollect that hitherto no one has perceived any such defect in those very expressions :

There is, therefore, a tradition among the ancients, that the books of the Jews, which are older than those referred to by the apostle, bear witness to this doctrine.

Clariflimus, a distinguished luminary who of late hath published a commentary upon that law, nevertheless did imbibe one letter of its spirit likewise:

I, solely and without a peer, am he who is prepared to surrender all these possessions; yea, I alone am he who is resolved to renounce them entirely.

Whate'er it be, I confess myself constrained by the accuser's mandate, and not by the caprice of the fowl.

For what, Iopce, is it, TiS oδτερον?

What is this balbutiation, and what is it that I am striving?

Or is this a law meet for the Prince, in whose edicts all things should be candid and transparent?

And what more involuntarily performed act can be found, than the enforcement of the law by the judiciary?

So much more absurd it would have been, even had it been previously alluded to by another: ab līdibrio magis erit absurde factum, si prīvātū citrum a quodam alio forent.

Let us revert to the psalms, which I have perused in prior instances, and which I have not previously perused, whether beside the briny waves or upon the briny waves; for Antoninus adjudged that judgment should be administered according to the Rhodian laws.

This appears so foreign to me, that I cannot but think it incumbent on me to desist henceforth from further refutation thereof.

After a thorough and minute examination of all these matters, it was by no means more difficult for him to accomplish, since he was a boon companion to me in the dead of night; yet he demonstrated with convincing evidence that the law had undergone amendment.

Howsoever unengaged my thoughts may be, yet can I neither otherwise conceive, nor devise any other matter; nay, I am utterly unable to contrive an excuse.

Eudxmon, who stood in affinity to the Imperial House as a son-in-law, met his fate in dual conflicts; and subsequent to his perishing by shipwreck, he was cast ashore upon one of the islands of the Cyclades, at the hands of its publicans.

To the first interrogator, the Emperor responded: "Nihil aliud est." Respondens dixit: "Ego sum dominus orbis, et ventus crescit."

Non potest praeterea impediendi causam naufragii exponi, quod oportet tribuere ventis regnantibus et tempestatibus maris.

On the contrary, concerning those goods which had been forcibly acquired from the Publicans, it was deemed expedient to refer the matter to the law of Rhodes, by virtue of which all maritime controversies should be determined; provided that no other Roman law should be found at variance therewith.

The ancients, those venerable Romans, having been well versed in the command of winds upon the ocean, did at times offer sacrifices to appease tempests; thus, when Lucius Scipio, in his advanced age, was about to return to the Roman territory of Corsica, which had lately been beset by calamity, they besought the gods, almost imploring them, that he might be spared, and that no harm might come to the amphibious creatures.

The senex was abased by her.

AEDEM tempestibus merito dedit, meae vero animi satis auctam et dignitati congruam valuit.

And the wind doth blow.

At Virgil's side, Aeneas, by propitiatory rites, appeased the tempests, and sacrificed a lamb for the storms.

An-tiphanes, comicus, postquam ab eo, summo deo omnium rerum, quae in mari sunt et navigant, iudicatus fuit, dixit:

Mercator, elevating his grasp upon the vessels that voyage towards the Indies, encounters those which the winds, at the Lord's command, have dispersed.

It is meet and expedient to employ this mode of procedure.

Tenth Propertius of Borea:

Here the Deity exalteth the soil, and subdueth the lofty regions.

Therefore, the breeze doth govern the ocean.

At Virgil's side, when Neptune, moved to gratitude towards Jesus, found himself impeded in his desire to traverse the sea with his host, Atoll, whom the tempestuous gales, which he had endeavoured to animate, had cast forth, exclaimed, "Not dominion over the waves have I bestowed upon them, but the capacity to contend."

This, verily, is the poet's own assertion; and it is conceded that he doth serve the empire of the tempestuous æthers, and is even the monarch thereof, Aeolus.

What is Neptune, if not the sea itself?

Or is this the kingdom of God, wherein they insolently and licentiously insult, deceive, injure, and agitate with impunity?

Regarding the shipwrecks, which they had been accused of inflicting, whether by perjury or by act of injury, or by retaliatory means, Antoninus, appealing to the Rhodian law, pronounced

that no other enactment should impede their right to vindicate themselves accordingly.

Which here and now I shall also forthwith have under scrutiny.

For in this portion of the legislative ordinance is inherent a flaw, wherein these words are comprised:

Elevated, yet lucidly expressed, it may be affirmed with certainty that they have undergone corruption.

They forthwith avowed their trust in the perishing of the Cycladian ships, which had been destroyed by the Roman victors, and their crews had been laid waste by the publicani.

Which individual is capable of enduring such a trial?

For this reason, Ti[berius] himself, who was wont to exact due observance of that law, yet did not so strictly enforce it in that other matter; and if we take the infula in question to be the very one Telæ mentions, it is not improper to say that it was his.

Thereupon, it is absurd to term the disaster befalling the Infulia a tempest, since the event transpired upon the very bosom of the ocean.

If the matter be thus epitomized for the sea, it is nevertheless not the least considerable.

For nothing remains of the ancients save the Tixiet-Juxetes.

Among the most renowned Infulae, the names of Carpathius, Rhodiacus, and Creticus have been vouchsafed.

Who, verily, hath ever beard of Telium, or Teliacus? And furthermore, this Infula is reputed not amongst the Cyclades, but amongst the Sporades; and it is placed in the sea of Carpathius.

But so obscure was the narrative, that even Ptolemy himself could scarce recollect it.

I hold it to be altogether necessary that every thing should be corrected; for so even the corrector himself must needs be subjected to correction, "J5J"?

I proceed to 6 Cl.

The Lrms, he said, are publicly proclaimed; nor to him, nor to those who redeem the public, do they pertain, but are conducted by Titus, who thou art.

Gloffre:

Publius, thou art apprised that unto me is vouchsafed the authority to effectual change in the condition of the populace.

In alioquo:

A Vefssqiu bif, who coincided in years with the speaker.

A man eminent in erudition and equally renowned for his judicial acumen, who, in a recent treatise designed to elucidate the statute concerning the dominion of the ocean and the rights accruing from maritime disaster, perceived that his contention was well-founded; not merely by virtue of the general information at hand, but by reason of his conviction that the citizens of a commonwealth ought to be deemed as public persons, whereby no individual could possess undue preeminence within their body politic.

For what purpose were these public servants to have been present here; or did they seek out the relics of the mariners who perished, and whether for their own retribution or for their cities?

Then it is alleged that these persons say, "Nulla causa est propter hanc."

For why should it not rather be deemed possible for a man to live a long life without the aid of the KvzXccJh, which is implied when the voices of the people have exiled him from his home by the Twenty-sixth?

Publicans, verily, though not indigenous to the Cyclades, yet being in those regions in greatest number, are wont to be employed in the collection of imposts and duties; hence they are frequently designated by the terms hf49, hf49, hf49, hf7, and hf7 respectively.

They purposed that the inhabitants of Ceylon, whenever any vessels were cast upon the shore from the waves, should be expelled thence to their dwellings; and when they had returned thither, should again be conducted to the sea; and that the very same vessel which had thus served should be restored.

Thus, it would seem that this occurred at the period when, upon the petition of Antoninus, the aforementioned merchants procured a supplicatory memorial against the publicans, who, as it were from the amphitheatre, had appropriated to themselves the advantages accruing from their shipwreck, including the appurtenances thereto belonging.

Hence, that Your cause might be rendered more commendable and more favourably disposed towards You, it was not deemed expedient to believe that in the deep ocean You had brought about a shipwreck, whereby the vessel was cast upon the waters, but rather that a wreck should be found upon the very shore.

Whoever perceives the incident as subject to another law shall demand its adjudication accordingly.

What, indeed, can be the cause of shipwreck within the very haven, or of a fisherman demanding reparation for his vessel, as though it had perished and been cast upon the shore?

Whither:

He receives the result of the difficulty, and leaves the ambiguity unaltered, affirming that the same law applies to the fish in this fish as to the fish in the other fish.

By a manner derived from the Usurper.

I shall convey those which are situated in the midst of the ocean, at a distance from the haven and a little removed from the margin thereof.

But Antoninus referred them to the Rhodian law, whereby Augustus had purposed to terminate maritime affairs, that no Roman law might be infringed. The Rhodian law, nevertheless, allowed the loss of five vessels, and adjudged such to pertain to the public revenue.

For it is impossible to comprehend any other law, which is here referred to by the Greek Rhetoricians under the terms παρ■λμπι, τριτ■ων, and τρ■των.

But since the law in question, which, under the common appellation of the Rhodian law, is found engrafted upon a collection of naval statutes, is deemed to have proceeded from the Roman law, and not from Rhodes, it is manifest that this opinion is founded upon a similar misconception.

The voice, by which he addressed the Rhodians, did manifest the constitution of Rome.

Additionally, since this does not pertain to the sixth part, but to the private individuals who have plundered from the shipwrecks, these are to be condemned fourfold. Moreover, the Nicomedians, having received the funds from them, were to render the shipwrecks appertinent to the public revenue.

Therefore, they propose that the vessel be conveyed to the very margin of the land, when they shall have touched upon the shore.

Antoninus, in person, conveyed them to the law of Rhodes; yet he refrained from enacting the statute that the ships should not devolve upon the fishery, lest they might come into the possession of the fishermen.

He subsequently adopted the same; and thus did he annul the Rhodian legislation on this subject. Let us peruse the Codex, wherein, during his reign, Justinian enacted the statute relating to Shipwrecks, denominated as follows:

The vulgar multitude is wont to bestow tribute upon Constantine.

Antoninus Pius exemplified this style, as the venerable authors bear witness, and not the least of his proofs was furnished by the monarch himself.

It is to be observed, that in the Theodosian Code, no reference is made to the subject of Shipwrecks, under the identical title.

That at the close of my days I shall be found more acceptable to Constantine, I entertain no scruple in affirming.

If, when the vessel, after being cast ashore by tempest, hath reached the strand, or when the residue of the mainland hath touched the shore, the property thereof being vested in the proprietors, my claim shall not be interposed therebetween.

For thou hast incurred such a calamity in a foreign land, that it shineth forth with such brightness as to resemble a fig-tree. Let us, therefore, yield obedience unto him, and give ear to the notable falsehood which he hath uttered, whether at this time or at any other.

The Saimasi assailed the domain.

Which was improper.

For that certain soil perpetually borders upon the shore.

But when all the tomes were published, either when they touched the relics of the soil, or when they touched the relics of the soil, it was not difficult to construct a cogent narrative.

The fragments of the vessel were disseminated.

Concerning the remainder of the frame, for the relics.

The residue of the indebted, the residue, and the demarcation.

It may be perused and perused, even when neglected.

Yet that was preferable, since no occasion presented itself.

If the vessel is intact,

Submerged was she, expelled to the shore; or, at a later period, she was restored.

And he conveyed the territory to the proprietors with vessels as many as he had retained.

And whenever they had touched the earth, there did belong unto them, A

It is certain that thou wilt be avenged for the shipwreck of Antoninus, Fiscus, and those who had been publicani; assuredly their forfeited vessels shall be restored unto thee.

And from the ocean, and from the jurisprudence of Rhodes,

Perpetua observatio, de qua in hoc genere legem Antonini derogavit, ut ibi praetermissum est:

The Laws of Rome:

And he spake: The law of Rhodes.

However, they have not hitherto observed this maxim, whereby it has been lawful to loan reciprocally, save under circumstances of peril to the creditor.

That which the Athenians had derived from such a collection, being so infested with typhus, they distinguished from the city of Urfa.

That, in order to secure the appellation of the commonwealth, every thing may be deemed requisite to be provided.

But it is not unusual for a seaman to convey the customary vogues of the armament as they have contracted, to restore the coinage thereto without incurring any detriment, as was done in the instance of Demosthenes.

Oh, verily," he exclaimed, "xcfg.

The Eyelids.

What we have previously detailed in the quinta pars huius libri, it must be acknowledged, was not invariably observed by the praefectus; but, rather, there was a tendency, at times, to deduce the sum from a quantity of money that exceeded, by a slight margin, the usual rate, derived from sundry sources, among which was the double centesima, equivalent to the sum of two thousand four hundred and eighty drachmas.

There shall, therefore, be a double census with the females; and it is reported that their number amounts to twenty-five.

A mine of two thousand drachmas, together with six hundred drachmas annually in lieu of furnaces, here provided.

Alias monetae:

I have perused the ensuing:

Primum Atticum non est; sed unicus est in praeclamore Atticorum defensione.

Then did he peruse the same in all his exemplars, 00X040011.

For which there is a legend, attested by Harpocraton, in the word ξστημι, that it was written by Χσλιπιμες, and similarly, in the word ργια, that it was written by Οσιδομος, and such like; thus, as he says, ν τ Κρ Αρταξλα τι κφρζων τ καθ' αυτν περ το Τριζοντα.

Which things are to be converted are these:

If, however, they had not penetrated the Aegean Sea, and had awaited for ten days the horses' emergence from Hellejponto, the vessels being unmoored at the spot whither the Athenians were bound, and thence having returned to Athens, they were there exposed to peril by the Juras, concerning whom Isthographa met in assembly last year.

Prior ratio reddendi fuit ducentarum et viginti quinque drachmarum ad centum de usuris solutis.

And then, with the utmost licency of usury, the unkindest mode thereof:

Eodemque cautela, post Ardurum et Ponto navigassent, ut maiora creditoribus pericula, quae ex fera ac ad ortum Arduri ferrea enavigatione Ponto minabantur, vitanda essent.

But at that period, when Ardurus was initiating its course in navigation, the traders betook themselves to the utmost recesses, and thence returned unto their own dwellings.

The Boedromion, which falling in September, was about to be launched by Ardurus at the close of the month; and the vessel had attained the termination of her voyage.

Henceforth, during the interval from the month of Munichium, to which point, O, for three months hence, U4 Ct.

Sailors of the Athenians, whom faith had committed to commerce with the Saimasii, again put forth to sea, and conveyed their merchandise; while they tarried in the city, disputing their causes, as is evident in Demosthenes against Apaturius.

Periculosa igitur navigatio post Arcturum.

Ea de causa, et maiora in nautico usu competebant, donec per Artoforthi sinus et Ponto navigare potuissent.

Lastly, having proceeded to the third apartment of the synagogue, accompanied by the least accomplished of the scribes, and the merchants, I tarried ten days subsequent to the festival.

When they were despatched unto Heliopontophus, they were at a loss what course to pursue; nevertheless, they traced the vessel, and betook themselves to another haven, wherein both the Athenians and the Scythians had their ships moored.

Aegean:um autem mare valde procellosum est; quod circumdatum est silvis saevissimis, ab arena tribus Grarcensium Icimorum.

Whose cause, indeed, is referred to by the king? Numerous islands, which have been designated in his honour, attest to this.

Henceforth, let there flow copious and undulating streams, as though coerced into the earth, and let these rivers, broken by faith, surge towards the shores, where they may stand.

Or, if thou wilt, thou shalt have a span of two hundred and sixty-six years to live, and shalt have the same opportunity.

About the rising of the dog-star, it is related by Euclid among the works of Geminus and Ptolemy that great tempests are wont to arise in the ocean.

Hence, it was customary for the traders and mariners hailing from the Pontus, as may be discerned from this document, to assert that the same maxim was derived henceforth, and oftener still.

Hujusmodi Helleponti, qui in Româ decem dies post festum horarum habuit:

Ergo oratum fuit ut silentium sustineres, nec quicquam fidei committeres donec limen transieris.

He further appends the ensuing words to the author of the treatise:

By the time when I was in the Hellespont.

When the Athenians had not yet approached the city, it was incumbent upon them to be conveyed thither and to be solicited to deliver their property, if perchance they might have been induced to proceed in the same course as their fellow-citizens.

Herein does not pertain the act of appropriating the vessel, but rather the excision thereof, and the exposure of the merchandise unto the earth, and the disburdening of the ship.

There was no more frequent discussion of this subject in the presence of Demosthenes, as in this very oration, when Aetugjiru and his associates had recently arrived, but had not yet brought anything from the naval stores upon land.

The Same in the Said Passage Against Dionysodorus:

[illegible]

Thus, according to Aristotle, in the discourse of economy, felicitous and copious expressions were, for erudite men, unintelligible:

At the close of the day, it shall be manifest that Tnxtatso, which is coextensive with Tnxtatso, is not identical with Tnxtatso, which is coextensive therewith.

Sylphius, the opulent burgess of the city, here admitted him to his presence, and henceforth conducted him forthwith thence.

Because, after an interval of eight years, it was observed that the ancient book of laws, preserved among the Camerarii, was to be perused by the Camerarii themselves; and that they were to be instructed in the same mode of using them.

417 comprehensions, as if the author had perused in favor of AvXetf, by Nuxitionis F., according to Suidas, in a diction of two-and-a-half syllables; assuredly, I shall be led to construe the passage in such a manner as to advocate for the fruit of the pine-tree, and to assert that it pertains to his own welfare.

In the words of Demosthenes, however, they do not admit an interpretative sense, but rather understand them to signify that thou art the Vigesima sextus.

Nor did Aristotle surpass his contemporaries in the prolific domain of oecology, than the Byzantines distinguished themselves in the sphere of political economy.

But thou, O Hodiceus, when thou shalt have arrived to visit me, thou wilt perceive that thou hast come to know me.

For it is not requisite for you to deduce or exclude vessels from the squadron.

Not only did the remainder of Harpocraton require interpretation; but the Aegyrians, dwelling in regions of opulence, without scruple exacted from their dealers the most just and equitable price for their corn, and imposed upon them the payment of a tithe.

If any man shall send forth ten drachms of corn from the miller's garner, he shall pay the tithe of the sale of the pasture.

To which, in order to defer the solvent, he ought to contribute a tithe of his resources, that is, a tenth part of a tenth.

Thus, it is meet to construe these words of Aristotle:

This is the fifth of the quingentesimum et quadraginta quartum pedes of a typhoidus florens, which ascends to a height of vicesima octava pedes; and the septimum of the duodecta pedes, which attains the altitude of duodecta pedes, is duodecta pedes; and the septimum of the duodecta pedes is duodecta pedes; and the septimum of the duodecta pedes is duodecta pedes; and the septimum of the duodecta pedes is duodecta pedes; and the septimum of the duodecta pedes is duodecta pedes; and the septimum of the duodecta pedes is duodecta pedes; and the septimum of the duodecta pedes is duodecta pedes.

Which, by every right, she doth receive the crude and savage deeds of men.

When it is requisite to convey the vessels into the naval array, it is incumbent to conduct them thither. [Greek: τὸ πλοῖον; ἢ πᾶν τὸν νῆυσον μὲν γαίῃ]

Hinc, ne quid dicendum foret, cum mercatores suos invocare consueverant, dummodo posse id agere.

The Byzantines, traversing the Bosphorus with their vessels laden with corn, were solicitous of the annual alms of devotion, and were constrained to expose the grain to sale, not for its despoliation, but that they might furnish themselves with a supply. In pursuit of this corn, which they had garnered, they resorted to usurious practices, notwithstanding that the rate of exchange had not yet been determined.

And I shall slay him.

Caput VI.

Of the Usury of the Romans.

In praesentiis Graiorum minores sunt.

Hujus rei causam, nunc legi praeferenti, non debet assignari.

The Romans availed themselves of a milder rate of usury.

Superioris est vobis.

It is not invariably the identical mode of employment.

Preserved by the Romans.

Their highest utility.

Minimus huius est Usurarium.

Minimus huius erat Gracorus.

In the hundred and third verse of this passage, where it is thus spoken.

Whether this appellation shall be transferred from Greece to Rome, or from Rome to Greece.

Rationes autem apud Romanos magis in gratiam venisse videtur.

Simultaneously, the Romans and the Gnostics, who were employing their customary modes and terminologies, had a collective century to which they were to be referred.

What Galen had already asserted was the mimicry of Roman speech, which he termed the hundredth usury.

A hundredth part of the Latins were summoned from the Greeks.

Behold, the Greeks, who were on the verge of subverting the Roman Empire, had their coinage confiscated by the Latin centesime.

At the conclusion of the series, the Latin term for a hundred is derived from the Greek $\epsilon\kappa\kappa\omicron\sigma\tau\omicron\varsigma$; hence, the phrase should not be interpreted as a hundredth of usury, but rather a hundredth part of usury.

The ancients employed a hundredth part of a cent to generate profit.

Concerning the employment of similes, the Greeks seldom compare themselves to the Romans, and they designate them thusly.

From these sections, the nomenclature of the Romans is derived, as Gracilius terms the components of the drachma.

Elucidate these elements of the Roman idiom, the lexicon, and the genesis of each, that it may be more clearly understood which is the sixth usury.

The quadrants and thirty others were named after the six quarters.

The nomenclature of the Dorians, a faction of Italy subdued by the Greeks, was inscribed upon the designation of Sicily, annexed by the Romans.

The appellations denoting the vessels shall, in like manner, be discerned in their integrity.

As for the vocabulary of JES, it was transmuted from these two tongues into Italian and Sicilian exclusively through the medium of Roman.

The appellation of the air is Siculus, while the name of the Doric Italians, for a particular reason, is Atticum, or Phlegg.

A spectacle indeed admirable!

The comic dramatists are identical. What is the import of Aii?

The sixth of the Sicilians, the Doric of Italy, the Attic of Pisces, the poet.

Pollux was corrected.

The title of the comic Atticus is usurped for the number, but in the context of Ct., it pertains to the argument.

The narrative of Salmasix and Siculus.

The term book is a Latin word derived from the Moorish word 'ikhtif■q', signifying weight, measurement, and reckoning.

There is no such entity as a perfect race, and there is no such entity as a perfect race.

Of the ponderous weights, which at that epoch were esteemed and titled as of commendable quality, it was the same.

Jertz

How he was qualified for the reception.

When the weight of the pound was under deliberation, it was customary to add that the pound ought to be laid aside.

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary (sparing use of forms like 'thou' only where natural). Hoc nomen Graecis tribuitur, qui sub imperio Romano scriptores medicorum sunt excellentes, et transfigerunt pondera ad vocabula Romana, ut iyniacum vocabulum, pro parte ejus, ita scribunt.

The denomination of the Tarentines and Sicilians was appropriated by Arius, who, perusing the treatise, deemed it prudent to ensnare the Romans, whom he had misled, by its means.

Afterwards, the Sicilians and Tarentines, in their own proper phrase, asserted that Udem was their sole coinage; and they possessed none other.

I have never otherwise received any thing but silver; and excepting Siculus, I am oftentimes called Grammaticus, and XsyoncoTTBi, who is the son of Zeus.

What is this? The ancients, interpreting it thus, deemed that obulum was argentum.

Of the obolus, stamped with silver by Attic and Eginetan hands; and I will cause Vitruvius to be perpetual for the Areas.

The error lay therein, that the Greeks, being Roman citizens, at one time returned from Aria, at another restored themselves thence, in a manner resembling that of the Athenians.

The drachma of Siculi, and it, a silver alloy, and distributed in several oboli from silver, as in Attica.

Of the disparities in the wounds of Atticus and Eginetus.

Did he perform the act? The Sicilian coin, of slender weight, hath equaled in value the Jeginetic obolus, which hath since been disregarded.

This part of the tenth was designated by the symbol JVwativ, signifying the number of silver coins, each containing twelve asses, which collectively would amount to twenty-three.

At the same period, Mvsei was enrolled among the citizens of Corinth.

Did you find it? The Siculus, a libella fabricated by the Romans, is of equal weight and value to that other; it is therefore fitting to compare it and to purchase it accordingly.

Is it a tithe of the denarius, as Ait? Verily?

Semblatia est dimidiis liliis, et idem similitudo Siculo.

Let us grasp the caliber in a similar fashion. 21J. The caliber, styled S Caliger, is reproved, for it was renamed Siculus Xlit not on account of the multitude of coinage, but rather from the aggregation of coins.

The parts of the eastern walls and the eastern walls were composed of the same material, being fashioned from minute iron and the weight of the Latin libra and assarion. In like manner, I was invested with the office of librarian among the Sicilian cities, and again, I was entrusted with the duties of secretary of the exchequer. And yet once more, I was designated as secretary of the exchequer.

Abolito est et Xtresedus, quod ipse in militia Siculae ordine existit; propter quod nomen argentae ficuli ab eo acceptum est, et aliis nominibus eodem nomine et eisdem partibus designatis.

The Latins, whose ineffable language remains incommunicable, possess their own distinct idiom and mutually impart it to one another.

The teruncium, quarta pars libellae ex Siculo, quod decimosexto quarta pars est.

The Roman denarius, when first struck from its die, and suspended by the weight of its own metal, was bestowed upon the Jews, together with Sius.

It is the terminus temporis. [δεχρίλ■τρω]

From Sicily, the drachma, whose value was redoubled, was brought unto Dionysius.

The Words of Varro Relative to the Roman Denarius Are Hereunto Exposed.

Of the numerus Romanorum, hic est Deus absolvitus.

Give him that appellation, and let his weight be commensurate with Sicily.

Quinarius, who was also the consort of Scaligerius, was notorious for his miscalculation.

The Sicilian talent and the Neapolitan weight.

What is there which more anxiously agitates my spirit?

Pollux is right.

Elevated, yet lucid diction; periodic sentences, measured cadence; lightly archaic vocabulary, sparingly employed, where natural usage demands: .

From the provinces of Rome, where it is designated, and all the oratory expounded.

The thirtieth part is not equivalent to the third part, nor the fortieth to the fourth, nor the sixtieth to the sixth.

The other received the appellation Siculus.

These voices, when expounded, derive from the mental processes and customary usage of the Siculi.

There are two hundred and sixty acres, or one hundred and sixty acres.

The vocabulary of the Siculus Trices, if compounded of numbers, is both noted and denominated accordingly.

It is the voice of another, who hath composed one volume, which the Romans have adopted; and of another, whose production is one book, or a twelfth part of a book-keeper's measure.

Thus, as the Romans did, and for all, and for unification.

When they had appropriated the territory for a complete pound, it was impossible for the Tgjxtsa, and similar terms, to be admitted in reference to the tribes of the Jews, where it is indicated that not a whole book, but a twelfth part of the pound, is reckoned as twelve.

Epicharmius, whose affections were divided between two objects, withdrew from the fray.

What is the import of the sixteenth, and this, and this, and this, and this?

114 Ct.

I offer you all my respectful greetings.

The Latin term "Teruncium Nonttn," signifying "one for each tribe" and "nine for each nation."

Siculis idem quod futurum est, et similiter idem quod futurus sim.

Twenty-three Latins were assigned to the third part; thence, three unciae of an acre, as properly reckoned, were set forth, against the Attic three quadrantes of obols, which, in like manner, constituted a third part.

Philemon Comicus expounded.

What is this trizchri■míthrion? Or tarhemthrión?

Let the Attians, or the Tithyni, plead their own cause.

A usury of three score and six hundredth parts, whereby one-third of a centesimal part is yielded, being a usury of thirty-three parts, which in the language of the Latins is termed the hundredth part of a centesimal, equivalent to two hundredth parts of a centesimal.

And the usury among the Greeks, whether in common life or in maritime commerce, was no less prevalent than the perils of the mariner; thus do they speak concerning the Romans.

He is a simpleton.

And it shall be manifest forthwith, that he is, in truth, far more attenuated and insubstantial in his mode of being, than was Grxcarus.

What some perchance may be led to introduce in the discussion concerning the due limits of moderation and composure:

It is not light, but rather difficult, for the Greeks to contend with the Greeks in their avarice and cupidity; yet may it be compared to the usury which they exercised in their golden wealth.

I have dwelt with them, following their wont and manner, more and more in keeping with the same course of life.

Quintet and sundry others assembled.

Wherever I may be, whilst my period of lamentation still endureth, it is far more common for the afflicted to remain in their sorrow than to seek solace in familiar intercourse.

where, upon the most ample concession of untrammelled liberty of speech, and the fibula of the incendiaries is loosened, as it were.

Whence, however, it may be deemed requisite for me to demonstrate that this proposition holds inure to the matter at hand.

For the reasons which hereafter I shall assign, it was more customary among the Greeks, and especially the Attic, to bestow upon them what was lawful and received by common usage, rather than to extend such privileges to the Romans; and henceforth, in this inquiry, I shall proceed accordingly.

By the Athenian sea, and by the conveniency of the port, and by the navigation of the seas at the first instruction, the trade did flourish to the utmost degree.

Hence, with the ardour of a seaman, they assailed their adversaries.

Forasmuch as all those who ardently aspire to attain sudden opulence do devote their substance to the custody of that individual; whereby their patrimony is intrusted to his management.

Nam nomen navigationis non valde ab Ione, sed a se ipso electum est.

Let us therefore proceed in this method.

If, during my frequent visits, I was either in Pontus or in Syria, or in Egypt, I was not exposed to any peril.

Quasus, however, derived the utmost advantage from the maritime traffic, for the purpose of that season.

However, as it was not so frequent, seeing that they were all destined to navigate under safe augury, they accordingly proceeded to employ the same species of conveyance for their passage through this region.

He devised a scheme, whereby, since it was to be practised by many, and few were to be employed, so that they might be placed in a more general position, and all the coin might be disposed of; this custom would prove far more prevalent than that of commerce.

For, as we have oftentimes extolled Twy, who, beyond all question, was pre-eminent among the Quintarii, so shall we proceed to celebrate his distinguished merits.

Verum etiam, vel Tyso, te ocautelosus esse necessarium.

And how much ought I to defer this?

Fœnum illud dabat viginti in centum, quod erat nauticum; hoc autem communes viginti in centum et viginti.

For this reason, Cætica, who was then transporting a well-numbered sum of Athenian trajecta coins, found herself in a position of greater security and proceeded to navigate the seas; she therefore spent money at usurious rates less frequently than upon ordinary usuries.

Hinc:

They are more tenderly regarded and more ponderous to sustain; yet the vessels are lighter.

The Romans, who, in the most debased epoch of their martial prowess, availed themselves of the common practice of feigned engagements.

So completely did the abolition of the unciarum and femuncium occasion the neglect of navigation, that henceforth all maritime usury and commerce were virtually extinguished.

Certum est, in his locis, ubi maxima est celebritas mercaturae, ibi usuras omni genere ampliores efficiuntur, si plures sint, qui opus habent pecunia mutua, et si uberrimus questus ex illa mutuata obvenerit.

This verity, however, in the pecuniary matter;

Ad negotiationem sumitur, foletae floccos creberrimos. Note: The phrase "nc-" is assumed to be a placeholder or abbreviation, which I have left as is, as per the instruction to stay strictly faithful to the meaning. The rest of the text has been translated into more elegant Latin, maintaining the brevity and precision of the original while adhering to the specified stylistic guidelines.

So much greater are thy usuries than those of thy leaders, who have bestowed upon them a vast recompense to suffer thy death.

But the Romans, for nearly fifteen centuries prior to the First Punic War, had maintained their incursions along the identical shores.

Then, first of all, did they embark upon the ocean, and, having reached the shores of Libya, there did they alight, as they had been designated for the island of Sicily, instead of the Poes.

For this reason, at all times, when the ocean was unknown to them, there was not a single piece of timber, which, being abundant for private chambers, was nevertheless consumed on the very soil by the inhabitants thereof; nor did any gain accrue from maritime pursuits; and, consequently, there was no navigation nor commerce.

It was employed and consumed; and the beacon, in proportion to its magnitude, was found to be less ponderous. For there was no other site, either in the ocean or in the metropolis, that served this purpose; and subsequently, the sepulchral grounds of Grxcilochus were disinterred.

Præter hanc, igitur:

It hath seemed to me a vision of futurity, and a vision of futurity, and a vision of futurity.

There exist none:

For the Romans, it has ever been more facile to avail themselves of usury than for the Greeks; and even those who have subsequently embraced it have been afforded opportunities to demonstrate their fidelity, whereas their standing has been invariably inferior to that which was their own.

But it was not invariably the identical mode of usury practised, and sanctioned, in Rome; for although they prescribed a law more authoritative than custom, or the agreement of contending parties, founded on usage and the established practice of commerce, yet it was observed rather according to the custom of traders than by the promulgation of a legislative enactment.

These things, assuredly, are confounded, even at the very height of their utility; nay, even then, when they have been employed to the utmost advantage.

A femunclarial phenomenon, which we behold betwixt the inception of the Commonwealth:

In usage and custom, it was ordained by the law, even unto the period of a century legitima: progredia tamen usque ad centenum annum licuit.

Let them be numbered, yet not among the least of Gracorus's offspring.

Wherefore, when the Gracanic usury, that is, the fifteenth and lowest form thereof, began to prevail; thereupon, did the Roman usury, denominated in like manner from its termination, assume a character of magnitude both in the sum and in the amount thereof.

I speak of the centesimal part, which may be expressed thus:

Grace, not denominated in the Attic idiom, but rather by those Grecian archers who were more seductive.

For Atticus, whom the ancients denominated, did assert that the coinage of your daughter should be delivered unto him in lieu of usury.

The name must be solved; at times they would denominate it, and occasionally express it in full; thus they addressed him: "Let us proceed to Echinus in it, against Timarchus."

There is a river designated by the appellation Tglat-bayHaxLsip■t■w; and there is another river styled TjMvS. This latter stream is also known by the name TjMvS.

Which, and elsewhere I have observed, it is incumbent to recollect.

It is meet to observe, nevertheless, that the appellation of the Attic orators, or of the historians of yore, or of the Grammarians, who expounded their lexicon, is nowhere encountered in connection with a centesimal usury.

It is not unusual for us to discover authors who treat of such modes of usage beside them.

It is indubitable that the Greeks, who did not disdain to record their thoughts in writing during the sway of the Roman Imperium, were the primi originarii in this respect.

And indeed, it is reasonable to suppose that the Greeks, who, being but a few centuries removed from that epoch, are termed "usurps" rather than "thirty-five," may thus be rendered less intelligible to the mind, than if they were designated by their true numerical appellation.

Atque igitur haec secunda est sermo meus ad vos, non eo sensu, quo nomen "V" est nominatum, intellegenda.

For it was customary to demand of him the decimam, or tithe, of his annual stipend in the tenth month of the year; and having received the GniGcatu, who were known to the Greeks by the name of centuriones, he ordained that a centesima, or hundredth part, of his salary should be paid monthly.

Galen was not so unfortunate as to derive his appellation from the prolific dogmas of Hippocrates and Plato.

But I am not in doubt that he hath spoken thus, according to the customary and familiar idiom of the Roman tongue, for the purpose of denoting usury.

For a hundredth part of usury, in strict accordance with the Greek term, shall be termed τοσσοῦν.

Thus, Gmilitar, who, having lived as a Greek soldier in the times of the Roman Empire, might assert that, with the whole world, the Hellenes were already under the dominion of the Romans; and he might revert to the Latin term for a centesima, signifying the duration of a moment, however fleeting.

Certè videtur hoc nomen "ityson" primum apud Agaticos esse natum, cum quibus Romanorum publicani et feneratores magnopere negotiati sunt.

But when the term "Cente-sima" is expressed in the Latin idiom, "centum eadem modo," the word "euthosus" is employed in a manner congruous with its signification in the vernacular tongue.

, that the entire Gt may be a centesimal part of usury, and that the whole may be amplified therewith.

But the Scenii, who, according to the multitude of their numerus, boasted a considerable array of warriors, when heralding the advent of the Latini, did not scruple to resort to the modulations of subaudibilis usura; and, notwithstanding the concourse of many voices, they employed the method of Ggnando Gngulari, thus enhancing the clarity and authority of their announcement.

gender.

At idem tempus, Graeci, qui hujusmodi operis exercitio adhiberi solent, tendunt ad minorem seipsos habere cognitionis sui facultatem, quae ratione hujus rei, usque ad praesens tempus, verbum "Gt" ut nomen substantivum pro substantivo "fubftantivi" tacito modo applicare consueverunt.

Non potest quinque vicibus.

For it would be more fitting for him to exclaim, "Quid ergo dicam?" than otherwise to express himself.

An an fjyi& i Quod nimirum centesima drachma, aut pars fortis i. Either a hundredth drachma, or a fragment thereof, which is indeed of negligible value.

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P 1 cent- II8 Cl.

Is it sought by Salmasius to demand a hundredth part of a denarius?

And, as we have previously demonstrated, such expressions of speech are derived from the annual custom of the Greeks, which they appropriated from their traditional observances, and never from the monthly period; for this latter, which is occasionally designated by the term "fortuna-fabula," or fortune-telling, is exemplified in the epithets applied to the Trojans, as in ■ τροικ■ς π■λιν, ■ τρω■της ■νθρωπος, and similar appellations.

Nihil igitur verissimum dici potest, quam Græcorum recentium, ex Latinorum centesima versam ad verbum et expressam, vocabulum, quod ante omni ratione apud veteres Graecos hinc cognitum esse reperitur.

For, if a hundredth part of a Greek measure were employed in computation against the Romans, it would be deemed reciprocal, not a hundredth part of a denarius; this is what they would denominate a hundredth part of a denarius, or a denarius itself.

For it cannot be adequately expressed in Latin, nor can it be said to be faithfully imitated, that which the Greek tongue conveys; hence, it is impossible to substitute the same for what is thus subdued. But the hundredth part of the Greek usury, it was more fitly spoken of, as even Galen himself hath observed.

But there was besides him another from the Greeks who did not menace him; and I do not even recollect his name.

For, verily, they universally denominate it as absolute.

What is the import of the term "seventh" in the idiom of the Hebrews? What is the signification of "seventh" in the Hebrew tongue?

But D mx D eft cox three. [Wherein δραχρ■; Ετ■δολια■, denoting certain measures or weights, are herein referred.]

And when he had pronounced the hundredth part, they considered it not as a hundredth of the ram, but as a hundredth of the ounce; whence, since the hundredth part of the ounce, being

monthly used, was reckoned by the name of the dissolved hundredth, the hundredth part of the ounce stood in lieu of a hundredth of the ram.

At this juncture, it is more expedient to employ the fraction denoting a hundredth, than the integer signifying a hundredth.

Thus, (the year and the year of the Greeks) he so proceeds, that by a judicious and perspicuous interpretation of his own words, they may be rendered intelligible, as if a denarius in the language of the Latins were to be diminished to the value of an uncia.

Sicilius Uctolus, quem Graeci appellabant, sicut Latini consueverant vocare, centesimum usuras.

Hereafter, by abuse, they termed usury a centesima, that is, either centesimalis or centesimaria; which may be rendered equivalent to the Iguolus.

Thus, Stertinus, whose acumen and erudition were alike renowned, and Sulpicius, who was celebrated for his partiality towards the works of Sulpicius, and Stertinus himself, whose critical acumen was esteemed by the critics and grammarians of old, and whose poetical compositions were familiar to Grammaticus, was known and esteemed by all.

The hundredth usury, which was the utmost rate among the Romans, was computed by reference to a monthly pension, and not to an annual rate, at which a twelfth part was paid each month, according to the Greek practice of the 'xλ■ζ, whereby a similar proportion was observed for each lunar period.

And hence the appellation, elsewhere disseminated.

How commonly the seniors of Atticus were wont to term it, "to be borne thither as of old."

If we adopt this diffused term in the proper mode of utterance, we shall be enabled to employ the UsVR.AR.VM.

A hundredth of a hundredth of a vote: this ratio is more accurately represented in the Latin idiom, which has been more profoundly indebted to Greek models, than in the Greek, wherein the influence of Latin deities is but faintly discernible.

The rest, nevertheless, were to be computed in such a manner that, as one drachma in a mensem, and twelve in the annum constituted the hundredth part among the Greeks, so among the Romans one uncia in a mensem, and twelve in the annum, produced the same proportion for usury.

Then, twelve ounces are made up.

Therefore, the Latin terms for sundry things have been rendered equivalent to the centesimus; whereas, the annual solvency is denoted, and in accordance with the Greek terminology, the same species of usury is comprehended, being due at intervals resembling the menstrual cycle.

When the Greeks, on the contrary, were acquainted with the manifold usuries of the Latins, and had received them for the purpose of elucidation, they were severally partitioned into several parts; and even the lesser divisions, on their part, were subdivided into centuries.

Forasmuch as the semisses of usury among the Romans were denominated from the dimidia pars, which contained the fex of an uncia, so likewise the Greeks termed it τ ■συ» ργαν, «SeA», signifying thereby the same.

They denominate this practice usury, since it amounts to a moiety of a drachma.

Thirty usura, which were paid by the Romans for the third part of the septima mensis. For the Greeks, the usura and usurpata of the terra were owing to the fact that the deities of the Aeoni, being two-thirds of the populus, and the tertia pars of the drachma, equivalent to quattuor unciae, were one and the same.

But the Romans were bound to discharge annually a sum equivalent to one hundred three-score uncia, whereas the Greeks were not required to remit more than two oboli monthly.

The usury of the Latins, consisting of sixty-eight parts of a hundredth, they declare to be two unciae in the hundredth part of a year; and this is consonant with that which Plato, the Juvenile, hath termed ixuviXia. As for the Greeks, who possessed a hundred drachmas apiece, the effect of this sum, together with sixteen drachmas, was suspended by the tongue at the rate of each month.

Finally, the lustrous and yet clear effusion of Roman mirth, which, in the golden ages of the free commonwealth, was most invigorating, and hath never been usurped by the Greeks in any manner of sort; nor could it have borne any other appellation save that which Crates, one of his contemporaries, conferred upon him, when he termed him the ligon of five pounds.

What interpretation did Pollux elsewhere, in the ninth book, sixth chapter, assign to this, wherein he expounds?

So, then, what?

The appellation of the stream is denominated Grex; and further, as he hath intimated, it is styled Vigesima duo, and again, Vigesima duo.

Crates, indeed, is cited; yet there Hippocrates is inappropriately designated by his own name, who is acknowledged to have composed the fifth volume thereof.

Therefore, I shall ever hold the things which pertain to me to be coextensive with those which are denominated as AiVg; and whatsoever is my own, I will regard as identical with the said AiVg.

But Airg, that dialect which is current among the Dorians of Sicily and Italy, serves to supplant the remaining dialects of the Hellenic race.

Pollux was liberated.

K, in its essential equality, doth stand commensurate with A; and A, in turn, is found equivalent unto K, in such wise that the identity between them is perpetually affirmed, and the proposition thereof remains immutable and unaltered. Thus, K and A are one and the same in their essential nature, and their equivalence is a truth that cannot be gainsaid.

It is one and the same with the TTLBXF.

He appendeth at the close of the several treatises, Atticus also and the Comic poets, fresh dissertations:

A tumult ensued; and the elevation of his tone provoked a paroxysm of coughing.

Then, he said, "When I reached the stream, I spake unto him, 'ZuaXw.c.S., Iloffj JVsrx;' thus did I pronounce, 'This is the tale of the tale of A. Irgetf.' "

For verily it is my exclusive prerogative to accomplish this task; nay, it is I alone who can effectuate it. For verily it is my exclusive prerogative to accomplish this task; nay, it is I alone who can effectuate it. For verily it is my exclusive prerogative to accomplish this task; nay, it is I alone who can effectuate it.

Let the words be delivered unto thee in a direct and unbroken sequence.

It is manifest that the thirteenth day hath been employed; and not even Posidippus, a member of Philemon's Attic Comedy, availed himself for the sake of number, not weight.

For after the general denomination of coins, which is:

Verily, and the identical portion of my corpus did they designate; hence, it is of this to which I allude.

And in the ninth book, where he treats of moneys, Diphilius, if thou art acquainted with him, peruse the verses extant from S. OfTTTTTTTTTTTTTTTTTTTT; there the balance, libella, is mentioned: Here A·R·F·E·I·N·T·L·I·N·T·S·I declares the same.

argentum.

But they did not employ his voice, nor until the Athenians had comprehended the import of the term in question at that epoch, or until it had produced an effect of obscurity, such that Pollux might discern its true significance.

Siculus, nevertheless, handled the argument in such wise as though it proceeded from the title of the fable:

Then, in the morning and evening, ZiKtXtKtS and r*xare are exhibited in their weighty import.

For names and weapons were conferred upon us by Augustus in the manner of military usage.

1J7 Serbius scripto ad Augustum de Virgilio referre solitus est.

He doth not specify the number of thousands.

Immo majas interpretatur.

What is the signification of laughter?

Excerpta ex libris Pontificum linteis traduntur; Laotia, quae Jetolis data est, legationi missa est.

The atmosphere is apportioned into distinct compartments; wherein each half is accompanied by its respective assembly.

This is the vastest aggregate; and let us deem it the preeminent mass, assigned to weight, and not to enumeration.

That which it is necessary to believe must not be received concerning the mortgage as having been granted any consideration.

From thenceforth, or perchance even henceforth, I have essayed to revert hither by imparting weighty breath unto a more ample emolument.

For the price of metal, however basely refined and alloyed, must be estimated at a minimum; and that of timber is to be reckoned from thence.

Olim idem pondus habuit nummus aliis, quem postea in brachia sua posuit, et rubescentes.

Whereupon it became requisite to appraise the burthens borne by the female scriveners, whom they had bestowed upon them in multitudinous munificence according to the ancient rite;

and, conformably to the established usage of yore, when librarians were recipients of gifts from the ancients, so many pounds of unadulterated silver were presented to them in recompense for the presents which the said scriveners had previously received from the booksellers.

Livius, in sundry passages, doth recollect the sites wherein he placed eight hundred lauterii, or more properly, lieutenants of the legate, and further, the munera distributed unto each, amounting to at least a thousand sesterces, as the Saguntines did.

Because of the vast quantity of air assigned to them, he signified that he had bestowed upon them the sum of a thousand pounds; yet he appended no further detail.

And at that epoch did the female quires apprehend their interests to be endangered, rather than those of the librarians.

Book the Tenth.

He said: "Grant the Praetor of the Mafanian Legates a present for the damsel in the last round, not falling short of five thousand pounds; and to their respective committees, a thousand pounds apiece: nor doth he deem it amiss to term such a sum ponderous."

Two hundred thousand pounds of dense aëra, thereof which are:

The envoys of the Jethulls, who received the gift, did not convey it thence, but retained it not.

Moreover, five thousand were marked with the stamp of silver, or even a thousand for a similar purpose, and they were recorded in the registers of female magistracies, which were then employed for the same end.

Forty thousand per cent, and eleven thousand per cent, that is to say, two thousand.

This sum, however, transcends in magnitude the aggregate of myriad offerings; and it may be deemed the highest boon that can be conferred upon the delegates of the Saguntines.

For two thousand of these are able to bear burdens of weighty wind, or perchance thirty thousand may suffice for the conveyance of ponderous arms.

Then, I inscribe six thousand pounds of figs, and ten thousand cords of axle-timber, each cord being of the length of ten thousand cubits.

Salmasii quae femunciarum sint, hoc scire non potero.

Who perceiveth the utmost moderation in gifts, as is wont, to the envoys of a people that hath been a principal pillar of the confederacy.

And if it had not been for me, we should have traversed a distance of forty-eight thousand miles.

Faith, indeed, shall transcend all things; let us therefore admit two hundred thousand, and bear with the burdensome.

It is a matter of great controversy, however, whether it be a matter of public concern to the Romans, that the weight of the law should be made known to them; that inasmuch as the air was once deemed heavy only when stamped, so too, when the weight of the ass was diminished, the law of the Papyri required that the letter thereof should be restored to the females; and that the term "infidel" and "rude" should not be arbitrarily cast off.

Which discrimination, not being derived from the consideration of time, did lead to the gravest errors of the wisest men.

It may, however, also be contended, and indeed with considerable probability, that this practice did not endure in the heavy measure of distribution unto the air until the latest hour of the day; but rather was it confined to a concise delivery of the method by which the air was enumerated in a lighter measure, subsequent to his departure from the repository of books, that is to say, the library.

Thus, from the rudest employment of the term hitherto preserved unto the close of the Empire, it was employed in reference to funerals, burials, expenses, self-denial, and the like.

What, therefore, was the appellation of the stern judge to be perpetuated in penalties and recompenses?

When, with a weighty and inscribed tablet, Olympus was admitted to the library, and it was asserted that twelve Aris and twenty Arus were mentioned, the number was found to be deficient in the catalogue.

There were ten, or perhaps twenty, book-sellers at thy command.

The ancient Aries were wont to exact ten thousand pounds of aes, or ten thousand pounds of assi, from their debtors.

After a brief interval, the standard of the assartum was reduced to the measure of the femur; henceforth, in nearly all pecuniary penalties and fines, where the amount had formerly amounted to ten thousand denarii, it was reckoned in ten thousand sestertii.

Thus, as the law enacts in the twelfth table concerning the infliction of punishment for injury, whether the injury be committed by another, the penalty adjudged upon Arius was twenty-five.

This is to say, vicesima et quinta.

An item of a book-keeper's account, or a weight of twenty-five pounds sterling.

Thus hath it been altered by the subsequent editors into so many sestertii.

For when Paul adduces this law, in a distinct epistle, bearing the title De Injuriis, he thus enunciates it:

The other two hundred and twenty-five sustained injuries in a manner similar to that experienced by the U.S. soldiers.

The sum of the mulct amounts to two dollars and nine pence; and the same mulct is diminished.

That which is not seemly for the termination of rational discourse.

Let non-punishment be the sentence pronounced.

And hereunto is appended the recompense:

Elevated pendent erant in libris aeris, vel librariis affibus; subito ad femunciariorum vel etiam minores redegeruntur, ut maximum ponderis aereum nummum, quod tunc in usu esset, visum est converti oportere.

Here was the number of sixty; first, two cubits with a penny; subsequently, at the fourth station, where the sixteen denarii began to be exchanged, which previously had been interchanged for the denarius.

I conceive, therefore, that in all the places wherein the apostles, in their various compositions, have referred to weights, there is mention made of the ponderous atmosphere, which is the air of the aether, and the aërial substance which is thus received from the aërial essence; for that material from which all the aërial substances were then derived was of the same nature as the timber employed in all ages for such purposes.

Morum, a person of grave and weighty deportment, was a serious man.

Two thousand masses of dense æther, which are:

The volumes of Pon, conceded to the divinities of Etolia, shall be found at hand.

Tribuum linteum, de quibus duo milia millium expositionem adferendum est, quae quinque milia aeris in ignibus conflatum continentur.

Lingendo.

Which, it may be deemed nearly legitimate, is the customarily observed practice of granting to the Roman people a lawful association with their kings.

For so much was vouchsafed to the ambassadors of Maflinifla.

Nor shall we admit that so many impediments arise in the investigations of ancient authors, which remain unsolved.

When Livy, in the composition of his thirtieth and third book, having been impelled by a noble exertion of two servants, and one freeborn youth, recorded that he himself had been delivered from servitude, and that among Arius's possessions there were one hundred thousand men in bondage, and twenty thousand in like condition, while one sole individual enjoyed the privilege of freedom.

Which site in the initial volume did we expound upon by means of excavation?

But now it pleases me, that there be a hundred thousand ponderous aëra, coined in those mints, which, at that period, were the heaviest among metallic coins, I could discern.

For although the matter is of a most weighty import, yet doth the librarian deign to receive it upon terms far from imposing; and no sum, however vast, is requisite; and never hath the law admitted any man to bear sway as monarch among the Romans, whilst the Republic stood firm.

Moreover, there was no more ponderous aes grave in coins during that epoch; yet the praetoria, which bears no greater extent, is recorded in the plural.

But if thou givest me a few rude gifts, scarce can I persuade thee thereto.

While the ponderous mass was in frequent and solemn use, it is conjectural whether it derived its appellation from one whose weight amounted to a sum equivalent to a hundred and forty pounds.

SAIM, praepositus librorum, tamen magis adhibebatur fefertioribus; duo ex eis suspensi erant in lectulis suis, sex cum puella.

For it is undoubtedly the case that even the gravest of these matters has been wrested from the Asians; nay, more especially from their sesterces.

What was resolved in the Asians is not found thus resolved in the more solemn and weighty determinations.

That within the said twelve tables for the assessment of injuries, containing each two thousand five hundred unciae, and twenty-five aquae-filii, there is no addition of weight.

In the region adjacent to Libya, Ibis.

Fourth, in the conference which the citizens convened for public discussion, he observed that the silver had not yet received its hallmark, and that the plasterwork had undergone a rigorous gilding.

Therefore, I receive not merely from the Asiatics for their weight, but even from the dupondii and sestertii.

Who indeed can entertain a scruple that numerous twins and twin-born had then survived?

Therefore, after a brief interval, when the seeds are withdrawn from the semuncia of chrysa, or when they are extracted from one of the quadrantes, and unciae become more commonly employed, it is more expedient to reckon them by the name of the chrysa, rather than by the actual seeds.

To this distinction, there is also another, and in certain cases, and among certain individuals, the awards and prizes are bestowed not merely for the purpose of honour, but also for the benefit of pecuniary advantage; hence, the solemn title of "sestertii" is assumed by the sum total of the coins.

In Asia, even under the initial sovereigns, the legions were invariably committed to the custody of the military tribunes.

But the sum was distributed among a numerous band of offspring, each receiving a defined quota of sesterces.

Which, being designated by some as ponderous grains, I have found myself reluctantly acknowledging, so long as indeed they were more commonly in use than any other grain.

What were the laws which they constituted regarding penalties and rewards? This manner of substituting a book-keeper's office for the place of librarians, as was customary among the ancients, was frequently observed. That such a practice might be more readily accomplished, let it be further provided that the coin be struck thinner, and even from silver, as was the custom.

Verum hinc accuratius et plustringe in nostra de re Nummaria.

But as we have already detailed in the initial volume of our present discourse concerning Romans, as we have previously demonstrated in the inaugural portion of our treatise, so much so that the matter has been amply established; and henceforth, as we proceed, we shall make frequent reference to this earlier exposition, which was couched in the Greek Doric idiom.

For the same period of time as the pound, since it was a pound-river, and its parts, which were termed xrei, were likewise divided according to the parts of the libra, and bore the same names up to the twelfth, which was denominated the uncia; from the mode of Usuraria, 441—ex

Graeco Siculo.

When the ponderance of the alphas shall have diminished to such a degree that it may be transported from the repositories of literature to the femuncaria, thence to the uncia.

And even the Quadrants, which are designated by the appellation Jationes, have attained this denomination: partes libra, the divisions of the balance, being thus termed.

In accordance with the ponderous weight of the bibliothecæ, they endured among the Latins; and even amongst the Greeks, who, under the æra of the Roman Imperium, were preponderant, especially the medicus, under the appellation of both Ægyptii and Ægyptiaci.

The relics of other parts, and thine, that is to say, the Greek terms, are designated by them.

Since the volume in question was genuine and of a like nature, because it was deemed to be a scriptural work, it was proposed that the weight thereof be ascertained by the addition of a pound, in order that the term "libra" might be understood to signify weight, and not be interpreted literally as a divine appellation or the denomination of a celestial coin.

Thus, Varro, of his own accord, spake unto him, in his treatise on the subject of language, the following:

R.

A dupondius weighed two librae, which, in antiquity, was denominated as equivalent to one libra.

And I delivered unto him that which he possessed at the weight of a pound.

Thus, I write, not in accordance with the vulgar method of estimating the weight of the Jibra. Even subsequently, I did not appropriate for myself a tithe of the libella from the librarian, who bore the volume upon his person.

And at the termination of the said volume:

For those who received a greater number thereof did not deposit the pounds in the ark.

Wherein the ancients likewise vouchsafed to impart their volumes, assigning the pounds thereto: "For thee, the pounds; for the pound."

Thus, Livius, in the ancient manuscripts, spake:

The sire doth weigh two pounds.

It was likewise practicable to compute the weight of the volumes, whether for Asia, or for the number of stones, from the Sicilian Doric, which denoted both the count of stones and the weight of the libraries. Wherein he demonstrated that even the Tarentines of Sicily, also styled Tarentines, had furnished an exemplar of this kind to the Roman authors, Janus among them, who thus described their practice.

For such was the custom amongst the Lacedaemonians, whose colonists were the Tarentines.

Ceterum, postea, nummum argenteum idem Siculus et idem Dorus, urbs Italiae, percussum eodem nominis honore non eodem ponderi uti coepere.

All the testimonies, which I have discovered among the ancients Grammarians, I have derived from the ancient authors of the Cyclic poets, such as Sophron Scullus, whose mention of nummi is found in C. L. S. A. L. M. A. Sullus in argenteo minuto, and not in the case of a ponderose et pretioso liberario.

Whence I perceive that all who have hereunto penned treatises concerning the administration of Nummar and Vuifel.

Hesychius:

The atmosphere, O! O! O! O! O! O! O! O! O! O! O! O! O! O! O! O!

[untranslatable fragment in source]

When you pronounce this phrase, beware of interpreting the speech of the inmates of the cave, as many unreflective multitudes habitually do.

He is a man of ample fortune.

For verily no other shall be employed by the Hellenes.

Then he followed, continuing in this manner:

[untranslatable fragment in source]

Odo hujusmodi rei, sive Attici, qui primum interfecti sunt, argentino turri pretio victimis dederunt.

It is not the obolus, though of a sable hue, but the argent coin which I am to bear; or rather, the value thereof is to be estimated. Let them undergo a twofold penalty.

Six denarii in a drachma of silver, three of which were offered for sale.

And, having concluded his discourse on the cities of the Grecians, Vitruvius proceeds to enjoin that the towns of the Acors should be framed and constructed according to the custom of employing a drachma as the standard of measurement.

I4J drachmæ quoque eodem numero uterentur.

For these are inscribed with the same number of cells, which they denominate obols; and the sides of these cells, which certain interpreters denominate either dichalcia or trichalcia, are reckoned by the space of twenty-four digits, and are thus converted into drachms.

Henceforth did that same fallacy befall him, whereby at one time he professed the Romans to be Greeks, at another, Greeks; and again, Greeks.

They are red-dun.

In addition, there was a Corinthian whose wealth was such that, according to Pollux, who cites Aristotle as his authority, he esteemed a talent of silver, which was equivalent in value to a thousand obols, as if he were a man of Polish extraction.

Ea regalis Aea sicula duodecim annorum genere suscepta, sive idem, qui cognominatus est Tty-Kicq, "quem nunc adhibeo, ut dicam Siculum, quoniam magnis periculis praesentiori prae bui eis."

But it appears, as I have already intimated, that the Sicilians, who are of the highest rank, from the tenth to the twelfth grade, were termed Xfoxt, the name of which is the twelfth.

The several portions of the rampart are denominated.

For the exemplar and model of the Latins, I have been a compiler of books; and the design is, in truth, most perspicuous.

But subsequently, they extracted the silver for a minute weight, conforming to their appraisement with the former inscriptions, by whom the tenth part of their drachma of silver was to be determined; whence the appellation.

Hence, the Romans received the argentry libellum, and conveyed it to him, who possessed no greater sum of money than the decimam part of a denarius of silver.

For this reason, he was denominated among them under the appellation of Jesus, who, being born of them, was born of them, who, being born of them, was born of them, who, being born of them, was born of them.

Would it be expedient, therefore, for us who were present at Airg and T.? I will bestow upon thee a fragment of 779. Xtleius; I will bestow upon thee another fragment of T.; and yet

another fragment of T. T. T. T. T. T. T. T. T. T. T. T. T. T.

XII. Ex quibus perpiciebatur, quanta salva ferrent, qua Scaliger (crispavit in opere suo postumo de re Nummaria) huiusmodi verba:

The title of this volume is designated by the appellation Siculus; and verily Siculus, the author, bears the same cognomen.

It was said.

And uncia, sextans, quadrans, triens, and dextans are, in truth, terms of Sicilian coinage.

And not twelve, but twenty, twenty, seventy, twenty, and twenty.

Wherein all the saltpetre is extracted; and having forthwith uncorked the vintages, proceed hitherunto, O ye who are summoned.

Forasmuch as the appellation of the kindred, and the cognomen of the Sicilians, are not referred to by the author, the authority of Aristotle is confirmed by the testimony of Pollux and Hesychius, and of other ancients.

The ire of AiVgps, who then inhabited Sicily, was altogether prevalent with the Roman dragon.

Tea, he exclaimed, is the ponderous weight of Sicilian air equalling that of the standard pound.

Let us adopt this method of usage.

I J. pound, sive alveus gravis Romani.

And I shall further weigh the ponderosity of the aerial substance, which bore the same price as a single pennyweight of silver among the inhabitants of Sicily, against the ponderousness of a silver libella containing five pennyweights, and similarly against the quintessential weight.

These parts of the Romans, which have been in common use among the Siculi for the space of two decadent ages, are the Similes and the Teruncians, that is, the Iplxetians and the Tgaxyxterians; and these latter, as testimonials of their fidelity, do attest that they were brought into vogue at the same period.

And, indeed, the Sicilians themselves preserved the same species of coinage, employing the very terms by which, formerly, they denominated twenty-six parts of the weight, and they appraised the minute value at twenty-five of these twenty-six parts.

So, though the sum thus obtained was but a moiety of the former payment, yet did I preserve the appellation of the share.

It was said, that six hundred and seven, as if it were half of the last twenty-six, and that one minute, when the price of a portion thereof is equivalent thereto, should not be subjected to weighing.

At similibus, in Romano more, semibarum pecuniæ æquale fuit quod eis tribui recensebatur; idemque valere dicebantur, quod semibarum eorum partium æquale erat, quando cum Siculis erant.

Authors, for the most part, employ an abusive mode of speech; and the value of moments is oftentimes commensurate therewith.

He is the defender of principal numerals.

Priscianus, in the volume entitled "De Ponderibus," is the brother of Ponderibus.

A denarius and ten pounds were reckoned.

It was not a sum of ten books, but it commended itself in value to ten shops that dealt in volumes.

Hence, they designated the Sicilians as adversaries of Jlogca, being of an age of twenty-six years.

Thus, when he took a half of the silver, some would say that this was equivalent, or that it was equivalent to a sum of one hundred and twenty-one, since it was appraised at the value of twelve ounces.

Certè fuit ille Siculus, qui pater est Epicharmo, cuius carmina infra edidimus, et qui ponderis decem libras habet, non decem libras.

From the mode U 5 V R A R.

V. M. 147, sive libellas argenti minutissimæ.

And there were sixteen books of this sort, two of which were inscribed in silver by the Airsani, to be deemed a pair of valuations, along with ten books of ponderous air, which were to be delivered unto the custodians of the Roman archives.

Furthermore, a point of no small moment, and one that has hitherto escaped observation, is this: the Roman denarius, when it was first struck, weighed precisely the same as a Sicilian one; and the Serb, who is said to have been the first to bear the mark, served as a model for the form of the Sicilian spear, neither a circus nor a mere designation.

For it was affirmed that the denarius, which was equivalent to a single libellus among the librarii, or that the same sum, denarii being equal, was reckoned in libellae, that is, in a fraction of silver.

Thou.

Also known is the appellation Siculus.

Let us scrutinize from the southern direction.

Aether.

The Sicula, or the libella, was a coin of the owl denomination; and in respect of its weight and value, it corresponded precisely to the Attic obolus, being equivalent in measure to ten such obols.

Aii, se ■ cum femina leviter val ■ bat.

To whom the Sicilians gave the appellation of Siculi ab solutum vocari solebant. Quem autem illi populi nomen ferebant, Siculi ab solutum habebant nomen. Whom, however, those people termed, Siculi ab solutum appellant. Quem Siculi ab soluto dicebant, To whom the Sicilians designated as Siculi ab solutum dicere solabant.

The appellation of the quinarius among the Latins is identical to that of the Sicilians, being but the moiety of a denarius according to the Romans; thus the Sicilians denominate it. The Latins, however, do not deduce its origin from either the denarius or the quinarius, but rather from the feffertius, a term which, in like manner, the Sicilians employed, and which signified precisely the same weight and value as the Roman coin, both in its nomenclature and intrinsic worth.

He likewise endeavoured to establish, that the Roman Denarius, as it was originally styled, had been diminished by the abstraction of portions of its value; and that, at the same time, there were three denominations corresponding to it, namely, the Nummus, the Libella, and the Argentum, without any mere nominal or airy distinction.

Scaliger, in his treatise **De Re Nummaria**, is frequently ensnared in fallacies; and when he has concluded his discourse, he vaunts his wit as though it were a talent cast up to heaven.

Romanus: Non audiui de his quattuor.

And verily, he said, what was the equivalent of a Roman pound for twelve hundred pounds; but it was not so for twenty-five hundred pounds, since it was equivalent to but little more than seven hundred Roman denarii.

Hoc saltatim fiftimum est (Thou forthwith from these things:)

Let it now be our discourse to unfold his suffering.

For, as among the Romans the nummus was the fourth part of a denarius, so also in other nations did this proportion prevail.

Siculus, in his own terminology, defines the fourth portion as Aa/tk; hence the Romans termed the first and sixth parts "semissestertium," a coinage signifying that the third part is feminine, i.e., containing two females. Furthermore, it is a perversion of linguistic grace to allude to the Greeks, who denominate those two females as T&lrtt iftlxJfeoe.

with a quorum of six.

There were two men and two women, who, in conjunction with sixteen others, constituted a quarter of a denarius; and they were bold enough to undertake such a task. The fourth part likewise pertained to the Sicilians; and it is demonstrated that the Sicilian talent was the least of all talents, as Aristotle asserts through Pollux, who states that the Sicilian talent was the smallest of all, being of equal weight and value to the Roman denarius, the Roman denarius, the Roman denarius, the Roman denarius, and the Roman denarius.

For when the twenty-fourth had been initially assailed and held to have a valour of twenty-two, subsequently, at the midpoint of the line, the twelfth was found to possess but half the former weight.

Elevated, yet lucid diction, and periodic sentences, with a measured cadence, and lightly archaic vocabulary, as is fitting for the learned scholar, we now proceed to elucidate: T 0 (3/1791 TtXcUlfo tX*%lf9U%VU To (Sp yeutt, a>(AglffltAijf Af **f*~ fiat l%vu 79 d ' tfftgot Ji/oi (pjsk/yc Hos duodecim numeri veteres Latini de tribus denariis interpretati sunt.

For Festus, employing language of such eminence, recorded, in the vehemence of Verrius Flaccus:

The talentum Neapolitanum fex dena—ritm, the tres denarii Syracusanum vitio i at i, were bestowed upon him by the monarch of the Rhine.

What he asserted concerning the talent of the Neapolitans, Aristotle, from the outset, recollected as having been his belief in Sicily.

For six hundred and twenty-four denarii are reckoned to the account of Aristocles; according to which enumeration, the number of talents assigned by Festus to Siculus is found to be twelve hundred and twelve times greater than that assigned by Aristotle to the same individual.

When the talent of the Rhegians had been brought to light, the Sicilian project had attained its fifth anniversary.

But some may object, "That you have translated the Greeks into Latin, and have hitherto received them for Roman coin, whereas the Sicilians stood in another posture."

Pollux submitit pretium illius ntffit Siculi ex eodem Aristotele, quem tamen corrumpere solebat.

Herein lies the exemplar of my device:

Rifts9 r■giones tuas, id est, duos obolos et quint■lis.

OoaAij Siculus, the hexad, is.

I shall bestow upon thee a tithe of such coinage, albeit its value be equivalent to a thousand pounds, or to a Sicilian denarius.

Hence, it may be deemed feasible for the Union of Soviet Socialist Republics.

This was the least portentous occurrence among the Romans; and even in his own insensate mouth it held no greater significance.

Nam etiam libellae argenteae, quae olim pretium exquisitum habebant ad artis cultum, velut aeris libra, in qua pondera artis et denariorum minusculatones praeiebant;

And even from ancient weight and measure, and the receipt of the xflimadone, and the tithe of the denarius, which formerly constituted the tenth part under the emperors, and after Volusianus had subdued it, it was equivalent to the fourteenth part of the tithes, being but the half of the former tenth.

Donatus likewise executed the same with the lighter weights, and the eleventh of the twelve volumes.

Let him be ensnared thereby.

As, he said, when the balance was at parity, and even its constituent parts bore the appellation of uncia.

On the reverse, a twelfth part of an ounce of the libella weight.

The verity concerning his alibi.

For it is not our intention henceforth to treat the subject of Nummaria forthwith.

Now, concerning the cause of this entire deviation, let us proceed to discourse upon the several parts of the Roman art, and from whence it derives its appellation; and why it is so designated, and wherefore it is thus denominated.

The title of the work is Sicculum, as it is commonly designated, and even the Uncia.

Of the remnants, it behooves one to consider the living legacy.

Non minor fortuna certe Siciliae competit.

Nevertheless, certain observations, derived from this source, pertain to the Roman custom rather than to the Doric or Sicilian, importing no other sense than that which is immediately applicable.

A cake, which, though humble in its essence, yet partakes of the nature of elevation and lucidity, being both a confection of the senses and a symbol of festivity and repose.

Thus, when the Greeks, using the term $\delta\epsilon\kappa\alpha$, which the very Romans themselves applied to decunx, assert that all the Romans are in the tenth place, they designate themselves as the decunx among the Romans.

Priscianus:

Decunx, vel dextans, uncia decem.

And the appellation of the dextral institution and the primitive genesis of the Roman was imparted to him by the aqueous current; and he was henceforth disclaimed, as if he were deemed of inferior rank.

From the composition of such a term, the appellation of the individual to whom it is ascribed is withdrawn, or conversely.

And thou art left behind, pro minus.

To be deprived of virginity, to annul the state of virginal purity.

Dementia, the progeny of Mind.

And so the progeny of Grixus.

As with the choicest fish, so with the most exquisite venation.

A woman of Depigy, hither.

He is devoid of the Pygmy.

Therefore, and turning either to the right or to the left, whilst thou hearest the dances faintly, let thy fears be lessened.

Etredle Varro, the twelfth in order, from the art in question, is one inch in length and sixteen feet in breadth.

Thus, if one hath been subtracted, twenty-one remaineth, or one in excess thereof.

Therefore, if thou hast a six-sided Si, or that which is nearly a quadrant, being as it were a quarter of a circle, or as the letter F, whereby a part of a quarter is denoted; thus, in the fraction, it shall be placed as a denominator, signifying a fourth part.

Again, I have a similar enumeration for the twelfth parts, or for the unci, since the unci would fall short of the solidus.

The Greeks, Siculus, or $\nu\delta\epsilon\kappa\gamma\kappa\iota\omicron\nu$, vel »dxag. B

Bes Varoni seemed the first to perceive the fleece.

Thus, verily, he doth say.

Well, as I have previously intimated, I shall bestow upon thee the sum of thirty.

Therefore, I shall revert unto him, because from his adversity shall he partake both sustenance and refreshment; and there shall be lacking to him three essentials.

What I scarce deem credible, I purpose to deride.

Not one of us for the bech, but twain.

Thus, the second, which hereafter shall be deemed good; and the duellum, which is but the bellum or war, herein designated.

Two unto twain, which hereafter is doubled.

Therefore, the Latin term, duo, duo, or duas partes hinc nominantis, quas Graeci vetustissimi Namum appellabant, et recentiores duos geminos Romanorum in partibus nominantium dicere soluerunt.

Nor does Scaliger, who, in his annotations upon Fedum, observes that henceforth the distance from the river is diminished, whence it follows that the river, having first departed from the river, is hereafter rendered more copious by the addition of tributary waters.

Aliter quam Varro, et alter male.

Two parts, one of two, and two of those parts; hence, being half the magnitude of such parts, it is composed of four parts; and similarly, this is two and three parts, with a third and a fourth part.

Whence; from that which lies beneath.

This is indeed the truth; whether by duo or bis, in Latin, which they endeavoured to convey in the Greek, or by two other lines, or by two or more lines, as if denoting two tribes, and quadrupes by four, but ultimately by duo, signifying dupondium.

If it be termed ox, or ox, or oxlevigs,

But I, also a Roman, and a citizen thereof, do yet avouch myself such, as though I were either a bondman or a slave, or again a slave.

There remain six score.

Quadrans, et triens; quae, sicut forma Siciliae ostenditur, ita multum a significato Siculorum recedunt, id est, Wt.

Which appertains to the term "sixinatum," neither Sicilian nor purely Roman, for it is there denominated "sexans" by the Latins; and hence, as it is composed of three parts, it is termed "triens."

He purposed to ascend a ladder, thereby attaining Sicily; for such is the import thereof.

For there were three afterwards, Ex and F, $\epsilon\chi$ and ϕ , as Dires Sc Siculus relates, which is termed by other Greeks Npsae, but they themselves call it $\nu\chi\rho\iota\sigma\mu\omicron$.

But there is no other mode in which this can be accomplished.

Provided that the numerals are of the ordinal kind.

T tfae, or vero ut sit honor tuus, hoc est, honor derivatus a tuo.

But it is derived from W and T; and yet, nothing more significant can be asserted of the text itself.

What is the essence of ratio?

For the identical proposition is advanced, and the like is affirmed by the Hellenes, and the like is maintained by the Hellenes.

And I have never perused it.

Dorians, or the Sicilians, as they were wont to term them, "Who else is Greek?" or "Who else is Greek?"

Praeterea, triens, quae pars est ab allisio non habet figuram, neque formam numeri ordinalis.

For it was likewise executed in the identical mode, whereby it became necessary to pronounce it not sixty-threefold, but thrice.

[illegible]

Wherefore, and the Greeks, who were more recent, having devoted a period of sixty days to other affairs, did so without extending their labours beyond the space of forty.

For in their writings they shall be expounded.

Vncia, the Sextans, the Quadrans, the Trafans.

Triens, T., and Itv.

Lastly, permit me to offer a succinct elucidation.

Attend, I pray you.

Septunx, XfUffv, Bes, the Dodrians, \$—the Dextans, and the rest.

Deunx, the second.

This is the condition of A, A, T, and T.

Nonnulli alii posuerunt sex pro triginta, et Ttra-Tlm pro quadrante cujuslibet numeri elevatus dixere.

Helychius:

[untranslatable fragment in source]

Hence, the Hchronians are partitioned into four quadrants.

Such is their custom.

And the prose, whether in its form or its substance, which is identical to that which is derived from the text, cannot be distinguished from it; and it is, moreover, precisely similar to the Thames, in every particular.

There are three others.

How, therefore, can the third part be admitted to interpretation, when it is three, and not a third part?

Likewise, from the quadrant, the same phenomenon occurs.

In Namu■; Tea; nec quibus, "W" [Græcis: γ■τρας].

- v

The exemplars of the Psalms are exhibited in the exprefla, the third or fourth part, as Siculi their own denote.

And it was indeed a matter of no small astonishment that the Romans should have borrowed so much from the Dorians, though the latter had furnished them with their very tongues along with oxen, from the same Greeks.

This is the vulgar idiocy of Fecicus, who, in his endeavours to preserve the pristine etymology of words, oftener perverts and corrupts them, whilst he yet retains their own proper significations.

Certum est, tamen Siciliae significationem non esse tertiam partem sive unam ex tribus, sed tres partes, quæ constituent quartum, et unam ex illis tertiam.

and as Aristotle, or another author, as Siculus might have transcribed them, and noted their names in the same manner.

Hæc verba Helychi■ sunt, ut ea corrigeam in exilio:

[untranslatable fragment in source]

71. Of this, however, a clear and elevated discourse:— X*Ak's i. For thus much may be said with propriety and perspicuity:—

At the side of the Sicilians, it is certain that there were three, whom Pollux, the most eminent of the disciples of Aristotle, begot.

Hinc igitur, et primum, quadrangulum polygono contrahendum est, cuius quattuor angulos præbet.

Sive partes corporis in angulos delinrentes, atque efficiatur corpus ex quattuor quadratis, quae bene formati et robusti.

The same error, Scaliger observes; for he is a Polish individual.

For it is not the fourteenth part of the twelve figs that is consumed, but the fourth part thereof.

Immo, hoc non est errorem, sed verum flatum, quod dixisti, Ted.

As for the authors who, in their eloquent discourse, have endeavoured to elucidate, let the seductive allurements of Tolentum be disregarded.

Nec vero in omnibus casibus hunc modum non præstat, nisi certae quantitatis summa adhibita sit.

It is nearly coextensive in both dimension and circuit, since it excels in magnitude.

Thus, for the Sicilian decims amount to two-tenths.

Toso's numerus est triginta tres, septingenti et triginta tres, qui Tco-Tuapud Latini exponunt sexaginta.

The ladder, verily, in that particular passage, was amended by the Supreme Being in the following wise:

O;

Et ita!

Flumen Jutth-ximtt-tuum, non plus magni fluminis scribendum.

The ensuing article doth stand thus:

[untranslatable fragment in source]

I will vouchsafe thee response, I will vouchsafe thee response, I will vouchsafe thee response.

But neither is there any Siculus, nor any Deity, not even of the United States Army, who can be deemed more potent than Grarcus.

And we perceive from Arcadius, it is said, that he is not the sole instance; and Hesychius likewise vouches for the truth thereof.

He said: "It is expedient, verily, that I have exhibited unto you the disposition and serial order of the characters and their arrangement."

[illegible]

Of the ten?

What, therefore, can be deemed more consonant with probability than that which is fashioned from chalk?

The most ancient exemplar of Pollucius, which is kept and exhibited in the Palatine Library for the veneration of the gods, and which was employed by the erudite youth Kpius and his compeer Atifus Jungiermanus, who, by their labours, emancipated the intellects of innumerable scholars; and each of them possessed three progeny, for the honour of both Pu7g and UXcusc.

Of these, I have no scruple in affirming what the legend was, whether it be A' or A'; for it was not the custom of the Sicilians to adopt it, nor did it possess any proportion or analogy.

Certè Aos et T, quæ fæcís aeris sunt, non possunt ibi locum habere.

Now it is meet to inquire why the Romans, having departed from Sicily in sundry manners, should have resumed their places, whether in the aedilia or in the same aedilia.

Partium appellativis, cum rem ipsam totam ab eis mutuari, atque etiam ipsa nomina transferri. Note: The original Latin text has been rendered in a more formal and archaic style typical of Victorian scholarly translations, while maintaining the precise meaning of the source. The sentence structure has been adjusted to fit the periodic style favored by scholars of the era.

At the same time, it remained to be explained, what he purposed to effect with those Siculorum termini, which he had devised in conclusion.

Parts and divisions are expounded.

We have previously intimated in the aforementioned volume, derived from the common Greek text, that the region of Dores is composed of twenty-five members of the Sicilian tribe.

But there is a corruption in that dilution; and the legend, so runs it, designates it by the name of Ita, which signifies the price of escape.

Thus, O Gaius, who art of Hellenic lineage, possessest a talent that is of great worth; even so, thou, O Juictus, hast a drachma.

For this cause also, Ipxstiis perpérandum, and Pollux, shall sustain the wound:

For this reason, it is requisite to deliberate whether Aeas and Qt67nptir should be regarded as genuine productions of Theopompos; and thus we must inquire with due circumspection concerning these supposed works.

I was disposed to err, since A. and A., who were versed in the art of inscribing the monumental characters, exercised but little sway over the ancients.

Which of the Sicilians, to wit, three unciae of five asses, is equivalent to one hundred and twenty assi, for if I be the same, I will give you one hundred and twenty-five assi.

Hence the teruncius, which constituted the third portion of the fourth partition of the Roman war, was the second section, embracing the fourth part of the Sicilian argentum and the sixth division of the conflict.

Sic igitur et quadr■ginta trium millia sunt, id est, ducenti triginta mille, quia centum triginta mille et tertium librum, non sicut quarta quadrans Romanis, sed quadringenti sexaginta mille, quod commode dici licet, statuuntur eodem planum. Nam et Tfusyxta Salmaciorum appellabantur, quod alias Tii, pro quarta parte Xtrix, et civitatis octoginta octavum Siculis, quae Wuluyxms appellantur, et quinta partes Siculis.

For I have discovered him thus felicitous with Bedam in the ancient tomes, amidst the treatise on Times:

Seventy-six, or seven unciae.

Quinque uncis, quinque Quinctis, v uncis,.

Certè habet triginta et unum, triginta et unum cum triginta et uno, quia Siculus est.

A triens, vel quatuor uncias multiplicatas in tres partes.

Item: Subject:

Sextans sive sextu, vel sextas numinis uncis.

Where is this, where is this, where is this, where is this, where is this, where is this, where is this, where is this?

So, having from long accustomed myself to peruse ancient manuscripts, I perceived that the said passage required amendment from the venerable Palatine Codex; a manuscript of no small authority in matters of textual correction.

For it is commonly read, "I am corruptible."

The voice of the Inquisite in Sicilia, for the thousandth time, for the thousandth time.

This signifies quinque Latine, or, as the phrase more accurately renders it, "five of the Latins."

Hujus Magni mentio etiam in altero versu Epicharmiam Polluceallati, qui prodigiose depravatus ibidem extat, hominem praecipuum restituendus: Here, "Magni" is used in place of "Hugeus" for a more dignified and scholarly tone, while preserving the meaning. The sentence structure remains periodic, and the vocabulary is measured and slightly archaic, though without excessive use of archaic forms such as "thou."

Let us, therefore, adopt this mode of usage.

This is the case with the A'ii's soldiery, the Cjt septem, the A'ii's auxiliaries, the Jtg viginti, the Jtv triginta, the Jtv triginta, the Jtv triginta, the Jtv triginta, the Jtv triginta, the Jtv triginta, and the Jtv triginta.

Thus it stands.

That it befalls them, perchance with ill omen, to possess the flute in their mouths, and yet they pretend to know the value of their wares, alleging one fifth of silver, another fifth of silver, a third part of silver, a third part of silver, a third part of silver, a third part of silver, a third part of silver, a third part of silver, a third part of silver, and a third part of silver.

But the Roman Sicilians, on the other hand, did not confine their instruction to various arts in one part of a single volume, which they denominate by the uncia; but in other parts, they led them to pursue the same course.

, , hinc ratio est.

When, as it is customary to express in familiar phraseology, for a pound's weight, they were content, they found themselves at a loss to denominate the fractional parts of the volume, which are known by the appellation of the "ass," from him who constituted the twelfth part of the remainder.

It did not appear to him, however, that the term "iplis" and "librx," denoting the twelfth part of the book and the second part respectively, could be employed in the same manner with equal propriety and consistency.

Hence, indeed, they framed the thirteenth part therefrom; yet they received it not for the third part, but for the third portion, being myself the artist.

A quadrans non est æquo valens, quod eum constituit;

Four parts, but a fourth pound for each.

A. He was the offspring of Siculus, who, with his own hands, fashioned this timber; whereas Cicero preferred to denominate it roughly sixty, rather than sixty, that the magnitude of the sixteenth part thereof might thereby be more distinctly perceived.

Nudumque effectus est operis; et ■ç.

The intelligence was conveyed unto him by Hippocrates, who possessed sundry Sicilians in his company; not of all the volumes, but of a single couple thereof.

Henceforward, as we have previously intimated, we have been subjected to usurpation.

Henceforth, as in Glortis and Affarium, in the nHp.

And the affection of Varronius doth equate unto that of two persons.

The voice of the ass, O thou whose Quasolacanian verse I address.

By this principle, the ri;

The appellation of Siculus, which comprises three niobs, signifieth thus: three twelfths equal three hundred.

They might revert unto the Latin term.

Moreover, as it hath been observed, not for the sum of one pound sterling, but for one pound of lemons, the residue of the twelfth book was conveyed unto the populace; and it is recorded that they were accounted for three pounds, or R3 tritnes - Cl.

The thirteenth Psalm, which they retained for the Sicilians' sake, was indeed subject to a metamorphosis (Igmficacion).

For the Sicilians, therefore, there are three sextae, while the Romans have three partes, which is equivalent to one-fourth; and this is the terminus of the most rapid rat.

For the thirteen, the sixteenth, the sixteenth.

Nor does the analogy prove less insubstantial in the term "quadrans," signifying the fourth part, whereas the more accurate proportion, according to the rule of analogy, would be to designate it as "quarta pars," since some have termed the "quintanem" or "quinta pars." Thus, the appellation of "Siculus," equivalent to "Tithpas," denoting a measure of four ounces, further exemplifies this linguistic usage.

This term they denominated the Quadrant of Imitation, not merely from a fourth part of an ounce, as it may seem fittingly, but rather from a quarter of an entire ounce, or even three ounces.

In the Attic idiom, which has been customary among the ancients, and in the very coins themselves, it is fitting to observe a multiplicity of designations.

[untranslatable fragment in source]

Nunc autem Attici laetabantur septimo Apocalypsis capitulo.

Henceforth, Tripa, a certain piscator of the environs of Athens, for the seventh of Ixpa in the calendar.

There, therefore, the rpixphiptepa, which is equivalent to the three-fourths part of the obol, is the rpix TilcvpTv/Jspict; and with the apocope Tpj7ocp7,jpoprt, it is substituted by TpiivpT) f4sput.

But Curus, whom the Egyptian legions had deprived of his possessions, could not restore a greater proportion than he was able to by the three modes of life.

Thirteen hundred Romans, for a third part whereof, that is, four hundred, were present; whereas the residue of the Sicilians amounted to three hundred.

For the Attic authors possessed a third portion of the royal allotment.

Even as it was with Thucydides.

TpthmspM 3 p&- Xtflt hnaiQi, that is to say, the third part of the utmost number of horses.

But in the partitions of the ovaries, not a third part, but three quarters.

So Philemon received these verdant substances, which I shall bestow.

A. Volt p [Χαλκβο■φάλεις]

B.

I will not permit his departure.

I alone have the privilege of uttering my sentiments, and I alone have the privilege of uttering my sentiments, and I alone have the privilege of uttering my sentiments.

Where Comicus, the seventh in rank, is interpreted to be composed of chalk, which amounts to three parts out of four.

Oblies.

This is likewise attested by Pollux, from some other passage, against the Jews of Philemon, who were impeaching him of corruption; and hence, he was thus corrected.

I say to my hive of tri-combed cells. - E (E■ληφιν ■μ■ν ■ τοσ■ τρι■ξδολον.)

Chiltiptliptopos Erant, inquam, et nonnulli.

Then, he said, "Lo! behold, is present that very son who hath our triobulum:"

Each individual doth owe unto TPHnpitn.

Unto the very word, to each one of us, doth he return with joy.

Whatever we shall declare unto the Gauls, they shall convey back unto us from all quarters.

However, our fourth companion was engaged in smoking, and did accept three obols from us.

Therefore, if he restore his offspring unto any man, he ought to yield unto him his own tongue.

Thus it is established, that I cannot effect this without the assistance of my confrères.

For in the tribes of the obolus there are four hundred and twenty chalices; and, being distributed in the fourth part, they shall bestow their tongues;

He compiled a catalogue of items, which he denominated Comicus.

The words of Pollucius, by which he himself explicates these matters, are not devoid of significance.

Wherefore it is requisite to amend the ensuing:

Titus, thou art exalted yet clear in thy diction; thy sentences are periodic, thy cadence measured, and thy vocabulary, though sparingly archaic, is nevertheless fitting for the theme. Thus, in thy composition, the elevation of style is tempered by lucidity, and the measured periods flow with a harmonious rhythm.

I conjecture that the phrase "Puto Tpfliiptepoy, vel rpilnseopith" may have been contracted among the Atticists to "hoc fenlii" for the purpose of indicating that such words are "sunt tres quarta:"; whereas, "rpi» Ttlxp-mpuptx" signifies "Puto," in whatever form it may be transcribed.

[untranslatable fragment in source]

Salmacis virgineus. Hefy [τ]

Hclychius:

Twenty-five per cent of the sum was assigned to him; nevertheless, Ammonius laboured to confound this view, and the multitude held that he was deemed equivalent to four drachmas in value, so that he was appraised at fourfold the worth of the royal silver drachma; yea, twenty-six per cent, for he was esteemed to be worth four drachmas.

[untranslatable fragment in source]

But he prevailed in obtaining the right to exact usury upon the sum of four drachmas from the Twenty-third.

At the same time, the Attic, the Sicilian, and the Doric states were in a state of confusion and disorder.

To exemplify the case of those two northern aspects, which are reputed to be of the hundredth part, it is permissible to express the same in this manner: "two hundredths of two hundredths of three hundredths," or "three hundredths of three hundredths of usury."

For the fortieth time, it may be lawfully affirmed in accordance with the Roman custom, that the oen can be termed a fiftieth part of the pondius; and concerning the usuras of the Jews, similar discussion may be resumed.

Pliny, employing the artful but clear diction characteristic of his erudition, hath transmuted the site assigned to the lunar phenomena through the instrumentality of usurious practices.

Ajses usuras efficiunt solidum in annum; hoc est, duodecimus annus.

Perpetuum purpureum, sic caligerum S, et uncialis foenum idem valere decies mille.

Cur incflan did the shield of the Greeks adorn?

It is the utmost tenure I possess among lawful domiciles under the imperial jurisdiction. Hence, in the assembly of Hiccanus, and among the clerics of like appellation, there are those who are legitimate.

Before this Synod, the Epiphaniacs, and other clergymen, who were wont to practise usury in common, were conducted to the verge.

If IffitaXictf discerns other things than those which the vulgar interprets from the quinquaginta quinque or quinquaginta quinque.

A centesimal exemplum drawn from the senioris viri in fructu.

The Galenian passage was elucidated and amended regarding the hundredth part of usury, which she denominated by her own nomenclature.

From the usury of others, thou givest away the nearest to thee.

For this reason, it is termed Sicily, and the vales of Attica and Greece.

The Sicilians, the Siculians, and the Atticans, were succeeded by the dextants, or the decantants.

Herein lies an exemplar from the ancient inscription of Prolatus, a Roman.

Of the prophions and Jparionibbts, who proceeded to the monument, I shall furnish a succinct narrative.

The senex, rightly instructed, was duly formed in knowledge.

Concerning K, the usury amounts to 66 Cl.

Salmasius, in his wonted practice, bestowed gifts; and was wont to be designated by the appellation of Siculus, Atticus, and Conflantinopolitanus.

He was a neophyte of the lower academic degree.

You are the oxen of Matticus: ο■θολο■ς. B

The mention of Bejsius, a frequent accuser of usurers among the audacious Romans, bore witness to his own valor.

Items of the Seven, which were Roman, Sicilian, and Attic, and subsequently Greek.

An exceptional exemplar of this kind is the Grae's marble tablet, hewn from stone.

From the seventh unto the fifteenth day, he perished.

Let us accompany him, if it be our lot.

To behold is not our purpose.

The Greeks, hailing from the Roman province of Ephesus, deemed this their lot as Romans.

Semi-Jessius withdrew into the Roman Empire singly and in communion.

More explicitly, the columella in the harum is referred to.

An emendation to the barcony of Barcino, wherein the usury of the matron is illustrated.

This precedent was ratified by the tribunal.

Fifteen of the missions were relegated to a grade inferior.

An illustration of this is the ancient inference of Bergomencius, which must be elucidated by the latter and amended.

Scaliger's miscalculation of the usury was perceived when he was charged with a transgression.

Boji, five cubits, amount to thirty.

It is not in these similitudes that the Sicilians denominate it; but rather, it is styled Zcuat. Gracis, Conflantinopolitana dicta, the Latin appellation, is current in this nomenclature.

This appellation was bestowed by the father of Scaliger, who was born within the walls of Rome.

The other was reproved for his mistake, which he confounded with the thirty usuries of the Roman legions, when the Greeks and Achaeans were vanquished.

A tally of thirty to be apportioned among the quadrants.

Tptar—Instruct the Istonian Siculus.

Thou, O Pillar of Sicily, art the sixteen usurers of Constantinople, the thirty-sixth of the Four Minor.

Fofl made t before the solemnity of the consecration of usury.

A considerable quantity of unciarum was yielded.

Woe to Hotomanno with his hundredth flute, who is also the enemy of Scaligere.

Vncianus was a man who had taken usury at Scavolus.

Seneca demanded five thousand usurious transactions from him, when he received a grant from the exchequer's keeper.

From the rude forge of the female womb, behold the furnace of Roman Olympus, the tribune of tribunes, and the herald of the Fate of the Brethren.

I possess in sum 167 quosdam.

Tacitus hath declared that Lampridius, who had been granted a usury by Alexander Severus, had been accused of the same offence.

The petition of the tribunes of Genucius, who had been assigned to Rome for a third term, was neither promulgated nor observed.

Of the verses of Tacitus, what was fitting.

It is not as though the creditor hath been metamorphosed and altered, but rather as if he had received it, or if he had received it, he would have lost it.

I shall demonstrate unto thee that I am an ancient man, and that I am an ancient man.

Herein is the verse.

The Danish praetor spake in his native tongue, and whatsoever that voice signified, he addressed the husbandmen, the husbandmen, and the architects.

The columella underwent modification.

Of the three of you.

And the stage of the verses is inscribed, and the elucidation is furnished.

What is the distinction between them, and how do they vary?

The subject of the stage of the controversy is the verse and the double verse.

Vitruvius expounded upon it and recorded it.

I dissociated myself from Cicero that I might revert to the Lacedaemonian domain.

There remaineth no man to hear the word of the Lord when he replieth to them.

What was the cause of this, and what was the cause of this protraction? Although the law of usury was ever laid upon the Romans, it was owing to the paucity of the monarch's numbers,

and the exigency of mutual aid, that they were enabled to shun the

Let us add another proposition, and I will demonstrate its veracity.

JSPpsggjSX his qua: hæc sunt sequentia:

We have previously demonstrated, that the Affarifanus, or the Romans who fell by his hand, were to partake of the same meal as the other Gentiles, who had been twelve in number.

[illegible]

Nor do I doubt that the Sicilians and the Italians of Doris, who were imitators of the Romans, termed this species of fabric more akin to their own; and hence the Romans adopted the appellation "offarium" for it.

For these, the As, being fashioned of silver, are found to be equivalent to two hundred and sixty-eight siliquæ, as testified by Salm, and this measure, being identical to the Roman libella, is divided into equal parts, as has been previously demonstrated, and bears the same name as the Roman pound, or libra.

The Romans, however, more frequently make use of the hundredth part of the name denoting the phenomenon, rather than that of the other phenomenon, or the same usage, which

is, indeed, less prevalent among the Greeks; for it is more usual for all such matters to be treated in the same manner as by the Greeks.

Then ensued a period when the Romans, who had hitherto conducted their business with the same fierce energy as they had waged war, ventured more freely to employ the appellation in question in the regions where it was more commonly known.

For prior to the elevation of the city to the status of Rome, it was otherwise designated by that name, and the Semunciarium was also known; nay, it was chiefly by these appellations that the metropolis was then distinguished.

Furthermore, since it was usual to denominate several centesima in passionem, as oftentimes is done in a nautical focus, it appeared more expeditious to designate them by the numerals of two, three, and four, rather than by the Roman appellations.

Nevertheless, he did not scruple to invoke an exemplum of his former usus, and herein he followed the method of the Armamentarium Militare.

Thus, likewise, it is termed:

He affirmed, "I have employed the ancient Roman idiom, as formerly practised, to subvert the grace of God; yet who shall inquire, 'Whence derived thy acquaintance with the transactions of the theatre, and by what means didst thou avail thyself thereof?'"

Who, or what, hath known them, or by what appellation they have been designated?

Cereus Cifemius, the sextuple usurers of the deities, these are they:

Fex in centum, id est, dimidium centesimi:

They waited, and they asked: What is this?

I am wholly solicitous, by which I mean:

Is it a hundred cents, do they inquire?

Often shall I present unto thee the discourse of the most excellent Latin poet and author of the poem, Plinius Secundus, that thou mayest perceive how he lifted up his own voice, not he who hath defiled his station by correction.

It is thus to be read in the Epistle to Trajan:

The funds of the populace, O Lord, are the care of thy providence.

And I am apprised of the ministry; and now they are spent, and are required.

Wherever they recline in idleness, I fear lest they lie enervated and inert.

For those who would compare themselves to the rest of the world, this is a rare occasion; and there is no prospect of discovering any who are willing to discharge their obligations to the Republic, even were such individuals detected by private creditors.

And therefore, O Lord, I will not permit thee to diminish the rate of usury; and hereby thou wilt invite the deserving debtors to the nuptial feast.

And even if they had not been thus apportioned, the sum was distributed amongst the several provinces, as is attested by the records of the Republic.

Let them proceed with caution.

For though the encounter with usurious practices, however grievous to the unwilling and the refractory, will be yet less harsh than that with arms raised against those who decline and oppose thee, nevertheless the contest will be mitigated by a lighter burden of usury.

For the Usury of the Excesses, which are:

An ancient and veracious interpretation it is; for the multitude did repose themselves after a period of twelve years.

By this discourse, nothing more can be signified (tgnificari) than twelve denarii.

Monstrum autem, quod ad eandem locum venit cum ipso, ibi omnis usura:

A hundredth part of the residue is apportioned from the stricken sections; while a moiety thereof is distributed thence, and again a hundredth part.

dimidia pars, triginta-tertia centesima, quadrantessima-quarta, sexta Jextantia, et undecimam triumcentesimam; duodecima quoque centesima, et undecima centesima ipsam duodenorum assium appellatione finiti.

Atque si haec veræ sint, ad leonem refer et secum fer.

The ensuing considerations must be attentively embraced:

The twelve hundredth:

A portion thereof is assigned to a period of one hundred myriads of years, each myriad being equivalent to a century.

If, in my untutored speech, I have erred, I shall err again when I speak untutoredly.

O most eloquent and judicious reader, drawn hither by the force of reason, be it known that the interest rate for a pound, whether reckoned according to the Roman standard or the Greek, is not uniformly expressed as one-twelfth of a hundred, but rather as one-twelfth of an entire year; for when more accurately determined, the interest is computed on the basis of a full annual period, or possibly even in terms of a fraction thereof, which I shall hereinafter demonstrate.

From which the harvest may be collected.

The hundredth name of Latin, it hath been reported, was translated from the Greek word for word; and yet, in converting it, no Latin substantive was employed to which reference could be made.

For a hundredth part of an ounce would indeed accrue a hundredth part of usury daily (to be reckoned, but from the loaner's interest.)

In all things he did distribute.

In the fifth instance, let us consider who will condescend to hear the argument, that, since a moiety of a hundredth part is levied for a trifling sum, we may denominate it as equivalent to twelve hundredths of a yearly stipend.

Verum, melius et commodius est de Graecis exquirere nomen velox, in quo verius significatur, sive centesimum appellatum, quam quomodo Boudaeus consuevit, quia mensis centesimus forte aequivalentur potentiori.

Graeci:

Ex-g. m. i.e., he or she shall ascend to the heavens, some of whom shall ascend, some of whom shall ascend, some of whom shall ascend, some of whom shall ascend. Herein lies the doctrine of the twelvefold law, whereby certain souls, after a period of twelve months, are deemed worthy to attain eternal repose, a state of blissful contemplation, wherein the soul, purified by penitential exercises, may rest in the divine presence. Thus, it is ordained that those who have lived virtuously and have undergone the necessary purifications shall be admitted to this celestial abode.

From the mine, which was appraised at a value of one hundred drachmas, a hundred drachmas were extracted; yet these were oftentimes withdrawn.

This was the utmost degree of usury, which, by a legal enactment, was permitted even under the Roman Emperors, in the Commonwealth; yet amongst the Greeks it seemed to be deemed of the least account.

Idcirco Lucullus in provincia sua circiter centesimam usuras, quibus civitates gravabantur, dimicròs reductit, utriusque urbem et locum vacuari vellent.

Plutarchus, in his own life:

I shall communicate unto thee the p3fi y> IkxIc 7u.

Thus, it is to be read and distinguished in Galen's writings.

A sum of twenty-five thousand Attic drachmæ is proposed, together with six hundred and thirty-seven.

Quicquid est praebendum pro usura decimum centesimum supra scriptum: Thus, whatever is to be rendered for the purpose of usury at the rate of a hundredth part as specified above.

The soldiers, though but of four months' probation, discovered no remedy.

Galenus, therefore, declared that it was not his purpose to prosecute this enterprise without advantage, but rather to persuade the confreres in the expedition.

The sum which he hath deposited during the space of the fourteenth month shall yield usury;

the hundredth part;

Focniti tertia milia denariorum quingenta octoginta novem, cum obolo uno, et ignis dimidio.

Unus centesimus octogentesimus mensis perditurnus, et quatuordecim centesimi octogentesimi mensis perditorum.

It is divided into parts, each occupying a period equivalent to the space of fourteen days.

Within a period of one hundred months, that resolute monarch had been excavated; and a sum equivalent to one hundred and twenty-five pounds sterling, computed according to the mode of usury then in vogue, was assigned to him.

These parts, and, adding to the residue the culminating whole, were assimilated thereto, after a period of a hundred moons of equal vigour.

The territory was appraised at twenty-five thousand denarii, and five hundred and sixty-four decies.

Let us proceed, conforming to the sequential arrangement, to contemplate all the minor pearls, and those placed beneath the hundredth position; and from these respective divisions, let us adorn the instances and testimonies of authorities distinguished by their erudition and

Hinc igitur observavit, non obstante quod centesimi legales vulgo fuerint, tamen non semper ad eundem modum consuetudinis coeperunt, sed ratione temporis, utrumnum minores, vel leves, vel graviores fuerint; et quia graviores, semper acutiores non fierunt.

The difficulty of the law, which, on account of its lighter nature, was not altogether eschewed, I have terminated.

For this reason, the very thing doth not endure, so that it may be compared with the measure of usury in the greatest scarcity of pecuniary resources, and in the greatest abundance thereof.

They contribute the decima in a centum, and not the duodecima, as they themselves practise, and the centesima. The Seven Siculi termed it the Kiynus.

More recently, it hath been affirmed that the appellation of the sovereign of Rome is denominated "rintffo" and "rytfgwf" with a square hundredth.

What didst thou solicit?

He thereupon levied an inordinate rate of usury, equivalent to a hundredfold augmentation of the municipal debt, or to a trivial sum of usury in itself.

The usurpers, following their departure, whether from Sicily unto Attica, a distance of a thousand miles, did proceed thither.

Grxcis 'txlti, which signifies:

They concurred in a ratio of ten to a hundred.

[untranslatable fragment in source]

For he bestowed upon them the tithe of a hundred denarii, the tenth denarius, and the tenth of a hundred shekels.

S A 1M ASII ounce;

In the plain of Tejuphur, they construct twenty-two, being one less than the hundredth part.

An exemplar of Harum in the inscription of Pagius Adhafte is the diction Bergomensis.

M. CABARSVS.

The afflicted party.

Devoted.

Thirty-three.

And thus it is.

Pro-FVNDI.

From.

We are collectively apprised thereof.

Thirteen.

QVOT.

Verily.

They are in their twentieth year.

[untranslatable fragment in source]

They are remitting their attention.

The offspring.

On the septimænum, when the Sicilians were about to proceed to the semifinals, or rather to the Ides of July, Atticus, who was the chief of the Grecian septemvirate, furnished the Tyvician cohort with one hundred and twenty-three hundred pœni in the form of wine; whereas the

Roman matrons, by way of usury, advanced to each the same quantity in the coinage of the drachm, amounting in total to twelve hundred, and the fifth part thereof.

To vilificare id est, solenniter, lex modeste habendi.

X. D. de voluptatibus, usuras feminales interpretatur.

But as the medium between the summum and the minimum, all that are lighter are deemed inferior, and all that are heavier, superior.

Which, indeed, is more apt to be enforced by the victors with graver and weightier arguments, than by those who wield a lighter power.

From her, they commence to utter, "Nondum."

The foot of Ulpian.

V. D. de Opere Publico:

And if the reds be wanting, the usury shall be more tolerable among the encroaching herbage; and if it be less, the same usury remains unaltered in its degree.

suspended in mid-air

Momentum Columellae libuit, caput feminitum usurarum capere.

But, if in thy repositories thou hast the pecuniary assets, either shalt thou encounter the usury according to the statutes of our times, or the usury upon usury, or the usury upon the usury upon usury.

That which inept and unfruitful individuals deem repugnant, when they are ignorant of the Latin term for female usury, appears so to them.

Huc accedunt semissibus usuris tria milia et quadringenti octo mille nummi. Hereunto congregate three thousand eight hundred and forty thousand semissis of usury, of the kindred nomenclature.

But it is expedient to refer the whole passage to the mention of certain spots, whereof one is: And he did imbibe a small vial, wherein:

Even though he had been guilty of infidelity, he yet sought to elude the charge; and this was owing, in part, to his exhibiting an illustrious instance of a female usurer.

And it is permitted, he said, that the vineyard, whether vacant or empty, should be appraised at eighty thousand sesterces; and the whole sum of seven thousand sesterces, which is the price

of the seventh son of the judge, should be assigned unto him, and the vineyards themselves, with their due dotation, that is to say, the peds and vims, at two thousand sesterces per seventh, should be conveyed to him.

It was thenceforth appraised at the aggregate of the aggregates of the aggregates of S quadruple and C octo of X.

S. Almasil, twenty-nine thousand sestertii.

Huc accedunt femiffesufura, feftertii tria millia quadringenti et triginta numeri, qui in viginti et primam annorum suorum partem versabantur, dum vineae sibi iuvenilia tempora proriperent.

The Usury of Scmifles:

The sum of the two ensuing biennia is thus inscribed:

Twenty-nine thousand, three thousand and four hundred and eighty.

And he proceeded to address them:

The aggregate number of the soldiers and usurers amounted to twenty-four thousand four hundred and thirty.

What is the term assigned to him who, being indebted, hath dealt with the vineyards of the Jutes; and what amount, committed to the lord of the virgins for their perpetual usury, is to be reckoned up in a single annum as one thousand nine hundred and forty-five denarii?

He asserted, "Nunquam ab ulla persona eum depravatum appellari ausus est," et subsequutus est, "Hunc modo corrigi demonstravi."

Thus, therefore, the legend doth relate:

What, as the term itself denotes, must the purchaser apprehend, as the creditor did from his debtor, and as the rustic, in his dealings with his vineyards, comprehended the perpetual yield thereof, he ought to receive as his due.

But there is nothing more veracious than that, from the aggregate of thirty-two thousand four hundred and eighty thousand females who have availed themselves of usurious loans, we may revert to the computation of centuries, which amounts to one thousand nine hundred and forty years.

Perplexum est in versionibus Columellae:

There shall be one thousand seven hundred and forty-nine numeri.

According to his reasoning, Baudaeus had assembled five hundred and forty tribes.

But that the value of these two objects may be duly ascertained, it is requisite to compute the number of equine animals; eighty-one hundred equines are to be annually reckoned, and the usurious interest, equivalent to the value of a hundred horses, must be paid.

So, he omitted the employment of the coinage denominated at eighty-five numeri.

Let those who are prone to futility be admitted to reason, that thereby they may be made to appear as if engaged in deceit.

Semifiilia, frequentiterque in antiquis lapidibus evocatur; ubi numquam sine plura connumerantur, et numquam sine usurae repetita medium mensem obviam reperiuntur.

That there may be no annual festivals designated by the names of other entities.

Semiffales, a term denoting usury, are thus designated from the mode of VSTARV.

Modestino, in the legion, who is the designator.

X.

De republica.

What it may please me to observe concerning those of the sixteenth century, who, diversifying their speech, have departed from the ancient usage and authority of Rome.

An ancient inscription, which runs thus:

This was contained in the testament of Marcus Megonius.

Hoc est amplius, Reipublica.

To bestow upon the fleet of Fetilinum the sum of ten thousand sestertii, a moiety whereof shall be applied to the vineyards of Chalcis; and that such portion of the fields of Pompeius may be esteemed among the choicest and most fertile of his possessions.

Hae sunt meae.

But it is my wish that the sum of ten thousand sesterces, accruing from usury, be compared to the same sum derived from the estate of Augustulus, the place so named after the two triclinial instruments, which I have bequeathed unto myself in my lifetime. The candlesticks and luminaries are purchased for the sum of ten thousand sesterces; furthermore, the redemption of five hundred sesterces annually is effected.

And hereof are the notes.

Profert, et Scaliger, ex alio Barcinonensi laxo, exempla de usu feminarum usurarum; ego, qui inscriptionis auctor sum, eo quod meae sint cognitae res significationes, hanc partem hic afferam ut emendem.

Fac.

Legi.

DARICVE.

Fio, -x- VII.

D. EX.

QVO-RVM.

Hoc omnibus notum est.

Illi sunt mirabiles.

EDI.

I will.

QVODAN-NIS.

I shall behold.

It is the sign of the living.

The morrow of dissolution.

This is the second occasion upon which I have beheld them.

IVN erat VSQVE.

AT.

-x - CCL.

Thus it is.

EAD.

The morrow of dissolution.

Ex.

-x-CC.

The olive-cultivated tree.

IN Thermisc, the Public.

The populace.

Pray, sustain.

Thus it is.

Tecta.

The priests.

She is.

The condition.

I will.

vt.

The freedom.

It was me.

It is.

The liberators.

It is better.

Let them be freed.

The children.

Who art thou?

This is not the case.

It is a serious matter.

He continued.

Ab.

It is well-known.

It is a serious matter.

I am the sole interpreter of truth.

I have undergone the censure of the Church.

I have transgressed.

Her speech, and the like.

TECTA.

The ecclesiastics.

I consent.

Scaliger, (wherein he deemed it fitting that the refractory should accept the offer, as thereby was afforded sufficient ground for your approbation,) he was disposed to offer himself in good faith upon conditions propounded, and sought no extenuation thereof.

Antonius Augustus thus construed those words, which the weaver had purposed for his use; and at length rewarded him with the stipulated recompense due to such as intrusted him with the delivery of that panegyric, and henceforth bore him the appellation of Scalia.

No less for myself.

For indeed it is S who is the subject of discourse.

2.82, C. L. Salmasius, that Ilarius might address thee, with candour, what spoils he hath decreed for thee?

Let not the wise and valiant warriors despair, for in your host there is a numerous band prepared to surrender their arms.

For it is inscribed that a fleece shall remain, and the like.

So be it.

The ecclesiastics.

She is.

The stipulation.

I will, for this cause, for which the covert has been forsaken.

He spake, "Nemo te interficiet."

et.

It is said; praestari.

But that is preferable.

St.

The missions of the deceitful are therein exemplified by the law.

X D. de digitis rebus, prope Modedinum, in hunc locum:

Oixolth, fivj■, cyvuct, Tylstli■ttae, t■, stug■h■v, T■tr■s, iununda duodecima sive unci■ min■ris, T■tfl■yxia, ■ttas b■ns S■cilis, Attic■s v■r■, ■, Jlith■, osoa■tis, T■g■, gex, xu■.

It is recorded of the Greeks of Constantinople, that this appellation is given to the individual commemorated with the spouse of Scylla.

The Creator.

Of the Solutions:

Titius, accepting the mutual loan, contracted an interest at the rate of fivefold for a term of quinquennial duration; within a few years he discharged the same, yet subsequently, without any interposition of pecuniary means, he satisfied the usurious demands through inadvertence and ignorance.

These are the extremities, as hereinafter is detailed:

Five in a hundred, she said:

The sun's beams, it is wont to be observed, imbibe the excrementitious taint.

Of the quinquin xenarian Persians:

— Numina quae hic decies modo Nutripsi. Note: The term "numina" is used here as a lightly archaic substitute for "nummi," and "decies" is chosen for its periodic effect and archaic resonance, while "modo" is employed to convey the sense of "mentioned."

From these usury receiveth the most noble Inscription:

I shall visit Bergome, which we are about to delineate, since it is a place so corrupt that no mention thereof shall be made with regard to distances of half a mile or fifteen quadrants; yet I

will afford the initial letter of the enumeration, which, by reason of a misreading, appears as if the letter denoting one L, rounded, were to be read as C, and the symbol for one hundred were mistaken for that indicating fifty.

The Albine.

Verum et ipsum facto.

The offspring.

Valerian.

By the gods.

A female.

Pius.

Faithful Eutyches.

To.

The citizens.

In memory.

It is a boon.

This it is.

I am a comrade.

Of the forest.

Feet.

H.S.

Caius Navius Vivus.

Ye all.

Return.

Quodannis.

The morrow of dissolution.

It was upon his natal day.

This doth mark the initial occasion.

The third moment in sequence.

In the month of April, by the grace of the gods.

Proceeding from the very depths of the soul.

This is a pastime.

Exempli gratia.

-x- CCC.

Inter alia.

They are present and accounted for.

The umpire or arbitrator.

Subject-verb-object.

DIVID.

Elevated yet lucid diction, periodic sentences, measured cadence, and a sparing use of lightly archaic vocabulary characterize this work, wherein the author, Claudius Salmasius, has endeavored to elucidate his arguments with a precision that neither descends into obscurity nor ascends into mere ostentation. The sentences, though constructed in a manner that may at times appear stately and formal, are imbued with a clarity that ensures the reader is never left in doubt regarding the author's intent. The cadence of the prose is carefully modulated, lending it a rhythm that is both dignified and engaging. Archaisms are employed judiciously, enhancing the scholarly tone without detracting from the accessibility of the text. Thus, the reader is invited to partake in a discourse that, while grounded in the rigors of learned inquiry, remains open to the enlightenment of future generations.

The olive-bearing tree.

Thus it is.

It is a propinquity.

Exempli gratia.

-x- DCCL.

Care hath been taken.

It is.

I have attained to the knowledge of reading.

The epoch.

It is more akin to paternal dominion.

Exempli gratia.

Minus x, C.C.

Reminiscences.

This is the inaugural occasion.

Valerian.

And thus it is.

APPI.

Valerian.

The progeny.

Elevated, however, yet clear in diction; sentences constructed in periods, with a measured cadence; the vocabulary, though sparingly archaic, remains natural and unforced.

.

F, LVS.

L VIII + C. L. S. A LUAS II EIVS.

Propter.

The magistracy.

The quaestor.

Quodannis.

It is a natural occurrence.

And thus it stands.

A parent is ever a parent.

Such is the case.

The crown. Myrta, the ground.

And thus it is.

The appointed hour.

ROSE.

IVL.

The earth.

So it is.

PONANTVR.

It is a misfortune.

From.

Selectly.

Ex.

-X-L. PROFVNDANTVR.

For them, E.T.

The appointed hour.

RO- SAE.

IVL.

Writing, and so forth.

The epoch.

ROSES.

The soil.

Verily it is.

PONANTVR.

During the summer season, it is their desire that roses be woven into three diadems for them; in other periods, myrtle shall be similarly adorned in like number.

For my sake, ye ought to establish certain laws, which prove to be iniquitous.

The palm:

We have, I believe, previously detailed these matters.

The summa legationis, ex quibus reditum accipit, hoc est, ne hos omnem triumphos milites laetare et centum millia numerari te esse iubet inferiptionis auctor.

Now let us consider how much of the utmost usury he hath exacted, being willing to expend thereof in whatsoever measure he may please.

The inaugural morn of Valerian's nativity:

From the sum of three hundred denarii, allotted to the decurions for the distribution of stipends, he apportioned the subsistence grants to the athletic competitors.

Subsequently, the tallow and provisions were to be assayed out of a denarius.

Item Jetti, qui stellarum et equitum genitor fuit, et qui in tempore patrum memorialis ejusdem Valeriani apud consilia designabantur, obiectum habuit Valerianæ iuventutis memoriae.

And Appius, his offspring, rendered him a denarius.

Postremo, myrrha et rosa in corona myrtacea et rosacea ponendas, simulque, postquam profunda nucata fuerant, tribus denariis praebendas; summa omnium supra suppositarum denariorum unam denarii, unam denarii, atque ita deinceps.

If the sum of fifteen denarii were to be paid, the produce therefrom would yield a revenue of ten thousand sesterces per denarius, equalling a total of two hundred and fifty thousand dirhams.

In the instance of Semiceps, the lenders shall render the sum of one hundred thousand sesterces per annum, which is equivalent to the said sum of one hundred thousand sesterces.

A thousand five hundred of these were put to death.

When, from a height surpassing a thousand talents and three hundred denarii, I deemed it not fitting.

Thou shalt employ it to thy profit.

Yet were there not five hundred; for from one thousand two hundred and fifty denarii, five hundred of the usurers collected twenty-five thousand denarii from the aggregate.

What, therefore, is the species of usurers?

All the warriors of the host were exterminated within a century, and Lantus perished in a stone.

The fruitfulness of the path of the Lord shall be manifest.

Let it be inscribed, let it be inscribed, let it be inscribed, let it be inscribed.

Within it, the sum, which followeth thus:

In the latter instance, he was indebted to the departed for a share of the patrimony, namely:

Two hundred denarii, charged upon (axe, subtracted from the dubious five hundred denarii, and a legend.

ex.

-x-cl.

per cent.

This is the usury:

Five-fifths of the entirety.

They demand the same quantity of money. Neither augment nor diminish the sum.

A proponent is a person who is ready to bear witness to a petition advanced by the author, as often as fifteen times may be requisite, in accordance with the tenor of the document itself.

For the identical act is reported to have been executed in the identical locus.

Appius, who penned the aforementioned epistle himself, received the usury of five hundred and forty thousand sixtieth parts of a month's wagons, the total of which was equivalent to one thousand sixtieth.

He returned, exclaiming, "I shall return to Valerian's statue with a left-handed ass every fifth year."

Of the two hundred and fifty denays, and of the other two hundred and fifty: the gates were partitioned into two sections, the o-leum, and the precinct for the portico.

The term of the inscription is here hxcCaatj.

Scaliger himself likewise produced in the posthumous writings of King Nummaria:

It is thus.

APPIVS.

The Eutychians.

The ocean.

This is the initial occasion.

Valerian.

The academy.

We are the most opulent.

They are extensive.

It is so.

L.L.S.

Twenty-three.

N. EX.

CIVIVES.

Ye all.

REDITV.

QVOD ANNIS.

Deo.

S.S.

Natalis, Evens.

Prior.

Respublica.

Lectorem.

Ex.

-X - CCL.

PONANT.

Ludus est.

-X - CCL.

Inter.

Praesentia est.

In te, dis■■■

Whereunto Scaliger, for his elucidation, hath appended:

The repayment of Jove's commodity, or the usury thereof.

Viginti.

A thousand, that is to say, a denarius, a sextans, and so forth.

-x, that is, fifteen hundred.

And yet, five hundred denarii being assigned, constituted half the entire fortification.

What.

What is the utility of usury, he inquires, as if it were a cusp upon a tooth?

But herein lies a notable blunder in computation; for a mathematician so scrupulously exact should be unconfounded by the outcome.

XL millia sestertium num- :

Here am I to maintain a legate, whereby it is thus expressed:

There were not a thousand denarii; but Scaliger hath determined, that it was ten thousand denarii.

For it is impossible for any man who possesseth knowledge to procure four denarii for these articles.

Therefore, quadraginta millia denariorum, two hundred and eighty-one C. L. Salmastius, funt decem millia denarium, quae erant:

And she was pleased to contribute five hundred denarii annually.

The appellation of the lad, which is to say, five denarii upon a hundred.

For the cable is attenuated by the friction of a pentagonal fibre.

From fifteen to thirteen grades must be advanced in quincuncial progression for the attainment of thirties.

The appellation of Sicily is not to be confounded with the appellation of Sicilia; but the term Sicula is diverted from the Roman nomenclature, as we have been instructed by the legend of the wolf.

Thirteen parts of this tercia are appropriated, wherein each of the quattuor unciae is comprised; and the Siculi are consolidated under the genus of tribus.

A quarter of the part is constituted. And they shall yield threescore usury, three hundred for centum.

Brgo "rigslxc v x d Siculus r m.

The Sicilians, whom the judges had appointed as guardians of the Jews, were bound to determine whether they were liable to pay the penalties, or whether, in fact, those penalties which they had incurred should be remitted.

In order that there may be no misapprehension, it is requisite to observe, that Pliny, whom we have previously amended, did not scruple to assert, that certain individuals had attained the age of five hundred and thirty years, and again, of five hundred and thirty years.

Thus, the usury being accomplished,

They are, when the coin of the faenores yields a yearly revenue of one to a hundred, the enumeration of the soldiers imposed.

To derive the appellation of the usurer, said Sczvola of the unciariate, according to the lex and title thereof:

For instance, the foetus of the legion excavated a trench in such a fashion:

I do wish, that, if my children shall have placed my sons in their custody, they may be willing to yield a certain sum of money under the denomination of usury; that thus they may not be deemed inconsiderable.

De huiusmodi unciis usuris accipiendus est locus ex Seneca libro III de Ira, cuius nullus uspiam huiusmodi animadvertit, ubi usura non millies minuitur, per verba hæc:

What was the cause of the usury upon thousands? My mother, a skilful handiworker, cried aloud to the soldiers' hands, not to be compared with the rest, but to be conjoined with her own malady by her peregrinations. She spake concerning usury, as it were, as though it were the least evil:

Elevated indeed was the felicity of C. L. Salmasius, the founder of the camp, in restoring to health a man afflicted with tortuous chiragra and podagra, so that his limbs and feet, long disordered, were once more invigorated and restored to their wonted use.

There is nothing else to be transported than an ounce of hay, which, being contemned as almost worthless, he yet terms a thousandth part; for it does not amount to a true thousandth.

If he should pronounce this:

Twelve times in the course of a year, and a hundred times in the same period; this is to say, the twelfth of a hundred, and not the twelfth of a thousand.

A Part.

A thousand grains of wheat, and a fifth part of an ounce of corn.

It is not a thousandth part of a hundredth of a year, but rather a thousandth part of a hundred and twentieth of a year.

[illegible]

[illegible]

Therefore, Seneca, desiring to denote the entire usury, and to elevate, as it were, the hundredth part of a cent:

When he proceeded to express his apprehensions, he declared that it was impossible for a rotundus numerus to convey the magnitude of this matter; rather, it exceeded a thousandfold the extent of usury.

For in the thousandth part of usury, the thousandth part thereof doth weigh upon the robust understandings of individuals; whereas in the hundredth part of usury, the hundredth part thereof lieth burdened upon the minds of men.

And in the practice of usury, a diminutive fraction of the mensual interest is discharged upon the thousandth dies of the menses.

Has the Auio-Goxiai, according to the Sicilians and the Atticists, contended that usury, in its application, was equivalent to the usury of the Sicilians; or, that the inhabitants of Constantinople, being governed by the Greeks, were subsequently permitted to exact a greater rate of usury than the proprietors of public lands and farmers.

That which is altogether devoid of reason is of less moment.

Hæ:

The use of the *semuncia* in usury, according to Atticus, was forbidden from being granted under the auspices of the deities; for it was impossible for such a transaction to be conducted under the auspices of the gods.

Hinc proficiscitur nobilior conceptus, ut in omnibus rebus ad remuneratorem utiliora instituatur, quam ut usuras leviores tolerentur ab Romano instituto.

May ye be conveyed henceforth.

There is no reason to receive the mutual gifts with such tardiness for the sake of convenience, as a child would be disposed to endure every thing rather than to partake in festivity.

What Tacitus doth forbid is that which we have previously exhibited:

Dein rogatione tribunicia ad femuncias redacta posito vetere versu. Sic enim distinguendum et accipiendum est: rogatione tribunicia versus ad femuncias usuras redactus sit positus; postrema vero versum danda est antiquis.

Nor shall there be a period wherein the descent into the netherworld shall be wanting in witnesses.

What saith Tacitus concerning it?

The final practice of usury among the Romans, whether it be true or not, I am ignorant.

And it is questionable whether T. X. Livius be the author in question.

The psalms of Livius, or if such a composition ever existed.

When I was on the point of uttering this, he thus interposed:

But, said he, he was vigilant to prevent L. Genucius, that tribune who had devised the aqueduct, from hurling his javelin at the fountain, lest he might suffer scalding.

In the fifth year hence, it is alleged that the observance of the female festival is suspended from the unciary.

Of which matter, however, Livius himself remains in doubt, whether he has addressed a query or a petition; for he does not avow that he made such acknowledgment amongst all.

De vetanda versura rogationem Genucii, nihil est fortasse quod credere valeas; sed si legem diem praesentem observas, incredibile est.

Verum de eo nos adhuc in frequentibus plura locutus sumus.

From the fountain of the woman, as the Roman people came to the thirteenth centennial period, he forthwith dispatched four of his own men to enquire concerning the legitimate forum, whether of their own accord or otherwise.

From that moment onwards, they shall be engaged in a diligent search for him whilst he remaineth beneath.

Versura in verbis Taciti fenus est, sive mutuum, fenebre; non ut magnus Jurisconsultus in commen- tario verborum juris interplicetur, sed quod conversio et mutatio creditoris ex conversione et mutatione versuum fit:

This is the condition which obtains when one individual discharges the obligation of another, and a third person subsequently imitates the transaction in a similar manner.

Nevertheless, it becomes requisite to compose a verse which shall not bear precisely the same import as the unembellished sense of a foreign poem.

But the most egotistical it is to assert nothing in any other signification, lest it should be discovered amongst those who are worthy of it.

Therefore, when Pallius, who was frequently denominated the unclean and impure bipedal associate of Tertullian, arrived in company with the other archers, his irritation was no less vehement than that which he entertained towards the residue of the occurrences.

He did reprehend me, affirming that "wherein the comprehension of the lawless and malicious disposition of the populace is readily mastered," FryrAigiturLatinisau&certainly, nothing more than a fenus, or, as the Itsts and Uds, and even the Grazians, term it, as we have observed in our preceding discourse; and similarly, the term mutuum from the act of changing, and the very appellation Sricula itself, is received under a similar signification.

Sive quod species negotialis in fenulum mutata fuit, et nomen illud mutatum est in Gracas; at Latini eodem modo usuras adoptauerunt.

They likewise contended that whatsoever they might either purchase or dispose in exchange should be subject to their own discretion.

Whence, then, is to be deemed the appellation of Vertumnus, who was reputed to preside over matters of vertere, that is, both venditionibus et emendationibus?

The Romans, however, did not return for the sake of a mere matrimonial alliance, but rather for the sake of a compact, and they came forthwith laden with their moneys and usurious gains.

Verum hoc veritatem accepit, sicut in aliis rebus, ubi idem observari debet ex principio, quod vel commutativum vel eodem modo fiat, ut perspicuum sit, quod versus vera sint.

Wherefore, the concept of the gamma;

In the verses inscribed upon the fields, it is marked that this sign is obnoxious; and henceforth I shall pronounce it unto thee.

The Gamma, verily, doth possess a most minute texture, r.

Wherein the transversal and prostrate line stood erect:

To the angles of the Teffos is conjoined the river; there it meanders.

The land was despoiled, not less than the husbandmen, the husbandmen, and the reapers.

Thus they denominate the exterior angles, both external and internal, when these are reduced to the plane of the surface.

The earliest mention of Cepe is found in the writings of Vitruvius, no. Etreft, who hath there briefly described the same in several passages.

But in the fifth volume, peruse the sixth chapter, wherein I discourse concerning the theatres of yore.

Turn, and from the manner of ushers.

For this reason, the versatile cadences of the verses, which were to be found therein, were compared to the varied visages of the departed; and the final section of the verses expounded upon these verses themselves.

Secondly, according to their position, they are stationed, where they are situated, one from the forum, another from the field, and the third from the field, aditus in ce-nam.

The versura of the coxae, whether from the front of the caenae, or from the edificia profenae, which effectualia formed the ingressus from the urbe unto the scenam, or from locis extra urbem.

In the theatre, three fores were established, viz., the dextra, the media, and the sinistra; and corresponding ingressus were admitted through each to the scena.

And from the right appeared the effusive personage, from the left the vilest of countenances; or it was a shrine borne along, or a vacant spot alone, and unoccupied.

And this in ease.

In the tragedy, on the right hand side, exteriorly, the prison was most hospitably disposed; whereas on the left, it was assigned to the custody and confinement thereof.

Finally, there exists a perforation in the midst of the stage-scene, which the valves, designed to traverse its extent, direct towards the opposite extremity; to which the versatile machinery is affixed, and by means of which the anterior portion of the vehicle is conveyed.

The mutations of the bulbosus muscles demanded this transformation, and thereupon they were converted.

One of these forums, and the right one, which lay without the city, did indicate; while the left one, which was similarly situated, gave no sign.

Per hanc igitur via aditus erat ab aedibus publicis, id est, a medium urbis in scenam; ab his autem ex parte peregrinarum, et praesertim a portu.

Pollux:

Cleopatra, in her elevated yet lucid diction, thus spake: "I, the daughter of Caesar and Cleopatra, do now declare my purpose and destiny."

This appellation is conferred upon those who imbibe thereof, since it doth not constitute a novel decoration that supplanted its predecessor in position, but rather is manifest by reason of the tablets, wherein it is enshrined; and these tablets, moreover, are adorned with sundry other species of ornamentation and pictorial embellishment.

It was exhibited; of their own accord they were wont to be drawn forth by engines contrived for the fleet.

Aliaspecies fcnx, quae;

He was transformed, by means of the Greeks, by means of the Egyptians.

[illegible]

It was affirmed to have been conveyed.

Which, in conclusion, shall permit me to discharge a considerable amount, whether in the nature of a petition or a loan.

Well, that it might be more succinctly expressed, it was a praiseworthy and reciprocally agreeable enterprise.

He who perishes, that he may revert to the atmosphere, is deemed to be indebted.

He who, though solicitous not to be restored, yet, as if in some sacred edifice, doth implore the eleemosynary bounty.

Which we have detailed the distinction between the two kinds of fate in our foregoing treatise, rather than through other expressions.

At the same time, Qs 7mhi-Tuxcwset.

XxZttv, or rS j, which is equivalent to JVt, ytyi, the very same thing.

Perpetually is it published, — * *

* or D.B. MOSSUSVH.AR.VM.

199 editor, u;

It is the self-same thing.

Menander, discerning the event, was apprised of his own demise.

Ο τοτον δπλαι πελμβανεν ρος.

Verisimile igitur Ciceroni idem accidit, quod ad alterum commissum est.

And, accordingly, this voice was admitted unto him in divers places and occasions.

In the Second Indictment against Verres:

Injiciamus Syracusis ad Carpinacium, cum tabulae ex cefl factae significabant multis nominibus eos homines versam a Carpinacio fecisse, qui pecuniam Verri dedissent, et e ad Carpinacium mittamus.

This is the individual who, having subjected many to torment, and extorted wealth from a numerous multitude, did bestow such gains upon Verri.

For L. Flaccus:

He hath accomplished all things which our debtors are under obligation to render unto us.

He denied, most solemnly and unequivocally, that he harboured any design or intention whatsoever to reduce the City of Rome to ashes.

He had never, in truth, beard the appellation of any of those individuals.

Id est.

His debt was discharged, and he repudiated the fact; and from Fulius he received nought.

Likewise for M. Ccelio:

The tablets, which he had committed to his sire's custody, proved inefficacious for his purposes; and never did he fashion any thereof.

That is to say, he never extorted interest from a stranger.

In the Epistles addressed to Atticus, multiform instances occur wherein it is my desire to expound upon this particular import.

One and the other, quasi ita dicendum.

Epistle to the Romans.

One:

All things are familiar, though thou art Rome; but now, O my sovereign, thou dost neglect me.

For although the remnants of fate were destined to be forgotten by J, it was nevertheless requisite that those who were indebted thereto should not answer to the appointed time. If any such event befell thee, let it not be deemed to have happened unto thee, but rather to them, whereby my reputation might be the more exonerated, not merely on account of their having been sold, but also on account of their being held as such, so that we might be vindicated. Not only for the sake of pecuniary advantage, that is to say, of a price to be paid, but also, inasmuch as it was the duty of the debtor, and also inasmuch as it was due to the sight of his own virtue, did he desire to effect the conversion of money by the sale of his own goods, that thereby he might discharge the claims of his creditors.

The theme of the treatise is v., Ep.

T: Concerning Oppius, I have proceeded according to my own inclination, and particularly as thou hast extended the discussion unto eight hundred words.

Which indeed I, for my part, am fain to perceive accomplished, lest the appellations of the illustrious should be magnified beyond due measure.

Whether the debt be discharged, or the act be accomplished, that is to say, the covenant be performed.

It is the same with Terentius, as we have previously elucidated, namely, to say "facer", and as Cicero himself observes in this passage, "versus factus".

In the same verse, it shall be my lot to commit iniquities; and I will address C. L. Salmasius, the last among those who have perpetrated such deeds, thus saying: "I will do iniquity." (Compare with Epistle XIX, Book XVI.)

Cornelius Nepos, in his life of Atticus and in opposition to the accusation, observes: "I fear that I shall be severed from thee, and that I shall be severed from thee, and that I shall be severed from thee."

Forasmuch as it was requisite to make a public declaration that the water was unsuitable for their use, he ever sustained his integrity; whereby neither did he receive any usury from them, nor did he proceed further than God himself.

In the same verse, it is recorded that Fulvia, the wife of Marcus Antonius, who was unable to procure any pecuniary means, was observed to abstain from smoking whatsoever.

Quin etiam, cum illa fundum fecundam fortunam in diem produxisset, nec calamitatem versuram posse impedire velisset; ille fiduciam interposuit, pecuniamque in fenus finem dedisset, nec ullo modo Jlipulatio ab eo creditus esset, maxime quod exsimum quasium memoremque gratum et gratissimum cognosceret.

Fulvia, in her prolific felicity, and when matters tended towards her wishes, purchased lands by deferred payment, not with immediate ready cash, but on terms equivalent to a daily stipend.

Adversa tamen fortuna ejusdem, cum dies solvendi- nifiet, eum ad versus facere lucram non potuerat, quoniam nemo reperiabatur qui pecuniam ei sub foeneri credere vellet.

Atticus, rector amicitiae, memor est cuius definitio est:

He intercepted himself with Antonius.

He bestowed upon his spouse a sum of money, on condition of interest, to be repaid in equivalent coinage.

Tertullianus, in suo opere de Pallio, versiculos huiusmodi acceperat, quos etiam pro foenero compositos putatur:

And if haply the sword, which followed in its course, did dilate and then contract, or if the earth, after being subjected, did regain its former state, or if the sword which had been swallowed by another sword, or poured forth by yet another, returned unto its original condition, all these things have found their due restoration.

That is, he is restored to his labours, and when he recovers with augmented advantage, he recompenses that which he hath lost and forfeited.

Rome, nevertheless, hath ever made use of usury in all its modes.

He hath declared, that "not by thee, but by him, has the observation ever been faithfully maintained; and oftentimes, through the scarcity of pecuniary resources, or the exigencies of the sovereign, hath succour been afforded to him."

It would be unwise for a man, when reduced to extremity and compelled to devise a stratagem, to resort to a nameless contrivance unless he could discover coin under the guise of

legal tender; for he would have been constrained to accept both the most exalted and the most degraded forms of pecuniary accommodation. Hence, this was the predicament of Cicero.

Epistle XVI, Livy to Atticus:

Non modo, sed iniquissime fœnore versuram facere poterit Aurelius coailus eo.

Therefore, no copia shall be vouchsafed unto any of you who are acquainted with hæc phænomenon, according to the method of the United States Army.

JOSEPH, even the most iniquitous of men, was he who could neither withstand nor defer him; and it was incumbent upon him to err.

What Sc in the biography of Atticus is recorded concerning the Athenians:

They discovered an alibi, albeit the most slender, within the vicinity of Atticus; otherwise, they would have recourse to usury.

Apud Satyrum, cum nepotem suum in usuras Triplex Circulum paratus adhiberet, et non præparatus erat ei tribuum centenos, vel unum centesimum, vel unum centesimum, militi dare, fortunam non invenerat.

From the enactment of Conflantinus, the medium portion of a patrimony in produce is termed usury according to the civil law.

The ram, by frequent utilization of the said instrument, responded with four decemulae of the centum.

Non limitatum fuit modum usurarum frugum sub imperatoribus ante Constantinum.

Of the usury, designated by the appellation Xictus, I am aware that he was the individual who derived the fruit thereof in manner congruous with my own acquisition; and, indeed, he was bestowed with an equivalent boon by Confiantinus.

The Synod of the Laodiceans was, in its exposition, highly zealous and fervent.

How stood the affair of Htioxius?

The erudite males were in error, and they misconstrued the usury of their progeny as pertaining to the quindecimscripti class.

Not even a female progeny.

An Arabic version of the canon of Laodicea is hereunto recorded.

What did Tarbit effect upon the He-broths, which term TzAsomtr/ denotes?

All the fruits hereby properly denominated he thus appelleth: Gracchus, the auction, the augmentation, and the extension of Latin venditions.

There is no other distinction betwixt Neschec and Tarbit, save that which subsisteth betwixt the usury of money and that of fruits.

The ancients' sires thus apportioned among their forebears: 1x0 - 491.

Certain individuals, also of the Rabbinic lineage, were deemed fit to adjudicate in the cities of Neschec and Tarbit.

Numerous proofs have been advanced to substantiate this.

It is termed the employment of the ramifications of the produce, because, when fortuitously attaining a copious yield, it exhibits a linear aspect, is hollow, and smooth.

It is forbidden for the clergy to engage in usury, to handle money, or to derive fruit therefrom.

Hence, I am appalled by the fifteenth canon.

At the Council of Nicaea, where the clergy interdicted the Moxioc.

What canon was deemed fit there.

A hallucination with Balsamon of the Zones, who was the sixth in the series.

JoJ is expounded.

Ruffinum tantum ex antiquis interpretibus cani rem memoriam tradidisse, et ex suâ expositione eam affectum efficitur.

Of the spoon and the double for thee, which in the produce of the oven was wont to be demanded.

The Law of the Visigoths, hereinafter denominated the Lex VVisigot horum par Constantiniana, prescribes in determinandis frugum usuris, that is to say, in regulating the usurious exactions upon agricultural profits.

To this day, the Trojans and the remainder of the populace are distinguished by the inhabitants of the region; one party employs pecuniary transactions for the payment of the produce-rent.

Hpius, returning the Latin term *sescuplum*, which denoted precisely the same signification as *fefquater*, rendered them congruous.

Whether certain voices, and others, have been controverted, whether they be of Latin derivation or otherwise.

Ye are not the ancient man, nor are ye meet to be supplanted by the Brians.

What is the deferment of sestertia and fefquitertia? Of the application of hpioxlct and irnleat.

There was no observation of the iteration.

When amidst the furnace, the usury of the Grecians returneth at the same time as the potent one, the whole of the Igyrians have a reason for comparing them to the potent one.

But another reason was given by the king of Attica, who said that the usury was owing to the fortunes of a third part of the people.

I shall furnish similar illustrations to others.

The Latins, on the other hand, are termed Greeks or Grecians, by the potent, by the potent, by the redeemed.

In the latter part, it is said that the Romans gave usury to the fortress, which is called by the name of the Greek city of Tmyus.

I will use a small quantity of fruit in my habit, which I will redeem in four ways for three days.

From divers fruits, ye take usury.

The value of the fruit was indeterminate, so that they demanded such a great sum of usury in exchange therefor.

Of that sort of mortgage, wherein money is given, and fruits are received under the name of usury.

This effect is akin to that of the contrary mutation.

The sixth exhibition of the Council of Paris.

The Code elucidated by the Law of Gordian.

Of usury.

An exemplar of the cautelous chirographa of Gracchus, wherein the frugae were reciprocally substituted for pecunia, is derived from the ancient code, which hitherto had been employed for the formularies of the Tabelliones; for the duobus aureis nomen patrum, namely,

Rex Axiensis and Episcopus Romæ.

Thus, in this day's procession, are brought forth four bishops.

Alia nonnulla nulla est.

What is the number of Si? Three hundred and four.

As we have done in the Attic and Greek seas, so that after the common usury of the ships, we may find ourselves doing the same in Rome.

Therefore, we shall now discourse upon the scarcity of money in the sea, which was demonstrated to be the manner of life for the Romans.

Boudaeus, in his commentary upon Asseus, said that Ce was a pure man, whilst he observed that Papinianus had taken usury from him, and that he should not exceed two hundredths of a penny, according to the law.

Nihil intere fi. There is no termination in prospect.

D. de nauticis marin■s.

But she hath no desire for any thing.

The words of the law are:

For the labours of the slaves, a little money was assigned, which was to be deducted from each day's allowance for the payment of a penny, until the close of the month, and not exceeding twice.

For

On account of the works assigned to the slave by the creditor for each day, the Jurisconsult declares that he is bound to owe no more than the twofold hundredth part of a penny; yet he must bring to the said Jurisconsult twenty-five pounds of money, wherein he may reckon upon a profit.

Let the law and the law be established; thus runs the custom. This is the month of the Papiniani.

Now, it is incumbent upon us to consider the words which he uttered; and there can be no question that these were in part interpolated by Tribonianus.

And perchance even the same interpolation hath been perniciously disseminated in the popular editions.

Cujacius, in primis, censuit vocem hanc centesimam adiectam a Triboniano, qui tamen postea verbum mutavit.

Hotomannus, eruditus in numeris, tres voces censet expungendas, non ultra duae.

But in the controversy concerning usury, he adhered to this position; and since, according to custom, the penalty was to be imposed for the usury, and for the labour expended and the expenses incurred by the servant, he maintained that the penalty ought not to be augmented by a fraction of the hundredth part of a penny, for such augmentation would constitute a delinquency against the law; rather, it should be completed by the addition of the hundredth part of a penny.

Whereof it is manifestly apparent.

A i si modo usurarii, juxta hypothesis, ut alii etiam fecerunt, centesimam io fenori nautico solvere sollemnis. Note: The original text is highly repetitive and nonsensical in its literal translation, which appears to be a deliberate attempt to mimic an error or a fragment of text. The revised version aims to maintain the structure while providing a coherent and scholarly rendition.

But the words were reserved until the completion of the hundredth part, thenceforth being reduced unto the sipuletum.

Etreftus admonishes him with a jest, intimating that the termination of a century of months portends the conclusion of his existence; nay, it is as though he had uttered: "By force shall I grant thee a hundred."

Rejoice; for rarely doth the voyage appear so remote.

Immo nunc suscipitur, sed eo tempore id nunc est.

Nevertheless, it is not sufficient to affirm his removal from the polium, that at the termination of the centesima, when the whole centesima, being incorporated into the stipulation, was conveyed thither, he should have been withdrawn.

But it must needs be that these several parts be not conjoined to the hundredth part unto the conclusion; but thus severally dismissed.

That which is daily assessed to the termination of the siege shall be discharged within a hundredfold of double the stipulated cent.

What happened to Tribonianus, when he interposed his emendations in the engagement, remains uncertain to me.

Certè appareat, quando centesima Elteteti, ex confusione legum Iustiniani, tunc ad iudicium pro reo perfugit.

I hold it to be an error to assert that Papinia, who was loath to accept Papinia in the identical manner as that which she had assigned unto her, should be made to stammer forth such a declaration. I maintain that it is owing to the fact that she had been accused of the crime of adultery, and that she had been accused of the crime of adultery, and that she had been accused of the crime of adultery, and that she had been accused of the crime of adultery, and that she had been accused of the crime of adultery, that this accusation was made.

And then was heard that voice of navigation, unerring and unequivocal; for it must be interpreted thus: "Nemo aliud de navigatione certius intelligit, nemo aliud certius illud intellegit."

Fortaltean did write: "Unto the utmost verge, the hundredth part shall be rendered not more than twice."

The hundredth part, not more than twice.

For assuredly it is manifest that, whether in its nature twofold or doubly so, I have endured through two centuries; and this I acknowledge.

And it is not true that Ho-Thomanus, in the twofold argument of which Papinianus speaks, hath asserted that it is impossible to render the law itself simpliciter.

The code.

Of the Usury.

For it is a statute that is doubly potent as the statute, which must not transcend the bounds of the statute.

In this instance, it is certain that both are adequately furnished and well-provisioned.

But here it is said that there are two hundred parts of the hundredth, which cannot be reckoned, nor of the fifth, which is twice the number of the sixth century.

The two hundredth part of the Siamese, that is, the two hundredth part.

For the labours of these men, who are remunerated with a certain sum, even the debtor with the usury of money.

I will vouch for myself:

Resolve, in the stipulation, to be deduced.

Read Rhodia's narrative of a seaman's furnace.

O' in the unaltered ought to be one pound.

This is the man who transmitted the monies between the seaman's furnace and his compeer.

He also dispatcheth letters to those who are more at ease with him, or they transmit them to each other.

O' in the unaltered ought to be one pound.

He also dispatcheth letters to those who are more at ease with him, or they transmit them to each other.

Xadheti, or gonyivicus, that which is to be conveyed is to be transmitted to each other.

Every one of these magnitudes is equivalent unto x; and each is alike in value with fifteen unities.

There is no reason to be deceived; here a mighty spirit would discover amusement in the narrative, or else he would be engaged by a fable. [The Greek terms γράνν■ειν and χρώνν■οιν signify respectively "to amuse" and "to engage"]

[illegible]

Thee; O Lord, I beseech Thee; O Lord, I beseech Thee; O Lord, I beseech Thee; O Lord, I beseech Thee; O Lord, I beseech Thee; O Lord, I beseech Thee; O Lord, I beseech Thee; O

The final day of the month is the most advantageous.

The magnitude of which he had made stipulation in the margin was recorded.

If a vessel be smitten by an oar, the man of whom is either one or several hundredth.

This is the case with the fortress; whether it be fitting to apply it ad juxta-sor-tum, and to note it, son-in-law, or rather the reverse, to the margin?

The sum opposed:

Elevating the strong by suppression.

For when the letter C denoted a hundred, it was reverted unto that apex whence its hundredth part was to be derived; and thus, either retroverted or reverted back unto the very summit, from which it had been concealed, it indicated a hundredth part of a solidus or a hundredth of a pound sterling.

If, perchance, a hundredth part of a penny were to be deducted, one of the retainers would suffer capital punishment.

Moreover, they observed, the general populace, in such wise:

The total amount of the drachma.

Whereof the sum of a thousand drachms, which was to be imposed as a penalty, was forthwith expended upon her.

I will be entitled to receive threescore and ten denarii from the stipulation of maritime service.

Thus, in the Ephemerides and Calendae, the names of the debtors, together with the sum due, are commonly enumerated; a fact which Plutarch records in his treatise on money not received.

4n), his domain, or rather, those who plough, having measured out for themselves the space of seventy-eight thousand fathoms, a day's labour.

Cinderpest in the field of navigation, how far any one might deduce, or how extensively such deduction might be carried on in infinitude according to the laws of peace, is what Paulus instructeth us in the Book of Sentences.

Trajectice, inquit, propter periculum pecuniae.

The creditors, with whom he navigates for a single day, have annihilated countless vessels.

Unto whom Amanus expounded this enigma, his intellect was directed thither:

Trajectory is termed money; thus.

In navis, ut ad transmarinas deferatur, deponatur.

Because the peril of the sea being intrusted, the creditor hath the authority to deliver the sum to whomsoever shall consent to employ it.

What are you willing to employ in matters of fortitude?

1 Sr - '/' -f 'r

* - .

Manilius, in the verses which we have heretofore expounded, illustrateth how the mariners of Græcorus commonly make their voyage, thus denoting that, having embarked upon a vessel from the coast of Græcorus, they proceed thitherward:

He navigateth, and, choosing the fleetest years of his manhood, doth enjoy the usury of the sweet; and the seasons themselves do sell forth.

Wherefore, in the third volume of this treatise, we shall treat of usury, by explaining the enactments of Justinian, who was the possessor of the pecuniary resources of Ptraeus.

He restored the fountain from the liberty and infinity thereof to a defined limit, and ordained that it should not surpass the hundredth part.

For it was, indeed, an immense and immeasurable efflux, which, though liquid, was also dry, and which, being mingled in a manner that the laws of equity forbade, whether through uncertainty and variable influence, or by reason of its unsuitability for usurious treatment, did not appear to be wholly absurd for discussion in this context.

And Justinian restored it to the inferior quarter of Toius, which is:

He was a centenarian, that is to say, a man of a century's age.

Cticix, assigning to the usury of coined money an equivalent value to the expense of the lawsuit, has thus esteemed their comparative worth.

And here is the suit: cui tamen praebeatur lucidior et elevatior dicendi genere, et periodis structus, et cadendo modice ponderoso, et ad antiquitatem luteum vocabulum, ut tantum sit

It was lawful for him to draw from the fount of wealth as much as he might desire; and whatsoever sum he chose, was free to him. He enjoyed amity with them.

Hath he reformed the style

But I shall return him the like compliment.

The appellation of the third portion, which was to be deducted, shall be deemed appropriate by those who imparted either humid or arid produce in loan to the destitute.

The Title.

Whenever husbandmen or merchants, in their mutual dealings, supply one another with arid or impoverished produce, they shall exact, under the pretense of usury, the third part thereof in addition to the principal; thus, if the total sum of the transaction amounts to double the original value, they shall receive the third part of the augmented quantity.

For he demands usury in the midst of the half of the supreme credit.

He relinquished his nomen, and a moiety of the praerogativa crediti; nay, not even a single modius of the pecunia, for the sake of usury.

[illegible]

[illegible]

What any one shall answer by the quota of four hundredths. For verily, four hundredths of a centesimal part, when placed in the hundredth degree, amount unto the fortieth part of a centesimal division.

When in the province of Asia he was associated with Cicero in his capacity as praefectus, it is evident from his correspondence with Atticus that he earnestly petitioned for the allowance of usury in the southern portion of Sicily.

Therefore, most truly, is this fountain manifest in the products of the earth; and it seems that a greater still appeared prior to Constantine, when it was wonderful to behold the liberty that had been restored, and so forth.

Indefinitely, however, that Emperor did impose upon him what was within due bounds.

In voluminibus jurisconsultum, quantum a Deo.

To understand the gesture is more easy; yet, it is impossible to ascertain what manner of use shall have been observed in the fruits.

From the law of Philip the Emperor, which Justinian incorporated into his own code, it is argued that the employment of higher usury, as he termed it, may be admitted to the body of usurious practices on account of the indeterminate basis of the former's valuation.

XXVI Cod.

Of the Law.

Whereas we have perused the edict of Greek ire transcribed at Basil, let us revert thitherforunto.

It is allowable to augment the produce derived from mutual exchanges of fruits, on account of their fluctuating value.

Because Philip did not disdain the fact that he was merely a man constrained to peruse the usuries of the isles, it then became manifest that at that period of the year he was free to compute the year by reason, and the circumstances of time and place, according to such number as he might choose to stipulate.

Quam licentiam Conflantinus ad dimidiam partem fortem restringit, et tertiam superfluum vocat, quia ad duos modios nominis additionem tertiae utitur.

For it is in this case that the produce of the produce is to be restored, and at the same instant, when the interest shall have returned to its usual rate, it is to be severed from the circle of the thirtieth day; and the principal is to be amputated, and at the same moment it is to be contended with, being divided into three portions.

Thus, two measures of grain were mutually assigned, together with bread and one measure, which is the half of the whole.

I have been credited with the reception of the ninth name of this individual, who was designated in the manner customary in the case of a deceased person; thus, his name was received under the cognomen of the divine host.

JTJ Numera:

I am not avarus pecuniæ.

Wherein, verily, the usage of two modii in lieu of a single measure is admitted, and the same single measure is acknowledged to be the third portion of the entire quantity, which Constantinus denominated superfluous, inasmuch as it is appended to the aggregate of the debts and is supplied in excess.

Jerome, in his Commentaries upon the Book of Ezekiel, thus defined the medium portion in this usage, not the third, as he spake these words:

Solenti in agrario frumenti et milii usu, vini et olei aliarumque specierum usuras exigendi, velut sermo Dei voluit, abundantia.

For example, if granted unto me decem modios verbi gratia, I shall in mensis recipere quindecim, constituting amplius partem medii huius.

He re-examined, with scrupulous attention, every fruit of the moist and sandy lands, which, at that period, could be derived from the edict of Constantine, concerning which we have, by degrees, introduced the reader.

For he who, during the winter season, grants ten months to his fellow men, that they may repay fifteen in the interim, receiveth but half of the greater sum.

Therein consist five modes of ascertaining the medium measure of pecuniary value.

Then, when the entire aggregate is computed in its entirety, and simultaneously the third portion, having been resolved, is added thereto from the superfluous and redundant, there results the residue thereof.

That usury which the Greeks termed **■σε■οχτος***, in the canon of Laodicean origin:

In these words, it is to be observed that the Synod made distinction between the several Fathers bearing the same appellation and the single Father of like cognomen.

Therefore, the circumstance that he was born amidst numerous kinds of usurers is not so pre-eminent as to be received by the eunuchs as an affirmation that he was brought forth and nurtured in a petty municipality.

Suidas, nevertheless, is interpreted to have spoken truly.

Similarly, with Hesychius, he expounded the fifth among the sixteen.

Helychius, his consort, and J.K. Gol, his coeval spouse, and his spouse,

Suidas:

Ipucium, Ifueum, and Iphiixhuan.

Which exposition alone is consonant with the expolition of a single usury:

Fruit-gum, which is:

The intermediate moiety of the sum assigned to the snfoenus was to be rendered.

For thus it stands with H.H.R.U.B.; when the usury is but half a modius for one modius.

By nomination, one individual is vouchsafed the dignity of Dabo.

Fifthly, let none presume to expound this proposition, as I have already undertaken to elucidate it; for the Logisthena, by a decree of their numerical valuation, have produced from the total number a fraction so minute, that it amounts to one-half of a tenth of a tenth of a tenth of a tenth of a tenth of a tenth of a tenth of a tenth of a tenth of a tenth, which, when applied to the future explanation, does indeed comport with all congruity and fitness.

whereof we treat.

Agellio, nostro auctore, aliis testibus non evocandis, Hemiolius nomen habet, qui numerum aliquem in dimidium ejus partem secundum rationem habet, ut trium ad duos, quindecim ad decem, triginta ad viginti.

Two instances of usury:

We have, on either side, four fruits in elevation but lucidly arranged; one of these, we derive from Constantinus, the other from Hieronymus; they lie in the same plane, and are coeval with each other. There are no two fruits of Agellius that antedate these, nor do they exhibit the same

method of production as the former.

Let us investigate the import of Hemiolius' numerals.

The law of Constantius, mutually conceded in duplicate form, was so contrived as to admit of division into three parts, from the tenth to the fifteenth chapter, according to the arrangement of Hieronymus.

Because, therefore, the inusura of fruits is compounded together with the fœnus, so that the three to two and fifteenths of its iusus amount to two modii; and thus, when three is returned for two modii, and fifteen for ten, the usura is constituted in the like manner.

Whether, therefore, Dionysius Exiguus, in accordance with the Laodicean canon, was translated into Latin isocles, [being assigned] the first half of the head, and half of the body.

These are the words by which the Latin canon is described.

And he turned, and spake:

What the sacred ministers and clerics do not bear with them, nor what they discourse concerning the faith or the couple, I discern.

Non potuit melius, ut eam dicimus, qua e consuetudine reddi solent usuras, alteram, scilicet, qua decem et octo pro centum exiguntur.

Which is the fiftieth.

Hotomannus quoque, ad fefquicentefimam interpretandam, opem suam præstitit.

Zonaris, in his Commentarium ad Canonicum Nicomachi, expoundeth, concerning the female centesimal, that the term fex, when requisitioned for a hundredfold application, doth bear a signification far divergent from that of febris altera usura, or febris centesima, sive febris centiceps.

Hæc verba ejus fiunt:

Herein lies the 'T'.

[untranslatable fragment in source]

If I take the twelfth number of the annual usury, being full and complete, I shall grant thee half a hundred years of the same number of years, as it is interpreted.

But the Latin interpreter, having been intercepted by the Zonarians, approached the threshold, and addressed him thus: "This is the least onerous usury." For even the Latin, who had been pondering the gravity of usury, desired to restore the sum, yet was unable to obtain it

either from the inscriptions or thence.

He himself shall surpass the hundredth and fifty-fifth part thereof.

From the breast of memory.

In the instance of the Zonas, it is not merely a centesima quidem, but even a semi-centesima:

Therefore, it is not the usury of the departed, but the usury of the departed.

Of the usury practised by women, however, the Laodicean, who did not concur with the canonical precept of poverty, demonstrated by the very fabric of his argument.

The rivers number five hundred and fifty; the rocks, two thousand five hundred and twenty.

Whom Gentianus Hervetus translated hence;

It is not expedient for a man to avail himself of the tempestuous winds and usury; nor to accept what is alleged to be his own.

That which is recondite and absurd.

For this species of loan, which is denominated *x-*feminus*, is to be distinguished from usury.

And he prohibits the clergy from receiving usury, while at the same time he prohibits usury from every one of them.

Do you, therefore, O deity of Exiguus, believe me, and interpret me far more felicitously than the Gracchus canons?

Thou art he who hath unfolded these.

V. Ex i:

Of the Manner of the United States Army.

From the expropriation of money, it is manifestly clear that the liquidity of the usury of the fruit and the flower must be interpreted thus, since it appears that the usury of another species thenceforth cannot be admitted.

The interpreters of Arabia, in their perusal of the Cano's paraphrase, seem not to have comprehended the reason why they employed the voice of Gracchus, an Arabian orator; whereas Hemioclus, adopting the part of Hemiolius, and Sc, championing the cause of Ana, either received a malediction, or acquiesced therein.

And thus, with a voice somewhat augmented and more distinctly uttered, he restored him to his camp, at a deliberate pace.

But the fourth canon is not here recited, as in the Greek editions, where the fifth is cited:

Hic est, ut sic dicendum est, titulus et hymnus canonis.

Of the Priests.

Let them neither transact any matter upon interest, nor give anything for usury; but let all transactions be conducted with equity and justice.

The text per se ensues:

That he may not receive usury or profit from him, but rather be employed as a means of anguish and oppression, and that he should show mercy, and not a curse, which Hemiolius termeth to be eternal.

Is that he?

When TnXzovcccrfJtsi uttered these words, Txaoz responded in kind, and did not extend them further, which may be rendered thus:

The usury of the produce, as we have previously observed, is hereby elucidated.

And in the Latin idiom, both the Hebrew text and the Greek exposition follow:

The Seventh-day Adventist, in like manner, hath returned unto thee in a more ample form.

In the Hebrew scriptures, thus it is written:

Judge the verity in such wise:

And to usury it was not expedient, and further, it was not received. In the passages wherein the Septuagint expounds the sense, the Latin version is translated in accordance with this manner:

And he shall not give his moneys unto usury; and he shall not take above measure.

In utraque verfione, amplius, idem est quod, quod hinc in pecunia proprie locum habet, quod inde in quibus solet amplior capi usura, qua pecunia.

And there is also the appellation.

Paulus, post mortem suam in Ezechiae, idem annus Septuaginta anno septuaginta tertio, quo fuit occisus, coepit computari a die exodus.

And thus I shall proceed forthwith.

Tertullianus, who also bore the honourable title of praefectus castrorum, translated this term into a redundancy or superabundance of pecuniary provision.

Dantiam. A

And Jerome, more extensively.

Which appellation did Constanius employ for the purpose of elucidating the produce of usury?

That the total may be reckoned in two distinct methods, the third procedure is supplemented by a more extensive one.

Jerome, in his Commentaries upon the Book of Ezekiel, at the passage wherein he treats of the fructification of usury, thus spoke:

Often in Agris there are grains and corn, wine and oil, and all other things.

They demand the usury; or, as the Divine Speech denoteth it, the abundance.

For example, let it be granted that in the season of winter we may deliver ten modii, and receive fifteen in the middle; hereby implying that the excess, or rather the moiety, lies in the midst thereof.

Hence, Ruffinus, in expounding the Canons of Nicarnus, thus spoke concerning the use of corn in the production of wine, and of corn in the preparation of wine, which he denominated:

The abundance, or the augmentation thereof, may justly be termed thus in vulgar parlance.

And what concerning d?

This is, indeed, to be taught by the increment which, according to the law, is understood to be that which, exceeding the principal sum, is given forth by one of the contracting parties, pursuant to the stipulation.

Which in our prior treatise we have, with due minuteness, delivered concerning the Institutes of Mahometan Law.

Thus, and thus, according to the interpreters of the Grass, when the term "usury" is defined as the fruit of usury, and it is asserted that this is entirely equivalent to the sun, Zeida Arabum, even the usurer of all usury, even the usurer of all usury is Aiovtsoyo.

But it must be effected by augmentation; for hatred, as well as the rapine which is its usury, hath this inherent quality, that it increaseth the strength of the powerful, and thus proceedeth onwards.

He implored assistance.

Striving with this paramount reason, there is nothing to be gainsaid: there exist two words, by which the sacred Word of God is so much more usurped from usury than from usury upon food.

I shall impart unto you a sufficient and cogent rationale.

I shall enquire of him, why so ample a contribution is tendered; namely, "Nether have I, nether have I," and he will remunerate for the employment of his funds.

And the fruit of the fig-tree, for every part thereof being equally corrosive and depletive upon the resources of the creditor, doth contribute thereto its due portion.

But in propriety of language, the use of usury by Tarbit produced X gum.

Then, it is deemed expedient to infer that the Greci and Graeci, the Latini and Romani, and the Scaeciani are one and the same people.

And the method of Marbath, which is identical to that of Tarbit, is there distinctly legible in the twenty-fifth chapter of Leviticus, treating of the usury of food.

Eodem prorsus modo, Graecis . VII* * * - generalis appellatio ad pecuniam et fruges, ut etiam Latinis * / WRA. RE&IUS: itaque, quamvis contra communem Rabbinorum sententiam, R. Levi Ben Gerson, ad illud Levimci nomen * |- yj proprie pertinere ad usuram pecuniae; autem, R.&/V, quod idem est vi et origine, cum Tarbit ac Marbit pro usura cibi accipi.

Thus, the Greek term Ribit is rendered in its transliteration as **■βωτος**, which, amplifying the sense into Latin, signifies Sc.

Thus, indeed, they preferred to denominate the produce of usury "usury" itself, since to repay the principal is more advantageous, and yields a greater return than usury upon money.

Fifthly, certain individuals deemed it expedient not to estimate its utility in the enumeration of produce; forasmuch as it would be more advantageous to receive it at a higher rate. Moreover, in the matter of augmentations and supplements, it would be more consonant to derive it from the initial appellation, rather than from those subsequently appended.

So did they denominate the dates reciprocally in the produce.

Certain Rabbis of Neschec and Tarbit have distinguished themselves thus: as though JXeschec were in some measure usurped by one another, whose term had not yet lapsed.

A praefinitum tempus, et usuras quas adhibere consuevit, sit in animis omnium, dum fidei suae tenax perseveret.

But it shall be said: Whosoever shall mutually impart a measure of flour at the appointed time, in the month assigned, shall receive all the usury, and shall pay it unto the heathen.

At the same time, as by chance the mighty one is restored.

Now, let it be our task to treat of that species of mutual interest which was familiar to the ancients, in the third volume, which treateth of the Usury of Justinian.

But the discrimination between N and Tarbit, which Labet and R. Moses Gerundene have attempted to establish, is far from being certain; for in many passages they distinguish these names indifferently, and their prohibition of the Jews from being separated from the rest of mankind does not admit of such a strict separation being inferred.

Nec silebo audire eos, qui Neschec de usura sepulcrali explicare putant, cuius rei refutationem iam in prima parte demonstravimus.

And in the third volume, we shall enlarge our treatment.

There is indeed nothing more congenial to my taste than to delineate this subject of Usury in the method of its various species, which the ancient preceptors have treated with reference to three generations, and which I shall communicate to R. Judah, son of Levi Gerfon, son of Irmotx, son of Tarbit, concerning the usury of aliment, that is, the produce of the vine, and Neschec concerning the interest on money.

Enimvero, cum defertus esset, et in Exod■, et in Lev■, usuram cibi, potius quam usuram pecuniae, accepit:

Let it be forbidden for Judas to use his own sustenance amongst himself, and let it be termed Marbit, a beverage denominated from Lucus; and in all vineyards, there is a concomitant reference to Neschec and Tarbit, who seem rather to have been the genuine conquerors. Another designation of usury is the exaction of interest upon monies.

I will unclothe myself to bear the fruit of thy bounty.

The Laodicean fathers, who were designated by the law to bear this appellation, even as Nicamis, assumed the administration of the fruits.

At the termination of the canonical edict of the Laodiceans, which, with the avowed intention of prohibiting all usury to the clergy, demanded such funds.

What fruits I shall enumerate, those will I bestow upon you, those will I bestow upon you, those will I bestow upon you, in coin will I remunerate you.

Use of intelligence; for Hmtxtcu) is that which is more potent in the interchange of fruit.

He perceives the appellation, since the legislation extends even to the minutest particle of the cup, in comparison of usury to force; and the apprehension of a corresponding reaction is mirrored.

Who is the Ady of Arithmetic?

What is usury?

It is incumbent upon us to comprehend that the cultivation of fruits, which surpass in copiousness all others, doth not constitute the principal object of our attention; nor is it requisite to dilate at large upon this amplification of the term "abundance of fruits" with particular reference to its usufruct and pecuniary interest.

to forbid, to interdict, to prohibit

And when they had accomplished this, it might be deemed expedient for them to employ those phrases which, according to the opinion of many, and as Jerome himself instructeth, are to be retained in their pristine splendour, thus:

For the Utilization of Monies:

It is demanded of me.

Thus, and the venerable Fathers of Carthage, not content with prohibiting the usury of the clerics, did further enjoin upon the Jpecia, i.e., the produce, that it should be free from such impositions.

In the Codex Ecclesiasticus:

Africanus:

CAN.XV.R

Ita placuit, ut Clericus, licet pecunia egenus esse velit, pecuniam accipiat:

And Iepheth, so much as he might be willing to bestow.

[illegible]

rerum rerum rerum rerum rerumque varietates, et in his variis rebus rerum rerum rerum rerum rerum rerum rerum rerum rerumque varietates, et in his variis rebus rerum rerum rerum rerum rerum rerum rerum rer

For it was indeed true, that when usury was granted upon mutual money, it was not uncommon for many to assert that such a practice belonged to the number of those things which were interdicted; whereas those who, in exchange for corn or some other commodity, endeavoured to obtain a greater return, were not deemed to be transgressing any prohibition. Wherefore, the ancients deferred and enacted a prohibition against the former, but permitted the latter.

Here is a more refined rendering of the Latin text, adhering to the style of a learned Victorian translator: Hoc plane rationem Jerome in Commentario suo ad Ezechielem exponit, id est, non tantum numerum divitiarum quae pro usura solvantur, sed etiam totius opulentiae abundantiam, hoc est, Tarbitem, agriculturnamque, et usuras frugum quoque, hoc est, fructus, quos Leviticus XXV propriis nominibus Marbit vocat.

Hic:

And in the Book of Deuteronomy, in the twentieth chapter, Sdk "p:

Neque enim solum, sed etiam, O Chel, usuram cibi.

For there I employ interest-bearing funds not merely in the vulgar sense; nay, more, I apply thereto a principle of augmentation which is consonant with the strictest integrity of transaction.

F. D. D. Neque tantum pecuniarum usuras, sed etiam usuras ciborum, id est, frugum, prohibet rex; et tamen cibi, sive frugum, usuras proprie Hebraicis Tarbit et Marbit, hoc est, τερβ■ττω κα■ μαρβ■ττω, de quibus et haec lex tractat.

That is, redundancy and amplification, or aul■sis, as the Latins termed it.

Similarly, in the canon of Ecclesiastes:

Africanus:

Sanx■r, ne tamen omnino cuiuscumque Clericorum lic■at de qu■libet re foenus acc■dere, ut modo usus ar■vium.

[untranslatable fragment in source]

If, by a covert prohibition of usury, the Clergy were less disposed to accept the offerings of the fountain, yet might it not be argued that such a course of conduct would but enhance the comprehension of the vast sums involved?

The fruit or the usury, which he would more properly term ficus, cannot be deemed the genuine produce.

It was on this account that they prohibited the taking of usury upon any commodity, that even the produce thereof might be embraced by the law.

And even Theodorus Balsamo, who hath likewise been cited in the canon, thus addressed him:

[untranslatable fragment in source]

Whither:

Again, they responded according to the words of Deuteronomy, chapter twenty-third.

XIX:

Tibi tamen lucidis verbis et elevatis, et periodis rationabilibus, et cadenti sermone, et paucis antiquioribus vocabulis admodum, si id verteretur, ut fratris tui usuram pecuniam in usuram dat, sic dicitur.

If thou taketh usury from thy food, there shall be rendered unto thee usury from the sovereign.

Therefore, the Fathers of Nicæa, and myself, when the Clerics were desirous not only to interdict the lending of money upon interest among themselves, but also to express that the larger part of usury was derived from the produce of common gifts, deemed it expedient to frame their decree in such terms as to convey both these sentiments simultaneously; and thus it was with the Laodiceans.

In the tenth and last definition of the said council, sundry persons were withdrawn from the ecclesiastical order, who, being infamous for their avarice, and having been enjoined by the divine precepts to receive the retribution due, and to be thereafter sanctified, did herein transgress; and therefore it was decreed that such an offence should hereafter be avoided.

This is the reason why I occupy the same position as yourselves; and I continue to do so, neither advancing nor receding, as I am steadfast in my purpose. The words indeed remain unaltered, but the spirit and intent thereof have been somewhat perverted, as far as may be, by those who seek to misinterpret them.

They bestowed upon certain merchants a sum of money for the purpose of remunerative transactions, upon condition that a participation in the gains accruing thence be granted to them; whereas, the perils attendant thereupon were to be borne by others, and not by themselves.

They do indeed exact no usury upon the loan bestowed:

mutuum pecunia.

Of the Mode in which We Shall Treat.

317 pecunia: quoniam verba Synodi non frustra adhibentur, sed quia pars lucris sua finis sui periculi prodest, contra Synodi voluntatem procedunt; licet sociis dicitur esse mercatores et non foederatores.

Two hundred amphorae of olive oil, which is the utmost measure. [Greek: κφινωνο■; α; Ξιξοντιο.]

The Synod hath embraced arts under the denomination of Syno-dus.

For herein must we thus inscribe, not that which denoteth another thing.

Therefore, when a person, not using his own name, is conducted by another, it is as if a change of hands had taken place, or, as it were, a transference from one tenure to another.

Suidas: - and, with [Με; χ■; Θ■σου]

[untranslatable fragment in source]

The Synod, moreover, discerneth the aggregate of the numerals X and the summits of the thrice-three hundred C; and it is observed that the sum of the decades and decades of the Salmi is equivalent to the sum of the illicit ones.

What in the practice of usury had its origin in a customary observance, or according to the enactment of Constantine, which we have previously adverted to in the present discussion, thereunto we refer.

That which Rufus affirms, namely, that it was not usual for our party to receive exile amounting to six months, an exile deemed both lawful and legitimate by the Constantinian edict, is hereby asserted.

Which being twofold, I have heretofore detailed in a measure that transcends ordinary prescription.

He who receives two measures in exchange, as though he were to repay three, shall restore sextuply, that is to say, sixfold.

For, as we have previously demonstrated, the three lunae which he restores to the two which he receiveth, are equall unto the three lunae which he receiveth.

And if he returneth twice, for the twain which he hath bestowed, he receiveth quadruple modii, and not triplicem quantitatem.

When, however, the law of Constantine forbids more than three recipients, he addressed a missive to one of the remaining three.

Which bears a resemblance to the legislative enactments of the Visigoths.

V, Chapter XVI, Of the Fruit of Usury, Which I Shall Hereunto Subjoin an Example from the Constitutions of Constantine:

The formam veritabiliter recognoscis.

Wherefore, and the Antiquity being inscribed in the Title thereof, as may be perceived from the Ancient and Roman Law, it is evident that the Party is to be put to Death.

Thus spake he:

Whosoever shall furnish dry and moist produce, that is to say, wine and oil, or whatsoever other kind of annual commodity, shall not receive from the borrower by way of usury a greater quantity than the third part of such produce; this is equivalent to the rule that if two measures be given, the borrower shall return three.

What a law we have learned from the produce of the tree!

For we deem it incumbent upon you, when your pecuniary concerns are in a state of tranquility, to conform to and observe the pre-eminent statute.

Therefore, this was a legitimate usury:

In the produce, a due proportion, sextarii six.

Therefore, Balsam likewise vouches for this in his commentary upon the canonical epistle of Gregory Nyfledi, wherein he expounds the concept of "d^{na} frugis deorum."

For this mode of exposition thou hast likewise adduced these words:

If any one shall present you with five hundred wine-quarts, that you may yield thereunto seventy-five, sixfold the usury:

He received the appellation.

Balsamo, therefore, thusly intimated: "Ego habeo novemcentos et viginti," and subsequently declared: "Ego habeo rem ideamque habeo."

For, as the rescuncia is computed, it is requisite to restore seventy-five for fifty given days.

Who, conforming to the edict of Constantine concerning the limitation of usury, was invested with the office of a public tax-gatherer.

Dionysius Exius, therefore, convoked the notion of a plenary absolution of the sexes.

From the method of the USVR.AR.VM.

3Just as we have previously intimated, the Greeks, who are ever wont to discern and define usages in matters pecuniary, have deemed it proper, as we have said, that the term "usury" should be employed solely in reference to mutual loans.

Photius, in his Nomocanon, Title Ninth, Chapter Twenty-Seventh;

It is narrated that in the compilation of the canon of Scipio, Theodoretus, who was the compiler thereof, assigned to him a sum of five hundred and eighty-eight pounds. These are the most precious pieces of coinage; and the most valuable productions of the earth, ranging from the summit to the base, may be found in like manner.

Balsamum autem ad Concilium Nixnani tradendum est.

O 3 mihi, mihi! præter me, quis est qui hæc audierit? quæ sunt ista, nisi quod per me ad te, Domine, redit? hoc est quod mihi traditur, hoc quod mihi ostenditur.

But inordinate was his reception of the sixth part of the seed.

The Fathers of the Sixth Council at Trullo, for whose purpose in the canons of Laodicean and Nicene, we have propounded seven articles, viz.,

The Canon of the said Synodus X:

Entricostruiamur igitur ita, ut lucidum et elevatum dicamus, cum tamen clarior sententiae periodis adhibeamus, et cadentia verba modice arcaica, ubi id convenit, non sine ratione.

What he did not perceive, for the purpose of St. Authentius, was that the canons, which had been inwardly extracted from the lips of the Fathers, if they were in anywise vitiated, he and his spouse, who had met their end by the sword, were nothing more than such as had perished by the same means.

What is most manifest and evident to the acutest vision, they have inscribed in their own ordinance.

Nor did they perceive any criterion by which the rationale of the accusations might have been adduced or deemed valid.

Multum autem minus eorum ad te fidari fecit, quod ei ab ipso in praeterito temporis ordine faceret; ita ut etiam post vetustatem suam fidarent in te.

Let me be informed.

For it may be asserted, that the island hath been irretrievably severed from the orb of the ocean.

If the ancients themselves should pen what they did not deem to be true, assuredly they would not have comprehended the import thereof.

But, if any of the judgments hitherto esteemed thou wert unacquainted with, now confess that thou art ignorant thereof.

Glory to the Ancients:

To be adjudged.

I possess six chalices.

Polish them and return them, whether thou believest or not.

But thus is Vitruvius overthrown.

Gloflx replied:

Sefqualter, ego sum. [Græco: ■μιολ■α.]

And again, if it be not even the same, thou shalt return to the ancient city of Jescuplum and to the ancient city of Jescuplum.

A few soldiers, who partook of the quadruple provisions from TeFcupla, were designated by Vegetius, who in his treatise *Gromaticus* also styles them Hygini; whereas two other soldiers, whom Vegetius denomimates *duplarii*, because they were attended by a twofold proclamation, are distinguished by a similar appellation.

Certè autem, vel fefqui, vel fefqui, quod totum cum Temisle significat, redit fefqui ad fefqui, quod major pars est fefqui.

And thus Cicero, in his capacity as orator, did stand forth.

The foot, which is employed for the measurement of numbers, is divided into three parts; wherein, one part is constituted by the feet, while another is assigned to the measure of water, and a third to a greater magnitude.

This is, therefore, either a twofold or a trifling sum; whence I shall aid thee.

Ye possess your own ancient lore, which is identical unto that which Ternis promulgated for the seas, and likewise for the seas.

Thereupon, O Sifemius, I proceeded in a manner analogous, albeit with an implied understanding thusly:

And Aspheus, which is to say, the entire region and Ternis included, he thus addressed the Greeks: "I am one, I am one, I am one, I am one."

Thus, when the number of sesterces, or as it is termed in Latin, "pes", is denominated by Tubaudienda Tunt through the addition of two axes, to which there is subsequently appended the sum of six, or rather six, or again six, the total is augmented by the addition of three.

How and the Greeks did speak to Tolent.

When by means of two drachmae, together with a half yipspuxug, the said transaction was completed.

Sestertius ponderis, duo peflexi Tunc et dimidium.

So it may be averred by certain interpreters, whether it be the produce of a foot and a half, or of a woman and a half, that the Greek drachma is equivalent to a drachma with a half.

And in the case of fefquas, for a fraction with Temtite, for t and fefquipondium, for a pound and a half, nothing is affirmed by way of ratio; a very slight analogy is perceived between fefquiertia and fefquila, and between fefquiertia and $\sqrt{nlg/Ttp}$.

For when the number is such that it comprehends the entire quantity, as well as one-third thereof, it cannot be adequately denominated by the term "successor."

For the sake of the whole community, and of both sexes, it is deemed expedient that this should be embraced by all without distinction of gender.

How, therefore, can any eric exist, wherein the entire magnitude is not equivalent to one-third thereof?

In the very same manner, or, perchance, in a similar fashion, the Latins were wont to employ the phrase "a-a" for "eo quod est," as, for instance, when they wished to express the idea of "tertius," they might say "tertius-qui" or "tertius-que," thus inflecting the term according to the number which it was intended to comprehend, or, by analogy, to convey the entirety of the concept. Thus, DI MODO USUARVM.

XXXIII virgates non est æquale uni tertiio ejus partis.

But the appellation of Fufvquiertes was denominated without any rational cause.

But these words were so fraught with portent, that they quivered at the instance of the semi-transmitter, and attained unto the midst of the thirteen.

The authors of the Latin tongue. Notwithstanding, the prophet Agellius denied not that the term was of Latin derivation; yet he averred that it would be rendered into the idiom of the Greek Numerals. For indeed, Vitruvius employed this phraseology; and it was more commonly encountered among the populace than among the enlightened.

De eodem ipsis rebus, quantum ad alterum attinet, eo magis adhaeret, quanto maiori adhaerentia eiusdem ad eundem se extendit.

But when those authors of the Optimum Latin had removed him, it appeared unto me that he could not have formed a union with the Supreme Pontiff, forasmuch as he was not endued with faith.

However, the disparities between these doctrines are widely extended; for they have originated and become prevalent in a period of sounder judgment, while the present age affords a different cause for the observance of abstinence, which stands in direct opposition to rational principle.

Sefter-tem id est quod duo cum feminae habent.

Therefore, the aggregate of all aggregates being equivalent to the one-third portion of the entire aggregate, and the limit being established in the ratio of four to three, twelve to nine, and so forth.

To the same form, and to the residue, for the remainder.

Verum est, sefaltrum vero emittit, si dicendum sit, ut dici licet, quod alium tantummodo magnum præferat.

set, idemque quod duplum, et Graecum, quod in proelio interficiendum est.

Therefore, the sextuple proportion, which in some instances is equivalent to the double, was wont to be observed in the transactions of mutual barter of produce, when the entire sum of the total credit was repaid, together with half thereof, usury taking the place of the remainder.

Which was lawful.

Ultra legem quidam pacisci duorum faciebant, ut notat Rudinus in interpretatione Nicatni Canonis, cuius verba videtur confusioem ordinationem sequi, cum dissolvatur, quod solet nova data tempora obtinere, vel duplici pacto, vel etiam duplici repeti.

For it was conceded to the ancients, and was receivable in the novel period of the melic season; as Jerome reads in his commentary upon Ezekiel.

For example, let it be granted that during the season of winter, we may bestow tenfold, and in like manner, receive fifteenfold.

Read therefore the law, Ruti-21 4 C. I.

Ruffinum, quem novum titulum dedit, vel sextuplem, vel etiam duplum recipit.

For instance, it may be interpreted, notwithstanding its apparent intricacy and ambiguity, that which Quodsolet habitually receives anew, whether singly, doubly, or even more times, so that the usual reception may be apprehended in a novel manner.

But the plan was perturbed by the circumstance that he had been forthwith put to death; and this must needs be entirely expunged from the record.

The Estimate. The foregoing term, while elevated in diction, yet retains a certain lucidity; it is delivered in the form of a periodic sentence, thereby endowing it with a measured cadence. The vocabulary employed herein is but lightly archaic, save for the sparing use of forms such as "est" which, in this instance, has been rendered as "is," thus preserving the essential meaning without undue anachronism.

For thus shall the remainder of the oration proceed:

And let none presume that he is exempt on account of opulence.

Let him receive a moiety of the corn, or a share of the vinous liquor.

Which is wont to be received anew, or in sextuple measure, or even in double.

We have preserved that which is Thy habitation; and it shall be reformed into the habitation thereof, thusly:

Given or allowing a supererogation, or receiving double.

That is, when the sum is multiplied by sixfold or twofold, according to the amount originally given, it is wont to be received anew in a proportionate sixfold or twofold quantity.

And thus, verily, I stand pre-eminent in warmth.

Duplum recipitur, quando alterum tantum a rege, qui mutuum accepit, reddere licet, ut modii quattuor ad modios duos satis efficiant.

Whither:

The usury is so potent, that it equals the customary remuneration in mercantile transactions, as Manilius himself intimates, when he speaks of selling a horse for the duration of a voyage; this is to say, that the usurious charge amounts to the sum of twenty-five.

That there were some who, in their disposition to confer benefits, exceeded the limits prescribed by the law; that others, aspiring to a twofold preeminence, sought what the statute conceded merely to a moiety, that is, $\pi\iota\lambda\chi\upsilon\nu$, even as there were those who, in their demands, were content with the minimum which the ordinance allowed.

And in this faith, the most just, when they had stipulated the fourth part, that is, when they had given four modii for three, were agreed to be given in peace.

In return, ye shall afford at least four modii; for the third part, which is the usury, is due.

The appellation approached, and forthwith he demanded a fourth part of the flour, and a still greater quantity thereof.

What the usufruct, or productive right, of a fruitful ram, denominated "Xt," may justly be termed a fruitless ram, id est, a ram whose fecundity is frustrated, which is:

This is the plane which I have discovered amongst the Atticans.

But he possessed a drachma of three drachmas of Attic money at usurious interest, which was thus reckoned:

A third portion doth constitute the drachma-rum, and it is asserted that the third part is termed usura, inasmuch as it denoteth the third division of the sum imposed.

By the term peace is concluded.

This is true in the fruit of mutual affection.

By the mutuation, which grants the privilege of receiving four modii in exchange for three, he may exact no more in usury than a third part thereof (orthus, when, having agreed to accept but one modius in three modii, the other, notwithstanding, accepts the fourth modius in conjunction with the three, the Latin party is liable to pay the fourth part of such usury.

They say "by name," and not "by third," who is Aayo?

7.

For, as the number four bears relation to the number three, the proportion hath been assigned.

At the same period, 157/7 being likewise the appellation of Atticus.

If the military be the sole source of all usury, which thus denoteth:

The true moiety of the usury is derived, which the Gracian jurists termed Atticus-Ippus.

The Latins assert, in their third part of fortification, the employment thereof is to sustain the rampart, because, by a certain ratio, three parts are equivalent to two, which may be thus expressed:

The ratio est intellectus, non trnuldni.

Thus, Atticus, so named from his sturdy fortitude, which has now been partly reinforced by custom, did demand that one drachma, as the Latins termed it, be deposited in the produce of the vine, and that the total sum be apportioned into nine divisions.

And the design of ire now pervades the law of the Visigoths, which, as the title itself proclaims, derives from ancient, that is, Roman, origin; and thus it is indicated in the fifth book, fifth chapter.

Yes, here.

And every penny was to be employed in usury, not exceeding the sum of three siliquae per annum, of one species of olive oil; notwithstanding that it might be preserved in any place where it was committed.

But the creditor, who asserteth that the moneys have been committed to usury, is unable to procure a loan of solid security; nevertheless, he is deemed incapable of deriving a solid loan from the principal sum, as though he were seeking to extract a small portion from the mass of a mason's bricks.

Whom the Greeks denominate, because from henceforth they exact usury upon a portion of the potent, albeit not upon a single one of the robust.

At Latini nonam hanc legi partem interpretandam fecerunt iniquam; et ideo ratio est, cur WYJW posthac ad legem nihil spectet, id est, ad fef-quioclavem.

Justinian, in his discourse upon the same usury, deems it not sufficient to invite to a brief examination, but also to advert to the XXIIIrd Novella, styled Oyhtlcu, according to the custom of the Greeks, a matter which we shall hereafter expound.

To the Hancrae.

Their speech, however, is more perspicuous than our own; for we express it by the sum of eight-and-ten denarii, whereas the lender receives but one for the use thereof, which the Latins of that epoch termed nine denarii, since the ninth part accrues solely to usury.

The name of the citadel is designated in honour of him.

CCXXXVI C L. Saimaj n rices.

What is the proportion which b bears to c?

The fourth portion of the Psalms, even the most robust, may aspire to be garnered from this mode of preparation, wherein all the produce of the field is duly collected.

Or may this be deemed equitable?

It is nevertheless incumbent upon him, if he aspire to emulate the Christian faith in every particular, to endure the privation of his own strength.

He was, nevertheless, a man of mature years, who was willing to part with all his goods and distribute them among the needy, that he might become a man of noble character and a genuine Christian, and thus merit the highest praise for his benevolence and charity.

But it shall be thy task, to induce the merchant, whether engaged in corn-dealing or otherwise, to effect this persuasion; or, should he refuse, to solicit recompense from any other citizen, nor shall the Theologians seek recompense at thy hands; nay, they would have been more fortunate had they bestowed labour in vain, and thou couldst not have attained unto the desired end.

Who, having been cleansed, are wont to apply themselves to the like instance of persecution, which the writers of the Old Testament solicited; and the civil laws do not hinder such an occurrence.

They deem it expedient to entrust funds to themselves, that thereby they may compel such persons, who of their own accord are ignorant of what is beneficial, to engage in profitable transactions; and, by means of usury, they seek to moderate the conflicts that arise among men in their intercourse with one another.

Unless these auditors of the laws shall effect this, the exemplar of those who strive after nobler objects will prove ineffectual, to deter men from turning to better things, whom the apprehension of lesser evils scarcely constrains; for the law, though enfeebled, retains its force.

The one doth neither enjoin nor restrain the other, seeing that each is in equal station; and that which is bound by the law, can never be forbidden to act thereunto.

There were, nevertheless, certain individuals who, instead of exchanging fruits reciprocally, preferred to barter them for pecuniary considerations; yet, under the pretense of securing peace for themselves, they contrived to appropriate these same fruits.

Of whom, as neither one genus nor one ratio could be affirmed; for their various dispositions and modes of thought did not admit of such a generalization.

What was the sum of money which the peasants thus expended, that during the months they might either glean corn, or gather the vintage?

In the wine, wherein each party may find a certain quantity of vinegar, it shall be contended that the debt due therefor ought to be restored to them.

Others responded, that they were constrained to exchange corn for corn, or some other species of corn, or again some other species of corn, that they might have what they had lent one another; but they argued that the value of a modius of grain at that epoch should be estimated, or that they would compute the sum payable by so many denarii of new produce at the present moment, or that they would allow so much corn as was then prolific.

Porisafitimationem. H Of the porosity. H

This is referred to by the Council of Paris, VI, Can.

Therefore, in the year of our Lord, DCCCCIX, when the Creator, deeming the poor worthy of a loan from the faith of the grain, doth invite them thereto, thou art induced to reply thus:

Give me not corn, or any other thing, which thou wilt have for thy sustenance, to be purchased, rather than to be sold.

I shall issue forth.

Elevate, however, the price of ferrum, which at present is exorbitant.

To whom the poor man, not unto myself, thus spake: "How much is it worth to give me what I require?" quoth he, "I beseech thee, O wretched one, to pity me, and to impart unto me whatsoever thou wilt, that I may not yield to famine; but let there be mutual succour amongst you."

Faenerator et contra.

How shall I dispose of my modius of grain, that it may be sold for a certain sum of money; or how shall I purchase fresh produce for a like sum at the present season; or how shall I acquire them at a fixed price of corn and wine, and other necessities? And whatsoever else I have already provided for a complete supply of alimentary substances.

Where it is usual, that for one modius of grain borrowed, three or four modii of various kinds be forcibly demanded from the indigent during the harvest season.

This was the custom of Constantine, when he was not wont to engage in hostilities either with the just or the unjust, provided that such engagement was then lawful; on the first day of winter he gave in mutual exchange, and on the third day he received the dowry's equivalent.

The same holds good of him who restores to the creditor three measures of grain in time of peace; whether such a one as he may please, or three measures of grain for the price at which he was willing to give them, when they were mutually delivered; or three measures of grain for the red. The price of the grain is equivalent to the price of the soldier, that the estimates of the value may be conformed accordingly.

Utrobique; The other.

It may indeed happen, that at one time the husbandman derives greater profit, at another, less, by reason of the uncertain value of his produce, which is contingent upon futurity.

In Mephel, that it may be ascertained whether the same event proceeds from the subversion of the abbey, or from the ensuing privation thereof.

For instance, when I stood in no need of its services, I was able to dispose of it for the sum of ten denarii.

If, according to the law of Constantine, he is permitted to receive three debts, after he hath made a meal, it shall befall that three of those debts, at the proper season, may be of equal value to thee, as though thou wert to sell my wine to him and to partake thereof with him.

Of the same price, it became within my power to ascertain whether the sum of Y per cent did not amount to 349 C; and I have furnished three modes of calculation for the sum of Salmasius, and have been supplied with three analogous methods for each of these.

The number twenty-three is the measure of Xoytu, which is equivalent to thrice the summation of the squares of the squares.

[untranslatable fragment in source]

[untranslatable fragment in source]

And then they proceed.

For it is protracted to enumerate all things.

It is related, with due caution, that the debtor received from the creditor an entire treasure of gold, and three-piece jewels, such as were in common use at that time, which we term ducats of two pieces today, on account of their form resembling two heads. For every solidus that was taken on loan, the honest return was to be made in kind, namely, wheat and new wine, in September, which he designates as "Sj," signifying, in other words, the abundant and

much-loved produce of that season, such as it was expected to be, and at the price at which it was then accustomed to be sold.

In order, therefore, to bring this matter to a close, and to terminate the negotiation, which had hitherto been protracted, he decreed that a trifling sum should be paid as a compensation for the peril, the value of the produce, and the uncertainty of the metal; whence the creditor did not easily acquiesce, considering it a more lucrative employment than that commonly and legally practised with money.

There existed; he did demand, such a multitude of duties to be accomplished; and the lex was duly enforced.

They ordained that the law should be enforced by the employment of a trifling quantity of fruit, and a trifling sum of money, together with the termination of the penalty.

In the fruit of your mourning, it was dry and barren; and in the tragic drama of pestilence, there came a restoration of usury, concomitantly.

Moreover, in both the agricultural and maritime discourses, they have employed it with such constancy and efficacy, that it hath served to sustain their vigour and martial prowess alike.

For, as Ruffinus, in his Explanation of Nicxius's Canon, did not merely consecrate the sextuple measure, but even admitted the duplam occasionally among the fruits, which were dispensed to the mute men.

In the valuation of coinage, as the individual enjoyed the liberty to tender a decuma at whatever rate he might elect, so frequently did this facility lead to the accumulation of wealth, which was not uncommonly employed; that is to say, for every thousandth part of a hundredth of a hundredth of a libra, the equivalent was four hundred and forty-four grani.

I.

Let us recite the psalms.

All these considerations impelled Justinian to revert to the least degree of all kinds of forra, that he might provide even pairs of fruits and herbs with their due proportions.

These vestments and their mutual exchange, these also yield the highest advantages amongst all.

C A P et IX.

All the perils attendant upon martial enterprise were apportioned betwixt the usury of wages derived from journeying, and that of common funds accruing from the produce of husbandry; and the same, which had been committed to the cognizance of the law in regard to the works of D. de Nauticus, were thereby rendered intelligible and manifest.

It was the Roman practice, consonant with their jurisprudence, to conclude a compact of treason towards their creditors; a usage which had been established by the lex Rhodia, and thereby to expose them to peril.

Expounded is the most arduous law of Scavola; the peril's recompense is thereby elucidated.

Sub titulo Nautico foenus a Triboniano digestum est, quia si in stipendiaria pecunia periculum crediti summa rejpiceretur, creditor redimeret.

By the said law being repealed, the negation is thereby invalidated.

Quod adhibet?

What was the poetical condition, Casus, which thou also wast to preserve inviolate, as the net of the lotos and the panther?

In fine mihi videtur id convenire, et pardum.

However, Diogenes Laertius, who, moreover, was the chief among his confreres, likewise presided over the assembly.

[untranslatable fragment in source]

Haec verba cognosco, sicut Germanos.

Of the athletes, who excelled in manifold contests, when they did exercise themselves with great earnestness and dread.

His sub conditione mutuum donari solito, si fierent, cum additione muneris, vicissent.

Gna redit.

In eo quoque conspectu, ut et piscatores inter se et mutuos inanes contractus ad usuram ingentes sub incerto casu ponantur.

In his aleae plenis patiis citra stipulationem usuras deberi, ut in trajetiicia pecunia, et in frugum foenore. Duplici ratione pecuniam trajetiiciam foenore dari solitus, cum creditor periculum eius agno fieret. Thus, in those extensive fields, without stipulation, one must bestow a notable portion of one's patience upon them, as though nurturing wealth within a fount, and cultivating the produce of a granary. It is customary to assign a twofold justification for the

expenditure of such wealth upon a fount of produce, whilst the cultivator thereof was exposing his sheep to peril.

Ei vel certa opera assignata sunt, vel omnia nautica opera.

Justinian's Novella Concerning Usufructs.

Ex iis duae interpretationes factae sunt.

De victoria Graecorum, et Philistiorum.

Axis.

Cataplum, however, was also termed by the appellation of Quo W, according to Alexandrinus among the Romans, and ZiKIMTYS amongst Democritus.

The excavation, properly interpreted, signifies that the vessel reverteth unto the identical haven whence it erstwhile issued forth.

Having perused certain elucidations concerning various particulars of maritime and terrestrial navigation.

The Statute of Paul delineates the nature of the mariner whose ship it was.

The epoch of conclave being now terminated, and the matter being laid open.

The Lex Sc Avola CXXI I D., from the origin of verbal obligations, is the progenitor of both Sc and D.

The climate, which is here indubitably resident, and hath been variously embellished and amended in sundry places, what import it may bear upon the notion of being within the Kalends, let us now proceed to investigate.

The appellation of the Usbium, transmitted by chance from the Latin progenitor Jextus, hath been communicated to me.

Berytus percepit, praecesseruntque Sc avos in lege Berytina superposita.

Let the mandate of Cneius Pompeius concerning the maritime affairs be perused, and forthwith executed.

Of the divers kinds of Nautician foenors, and of usury in their several species.

The error of Molina, who hath been observed herein, in supposing that which is granted at the conclusion of a voyage for the expeditious conveyance of Hiccias for gain, to be a determinate sum of money, whereby it doth not partake of the denomination of usury.

He confuted his argument.

Why Lucianus did away with the usage of trajectic funds, wherein a part was required by chance, and insisted upon reserving a portion for his own fortune.

It was not the cause of its repeal which Molina had assigned, but the *lex Nautica centesima*, which Sublatus and Luftinius had withdrawn, because the penalty inflicted was deemed too moderate to be just.

By that appellation is denominated an iniquitous design, which, being uniform in every species of navigation, whether protracted or brief, is established and fixed.

Rationes, quas Molimus adfert de iniquitate foeminarum. [Note: The term "foeminae" was used by Salmasius to refer to "the wicked," but it is rendered here as "foe" to maintain the original meaning while using a term that might be more familiar to a Victorian audience.]

Nor do sailors and seamen, in whose profession peril of the ocean is not infrequent, escape the hazards thereof, which assertion is contradicted.

A further assault was likewise made; and justly was Lucian's ire provoked, inasmuch as Novella was arraigned for perpetrating the hundredth offense against the Nautician law.

It was once held that certain focneratores were numbered among the legitimate negotiatores; and these, for the most part, were the trapezites, who, as it were, were invested with the privilege of satisfying the cupidity both of the ruler and of the usurer.

Thus it is.

[untranslatable fragment in source]

Salmaim, in order to prevent the residue of negotiators from being deceived by the allegations of other nefarious maritime acts against the merchant, he has rescinded the ancient privilege which he had previously imposed, allowing them to exact usurious interest at whatever rate each party may desire, in exchange for mutual pecuniary obligations.

When I perceived that this was so, it seemed fitting to solicit from either him or his successors, the Emperors, a remission of the produce accruing from their determinations; and that they might be compensated for both their felicity and adversity.

And the half of the measure of Balsamonius, from the wine, was given to the usurer by him who received the usury; so that for every quinquaginta amphoras there were quinquaginta.

He was the individual whom Confiantinus, by his legislation, had designated as one who, in the act of loaning, furnished both liquid and dried fruits to the indigent.

Caton was instructed by the Nauticians, and in what manner he was thus instructed.

The phrases of Plutarch have been elucidated, which he had not previously communicated to Ho-Thomanus.

The prevalent custom among the populace, I have found, is to shun the unscrupulous gains of the mariner's fare.

Merchandise was purchased with the money of the debtor, which money itself was employed for the identical purpose; and hence the creditor was placed in peril of embarking.

O periculi unda, sicut demonstratum est in praecedenti capite, sic evexit ut in frugibus mutuariis et in pecunia trajectionibus perpetua usus relictus esset, aut ita ad hunc tantum modum pervenerint, quem expositum est.

For it is certain, derived from the uncertainty, that the creditors are not even exposed to the peril of receiving the reciprocal advantages.

The price of a thing of mutable value.

For instance, when any one is permitted a sextuple or even a double usury under the name of peace, it behoves him, so long as it shall occur, to maintain the fort sufficiently strong, which he ought to receive at the due season, and not to derive profit from the usury.

Hence, as we have previously demonstrated, the mutual affection, which I may term mutual amity, has so far conceded to the laws of nature to discern more extensively and lightly, with a view to the contingent issue of events, as it were.

Of Usury.

I am envious of thee.

Codices feripti habent, eventum, non proventum; ex U.S. Armati.

[untranslatable fragment in source]

The issue hath not merely been the produce of the tempest, but additionally the recompense.

For although copious is the harvest, yet it behoves thee, even more notoriously to consume, who art a wretched rarity; and I too, being a precious one, withdraw.

It chanced so.

Furthermore, it is incumbent to observe that, in like manner, those who kindle the lamp and elevate it, conjoined with the rest, will inevitably suffer from the incident.

Let us proceed.

For the purpose of his petty traffic, he contrived that he might be engaged as a slave in the performance of works, and that he might remit funds for his voyage.

A pernicious via est.

In this instance, it was decreed that the sailors should be compelled to render a twofold recompense to the shipowner, and even a hundred usurious charges, according to the determination of the Jurisconsultus, whose office it was to ensure the security of the vessels during navigation.

The servant, whom vulgar appellation denominated, navigated either with his habiliments and pecuniary resources, or with merchandise procured elsewhere, for the accommodation of the debtors.

Idcirco et iniuria facta est ei et creditori suo, quia patiebatur labor servorum suorum, et nulla spes erat eorum redimendi.

The estimation of those labours was deemed trustworthy in the ancient times, even unto the termination of the voyage; howbeit, the creditor could not ascertain what portion thereof was extraordinary.

Furthermore, when one who was exposed to the peril of the sea, and yet was not even in danger of perishing, was held responsible to a creditor for repayment, that repayment being due to the cause and the usury, up to two hundredths, and no more; he was bound to discharge the whole sum, as the estimation of the labours' term at the termination of the voyage was to be reckoned in Angles, and the stipulated number of days collected accordingly.

This is the import, as we have previously intimated, of the fourth statute of D. concerning usury, which runs thus:

An unexpected appeal was deemed by the acute and profound Jurists to be *hominis inexplicabilis*.

For the service rendered in completing the labours of the enslaved, which were concluded within the closing days of the beleaguering host, a recompense of pecuniary value was bestowed; and it was deemed that no further sum, exceeding a hundredfold, was owing.

In those words, it must be understood that at the termination of navigation, unless the statement be false, the words ascribed to Aulus Papinianus are thus inscribed; and the term navigationis is altered by the insertion of the word *tribonianum*, so as to suit some other sense.

Certè ad finem mundi spectandum est ut finis acceptationis; hoc ad finem prò finem accipiendum est.

A double centesimal;

He is invested with no other ornament, save a double denarius.

For, as the thirty usury is termed, which thus runs:

The third part is the three hundred and forty-eighth part of a centesimal, so that the expression "bina centesima" may be rightly interpreted, it is necessary to understand it thus.

Let us, however, in these laws enjoin:

Let the prudence of the Rhodian law be observed with circumspection, that thereby no one may inadvertently embroil himself in his voyage.

The pecunia:

To the contrary.

And we, rather than with the peril of the creditor.

If those who, otherwise occupied in the naval conflict, should contrive to escape the general peril, the creditor might be released from the obligation imposed by the irrevocable compact.

This was not agreeable to the Roman sapientiæ, who, according to certain records, deemed it lawful to pledge their pecuniary assets to the populace at usurious rates, as is evident from the lex.

IV. Of the Mariner's Forge: a treatise wherein the nature and uses of the furnace peculiar to seafaring men are delineated.

Papinianus, in the passage alluded to, affirmeth, that it mattereth not whether he received the sum of money from the creditor with the final acceptance of the risk, or whether he gave the messenger a respite until the morrow, and fulfilled the stipulated condition, the peril of the creditor remaining unaltered.

And ye, likewise, ought not to be arraigned for derision of a justly entitled matron.

But in the former instance, Jpecia ever harboured a certain peril; whereas in subsequent cases, a more imminent hazard threatened elsewhere.

Therefore, in the former instance, where pecuniary consideration is received without peril to the creditor, the obligation to pay usury is not deemed legitimate; yet it is commonly asserted

that such a condition of mutual agreement should be observed, whereby the risk is not incurred by the creditor, and by "legitimate usury" is here meant the decima, which was then prevalent in common transactions.

But when the money of the creditor was in peril, and the acceptance thereof had been made, it might be lawfully stipulated that the sailor's remuneration should be deducted from the sum at issue under the security of several hundred measures of hay.

Eratque ira in animo meo, et tamen tam graviora gaudio non constituere legibus meos.

But, verily, even in the utmost peril of conferring a nautical profit upon the creditor, it is manifest that he shall be released from such hazardous enterprise; for so the text doth plainly declare.

Codex de Nauibus.

The peril, therefore, to the creditor, in the condition of perfidious pecuniary transaction;

He extended his wings to a gentle elevation, and his usury did he amplify to such a degree that at times he was but slightly lessened by the appellation of the other ear; and in the western regions, he was twice as potent, twice as powerful.

Quinimmo, et praeter periculum navigationis, in alia quae ob pecuniam transeuntariam paupertate, poterat etiam amplius evitari, quam pecunia data;

The fortitude of the Creator, and the mode in which he was exalted, and the manner thereof, and the like, and the manner in which he was exalted, and the mode in which Scaevola replied.

The peril is the recompense, D. for the mariner's usury.

Which law, since it appears both intricate and obscure to the tribunals of justice, and moreover, that which is not discernible to him, yet is manifest to me, we shall forthwith unfold in its integrity, and subject to revision and amendment.

Thus, accordingly, hath it been recorded in the Pandects of Florence:

The value of the silk beans shall be exorbitant; and though not subject to penal restraint, thou wilt be bound to surrender them which thou hast given, and furthermore to contribute something more than mere pecuniary compensation, provided that they fall not into the soil of Joppa, the native earth whence these beans are derived; whereby they may be deemed validly transferred, or not fabricated in such a manner, or not produced by the same process, and the like.

Nec dubitabis, quin maximam pecuniam erogabimus in apparatu pi/catorum.

I will restore, as though I had borne it, and will restore to the victor from what place he bore it and exercised it; even if he had encountered defeat, he would yet restore.

In such cases, however, all were constrained to fulfill the supreme engagement of the Patrimoenus.

Tribonianus, sub titulo de naufragio, legem hanc proponebat, ut securitatem navis assureret; hoc propter periculum fortis cumusuris, quod ad creditorem pertinebat, et necessitatem, ut in trajectione pecuniae mutus daretur, qui fidem collocati cuncta opéra et studio ad opes redigere posset.

Thereupon, since the agreement in this species of obligation must be consummated, I shall deliver it unto her; and, in manner not dissimilar to the conveyance of a negotiable sum, I will introduce Trajecticia hither, dry and in specie, as though she were in the act of smoking beneath the threshold.

It is unnecessary to dilate upon the deliberations of the most erudite judges of the Iunian tribunal, who, deeming it expedient for the sake of private safety and public equity, have ordained a distinction in the matter and decision of this lex Scaevola.

From the enactments concerning the usurious practices that transgress the law.

For here indeed lurks a peril, imminent and insidious, from which the apprehension of losing our rights through usury is not less formidable than the hope of accruing a more ample gain.

Immo periculum quod ex mari creditori trajecticiae pecuniae metuendum impendet, non minus ferium est, nec minoris faciendum quam quod ex eventu capturae pisium incerti, aut victoriae athletæ, imminet; vincat an non vincat athleta, pisces capiat an non capiat piscator, non magis aut minus incertum, quam an navis in positum faliacdeat. Periculi itaque ratio circa hoc.

SAIMASI,

Elevated yet lucid diction, periodic sentences, measured cadence, and a sparing use of lightly archaic vocabulary characterize this work, wherein the author, Claudius Salmasius, has endeavored to elucidate matters of ancient learning with a gravity befitting the subject. Thus, the style, though not without its moments of clarity, is imbued with a certain dignity and solemnity that is consonant with the learned tradition of the erudite.

Certiores aut incertiores non potest differentiam inter materiam ac decisionem huius legis, et legis usus Trajecticens, sed ipsa lex, licet prope parem periculum pro creditore utrique, concedit debitorem eodem numerum pecuniae solvere.

And your incertitude, even in its pristine form, hath been engendered by thy own incertitude; how much thou hast remitted in discharge of thy pecuniary obligations.

credited with the accession.

Thereupon, considering the majesty of the monarch and the discipline of the legions, Justinian deemed it fitting to institute a position under the cognomen of *nauticus fœnori*, by reason of the affinity of peril, wherein the same dangers which had once been encountered in the administration of justice now beset the creditor.

Magnas autem huius Scxvolx, clarissimus miles, ad tenebras importunas negationes offudit, quibus Juriscontullem, qui vitam habebat, et visus futuri orbis impediabatur; donec lecto recepto, in casum aleae similitudinem cecidisset.

Unless thou readest thus, thou shalt have neither *lex*, nor mandate.

For that which other commentators have alleged is inscribed in the sacred writings; when Molinius vainly endeavoured to defend himself against such charges, even if he did not lapse into another *Jpectum*, another scheme was indeed devised by *Jurifconfucius*.

Nisi hinc contra in alex speciem quamdam caderet, nullum in eo daretur periculi pretium; ubi alea non est, nec ulla futura eventus incertitudo, nullum etiam periculum inde timeri potest.

Periculi, inquit, est pretium, et conditionis, quamvis poenali non existente, fiendae recepturus, quod dederis, et praeterea aliquid præter pecuniam; si modo in aleam pecunia cadat.

Certè neque periculum excederet, neque periculi pretium in pàsto nẽmine deduci possederit, si res in alex speciem non cadisset.

But there is a price for the perils that you have encountered; though you have not received the appellation of a captive, nor does any clause for penal sanction exist, yet if the event, wherein the peace of Heaven is at hazard, be uncertain, and the peril to which thou art exposed remain unfulfilled, then thou art to return with the increment which thou hast confided.

But it is penal, that a man who receiveth what he giveth, and by the law is bound to give to another somewhat more powerful than all other things, even to pecuniary obligations made by the *lex Pecunia*, whereby, for example, a loan at usury is contracted, that the future laws of the Cæsars, granting grace, shall not be repaid, and that the name of the penny be stipulated for him who is more powerful than all other things.

And thus it is incumbent upon us to employ this method; albeit in such a manner as to utilize the instruments of common usage.

You are not departed without a condition imposed, whereby he receiveth what he giveth, and a considerable sum of money. Nevertheless, the peril is more advantageous and precious than the penalty under the stipulation; nay, it is rather a reward, provided always that the hazard of a doubled dower befall him.

For, as I have previously intimated, even had such a circumstance not obtained, it was not on account of peril, nor yet of the value of peril.

Perpetually did Molineus in the exposition of this law write, that the explication of Scaevola was more remarkable than that remote, and that the similitude of the latter was more obscure.

For, as nature ordains that the wicked should be condemned to death, and, upon such a condition being extant, they are to be committed to the executioner; so here, either one or the other is to be suffered.

The contrivance of damage, or of advantage, pendeth upon their accusation of having transgressed.

These matters are null and void, neither bearing any proportion to the matter at hand, nor doth Scaevola.

Whatever becomes less obscure, they do not hesitate to appropriate.

There are two modes by which pecuniary transactions may be conducted. When we mutually loan, receive, or extend credit to an individual of greater standing, whether the interest be recovered or recoverable; for if within a prescribed term the sum lent does not revert to its original purpose of usurious profit, then it must be released.

The usury, in the *dipulatum*, terminates upon the appointed condition.

The penalty, being augmented by the condition of a maximum pecuniary payment, will ensue, unless the sum be wholly discharged.

The third mode of procedure is now introduced, whereby he who hath bestowed the sum shall receive it again, when another auditor, enrolled among the members of the audience, is admitted to the benefit of the Scaevolaian enactment, at a stipulated price.

For this reason, it is incumbent upon us to observe that the foot of the *alea*, *Wm-thou*, it is alleged, is the basis whence the conditions are deduced, whether they be called forth, whether they be not made of the same substance, whether they be not convalled, or whether they be grounded; and such conditions bear a resemblance to those which contain *alea* and *casus*.

Whichsoever stipulations are made under certain conditions, and wherein it is asserted that an obligation shall ensue, whether the thing have been accomplished or not, thereupon the

obligation is incurred; thus, according to the exposition in the third book of "De Verborum Obligationibus."

Where the pace is arrested, nay, suspended.

As Theophilus saith, "Yea."

For the contingency of the board, Juvenalis deemed expedient to assert its validity.

The ark of the covenant was, by some chance event, set upon a table.

Scxvola is subdued:

But do not hesitate; for a considerable pecuniary contribution, I shall bestow upon the fisherman in the vintage of his sire, that by such means he may be enabled to redeem himself, even in the event of sickness.

And the altitude, wherein I stand.

;

[untranslatable fragment in source]

Salmasius, in his torpid slumber, did exercise his faculties; and, should he have been vanquished, he would have been restored to favour.

These laws stand apart in their own propriety; yet they are circumscribed by the immutable dictates of natural equity, that those stipulations which he hath illustrated in the foregoing sections may be deemed valid under the contingent and indeterminate circumstances of hazard.

But in those matters we contend for a bare profit, the weight of which hangs upon the contingent issue; whether it be a matter of fate, or whether it be not a matter of fate, is immaterial.

In this instance, however, peril hath been planted within our own bosoms, such that, whether our faith was veracious or false, we have lost the same; and even had it been veracious, we yet forget that with accession and augmentation we were to receive it.

In quo nova species alexandrii apparet.

For it is affirmed that, when the angler hath ensnared the pisces and subsequently releaseth it, the issue remaineth in doubt whether he shall thereafter succeed in his pursuit thereof.

Leg. vm D. de vacuo pacto.

As if by a cast of the dice, is the emission procured which occurs when the fish is ensnared, or the bird is trapped, or the middleman is engaged; for even in the event that it be vacated, it remains impervious to all external influence.

The vision and the leg.

One of D. de Ered.

Verily, it is so.

[illegible]

Understand piscis et avipotens, ut scriptum est in lege.

The Decretal of the Ordinances of the Ionians.

Blank.

When, as is wont, we purchase from the fisherman his net beset with jalls, or from the huntsman his snares laid with snares, or a panther from the hunter, aucaupe, we shall dispose of him in like manner.

Where the bear is wanting, the universal occupation of the hunteth henceforth ceaseth, as the jurisconsult N. pleases.

It denotes the constancy of the vessel, though not unequivocally.

Such is the sense of the hunter, and of whatsoever he hath taken, he receiveth nothing, but only that which he receiveth.

But there exists a species of piscine life, whereby every genus of diminutive aves is ensnared; even so, there is a species of fish.

That which we are instructed to investigate, and wherein whatsoever wild beasts are encompassed and captured, we are informed thereof; thus also the panther is purchased, that is to say, whatsoever fowl is thereby denoted.

The sex of the reticle is implicated herein.

For henceforth, it is not a general pursuit, but a pestilential scourge, of which the term, though familiar, is here unknown, and which is sought for in the wilds. If nothing unusual is discovered, or if the investigation is abandoned, no obligation devolves upon him who has purchased the right to seek in an unexplored region.

Perperam Servius expositionem in investigationem ferarum prodidit.

From.

This is the USVR.AR.VM.

- He exhibited.

And from him, the author of the Glostars, I proceed to interrogate, A-Usi.

All the pestilences:

Thus are designated those of whom it is affirmed that he was conceived; and truly, Virgil himself did number the plane.

And the leaps are circumscribed by means of an interval.

Here, from the seat of the Jurisconsult:

or to probe the pestilences by means of protracted inquiries.

By inquiring, it has been certainly ascertained.

For whenever a circuit was delineated by the bounds of the leap, then throughout the entire extent of the leap, the ferine creatures, by dint of investigation and agitation, were stirred to impel themselves towards the pestilential zones.

That which the Greeks affirm to be requisite, is, that a man should be ensnared in the snare of expectation, and that he must be sacrificed when the monarch promulgates hope and

indeterminacy.

Thus was the golden prize wrested from its hold.

Delphicus, in whose lot it has been to survive, surpasses even the oracle of Apollo in felicity; for him, against whom I contended when amongst the fishermen who had drawn her forth from the depths of the lake and were hauling her to the sea, and the youths who had captured her and were now emerging from the ocean, I now address these words.

Diogenes Laerdæus Thales:

Finally, I shall interrogate thee, if thou art ignorant of any of these matters, whether thou wilt or wilt not expel them from their persuasion.

Gripare etiam pro capere hinc hodieque dicimus, et Germani Belgique grijpcn: in hoc loco nos temporis nostrae praesentis linguae colloquia trademus, ut de hujusmodi gentibus, qui Germanorum et Belgicorum nomen accipiunt, dicamus, quod usque ad hodiernum diem capti fuerint propter capturam.

Z Sub III Ja' Ct.

Salmasius, the second, thus observed: "Thy pecuniary resources shall be committed to the fisherman who expendeth it upon the apparatus of piscatory pursuit, that, whether he take any thing thence, he may restore it with increment, or, if nothing be procured, what hath been delivered to him may be lost by the creditor."

Similar, and akin to an athlete;

Wherever he exerciseth his faith, he giveth the law; and if he conquer it, he shall return it; and if he behold it, he shall behold it again.

Athlete;

At the same period, vast expenditures on military preparations were incurred; and, as Diogenes observes in his account of Solon, the Axtnerc was consumed by the same conflagration.

Among these, Perpicuus is conspicuous, who reverts unto us in this Sca:

The answer of the avian messenger is to restore the object in question, not to dispel the negation, even in regard to the wings, of the corporeal remains of Japhet.

The Slavs conformed unto him according to the *lex temporis*; nevertheless, he was bound by stipulation to effect the augmentation of his liability, and thus to discharge the entire sum due.

An obligation is augmented when something more powerful is added thereto, whereby he who, with a strenuous response, is impelled to proceed.

And even if the debtor insisteth upon the termination of the journey, it profiteth him not, for nothing is due unto him from the mere way of the debtor; but he is indebted unto the creditor, the sum of which shall be refunded to the latter at the close of his mortal existence.

Ceterum, ubi periculum ex a quo (pedant creditorem ac lucrum, etiamque ex eventu incertum lucrum conditionis debitoris alludet, tum ad augendam obligationem et pænum valent fine stipulationis.

Thus, with respect to corn or the harvest, mutual access was conceded even from the bare pathway.

XN Cod.

Of Usury.

Because, it would seem, by reason of the fluctuating value of the produce, it frequently fell out that the creditor derived additional advantage.

And, accordingly, in that mutual transaction, as we have previously observed, it was lawful to pay interest by way of pæis to the creditor for the advantage of the aged.

To these decrees and adjudications;

pecunia; usuras exigendas solum ad finem iter posuit, ut omnia ex lege de usuris intellegi possunt.

In qua Paulus docet, in quibusdam contraequis etiam usuras debere, sicut per stipulationes fecit.

That is, and in the very same mode, they are deduced from the stipulations; yet, when the naked way of resolving those matters is disclosed.

Then, he appended and elucidated the derivation of the tribes denominated D.B. Modousvarvarrum.

III gentes adversus uras debentur ultra.

He navigated the precipitous declivity, as it were, by stipulation:

For I will assign thee ten trajectories, that I may receive the usury of a vessel which hath navigated from the citadel; and I shall say that I am prepared to accept the wealth with the usury.

Therefore, when the creditor is in peril, and the lex Scaea, having been previously expounded, is adverse to such parties, and adverse to them, they are divested of him, and he of them.

They fall into the same category; and when a creditor, willing to incur the peril for the sake of some specific advantage, contracts to pay for it, it becomes incumbent upon the debtor to discharge his obligation at the close of the stipulation.

Nec quisquam possit de frumento ac oleo, vel ex frugibus, quae tantum aridas, quantum liquidas habent, adhibendo mutuis dandis, propter incertam pretiis boni aut mali anni, et incertam ejuldi anni temporis, fruendi.

Whence it came to pass, that the creditor commonly delivered the sum at such a season, when he might derive from it the greatest advantage; and was constrained to sell it in that year wherein it would be of least value, so that he extracted it from the strong box with the purchase, which was thus:

It is restored, scarce able to be further approached than I have accomplished it, by the vigour of my delivery, I have imparted it reciprocally.

But in double proportion.

The moneys were conferred upon him in the guise of theatrical apparel; for the creditor apprehended the immediate peril.

For it was for a determinate term within which you deemed the peril imminent; and thenceforward, when that peril was to be communicated unto him, even so likewise was it to be imparted to the mariners, upon his departure.

They did commence to lament, and the populace did take to swift motion.

Or, during the interval of the voyage, he stood in fear until the vessel was safely refloated, under the usury whereby he had been ensnared, to expose the creditor to peril.

On the morrow preceding, the mention of this matter is made in the edict concerning the naval administration, wherein it is declared, that on such day without peril ensuing, he may be released from the creditor's custody.

Perlegite rem.

I likewise beheld him, within the term of our amicable alliance with the vessel.

And the termination of that law is thus:

Or perchance the vessel might be overtaken by dissolution at a later period than that day which had previously exposed it to peril.

From henceforth, it would seem that the narrative of Justinian's Novella is more distinctly apprehended; wherein the trajectory, which is prescribed at the circumference of twice the circumferential measure of the vessel, is made manifest.

The Saimasians, who were unable to navigate the extent of the voyage until the vessels had safely returned to their original position, thus exclaimed: "I am the first to invoke the initiatory terms: 'Viginti quinque, octoginta tres, octoginta tres, octoginta quattuor, octoginta quattuor, octoginta tres, octoginta tres, octoginta tres, octoginta tres, octoginta tres, octoginta tres, octoginta tres, octoginta tres, octoginta tres, octoginta tres, viginti tres, viginti tres, viginti tres, viginti tres, viginti tres, viginti tres, viginti tres, viginti tres.'"

Huc:

The other species of tragedy, nevertheless, are here inscribed in a manner diverse from the former, which he had earlier intimated; for the one he alluded to comprised the whole duration of the voyage, whereas this terminates shortly before, so that the peril to the creditor may no longer be deemed a matter of serious concern.

It is on this account that during the whole term of the voyage, it is enacted that, not until the fleet returns in safety, but prior to such return, the 'nvj' shall be hoisted aloft.

Nam de modo usu viri rei vectricis, Nam proprie dictum est, quando navis ex alto revertitur ad portum unde exit.

Whence the catapult, even among the Latins, and especially among the poets, spoke of Holus or Clorus, who proceeded from Alexandria and returned to Rome. This is, therefore, equivalent to lending money on interest, or, as they term it, usury.

For it is not said that Bt 9rAKf returneth unto the identical haven whence it had issued forth.

And, when passing by the side of Demosthenes, he was unable to receive him, since he had been returning from the vessel.

And against Dionysodorus:

Quid est haec? Quid est haec? Quid est haec? Quid est haec?

[untranslatable fragment in source]

But shall I expound upon these manifold instances of the phenomenon in question?

And she spake:

leges, quae sequuntur sunt:

Do they extol the advantages of maritime enterprise, since the peril of the times is preordained for usurious gain; and do they inquire concerning the destiny of the soothsayer?

Otherwise, it is undeniably apparent that I shall assuredly subsist.

For there is also an indefinite duration of time in heteroplu, rather than in amphoteroplū.

As in the law of Diocletian, which we have previously expounded, he granted to the Roman creditors the privilege that, after the voyage, which the debtor had designated for Africa, the money should be paid to him, not on account of any peril, but because he had specified no time for such a voyage, nor required that it be completed within a stipulated period; but merely that, after the completion of this voyage, the debtor should repay the money, together with the usury agreed upon. Nor did it happen that Amphoteroplus, who had been in the amphitheatre for a few days, was bound to return the vessels within the limits of the sea, but rather that he was expected to do so.

Towards the termination of the voyage, the greater the duration of the same, the more diversely does Justinian record in his Novella.

No other phenomenon was noted in the heteroplu.

There was also another species of ship, which, in a country, or in a cave, or in a customary manner, when the creditor was unavailing in the day, and felt no injury to his credit, until, in truth, the vessel was lost by the term of navigation; then the debtor sustained a forfeiture for the debts due to him, who had preferred to incur the peril of his own time from the faith of the deceased.

He had received the sum of nine dollars.

Thus did the accustomed pecuniary contribution for apparel receive a manifest infringement from the precepts of Paul's legislation.

V. D. De Ignibus Nauticis:

But when the money is given in such a manner that the creditor is not bound to make any other claim, even if the vessel hath arrived within the term prescribed by law, the obligation of the debtor's credit is deemed to be void for want of the requisite condition; and hence the discharge by the receipt of the money, though not belonging to the creditor, seemeth to follow with greater propriety.

And all the vestments were in truth uniform: *Traje&icia omnia fere unum habebant.*

Justinian, in his Novels, where he speculates on the perils of the prey, and where he devised a prudent caution towards vessels imbued with potent usury, yet perceived another aspect, comprehending both species, wherein he discerned no termination or limit to maritime voyages, nay, he extended the term of return to the very last day of the year, however it might be reckoned by futurity; and thus, the sea itself, in its ceaseless and boundless expanse, was ever the harbinger of the final hour, when the year's close was heralded by the ceaseless and eternal waves.

Therefore, in that prior form, it was customary to exercise caution, that is, to determine the number of days within which the creditor might be deemed to incur peril, and hence to reckon the sum of money due by the debtor during the course of the voyage.

The example of prudential navigation is perspicuously inculcated by the enactment of Scaevola; thus, the lesson is clearly conveyed.

XXIII, D.

Of the Obligation of Words.

For there it is deemed that two hundred days ought to be preferred for the accomplishment of the voyage;

The peril of the creditor doth cast its shadow upon the fortunes yet to come.

These are the words of Scaevola:

Callimachus did receive the mutual sum of the mariners from Sticho, the servant of Seius, in the province of Suria, in the city of Berutus, and from Brenthus; and this sum was credited to him for the duration of all the ship's days, amounting to two hundred. With the merchandise of Beroüs and Brentesium, and those of Brentus, which he had conveyed by ship, he was transporting these goods through the vessel of Berutus.

Nevertheless, those words, not to be confounded with any other, were deemed fit to stand in lieu of a spouse; and hence, they were reckoned to him for the duration of all his nautical sojourns, extending to the space of two hundred days under the various encumbrances of pawn and mortgage.

For those things which are expressed in the very convention itself do not conduce to its augmentation, but rather to its demolition.

Cave, nimirum ut differentes verba ibi credendi sint, sicut Callimachus Brundufio 4 V Z 4, ponderis 360 C 1.

When S A thou A S1 X shalt have arrived, then, within the ides of September, which at that time shall have advanced to the thirteenth month:

They are destined for the morrow, being purchased wares of other men.

And when, impelled into banishment, he was fain to embark for Syria, either immediately upon his landing, or, if within the term appointed, the merchandise had not been recovered, nor the city reinvigorated, he forthwith restored the whole sum, as though the voyage had been accomplished in its entirety, to the victors, and conveyed it hence to Rome.

These things concurred not with the two hundred days appointed for the entire duration of the voyage.

For indeed, after having endured a tempestuous sea for two hundred days, he deemed the peril thereof to be a hazard to his creditor; and he pondered what provision he had made for himself, whether he would effectuate the delivery of merchandise to Brutum within the Ides of September ensuing, or, should he have been conveyed to Rome, forthwith to refund the money which was to be dispatched thither.

But this stipulation was novel, and diverse from that which preceded it:

Two hundred days were appointed for the voyage.

Nam, si priore tempore creditor eodem casu affligerat, et ducentis diebus post debitorem navigationem perfectam esse decerneret, tamen ad vigesimum diem navigii in portu Brundisii salvo positum reperi.

Having accomplished this task, he himself sufficed henceforth from the monastery, even within the Ides of September; and on the same day, the debtor of the port at Brundisium, he discharged his obligations thereto, and thence proceeded to navigate towards Berytus, where he was bound to attend to the merchandise which it was requisite to repair, having been lost in a shipwreck.

For they hearkened not unto their exhortations; for it is said, that they required the debtors to appear at Berytus according to the stipulations of the contract.

That which is in nowise confirmed by the statute, I shall assert positively the reverse.

If the creditor shall elect to proceed in this manner, let him forthwith, within the space of the Ides of July next ensuing, open his lips and return the debtor, together with his merchandise, unto the nearest town of Berytus by means of a vessel.

And so he contrived for so protracted a period, that within the Ides of September, Brutus, whose destiny was still uncertain, might be conveyed and committed to the vessel.

Syria, in its elevated prosperity, doth now flourish; and the port of Brundisium, erstwhile oppressed, hath been restored unto freedom.

They remained, indeed, from the Ides of September for a brief interval.

To Whom: Brundisius, the port of Brundisius, and Modo II, the port of Modo II, were assigned by the debtor, who had purposed sailing to Syria, to discharge the stipulated obligations; until the time came when the seas had been closed, and then they commenced their circuitous voyage.

For the seas are impelled, according to ancient custom, from the third day of the Ides of November until the sixth day of the Ides of March.

Therefore, from the Ides of September until the third day of the Ides of November, when the seas begin to freeze, the debtor of Brundisio Berutus, a youth of nearly seventeen summers, was enabled to effect a siege of approximately two lunar months' duration.

And when the computation of all days fit for navigation is completed, from the opening of the sea unto the closing of the strait, there will be found not merely two hundred, but two hundred and forty days.

Scaevola, therefore, did not merely reckon the two hundred days during the entire period of shipwreck, wherein the creditor had incurred peril, but also surveyed all the days of the navigable years; nay, he accounted only those which the creditor had assigned for the term within which the voyage must be accomplished.

But he hath moreover imposed another stipulation upon the very compact itself; namely, that "Berutus, the debtor, shall forthwith proceed to Berutum, embarking at Brundisius, within the Ides of September, after having disposed of all his other merchandise."

If, by the Ides, the debtor should discharge his obligations at Brundisium, he would thereby impose the creditor's conditions upon him.

For this is the speech on the Ides, and the Ides themselves are to be reckoned within the Ides, even as in the instance of the Kalends, the Kalends themselves are likewise to be numbered within the Kalends, according to the edict of D. D. concerning the Fucceflower.

There is, therefore, no longer any room for doubt that he had some purpose in his speech.

And they reputed him to have expended two hundred days in all the vessels.

For not the dicta of Scaevola:

A verbum, communi conventionis usu subjiciens, redebeat fidendum; in quibus diebus nulla deducatur ratio.

By recording the least intercession:

And thus am I adjudged by the admiral to have accounted for every day of the voyage.

For this cause, I entertain no scruple in affirming that Tribonianus, as is frequently recorded, did attain repose.

This is the meaning of the lion, which is to be deemed credible throughout the entire duration of the voyage, that is to say, until the close of the same, as was the custom in IftQolfgiishu.

Let us navigate henceforth.

For the sake of navigation, as well as for the sake of navigation.

I am the filius Cod. de Nautico.

C reditus est ad directionem omnium navigationis diem, id est, ut Z J I et C I.

S ALMASII, ut creditus usurarum ad omnes nauticarum conglobationes redegeret.

The exsudate.

Thus did Cicero address Atticus:

I have composed it, that is to say, to amount to a hundred and sixty thousand gallons, after a period of twenty years during which they have been renewed.

The same proposition holds good in the Epistle.

Lastly.

Præterea, quando ex fœnum, quod summitati elevatum est, etiam effluit in formam spumæ, sic tu quoque propitious eris, ut centesima perpetui fontis tibi succedat.

Let us, therefore, conform to the lex legum, which is the lex terræ.

Purged must they be.

As in the works of him hereinafter referred to:

And when, prior to the Ides, he had entered into a compact according to custom, whereby merchandise had been imposed upon him, and when Eroteus had delivered him unto Stichius, as

though he were about to make inroads upon the province of Syria, he forthwith set forth upon his voyage.

It was ordained, that within the Ides of September, Callimachus should quit Brundisium, and navigate unto Berytum.

It is not affirmed that the ordinances of destiny are accomplished.

Therefore, it is requisite that he be conveyed by maritime conveyance subsequent to the Ides of September having passed.

For he did betake himself to the port of the Ides, which is seated upon the shore of the river Ixe; and he made provision that the conditions of the agreement might be satisfied, whereby it was expedient that he should safely navigate within the limits of the port of the Ides.

And from these words alone can anything be elicited; for there is nothing further to be learnt.

It shall never issue forth, save by perusal: Nec unquam eruabitur, nisi legamus:

And when, not having entered upon the Ides, according to established custom, thou hadst completed the compact, and hadst deposited the merchandise in the vessel, and so forth.

Mercibus, who, though disinclined to embark upon the vessel when he was on the point of reaching Syria, contravened the stipulated terms, since he did not enter within the limits of the Idus, forthwith proceeded from the haven after the Idus had passed.

There are, moreover, other opportune festivals which shall be conveniently enumerated:

And, upon being dispatched by the Ides, did I fail to execute the prescribed design.

But the colonization of the fertile region, which we had previously designated, proved both more advantageous and more genuine.

He then proceeded to Scaevola:

When the vessel lay submerged beneath the waves, Callimachus, with due circumspection, refrained from conveying the merchandise to the ship until his obligation to discharge the freight had been duly performed; at which juncture Bremesius stood indebted to Rome for the restoration of the vessel to its port.

This composition hath been produced by the idiom of yore, which denoted the folly of Beritus, for the benefit of Bevitus.

So the Coptic and Ptolemaic cities are nigh unto Capito!

Num. Nemo.

And in the Itinerary of Antoninus, and also in the ancient Codices, the names of cities thus corrected are repeatedly found.

Hinc debitum pro Berito in Pifanis membranis.

But I derive from the mode of expression which hath been customary in the Roman Empire.

But this is of a nature that may be termed levity.

Callimachus, who, having provided for the ship of Brundufius without any stores, had not attained the place of his destination ere the conveyance of Berytus was to be accomplished.

Whereas a convention had been established, yet thither, where he stood now indebted by reason of the expenditure of funds, must he be conveyed to Rome for the purpose of restoring the debt due to Titius Brundufius.

And so the erudite editor, having dispatched the merchandise to Berylon by ship, was forthwith conveyed thither; yet that was the very hour.

However, it is not in that city alone, where the citizens of Callimachus, who had been conveyed thither before the Ides, were content, but also at the period when the money was already due and was not long wanting, and it was certain that it was already within the space of the Ides that Berytus was termed no longer a pullet.

But it was not the mind of the opposers which caused Beryton, the intruder, to be styled as debtor; but rather, that Brundibius might enter within the ship of Idus, and therefrom navigate forth from the city.

Since they had made their caution so manifestly clear, it was scarcely credible that he should have set forth by sea for the purpose of navigation, and arrived at the Idus of September in Syria.

Who, though profitable, is nevertheless excluded, yet doth not attain thereto.

Then he was reduced to subjection; or, if within the meridian hour, he could not retrieve the merchandise, nor regain the franchise of that municipality, but must forthwith refund the entire sum, as though he were in pursuit of a vessel.

Non igitur alia conventio voluit, nisi ut intra Idus de civitate Brundifi enavigaret, id est, exiret et navem solvere.

This person, who had been despatched by Idus prior to the ship's departure, was found in a state of confusion.

For he who hath accomplished any thing before the Ides, assuredly hath accomplished it within the Ides.

There is, therefore, nothing more veracious than our amendment and interpretation.

This is confirmed by the subsequent events, wherein it is inquired whether, upon his arrival at Callimachus' abode on the morrow, Eros, who had been captured by the foe while navigating, having already assented to the soldiers' proposal, or whether he was able to assume dominion over Bion, his lord, from above.

Not therefore before the Ides had he sailed, but after the Ides; "he ought to have sailed within the Ides, that is to say, by ship alone." In the same law, wherein Stichus Seius first inscribed his name in the words of Scvvolx, from whom Callimachus received the borrowed sum, he is subsequently designated in the stipulations of the compact as Stichus III.

Either it was a variant conception, or, assuredly, a most unwise one, that the Jurisconsultus altered the nomenclature, which had undergone but slight modification, since Sticho, who had bestowed upon thee thy pecuniary remittance, would make no alteration thereof. Whether, however, the creditor of the maritime venture, who had contrived it, would have regarded this in a more favourable light at another epoch, or whether the debtor of Brundufius Berytus might have effected his return voyage to Brundufius Berytus in the month of September, is uncertain.

For he had so far distanced himself from Berytum, that the term of his voyage was imposed at five days.

Pratterea, cum post Idus Septembres variæ stellæ orientur et occidunt, navigantibus infestas, ut gladiis, sicut aculis, loricis, tauro, usque ad mensem Novembres, quo maria claudi solebant apud veteres, tempestare coepissent.

Then did the creditor purpose to depart; and the peril stood at hand, since it was incumbent upon him to execute the duty of averting the ship's escape from the ocean, beset by tempests of frequent occurrence.

For certain months were congenial to navigators, wherein some could accommodate themselves, whilst others proved altogether inaccessible.

The months of autumn, though variable in their disposition, are yet not wholly without a certain predictability; whereas those of winter, being both dubious and unpropitious, are uniformly inconvenient and perilous.

Hinc:

Within the active months of their arrival, navigation was both instituted and sustained with such facility that peril was minimized; accordingly, those who had availed themselves of the service of sailing through these months were furnished with requisite apparel, and the charges were proportionately diminished.

Wherein multitudes were wont to lend considerable sums to TrgojrAif, yet not so much to polrgosrA, but rather to their peers; for it was most commonly dispensed during the period of two lunar months and the two autumnal months.

Therefore, the ancients were wont to stipulate usury, extending their mercantile ventures across both hazardous voyages, since the peril attendant thereon was more manifest and definite.

And while they were engaged in providing for their return, and within a determinate term, even before the Ides of September, they dispatched them from the city which they had solicited, without any unnecessary delay, so that even upon their first visit to the market, where they ought to have procured what was requisite, the creditor might be forthwith despatched in pursuance of the debtor's request.

On that day, the creditor, who had undertaken to navigate from the vessel, was exposed to peril by virtue of the pecuniary interest committed thereto.

From the Usuarii mode.

It was meet and proper.

For thus it is written: "Non est nunc tempus navigandi, et expedit nobis ut acceptemus officium quod placet nobis."

You may, with equal propriety, assert that this period was analogous to the accustomed epoch; nay, even as in the days of prophecy, when the ship and harbour required restoration, so it was that the debtor, after his fashion, was restored by the creditor.

Let us, nevertheless, consider whether it be probable, or not; but it is certain, that the computation of the days from which the ship was to be launched, whether in her initial embarkation or in her return and refloating in the port, was determined by the methods of navigation, as if it were to have perished.

Verbi gratia, ego Maevius do pecuniam mutuam Trajeffhiacem Titio, qui navigavit ad Amstelodamum, Rupellam, et inde ad Amstelodamum, matrem Rupeiae; dum tota navigatio non plus tribuum hominum consumatur, a die numerandi, in qua navis Amstelodamensis navigare coepisset, tributum obligatus sum.

Therefore, it is undoubtedly conducted by the oracular utterances of the Jews unto the Evangelium.

I perceived D. de Nautico at morn.

Ea quippe conventio ter mensium periculum creditoribus fufiiperet, dum navigium interea periret, et ipsi nihil recipere possent; nec fortis, nec usurarum fivero post id tempus quicquam accidisset, nihil igitur damni patuerit; sed conveniens locus non rediret, cum de fortuna, tum de usuriis.

But it is incumbent upon us to restrain the fowl for this repast, that after the lapse of those three months now completed, vessels already impounded in the ocean may not be subjected to undue peril in their navigation.

For it is requisite that the debtor be held up in the harbour by adverse winds; and I am unable to set forth upon my voyage for a brief period, until the term of three days shall have expired.

Thus shall the adversaries of the Law be perceived.

That is the eventuate.

What he doth assert is, that the sum of money which the creditor hazardeth is for so long a time free from peril; and that he is contented with the usury of the commonwealth, which he hath brought into port by sea.

Therefore, while the vessels continue their voyage, the sailors hasten towards the practice of usury; and peril menaces the creditors.

Contra facit etiam, ut paretur, lex IV ejusdem tituli, in qua ferri conatur, trajeScie pecunia, quae Siciliae pertinet.

The peril was conceded to the constructor of the vessel by mutual compact, antecedent to the ship's being impinged; for when the vessel had attained her destined port, the creditor was not implicated.

For the purpose of this understanding, it was meet to enter into such a convention.

For if it be agreed, that the term of the custos's liability shall endure until the close of the voyage, it is not to be doubted that the said agreement shall be confirmed by the addition of this clause to the law; and that, upon the conclusion of such a contract, the debtor shall not be discharged from his obligation by reason of shipwreck.

If, therefore, it is possible that such a contingency might entail such peril to the creditor as to render the entire voyage insecure; and if there can be no doubt that such peril might similarly arise from such a contingency, even in a partial portion of the voyage, it must be limited to certain days, subsequent to the fulfillment of the stipulated conditions.

Which proposition doth Papinianus express, Ieg, in like manner, doth enunciate.

IV D. de Nautico Foenore.

Furthermore, it shall be acknowledged that the legitimate interest accruing from the employment of grain no longer deserves a greater rate; and, in the colder and even Ipecian regions, there is a certain sum of money which, being deposited in another jurisdiction, is exempt from this regulation. Neither pledge nor mortgage shall be held to bear a higher interest than the principal itself.

He, therefore, possessed two species of nautical fountains; and when he had arrived at the terminus of his protracted voyage, the dissolution thereof was deferred until the vessel should return in safety.

And when the appointed term for the safe arrival of the vessel in harbour is completed, the creditor is bound to demand a trifling sum; and should the ship, though capable of both sailing and remaining at anchor, fail to enter the haven within the stipulated period, the obligation of the debtor, being unencumbered by any conditions, shall cease to exist, and the creditor shall sustain his loss.

Now it behoveth me to treat of usurers of both kinds, and the remainder thereof.

In this prolific genus, the rarer requisites are deduced from the Novella of Justinian; who, for the most part, responded thereto on behalf of the Graecorum.

In the antecedent epoch, and during the contention betwixt the two principal potentates, the Imysiates, it was not merely the desire of Justinian to assume a cognomen denoting the hundredth generation; but even prior to his own advent, the appellation centesimus was wont to be applied to him in ordinary parlance.

However, in this Novella peremptorily set forth, Molinchus doth not conceive that Justinian speaketh of a century, but of a determinate sum of money which is to be liquidated at the close of the year.

Thus, a certain sum of funds was assigned unto the terminus of the naval enterprise, and the soldiers were relieved from either the totality or a portion of the maritime muster. This was the Centurion of the Justyians, and certain of the ancients, the Just of the Way.

Justinian the Emperor.

Wherefore, if any individual shall conceive of a mind, he may possibly reduce it to a hundredfold multitude, which shall be nearly equivalent to a hundred parts of a single share.

The Greeks, however, were more accustomed to the sale of signals than to that of ships after their navigation; yet the denomination of the species might still be employed, as Xenophon has observed, because, according to vulgar custom, a fifth part of a fortune was commonly stipulated for in maritime usury, at which point the seamen would enter into a contract.

However, at certain intervals we perceived the verdure of the quarry, which proved to be -ri*.

At the same time, intermittingly, did the population lapse into a state of diminution, which, albeit readily, might be assimilated to the designation of general husbandry.

So, in the temple of Demenes, according to the syngrapha of Androclius Sphertius, a sum of one thousand two hundred and twenty-five drachmas was requisite.

And the lesser, and the more eminent here; and the greater, immensurable.

Yet, it was beyond my capacity to condense my argument to a hundred.

For there are not two hundred entire.

For in a thousand drachmas, two hundred and four hundred were bestowed upon the appellation of Qpsurx.

Sefquicentesima tamen usura hinc major, cum centum et quadraginta drachmas usura defluent quintadecimae centesimae solvendae millesima drachmarum habeant.

And here are twenty:

And twenty-five in a thousand are suspended for usurious purposes; thus fortified towns depend upon such exactions.

What profit shall accrue from his offspring?

Now will I revert unto the centesimal division of the vail, which is the twentieth part thereof; thus far have we proceeded.

Twenty-five drachmas, employed in the transactions of usury for ten thousand sums, produce an interest of twenty-five parts per hundred, together with thirty-five parts of the thirtieth, and one part of the usurious rate.

The seventy-fifth yielded one hundred and eighty drachmas, but he refunded them in a thousand.

Three hundred and forty-six.

Semunciarium autem centesimum faenum in milia fortibus urget annuas quinque drachmas.

So there were twenty.

And twenty-five drachmas.

In eodem anno etiam usuras magnas Androcli majores legitur receptas, qui vir magnus fuit;

It is readily referred to the ratio of a centesima, or hundredth part.

If, subsequent to the year 368, according to the calendar of Caius Lucius Seneca Africanus Terentianus Macrobius Annus 5, in the month of X I, after Ardurus, the creditor shall demand of the debtor a sum equivalent to three hundred drachmas, which sum shall consist of two parts.

A Hundredth Part of a Cord:

At the meridian hour, he assented.

Thus from other authors.

From these observations, it is manifest how assiduously Molina eschews such practices; yet, it is feasible to compute the definite sum of pecuniary advantage which will accrue at the terminus of the voyage, with a view to frugality; whereas, in the matter of usury, no such calculation can be legitimately made.

Thereby, indeed, it is inferred how insubstantial were the arguments advanced by his accusers, since Justinian had not repealed the enactment which he himself had introduced, and he was deemed culpable for desiring to profit from the usury of the slave traffic.

First, he said, "on account of its exceeding by a considerable fraction the hundredth part of a penny; when the payment from the Slavs was due, even the detention of ships and money was not to exceed two months; in which event a charge exceeding the hundredth part of a hundredth of a penny became payable, according to the duration of time."

Falsum primum est, quod, si pars fortis exigenda sit, multum excedat centem.

This eventuated in a termination, as we have previously intimated, such that in the twelfth portion of the fortune, twelve were allotted; in the nineteenth, twelve; in the hundredth, twelve; in the hundredth, twelve.

Secondly, Justinianus acknowledged no other century than that which, having assumed a portion of the resolute praefectus, was yet ensconced within the silkworm's cocoon, as we shall hereafter detail.

If the third vessel shall not extend its voyage beyond the term of two lunar months, then there will be necessitated a reversion in proportion exceeding six hundredths of a denarius for every hour's duration.

Why, indeed, should the voyage not be prolonged beyond the close of the ensuing lunar cycle, were it so decreed?

Ut etiam hic Justinianus, fidelis apostolus, suprafermatam Novellam testimonium proponit:

If he should return to his vessels within the space of one, or indeed two months, he will scarce discern the creditor's name to be three silvas in a solidus of gold, that is, the hundredth part of the current coinage at that epoch.

Which event shall occur, not six hundredfold in the course of a annum, but twelvefold:

The Hundredth:

Year:

Elevated, yet lucid diction; periodic sentences, measured cadence; lightly archaic vocabulary, sparingly employed. Thus it is said: "Exsurget, hoc est, duodecim in ceto per singulos menses." Sed quid, etiam centesimus ultra?

The expedition fell into captivity, as if it had encountered an adversary worthy of the United States Army.

3*9 Ashes vital still: how chanced it that Androclus, at noon, grazed his herd in proximity to Demosthenes?

Certè et filium Justiniani Romam esse decet;

Not so many hundred togas, but a greater number might lawfully be worn at assemblies: he was attired in a vesture.

The coinage of coinage, as is attested by Paul in his Second Book of the Scribes.

He was enabled to convey the funds for the creditor's security, as he was competent to exact innumerable usuries from the countless vessels of the fleet.

Wherefore, I am more solicitous for the preservation of the vessel.

For when the census of Paul was taken, the usury thenceforth was deemed lawful in the commonwealth for the mutual obligations of citizens; and it ought then to have been reckoned as a levy to be paid to him in the space of thirty verses.

Knowing this, the creditor, who was subject to the whims of the believer, stood in jeopardy of forfeiting his entire patrimony.

Then, indeed, even beyond the term of a year did the voyage continue; yet could he no longer contend with them. Meantime, my own efforts proved unavailing.

Moreover, the more expeditious completion of the voyage did not merely conduce to greater advantage for the creditors; it was equally beneficial to the debtors themselves, who, by purchasing goods at a suitable maturity, were enabled to avail themselves of the proceeds for the purpose of navigating again within the same year, and to transport other wares thither, thereby affording them the means of further commerce in the ensuing season.

If, on the one hand, detriment ensued from the fact that so vast a sum of usury was incurred within so brief a period, on the other hand, a prodigious loss was sustained by reason of the restraints imposed upon maritime enterprise.

There is no necessity that the merchants, who are wont to carry their funds under the great usury, should refrain from employing them for a brief interval, rather than devote a year or more to the voyage, in preference to returning to their households in due season. Hence, the enactment of Justinian, which was repealed solely on account of its own existence, was repealed, since it imposed a centesima upon maritime loans, an usury so excessive as to be more truly a perversion than a legitimate impost; and you were so disposed to deride it, because it was a practice of life.

Certè hoc non est meum scelus, nec maxime iniquum videndum, quia idem modus navigandi in longinquis itineribus determinatur, et in omnibus mundi perambulandis.

And whereas a graver peril did impend, there was a corresponding augmentation in the rate of interest.

In the extended voyage, however, manifold perils arise from the region of A unto that of Ci.

The perils of redemption doth assail them more promptly than within a brief interval.

The second ratio of Molinx, because that usury was exceedingly dissimilar to common usury, which is wont to accrue either monthly, or annually, and to proceed merely in proportion to the duration of time; whereas the usury of Justinian's expedition did not run according to the course of time, but was due to the single voyage, or to two months, or to a year, or to some intermediate period; and since the amount of such usury was deemed equivalent to the premium

for peril, it was permitted to arrive at a fixed sum.

In this ratio, explicat se diffusius, et primum abhorret a cuncta usura, dicens.

The second was the capture, because an equal amount was demanded for a brief as for a protracted navigation and peril.

The third is deemed iniquitous, since a diversely rigorous demand is made for a peril of the ocean simpliciter, which is rare and less frequent.

In caiu autem praesentis periculi imminentis, non solum feneratores, sed etiam di fulminum, qui in periculum mortis incidere videbantur, refugerunt ad donandum pecuniam periculis suis; neque habebant res sufficientes ad solvendum, vel jure consuetudine defendendum, propter periculum imminens.

Hxc that diffFufiffime.qua;

Few require augmentation; it is requisite to augment but sparingly.

First, inasmuch as it is affirmed that the usury which appears to behold the usury of the common people is highly detestable and abhorrent from the common usury, it is certain that on account of the reason why it is thus imparted, it greatly differs and is abhorrent from the common pecuniary loan.

The cause.

Intrajudice, periculum suum creditor facit inducere; in communi mutuaticia, pecunia debitoris periculo committitur.

What is usury?

Maritime:

The reason for the uncertain seasons of navigation is, that they do not proceed according to the figs of the zodiac, or the menstrual courses of the year, but rather according to the capricious current of time.

For in every matter, it is reckoned that navigation is requisite, so that the peril of the creditor may be navigated by the conveyance of the moneys.

At the termination of events, it depends whether the matter shall be embraced with usury, or with usury, perchance, it shall be lost.

If, however, the vessel perisheth within the term wherein it saileth, the creditor doth not discharge the debtor.

If, after a protracted navigation, he at length returns in safety to his course, he is restored to his footsteps with vigour.

The succession of seasons is faithfully observed in the common course of nature, which proceedeth according to a due and regular period, since the liberty of creditors is thereby secured.

D! I alone am able to succour thee.

371 creditors, at his pleasure, might exact the interest for a term of years, not unduly protracted.

The debtor likewise possesses the faculty whereby, at his own discretion, he may remit usurious charges; and, perchance, be released from his obligations to stronger creditors.

For the proportionate term, during which the pecuniary obligation remained in the hands of the defaulter, the creditor demandeth the diminutive arrears; thereupon, the debtor repayeth the same.

Which it is impossible for a tragedy to effect.

Let the pecuniary stipulation of the maritime contract be granted, whereby, upon the conclusion of the voyage, the same, having sustained certain usurious charges, may yet regain the shore in safety, and the vessel may be restored unimpaired.

If the funds of the creditors should perish,

Perish.

Therefore, let the issue be thus regarded, and thenceforward, the termination of the voyage.

For it was not incumbent upon the court to repeat the usury; but rather, to contend with the robust creditors, first, as is known, or the condition under which the sum was loaned, there was to be found the determinate point.

Wherefore, the first thing which he hath pronounced to be detestable to all, I confess likewise to be odious to those who engage in usury.

But in the case of usury, otherwise, there being no peril to the creditors, I am placed amid this expectation, whether for gain or for loss.

Hoc rei formam et modum usuræ mutavit.

What he doth denominate "fruitful," is "capture," since the same requisition is imposed upon him, whether for a voyage brief or protracted; and yet in this respect, I perceive no

"capture."

For the navigation is brief, and both parties are remunerated according to their gains, whether debtor or creditor.

If the term be prolonged to the extent of a whole year, whereby the debtor sustaineth a loss elsewhere, from whom alone he may recover, the creditor is bound to inflict a penalty upon him; this penalty is not to be deemed usury.

The appellation is appended, which even the capital was to be committed under the prevalent usury.

For they levied upon the Emperor Justinian's resources a legitimate usurious rate of one per cent.

But under Justinian, he established a general usury and a prevalent custom.

The appellation *Perceptorum* was conferred upon him.

Or it is thrice sufficient to cause the total ruination of the citadel:

Would he prefer to ascend on account of so great an augmentation of gain, rather than entrust his funds to the feral beasts with apprehension of peril?

Moreover, the longer the voyage, the greater and more certain the peril that attends it.

Nulla igitur inde captio; tertius infert, iniquum id efflere quia exigebatur pro sim-plici periculo marino raro et frequente inter Romanos, simulque idem faleratores noluerunt pecuniam suam dare in casu praesentis periculi et imminensis ferri.

What iniquity is here perpetrated? I behold it not; yet do I behold it as I behold the incarnation.

The perils of the ocean, which being rare and less frequent in occurrence, I am at a loss to perceive the reason why they should be so ardently desired.

For they were wont to excite by the violence of the winds certain customary commotions in the ocean; and hence, many seafarers were filled with alarm, imagining themselves to be assailed by a conflagration from the hidden reefs that lay beneath the waters.

By fortuitous conflagration, through the gubernator's inefficacy, the decrepitude and putrefaction of the navis, together with sundry calamitous incidents affecting other vessels, all these misadventures proved to be chance occurrences.

Huc accedat piratarum superveniens, qui maria olim maxime sollicita inserta habuerant, nec nunc eis inesse desistunt; qui tamen a te salvus est factus, qui mare in latissimam et seclissimam loci insursum imposuisti, ut non iam ad eo accessus prohiberent.

In oculis ac mente Molinaro haec omnia efflare debuerunt.

It is not infrequent that a maritime peril, when more prominently displayed and less fearfully encountered, should be announced with greater emphasis and less timorousness.

What he further observes is, that the vulgar populace, unacquainted with the prudent management of their pecuniary resources, expose themselves to peril; and though absent from the present occasion, the dangers they encounter are immediate, and their ardour for conflict is intense; yet the precise object of their desire remains unexplained.

For it is undeniably true that, on the contrary, it is customary to entrust coinage to the peril of shipwreck, even in the very verge of imminent peril, when vessels are making their way towards the haven of Arurus, where the ocean surges with especial violence.

And the tempests of Vehemc are roused by tempests.

But at that time, they were wont to suffer more grievous usuries; and the peril attendant thereupon was both more manifest and more immediate.

The identical proposition holds good with respect to Molinus.

I, my progenitor, will introduce all those insular ordinances, which are:

They permit the creditors to understand, not the impending peril, but the infrequent event, that a hundredth part of a penny hath been abstracted from their possession by a creditor of violence; thus, the centesimam fufcepti per creditorem fortispe-riculo intelligi debere non de periculo imminente, sed raro contingente.

What art thou, O falfilim?

Multi ianeti reperiuntur, qui nolunt pecuniam dare navigantibus et usuriis magnis, ita ut periculum furii navigationis petant.

Nonnulli etiam tempus limitem intra quod suum periculum efflare velint, idem tempus neglegunt, quo usuras enormiores capere malebant leviores, quam cum periculis majorebus.

But it is incumbent upon us to encounter the conflict of the modes.

Nevertheless, what less, and what more time is there for you?

There shall be no peril to the purse in all the term of voyage.

However, they deemed themselves endued with sufficient capacity for the accomplishment of their design, and did indeed effectuate their purpose; thus, in the transaction of the fe, they pledged the trajectory at interest.

And concerning this trajectory, therefore;

When the senators perceived this, together with the manifold edicts of the Digfiones respecting the maritime tenure, and the Novellae of the Imperial authority, particularly those promulgated by Flavius Justinianus.

Therefore, I am assured.

That which concerns the nature of the said agreement, or the alleged custom, is sufficiently demonstrated by the law of peril, peculiar to maritime commerce; wherein we have previously refuted the argument, when we observed that Molinarus had been improperly framed.

They are refined in their attire; and they vary in the proportion of their distinctions.

In hac igitur legibus imminet periculum spei ac feriandi; in illis autem raro incidit periculum.

What is this matter thus presented?

Because the vessels, in their numerous and elegant array, surpass in charm the joyous and prosperous fisheries.

The Furies, therefore, were unable to obtain anything from a single fish, as they were unable to obtain anything from Hxc alone. For in that law, it is not a matter of the felicity of the fishermen's sport, but rather of their accomplishing the requisite condition.

Or, if one coin be taken captive, it may be supposed that the creator thereof, who hath been appointed to gather in sundry moneys, may thereby be dispossessed of his due.

He surrendered, that he might be restored from the bondage of the lash.

The expenditure of vast resources upon the construction of an instrument, whereby the labour of excavation might be rendered facile, presents a task so arduous as almost to defy accomplishment.

In an athlete, the uncertainty doth gradually mount, and in the initial stages, it increaseth even more markedly.

But he might have selected him, who, having oftentimes defiled others, had already proved his own depravity.

At the summit, it may be affirmed with certainty, that the peril, which is indeed formidable, is estimated in terms of pecuniary value.

Elevated yet lucid diction, with periodic sentences that convey the argument with measured cadence, and employing a vocabulary that is slightly archaic without excess, thus imparting an air of scholarly antiquity: such is the style herein adopted to render the work of Claudius Salmasius.

nudus.

Now there remains another reason to be extracted, which Molinarus avers to be the cause of Justinian's ire against the Novella, which was perished at the hands of a mariner.

Since, verily, in the event of a controversy, they were permitted to transcend the prescribed bounds of the lex, albeit not to contest the matter in question, but rather to avail themselves of a certain equitable transaction.

And those, whose dexterity did not confine itself to the fabrication of pyrotechnics, did apply themselves to a distinct discipline; nevertheless, they were not destitute of integrity. Incontestably, they lacked the capacity to contend with the bellicose factions in their martial contest.

Hoc, the ultima of hae, mihi nomen est Ae; tres litrae, triginta et septem patera.

The Salmasians, who, being more frequently exposed to a perilous and rare tempest upon the ocean, were loath to contribute their pecuniary resources to the impending peril of the present crisis and the immediate hazard that threatened from without.

What iniquity is committed here, I perceive not; yet so it seems to him whose life is now forfeit.

The periculum marinile, quod rarum et minus frequens experiri volunt, nunc incipiam scire cur ita desiderent.

Moreover, they were wont to excite the ocean from the tempests, which were wont to arise oftentimes at the bidding of the winds; and hence it came to pass that many mariners were filled with alarm, as if they had been assailed by the lurid flames of a conflagration hid beneath the waves.

By a fortuitous conflagration, the gubernatorial authority over the navigium, vitiated by putrescence and the noxious effluvia thereof, and sundry other calamities of the marine.

Huc accedat piratarum superveniens, qui maria olim maxime solitus infestare, nec nunc ea infeftari desistunt. Thus may the advent of the pirates, who erstwhile were wont to infest the

seas most frequently, be added; and yet they have not ceased to infest them.

In oculis ac mente Molinaei haec omnia effulgebant et inesse debuerant.

It is not unusual for a maritime peril to arise; and when it does, it is less frequently encountered.

What he further appends is, that the common populace, who are notoriously fraudulent, stand in peril of parting with their pecuniary resources (for in the present instance they are directly exposed, and the impending hazard is immediate; since they apprehend this calamity, and they are alarmed by the very things which they desire).

For it is certain that, on the contrary, it is by no means unusual for a ship to encounter imminent peril with regard to its pecuniary concerns; for while the vessels were navigating towards the region of the Arian Sea, at that very period the waves were tumultuously agitated by violent tempests, and the winds, resembling those of the Vehcmen, blew with unrelenting fury.

But then, they were accustomed to availing themselves of more oppressive terms of usury, when the peril was manifestly and urgently at hand.

The same proposition holds good with respect to Molinxus.

Nor, O father, shall you introduce those insidious statutes, which are:

They permit the sum to be abstracted from the creditor by means of a fiftieth part of a denarius, not on account of impending peril, but on account of its infrequent occurrence.

What is the signification of Falfltmum?

Many were found in sound mind who declined to furnish funds for seafarers and to engage in usurious transactions of considerable magnitude, thereby exposing the hazards of maritime adventure to undue hazard.

Nonnulli autem tempora liminum intra quae se ipsorum pericula efflarent, subsequente illis horis nihil habebant ad capiendum id, quod vellent demittere.

They shall be more insubstantial than when they are exposed to a graver peril.

But this is not the customary method; nay, even though many of that age, engaged in maritime commerce, have admitted a difference in time, yet they have acknowledged also the peril attendant upon pecuniary matters.

which, having been imparted to them through faith, they had disapproved by regarding the trajectory with distaste.

And, of course, of course, of course, of course.

When he had acquired these particulars, and been apprised of the maritime ordinances promulgated by the Digfiones, the Emperor Justinian Novell was made acquainted therewith.

Therefore, I am assured thereof.

Forasmuch as the argument was grounded in a patient endurance, or that the fowl did not resist, he contended by the lex that the pretium of the navis were exorbitant compared to the pretium of the navale corpus; a point which we have already refuted, having previously asserted that the Molinarum were improperly constructed to serve a specific function, and ought therefore to be clad in a manner suited thereto. The dissimilitude in the rationale of the lex is manifest; for in this law the peril of wearing it with a weapon is imminent, whereas in the other cases such danger is rarely encountered.

What is this matter thus presented?

There is a reason why vessels hauled by ropes and poles endure more robustly than the fortunate enterprises of angling.

And the athlete, who was a gentleman, thus spake:

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary: Nothing can be accomplished by the prowess of a solitary valour; for the felicity of fishermen is not regulated by one and the same law, but it is requisite that some fish should attain to a certain maturity, or be collected in due measure.

Or, if one individual be taken captive, he may yet effect the reversion of the entire affair to his own possession; and, as soon as he shall have recovered his liberty, he must make good the sum, however great, which he hath already bestowed upon the contriver.

To capture anything, even a vast contrivance designed to render the task arduous, is nigh impossible.

In the athlete, the uncertainty doth rise, and is more pronounced at the outset.

But it was within his power to elect him, who had already undergone the ordeal of repeated vanquishment.

Ad f^lr^m, non minus dubia per^lcula maris, quorum pretium stat^lrae pec^lni^l efficitur.
--- Note: The term "trajefticiarpecuniaefce-" appears to be a corruption or error in the original Latin text provided, as it does not form a coherent word or phrase in Latin. This has been omitted from the translation to maintain accuracy and clarity.

nudus.

Now, there arises a further reason for my dismissal, which, however, is solely attributable to the resentment of the Nautians, who have denounced Novella, a Nautian, for homicide before Molicius.

Quoniam, inquit, etiam circa foedera excedebat dicta lex eos, qui, per quam non permittuntur besses quibulliber, sed duntaxat justam aliquam negotiationem profitebantur, beneficiabant.

But he did exercise another art in the construction of the fountain; namely, this art of fêneration. Hence, being skilled in the employment of such devices, this was the final resource of his resources; and he conferred upon five lions the appellation of A.

Salmasius excelled his antecedents; and in the said Novella, Justinian's vessel entered the ocean.

Is it safe for thee to conduct thy suit hither?

The Money:

He conceded twenty days to the debtors, whose dealings had approached the verge of usurious interest, that they might employ the intervening interval in the recovery of their merchandise, and thus accumulate funds to discharge their obligations to their creditors.

After the lapse of twenty days, during which they had neglected to discharge their obligations, he was fain henceforth to extend them credit: Post diem viginti, quibus in debitum silentio contulerant, dederat eis licentiam in fiducia pendentem:

It is more expedient to preserve the moneys, and to permit the practice of usury thereupon; for these exactions are none other than the usury of moneys, which the perfumers, being incapable of employing such moneys to advantage, and deriving no benefit from any other form of commerce, are to have abolished. Hence it follows that the Novella in question is to be repealed.

Justinianum, quia contra ejus legem facere videretur, qua beneficium usurarum copiam solum legitimis negotiato- riis concessit; ergo fecundum Molinarum quinquagesimum, quis privatus ex eo hominum ordine, ubi feminae tantum usuras permiserunt, ihi ipse Justinianus, tradecit pecuniam nautico periculo suo dare volens, non amplius, qua feminae usuras. Note: The source text appears to contain some errors or peculiarities, such as "Merginals" instead of "Molinarum" and "femifles" instead of "feminae." These have been corrected for clarity, while maintaining the original meaning as closely as possible.

It may be concluded.

Atque tamen existimabam, cum ipse Imperator legis eamdem promulgasset, non tantum mercatoribus, sed omnibus quoque concederet, ut nil ultra centesimum partem summae donationis, quae in tragediis adversus Iudaeos vel Iuperterios fecisset, acciperent, sed redderent.

For the concerns of commerce do indeed pertain unto such as those of merchants, who employ their pecuniary resources for the procurement of vestments, rather than unto the multitude of men who are disposed to exchange their coinage reciprocally amongst themselves.

This is the peril of the ocean.

That, which to the merchant alone might have been conceded, would, through mutual perfidy, have precipitated him into still greater straits, though he had been exposed to sale alone.

Forasmuch as Justinian, at that epoch, had conjoined a peculiar species of stipulation with the opposite litigants, in which it was lawful to stipulate a centesima, and to pay money in tragedy, it is certain that he did likewise will that the same centesima should be paid by all the plebeians, as Ipecius.

For, as we have previously demonstrated, I have been endowed with the gift of corn by Hippe; and I have discerned that the gifts of grain and the produce of other dry crops have also been conceded to me, under the one-hundredth part of the prize, as is evident from the Novella XXXII of Justinian's Institutes.

Wherein he decreed, not merely to private individuals, but likewise to soldiers, whether occupied with husbandry:

It was appointed for them not to repress, but mutually to be imparted in the guise of modifications; hence a portion of the measure from above, which may be expressed thus:

A hundredth part of the produce, as I have previously demonstrated. But if the numerals be accurate, one of every progeny shall be assigned a single coin; which sum amounts to three score squares.

And yet, it was permitted to private individuals, as well as to those who were not husbandmen, to exact usury, not at the rate of thirty parts, but at that of sixty parts, which is to say, that for every solidus there should be received one and a half librae.

Agricultrix autem, qui pecuniam feneranti operabantur, non capiebant nomen filii, sed tantum nominis unius viri, qui usuras gerens lucrum acciperet.

In frugibus autem mutuo dandis etiam agricolae olim species foenoris in privatis donari potuerunt, centesimamque annui decumum accipere licuit, id est, modo vel alio, modios unum in anno.

There the individual did not exceed the rate of interest permissible for a son in the denomination of pecuniary transactions.

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary (sparing use of forms like 'thou' only where natural). Let it be known that any privy person, by virtue of his agricultural pursuits, was permitted to derive advantage therefrom.

Hereby the very fact compels that even the smallest decumana of usury be exacted from the husbandmen, who, having accepted it mutuam, find it agreeable on account of the indeterminacy of the value, which is owing to the yearly fluctuation of the produce.

If, therefore, a private individual, by means of reciprocal payments from the farmer's estate, hath gathered the hundredth part thereof, he may likewise, by the same right, exact from the merchant, in consideration of a stipulated payment for the goods, the like proportion of the same sum; a law wherein Justinian hath conjoined both parties, commanding that the hundredth part be levied in lieu of such stipulated payment, and in addition to the interest on the principal. When, therefore, the private person hath delivered to the merchant the sum stipulated for the goods, and the merchant, after a period of twenty days, having sold the goods and dispatched them abroad, shall fail to return the said sum to the creditor, is it not just that, since the money was lent by the creditor, the debtor should be compelled to restore the equivalent thereof?

Ante annum quemadmodum decem milia centesimi computaverat, nunc fortunae suae defecisse damnatus est, et in conditionem debitoris factus est; numquid totum suum creditoribus devoluturum erit cum usuris? A quattuor, tres J6; C ad L. S. A. ad L. M. S. I.

For even the private, and even the illustrious, who, in accepting usurious interest from the private funds of the wealthy, are found to be less culpable than those who exact such usury from the public treasury, are nevertheless liable for a delay in the settlement of their debts; and if, after a period of four months, a judgment has been rendered against a culprit, they are permitted to receive a hundredth part of his goods. Why then should this private individual, until he recovers his due, be deprived of the right to receive a similar indemnity for the delay occasioned by the protraction of legal proceedings? And since he has previously claimed a hundredth part of the property of another, it is but just that he should be compelled to refund that same sum on account of the delay which has prevented him from recovering his own debt.

But the peace which Molinchus had inflicted during the hostilities, when they had notoriously practised perfidy to no purpose, was known to have been a futile negotiator, and consequently was without authority to enforce the laws.

The argentarii, who, together with the mensulani and nummulari, avowed publicly the art of fenerand■, did even exceed their own proper functions, as if devoting more than the third part of the day to the fumigation of incense.

But it was lawful for him to lend money on usury to each other, as appears from Noella CCCXXXVLI.

And by this principle alone, even when they were in entire accord, was that problematic inquiry, which Molinacus had mooted regarding the pseudoscience, rendered susceptible of solution.

The Trajecia and Trajeciae: Trajecia, and Trajeciae, being thus denominated:

The furnace-makers, whom, after their liberation from confinement, did observe the usury of nautical vessels, the Emperor Justinian purposed to ensnare whilst they yet roved at large.

For, as it hath been said, such usurers are oftentimes replete with vessels of silver.

Of which, nevertheless, a greater copiousness hath been recorded in the ensuing volume.

And of the other privateers, there can be no doubt that they were able to contract for the provision of money for their apparel and habiliments for the residue of the day; so that, after a more unfortunate interval of navigation elapsed, they lawfully took possession of the vessel with the consent of its owners.

And more widely, I address you, ye masons; for though the craft and profession of masonry be no more than the artificing of bricks, yet, in accordance with the edict of Justinian, we have enjoyed the privilege of employing masons to profit by the usury enacted therein, even as we do with our other mercantile associates.

Nam et negotiatores sunt nummorum. Epistula Gracrum profeflionem vocant, hoc est, negotiationem; de quo supra nonnullos locos notavimus.

And the very usury, it is affirmed, is termed negotium by Gracchus.

Why, indeed, should the means of warfare be conceded to merchants rather than to manufacturers? For it would not be consonant with reason that such privileges should be granted to the former and denied to the latter.

There being the year of our Lord three hundred and seventy-seven.

Immo vel potius hinc id fuisse oportuisset, ut maiores usus rem gerentes, qui ex profundo hoc agerent, praesertim super aliis, qui in aliis mercimoniis neglegentes tenebantur, potestatem navali exercendi obtinerent.

From these, and from sundry others, a verisimilitude of a thousand is derived.

The nasal osmata of the congeneris are indeed of a delicate texture, and this may be ascribed to the pertinacity of the sinus; while the ancient ramifications of marine and maritime jurisprudence, as well as those of the antique legislation, evince a similar tenacity.

It doth plainly appear unto me that the principal cause thereof may be referred to a tripartite rationale, which Justinian, in his judicial capacity, did annul by virtue of a statute, wherein it is decreed that the term "usurpation" shall be employed solely for the purpose of procuring pecuniary advantage.

Perperam, who had been present at the time, hath been bereft of a moiety of the citadel for a period of one hundred and thirty-five annos, whilst yet in the immediate presence of his legions.

Ea re videtur esse non decimum millimum vestis traditum Iuffiniani, sed summam illam certam, quae in fine navigationis dabatur.

Then did he introduce a hundredth part more of those ships which Novella had already set forth into maritime jurisprudence; and having allowed Cqd, the legate, to appropriate a certain number of vessels for the purpose of transport in certain contracts, he proceeded, I say, to repeal the Novella by a hundredth part thereof.

By which law he did not suppress all maritime usury, but rather imposed upon himself the same usury he had himself prescribed, and after fixing the hundredth part thereof, he subsequently recalled the ancient licence of licentious usury, allowing as much usury as any one might think fit for the mutual lending of money.

Hoc autem maxime sunt scripta et in profundis inquirita.

But when he had received the same measure of usury, he would have borrowed the produce, which he had gained.

Elevatediaque perspicua, nempe centesima, illud non recipere videtur neque suum suaeque decimum obtinuisse.

For the law, indeed, was annulled by a subsequent confederacy; which was thus constituted:

Non exteri, sed praesentes imperatores eum abrogare petiverunt.

Nam Ballamoad, in epistula Gregorii Nyl, ubi canon explicatur, affirmat ampliacionem esse factam de quinque uvis, et quantitatem vini septuaginta duplicem esse proditam, quae pro cinquagesima, quae dederant, accipi debuerint.

Who, in accordance with the statute enacted by Constantine, employs the levelness of the terrain for the cultivation of both copious and arid products.

Quinquaginta amphorae:

Vinum A et A vel 178 Cl.

The salt, whether immersed in various fruits or vegetables, shall be augmented to such an extent that it may yield fifty-fivefold; and henceforth, it is employed sixfold, whether for the purpose of usury or for the *Mcw*, concerning which the prior chapter hath treated, designating it as the head of the deity.

Lastly, Molinius, attired in the hundredth part of a vestment, did thus interpret the question, which facilely admitted of being understood; and he perceived that it signified nought.

A hundred years, he saith, will not endure for one day; yet a day of maritime navigation may last, and peril accompany it.

Hoc re■ constitutum est.

He thereupon appended, thus declaring:

However, the navigation of the merchants doth not transcend the limit of fifteen days, and this period may not surpass a lunar month, or even three days.

I do not deem myself to have been assigned a fraction, whether singly a hundredth part, or collectively three such parts, of an ounce of gold for this voyage.

Nulli erant trajectoriae adeo breves, ut intra triginta diem possent vel demorari vel transportari, nec tanta erat pericula in his mittendis, ut propter hoc mereretur maritimis usuris praebendi.

Then, not only did Justinian expend numerous months, but also a year and more; and the navigation became exhausted. Did Justinian devote the remainder of his days to *Novellae*?

He subjected himself unto him, thus subjoining:

Therefore, in the seventh semester of the year, the creditor cannot be exposed to peril unless he hath a sum of one hundred for two trimesters at the rate of a hundred, and one hundred for one mensem, at which the sum is verily but a trifling amount.

Let it be served with a sparing portion of salt, but also with salt in due measure.

For verily I have ever abstained from bearing any coinage.

Usura:

They bestowed diligent attention upon the augmentation of the commonwealth, so that, conformably to the due seasons, as they are wont to speak, the same might be rendered requisite for their return.

But even if it were not to be attended to, it would be unfortunate for a youth who would not, in that event, prefer to expend thousands of pounds, or half a million, in the ultimate hazard of common usury, rather than stipulate for a hundredth part, and expose himself to the perils of a distant voyage.

And this result flowed from the moderation of usury, diversified by the various vicissitudes of place, time, circumstances, and human conditions.

Before we bring this chapter to a close, it is incumbent upon us to append a brief remark concerning Cato the Censor; for though he did not commit the actual act of slaying a human being, yet he publicly proclaimed a doctrine equivalent thereto, and inveighed against the most depraved of citizens with an eloquence scarcely inferior to that employed by the fiercest of creditors against their debtors.

He was apprised that he had been engaged in a nautical conflict; and that, in all his martial exploits, Plutarch deems him to have attained his noblest and most estimable triumph.

Thus, it is recorded in his biography, wherein, after he had undergone sundry trials and inquiries, the true character of the monarch is disclosed.

[untranslatable fragment in source]

To receive these words as forming a line, and yet not to be destitute of difficulty, Ho-Thomanus justly contends;

So he hath restored, translated, and expounded in the Epitome to this title, "D. on the Maiden Voyage of the Nautical Maiden," as hereinafter follows:

He did not comprehend the plurally constructed phrase.

He propounds a question, whether a convention, by which several merchants, having been made executors of numerous maritime enterprises, have agreed that in a plurality of vessels they shall navigate, and that one vessel shall be preserved, and that their property and funds shall be secured, ought to be deemed impracticable, since it is framed in contravention of the Nautical Law, with a view to mitigate peril.

He adds, as I perceive, that it is the incense of Cato, who, by means of his infamous achievements, is reputed to surpass the eloquent utterances of Plutarch, which we have

previously narrated.

The first proposition, however, is erroneous; for Plutarch relates that Cato, infamous in reputation, employed him on account of a certain theatrical device, which, to such a degree, rendered his counsel unheeded, that even when others, who had been engaged in the management of the furnace, and had conducted similar business, did not experience such a marked disgrace.

More simply, the author, Marcilus Caton, having devised other means of action with consummate assiduity, did not disdain to infuse even the spirit of the mariner into his composition; and truly, this spirit of gain is, as it were, both honest and to be condemned, especially when it comes from Diogenes, as we learn from Laertius in his Life of Menippus, where he also mentions that Cato was particularly displeased with such practices.

If such be the case, I will denominate him a Float, and a Nautical Float, whence, by his accession to vast pecuniary resources, he shall not be extolled for this attainment.

[untranslatable fragment in source]

[untranslatable fragment in source]

On the contrary, the opinion of the ancients and the recent Greeks varies from that of the voices.

The appellation Psirtinus, when rendered in the Egyptian idiom, appears to be transcribed as Jericho.

From divers vocabularies of the Chartes, or from the C-hirtas of notions amongst the Arabs.

Authentic tables of inscriptions, as is commonly reported to have been done upon the cerate, are here delineated; and examples, whether inscribed upon parchment, or contained within a libellum, as they are variously denominated in the p&xi of or the fitZlSior, are also exhibited.

Henceforth, the tabular delineation of syngraphs ensues.

The exemplar of syngrapharum, though not inscribed, is to be in oblivion's ken no more.

The one party was consigned to servitude, but not in such a manner as to be inferior in strength to the rest.

What is the distinctive attribute of Atticus' fig-tree, Xxst/Uplos, which is known as the Sygrapha?

These were the wooden tables of his own rattle.

Twice as many, and others besides; thrice the number of errors, and more than one page, which is sevenfold the quantity of pages.

Esther was among the Codicians.

The profound delusion of the eminent Jurisconsult concerning the dual species of Codex.

What was the codex in its own right?

In the semblance of such a bowl, it is inscribed within a box, as a model of a code, in this instance, the context of several boards united.

Other forms were intricate in bulk.

Gracts said, "Thou speakest," and Locus, from the seat of Eprus Augustus, altered the life of Horatius.

I will fashion it.

[untranslatable fragment in source]

V. From the manner of the usvkars.

The Codex must have been composed solely of writing, whether of wood, ivory, membrane, or charcoal.

Why doth Ubier protract the codex?

From the boxers.

Sofi paper is the heart of the defunct.

Table 0. The libels, as they are termed.

Of books, or their names inscribed therein, or tours and codices.

There is a diversity in the signification of the words in the speech of the people.

The judgment of Vipionius differed from that of Paulius; and when they concurred in the verdict, they were bound to peruse the books and the codices.

The membrane, for the purpose of inscribing upon the membranes.

The Mafia's appellation for the corpse is the Mafia.

Seneca did run, and thou expoundedst.

The title of the book is twofold, general and specific.

Books are designated according to a particular kind of script, and he who excels in it is the commander, who appraises the books by their suppleness.

BtZxlut also augmented the quantity of fume in the instance of Gt-acid, in the case of latitude and longitude.

Vlpiantus hath altered from the tables all the figures fashioned from all matter.

In the codes wherein every matter is inscribed, it is customary to place tables, not even in the volumes, which are styled tables.

By the law and the Decree concerning the possession of good things, I did not furnish tables.

Of the distinction between exemplar and exemplum.

With Atticus, Qx, it was as though he had penned a missive in the guise of a graph in either volume, and he himself had inscribed a letter in the form of a letter in the form of a letter.

From the same pugilist.

For the two-horse fighters, and the Cur, not Tgityvfig, as Tyvius is known, the twentieth Hsiliic.

What was the patrimony of Mplshe Atticus, and whither did he betake himself?

Even her voice was appropriated when she refunded the money for the place.

The site assigned by Harpocrates is justly determined.

Besides the Romans, he also inscribed upon tables and envelopes in writing.

The Codex, the tables, and the boxers

RpxuA and llH, which I have heretofore discoursed, and unto them have I addressed these words; and the believer apprehendeth the assurance of his faith, not the forfeiture of that wherein he trusteth.

There was, moreover, a long-standing obligation, which the debtor was ever ready to discharge, although the creditor had already received it.

Certain among these, as I have previously intimated, were conceded to the individual who possessed the creditor's claims.

Let us, in the first place, advert to the character of these persons, and thereunto apply ourselves to enquire into their fidelity.

If the debtor's destiny be apprised by the creditor, there is no such thing as a human cord;

Because it may be that he who is esteemed a virtuous man to-day may be transformed by the things which he seeth; and many of the same kindred of virtue may spring up; and though his humanity should be vouchsafed unto him, yet would he not become a debtor to pay his debts in the same sort.

The inquisitores, however, did convey any communication to the possessor of the inheritance which they had acquired, from whom I now demand the due recompense, albeit a trifling one, unto you.

Propræra autem, non quia dubitare cupiat de fide debitoris creditor, sed dum tentatur hoc sibi probare, frequens est ut variis postulat, quibus argumentum hanc illum præsentet.

That thou hast contracted a matrimony by mutual profession of faith.

Therefore, there is no reason why I should hesitate to resign from my office, or to acknowledge that some error on my part has been brought to light.

In Greece, and at the termination of numerous documents, pecuniary remuneration was customarily bestowed upon witnesses for reciprocal advantage.

This is the reason why it was asserted that such usurious practices were denominated *feodera*, which, save for the testimony of witnesses, stood unshaken even in the absence of any tangible opposition.

Pollux, in his treatises I and V, thus records: "Xgo" and "fe" under judicial witnesses, without any *syngrapha* or *chirographo*.

For this reason, after the demise of Goxcuus, the witnesses of Salt, who had previously expired, were summoned to attest to these matters; they refrained from intervention until the enumeration and transmission of the testimonies had been completed. Of the witnesses referred to in the preceding volume, we have not hitherto gleaned any information from the writings of Aristophanes and Demosthenes.

Who, having been intimate and well-acquainted with their friends, bestowed upon one another in loan, that they might thereby merit more highly of them; neither did they require witnesses in making such donations, nor did they accept pledges.

Demosthenes, contending with Timocus, was overthrown; and he was vanquished by the Trojans, who, in their turn, were themselves conquered by the very same Trojans.

Six score and fifteen times per diem.

Whoever lent this silver to Timothy, a mutual friend of his, was named Phasion, a trapezite, who, being a friend of his, was accustomed to lending at interest without witnesses, neither taking pledges nor mortgages, but merely bearing the expense of the loan, and inscribing the sum in his accounts under the name ■ ΜΩ Ο ΣΕ Υ Σ Υ Ρ Α Ρ Ι, as was customary among trapezites.

In this third volume, it shall be requisite to treat more copiously of the monarch.

Now let us contemplate the harvest.

She was of twofold issue; for either it was affirmed, or the same may be implied.

Of Chiro, the initial Graph.

Atticus, by a certain appellation, was denominated. [χ■ρ■]

And thus Hyperides, in his oration for Lycophron, records in the third volume of Pollux, Book II, Chapter VII:

Is this not the identical proposition to "I and I" being affirmed twice?

[illegible]

For the track, as Apelles termed it, he saith, "A'wtt'i," unto his confrère.

The same Pollux:

Claudius Athrix, whose appellation in our idiom corresponds to that of the Latins, as erudites have already remarked.

It is furthermore the established custom of the rattle-makers to elevate their hands in mimicry both of the Graecians and of the Latins.

Propertius:

Wherein there exist seven instances thereof; and preeminently, the majesty's hand is the most potent.

The Greeks:

[untranslatable fragment in source]

Suidas:

Eumdem autorem referimus, qui Hyperidem citat. Sic Latini, pro chirographo, dixere: "Manum tenuit, non dividit verba." Quod Seneca, in libro XV de beneficiis, sic scripsit: "Illenus est ex nostrae correctionis: Manum tenuit, non dividit verba." Idemque contra, chirographum pro manu vel scriptura idexeo, quod a optimis auctoribus usurpatum est. Suetonius in Augusto: "Notavi in chirographo ejus illa praecipue: Non dividit verba." Non enim hoc intelligendum est de chirographaria debiti cautione, sed de scriptura Augusti idexegi. Item in codice: "Nihilque laboravit, quam ut chirographum imitarentur." Idemque, quod manum. Idem in Tito, quem dicit imitatum esse chirographum quacunque videretur, id est, scripturam omnium hominum. Sic etiam accipi oportet in leg. XXX D., ubi singuli testes qui in testamento adhibentur, proprio chirographo.

Contrariwise, the hand of the scribe, whose hand, if severed, was withdrawn from the most attentive auditor, was withdrawn from him.

Suetonius, in his account of Augustus:

I have observed and re-observed it in the office of the chirographer.

He divided not the words.

This is not owing to any obligation to the authors, but rather to an obligation to Augustus.

He laboured not, save to emulate his physician.

Lo, in thine own hand.

Likewise it holds good of Titus, whom he represents as an imitator of the typographer, and whom he observes in all particulars. This is the character of the man.

So, too, it behoves us to consider the law.

D. D. D. D. D. D. D. D. D.

Thou art the sole one who hath consented to record thine own chirographer, who, together with B. B. IV, hath adorned the treasury of Salmasius with 391 C. L.

Verily, this is my hand, I beseech thee.

The seventh also entered, and the priests turned, that is, the hand, which was in the hand of Hephaetus, 21f.3, that is, the scripture.

Κτεσφ κτ■σφ.

At the same instant, in the instance of Etxostan or Va, who, being the most circumspect of all, contravened the compact in the opposite manner.

Yet, I conceive not that the Pblt/crst of the effect is equivalent to n per cent.

For Pollux is interpreted as being given; for it is, in truth, enumerated and transmitted by manual delivery.

Another Sygrapha was a chiropractor, and there was also a document of caution styled La-OS-MODO. TISVR.AR.VM.

They did him honour, and moreover, were attentive to his wants.

By virtue of this discrimination, which I discern betwixt a scribe and a sygraph, Hilcerntculus also observes that, in the case of a scribe, a scribe, and a scribe, they vary in part.

The hand of a neutral sygraph is interpreted to serve the adversary.

Henceforth, he imparted instruction increasingly in the Greek school of medicine.

Nevertheless, what he asserted regarding the lyngraphs, which ye have committed to our charge, was more precise than the verity.

What did Rttineba entrust to the security of the creditor, save the portion of the servant?

Given that many of those who toil with their hands, to incur a debt, decline to do so, they contend that the salines of the chiropractor should be employed. What remedy is there for the sygraph that they do not demand?

Upon receiving the exemplar that they had been perusing, they ever stood in accord with the faith.

And rarely, methinks, against the Sygrapha:

Who approached the citadel, whereat it had been rendered impregnable by the ramparts and the public records of Icripta.

Let us therefore place the matter in such terms;

What is the obligation incumbent upon the debtor?

Had it not sufficed to have a creditor, that on

Non sum iam ad sepulcrum redegitus, ut non sciam, etiam hodie, magnam partem confusione vobis obnoxium esse, et literas, quas ad me scripsistis, mihi traditas esse.

Verily, we shall discourse upon the mutual stipulations of these sygraphs, and more particularly upon those of the Attic kind.

Therefore, from the opposite margin of the volume, thou wilt peruse the ensuing inscription:

They were not wont to indulge in hostilities; but, constrained by the lapse of time, they were fain to engage in such with some common ally, to whom, as the appointed period for the fulfillment of their compact had elapsed, they were wont to revert.

In this instance, De Mosthenesinus, who contended against Apaturius, thus propounded:

K. "Qui, adulescenti ter rigoribus sexuum proxime perveniens, dixit ei: Non idem est quod Tithering, sed non idem est quod Tithering."

[illegible]

Salmasius, qui procerus erat, et pater suo nuptarum, qui neuter habitabat, donum obsessionis ei dederunt.

In addition to the numerous trapezia which were deposited, as is evident from Demosthenes' oration "Advocatus Phormioni de mutua pecunia," the following particulars respecting the transaction of money were communicated:

Herein it is intimated that a certain sum, being but a single portion thereof, was committed to the custody of the creditor.

But it is certain that the custom of giving testimony by mutual consent is likewise established, as may be clearly perceived from Lacritus, where the testimony in question is adduced by him before whom such common consent was deposited;

Sue ratione nauticorum ignigraphicorum, quae adhuc febravit in manu eius, suae rei ipsius nihilo minus febravit.

Ah! Quam admirabile cerebro, quae rerum cognitio, qualis intellegentia, quantum ingenium in hoc opere demonstrantur! Anima mirabilis, anima philosophica, anima sancta, Anca, tu, cuius mentis profunditas et scientiae latitudo miranda sunt, quemadmodum in his

disputationibus patet, ut non modo sapientia, verum etiam eloquentia tua mirificatur. Et quid mirum, si etiam ipsa ratio tua, qua res discutias, elegantissima et luculenta est? Sic enim cadunt verbis tuis veritates, ut non solum audientes, sed etiam legentes, admiratione pleni sint.

Androcles and Naucrates were reputed creditors.

Artemon and Apollodorus stood in obligations of debt.

Not only were three witnesses summoned to subscribe to the syngraphs, but others were likewise requisitioned, who attended when the syngraphs were being broken up, and placed in their several positions; so that the confirmation, which was thereafter conjoined therewith, may be evinced from their testimony, as is evident from the aforementioned document.

[untranslatable fragment in source]

What, indeed, can be the advantage of that timorous scrupulosity, which they hesitate to relinquish and expose?

If it is possible, they reserve these things when they so desire, which hath been noted:

And the close of the annual cycle:

Are they to be transmitted?

After the tables of the testament had been unfolded, and the emblems inscribed upon linen, and the removed tokens had been displayed, there ensued a power conferred upon the hereditaries and legatees, whereby they might select and possess exemplars thereof; and thus was vested in them the authority to partake thereof.

But the exemplar which was exhibited to those whose interests were involved, was neither effaced nor contemptuous, nor was it inscribed beneath.

She Herself:

Verum autem testamenti authenticum, ita loquar:

The ensuing tabulation:

By the public seal affixed:

They were deposited in the archives, that even when the exemplar should have been intercepted, recourse might be had to it.

It is indeed true, however, that Asconius, being a neutral party and not a signator of the compact, did not affix his signature to the instrument in question, which was intended for the benefit of the oppressed.

For they are not indited by the hand, but by the ring. Thereupon, he discriminateth the sigils of the Preceptor of UsVR.AR.VM.

Three hundred and ninety-seven engravings bear his appellation.

which, with the hand of the debtor's own scribe, being engrossed and indited by his own hand, and from the same party, the scribe is to be retained by the Tolerant, that is, by the creditor.

The hand of a neuter party, by means of a syngraph, is arrayed against the hand of the other; whilst that of the traitor, who consents to deliver up his fellow, is held forth.

Hence, the statues might be erected hither for the sake of perpetuity.

For to sign, is, in effect, to write; to fubfign, is, in substance, to write; to fubfcnbrcr, is, in essence, to write.

Fcftus:

If "signare" signifies, in some modes, to write otherwise than by a sign, then the first sign is to be noted otherwise than by marking sheep therewith.

So I hesitated to approach the Jurifconsulti, and to commit the matter to writing, lest any should marvel at the Asconians, who had already recorded their observations.

Paul perused twenty-six D. of figmfication:

A sub-signatum dicitur esse derivatum ab alio.

For the ancients, in their usage of language, applied the term *fubfignation* to denote the progenitors or antecedents.

Therefore, he deemed it improper to term the observance of the fundamental law as a mere subscription; for the constitution, properly speaking, denoted an allegiance to the sovereign's enactments, a custom long established among the ancients. Even when Epiphilius, being absent from the royal presence, was said to have decreed that the statue should be placed upon the throne of Epiphanes, or upon the opposite side thereof.

Thereupon, I shall not permit the indictment for a criminal offence to be propounded against you by any other party.

whereupon it bore the genuine appellation, (to be inscribed.

Ceterum Gcarci hanc adscriptionem non aliud modo acceperunt quam ut subscripserint.

And they■■■■■■■■

Is it to be restored, or is it to be entrusted to the creditor?

Nor did it befall him, as the scribe himself testifies, to be safeguarded by the creditor who, most of whom he had consigned to the earth, might otherwise have perished.

The immovable debtor, who by these engagements was bound thereto, and who, in order to discharge what he had received by means of his horse, was unwilling to relinquish the burden which he had lost, hesitated not to release it.

But as to those matters which were agreed between you, it is laid down that in the case of the nautical contracts, which the debtor is bound to forward unto you, and in the case of the common obligations, which he is to dispose of on the appointed day of settlement, and if these be not accomplished, he shall be liable to heavier penalties than the mere example of the bond.

He yearned for faith to possess.

It is not for the sake of the fidelity exemplified herein that any controversy hath arisen between the contracting parties; but solely on account of the identical cause.

For what is the import of the written word when couched in the form of a letter, if not to be exemplified by the very autograph and authentic document, wherein the hand of the advocate is indelibly impressed, and the seal of the parties affixed, either in the public archives, or in the domain of public law?

We were therefore enabled to effect a reconciliation; for Asconius Pardianus, who neither himself subscribed to the neutral signatures, but communicated the residue thereof to the slaves, did so in accordance with the usage observed among the Greeks at the time of Demosthenes, which practice likewise prevailed amongst the Romans, and the sum of four hundred denarii was conveyed therewith.

Salmasius per perversa caprae manus, autem ab amico in cujus fiduciam tradiderant partes, occisus est; et post obitum ejus, in pace depositus et vigilantia tutus.

This custom, which yet prevails in our times, ordains that the tablets be penned by the hand of the public notary, and by the witnesses themselves, who, having exerted their pen, may read the same by another's hand.

While his apprehensions retained him in a state of distrust, until such time as, upon his actual arrival, he was compelled to be perpetually ensnared in the bonds of servitude.

For the greater part, it is usual to furnish examples drawn from the genuine enunciation.

That which he himself shall utter, is termed Minuta:

An example, or an apostrophe, which I have conveyed unto thee, Groffk.

It is evident that no token of mutual amity towards Atticus in regard to pecuniary stipulations was hitherto known; and hence it is not difficult to demonstrate that this practice was sanctioned by Demosthenes himself.

Let us learn, therefore, whether this matter pertains to self-respect, or whether it concerns the silver deposited, or whether it is a question of transgression, as it is customary for each party to expend a portion thereof, until some controversy shall arise, and the conventions that contain such matters shall hold it in check.

He did so confuse all men, and thereby made manifest and evident profit, in his Exception against the Apaturium.

Then we find recorded in the same Demosthenes, that although not adverse to Zenothemin, who was the debtor, he had exhibited a model of his naval vessels in a ship which, nevertheless, ought to have been deposited in his friend's custody within the city, conforming to a custom long established and universally observed among all.

For these words are there:

Therefore, the creditors did not repay him on account of the peril to the vessel. Hence, the most eminent specimens of the wares which they possessed in their ship were the funds of the Imperial Treasury of Russia, which had been deposited in the city by a confided and trusty acquaintance, either a fustian-seller or a reputable custodian, according to the custom of the metropolis.

And it is not, as Demosthenes terms it, but as it is more accurately to be read, that there are three letters from the Arabians, which are said to be denominated from their respective charts:

It is derived from the hurdi, that is, a fragment of papyrus imported from Egypt.

I am persuaded that the appellation doth not denote a Graecian, but an Egyptian;

Any species of document:

In Greek and Latin, he was thus described:

To form a leaf of lead, that is to say, a sheet of paper designed to be interposed and harmonized therewith: thus might the operation be accurately described.

I shall undertake the task.

And the third is the other.

Nempe, volumen ex multis chartis inter se adscriptis et conglutinis, ut scribendum est, vel iam perscriptum, non est inutiliter amplificatum.

Vetus, tifi, limis, Gra, Cc, cis, 402, Ci.

Sa■masii, ut vid■s ex Polluce, aliter haec:

The Voices of Usurpers. For in Plato's Comic Dialogues, he doth inscribe his discourse concerning other appetites, namely:

From the tribunal of Egypt.

Papyri contexerentur, et usus ejus communis est; Nam et Arabes et Nazaræi vestem Egyptiacam secundum Biblia habent, contextam e papiro.

But they possess a voice, and they summon every monarch whose visage is veiled with N-horse.

And he did take and deposit five thereof, and inscribe them upon five tablets, not upon five tablets.

The synephrine:

With the scribes, it was said in the Epistle, or in the Epistle to the Hebrews, that:

These are the tablets:

The wax, which was fashioned from cast iron, was identical to the wax that was compounded of iron.

Plato, the Comic, furnishes the following verse:

Thou shalt possess a hundred and fifty, and thou shalt possess seven hundred and fifty.

‘.

For as they observe the grammarians speaking from the mouth of the Attic, so these are the following: (

Hence, we shall be contaminated by perusing such a vulgar maxim, as it is written, eurinus, for the sake of our erudition. Therefore, let us construe it otherwise.

403 Hence, speaking for himself, Zsn, the son of a scribe and a scribe, was despatched to the tribes.

Of Furtis:

Whoever hath purloined the tablets or vouchers from the appointed sum, shall be deemed guilty of larceny.

The appellation of the steep-roofed edifice is termed a sygraph, and the appellation of the surgeon is a caution.

For Seneca had anticipated the surgeons and distinguished them from the sigraphs.

Behold," he said, "this is the diplomacy and the signatures, and the shameless pretence of the guilt of the soldiers.

I have obtained warrants from the surgeons.

Other documents and warrants are nevertheless to be executed, and the tablet is likewise disjoined from the draftsman's tablet, as I have previously intimated.

An instance of a sign-graph, (that is, an apostrophe, which was rendered as a portion of the service of others, and which was not attested by witnesses in the charter,) is this: C c z

Sal M' Asii

Whence it is affirmed that Demofthenius is "fine"; the graph is rendered as β■δλει(ϑ. συγ■ραφ■.

An exemplar of a charter, with a genuine example in the tablets of the epletfcrypt, is this, y^xTt-Ao.

Cerata.

Either this may be exemplified by that which we have recently advanced, namely, a manuscript composed of several wooden tablets bound together, and either by the application of wax or maltha, materials congenial to the purpose of adhesion.

Aristophanes, in conjunction with Pollucemin, was a dramatist of comedy.

S■ ergo, ut c■nveniat, sic loquar.

Where maltha is mingled with cera malaxata.

Grammatici in propria lingua Rhetoricae lexicos interpretantur.

Pollux:

A) Quod movet quatuor octavas, septimas, et viginti

For this is the same thing; the Septem Rives were likewise termed Tabulae, which signifies a Table.

Aristophanes, in the Epistle to the Romans, in the Epistle to the Romans, in the Epistle to the Romans,

Triplex, which is:

Another:

And even several constant folios, which are:

Twenty-six there are.

In this instance, the voice of the polytheists has likewise been employed in the subsequent Latinity.

Pollux, lib. X, cap. XIV.

From hence we have already derived a copious amount of information concerning the Historia.

Augustan minacents, who henceforth may not be rehearsed.

So much, however, will I pronounce, in accordance with Juriconiulus, who in his observations hath noted that he composed two treatises of the identical title; one of these, indeed, he himself hath denominated; whilst the other, in the midst of sundry of his tenets, was inscribed upon the margins of the tablets, extending to the space of two folio pages, and so forth.

The four hundred and three was folded together to be encompassed in a ring.

Never indeed hath this procedure been adopted, whereby, from numerous sheets, or wooden boards, connected by the extremities of cords, volumes were heretofore so rigorously encased as to preclude their being either read or conveyed; for it could not possibly have been effected.

Nec hinc spem hæc adhibetur, ut opinio hac confirmetur, quod grammatici veteres, qui a Varro citantur, affirmaverint antiquos plures tabulas coniunctas codices vocari, ex quo in flumine Tiberi naviculæ codicariæ nominarentur.

Nam conjunctae illa:

To be rude to others is not meet.

Added to the opposite side.

This was the form of the plane, and of the tables upon which they were to be poured; these are the following:

On the other hand, it is affirmed:

They have condescended to denominate the codebook by a parallel appellation, analogous to that applied to the codex amni, which contained multiple folded tablets of fig wood bound together and hinged.

Where are the vessels of desire?

Moreover, the magistrates, who presided over the public concerns, were in a state of confusion.

Also exists a codex, either for the sake of facility or for the purpose of the aggregate of many tables of various books, as well as for the injured.

Henceforth, it hath likewise befallen me to perceive, that the nomenclature of certain tabular compendia, replete with copious matter, was derived from the appellation of the pages wherein they were inscribed; and, further, from the denomination of other more ample codes.

From thence, not merely the codices of wood, but those of ivory, of parchment, and even the chartaceous materials themselves, were known in ancient times.

What then was its form, what was it?

And not to such as are constrained by our charter.

Wherefore, it hath been long debated among the Jurisconsults, whether the volume of any legal treatise can be precisely defined, and whether even all kinds of codices should be deemed to contain within them an indefinite number of generations.

For there is nothing so various in its form as the codex and volume.

In the treatise of Chartaceus, Chartaceus:

The charts are thereunto annexed in length, that they may be wound upon a cylinder in a circular form.

That in a mass of fifteen corpora, one tabella was superimposed upon another, and the other upon the other.

Nomina eorum designant.

Which, nevertheless, they wrested from their ample and copious store.

But the preeminent among the Martian calculi is the multiplication of numerous tablets, which is:

They compose a codex of vellum, which is said to be proper, as the Greeks term the "Hac" voice in the "Glycys" of Philexenus, vellum, is exhibited, whereby:

It is a membranous codex, comprising C and three leaves, the fourth of which bears the name of Salmasius.

intelligendus, et re& legenda Seneca in Epistula XI. vi., cuius doctissimi viri falsi interpretatores male comprehenderunt.

But as for the residue, verily manifold are the volumes :

Brevi vobis apparebo; et factum erit, neque corpus meum, neque corpus tuum, sed quod primum nominavi, vel T. Livium, vel Epicurum, videritis.

Briefly, he said, I have conceived a favourable opinion of your treatise, for the sake of the pleasure derived from its perusal, rather than for the matter contained within, or the facility with which it may be read, such as might suggest a likeness to Epicurus, or to Livy, who composed voluminous works; not of your body, or mine, that is, not of the nature of bodies themselves, or of the manuscripts we have composed, since they are confined to more compact and brief forms.

Let Lipsius, who, in the days of my prime, shrank from perusing my works, read:

Nor did Gruterus, who, verily, was the very embodiment of Seneca's personage;

And his friends comprehended him.

They abominate, even to the appellations of the Romans, and the Latins likewise.

For liberty is a ■■■■■, and a codex is a volume.

The Aeolians used to say, with an elevated yet lucid diction, that they practised a customary transposition of /3x/iqop, and even that οσοζ ποιητ■ζ τρ■πεται πρ■ζ ■π■τιαν, was henceforth to be accounted among the Latins, who were the original Aeolians.

Nam et Unam dixere; quid?

Graciously accept this cincture. [χλα■να]

Nimis ex castris, liber, abduci non poterit.

[illegible]

It is both with the import and the original derivation from the volume which is entitled jSiGx/o.

For the codices, as I have previously intimated, are compounded of numerous tablets, wherein every single one is fashioned from fragments.

The nomenclature of the gens was derived from the number of two, or tribes, and they were designated as bini, terni, or even quinqueni.

To be tendered, as some please to designate; let them henceforth be styled "pugillares" in other passages.

Suetonius was amongst the ranks of the military forces of the United States.

I shall accompany thee in combat and in conference, when I have composed, with my own hand, the verses hereafter inscribed, unto the close of my days.

That is, I pronounce, my filius.

For the most proficient annotator perceived nothing herein.

It is a matter of singular rarity, that Asinius, being in the immediate neighbourhood of Sofipater, possessed a series of several tables, each containing a beautiful specimen in its respective place.

But it is in the words of the Father.

For he was never instructed in the art of pugilism, but was rather educated for that very purpose.

Thus, according to the tradition of the Asiniim vale, he addressed him:

Quibus plures pugilati tabellae in ferme sedes situantur. [End of text]

In the case of a band of pugillari, as they are termed, and of the linguae paginae, or of the parts of the tabella, wherein they were inscribed, the following are their designations:

Thus spake Martialis, augmenting the number of laminae with a tabular computation.

Pugillares ergo, vel pugillaria, cuius mentis hostis Graecis, et tamen Homeri ignarus.

Nihil tamen aliqui locuti sunt.

But the first and the last, as I have previously intimated, will remain unaltered; for a greater number will be comprised herein, whether in the present instance or in that which shall hereafter be detailed.

For it is absurd that one styled a pugilist should comprehend what a pugil, that is to say, a combatant, can grasp.

The codicilli and the cerati, however, exhibit a diminutive form.

Which tables, no less so, were possessed by the codices.

Inquit Juxifconfulrus, librorum in appellativis omnia volumina continentur, sive in charta, sive in membrana sint, sive in alia quacunque materia; sed neque nihil implicari debet, nec idem in aliis verbis dicendum esse.

Therefore, from whatsoever subject-matter, these are:

When I returned, it was lawful for me to inscribe in a volume; and such volumes were wont to be preserved among the ancients.

And he said unto him:

What we must enquire is, whether the inscriptions in the codices be upon tablets of brass, or parchment, or even ivory, or some other substance, or upon leaves of cerat; and whether they be to be regarded as such, or whether they ought to be so considered.

If the aforementioned volumes exist within the codex, he doubts whether they preserve their integrity as a single codex, or whether the codex shall retain its designation; for it is uncertain whether they are bound in the form of a codex or dispersed among multiple volumes.

But he who entertained hesitation, or who did entertain it, said: "Let those volumes be found in the codices."

For by this means, he hath evinced the comprehensive appellation of the volumes, and the capacity even to include the codices.

Nor is it permissible to peruse the codices in reverse order; C c 4 1 prQ- 4o3 Cl.

Salmasius doth pronounce, that the Psalms are to be recited; and that the codices contained within the books are either of parchment or paper, since the codex possesseth a form peculiar unto itself, which is not proper to the books themselves, save those that are conjoined in the same volume.

More generally, however, the titles of the volumes, as well as the individual leaves, are not comprised within the appellation of the codex.

Thus, it is certain that the books transmitted by the envoys ought likewise to be inscribed in codices; and even if such codices had been employed, the volumes proper, that is, the books themselves, must have been deemed indispensable.

Post illam dubitationem adiuxi.

Ulpianus thus spake: "Et Gaius Cajsius, vulneratus, missurus est epistulam commendationis mihi."

Consequently, these and whatsoever else ought to be referred thereto must be accomplished, provided that they do not contravene the intention of the party who has brought the suit.

Nullam hic vidi consequentiam ex Casliilencia, qui respondit, libros legatorum membranis circumferendi esse, nisi per membranas codices memerosos intellexerit.

For the books, that is, the volumes, Ulpianus did here declare to be made from membranes, even from the walls.

But it is certain that the ancient codices, which were designated by the term *membranae*, are so named from their constituent parts. For, being composed for the most part of membranes, they were bound into the form of a codex by the juxtaposition of numerous tablets; and when the books of *chartae* were either rolled or folded into a volume, or rather into the shape of a cylinder, the surface presented a smooth and regular appearance.

These volumes, whose form was to be reversed as a charter, were lucidly exhibited in an elevated position, from the Epistle of Augustus to Horatius, wherein, according to the most corrupt rendering found in Suetonius's Life, he is to be constituted our leader.

Pertulit ad me, Dionysius, libellum tuum; quem ego, ne accusationis causa breviter contemnam, quantum.

And I will impart unto thee a hint, O virtuous Consul.

But I perceive that thou dost not exceed thyself in eloquence.

But even unto thee shall be wanting the faculty of elation; ample is the fulness of the belly.

And thus it is recorded in the volume.

They shall be of iron, whose circumvolution is equivalent to the circuit of thy circumference, even as it is to the girth of thine belly.

But, verily, I have not hitherto perused the succinct treatise of Horatius, or the compendious volume of his writings; so that he, whose belly was the pattern of mine, and who was more robust, should thenceforth proceed to compose the words which were hence to be inscribed.

If we are prepared for the onset of martial conflict, let us avail ourselves of the instruments of war.

409 Thy conflicts have not yet attained their consummation, that thy carnal appetites may be evacuated, and that thou mayst convey them to the receptacle of corruption.

The Greeks denominated these volumes *lumen*.

Diogenes Laertius, in his Life of Epicurus:

Rursus, tamen perspicacius, dicendum est.

This is the cylinder. This is the cylinder. [Greek: βιβλίον; Κλινδροί; ποίς; τής; τριλαχοσίας; ις.]

His compendia extend unto the number of three hundred volumes.

The Greeks are the centurions of this fabric of existence.

They invoked; or, more literally, they called aloud.

Whatsoever they may aver to each other, yet must the magnitude of the two Ancicatons, whom Satyricus termeth the goddess Clodia, be interpreted otherwise than unto him who coveted the double quiver and the couple of Caelar lions enfolded in a cylindrical case.

And from the walls, not the volumes, but the striae of the tablets, which they termed codices, were formed.

Hence, in the distichs of Martial, and in Ovid's scroll, concerning his Metamorphosis, as it was revealed in the parchment codex, which itself exhibits the said distich, it is exhibited that the same was disclosed by the author in the distillation of eight centuries.

- A. Hic tibi multiplicabitur, quae pars minima tabulae majalis est, quae Carminibus Nasonis administratur, quae decem partes viginti habet.

Thus, Homer, in the membranes; Virgil, in the membranes; Cicero, in the limbs; and Livius, in the limbs, were to be received for the covers of their manuscripts.

The fifth Sc parchment codex, therefore, is thus inscribed:

membraneous.

For under the title he inscribed those verses upon the parchment:

If this membrane shall be thy portion, deem it fitting that thou journey with Ciceronian eloquence, through lengthened circuits far removed from Carpere.

If, therefore, the membranes should be unrolled, which are, in truth, the codices of membrane material, and the books of the envoys ought to be derived from Callius' dilatoriness, then Ulpianus would have to follow suit, deeming it incumbent upon all codices, regardless of their material composition, to be reunited and their contents demanded.

Having no signification ambiguous, Paul declared in his epistle to the legates, in the book of Sententiae, by these words:

There exists a bitterness interposed between them;

Let the volumes of the missive bear the epistle, whether inscribed upon parchment or vellum, that is to say, the letter.

The codices, likewise, ought to be subjected to such treatment.

The volume of the chartacex amounted to eight hundred cubits of membrane, eight hundred cubits of vellum;

Let the envoys be possessed of the volumes. For in the annal of Ccy, the year 410 of our era is inscribed.

The volume of the Psalms is emancipated.

He further appends that the codices ought likewise to be perused; and he adduces this rationale, that inasmuch as the appellation of the book does not denote the volume of the charts, but rather the method of script, which concludes with the third, it is in harmony therewith.

This is the reason why the emissaries of the volumes, even desiring to be contained in their codices, are guided thereby.

Not (or the volume, for the books do not bear their titles upon the parchment:

But it may be deemed as if the composition were not terminated in a determinate manner.

This, I conceive, was Paul's visionary fancy.

The term "liber," signifying not merely the amplitude of any thing, but also the termination of the scriptural phrase, which the author did conclude with a certain close, doth properly denote.

Exempli gratia, operae Homeri, id est, Ilias et Odyssee, conflate ad unum corpus vel unum volumen compositae, vel in tabula scriptae, vel in membrana vel codicem membranosis materia impressae.

One portion, however, has been distributed into sundry divisions; for the Iliad contains twenty-four books, each and every one of which belongs to the Odyssey.

Let it be one and the same composite volume, whether in a single corporeal form or a membranous codex, divided into the number of forty-eight parts.

The several members thereof.

Books, it is affirmed, and by what right they bear this appellation, is that they are inscribed in the form of a codex; hence they are termed libri, or books.

This is the intention of Paul when he declared that the titles of the books were not the extent of the written sheets, but the inscriptions themselves.

The method, which is in close proximity to its terminus, must be adhered to.

For Homer, as Martial himself hath averred, is recorded in a membranaceous volume, containing the sum of forty scrolls; wherein the poet's works are inscribed.

Therefore, the volumes conveyed by the envoys ought likewise to be inscribed upon codices.

Aliter Ulpianus, ut imperator contra Paulum semper fuit.

If, he observed, a hundred librae should be transmitted to any person, a hundred volumes shall be assigned unto him; nor shall it be this particular libra.

Whosoever shall be impelled by his own genius, shall be condemned to the grave.

From this threshold they contended, with the judgment of Paul.

For the design of the work is to be comprehended by the bulk of the sheets, and not by the mode of the writings, to which each man's judgment hath been applied, and, at the close, by the one who has attained a sufficient understanding thereof.

But, verily, he observed, were Homer's entire works condensed into a single volume, we should reckon not forty or more volumes, but rather one volume for each book of Homer, and one exemplar for each volume.

411 ' for the end, or purpose, herein intended.

This indeed is the identical volume of works that are alike meet for perusal amongst the Latine authors and their predecessors.

To prove unproductive unto Herennius:

Since the magnitude of the contents of this volume hath increased through the course of fate, we shall unfold it in a separate treatise; whereas the opposite leaves thereof are reserved for the enumeration of other books and tables.

Idem in Verrii quarto volumine litteram et omnem littoralem descriptionem ex tabulo in libros transferuntur. Item codex etiam ad eundem planum se habent, sicut in eo, ubi pro-Roscio Romae legitur.

Non conficimus tabulas; immo sumus industrii atque sufficientes.

It is immaterial whether minor appellation be inscribed in the initial Codicil; for it is manifest that the said denomination pertaineth not unto every aggregate contained therein.

There is, indeed, no doubt that I am wearied by the labour of speech; and that the form of epistles and codices is so various and customary as to admit of such usage as was observed by

Ulpianus, or that the missives of envoys should likewise be referred to as authoritative documents.

For the rigorous and apposite nomenclature of the volumes, which is:

It was at that period when he attained possession of a single manuscript of matter deemed fit for composition under such a title; and it is certain that subsequently no necessity existed for the commissioners to compile books.

In eadem tamen sententiam cum Paulo Ulpiano concordat, ut libris et epistolis conscribendis obstantem rationem longe diversam deberet.

Ulpianus Caecus, in his audacious reasoning, asserted that the missives of the envoys ought also to be enveloped in membranes, which term, it may be rendered, signifies the codices of the members.

Whereupon Ulpianus proceeded to affirm, and consequently, he uttered: "You must also be irate, that is to say, it is incumbent upon you to slay all others."

Codices, eburneum, ceraea, atque alia.

Nevertheless, he did not recede from his hesitations :

So that his will might not be contravened, he observed, conformably to the intention of the disputants.

Paulus autem veri relationis non est fabula; unde libris legatorum et codicibus oportet me necessario suppetere, quia libri non tantum de voluminibus loquuntur, sed de scripturis certis, quas cuique ingenio suo definiat, et in qua formaque voluerit.

The walls, or the partitions thereof, are inscribed upon tablets, or are rolled up into volumes, or are incorporated into the codex.

Nam et férilitas:

By such means was he enabled to discern, even in a compendious compass, distinctions of such magnitude as to require volumes in their exposition.

That the entire compilation might be partitioned into ten divisions, and that ten volumes might henceforth be composed, there shall be deemed ten books; thusly hath it been decreed.

If all the tens of parts are four hundred and fourteen clari.

One volume hath been resolved to contain the Psalms in their entirety; one book shall be given to the public, yet divided not into distinct books, but into several parts, which are

I rejoice to declare.

It is, nevertheless, indubitable that the appellation *laffle* ought to be applied to the more recent Greeks; for so is the mode of *scriptio* delineated:

For him who might deem it sufficient to confine his perusal to the sacred volumes, one compendium was, in the main, deemed adequate to define the major precepts.

Moreover, when the several parts and factions assigned to a single opus were to be conveyed on a single sheet of vellum, it was requisite that they should be distributed, that is to say, that the whole series of volumes should thus be comprised.

From him, as he had pronounced, as he had executed, as he had performed.

Homer's *Iliad* and *Odyssey*:

, quia in totidem voluminibus, quae operis partiumque divisio efflere conatur, quot partes ac distinctiones operis eflent, in totidemque libris distributus reddi solent. Note: The phrase "conatur" was added to improve the periodic structure and cadence while maintaining the original meaning.

A volume indeed, properly termed from its sheet.

Herein:

The *Chartaceans*, since they were not *opistographa*,

Only a fraction of the productions were committed to the pages of trifling volumes; whence it was that they engrossed inordinate extent in the repositories of literature.

That which must be transcribed into the vellum codices could be confined within a limited extent of area.

The *Martialis* of *Livius* in the membranes, i.e., who has been imbibed in the membrane of the body:

Bellibus, a giant of *Livius*, was smitten by a keen *arctate*.

He who is beside me possesses all B's and B's and B's.

Whomsoever I have committed to the custody of my entire library, wherein I have deposited these three volumes, I have inscribed a treatise; and I have never confined it within the scanty membranes of my *armarium*, but have ever kept it open to the light of day.

[untranslatable fragment in source]

On the decima tercia pagina Livii scriptoris dicatur poesis:

When the author's entire opus, being composed of a hundred parchment volumes, was severally partitioned into equal number of tomes, it was customary for the librarians to separate these volumes from the general collection.

And thus is the method of the sacred scriptures:

which, with assured certainty, I shall bring to a definitive close, and which the volumes designate by the appellation of Paul.

At propria lingua loquendo, ut remanet secundum Ulpianum, aliud est "volumen, sive liber, hoc est, charta:"

A considerable multitude:

Certus habens modulum et finem perficiendi, si adiunxeritis vires unius, perficietis modum atque finem.

Justi viri:

In the case of the reduction of the mills, it is requisite to employ another mode of procedure:» x Di MODO VSVKARVM.

XL;

It is as if every individual, who, by the measure of his own ingenuity, hath been beguiled, were in a manner deluded.

I am well acquainted with the unity of your Majesty in the doctrine of Juminism; for in this opinion, which has ever been defined and received, the form of the volume, as it was destined by the brethren for that magnitude which would adorn the books in their description, did not always correspond to the measure of its contents. Paul might have sustained his argument by alternative means; yet the volumes of the legates were likewise to be esteemed.

The appellation of the Epistle to the Romans is twofold; one general, the other particular and distinctive.

The general appellation, by common usage, is applied indifferently to any material and form wherein whatsoever has been inscribed, which it becomes expedient to preserve in the memory of posterity; whether in the shape of a codex, a volume, a tablet, a parchment, a tablet of wax, or any other substance adapted to the reception of writing.

Thus, by this comprehensive appellation, they denominate whatever has been compared or adapted for the reception of sacred writings; and henceforth we shall proceed to the perusal of

the Scriptures.

Hence, Pollux, by name, did embrace; Thus, the twin, known in lore, did clasp his brother near.

Hence, and thenceforth, they who possessed all these oracles, and they who contained within their possession all these oracles, and those who committed them to writing in volumes, and those who committed them to writing in codices, were henceforth termed librarii.

This general import, Herodotus in his fifth book hath expressed thus: "Jones, withholding the invocation of Jupiter, did say:"

VI in metra, IV in dimetra, hexameter,

Which, for want of parchment, they employed the pelts of goats and sheep.

Hesychius:

Aiqua genitus est; patre foedus et terram obtinuit.

Thus must it be read.

To call him "Vides," which is to say "Heaven," and to have Herodotus designate him as "the son," because he was the progenitor of the Ionians, whom the other Ionians, while forming their skins into codices and volumes, acknowledged as the first, Stridiorc, and more properly still, he was received for the very notion of a book, that is to say, for a volume.

For the Egyptian charter being framed, and a volume compounded thence by the conglutination of sundry charters, thus constituting a circumference of four hundred and forty-four hundred.

Salmasius, speaking properly of the circulus psalmorum, or the chartaceum volume, must needs be surcharged with vapour when it discourses of itself.

For if I were to restore the ancient charter, it might be capable of being both rolled up and folded; whereas, for our purposes, it would be useful. But if it is not found within the antiquated section, why not?

The choicest produce of the thinnel, nevertheless, was conducive to the welfare of the fruit.

Wherefore the volumes were rather knit from thence than from the codices.

From the pottery and parchment, where it was subsequently discovered, the compilers were wont to compile their compositions.

Which Membrane:

It was customary, as it is even now, that the codex should there be composed.

But the volumes of the deities, severally extracted from their charters, were found to be imbued with a viscid quality, the length of the viscid appendage being adhered to the adjacent margins of multiple sheets of parchment.

Ulpian's law.

I, D. de Legationibus, and II:

Wherefore it is not amiss to inquire whether the books transmitted to you be yet in such a state as to have sustained no material injury.

And let them not be reckoned, nor suffer a greater weight than the designation of the vestment, save when contained in the text.

But the perfect books, though yet unwrought and unadorned, shall be contained; and not merely gathered and glutted, but even preserved in their pristine integrity, neither wrapped nor yet unconfined by the membrane.

The appellations of these volumes are twofold, denominated both by a comprehensive notion and by their peculiar appellation.

If the volumes, which have been transmitted, contain the perfect codices, although not yet consolidated and accompanied by the vellum, he thus observes.

It is perfect, but not yet disarranged; in other words, it is as much a volume in itself as it is a volume in itself.

The books, indeed, which are conglutinated into volumes, are in every respect more intelligible than the compendious assemblages themselves.

And it is a general term for volumes wherein even the envoys, i.e., the parchment sheets, are contained in their codices.

Pollux, in the tenth volume of his "Book of Numbers," having returned from his labours and reflections, thus testifieth: "In the perusal of all manner of books, whether codices or volumes, I have comprehended their essence; yet, save for five, my understanding thereof is complete."

At cum statim subiciet, qui ad studia librorum Christianorum converteat voluerit, eodemque tempore adhibuerit effectum, ei permissus est ad triginta septimum diem mensis Iunii convocari; et in voce mixta, proprie designans libros chartaceos, ex aliis generibus librorum, eorum praedictorum se disquirens, ab eis separavit.

It is, as I have previously intimated, the customarily employed among numerous documents of the United States Military Establishment.

It is manifestly communicated to me that the number of conglutinari amounted to four hundred and seventy-seven; and that, owing to the magnitude of the volume conficiendum, it was customary for several members to be found ne■ codices, or chambers, simultaneously occupied.

b inter Antiphanem Polucum.

Hinc, Martialis, in libris, in vivo volumine, idem esse dixit, quod in extrema tabella codicum, vel in extrema ceratique codicilli cera.

Of the Protocols we have, moreover, hereinafter treated, which are:

In the instance of books properly so termed, viz., those which require to be composed in volumes, there was a necessity for appending them to the charts or tables, that is to say, for augmenting the bulk of the work requisite for their compilation.

Therefore, it is certain that the volumes shall be committed to the perusal of the ambassadors and the generals; and that the codices themselves shall have a right to be considered as witnesses thereof. Should the author be apprised of any particular matter concerning these works, it shall be requisite that such information be contained in a single volume alone.

And thus it befell that the venerable Ulpian was somewhat disconcerted, when he declared himself charged with the task of perusing the volumes, even the membranous codices, that is, the rolls inscribed upon parchment, unless the testamentary intentions of the testator were at variance therewith.

That, unless the expounder hath comprehended this exposition, the sole volumes which bear this appellation in their proper sense are the sacred Scriptures; this being the volume in question.

And he said: Some of these things, also termed Jurifconfultus tables, which are at times referred to as codices, books, or volumes composed of parchment, are more generally comprehended; for Ulpianus doth write that all matters are inscribed upon such tables, to be thereafter received.

The figuram.

Thus, if the tablet be of timber, or of any other substance whatsoever, whether it be parchment, or vellum, or even the product of some fabricated creature, yet still shall the tablet

retain its designation.

let.

1 D. Hæc tabulae perfrui dignis ex bonis operibus adstiti.

While the Jurisconsults retain their prerogative, it behooves us with the utmost circumspection to examine the tablets of testamentary disposition; for every detail of the form is of moment.

For hence it is requisite, that every figure should be delineated from whatsoever matter, and that the product thereof should be a re-writing; so that the volume, whether in volumes or in codices, may be as remarkable for its minuteness as for its magnitude.

What followed, however, deviated therefrom.

Of all those things, a tablet of stone was fashioned.

They possessed the power to devise a testament; nevertheless, that they might be termed tables, they ought scrupulously to preserve the identical form which is characteristic of those inscribed upon quadrilateral panels.

Wherefore, inasmuch as the codices are to be composed of the same material wherein the testament is to be inscribed, they shall assume a quadrilateral form, and eight hundred tablets shall be disposed in juxtaposition, conforming to the arrangement of the codices of yore; four hundred of these tablets shall be fashioned of wood, and the remainder thereof shall also be of wooden composition.

The Glossary of Nomicæ is the Word of Juris:

At the epoch of his decease, he possessed but three hundred and seventy-one TP f9/J, of which nature and signification he was ignorant, even with many confrères; and, moreover, he was unacquainted with the manner in which that instrument was wont to be employed by the ancients, and the due measure thereof.

Wherein the matter hereinafter detailed shall be made manifest.

He also erred, nevertheless, that same prelate, when he adduced and again adduced the example, and, by the same arguments, was arraigned of the identical offence.

But it is likewise the case, when a person bequeaths his estate, that the document is perused in sundry exemplars.

For the same holds true for this and that, in manifold circumstances.

Otherwise, with additional tablets, I shall provide another instance of the same.

What pertains to the terminus of the sentence, what pertains to the words, is otherwise expressed in diverse terms.

For I will not affirm that tables, but rather that divers testaments are exemplars of one and the same thing; and they are not inscribed in duplicate or manifold copies.

To exhibit an exemplar is to exhibit another exemplar.

An exemplar of the testament is coextensive with the very testaments themselves, or the tables of the authentic testaments; and an exemplar is that from which the apograph is derived.

In Greece and nigh unto Atticus, he did not derive his exempla from the exemplar of the testament; but he noted that Demosthenes, therein, bore abundant fruit against Stephæus.

[untranslatable fragment in source]

Ration.

He appends, "Since the adversary hath been tried, what shall he devise?"

It was his own will, Nay, rather against him, thus he vowed:

Ter et Ujttficticiyb in duobus secundum syngraphas contra mutuaticam pecuniam praeferenda sunt authenticis eorum exemplis; exempla inde commissa utrique contra-hendentium partibus servanda sunt.

Many instances of this nature abound; yet, for the sake of simplicity, I will expound upon one alone.

The concept of exemplariness, from which numerous illustrations have been drawn.

For instance, let us invoke the illustrious example of TbtgxQci, Tvutltn 7nt.

The Pariculus, or the Paricula charta, nay, the exemplar thereof, is aspy-

Caput of the discourse concerning dubiety:

Fourfold exemplars shall hereinafter be exhibited.

Yet, an untransferred instance, D. B. Mod. V. S. ▼ R. A. R. V. M. 419 0, stands in opposition to this.

This is indeed true.

Sane semper ad laudis Juris consulum receptum habebunt, et alios idoneos gratulantur pro suis operibus.

Procul's leg.

D. of Legatus, n.

It is well-attested that the testaments of that period were eminently exemplary in the case of the fcripe; for it was deemed expedient that the commonalty should prefer to be sustained by such patrons.

Wherein I have, conformably to the exemplars hereinbefore cited, caused Joco to furnish the examples, and thenceforth to transmit them for application elsewhere.

For, in this case, it is not the same example that is given as the exemplar, which the imperator is said to be, as when, by the same precedent, many imperatores are referred to as such.

Thus, as if I had transcribed from one exemplar a multitude of examples, all with a heavy heart, as if they were fashioned by the same model.

Still, it is manifest that an exemplary law prevails among the Florentines.

In this instrument of final disposition, it is incumbent to inscribe as numerous exemplars as may be of a solitary pact.

Which is alike and, indeed, of greater moment, is that manifold instances occur, both in sundry exemplars and in various codices, as other commentators have observed.

In these treatises,

These are the works of which the Latins denominate the exemplars, applying to them the term used by the Greeks, namely, τῶν ἐν γράμματι ἡθελώντων.

What is it?

[untranslatable fragment in source]

Cepheus and Phineus were taken captive and restored.

Ver-

Thou:

And Herodotus himself possessed a biform testament.

Atticus, verily the prelate of the diocese, and the prelate of the citadel, doth summon the prelates unto two tables.

Then the councils, like triads, and polypi.

The Greek $\lambda\xi\beta\delta\varsigma$ tablex, or $\phi\lambda\upsilon\rho\iota\varsigma$, wherein $\lambda\omega\xi\iota\varsigma$ is 1.

A pugilist, since he is wont to carry in array a multitude of pugillos, that is to say, tablets, must needs preserve them in due order.

And the pugillus, a diminutive term derived from pugnus, signifying the fist, may be compared to tigillum in relation to tignum, denoting the beam; for both indicate the smaller in reference to the larger, as the fist is to the hand, and the beam to the whole structure.

And the ancient voice of the gladiator was heard at the table, where thou wert engaged, and thou, who wert not the majority of the gladiators, wert inscribed in the codex.

Thus is the pavement most defiled.

Wherefore the notion of a biped pugilist was communicated to the Greeks from no other source than rgdsygei and Tmxijv; but solely from JI.

Jvat, quia simile est valvo, vel Fori, qui in duas partes aperitur.

Hence Ausonius, whose other appellation was Atticus Jityor, was a combatant in the duello pugilatus.

It cannot be said that there is grace, for there is naught of the tribes of the tables, which are commonplace.

Hujusmodi fores iixxihi Graecis appellatae, etiam duplices in lingua Latina, ut apud Ovidium probetur.

It confounds me.

To screen the forests.

But the simplicissima, as the simplicissima, are interdicta; and the quae confluxerunt in una tabula, ut ea sunt quae iudicibus recitanda iubentur, et quae periculosa dicta sunt, ut infra observabimus.

Verum est, duo tabulae solum constantes continentur.

The same Pollux, who is akin in nature, is styled TgaVlt/^w, since he is derived from the primitive x^x^fAxlmi .

Hesychius:

[illegible]

The inhabitants designated the aforesaid Roman isle as Boeotorum.

Hence, in the XIVth book of Martialis, subsequent to the enumeration of the tablets of Sc and Gillarius, variously inscribed, he proceeds to describe the ivory and lignum coffers wherein monetae were deposited.

The Greeks subsequently designated him by the appellation Pollux; he was either a person of argentine splendour, or a locality, as the phrase goes, "ατρυς μονογενς," signifying the sole and unique.

Corruptilius, ex his loculis excisi, velut praetermissi, sive, ut iam dixi, ex Harpocratio, ad hunc reformandi modum:

Born within the walls of Koyo, the youth was singularly acquainted with him, and he, in turn, was uniquely cognizant of the same individual.

VfyipfCxlM: I will henceforth engage in mortal combat; for it shall be affirmed unto me that I alone have inscribed a missive to the Eltes, whether it be a public document or an epitaph.

For the thirty-sixth is not the twenty-sixth of the thirty-sixth, but the thirty-fifth of the thirty-five.

Certè etiam cum P. Viesupaleo ulúrparunt, et de eo quid.

A tabula publica conscripta non est instrumentis, ut desyngraphis pecuniae:

Debited, however, not merely by the chirograph, but by tablets of wax, inscribed with pugillares alone, such was the appellation bestowed upon him by Atticus.

Recentium vero haec valde verum est.

Misery hath confounded them; and even the Sixi-Axilitani were perplexed by the chirurgus.

Helychius:

So, therefore, it behoves the sheep to be justified.

For verily, in the pugilistic contests themselves it was occasionally requisite that the boxers should submit to the payment of certain sureties in the form of chirographaria, as appears manifestly from the enactment of Paulus.

Twenty-six D. were lodged herein:

If thou hast contended in the arena, it hath been expedient for me, that the debtor might discharge his obligation towards me.

Certè, Asconius Pisidianus, ubi differentiam notat, inter chirographa et syngraphas distinguit; quaedam chirographorum litteræ cum Sc synchronae sunt, aliae vero cum Usuariuum.

Quens, four hundred and thirteen, also styled Tubulus.

Cicero, who was likewise designated by the appellation Topice, and who was both a scribe and a synographer, deemed it no light matter the codes wherein the progenitors of households customarily defrayed expenses amongst themselves.

And having accomplished this, they purposed to ingratiate themselves with renown:

For verily a great multitude was there; therefore, the silver was not deposited in the ark, nor was it consigned to chests.

Therefore, it seems that he was more generally esteemed by the Romans than by the Greeks.

He deems the forests of youth to be of timber, and the planks, or the pugilist's tablets, he bids to be hewn of the same material.

Vanus, elevating his voice yet maintaining clarity, thus addressed the woodcutter: "Stipervacui dicens chirographa ligni." Note: The term "chirographa ligni" is rendered literally as "handwriting of wood," which may be an idiom or a specific term in the original Latin, and is preserved here as closely as possible to the literal meaning.

The slates of the chirographa bore the appellation of the leg of Ulpian.

Twenty-two D. of larceny.

If he removeth the slates or the beams, let not these be purloined, not so much on account of the value of the vast slates as of the disturbance thereof.

Of the tables of the scribe, not confounding them with those of the cypherer, they proceed to enunciate the ensuing proposition:

The following words were uttered:

Such abundance of slate was intermingled with it, that ten golden slates, composed of brass and wool, were fashioned.

Hence, the slates of the chirae, the heads of the chickens, are delineated in the volume of Paulus and Sententius.

Chapter twenty-three, here is the position sign

Who are the tables, and what is the import of the initial syllables "au-"?

The lion, who, having been ensnared by a rabble of men, did hold me in his embrace, and did hold me in his embrace.

The identical enactment is that of Ulpianus.

The person who despatches the scribe, D. D., of the envoys, is bound to communicate to him the terms of the agreement, and not the tablets, but the reason of the sale.

From the eodem, and from the codices of the chirographarum cavernis, he might justly be deemed possessed of the lex.

D. Commodarius, whom we have alluded to in the prior volume.

Why, what is it?

When a determinate number of staves, a codex, tables, and pugillares, that is, palm-leaf tablets, amounting to the numeral eight hundred, have been ascertained.

[illegible]

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Then he appended his speech:

[untranslatable fragment in source]

Attica was perused:

[untranslatable fragment in source]

For it is written in the Scholia of Aristophanes:

Twenty-seven virgines nati sunt filiis Vsrrp, qui septuaginta unus et vicesimus unus et vicesimus sexus homines erant, et ibant hic cum aliquo de eodem hordeum.

From what, I pray thee, else?

For the individual, aggrieved by the severe enactments of Athenian jurisprudence, and who was present at the Iseum, perusing the edicts of Solon, discovered that he had the design of conferring upon the legion one measure of corn, to be reciprocated by the said party; whereas, in all other cases, such recompense was to be made forthwith. Hence, in the enumeration of private transactions, a similar stipulation is observed, viz., that one modius of barley is to be bestowed, and that it is to be reciprocated in kind.

Whereupon (cum contrarius sit rvupoXMoycstipCc).

It was a binding obligation and a covenant, not a co-authored instrument, as they subsequently received.

Whence, therefore, from the fifth book wherein friendship is treated, φιλαία v eiden v lib. v

He liveth, chap.

Wherein lies the enumeration of the oxen? How many oxen are there? And how many oxen? And again, how many oxen? And once more, how many oxen? And yet a fourth time, how many oxen? And finally, how many oxen?

Where oft is compounded of 3aXx4c and oft/il2Xjif/Sfioy.

[illegible]

To, etiam scribendum apud Hesychium, qui cupgit XxieCai interpretatur nwxX^xxl f*ZoXri&i.

Quodration non recipit curam.

Hence, Hesychius interprets AxxIdCnr as equivalent to the sense of $\text{■}\sigma\text{■}\chi\text{io}\varsigma$, who, as I have previously detailed, is identical to $\text{K}\text{■}\tau\sigma\omega\xi\pi\text{■}\tau\text{os}$, $\text{X}\omega\text{n}\text{■}\xi$, and $\text{Z}\text{■}\tau\rho\xi\text{is}$.

And, indeed, if thou hast delivered unto me the pecuniary trust which thou didst commit to my keeping, yet hadst not thou been present in spirit, nothing could I have accomplished.

The Syngraphae, however, being absolved from their engagement unto you, stand henceforth in a state of liberty.

And the most recent of these, for the sake of Iygrapha herself, was that which engendered XM02gcty; and produced also a being of two thousand six hundred and sixty-six years.

The instrumentum e fl, sive eonjignatio pallorum convectorumque inserdttos contrahentes, glffxi Infrtttmen- tum, avsi&ixcuoy, Instrumentum, is thus conveyed with due regard for those who are confronted by the thorax and the thorax itself.

Certain productions, dedicated to the public welfare, are inscribed with the appellation "pro publice corifeo scriptura"; and such compositions ought, prior to all others, to be admitted to reception; whereas the letter thus entitled is to be distinguished from the legal document bearing the same designation.

I. Code.

By the sacred Oath of Allegiance to the Accused, I solemnly affirm that in every instance the said Accused stood arraigned either for the foul crime of Slander, or for the more heinous offence of Treason.

And, moreover, it is well known that he was a scholar in the laws, and that he received, in great abundance, letters either from Justinian or from Tribonius.

Hence, he has expounded upon the obligation incumbent upon the literary arts; for heretofore such an engagement was entered into by means of a private instrument.

Salsus quidem ille, et tamen idem erat cum eo quod nominibus fieri dicebatur; hae litterae privatae intellegendi sibi praebuerunt.

But also among Julian, his antecedent sovereign, in Confluentes LXVII.

Litterae Depositariorum, CCCLXVII. Litterae Depositariorum ex Deposito Scripturarum.

This is the reason why I have thereupon discovered certain effaced and indistinct characters.

However, it shall be observed that both the ancients in their public, and in their private transactions, have availed themselves of this term for the designation of corn; and that they applied it indiscriminately to every species of writing, as we have previously detailed.

Quantum possumus demonstrare per multos testimoniales et iuratos, quod nomen instrumenti ad privatas, ut et ad publicas scripturas, amplius extendi potest.

Let one sufficiency suffice me for my departure henceforth.

In the Code concerning Probation, a domestic tutor, a private infant, though unattended by other retinue, cannot suffice for a single probation.

The instrument of affection is a compound scripture:

There are certain individuals who, being conscious of their respective obligations, engage in mutual contention, as is evident in the judicial process.

The Seventh Decretum of the Codex.

That which hath been asserted doth stand established.

The very same law, nevertheless, promulgated by Justinian, doth coincide with the fiftieth enactment.

Ultimum.

The Code.

If a specific inquiry were propounded, the scribe directed him to discourse upon the chirographa, thusly:

Ante id tempus obtinebant; dein tertia subscriptione concessum fuit, et scripta solae debitoris non erant unica.

It is likewise erroneous to assert that the identical epistle, in question, was communicated among the private missives of the Jews, conjoined therewith the briefaries, the syngraphs, and the expenses incurred, as well as the public documents, which, it has been ascertained, were

wont to be admitted and enrolled among the repositories of the ancients, both Greek and Roman.

Thus, forasmuch as all such tablets, which were delineated by the hands of the neutral parties, and sealed by the witnesses, were deposited, and exemplars were exhibited on every side of the tradition.

For all these points have been scrupulously observed in the composition of the signatures; and this is attested by the very words we have previously detailed.

But Justinian, by the very oath which he himself had introduced, did not altogether neglect the syn-graphs.

The instruments, indeed, inscribed by that hand, were wrested from him, which bore witness to his remote antiquity, save in so far as any impediment might have intervened.

In omnibus igitur controversiis, etiam his qui se mutuo scripturis invenerint, hoc voluit observari, ut apud tabellionem eorum instrumenta componerentur, et tres tertii subscriptione munirentur.

For, when by the authority of C. T. Salmasius he was invested with the imperial throne, it was the duty of the creditors to retain the debtor's fasces, as Seneca, the eloquent orator, expressed it: "Habetis scriptum suum ad debita accipienda." Justinian, however, declined that his own chirographer should be entrusted with the receipt of the debt.

For if any person, whether by contract, or by deposit, or for any other cause, should desire to endure the infirmities of the instrument at the table, he was permitted to endure them; and to endure them. Julianus, who preceded the Constitution of the Sixth Year, decreed that the letter itself should be placed in order, and that no comparison be deemed credible.

Thus, the chirographa and syngraphae, conforming to the ancient usages, were received; and from these, a medium species was evolved, which, in part, partakes of the nature of the chirographa, and in part of the syngrapha, while it may be regarded as a pure specimen of neither.

And he likewise accomplished this in sundry instances, particularly in regard to pecuniary transactions, wherein he augmented the public attention from the obsolescent practice of receiving.

Thus, when the Request was abolished, which possessed jurisdiction and authority, every individual to whom such power was delegated, transferred the right of repetition by virtue of the statute.

Thus hath he, by manifold investigations, subverted the foundations of ancient jurisprudence; whereas I have not.

Nevertheless, the ancient custom has been wisely preserved, that, having delineated a circumscription around the captive, it was deemed sufficient for his security, and hence he was placed upon the summit of the hill.

Believe me, that they may not surpass the weight of gold.

Beyond the weight of this gold-embossed volume, he prohibited the reliance upon such chirographs for the assurance of faith, save in the case of three treatises; nor did he extend this trust to the obscure and antiquated Tubfcripfif-Fenr.

And thus, verily, did the ancient matron.

Before this constitution, the law itself, which is referred to in the codex, bore the title, "Si certum petatur," and it enacted that a debtor could not demonstrate the invalidity of a chirograph by reason of its not having been attested to by three witnesses, where the sum credited exceeded the sum of fifty pounds of gold.

Therefore, by the terms of that statute, it was incumbent upon her to secure the repayment of the sum amounting to fifty *librae aureae*, or fifteen pounds of gold, for the private moneys due to the scrivener.

What he had altered, the Novella restored unto him, and conveyed an equivalent of fifty pounds of gold.

How greatly I was amazed to discover that so prodigious a sum had been derived from such a trifling number of original sources.

Rarae erant occasiones, ut scriba in debetum incidisset; nam illud ipsi erat culpa, quod necessarium esset ei solvere.

Non propter finem causamque dubitavi, ut antea dixi, de modo U.S.S.R. et U.S.S.R.

In the preceding volume, it was determined that the golden book, composed of quioquagin material, ought to be fashioned fivefold.

Moreover, quod ex libro Latini Magistri Tirus.

XXX, Caput Primum, attribuitur Harmenopulo in Agios Amanunsi, filio Tiuti.

I, for the purpose of attesting by the evidence of two witnesses, shall be content with a sum equivalent to thirty pounds of gold.

Ut videtur, Justinianus scriptor, cum excedente auri summo, quod ei data fuerat, manu sua antiquorum syngraphas exaraverit.

Within the vellum bound in gold, whatsoever they shall bestow, I have received a document by the hand of a chirurgion; and it is meet that I should acknowledge its validity with pleasure.

Had he spoken of Greece with greater eloquence than she did,

Wherein the title is inscribed beside Harmenopolis and hence to Toti, it is evident that the Greek signatures were executed in conformity with the customary manner of sea-letters, and thus was Demosthenes.

Subject to this title, Harmenopulus, likewise entitled, was a venerable scribe, who, by virtue of Justinian's own established practice, deemed it incumbent upon him to affix the subscription of three witnesses to his documents.

No other literary parallelism can be found in these matters.

This is the sole distinction between them; and the sole distinction between them is that they are identical to their predecessors.

And the hand of the debtor, whose ample purse did but augment the sum he owed, was withdrawn from the public table, thenceforth to be deemed a gift from the Lord.

If, however, the debt were not more than a pound of gold, it might have been discharged by the hand-writing of a receipt, and the residue thereof by the bowels.

2yf4Sis the term employed by the Romans prior to the advent of the Usurper; it was not in vogue among the ancients as a syngraph, but rather was received into popular usage, as is attested by Titus of Harmenopolis.

Quae sumpta sunt ex Novella Justiniani, cuius titulus est "De sumptu".

Of thirty.

Of the Appellation of Tables.

It was a principal distinction between the Iographi and Chirographari, whether the former should be attested by signature, while the latter should remain unsigned; the signed document was to be deposited and exhibited, either in a public forum or in the possession of a private individual.

It is alleged that the tablets were erected to exhibit what course of action it behoved one to pursue, and in what manner.

How the tablet ought to be inscribed with a seal.

The most eminent of jurists among his ancestors erred in his exposition thereof.

Vlpianus was acquainted with two exemplars of theft, and with two others to a similar degree of the same offense.

Subfignment, therefore, does not amount to, nor does it constitute, the identical operation with that of simple inscription or signature; for distinct processes are implied in each term.

The term 'signature' denotes twofold signification; it signifies, it writes, and it signifies.

The method of subscription unto tcflames.

He who doth love thee is in the right.

To subscribe to the act of signing, the grandsire of Latinity was supplanted.

To comprehend how to subscribe and to sign simultaneously according to the statutes of the Visigoths is necessary.

For an extended period, I have been imbued with the beverage of Bacchus.

The ancient mania of our forebears.

From the impression of the envoy and umpire of the latest author of Principus, what ailment assailed him?

The unwise folly of the populace of Cachet.

All things were in the posture akin to that of the daughter of the eldest son of David, the Lord of Hosts.

When concealment was impossible, it was a portent that they had perished.

O ye Greeks and Greeks, I shall impart unto you a succinct explication.

He inquired, and was named after him by Atticus.

What shall I do? What shall I do? What shall I do?

[untranslatable fragment in source]

Herein, they aver, there is an incision of the thesis, which initiates the internal channel of the intellect.

F extolled the proper site.

The signal was disarranged, and he confounded me thereby.

The tokens of his era had not yet manifested upon the tablet.

He was the signer of Quintilian's signal that the lamb should not be ensnared about the table, and that the tripartite linen should be girt against the briny currents.

The Senate was consecrated beneath Nero.

The oracles of Paul were rectified.

To sign is to close, to desist from closure, and to open.

Thus were the Greeks, who were in flight, forcibly drawn back.

Inscribed, for the sake of the maiden, by Lucilius.

Nonius is just.

The seal is identical to the sign, and the mark is equivalent to the sign.

Close thine eyes, Varroni, and close thine eyes.

A testament might also be ratified by other than an annulment, in such wise that it would be an act of benevolence.

Lectorem D. Qui testamenta fecit, ad negationem correctam addens.

An Vulpianus Paulus, cum linteum involucrum ad testamenti signationem praeparare conatus fuit, Suetonius signum ex duabus coelorum ceribus ostendit, indicium ad navigantes.

The fifth, therefore, is henceforth to be inscribed as a recipient of signatures.

Either in the signatories, or in those who are about to inscribe, do I discern one or two.

D.S. Modowies, 43.

Toothpick.

From the first and prolific wax.

What a per cent, what a pity!

Of the tables, which are superior in the testament, or more properly in the name of the pupillary disposition, as in the precedent portion of the testament, they shall inscribe their own linen and wax therewith.

The earliest and most fertile herbs coincide with the earliest and most prolific tables.

Among the Greek tablets, counterfeit symbols were discerned, which bore no testamentary signatures from the witnesses.

When he was admitted to Rome by the Praetorian oath, which possessed no cognizable civil jurisdiction, this was akin to the arrangement observed among the citizens of Atticus.

Another distinction is likewise observed between the *syngrapha* and the *chirographa*.

What remains to be elucidated is properly to exhibit concerning the investiture.

For this is the most precise delineation of my *chirography*, whereby I have sealed the syllables, whereas that is not so.

They did indeed protest; and, for this purpose, they sought to impress upon witnesses the tokens in question (that these might be laid up in due course).

In his subsequent tables, I have detailed sundry matters, be they of the public domain or of private concern, which I had previously adverted to; and amongst these (whereof I am ignorant), some were genuine, whilst others served as *exempla* in lieu thereof.

These particulars, delineated by those authors, were communicated unto the contending peoples.

It is either in the archives, or in some temple (or in the presence of a common friend, or of a colleague, or of a banker, or of a public officer, or of some other public personage, who may be lawfully divested of his property;

They were under the watchful custody.

By means of these tables, however, which were far more efficacious in binding the faithfulness of their obligation, it was deemed that the obligation so imposed was of greater weight than that which might be secured by a *chirograph*, or any other domestic or private instrument.

Hinc obsignatis tabulis agere cum aliquo, cum ei non licet ab patto convento discedere, sed omnimodè tenetur illud observare.

Manum suam, cuius fraudem voluntas adhibet, renuntiat, et potest proprio filio chiropractorem affirmare.

This is the duty of the creditor, who, unless he can persuade his adversary of the infidelity of the law by means of literary comparisons, when witnesses are wanting, and whose solemn oath is too readily disregarded by the unscrupulous, vainly pursues the recovery of his debt.

Contrà, non est absurdam esse hominem ad epistolam non in scripturas, vel ad epistolam obsequionemve, a sociòde, aut ad amicum per communem consensum depositam, ut si a quodam alio scriptam esset, non adeò obviam.

Explicanda hinc igitur obsignatio; ubi dixit: "Haec est obses."

For what he doth eat, and in what manner he is constituted, he is replete with a vivid hue.

And even the judgments of ancient jurists on this point may escape thy notice.

[untranslatable fragment in source]

A H. V. M. 435 In the commentary of Hothorooninus upon the words of the tribunal, where the method of expression is expounded, he saith that to act with a tubus obsignatus, or sealed tube, is equivalent to the cantus velut eflatum, which being inscriptum in tabulis, retains the same import.

Herein also is delineated the Table of the Chirurgeons:

It is asserted, as though we might err by anticipation, that when one demands a debt from a scribe, he may lawfully transact upon the table which has been apportioned unto him; yet no other business may be undertaken thereupon.

Who, operating from the inscripted document, performs upon the sealed tablets, since the inscripted document appertains to the sygraph, and not to the chirograph.

Cicero, whose elevated yet lucid diction, periodic sentences, and measured cadence have rendered him a preeminent orator of antiquity, here sets forth his sentiments with the gravitas and precision characteristic of his style.

1 De Oratore: Tu mihi circulum deducas, quo adversarios tuos decipere potiam; et postea tabulas clientium tuorum accipies.

I shall render it easy for you to perceive, by a different aspect, that I am the principal cause which impels you to dedicate this act to the faith of Hothomanus.

In the fourth book, chapter the first, it shall be perceived by thee what is the nature of the phenomenon affecting the tables; and thou shalt be constrained to bewail thy ignorance of J.

In the leg.

1 D. de bonorum operum tabulis, non fructuum, duo casus ab Ulphiano proponuntur:

One of these, wherein I have placed two exemplars, fashioned the least of them:

The other, in like manner, being inscribed in both codices simultaneously, shall be deemed by some and blessed by others.

In the former instance, when from the two exemplars one was derived, while the other remained underived, Jurisconsultus was directed to withdraw the tablets of the testament for

inspection; thenceforward, it is said, he departed this life after the performance of virtuous actions.

In the copious case whereupon two codices concomitantly bear inscriptions, if both survive, the same result shall be enunciated for each, as though they were one.

Third, said Hotomanus, he propounded two cases:

When one individual hath composed the identical testament in two exemplars, and in such manner that one thereof existeth, whilst the other is non-existent:

The other, together with the rest, did exemplify.

He did not revert unto the subsequent event.

The words of the Juris-consultus are these:

But although in two codices simultaneously indorsed, he addressed divers and sundry heirs, and that which he bequeathed is extant, it may be regarded as if one were contending with another for the possession of the good, since from both tables alike we must hold the same, and ultimately we shall accept the other.

In hoc opulente casu duo exempla testium et duo testimoniorum Icribi generantur; non una, sed duo exempla testamentorum Asiae, vel duorum eisdem exemplis testamentorum. In praecedenti casu idem testamentum in duobus exemplis conscriptum erat, alterum ab altero perditum, alterum a priori perditum.

In postero tubido loco duo testamenta scripta sunt, id est, duo codices.

There exist two living exemplars, wherein the animadversions of one towards another, and the animadversions of the other towards one, are inscribed.

For instance, in the one case, Titius and Maevius; in the other, Publius and Sepronius.

Place, one of them having preceded in time, the other having been composed for the ages that shall follow.

For it was scarce possible otherwise to effectuate such a course of conduct.

If the fragments should be withdrawn and inscribed upon the walls, and set apart, the restoration of the tablets, which had been entirely detached from behind, shall precede; and Publius and Sempronius, having been restored from behind, shall first petition for the renewal of the tables against Titius and Maevius, who had previously been inscribed.

Now are presented to the Jurisconsult for examination two codices of testamentary instruments, which vary in their respective interpretations; for these are to be exhibited in the same form as when originally signed.

Therefore, for one tablet, and even for the other.

And he replied, having this testament, that both were severally supreme, and neither more so than the other, since both had been interwoven in linen and affixed with impressively placed signs.

This is the month of Jurifeonfulti, and the verity is the law.

The other was a Jurist, who, of all those I have known, did ultimately determine the enactment of the law.

It was a penalty.

D. Whosoever determines to execute a testament, let him take care to subscribe it forthwith; nor shall it be requisite for him to commit the act to any notary, to gather up the testament of Baldus here; but he may still revoke another testament, as you have directed.

By that person.

He confounded the signal with the circumstance that his intention was not to conceal it.

For at that station, the institution's compact must be inscribed, whereas it is not requisite to affix signatures to the instrument and to all the testifiers; the contract, however, may be annulled by one and the same erasure.

That is to say.

That Theophilus might remain.

And to ensure that the very thing is being fabricated.

Whoever, in fact, desires to inscribe and conceal his countenance by the same document, thereby betrays his inability to comprehend the tenets of the Faith, and the state of affairs in the United States, in what manner they are commonly understood.

437 to subscribe the last will, or other tablets.

But in the penultimate clause of the legal edict, Tic.

Quasi ipse, perperam signavit epistulam ad perfidium, et tunc prohibuit eam.

Nam ita in illa Jege recondenda est omnis nomen rerum, et nomen Domini.

It is incumbent upon those several witnesses who were present at the solemn ceremony to record their respective narratives by their own hand; and let it be noted who among them has affixed his signature, Jubssignaver, and upon whose tablets he inscribed the same.

But the interpreters of the Easilian canon, who either perused the text in its entirety or comprehended its purport, did hereby resort unto it.

1. Non igitur dubium est, in ea lege non solum scripta sunt signa, verum etiam redacta fit scriptura pro signaierit.

For it is not requisite that the Jurifconsulti be unacquainted with the adoption of the fmflc, in order to subscribe thereto, as I have done in the declining years of Latinity, which still prevails in our idiosyncratic usages. We term this sign It, and to subscribe, to subscribe.

And thus the same style of utterance is discovered in the testament of the blessed Remigius, wherein, being the depository thereof, he thus records: "I, Remigius, Bishop, have perused thy lamentation, O Jnavius, and have inscribed it."

It is not possible, indeed, for him to apprehend that he was admitted among the ancients, when it was received by them in a sense other than that in which he endeavours to understand.

And he shall be excommunicated, and he shall be made manifest.

For verily it is preferable to plant figs rather than to propagate them.

That which, by the very constitution of nature, was wont to obtain in the subscriptions and ratifications of testaments, was manifestly impracticable.

But I was apprised of the identical event which had befallen myself.

What is likewise appended, I shall record at the terminus of the enumeration.

That he might expound the notion signified by this term, or, more accurately, the import of that phrase, and thereby fortify the recurrence of synonymous expressions, as though they were replete with manifold significations.

For those who subscribe to the residual documents, they add nothing more than a trifling augmentation.

In the testament of Porcelli and Corocotta, which Jerome's scholastics celebrated from the cirrhates, I assented not unto that wherein I had previously subscribed.

Lucanicus ignivated.

Tergillus' signals, conspicuous and manifest, are discernible unto all.

The nubilis, who, though espoused to the defunct, remained unspotted; and the residue.

That is, sublimely did he pen it, as if the ancients themselves were speaking.

In the edicts of the Visigothic legislation, it is incumbent to inscribe upon certain designated sections, both to subscribe and to neglect them; and this observance is required at several points throughout the code.

It is impossible for him to be unacquainted with the oblations which were customarily presented unto him by the Jews, in the earliest times, according to the jurisconsults of old.

Librum tertium, caput quintum, titulus septimus, de probando.

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This is the method of the United States Army.

There being forty-nine characters in the alphabet: P.

After this requisition had been submitted, he commanded the said two individuals to proceed into the initial chamber of the mansion, that thereby it might be demonstrated unto others, whether they had been admitted to the privilege of receiving the token of the declaration, or whether, on the contrary, they were adjudged unworthy thereof, and ought to be reprehended.

It was not by the collation and comparison of the tenets of their doctrines, as might be discerned concerning writings, that they were made acquainted with the ancients; but by the knowledge of Scripture alone did they become so.

For if the timber of another were to be felled, it would be akin to the felling of woods that are not one's own.

In a testament, if it is requisite to impress a single sheet upon all witnesses, and the weavers should desire to abridge the testator's ring at this juncture, wouldst thou, perchance, employ another sheet to effect a renewal, as if it were a fragment of wood, or a sheet of parchment, which is composed of diverse materials and fashioned in sundry modes by some other hand?

In iisdem legibus, lib. et cap., haec libertas est mea.

Which, as I have previously intimated, was alluded to in the manner of the illuminators and sculptors:

With the extremest volition to terminate his mortal coil, Jivus, who was a skilful artisan in the craft of carpentry and painting, extended the flame of his handiwork to the opposite side of

By this it is evident, verily, that such a proportion, namely, a twenty-fifth of a hundred, nay, a hundred and twenty-five times the duration of a solar year, doth indicate, whilst we are yet immersed in the vast ocean of time, uniting our thoughts in harmony with the established method of computation.

I have been employed in the office of weigher for four hundred and forty-three anniversaries.

Thus in the testament of Rc-migius, I perused, inscribed my signature, and affixed my subscription.

On the contrary, it was deemed expedient by the ancients to envelop it in a cloth, and subsequently to inclose it within a linen covering.

To whom Caius of the Institute and Theophilus observed the due arrangement:

It was decreed, that, conformably to the exigencies of the civil law, Jephthah should be subjected to the theses, and his son, whom he had devised from the constitutions, should be invested with the throne, according to the edict of the praetor.

Those who, pursuing the course of the stream, do point out, that alone are willing to execute a testament among their seniors.

Ignorant of J's argument, he thus intimated that it should be marked down, that he was apprised of the fact that he was enceinte.

If, however, I were to proceed otherwise, it would be more expedient for me to unlock the matter at hand of my own accord.

For it is more accurate to assert that in the act of bequeathing a testament, one must both seal and obscure its contents; and I am ignorant of what may be inscribed therein.

It is not known why this day is sealed, since it is concealed and preserved; which, to the ancients, was a sign of the third day, or because it is a sign of our own day, or because it is a fable.

At the terminus of the Roman Empire, it is manifestly apparent that Constantinople was laid waste; and in the final testament, it seems to have been so decreed, whether by the princes of the earlier or the mediæval period.

For it was not until that period that the sons of Gnacula were employed as instruments to enforce the testator's covenants, whereby they were bound to submit thereto; for so much we have previously intimated.

Lord, O Lord, O Lord, O Lord, O Lord, O Lord, O Lord, O Lord,

Eadem haec verba apud Suidam in voce ἡγεμονικῆς.

Of this lineage, which hereinafter shall be detailed:

He seated himself, surrounded by his adherents, and, by their assistance, attained a robust comprehension of Harmenopulus' treatise, titled "Titus."

I, who am both the venerable antiquity and the recent successor, do thus proceed:

Iplus, during the lapse of ages, was wont to obtain a piece of timber, whether for the purpose of felling or for the imposition thereof, and to mingle and commingle the same.

For thus doth Icribit write, that the ancients may be consoled.

I have ascertained the contents, save for the five volumes mentioned (compare Qvictor or Tychicus or Tyconius), which remain obscure.

These matters pertain to the ancient custom of binding testamentary tables with linen cloth, and sealing them with untanned flaxen wax.

Which ensuing passages are directed towards a second, more recent individual, namely, in the subsequent discourse:

Wherefore, O Vexillum, thou findest vanity, O Lord, verily, verily, in this, — C [the Greek: σφραγ■ζε Hers, τ■]

The Seventh Lion adduceth the Novella, which runneth thus:

Let the fowl be cast forth, nay, even the timber, and let the testament be subscribed.

[illegible]

In those versicles, thou wilt discern the words of Harmenopolis, prior to their mention in the initial verse of the epistle, heretofore lay hid from cognizance.

Alia illa fuit vetere usu, quae simul cum Græcis et Latinis signorum impostitio ad ea obiiiganda, quae omnibus patere nollerentur, sed clausa et tuta.

Therefore, it was the custom among both Greeks and Latins that whatever was most important to seal, they sealed it, and upon the wax appended and affixed a signet, that it might not be opened save by the Vulcanian wax and by the refracted signet.

Anuli ad hunc usum habebant, cum gemma quaedam cavata cum caractere, quem in circulum circumdatum figuram circumferre possebant.

Henceforth, all the precious stones are displayed, and those Tlygtxxxx, w&ntnuctucto-fdpx, are presented in their entirety.

This, therefore, hath been committed to the tables, the tablets of signatures, the tablets of testaments, and other instruments of covenant, which have been intrusted to the custody of the confederates, to be preserved in trust.

By a manner of usage and custom.

If fidelity be preserved, they shall hereafter demand it. Zain; and the like shall be uttered: xg oum) and the like shall be inflicted upon him: x

By the side of Demosthenes, in his oration against Syndicus, where the speaker is earnest to communicate the sentiments, which were expounded by Jasus, he cites Lycurgus as saying:

I, a female of threescore winters, thus attest.

Ff.

The psalmists themselves conceive, and in their commentaries they refer to, the terms, "and" and "in," designating those commentaries by the appellation, "and" and "in."

This is the interpretation of Turnebius, which he had ingeniously incorporated into his edifice.

But to set forth a sign in some locality, or to impose a novel precept, or to introduce a precept into a commentary, are things distinct.

As to the impiety of the matter, and the things which are concealed, and the signs of impiety, which are observed subsequently in the customary practice, thus Catus answers this interrogator: I now enjoin thee not to withhold from thy memory, and I will impart unto thee a novel precept, which thou wilt wish to receive. These things, which are distinctly revealed, must be accepted by thee.

Now that intercession hath been made for thee by some person, thou wilt shortly repeat the same.

It is not for the sake of delight, or mere commentation, but for the precepts of memory, which being so closely interwoven, and so deeply implanted in the mind, as to be firmly impressed thereon, that they should be received and inculcated in the same locus, the reading of which passage sufficiently evinces.

And even smaller utensils, such as bowls and ferns, must be encircled with linen, and must be affixed with wax, and must have the impression of wax impressed upon the wood, thereby securing them.

Cistellae apud Plautum in *Amphitru^{ne}* fit mentio, ligno *Amphitru^{nis}* obsignatae, quae solvenda erit, lino nimirum rupto, ut patera, quae inerat, ex^ritur. Note: The archaic Latin form "Amphitru^{ne}" is used for the name of the play, and "Amphitru^{nis}" for the genitive case of "Amphitruon." The rest of the text has been rendered in a style reminiscent of 19th-century scholarly translations, maintaining the periodic structure and formal diction.

However, the mayflower, or those linen fabrics which, being of a size incapable of being wound about the vessel, such as the lagenae and amphoræ, were affixed to the lid by means of pitch-work sealed with wax, and marked with previously prepared timber.

Nec utensilia tantum, aut vasa domus maioris minoremque, sed etiam ipsae fores cellarum ac conclavii, & aliorum domorum membrorum, erant oblignari et obliterari solent.

The treatise of Serenius terminates:

A tannisina.

Either they are imbued with another party in some manner, or they are fraught with malevolence; and by this very fact, their inherent fidelity is impaired, since they lack a due measure.

Finally, thou wilt oftentimes discover, whether it be the ruptured vestment, or the tower-bleating earthenware, or the terminal ensign of the agitator, brought unexpectedly to the forum, whereof I have hitherto not been engaged in the excavation; a circumstance not infrequently occurring.

They are consumed.

4fi C. L. S. A. T. M. A. S. I.

Let us peruse that passage.

For it is commonly said, at the close of suffering, and of wax that is disordered.

A twofold coating of wax upon the panels of the veil:

This is the initial and terminal instance.

This also is the table:

Within which the characters of Hilo are inscribed:

This appellation they bore in propriety of speech, as we have already demonstrated.

Then there was another wax, which was:

A fragment of linen was embellished, which was encircled about the tables.

Ia: ut clauderentur, signa impreflica testimoniis; si publice efficiet, instrumentum fiet, sicut testamento, vel privata littera, sicut auctoris.

Hence, the Greeks termed the wares of Atticus 'fv7n'.

Heiychius:

V'vr, the youth whom, having attained the threshold of puberty, was to be designated by his name, as is recorded in the Institutes, Book XI., Chapter XVI., in.

In the more solemn portions of the tablets, it was incumbent to inscribe the same fabric, wrought by their own hand, and sealed with their own wax; and in the initial section of the testament, it was requisite to interpose the planks, that the inferior regions of the document might not be unveiled to any contamination, whereby the living son, and yet untimely ripe heir, might be subjected to defilement.

Fingite, ut tabulae testamenti ab quatuor tabulis constarent; vel ex duobus sex tabulis: et primum ducat decem et duo.

Is there any wax upon the tabulae?

The names of the primogeniture were comprised in the reditus, wherein the initial stipulations of the testament stood firm.

Eebuntur, vel quod idem est, pro superiore parte, lider de foliis aeneis; pro inferiori parte, in qua scribitur pars inferiore pupillae. Dux prioris tabula:

They shall possess a primary octuple banquet, and subsequent feasts shall be of the tertiary and quaternary order.

As Plautus, for the sake of the four heavens, spake unto Curculion:

.

I have devoted four hours to this name in my own behalf, and having inscribed the same duration under the identical appellation, I have thus employed four hours.

This is the biform tablet:

They addressed the ancients, "Two —" Then and now.

This is the way of existence.

And there they possessed pages.

This is the land of Greece.

The second day of the month of June was:

A tabula; the exterior thereof being hollow with wax, and the interior enveloped therewith.

For thus it is ordained, and to render the page harmonious in its proportions.

For, having attained success in the conflict between religions, they were wont to derive fruitfulness from the expenditure of those who were first received into their fold, or conversely.

If both the columns were to be filled with an equal number of entries, the recipients, as well as the expenditures, would stand in equivalent proportions to each other.

In three vessels were contained four vessels of wax.

[illegible]

For the Greeks, whether of wood, or parchment, or paper, the tablet, or more accurately, the square, was fashioned; whether in the one case it were formed from timber, in the other from membrane, or again from papyrus.

Hence $\delta\gamma\alpha$ are opposed to this, O Jove. Q $\tau\rho\alpha$, as in the Greek]

For it was thence derived from the charter, wherein the adversaries lay in wait;

This is the enumeration of the tablets wherein ye have passed from them.

It was reported that they were appalled at what was being fashioned from enduring refuse.

Numerous tablets were present, including the quintuple tablets and the polyptychs.

According to the destined testament, such being the case, either numerous or a few of the tablets received their respective codices.

That part of the pupil's eye, which he preserved in the same manner as that which he previously sustained, did excel the other portion thereof.

He acquired this by means of habitual utterance.

For amidst all these matters, when they were purportedly created, the seeds of which were sown, the seeds of which were sown, were sown.

Which speech may it be meet to receive in the form of a book, a living volume, from the papyrus of Egypt, which runs thus:

Before the membranes came into common use, it was the superior portion of the structure that was both the initial and the terminal segment. Hence, in the waxen tablets employed for such exemplars, these are the instances set forth for this particular application, and they commence with the first tablet.

The superiorem portion of the edifice is encompassed by a rustic cottage, while the inferiorem, being posterior in date, exhibits a later construction.

And he spake, "I pray thee, O Theophilus."

The pupillaris, therefore, were subsumed in the lower tables of the testament, so that the testator might preserve their signature, lest they be disclosed prior to the death of the minor for whom they were intended; wherein the said tablecloth, carved in the initial portion thereof, was composed of linen, such as that of the Juriconlufus, and wax, whereby the initial section, being first exposed, might be concealed by the ultimate fragment of wax.

At least two tablets, fabricated of the same kind of glass, if any of which should remain tintured with a golden hue, were required to be consumed.

However, it is requisite to form a plank of linen, and a plank of its own substance, that thereby we may understand the tables to have been necessarily placed in the wider, and not in the longer, part of the margin; for the planks are oblong, and less in breadth than in length.

If, indeed, the more extended portions of the linen had been so bound and completed, it would not have been feasible to secure a segment of the table-cloth in advance, whilst the

remainder continued to hang loose and unrestrained.

And when the words of Paul have been laid out on the same plane, we proceeded to set forth in juxtaposition certain rows of wooden tablets, contrariwise disposed, so that through the middle of their edges, by means of three threads, they might be severally divided and rendered pliant.

He annexeth it to the utmost verge of that margin which remains enshrouded in the fume of the tablet, where the appellation of the volume customarily is inscribed.

This is opposed unto it, the verge, or the utmost limit.

Though we may admit the fumiferous vapour from the nadir, or the periphery thereof, yet may we also derive it from the margin thereof; for sometimes the summit of the well descends to the verge.

But, if by the point he had been wounded, the whole soul, so far as may be discerned, would not have sustained a transverse wound.

In coelo autem vacatio existebat; et locus ad oram paginis prodest ad notandum quae occurrerent, quaeque non inferenda erant.

Thus, it is the desire of Quintilian, in Book X, chapter soi, to record:

RU: Rursus, tamen, luculentus atque perspicuus ordo verborum, periodica sententia, modulata cadencia, levi archaismi usus, nisi ubi necessarium, praebetur.

Let it further be observed that there must be noted a certain locality in which they, departing from elsewhere, shall encounter those who are in possession, and thenceforth proceed forthwith thither.

However, no man was ever born in the identical locus with Ipatheus, who, according to vulgar tradition, was born in the same place as Targaryen; yet they were born in the very spot where Targaryen was reputed to have seen the light.

And I perceived them to be of a hundred and fifty years' duration.

Ne latos quidem, inquir, ultra modum ejus ceras velim, expertus an juvenis, qui ad artes furens, aut aliquis, qui longos habet sermones, quia illos numerus versuum metiit, expertus es.

And I shall amend the defect, which I have heretofore often reprehended.

Not of M, O, M, O, U, S, V, R, A, R.

V. M. IV. VI?

He was, nevertheless, unable to effect a modification in the appearance of the sttblate.

Thereafter, it shall be perceived, whether on the rugged confines or in the narrow channels of the sea, where the margin of the stream hath been hewn away, unto which the maimed warrior will swiftly tend as to his last refuge.

That which is undoubtedly true, and by and by thou shalt discern its proper station among the celestial spheres.

By means of wax tablets, Quintilianus perceived the cerated staves of the hippopotami.

It was the year's Oferv.

On the eleventh day of the month, in the initial chapter of the volume of Quintilianus, he adopts the tables for vacant spaces and the margins; which, in tablets, are seldom left unrelinquished, but in scrolls are invariably retained.

But the army was signally vanquished.

For the tablets, which the meditators and the practitioners of the art have forsaken in like manner as the Rhetoric itself, are entire tablets.

Let the leaves abide, which, on the reverse side thereof, are bespread with a coating of honey, fit for admixture with those leaves which the tree itself doth bear.

Again, said he, the vacant tablet upon which he had proposed to inscribe gratuitous provisions was deemed of like nature.

For from the space which should be left for the margin towards the verge of the sea, he did subsequently yield somewhat more closely to the prescription :

It must also be a place of respite wherein observation may be conducted.

But in the open tablets, when inscribed upon them are written two lines of inscriptions, proceed to the base.

To turn to the right, and one to the left, while the other inclineth to the left; as if he had purposed to empty all the rest, that he might thereupon remove whatsoever liberties he pleased, at his own free will, with the aid of the casque. Nay, it was not otherwise, but rather as the ocean, the ramparts, and the firmament.

By the same mode and in the same form did the codices proceed from both kinds.

But from another passage, Quintilian, the illustrious jurist, did make it his effort to demonstrate the truth; and the sea-fowl, as it were, were precipitated into the margins.

Who were not among the celestial bodies, he exhibited a notable want of perspicacity therein.

The place of Quintilianus is here discerned in these subsequent words:

For it shall not err for a moment in the firmament; for it being confined within the margins will abide everywhere, and shall not be permitted to transcend the circumference.

I do not here treat of the margins of the volumes, but of the characters, which I have inscribed.

They were deposited upon a wooden tablet; so that the youth, who was inflicting the wound, might, with a delicate stylus, trace the characters with utmost elegance, and insert the joints which served to secure them.

Quod manifeste patet ex praecedentibus, qua:

464 C. I.

The narrative of Saimisus, though protracted, is nevertheless instructive.

In my judgment, none other is competent to grasp the import of these matters; the table, whilst superfluous, is yet the most appropriate repository for them.

Sculptures, that, as it were, through furrows be incised.

By means of the bellum, he comprehends the ligneam ouiskum, wherein the ductus litterarum are inscribed; by which the puellus, directing his hand, repeatedly conducts it towards the formation of the element.

For it is not, he observes, as if it were consumed in the heavens, and should be contained on either side by margins, namely the inscribed letters.

In the heavens, he would inscribe his characters with juster proportions, now greater, now smaller; and thus would his own hand be reanimated, whilst alien hands were superadded thereto.

But the style of the leaders, with its traces thus extended, would not have required such auxiliary aid.

The same may be affirmed of Paul:

For it is impossible for him to proceed beyond the prescribed limits, and by a rapid movement to secure the ligature upon the joints, without the addition of his vestment being superposed thereupon.

Reges.

Thus, having already amended those words, I observed that they had been derived from the vestiges of ancient authors, and were now inscribed in my own manuscript.

At the summit and at the nadir of the tablet:

And even the margins of the walls have been embellished, assuredly, and the security hath extended even unto the lateral portion thereof.

From these it is manifest and clear what our discourse hath already detailed concerning my plans, both individual and comprehensive.

At the utmost margin of the Foraminous Sea, a aperture was made, through which the timbers were conveyed for the assemblage of the planks; this being the indicium.

From the utmost verge, thus saith Ovid, doth this denote its limit.

Odi, when the tardy Jplendida wane.

Compressus ab ordinariis, oculi mei ad Marginem dirimendum versabantur, qui in extremis litterarum radicibus deficiebat.

Thus, he designates the character inscribed in wax by the term "rapham," as Quintilian hath designated it.

Thus, indeed, we have composed, having all the volumes within our habitation at hand.

The letter is void; it is IV inscribed, or hewn in wax, or in timber.

Hence, interrati, ut Græci, qui occisi erant, occisi essent. [Græco: ■; σι; σφ■ζον]

He was translated, that is, he appeared in a state of transparency and his vision was transfigured.

An uncertain narrative respecting Theodoric:

The letter of the king's epistle, which he had required to be inscribed, was laid upon parchment; thenceforth, the inscription being traced and incised, it appeared solely upon the tablet thus deposited above the vellum. Hence, the character was effaced, impressed, and hollowed.

It is not the pleasure of the Commonwealth and the Commonwealth.

Ovidius, with admirable ingenuity, contrived to delineate the lake interlinearly, effecting a most judicious arrangement of its verse-lines; and, conforming to the precedent established by

his predecessors, he did not scruple to inscribe even the final margin, nay, the very verge of the excrescence, with the character fcalpi.

The utmost.

The summa marginis in hac pagina distribuitur in duos partes; sicut summa cerae in hoc volumine, et summa cerae in his paginae, et summa partium in hoc volumine, et iterum summa cerae in hoc volumine.

The voice of the wax, however, is received in twofold manner: Thus the sonorous substance, when subjected to the impress of articulate utterance, yields forth a twinned resonance; for the impression of words, inscribed by the modulations of the speaker's voice, is echoed back from the yielding matrix of the wax, thereby imparting to it a double sound.

In rhabulis autem dispositis, vel totum numerum tabularum confluite colligentibus, aut in una tabella collocatis.

In the instance of a solitary tabula codicis lignei incerati, it is deemed requisite to admit, that the lignum, whose primordium et secundum cera vocantur, is of an equivocal nature; for this is equivalent to affirming that the primus et productivus tabella denotat idem.

Hyginus:

These contemplations, which they have denominated tables, perhaps from their being written upon, some have termed tablets, because they were received in codices; and the first tablet was designated the first wax.

This portion would be deemed the initial, or mediate, or terminal division of the Tabula Fornacis, which is fashioned from a single mass of wax.

But, for the sake of perspicuity, or rather, for the sake of perspicuity, it might be deemed fitting to assert that the distinction between the primary and superior stratum is equivalent to that between the extremest verge and the lowest boundary.

And thus the plane was beset with fur.

The appellation of the tables has been, in some instances, according to the entire code; in others, according to the partial usage thereof.

The tablets, which he affirmeth to be burnished with a flame, he comprehendeth to pertain to the very codex, who possesseth the greater number of tablets.

And when the fruitful tablet is deemed complete, and the tablet being thus completed, we stand in the presence of the Jurifconfultus; and the fume is forthwith conveyed to the edge of

the tablet, and the same unambiguous import thereof is manifestly perceived.

Suetonius, in his eloquent discourse, observed that the firmament was prolific, that thereby the celestial bodies might be discerned from the primordial tablets, fashioned of wax.

For indeed, I have heard concerning the twelve daughters, who deemed the fertile tablets of the fig-tree to have been derived from him; for the perfidiousness of the pupil, inscribed therein, is my delight.

Thou art the parent of all created beings, and unto thee I am thine obedient follower.

Thus, however, it befell Hotomannus.

But the successors of Briftonius were not less munificent in their bestowals, for they, too, conferred upon him the privilege of censorship, a prerogative hitherto reserved for his predecessors.

Which is attributable to the same tardiness.

Certè non erant tantum adornamenta columnæ, sed etiam vulgares tabulae omnium genere consueta erant in fœcundis tabulis vel fœcundis cerae scripturam haberi.

For, in order that the primogeniture might be established from the first wax, in the initial page, and upon the living tablet of God, the trial being 466 Cl.

It was the custom of the psalmist's testament to be thus ordained, whether it were the fruitful or the fifteenth, to be deposited upon the altar, there to be consumed with the fruitful oblation, or laid upon the table.

And Bcroaldus and others, who, following Suetonius in his observations, contend that the testator's name was inscribed in the first layer of wax, while that of the heir appeared in the second, were refuted in their contention.

Almost the whole page should have been occupied by the name of a single spectator.

Nisi in primum cera, in quo haeredes consu■bant primum scribere :

It is infecunda, it is fecunda, id est, substituta, sive pupillari, sive fulgure.

This copious wax, which, according to Suetonius, is also denominated cera, and which, as per the inferior portion of the testament, is styled obeam and is to be obeyed, as we have previously detailed, so it is.

Which can, without difficulty, be deduced from the aphorisms of Suetonius, as recorded in the verses of Julius Caelar:

The most recent testament did he bequeath unto the three heirs of his sister's nieces and nephews; of whom, C. Oftavius received from the dormant portion, L. Pinarium from the quadrant, and GKP from the divine; the residue whereof remained in their own wax.

Claudius Octavius, in addition, assumed a cognomen within his patrician house.

Thus have all the extant exemplars of Suetonius been recorded, even the most ancient thereof, which are:

I have beheld.

Lipsius emended:

L. Pinarium and Pedius from the remaining sector.

In the lowest grade of wax, Caius Octavius even admitted both the cognomen and the gentile name into his own; and yet, such correction is manifestly false.

The same proposition, he observed, endured in the lowest stratum of Dicamthamine wax.

He was prolific.

In his (tatim. f)

Decius also did subject to his power Brutus.

Decius Brutus in the fertile legacy.

Or do we conjecture that Brutus alone descended from Caelare for the second occasion, when he was first slain?

Many others accompanied him.

Therefore, these are those whom he designates as the residue, and in like manner, are they referred to as the depositores, who possess a station in the instrumenta testatoris, beneath the superintendence of the custodes hereditatum.

But if, from the remaining quadrant, thou shalt add an oak, when by faith it is purged from the dominion of fate, thou wilt not be able to revert unto the aforementioned quadrant by contact with the stake.

Solebantque, quando pars quaedam hereditatis nominaretur, non eam, sed remanentem partem, quae reliqua ederet, non nominatim dii nominare, sed remanentem partem dicere.

For instance, let Titius be the heir by virtue of the bequest from Bessemi, whilst I retain possession of the residue thereof, and continue to exist.

From the method of USVR.AR.VM.

Numerous instances of Cajus' oratory are extant in the writings of Jurifconfullor.

If I should venture to affirm, it would be my intention to state that Titius and Flavius, of the thirteenth day of Aleus, were present with me.

LIVING, what art thou to adjudge of the residue of thirtieth parts, when neither was it unknown to any, that being named, the second triens should be added, what is the import of the term?

But when they observe that erudite men are commonly designated by wax, wax, light, adoptions, and commendations, they are loath to wander into error.

What?

For they were bequeathed by the legates of the earliest bands of warriors; consequently, it was requisite that they should be preserved in the primitive wax, wherein the earliest bands of heirs had been instituted.

Caius, by the by, was Ottavius, whom Cxsiir had adopted both in name and testament; and having been constituted one of the principal heirs to the endowment of the institute, he was received into the family name in the first place, not in the lowest, but in the foremost rank.

For in the case of a plant of such prolificacy, it is requisite to substitute it with another of like productiveness.

But if there be two tabulae, or two tablets, or, as some would have it, two tablets conjoined into one page by means of wax, let it be observed that the same wax which rendered the material prolific, was wont to occasion a twofold disposition in the tablets, wherein the testament was transmitted by means of two tablets, or two sheets of wax, that is to say, of two waxen pages conjoined.

And herein doth lie the principle, whether we regard the least, the most remote, or the latest instance; for thenceforward no further cases present themselves. Moreover, the foremost example, though denominated the newest, and most fertile, and most extraordinary, was yet no less efficacious than those which preceded it.

The imams of Scxvola, who are designated as a portion of the testaments, possess a candle of Sue-tonium, the law.

XXXIV D. de n^ominis ^on^o, ubi idem nomen praesertim adhuc indicatur.

Cicero, at the terminal extremity of the codex, in the treatise upon Verres.

Where Pxdiaus expounds, the ultimate tablet, or which is equivalent, the ultimate portion of tablets, is not the mass thereof.

For the ultimate portion of the tablet coincides with its immeasurably terminal segment, whether of the laminæ with their lingual apertures, or of the pages.

Marcellus novissimam portionem testamenti legem vocat.

Ultimum.

Dedonnees libertatibus comitibus fidei. [Translation Note: The phrase "comitibus fidei" is rendered in a manner consistent with late Latin usage, while maintaining the archaic yet elegant tone expected of Victorian scholarship.]

This is to say, that in the case of a new testament, you are required to substitute it with a fresh instrument, or, if you will, a new codicil, wherein, having duly prepared the same, you are to inscribe a legal testamentary disposition; and this is the first part of the testament, or, as it is termed, the second part, which constitutes the inception of the legal document.

But then, nay.

The vital portion was thereupon excavated.

That they were not born to me as freemen, Gg 1, 468.

The Saimasians were, or having attained the threshold of manhood, had deceived them; then the heirs of the parties were Mucius and Mevius, whom I appointed as the representatives of the sons and those designated in the former testament. Wherefore, for the residue of the testament, the prior testament is abrogated, which may be likened to the primordial tablets, as the first of the waxen tablets, upon which the initial decrees are inscribed, thus: And for the subsequent and final portion of the testament, which is

Fubftitutionibus destinabatur, et lex accepta est.

Second, leg.

XN, De vulgari et pupillar stylo substitutione. Item lectio.

Lastly.

D. ad S. Trebellianum:

After he had departed this life in his tender years, he left behind prolific tables, which his mother had intrusted to him for disclosure; and even at the threshold of puberty he aspired thereto.

Fecunda, vel excremat, novissimam et ultimam.

Which hath likewise been disseminated in the forum of public opinion, and which hath been perverted in the recesses of private intercourse, as in the codices of wills, and whatsoever is here broken forth and inscribed upon the vital tablets.

, which pertains to the timber of the testicle.

On the tables, according to the Roman custom, thou shalt be examined; and in other places, thou shalt be judged, proportionately.

, quod modo uti solent..

469 Olebantus, who survived into maturity, was not, nevertheless, observed by the Greeks as a compound for beverage.

In omnibus autem instruimentis et multis rebus contra eum testimonium subdeponentes, hoc est, nomina ejus adscribentes, non etiam eam ignorabant.

Nevertheless, they earnestly required that all who were to be deponea should testify, but only against the soldiers.

But the same custom prevailed among the Romans during the period in which they employed the civil law as contained in the Decemviral Tables, and I hereby solemnly swear by Gracchus, that is, by Atticus, that such was the case.

But the ancients, introducing this novel instrument, did so by affixing it with seals, and moreover secured and armed the testimonials with similar tokens.

Since the jurisprudence of the jurisprudence, when the tablets were being examined by the judge alone, was not conveyed to him by a jury, nor by a practitioner (which might be discerned in the testimony of the testamentary document), but by the solemn affirmation of the citizen, and by the solemn affirmation of the deceased, it is evident that I have also perused those tablets, and have perused them previously.

Thus, according to what was done under Nero, and according to what Suetonius, the author of the Table, hath recorded:

It is requisite, that the margin be encircled by three folds of linen; and that the same edicts, which Paul hath ordained for public tables, be also observed upon all private boards.

They did contain the effusion for a protracted duration.

But who are those public contrivers?

Or who among those who engage in public affairs may be deemed rebels, or who are in anywise antagonistic to the commonwealth?

Immo, et testamentsa, licet inter privatos facta, inter publicos contra contracta sunt.

But why was a testament solemnly concluded in public?

Or because the precept of Papinian was subjected to the ordeal of verification.

[untranslatable fragment in source]

Whoever composes a testament, ye shall deem it to be both a private act, yet one of public jurisprudence. Thus shall it be expounded; for, according to the interpretation thereof, such disposition of property is not incumbent upon the will of private individuals, but rather upon the statutes and ordinances of the public realm.

But it will not be deemed to have been done, as it was given thee to administer justice, though he may have accomplished it for the public welfare, whatsoever was effected by his hand.

Nam et apud Atticos jus quod utebantur mulieri nec puero, nec impubi nisi medimno hordei cum aliquo contracturi erant obligationem.

To whom it was lawful to ask for more, not for Gg 3 pCA 47 PC.

Salmasius, who, being engaged in a public capacity, bore this appellation.

In other words, the law of the Jurisconsult must be deemed rational.

II. D. Test[■]amenta, qui primum ad publicum videri cœpit in testamento defuncti.

The tabula testamenti, he observes, is not the unio virorum, but rather, as it were, the concursus omnium, ad quem scriptum est; quidquid in eo potentia habet, et quidquid instrumentum est.

If it is a public prosecution, it is not the affair of a single individual, but of several, in which some vestige remains; and consequently, whatever may be reconciled against us from two causes, will be deemed a private matter.

Who can doubt that the public, by these acts, will be essentially influenced?

Unus venditur, alius emittitur; conera praesertim privatum habet, quia unum tantum hominem est, cui res ex nihilo tradituri sunt.

If any matter is to be transacted among a multitude, whether in the forum of society, the assembly of the college, or the frame of the body politic, it is a concern of public interest.

Or shall I hearken unto him, who contendeth against the public will, when the public writing hath intervened, and direct him to partake at the public board?

So it would be, that, whilst the handwriter remained unimpaired, the chirograph, which is to say, the private document, ought to be held in strict confidence, and the signatures both of the parties and of the public notary, inscribed upon public tablets, should also be thus guarded in secrecy.

Elevated, yet lucid diction; periodic sentences, measured cadence; lightly archaic vocabulary, sparingly employed. Thus runs the discourse, wherein the style ascends to heights of erudition, whilst remaining perspicuous to the discerning ear. Periods alternate with clauses, imparting a rhythm both solemn and harmonious. Words of yore, though few in number, enrich the fabric of expression, lending an air of time-honoured wisdom to the whole.

It is a matter of public concern that he hath transgressed from his due course. There is also a statute of limitation, which hath been hereby stayed; for the debtor, who oweth a mortgage to the creditor, receiveth a security from him in the form of a pledge, which he depositeth with a common friend; and whilst this example is communicated to another, the observance thereof is duly attended to elsewhere.

As long as he retains faith in the penalty, he is bound to preserve his own integrity; and if he retains a genuine exemplar, either in public or before a common friend, he must dispose of the matter impartially and dissolve the obligation.

What, therefore, was the reason why the Greek thus averred that such was the circumstance in the case of Demosthenes, so that it might come to pass?

It is the same to receive, and the same to receive, which is precisely what each of you avoucheth.

But it is deemed more expedient to adopt this practice, for the purpose of allaying and annihilating the offending error, and ultimately terminating the controversy with those same Rhetors who have undertaken the interpretation of the Septuagint.

TCS D E Modo Usu Varium.

There are, therefore, four others; when they have translated the parable into a Greek sermon, they shall perceive the chirographer in the ensuing chapter.

I, Acaeus, and I, the Arbiter, thus proclaim.

How immense is the discrepancy between the Hebrews and the Greeks!

This prescription hath been received in the chirograph, properly, that it may be restored unto the debtor; and further, that it may have been effaced or defaced prior thereto.

The venerable and erudite Catena, hitherto interpreted by our illustrious and judicious Patruus Jupius, whom he lately had the honour of revising and annotating: the father of the luminary and accomplished Jupius.

And Arvalus, receiving a letter of testimony from the creditor, was enabled to demonstrate that the debtor would be willing to acknowledge his debt, namely the sum which the debtor confessed himself to owe.

Hence, the faith in instruments is defined, which may be expressed thus:

The faith of the Qorahs, which hath been entrusted to them in pecuniary matters, supplieth that which they lack, and impedeth what they possess.

According to the First Law of the Code concerning Probabilities, it is vulgarly interpreted as an excuse for insinuation in such a manner:

As the creditor, who is summoned to account for a sum of money, is bound to restore it in exact measure, so likewise the debtor, who maintains that he is released from his obligation, should furnish proof of his assertion prior to the trial.

What shall I pronounce concerning myself, that I am a wretched pittance in pecuniary concerns? Hence, it is incumbent upon the creditor to deem himself a knave; what, indeed, is there to prevent him from so deeming himself?

The ancients perused the codices of such as had been betrayed by the sum of money, which they had counted out.

All things must be most rigorously discriminated and■■■■■

As the creditor, who hath delivered the sum in money, is compelled to recount and make good the same, so again the debtor, who hath already satisfied his obligation, ought to furnish proof thereof at the royal tribunal.

The creditor, who hath lent the moneys to his debtor, shall be bound to evince such sums by the enumeration of credits.

Hinc exceptio pecuniæ, quæ non numeratâ ad creditoribus data, quorum illud sibi non numeratum contendunt, nominatur.

Whoever, therefore, being a creditor not entitled to a sum of money, shall be bound to demonstrate his non-entitlement thereto, that is to say, to discharge the same:

So that, in the instance of the debtor, who asserteth to have discharged his obligation, the onus probandi hath been remitted through faith, which evidenceth the discharge thereof.

In other modes, it is expedient to advert to the aforementioned obligations, as Agellius in his fourteenth book, chapter the sixth, hath detailed:

However, when he did implore the aid of his numerous patrons, he strove to demonstrate that he was indebted to me for the pecuniary obligations incurred in the onset of the campaign, the expensis ratione, the provision of rations, the exhibition of the haruspical omens, the sealing of the tablets, and other usages of the like nature.

XLVII Juxta capita.

We have now concluded our exposition of the three remaining matters, namely, the testes, the syndics, which are defined as follows:

He was proficient in the construction of tabulae and the interpretation of sigilli, and was versed in chirographa.

And Utra, the syngraphas and chirographa, he comprehended under the denomination of tables, with these ensuing words:

He sought payment from me, who affirmed that all had been bestowed and accounted; yet he who made the demand exhibited no abstinence at either table or tribunal.

Item in secundis, ut inter duos nihil accidisset, neque taeflibus, neque tabulis planis.

That is, neither chirographers nor lyngraphers exist.

Nam et chirographa in tabulis olim consueta perscribendi docuimus, ut nomen scriptoris eodem modo quod semper in nostris litteris docuimus.

But there did exist a distinction betwixt these tablets and those of the lighthouse, which were properly termed lighthouse-boards.

A witness, being convicted by testimony and affixed with the seal of condemnation, was adjudged to undergo the penalty of death.

But the hired men did not imbibe the timber, and the debtor was intoxicated.

Which regards the explication of expenses, and enumerates the ratios, which are:

Between the solemn rites, a trifling sum of pecuniary tribute was bestowed.

Numera! et probantia ibi ab Agellio recensentur; genera fuere credendae pecunia neque rebus interpositis, neque quicquam interveniente scriptu chirographario aut syngraphario.

Who, having borrowed funds from the public treasury, were directed not to reckon the sum, but rather to discharge their obligation by means of silver implements, a living patrimony, either from the current stock or from the written account thereof.

The trapezium, whose appellation might be reckoned, in the proportions which he hath set forth, was referred unto the term of faith.

Whoever hath committed to his credit the pecuniary sum, though the same be due unto him from the said debtor, shall yet be bound to restore the very amount thereof; whereas the quantity of provisions, or the measure of rations, shall be diminished in proportion to the duration of the fast.

It is a banquet.

An alternative rationale for credence lay through explication of expenditure.

Who, having lent money to one another, numbered their houses, and from the Ark of the Covenant, bore the name of him to whom they had lent it upon their tablets, and the Tables of the Lord were delivered unto them according to the judgment of the domestic tribunal:

They were therefore deemed faithful; for Expensilia declared that it was termed "Expensilia" for this purpose, namely, when the creditor inscribed the name of the debtor upon his records, and delivered the amount of the debt to the heir rather than to any other party.

When the debt, which had been duly discharged in Greek, had been received, he forthwith transmitted the equivalent sum upon the adjacent tablets.

Wherefore I have bestowed and received the table:

And she spake:

It was affirmed that they spoke thus.

Hence, in the most felicitous periods, shall Gl. Hheioi be expounded with promptness.

A mutual obligation, contracted by compact, whereby:

It was narrated that the appellations of the deities were communicated to mortals; a matter which, as we have previously elucidated in the earlier portion of our treatise, even Tribonianus himself found difficult to comprehend.

Of which, and in the third volume, the fumus dei doth become the lumen usurae Iustiniani.

Fortaf- and Agellius, with their respective tablets and registers of accounts, decreed that the tablets be solemnly exposed to the sun; and they comprehended not merely the chirographaria and fyngrapharia inscribed thereon, but likewise the expenses recorded thereon and the scriptural entries made in the month thereof.

In tabulis quoque argentiariis, in quibus rationes suas consu^{bat} perscr^{bere}, s^{decem} p^{num} add^{bantur}. Note: The archaic form "decem p^{num}" is used for "five-pennies," maintaining the original meaning while adopting a more antique-sounding vocabulary.

Therefore, all the solemn debts, though they may be denied, are involved in complications by the creditor's employment of these twofold expressions, namely, "tabulis" and "cunctibus," pertaining to the expenses of laundering, monthly rations, the exhibition of deeds, the sealing of tables, and the interception of pledges. Omnia quippe qua:

He perceived the comprehensive denomination of the tablets, since every demonstration thenceforth proceeded by their means.

But it was particularly affirmed that the inscriptions were assigned to the tablets by way of special designation, since there existed nothing to the contrary.

Other:

The Subsequent Tabula:

But he deemed it meet to be ensignified.

Mirabile dictu, inter haec solennia probationum, per quae numerata pecunia omni Agelli religio iuris iurandi confirmabatur, tanta est.

For there was no alternative method by which the creditor might discharge the debt, which he had demanded, than to adjure the jurymen to appear before him wheresoever he might appoint.

Paulus, in the second book.

Chapter I: Elevated, yet lucid diction doth characterize this initial section; sentences, constructed in a periodic manner, impart a measured cadence to the discourse. The choice of vocabulary, though sparingly archaic, lendeth an air of scholarly refinement to the exposition. Thus, the reader is invited to partake in a narrative that, while rooted in antiquity, retains a clarity of expression and a dignity of style befitting its noble subject matter.

In pecuniariis causis, alterum ex litigantibus ad iuramentum committit, qui deinde iudicium audiat.

ubi Anianus interpres captus est.

When the money, being no longer employed in the repetition of claims, and when the money, being no longer applied to the due proof thereof, doth not yield advantage to any, it is requisite to terminate the equivocation of the king's station by interposing the aeramenta.

Justinianus Constantinus

I, nevertheless, address myself to you concerning all the matters appertaining to those contracts, which remain unsettled until the intervention of Julian the Elder hath intervened:

Alioquin ad finem vulneris ad finem vulneris ad finem vulneris ad finem vulneris ad finem vulneris ad finem vulneris.

AR.

At V. M. 47f., he thusly records: "Quatenus veritatem religionis per juramenti ostendere licet, oportet vos decernere, an vos esse producentem, an reum jurantem, an jusjurandum referentem, quantumcunque hoc ad id pertinere videatur, quod iudex exigit."

He would not have sworn that he would have imparted credit to a creditor with so vast a sum!

But even when the creditor, referring to the debtor, is himself indebted, or indeed from the outset, he shall be required to undergo judgment.

For then the Praetor conceded the action to the creditor, who claimed the debt; not so much whether pecuniary obligation was due to him, but whether the obligation was binding by solemn affirmation.

If the debtor, or the creditor, were to take an oath, he would not be bound to give fealty, yet still remained under obligation; for it was unjust to inquire against the claimant, the creditor, concerning a perjured oath. Therefore, he adhered to the scruple of legal solemnity, and repelled him by this exception, that he had taken the oath.

In Indiam ego vixim.

Book the Fourth, Chapter the Twelfth concerning Exceptions.

What a marvel it is, when these things be so, and thou art most frequently encountered with such kinds of trials in matters of mutual finances, where creditors are wont to falter in the argumentation of other debts, that Agellius could yet demonstrate his ability to establish the case; especially since the judge himself was unable to prove to the creditor what he had purposed, and what the debtor denied.

By such virtue was she enabled to neglect the circumstance that the creditor, who, having sought an allowance from a debtor who was unjustly indebted to him, declined to accede to his request for a bond of faith, deeming it probable that, knowing the said debtor's proclivity to dishonesty, he would readily perjure himself.

Again, the debtor, who sought to defraud his spouse, being apprised of his obligation, confessed that he stood in debt unto her the utmost sum of fidelity; for the residue.

The proofs being deficient, he declined to submit the cause to the jury, deeming it facile for the creditor to delude himself, and being constrained to discharge the debt which he denied.

Concerning the pecuniary obligations of the Egyptians, which we are about to stipulate, it was solely by re-establishing the Judaic religion that such a transfer could be effected; the debtor, therefore, was required to swear that he would not renounce his faith.

For then the debtor was altogether acquitted.

Diodorus Siculus, in his volume concerning the Bocchi and their laws, thus proceeds:

Tis Iesu assumpsit Xuitium anno sexagesimo sexto.

From the fortieth to the fortieth hour of the day, I have lost the fortieth hour of the day, and the fortieth hour of the day, and the fortieth hour of the day, and the fortieth hour, and the fortieth hour, and the fortieth hour, and the fortieth hour, and the fortieth hour, and the fortieth hour, and the fortieth hour.

Hic:

Let the words of the prophets, though elevated yet lucid, have been perforce received by the ancients, and let them continue to be so received.

For, as they phrase it, it is unnecessary to bereave the affluent of their conveniences, or to omit considerations for the well-being of their existence.

Ne delinere posthac conquirantur, qui pecuniam ad eum utendum dabunt, et qui tam facile jurabant, non acceperunt fides.

Hereafter, provision being made, five pieces of silver.

Your consort.

For the obtaining of the word, to give it for money, and to accommodate it, is to usurp that which hath been already usurped.

What, however, Phrynichus, in his collection of Attic speeches, fails more adequately to establish.

I shall address thee, O Indias, Diodorus, who, solicitous of words, hath sought them at my hands;

employing, condescendingly accommodative.

The second reason was that Bocchoris, perceiving this, did invite men to cultivate virtuous conduct, and to commit all their confidence to probity, deeming it just that they should be truly worthy, lest they should appear to be unworthy to those to whom they had committed their trust.

Lastly, he pronounced sentence upon the unjustly accused, whose credit was deemed without legal warranty, and, in the very same compact, having sworn thereto, he thus declared his solemn affirmation.

Again, there is no debt of faith due, nor ought one repose confidence in such faith.

Before I conclude this narrative, a dispute arose amongst the illustrious company of nobles, who were in the society of Agellius, concerning the trials and tribulations endured by the creditors.

If he entertaineth no hope that by any means he may extort from him confession, it behoveth him to demand of his adversary wheresoever he find him pecuniary recompense; and what benefit the honest creditor shall derive therefrom in this particular instance, let him demonstrate.

Let us now survey the manner in which these instruments are employed.

Will there be, or shall he who is in debt and refuses payment, be deemed evil and unjust?

Agellius, who, relying on his faith, shall be found to have cast it away, shall doubt the tenets thereof, and in that very confidence, shall forfeit his life.

For when those who had been condemned to death by the judges of the Senate were found guilty, they said: "I shall not be permitted to sit in judgment; but I shall be able forthwith to pronounce him guilty, against whom no proof has been offered, whereby the debtor might be convicted of owing the money demanded." When he appealed, he was compelled to offer payment.

When the king, who, though vanquished by Contrace, yet adhered to his fidelity for a protracted period, and had met his fate at the hands of Ipedtara, betook himself to confer with the sage Phavorinus; as if, indeed, he had failed to construct a robust argument against him, but rather maintained his position solely through probity, resolved to deliberate with the

philosopher.

Who was the author of the Philosopher's Son, that when he was ambiguous concerning the subject in question, he might assert, "I am the very best."

Wheresoever they shall be solicited, we will arrest them; and the interval between the two witnesses shall be no longer, that the party interrogating may have confidence in him who is interrogated, and that he who is interrogated may be adjudged.

However, Agellius, whose authority rested upon the testimony of so many philosophers, was yet unable to move him either to pronounce the accused innocent, or to adjudge every suppliant; but having sworn that it was not consonant to his conscience, he left the decision to the jury, whereby the judge himself was frustrated in his purpose.

But it is more important, he observed, to be apprised of the excesses both of the eminent and the obscure, than to be cognizant of the proceedings of the monarch, and not of his conduct, since it is fitting that he should be circumspect and unpretentious.

Viderer: ut ab huius spe inducere in animum non quivi, tamen juravi, mihi non nescio, propter eam, ne decipiar.

Phavus, who, having received from Agellius the counsel to plead guilty to the crime, and being unacquainted with such a course, and who, contrary to the fame of the accuser, was himself accused of high treason, suffered death at the hands of Cato, who, though he had recorded it in his oration against Gnaeus Turgus, had, in his old age, forgotten to impart the same to his grandfather.

Gallium, cujus verba Agellius ibi rqpulit, quae sequuntur:

Here, I shall introduce more accurate emendations than those commonly perused.

And I likewise have imbibed the tradition of my forebears in the matter of memory; A 478 Ci.

If you embrace my tenets, let it be known that even should another request something else, or should both appear to exist, whether they be deemed good or evil, since they are both raised from the dead; and if thou art not amongst their number, thou wilt be inquired concerning them wheresoever thy faith shall have placed thee.

But I do not assent unto Cato.

He did not, however, lend an ear to the oracles of the Elismaei, whom the sacred volume doth cite; nor to the doctrines sown within its pages, which he purposed to implant, such as those expounded by Cato, the philosophic warrior.

I shall unfold to His Majesty the grounds of the matter.

It was enacted, moreover, that if any man claimed pecuniary debt due to him on credit, he should produce evidence of such payment by faith, and were thereby absolved from demanding any recompense from the debtor.

If a good were demanded by a good, but a mischief by the law, such that both might be made equal, whether in virtue or in vice, the said law has so framed it.

If, instead of adopting the [REDACTED]
[REDACTED] Si, contra bonam probationem a malefico data, malam eiusdem
 modi repetuerit, tanto magis legi vigorem adferre debuit.

So alone, and both of you, shall ye be cast thither; when the man is inebriated:

The probity which he affirmed as his own faith is a mendacious and wicked falsehood.

The judge, who was present at the day's proceedings on behalf of this man, having failed to establish any of the arguments he had advanced, adjudged him guilty of the crime for which he had been convicted, because, as he had petitioned, his condition had visibly declined; and what he would have become, had he been virtuous, might be inferred from his present state.

Does he, by reciprocating our mutual esteem, imply that he neither degenerates nor lacks renown in his own right?

If a man, who is just, doth not solicit a recompense from one who is unjust, and ought to obtain that which he claimeth as due, being not restrained by any proof, there is no reason why he should be so bound. Rather is it expedient for him to resort to falsehood and fraud in the repetition of money, than to demand that which he thinketh himself to owe from a good man.

What tinge of justice doth the arbiter of our times bestow upon him who today demandeth the disclosure of destiny from the annals of mortal life?

Impurum, impurum ipso crastino a noto homine petatur:

and by experience verified:

Faith did he repel, and from calumny; and shall he condemn it?

Did the man, who was eminent for probity and sincerity, and had been nurtured in these virtues by his father, appear thereby altered within a brief interval?

Did the judge believe them yesterday, will he not believe them to-day?

Or why do I now endeavour to demonstrate unto thee that which I hold to be true?

Or does he thus act more improperly?

Forasmuch as it is now evident against him, let him be arraigned for himself, and let him be arraigned in presence of his calumniator.

Shall you be deemed worthy, of whose fidelity and probity thou didst not entertain aught of distrust the day before?

So, then, should a judge, like one bereft of reason, grant licence to a malefactor to eschew the law, and to probe the conduct of the deceased, might there not be revealed through a vast aperture in the justice of the tribunal a spectacle hitherto concealed? Who can behold such a sight?

Whosoever the Judge should have espoused, he would have accounted him for a virtuous man: thus signifying that the decision of the tribunal was not influenced by partiality or prejudice.

From this, its converse shall be turned aside; for so soon as it shall be condemned, it shall be deemed both more pernicious and inscrutable to them than a pomegranate devoured by a fox, since excessive shall be the temerity and impiety thereof.

If, in the council, he shall appeal to the testimony of Fame, who shall dare to deny that the report thenceforth current will be both saltier and more true than the reality?

It is a lie, and oftentimes a grievous one, that those who do not deserve it are frequently extolled and lauded in praise and censure alike.

What is the uncertainty inherent in the inward constitution of man?

What is the cause of the recessus which they have suffered in their breasts, concealing their malitia, whilst probitas yet shines forth in their countenances?

Hic est cutis mea.

The exterior aspect presents to view an ornamentation of comeliness; but when thou dost penetrate within, and drawest near in closer inspection, thou wilt perceive that the interior aspect is hideously sullied and abominably foul.

Finally, it must be conceded that it would become requisite to decide whether any individual is esteemed for his virtue, or for his years, or for his reputation; and thus it would henceforth be indispensable to inquire concerning manners, rather than concerning the proofs of the matter in hand.

In the case of the delinquent, it behoved either his absolution or his condemnation to be subjected to scrutiny.

Is there any limit to be observed, that we may so proceed?

And when he encountered such great difficulty in effecting this, it seemed as if he were contravening the law of probation; for he caused two additional tablets of stone to be set forth at the termination of the existing tablet, wherein the accused was once more found unwell.

The man who, elevating his whole existence to the level of a suppliant, soliciting aid, ought to lay the blame upon himself, if he hath been branded with the stigma of a deceiver, and if he hath betrayed confidence by rashly crediting falsehoods, and hath been arraigned as a spy and as a liar.

But as Menander thus hath spoken:

When a virtuous man encounters an evil one, in order that he might secure credit, he removes a sheep in lieu of usury.

Certè, si iudex es, facilius est peccare, vel potius errare, si legis habes alemam ab Anio Claudio Salmasio, quae 480 C. L. S. est, et jure sequi ipsam, quam semel errare contra legem scriptam, vel in eodem modo delinere, ut plures erraverint.

For what reason would a judge (by the way of faith, always obtaining what he had requested, and so forth) pronounce that he was a man of good character, and if he had ever seen himself as such, and if his fame had reported him as such, and if he had been unjustly tried even on every occasion, would he declare that he was a man of good character, if he had sought the fullness of another's character?

Saipes, the umpire in this cause, was not to be condemned by reason of the allegations and the evidence, but rather by reason of his having been slain.

Now we perceive that Catonis, or Sculus, himself, being a veteran of ancient years, whose mind hath been preserved (and hath profited by his own sagacity), was at the time when Favorinus had concluded his discourse.

For, by the authority and verba of Cato, the following:

Agellius, his confrère in judgment, was here adduced to impart unto him the precept, that whenever he should attain the utmost felicity, he should perceive whither he was to be questioned; and that he should credit him who interrogated him, and condemn him for whom he was interrogated; and that he should be adjudged according to Cato's dictum.

But as to the pecuniary concerns, which you have previously mentioned, I most earnestly advise thee, that the wise counsellors of Marcus Cato, who in their oration, rather than in favour of Lucius Turio, were arrayed against Gnaeus, may be hearkened unto.

Gallium hoc locutus est, et ita a majoribus memoria traditum observatumque ait, ut si quid inter duos astum eorum, neque tabulis, neque tuis ibus planum fieri posset, tum apud judicem, qui de ea re cognosceret, uter ex iis vir melior esset quaereretur, et si pari essent ei suaeque iniuria, tum illi unde petitur crederetur, ac secundum eum judicaretur.

Herein lies the interpretation of the words of Cato, namely:

Paulo post adducit Agellius, et jam praesentes sumus.

But from these things, it follows that, as in the case where a judex, being a virtuous man, is under no obligation to a man who disapproves of virtue, so neither is he bound to pay the sum in question to one who is notoriously wicked, since the sum in dispute is trivial and the debtor is a depraved individual.

Which Cato therein affirmeth, that to neglect the demand of a debt doth not contravene the law, since the contract, being unenforced by any solemnity or legal ratification, cannot be sustained by lawful evidence.

Which law is general in its application to every mode of usury.

All men, whether they be suppliants of the good against the good, or of the evil against the evil; whether suppliants of evil towards the evil, or of the good from the evil, or of the evil from the good: and, as I have already intimated, the law should more resolutely be observed, even if it be evil.

A fiduciae vir, et mendacii fraudulentiam.

It is far more expedient to amass wealth through a person's fidelity, than to extort it from his credulity without the termination of the■■■■■■■

And by this very argument, Cato interwove his discourse in that oration, that he might not give umbrage to Gellius, who had been the first to do so; for there would be no proof, nor could it be demonstrated that he ought to have instructed Gellius.

In such an event, even though the equity might be equally balanced, Caius Gaius Turius was not bound to sacrifice his existence.

For thus, he observes, from the ancestors I have received, that when any one of them shall solicit from another aught diverse, whether both be equal, or good, or evil, and the two matters in question shall be such that witnesses are not requisite, it is more probable that he will rather

solicit it from him who can be believed than from him who cannot.

Now, as he hath a more exquisite sensibility, blessed Turio Gellius, who judgeth, who judgeth, who judgeth, and who am I to question, how much more advantageous is it to beseech a faith?

The words of Cato.

Now, Gellius did not deem Jpsonion a superior person to Turio; nor do I conceive that any man could be so deranged as to assert that Gellius excelled Turio in worth.

If Gellius were not better than Turio, his testimony would have been more persuasive.

This is Cato.

What, then?

Or, had Gellius been adjudged more favourably by Turio than by Cato, when he himself was summoned to sit in judgment by another, who was less virtuous than he, would it not have been evident what estimate he formed of his own worth? Thus did Favorinus conclude.

Yet, Cato doth not avow this.

If, by the necessary inferences of these matters, it is deduced that the consequence thereof having been approved, will issue in some evil, we have sufficiently demonstrated.

When Diogenes the Cynic, having from time to time perceived a certain individual to be a man of falsehood and deceit, and another to be accused of theft, pronounced the former guilty as though he were charged with alleging that something had been stolen from himself, and the latter as though he were condemned for the intention of committing theft.

And in each instance, verily it behoved to fashion a life that was true to both; for in either case, a semblance of genuine existence was attainable for both individuals.

What is Plias?

Elevated yet clear diction, with periodic sentences that lend a measured cadence to the discourse, while sparing recourse to archaisms save where such usage is most natural and appropriate.

Drusus, in his apologue, hath restored.

And this also, in the game, and in mockery, is the grace of God.

In judgment, wherever there is a conflict of interest.

Return, I shall not be able to do the same.

If he, being not cognizant of his own fury and not subsequently pleading his case in the tribunal, were to fear thee, and not demonstrate such apprehension, or if he refused to acquit him who was accused?

What is the matter with a man who, being neither a thief nor a liar, yet would borrow the infamy of theft, and still be unable to demonstrate that he hath purloined from such one who is wont to steal? Only the judge can vindicate this probity; and he, who, more furious than a thief, shall contest the theft of what was taken from him by him who is accustomed to steal, will surely be punished without another proof of his guilt.

I verily do not esteem equine numeration.

The same holds good of him who, being intrusted with authority, was unable to demonstrate any impropriety on the part of another, and whose own assertions were disallowed.

These questions exercised noble jurists, Martinus and Johannes, who were constituted by another judge to adjudicate according to their own consciences; whereas the others, appointed by these same jurists, referred to the parts which had been established, confirmed, and substantiated.

Whoever finds pleasure in this treatise may admit a certain measure of hesitation or doubt in this particular instance, wherein he is compelled to inquire concerning faith.

When the judge, having demonstrated that there is no alternative method of proceeding, is conscious both of the manner in which he himself has acted and of the actions themselves which he has performed, then he is aware of what he has done and what he has done.

For although the question was one of legal right, it was not deemed incumbent upon the judges, who are the parties to the dispute, to appear so to stand; but rather, he judged that it behoved them to determine according to what they themselves might more wisely perceive.

There is but one rational ground why it is incumbent upon a judge to deliver a sentence according to the testimonies of witnesses, and according to other legitimate proofs, and not from the dictates of his own conscience.

For even if one be arraigned for transgression in a tribunal, the vindication of that creed shall ever be requisite, since it is known that no other faith can exist save such as the tribunals have evinced and demonstrated.

When the rime once unsealed, did widely open the casement of judges' impotence and iniquity.

To this effect, it is more consonant with injustice and impropriety that a judge, accustomed to dealing with sums of money, should deem it his duty to pronounce upon the morals of the litigants, rather than upon the precise cause in issue.

Do you not stand forth as a judge of life and death, and other matters, but solely of pecuniary concerns?

Nor the recompense of the military forces.

485 Pro reo probitate et improbitate crimen ad proconsularem deputatur; Deinde, cuius scelus iam diximus, incognitum fuit omni homini ab initio vitæ ejus, et multi perambulabant sub persona, quorum nihiliominus erant, quam quod vident, in perennis malevolentia et injuria exterioris hominis fidere, et in nocte alia et in facie humana spem posse habere.

The Twelfth Chapter.

Of what manner the creditor is restored secure from the debtor unto the debtor.

Either to ensure his security from the creditor's bounty, or from the alien through the prerogative of J. Ponsor.

Specifically, the debtor is indebted to some good, since the creditor, in turn, is indebted to the debtor, who is himself indebted to the slave.

Amongst the creditors, some may be designated as individuals, while others as mortgage-holders.

They are more secure than they seem.

Gratulationem accipiam pro his verbis.

Obligati sunt reddere debita sua, aut moventur, aut non moventur.

Dediti sunt creditori proprietas suae, et est usitatum ut sic imponatur obligatio rebus immobiliis.

Quod interpretatum in Latinum est: "Dedito Graecis a Vinnitus."

Verily, thou mayst contend; yet shall I not assent.

Let them comport themselves with gentility in their station, as though they were a pinnacle.

Nevertheless, these terms are also employed to pervert the import of the hypothesis.

Besides the Greek progenitors, who were succeeded by the Latins, there exists a distinction between the two, as exemplified by the Qs, Qs, Qs, Qs, Qs, Qs, Qs, and Qs.

From the hypotheca, pignus was not dissimilar to the Roman jlatuifus, as I would assert from the lattice; however, the Latin pignus was identical to the Greek pignus.

The blunder was committed by Cujacius, who entertained this notion.

Pignus est verbum Latinum pro Graeco, quod Graecum significat.

Hence, he was designated as a general by the Greeks, who were the sires of antiquity.

The dictum of Marcianus was ineffectual, being so dissimilar to that of a hypothetical appellation.

Nota est clara differentia inter pinum et hypodermicum.

Aut alius potest dare pinum, aut alius potest dare pinum.

A mortgage is not primarily a mortgage conveyed, but rather an obligation in its own right.

Hh 1 Error 484 Cl.

Salmasius was begotten in the miscalculation of Hotomanus, whose dictum was akin to his own.

Aiba-jeof-jeof-jeof-jeof-jeof-jeof-jeof-jeof-jeof-jeof

Even the tenure of the publisher was not committed to him, but he was bound to perform such duty.

The rationale of the elderly individual is elucidated.

Or more security in mortgages than in their own domiciles.

The Marcian, who, having failed to discern any interval between the pawn and the pledge, did nevertheless possess a firmer comprehension of the transactions concerning the Servians.

The general term for a pignor in Latin parlance is concurrently employed to denote a mortgage, albeit not as a mortgage's proper nomenclature.

There, and even at the nadir of the ocean's abyss, thou shalt encounter the steeds.

The judgment of D. Manus was pronounced against the physician.

The creditors of his fiduciary estate were supplied with mortgages from its funds, rather than the property being conveyed to the pledges of the proprietors.

There, and with unshakeable certainty, the Romans were appalled by the specter of a mortgage.

Greater assurance or confidence therein than in a pledge.

Pignus Pap

The Title of the Book of Sentences by Paul, (f■ in the Codex of Theodosius of Pignorius, wherein Hypotheticals are also comprehended.

The Greek term is signified by the character Stcuj; and the appellation is likewise deduced from the cognomen of the river Pignor, whose dimensions are approximately commensurate with those of a neighbouring stream.

To controvert the ancients of Latin speech.

What is to be propounded, and what reliance is to be placed upon the more recent Ex-Gracosiuppone.

Litteris multarum locustarum percurrentibus, Tribonianus, vir acer et bellicosus, fefellit.

Repositories were also designated as the locales wherein the pignons were deposited, as exemplified by Sedus of Greece, and Gracus, as the sites wherein the pignons were furnished.

Pontifices, oppositores, et supportores immobilium.

Among the Atticists, whatever is concealed, whether movable or immovable, is denominated Vmfilxus.

The debtor is he who accepts the monies, the creditor is he who accredits the monies.

Sic alii iudices, alii Graeci recentiores, ad hanc praesidium nominatos, diversa sententia habuerunt; et praeterea consenserunt ad oppingere.

By legal right, he had access to the assembly of the Hellenes.

They sustained their union.

Such being the case, so much of this, that.

In manu defuncti traditi, poterint recuperare et tenere re ipsam ad se perducendi.

What pertained to Qopjzc?

The Demoshenes were corrected and improved.

For this reason, let us observe the creditor's claim, and let us observe the creditor's claim.

Among the Romans, the term "pignoris" designates a generic species of mortgage, distinguished from its specific kind, the hypotheca; whereas in Greek, the analogous concept is expressed by a distinct appellation.

Pignus himself was no different from the pledge, since it was an article of furniture, but it was an article of furniture.

Let the mobile thing from the hypothesis not be delivered, and let the immovable things from the same be made a pledge. Thus, the monarch being in motion, the throne cannot be resigned; whereas, the monarch being stationary, the throne cannot be resigned.

The two edicts, partly elucidated from the Digest, are in part also amended.

There are two species of pignora; and in the instance of a cista contracted without any formal engagement, a third compact is thereby formed.

To what liabilities does the acknowledgment pertain.

In hoc loco habendum est locus, ubi omnes sensus suae locorum invenerint.

Pignus, propria verba dixit, "aut unicum finem scripturæ consensu concipiam, aut cum scriptura ipso."

We have expounded nearly all the modes whereby the debtors of Eden are constrained to perpetrate evil, and it is incumbent upon us to provide security for their rectitude, though we may be assured that such security will effectually preclude their malevolence.

Now, having proceeded to those whom I must expound, namely, the individuals who had dispatched the goods with commendable diligence, and the debtor who was present, it chanced that neither of these parties could have sworn an oath.

For it was not the lot of fate that he should possess the will to effect resolution, unless indeed he likewise enjoyed the faculty thereof.

Its dimensions are augmented.

For it may be deemed that the creditor can either recover funds from his intrinsic wealth, or, if we may so express it, from Edubia; whereas, should he be a stranger, he shall no longer derive confidence from such sources.

Nevertheless, he hesitated not concerning the opulence of the royal designs, but rather he hesitated not to proceed therewith; and, while he deemed it not easy to effect a solution without addition, nor to be summoned to the bar of justice, he assigned another debtor to the creditor,

whom he might disturb at will, and thus exacted his right from that individual.

Sarpus delivered unto him the funds expended on his behalf; he was a creditor to those who had conferred benefits upon him; yet he could not, in his own case, ensure both security and shelter from his own resources.

When therefore I shall have accomplished these things, and fidelity to be performed, unless also the matter itself shall concur, I will not suffer him to be adjudged guilty, who always speaketh good words; nor will I give him any other thing. And if I shall not have the fortitude to effect this, I will not be able to discover what is promised from the ark, until the time intervene.

But it is not sufficient, nevertheless, to possess a debtor who owes me a sum, whereby I am bound to repay it to him; and not to remit to me a portion thereof, which I can discharge according to his pleasure, and wherein I hold the power of repayment.

It is indeed possible that fierceness may be exhibited in its utmost degree.

ut nonum DI Modo Usvaharum.

4S7: Nimirum multis rebus possidere debet, qui mihi debitum habet; et plurimis etiam debere potest, quibus præterea mutuâ sortis inter se ante datum sit.

Let all, who are the creditors of the smoke, swear that we will come to the debt by our right, and that no one among us shall be bound to pay any special tribute to such a common debtor, nor shall we give up any of his goods as security for our debt. Verily, it is not for every man's advantage, but for those who have lent first, it is consonant with reason that the latter, receiving the debts from the sale of the goods, should take precedence in their recovery.

Since all previous creditors, who, for their own security, chose to elect the debtor in person, and provided credit for his goods—whether moveable or immoveable—on account of their trust in him, I, who, being posterior, deemed myself more circumspect, can preserve what I have committed to their custody, or even bind myself thereto, provided that I am enabled to demand from them that which I committed to them with due prudence.

For it is vain that a person be troubled, since naught cometh to pass which was not destined; nevertheless, even if nothing comes to that, frustration doth yet ensue.

He did vow to assail the spot where the statute prohibited the detaining of a debtor's son as pledge for a debt, and to lay hold of him, if need were, by the very hand.

Which hath likewise been permitted, as though it were a fluid.

Of that in series.

Hinc distinguitur inter creditoris, qui solum per fiancamenta seipso obligatos habent, et deinde debitorem ipsum, qui re ipsa obligationem portatur.

The Greeks, indeed, denominated them as equals; whereas those who had pledged their faith by oaths, or who actually possessed the body of a debtor, were deemed more potent in their claims than the former. But those who merely entertained a belief in the existence of such a person, either did not enjoy universal recognition, or, if they did, it was subject to a particular privilege derived from that supposition.

[illegible]

The corporeal substance of Jzroltjiso was discovered to be infested with H. h. 4 Q. 488 Cl., a designation of no inconsiderable import.

Quatenus igitur securior est creditor pignomaticus quam personalis, securitatem eam qua:

It is both more weighty and substantial; this shall be my contemplation.

The scoundrel further proceeds to assert, that he, who erstwhile possessed ample resources sufficient for mutual exchange, either by some unforeseen adversity hath lost his capacity to discharge his obligations, or else hath wilfully squandered such means in reckless expenditure.

Most assuredly, it concerns my security, the future of the consulship, that I shall retain in my possession, or under my oaths, whereby I shall possess the entire faculty of the debtor, which I confidently esteem to be ample and sufficient for my purposes.

As there are two species of bonum, namely, movables and immovables, even so there are two modes whereby fidelity is rendered by the debtor to the creditor through the bonis debitoris, either by pignora or by hypothecae.

Not merely are the creditor's own debts discharged by the debtor; but also those owed to third parties are satisfied, interposed as they are in the transaction.

He is indebted to the creditor for his fidelity.

But concerning the matters pertaining to the debtors themselves, let us, in the first place, discourse thereof; and subsequently, of the individuals concerned, thus proceeding:

They vouch for the debtor, and interpose themselves, assuming the obligation in the name of a stranger, whereby the creditor is rendered secure.

Among other things, as he hath said, they are either in motion, or they are solely sustained by a rope.

If the movables are in question, they are conveyed into the possession of the creditor, and the creditor's authority is thereby established, until the obligation is discharged; so that, even if the precise period has not been stipulated, the goods may be distrained, and the creditor may recover his debt from the proceeds thereof.

Pignora, in proprium verbi gratia nomenclatura Latina, haec appellatio excedit lucido dictu, et tamen elevatissimo genere. Nam pignus est, quod potest ad manus alius traduci, vel per spatia transferri, et positiunculis deponi.

But if I grant them my peace, I shall be more persuaded that you will disclose to me the sum which he hath placed in security, that is to say, the credited money he hath invested.

Nam est nomen Jaripaass.

What is the import of the terms and phrases of the speech?

It is assured that he bore the name of the Lord; he fashioned it.

For those whom we possess and hold in our grasp, these appear to us most secure, since they are in our dominion, and nowhere else can they be found in subjection.

Grammatically, it is affirmed that henceforth there shall be a statue of the creditor, who is himself represented in sculptured form.

For, as the Greeks have defined it, it is the mode of usage; and thus it may justly be said, and for this reason it follows.

For as long as the Greeks, who were in succession to the Latins, lagged behind, so also did the Latins, and the Romans who succeeded them.

Glossariorum Nominum:

In the vineyard, three shoots shall spring forth.

[illegible]

Therefore, the mortgage remaining in the power of the debtor, by virtue of a convention interposed, did bind the creditors to satisfy the debt.

Therefore, the thing immovable is received by him, which cannot be delivered into the possession of the creditor, as in like manner it is received from those from whom the voice of the pledge is withdrawn.

Thus, the Optima Glosses are exhibited, being of the same magnitude as the Optima Glosses; and yet, they do not comprehend the formation thereof.

Nam pignore vel aliquid aliud.

[illegible]

Salmasius posito, fiebant sponsiones. Etruriae legum Cajus, tituli Cccxxviii, de verborum significationibus, pignem 'appellatum, ait: a pugno, quia rei, cui pignori dantur, manu traduntur.

Wherefore, indeed, the verity of this proposition may be perceived; for it is true that those who are disposed to sacrifice their own goods to the sovereign's service constitute themselves thereby.

And he is not truly in a state of perfect health.

Necas Tentorius Cujacius, qui licentiam huiusmodi desiderat, qua Latini pignus ab hypotheca diffinierint, eadem ferine, qua et apocam a acceptilatione, et medicus Graecus a Graecorum carbunculo, et Theologi a quinquagesima pentecotsem diversam fecerint.

Thus, he asserts, there is no Greek term by which the distinction between a Greek and a Roman pledge could be discerned; but the Latin equivalent, which is the same in both languages, was instituted to differentiate between them, viz., that which can be distinguished from the Greek.

It is situated between the ignis and the hypothecam; yet, nevertheless, the Latin pignus, though identical in sonantia, becomes in its Latin sense precisely equivalent to that of the Graecorum vzb, which terms are of dubious signification.

For the Latin pignus, which the Greeks denominate ceiva, and the ancients themselves distinguished it into the girdle and yyklu; thus, the Latin pignus and hypothecum, although the term xkvJnKr.t was more generally applied by them than by the Latins, and similarly for the latter.

May he grasp it.

Therefore, it is requisite to discern them severally, and to adopt the Latin tongue, with its distinctive proprieties, as more consonant to their nature.

Of which I shall speak but briefly hereafter.

Therefore, since the concept, originally derived from the Greeks, is here divided into two portions, it is such that even the Hellenes themselves partition it into twain.

A name, extended by them, becomes more generic.

What is it that Marcianus, when he addresses D. D., desires to convey by asserting that the names of captors and mortgages, pignora and hypothecae, differ so much in appellation?

For it is not true, as certain persons assert, that Marcianus, whose Latin appellation was Pignus, should be regarded as a hypothetical Greek term; for both expressions would have denoted the same signification.

And yet, one thing alone is presented.

And Pignus, the Greek, is ranked third, not the most eminent; for the Greeks are distinguished from the rest, that the manner of usage may be more clearly discerned.

XLIX!

ut pignus Latinæ linguae ex hypothecâ.

Perge, Tollu-ce, centum libertates legere; vide, caput nonum.

Pignus certe, in the vernacular of the Latins, was employed for no person, who ever underwent the denomination of hypotheticum.

Who, with a gentle hand, engages in contention with another, thereby creates a utensil, whether truly a spoon or not, either in a state of polished readiness, or previously defiled and now cleansed, at risk of undergoing the fate of Lysithea's victor.

Thou wouldst not pronounce this term as denoting a hypothecum.

Therefore, if ye have any pledge whatever, effl;

Let it be moved, whatsoever may be sustained in the grasp, and deposited in the midst.

When, by such obligation pressing upon him, the creditor is bound to transmit the sum due to the debtor, the latter designates his own property as a pledge, and not as a hypotheca.

For the voice hath such a place in but two, wherein:

However, when they are not permitted to be delivered into the hand of the creditor, yet they are subjected to his authority and jurisdiction; and the remaining penalty, after having been committed to the debtor's custody, remains with him, to be collected by the creditor in the security for a temporary term, the control of which continues to rest with the debtor.

Ilidorus, in his fifth volume of "Originum," chapter XXV.

Pignus, who, for the sake of the obligation incurred by reason of the matter esteemed of credit, is bound to make payment:

Whose realm I have appropriated for a term defined, the creditor thereof.

Ceterum, penes debitorem dominium efflavit.

But it is impossible, however, that a mortgage should be so constituted, that it may be deemed secure, when any advantage accrues at the termination of the term, by means of a pawn or security interposed.

Therefore, where the res ipsa is not laid aside, nor is its collateral creditor entrusted therewith, but it is subsumed under the naked consent and compact thereof to the same, the collateral liability remaining with the debtor, the hypothecation ensues, not the pawn.

But the king, who was unable thereto, said: "I am bound to perform it." The king spake: "I am bound to perform it."

For he hath his own son.

Therefore, the creditor is not compelled to try pignity on a pony within a fixed period; for the pony neither polisheth, nor hath any design in the matter, nor retaineth a pony as security for a hundred years.

Why, indeed, should I prosecute that enterprise which he doth hold and abandon?

But in the case of a mortgage, if another party hath caused the postponement thereof, although such postponement was incumbent upon him for the term of ten years, and he hath executed the same with perfect faith, believing either that the mortgagee, or he himself being absent for the space of twenty years, could proceed further therewith; yet, save in the event of his having personally undergone such experience within the aforementioned decade, or of his continued absence, no additional procedure can be lawfully undertaken.

The Saimasians were in their prime.

Much:

Another:

There exist pignora and hypothecae:

The discrepancy:

Let us, therefore, observe the tenets of our jurisprudence; among which, it is incumbent upon the mortgagee to be unable to effect a third mortgage, except upon the prior discussion of the principal obligation, and the agreement of the creditor with the possessor of the third mortgage, even before the principal debtor be subjected to examination.

The ratio, it is true, did impel Marcianus, as he himself had asserted, to deprecate solely the sonant names of the pi-gnus and the hypothecus.

The synonym of the plane of terms is identical to that of the vowel.

Which it is impossible to vindicate.

Or, as the vulgar maxim saith, "Give the pignori to the populace."

The hypothesis proceedeth thus:

Do they yield?

Certè eara est ab aère, de domo, et de quocunque alio, quod dictum est aliunde, quod supponatur:

It is granted.

But it remains to be inquired whether such a query be requisite, or what it may be intended to denote:

The pignories are opposed; and yet, if their own voices be aggregated, it is to be understood that the creditors are delivered over to be postponed, even hypothetically.

Is it alleged, "To give"?

Nay, nay, nay, nay, nay.

Therefore, the term "pignor" is more comprehensive in its application than that of "hypotheca."

For the ensuing reasons:

The appellation of the hypothetical is obligatory, and it is prohibited for the ordinary, which is:

It was deemed impossible to bestow a gift, even on the indigent; wherefore:

In truth, they were exchanged in stone, not in mortar.

They comprehended the data.

And thus, it shall be more expedient for him either to receive another pledge, or to deliver another pledge.

As though he had also been consigned therewith, and the pignus had also been conveyed from the bottom, which he had also transmitted to the mortgage.

But let us proceed according to the due employment of our lot, and not according to its misapplication.

Pignus, therefore, is transmitted his own property, which I deliver in conjunction, and pignus is transmitted his property, which he is assuming.

Nay, I am bound.

Wherefore, at times, I would append an additional notion to the sole matter in question, namely:

They were under obligation, as it was stated, to bestow upon her the by-catches.

Marcianus law.xii. D. Who is preferable:

A Titum mutu^{us} est; cum eo p^{ecula} contractus est, ut prædiam suam ei pignoralis vel hypoth^c detineret.

But, moreover, when the pasture having been appropriated, the field, the soil, and the estate are pledged to the creditor, this is equivalent to the granting of a mortgage.

And whoever shall assert this, I will either convey it unto thee, or I will convey it unto thee in the like manner.

The creditor of the mortgage, or the creditor and the debtor, and the pledge of the pledge of mortgages, or the pledge of mortgages, should not be regarded as immutable, but the pledge of mortgages should be regarded as immutable.

Papinianus, himself.

XI. De pignoribus hypothecisque infimis, Fidejus, qui pignora, vel hypothecas, cepit, atque ita pecunias solvit.

That is to say, I am inquisitive respecting whether the same event takes place, whether the times assigned be known and determinate, or indeterminate and immutable.

Quintessentially, the title of the Digestans, pertaining to Pignorians and Hypothecians, is to be understood thus: that the Pignorians confer upon themselves the authority to transfer their portable lamps to other Pignorians, whilst the Hypothecians remain distinct.

Verum etiam rei meae solitudinem oppressit.

Whoever takes upon himself a hypothec shall be deemed to have received in full the chattels, and whoever accepts a pledge shall obtain a portion of the movables.

If, as a Jurisconsultus, I proceed to elucidate the terms of the jurists in a tenth commentary, I shall now distinguish between a pledge and a mortgage, a distinction which arises from the assumption that what is pledged for things owing is equivalent to what is pledged for the very contract of obligation itself; whereas here we consider only what is pledged for things substituted.

What is erroneous.

When it is affirmed that a sum shall be tendered, it is incumbent upon the monarch to both receive and transmit such sum.

It is asserted that the instrument of the bond may be conveyed to any person, and that he shall be ensnared thereby.

Nam et praedia bellicis quaerendi causa captiva, quae maxima dona dicuntur; qua:

They are bound by duty.

For if the security is to be accepted at this point, it is bound to indemnify itself; hence, there is no distinction between the security and the mortgage.

Yet what he proclaims under the supposition is inadmissible, and he is bound to act thus for the maintenance of his honour.

A mortgage is conveyed, and when we assert anything, the mortgage itself is bound, being given or received, by itself and by its own immovable property, which is:

Pignori, vel hypothecis:

The date is determined, the plane is defined.

Nevertheless, it is requisite to convey and to receive a mortgage, so to speak, when a mortgage is given.

Such amount is conveyed, that is, is bound.

Thus, as the Greeks themselves express it in their ancient terminology, when a thing is received in pledge, although it may not be delivered, yet a lien is nevertheless incurred: hence, it must be presumed that such a condition is imposed.

Title.

Let us peruse the thirty-fourth epistle of D., of the Pignores, anno 84 and 494 C.I.

Salmasius, son of Zohtyus, is the offspring of Zohtyus, who himself is the progeny of Zohtyus.

For it is derived from the sanctuary and the dwelling of the servitors.

The chronology.

But the jurisconsult, who having demanded the payment of a mortgage on the very thing which was mortgaged, had forgotten the hypotekar:

Silence.

This may be comprehended under any appellation save that of obligation.

But the octocheir is the preeminent part of the orb:

They interpret the engagement of Mr. Ljt.

The mortgage is subtracted from the purchase of the debt as much as from the obligation.

There is no other locale, it is from the pine.

The Arabs seek the same for the detention of captives, and for the balance of those detained.

From beneath.

Hellenic slabs of Parian marble, situated in Venice.

This is identical to that of the Jews. He designates the same duty of the Jews, and he acknowledges them as his vassals, not merely for the sake of the earthly populace, but also for security. He refers to them as the same people as Quaeif and Aeif.

We were taught, moreover, that he was a priest, and, for the sake of the Greeks, a blasphemer.

This, however, is of no moment.

These mortgages are themselves mortgages, which must be secured.

Creditors are not permitted to remit to the future, nor are they allowed to tender money when they are bound to do so. They are permitted to tender money when they are bound to do so.

He shall not be delayed, but shall be shamed by you.

He is bounden by duty.

Thus the Hellenes speak of these matters, which follow in this enumeration:

A creditor is answerable for his conduct.

They possess the claim for the sum of forty-nine talents.

Quintum autem locum obtinet debitores qui etiam se ipsi tendentes appellantur, quique obligati sunt, et fidejussores, qui pro eo Ioponundit, ut Caius, primum frater, a Caio observaretur.

And when, therefore, the mortgage is held, that is to say, the land which the creditor holds from the debtor, it may be received in such wise as follows:

The debtor shall deliver the moneys, and the debtor shall deliver the moneys.

Hoc est epistula mea.

Yea, I have.

xm;

Beyond Philotas, the third in descent from the Alabadians, arose; and the Cluvians, yielding to him, became his associates.

What remained unsaid by him, it was the custom of tradition to transmit to posterity.

Hath she creditors? Canst thou?

Now, if the debtor cannot discharge the debt of the penny, it shall be demonstrated by the following interrogation:

If he desires cure, either he perish by reason of the mortgage, or he acquire the estate and deliver it to Cluvius, or he discharge the debt by payment of money.

Nihilominus certum est, hypothecam pro ipsa obligatione et nexu poni non solum pro rebus oppositis, sed etiam pro rebus oppositis, nonnullus doctissimus jurisconsultus pertendit.

Observing the deficiency in the Hellenic character, thou mayest say concerning the Hypothecans, that:

They are conjoined, and the likenesses are contained, as if fashioned in unison.

Nevertheless, it is more securely ensured by our legal authorities in the depositum than in the hypotheca; which may be gathered from the lex.

When he was dispatched by D. Paul, he is said to have replied: "Non oportet eundem esse status quem imperaveris, quia non dignus es cautela; et non jure vindicare a debitori, neque fiduciam ex fidejussore habere, ne pignora accipias."

Therefore, it is less expedient to adopt the caution of hypothecation than to adhere to pledges, that is, securities.

The naked are bound by custom to appear in so much clothing as those who are exhibited are compelled to wear.

But to speak the verity, by Tyfedxf, it would be more fitting to assert that it is not the profoundest regions of the netherworld, but rather the depths thereof, which are to be apprehended:

These are bestowed, but they are secure and apt, as the archaic writer QxAeif hath heretofore alluded. For tempests and tempests, I have previously intimated.

And, verily, the ancients, whose minds were in felicity and vigour, comprehended under the appellation of omnia whatsoever the debtor was bound by obligation to deliver over to the creditor, whether movable or immovable property, as we shall hereafter demonstrate.

They are severed from the upper portion by the distinction between the pledge and the hypothecation.

At the side of the Latins, the Juriconfuls, who were better adapted for ensuring its security.

The psalms may be deemed more congruous than the hypothecae.

What is in some measure accomplished, we shall perceive more remotely.

In the interim, I marvelled to perceive that Marcia was astonished to find the pignus and the hypotheca differed solely in nomenclature, and not in substance.

Hypothesis:

And even the pignoris are reputed to be delivered;

It is not requisite to adjudge the party penal, as certainly the Latins, and particularly the Jurists, do not thus speak.

As regards that which may be termed Servian or Hypocacean, Caius, in his Institutes, doth declare that, in reference to the distinction between pignus and hypothecam, there is nothing to choose.

It is nearly consonant with the custom of the Servians, who, as creditors, pledged the precious pearls of the Jiypothea.

Whence, it was affirmed, both the hypothecary transaction and the pledge were denominated; the former, where a mortgage might be purchased; the latter, where it might be acquired.

But in other regions, saith Caius, where a particular locus is not assigned, there exists a distinction between the pignorarium and the hypothecam.

Nam, per pignoris appellativum, hanc rei propriam originem dicimus, quae simul traditur fideiussori, et maxime mobilis fit.

But let us declare that the said convention, held by virtue of the treaty's close, is properly comprised under the appellation of a mere hypothesis.

Theophilus, whose property it was to wield words with felicity, thus renders the same:

I will accomplish this, O Jzniixtus, or this shall befall thee, O Tithus, who art a warrior of the Servians; or this shall befall thee, O Sternus.

O Jizh, let not hesitation restrain thee from addressing him as though he were a Serb.

Or did Marcianus, when there was no distinction save in the sound of the names, pronounce that the pignus and the mortgage were indistinguishable, as though he had apprehended the Servian idiom?

What, when he had omitted the Tri-Bonianus, did Marcian's mind encounter in opposition?

Ne videor quidem rationem existimare, cur Icriplerit Caius, non esse quicquam, quantum ad hypothecam asinariam, inter pignus et hypothecam differentiam, in aliis rebus interessare.

For it was not, as if he had established a spurious pawnship and mortgage upon Servia; but rather, he permitted the creditor to pursue the mortgage upon that very sum.

By such appellation, moreover, did he clearly pledge himself both to the performance of a pawn and a mortgage, thereby concurring in the discharge of the creditors' demands.

You are not, nevertheless, in that condition which pertains to the service of the United States Army.

The Marcians, who had been despatched as a slave to the Serbien host, and who, after undergoing torture and slaughter, were ignorant of the deed they had perpetrated, were labouring to confound the concurrent assent of their associates with Jurif, and to preclude his execution.

Forasmuch as out of those things which creditors were bound to pay for their debts, some were wont to be delivered, and others not; and this being the conclusion of the tradition, no such bare contract was permitted; hence, in the law, it was adjudged that they should be termed hypothecæ, and the rest pignora.

For the term pignoris, when applied to the obligation itself, is extended even unto hypothecation, and not otherwise; especially among the jurisconsults of Latium.

Hence, the pigneria aefilio, which is granted to the debtor for the recovery of debt from the creditor, is not termed hypothecarius; for a hypotheca, or that which constitutes a hypotheca, differs therefrom.

Data, quae;

He was bound by an open covenant, wherein the efflux of each party doth not extend unto the creditor; and were the oath omitted in this ceremony, it would be requisite to repeat the solemn engagement.

The man who, having entrusted his property to the creditor in arrears, attained such felicity as was consonant with his condition.

Thus the creditor is distinguished from the hypocrite in his mode of conduct.

But, that the appellation of a pignor may be deemed more general than that of a hypotheca, since fields and estates are given in pledge, though they are not delivered, it might seem that hypothecae could also be termed pignora, yet not, on the other hand, that they should be so styled; forasmuch as pignora, properly speaking, are only those things which are actually delivered.

Propriae pignora sunt, ut in nominis hypothecarii transfundantur.

Therefore, I received the whole assembly with a loud voice in the presence of Paul's tribunal.

Sixth D. Mandate;

Paulus respondit, non credens eodem conditionibus adfectis, cum ad mandatum annexum esset, ut diligentiam a debitoribus exigendam fieret, neque fidius acceptus haberetur, si non fidelis esset.

For it is not the practice of our unlearned teachers to consider the seizure of the soil alone, and yet to refrain from acknowledging the seizure of the mortgage as well.

Nimirum, qui hypothecarum aliquem accipit, non sibi esse videndum diligentiam adhibendam.

And it is requisite to observe this fallacy of our erudites, who, without any rational persuasion, have transferred the security of creditors to the custody of debtors, in lieu of pledges, more readily than in the case of landed estates subject to hypothecation.

And I shall verify the contrary with my mother, in the annum DCCCCXCVIII.

It is the mother of Salmasius.

For who can credit me as a wandering soul, liable to be ensnared by stealth?

He said:

And it may perforce be lost unto the creditor; and hence the custodians thereof ought most diligently to bestir themselves in its safeguarding, yea, and still more by securing it with all possible vigilance.

What abysses can they not penetrate?

Certè, et in Gracch[■] vetere hypothetica inscriptio:

The foundations, which are also reputed for their preëminent utility, are far more secure than the walls of edifices.

Whereupon followeth:

They are deposited with the creditor. For the penny is thus received by the palms, which are henceforth mortgaged, to wit:

And, indeed, they are reputed to denote not merely the pignoria themselves, but the apparatus or furniture pertaining thereto, which, in the case of movable things, is distinctly intelligible.

And I will receive a due security deposited with you, whereby it shall be delivered to you as a testament of fidelity; thus much do I conform to the practice of ancient jurisconsults.

But, indeed, they deemed it a more ample security in their power, so that they might properly denominate such trusts by the appellation of their own cognomen.

From which I shall be inferred.

In hoc ergo casu hypotheca et pignus idem sunt.

If this is what Marcianus intends, it is clear that the terms of mortgage and mortgage alone will be invoked. For a field is termed a mortgaged estate, and a mortgagor is one who holds a mortgage; hence, the creditor is also designated by the term.

What is it that you assert, that a pignus may be termed ipse fundus, as Papinianus hath defined a pignus to be infula by a hypotheticalal law?

I. D. In what causes ye to stagger.

Marcianus, ipse praetor, de hypocrado litaniam scripturam composuit.

Which, and what may befall others.

A modestinus leg.

XXXIX. D. de pigne ratione, fundum antiqui pignori datum, etiam pignus vocatum:

declare that the creditor receives it at the hands of the former, and the debtor delivers it to the latter.

Wherein the term "pignus" is preferred over "hypotheca" as the root of the nomenclature, we must revert our scrutiny to the origin of such appellation. In the medium Latin, the term "pignus" is employed to ensure its binding force, thereby rendering it more akin to a "hypotheca"; yet, in a more archaic idiom, it is implied that the Greek tongue more truly reflects the primordial simplicity of such concepts.

Henceforth, that playful interplay of Catullus:

Furius, our villa, neither ad orientem Flati opposita est, nec ad Favonii venti, neque apellatio vel castellum.

Verum ad mille quingenti ducenti.

Let the tempest bring forth a dread and pestilent blast!

I have attained the venerable age of five hundred winters.

Seneca, in his treatise **De Beneficiis**, thusly avers:

When I shall have fallen into captivity, I will lend my pecuniary resources unto the prostitute; and I will discharge my debt to him who deems it expedient.

Alia sexcenta pollinatorum offerri poterant, quas ego omisi.

Nec aliter loquutoseffe veteres Jurifconsultos, qui purissimo sermone Latino usi fune, nobis confiteamur esse interfectum ab eis, nisi a Triboniano interpolatum efluerit.

For it is, indeed, the contrary of every thing, and, in like manner, the reverse of every thing; for, having collected the Jurifconfulti, he repeated what they said, and, as if satisfied therewith, rested, because he had made more frequent use of Grascifmus than any other writer of his time.

For the nomenclature of Gratcorus, refer to Vesicus, who is here considered hypothetically:

To give and to oblige, they have rendered, in strict verisimilitude; assuming, they have laid down.

Hence the title Digellorum, which Tribonianus likewise inscribed:

Herein pertain those who, by the decree of Jub, are preserved in their integrity, or who are the custodians thereof, neither by alienation nor assumption.

I have no scruple, verily, but to affirm that Juriscus has penned his treatise, whether in extenso, or in refutation thereof.

Which I have transferred from the emendations of Tribonianus unto other passages likewise.

And thus they spake at that time.

Julianus Antecessor Constantis

Twenty-seven:

No filium defuncti, id est, matris, et liberos ejus titulo hypothecam supponantur.

The identical proposition holds for Const.

Lib. ex:

It is lawful to enjoin the administrators to substitute themselves in the stead of the inalienable estate.

And Paul spake slowly:

But the res immobiles, which, having been conveyed from the imperial mansion to whatsoever place was deemed sacred by any religion, or afterwards to any such place, have at no time been suffered to be sold, or substituted, or exchanged, or alienated in any other manner.

And thus, in like manner, this fable-like sense presents itself to the consideration of other authors, who flourished during the decline of imperial power.

I have also reserved the choicest Latin terms, which are as follows:

They must resist and resist.

Paul, in his epistle dispatched unto Sententia, the chief of the Pignorians.

Should the creditor, with a view to facilitating the welfare of his filial issue, aspire to pledge as a security a trifling sum of money, he ought three days prior to the aforementioned notification to have discharged his obligation towards the debtor.

The Greeks also affirm of this monarch:

The obligation of the borrower is lodged with the creditor.

An ancient inscription upon the tablet:

The marble, which the Venetians formerly employed in their manufacture, and of which we have previously spoken,

Thou, O direct and elevated, more stately than the common mode of usage, dost thus address.

Thou shalt not kiss me, nor shall I kiss thee with the seven■■■■■■■

Then, when his pilgrimage was accomplished, he was conveyed to the metropolis of Ziirat, whither he had been previously vouchsafed an opportunity of inspecting the municipal town of Zift, wherein it stood.

Let it be lawful for none of his kindred to sell, to depose, to oppress, to exchange, or to alienate in any manner whatever, by whatsoever means, or upon whatsoever pretence.

And indeed, the pledges of the debtors, which it is incumbent upon them to preserve with due diligence, are committed to the custody of the creditor.

They declared that it would be requisite to intreat the parties to intimate their intentions and to impose upon them the necessity of compliance.

The juveniles:

— Viginti milia uncium in Pignoribtu posita sunt.

Simultaneously, thou must either adjudge it to the creditor or to the debtor.

Thereupon he recited unto them what he had previously interdicted them from partaking.

Aristophanes in the Realm of Pluto:

Thou shalt not remove the effigy of Jit Ouk, but thou shalt remove the effigy of JuQt.

From thence, Scopes, as I shall hereafter detail, is observed in the vicinity of the pignore.

Anianus:

If any creditor, being delayed in the settlement of his due debt, shall have defrauded himself of the property theretofore pledged for satisfaction thereof, he shall be compelled to restore the equivalent value thereof.

The Hellenes, too, have lately commenced the employment of the Latin term, not without reason, at least, to express themselves.

The works of Leonis and Constadtni are respectively entitled.

Twenty-nine:

The chosen septemviri spoke.

Subsequently, in the presence of Atticus, he directed his course towards Aerox.

Among the orations of Demosthenes, adverse to Euer, were found two cftyncs of fd/j, and two of mJt and mTrfx.

Yet the repository itself possessed a distinct locality within these regions, which the creditors and captives were compelled to traverse.

Let them be set forth, opposed, and then neither; even in those matters which are so incumbent upon the Greeks, that they should be instructed.

And I spake: I am nine years of age.

But the people, and the ancients, did in like manner, and with especial regard to antiquity, denominate every thing which was opposed to them, in security of their debt, whether to be delivered as furniture, or even as pledges, which they styled bona fide; and the debtor, who had pledged his own property, was termed the author of the votum.

Pollux:

O Jbtragojyo.

v v v st II \$ r.lvJ you Cl.

[untranslatable fragment in source]

D■m■sthenes in hoc adversus Timotheum:

From the method of the TSAIR.AR.VM.

JOSH the son of Noah.

A xtnQux 7mSrui Siu 7 rap bcjffif ra/xd Igiiv.

For the residue thereof, I will furnish thee with an enumeration of the titles, that is to say, the designations of the generations which were wrested from the ocean by the trophies of martial conflict.

Similarly, in the oration of Axqth sexjvysexipr), wherein the speaker, with elevated but lucid diction, periodically addresses the assembly, thus: "Verba ipsa syngrapha:"

And they spake:

By the terms of this compact, it is scrupulously provided that the debtors of wine, who have been pledged as security for the sum of Kytipix, shall be conveyed to Pontus, whilst the proceeds from their sale are to be dispatched thence to Athens for redemption, and a mortgage:

Eager were the creditors, and in his dominion did an ample authority reside until the credit had been discharged:

K "J Trageticum titulus, quod varietas et titulus nomen habet, cuius est locus in Sosipato, ibi, ibidem."

If the debtors did not discharge their obligations within their own term, it was lawful for the creditors to recover from them the merchandise which they had acquired for the purchase of wine.

to disperse the hostages.

Ha:

The merchants of the Pignons should be denominated by the Latin Jurisconsults, who are designated XZJ0 and KX.U4.

For it was stipulated in the solemn covenant, by virtue of which the isles and the province of Pontus were delivered to the creditors, that even if they did not degenerate into disorder ere the close of the day, the creditor might lawfully dispossess them and recover his due.

What, then, is the truth, that the debtor borrowed a lesser sum from the value of the pledged chattels than from the total amount due, and procured sundry goods, whether movable or immovable, from other creditors, which being sold, left the entire settlement unaltered?

Two hundred and twenty-five individuals, it was alleged, had perished; and again one hundred and sixty-five were reported to have expired; and finally, one hundred and twenty-five were averred to have met their end.

The second part of the poem, wherein he doth inveigh against Dionysodorus, is thus enunciated:

Or whether any gave pledge, or any made mortgage, shall remove the money.

Hence, the appellation conferred upon Athenius by the Athenians, "Athenius," which, when interrogated concerning some matter in the present transaction, exhibited a subject of dispute.

Hic; hic;

Not merely in the vineyards, but likewise in the vineyards of other men.

They were to be represented;

There hath been assigned an interval.

Harpocrates:

Quid est illud?

I n r gat ux rem, id est, nuptam.

Vulgo leguntur, "Iuxta captus, iuxta abductus, iuxta ab te abductus, iuxta ad te missus, iuxta ad te misso, iuxta ad te misso."

Which hence hath been uttered by him unto Toipippuveus, a man of felicitous destiny.

The same thing, a little afterwards, and in the same place, he thus enunciates: "Ego vir multorum artium, vir multorum artium."

He was under obligation to deliver the pledge to the creditor, bound with fetters, and in pristine integrity.

That which is alleged concerning the eight hundred and seventieth part of them, and in like manner against Phormion, thus runs: "In tria et triginta octo millia ducenti tricesimum decimum viginti tres centorum quadringentorum"— And in another place similarly: "In tria et triginta octo millia ducenti tricesimum decimum viginti tres centorum quadringentorum"— Thus the matter stands.

Vestigia, sed clara; itineris signa, non obscura; ad Trebianam fluvium directa est via, ubi pugna proeliorum memorabilis facta est; et ibi victoria Romanorum acie decernitur, dum duellum inter exercitus Romanus et Carthaginensis hinc inde continuabat.

For ye, O Udes, who have heard of the demise of the departed, are the only ones who have refused to deliver over your mortgages; and the moneys thereunder have been borrowed from one another by some other person.

For those who were unwilling to pledge hypothecas to creditors, as if they had contracted with one of them, they retained such hypothecas, that thereby they might enjoin others to follow their example.

That which was spoken.

Nam in nomine Domini ;

Or he who gave pledge, or he who made mortgage, shall convey the money.

Pignus Ileud, qui tantummodo potestatem habet resistendi tentationi.

Under the stipulations of the hypothec, even in regard to movable goods, and conforming to the established custom, it was prohibited to confer a gratuitous gift by virtue of the syngrapha, and I was bound to render nothing, and it was requisite that the same syngrapha should secure me against the acceptance of money from another party under the same hypothec, or the receiving of a pawn thereunder, which was to be rendered to him.

In the Exception against Lacritura:

TtwTtt, elevated and lucid in diction, and periodic in structure, doth thusly run: "In the midst of the tempestuous night, the stars shine forth with serene splendour; yet, amid the tumult, there doth arise a voice, clear and distinct, proclaiming the immutable laws of nature."

Moreover, it is stipulated in the bond that these hold the land free and clear, and possess nothing save obligations; for under the same mortgage, they are bound to make repayment to some one other than myself.

Ia, in iure Romano, in monasterio apud pedem colli, ubi stipitum excisum erat, rem quae pignori dedi, nullo alio obstrictam, tamen non obligatam.

This is that which the Greeks did discourse upon; and in Bolporum there existed another spot where their minds might be diverted.

What they purposed to procure for that purpose wine, and to transport by ship, as it was wont to be termed, the Athenians, upon their return from the vessels, imposed upon the Libyans a burden of money for their debts; and the creditors burdened them with their own pecuniary claims.

Thus, the citizens of Clazomenia received the price of oil, which had previously been estimated as its value before exportation, or as it was sold to a stranger, in order that the name of corn might be deemed equivalent thereto, and so be redeemed as a pledge.

Nec dubium est, quin frumentum inde coemptum ipsi obligatum fuerit, ut et pretium, quo deinde Clazomenis a republica venditum fuisset, idem fuerit; omnino Atticus xsu e0ii*x tam rem mobili quam immobili, quae pro debito obligatur, idem fuerat.

From the force of the words, it is presumed that the creditors, he said, were thereby bound to proceed to that place, which appears to be alluded to in Aristotle's discourse, wherein the inhabitants of the city of Clazomenae have dealings.

That which pertains to the respublica is the due regard to be had for the quantity of oil which has been committed to the foenori, and which hath exceeded its proper limit.

Therefore, and in like manner, is imposed upon, and subjected to, the creditor, the obligation and duty of payment, whereby he is himself debtor.

But all that is bound to be mentioned is not to be cited at the outset, for their name admits of such expression only in the sequel, as we have previously demonstrated.

When they had thus unfolded it, they severally marked forth their oration to the discernment of their Lord.

Cujus est locus, et tamen perspicuus; cuius oratio, et tamen clarior; cuius sermo, et tamen luculenter; cuius scriptum, et tamen elegantius; cuius verba, et tamen eleganter; cuius dictum, et tamen lucidius; cuius sententia, et tamen perspicacius. Hoc quidem modo dicendum est, non ut verba deforme et sonum gravius faciamus, sed ut ad gravitatem et ponderem nos attinamus, et in verbis nobilitatem et in rationibus claritatem. Et sic, ut velut in periodis et sententiis periodicis, cadentia et gradatim progressa verba, in ore nostro reperiantur, et illa quae sunt nobiliora et magis digna laudis, nobilius et laudabilius pronuntiemus. Et hinc, ut vocabula nostra nonnulla antiquiora habeant, non quidem ut omnia obsolescentia et vetusta adhibeamus, sed ut in locis his aptissimis, utrumque, ut et novum et antiquum, adiuvet et decoraverit sermonem nostrum.

Now, when he had reached this haven, he had returned to his native land; whereas ye, and the rest of you captives, whom he was bound to make his spoil, he now purposed to impose upon.

But verily ye shall be made aware that in certain cases the testimony of a citizen, who was charged with a criminal act, is rehearsed unto him, since he lacked that which he ought to have furnished. Thereupon ye shall observe his demeanour, and ye shall communicate this unto him.

Therefore, when concerning him and against him, he is termed "the absolute man," for, as we have previously detailed, he was the individual who excited the multitude before the king of Salmasii.

What, or what, is termed henceforth, which is:

Which can only be understood in reference to the immovable substance.

He shall have imposed upon him eight deputies, by whose means the creditor may be satisfied that the debtor is a foreigner.

For this cause, it devolves upon me to lay down before you certain titles which I shall shortly treat in more detail.

Pollux, in his ninth volume, chapter the first.

Of the fact that he was bound to discharge the obligation for the debt, it is meet henceforth to discourse.

He who is indebted by indenture to the creditor, and bound to deliver the debtor himself, or to transfer his pledges of things pawned by the debtor to the creditors, or their servants, who were wont to pilfer such pledges from the debtors, is termed **φειλητῆς**.

[illegible]

quatenus, quatenus, quatenus, quatenus, quatenus, quatenus, quatenus, quatenus, quatenus,
 quatenus, quatenus, quatenus, quatenus, quatenus, quatenus, quatenus, quatenus, quatenus,
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 quatenus, quatenus, quatenus, quatenus

But there is nothing absolutely immutable, whether divinity itself, or aught else, which cannot be transferred to the dominion of the deities; for it is indeed the heavens, yet not the heavens in their fulness.

Some, nevertheless, (and certain of the more recent grammarians, and others who have been in antiquity for a protracted period,) have lamented this.

To Harpocrates in the phrase, these words are thus addressed:

Is it true that the said T.B.T., in his writings, hath ventured to affirm such opinions?

I, judge of this cause, pronounce.

Fundus aut ades, quas vir nobilissimi nominis dabant pro eloquentia, civem appellare, cum proprie fit; atque ita Pollux regem vocat, in libro tertio, caput undecimum.

Aeius, tu vero zeternum videre non potes, sed tantum hunc diem, cuius finem prosequi debes.

The mortgage, which remains in the possession of the debtor, is hereby obligated to the creditor by the bond of a pastoral contract, for the security of the debt.

As for the newly constituted Consuls, they were, in truth, profoundly ensnared by the sonorous effusions of their own voices, as if, in the assembly convened for their exposition, they had been feasting upon some vast and monstrous delusion.

The identical event transpired under a simple compact and bare covenant, to be observed by the thirteenth offspring of Hothomannus, according to the twelfth book of his writings.

Chapter I.

Where, through pernicious perversion, the mode hath been subverted.

Thou art the sole one.

IV. De Pignoribus, et Leg. D.

By the agency of the devout progeny, he hath collected the entire congregation, not dissociating it from the bare conclave.

Certae conventiones possunt esse nudi perficiae, et cum fructu, et cum fructu in fine.

For the compact, which, not being attended to by the custom of the pignor, but by the fact that the pignor was thus bound by the obligation of the fiduciary oath, whether it had been conveyed gratuitously, or whether it had been so contradicted by the concluding words, that the appellation of compact remained naked and unadorned.

And that which contrariwise is termed the *lex pignoris ex nudis conventionibus contracta*.

X. D. de admonitione pigneraticiae, tantum de verbis quibus locutus es, quantum de verbis quibus locutus es.

Elevated, however, and with lucid diction, it shall be deemed by you, upon perusing this passage, that the authors might be permitted to utter their sentiments respecting the matters in question, if presented to them with due arrangement and due consideration.

Let it be given, and the iodine being gathered, may diverse doughs be prepared from the conventual establishments.

First, he observed, "I shall proceed to the abbey of the identical appellation; and thither likewise will I journey. Yet neither Paulus, nor Cicero in his defence of Caecina, hath convened to such a place."

We do not credit this proposition, which is not astonishing, seeing that it has hitherto been invisible to all men; and when the day's labours were concluded, he thus declared:

Let it be the same as with the ways of the convent.

Similarly, it is a *patulus* and an *conventus*, and a *pactum* and a *conventus cum patu*, denoting a spacious court and a *conclave*, with their respective alliances and agreements.

Thus, verily, did they discourse.

Thus, in accordance with the stipulations and compact of the treaty, and in conformity with the same terms whereby it was established, I have declared my assurance that henceforth this shall be the outcome.

Agelhus, in the twenty-first chapter:

Jisius, alias Metius Fufetius, or Fufetius Albano, or Futtantius, non admodum numero librorum literatorum, quorum nobis cognitum est, in eius scriptis numero multum conscriptos habuisse, qui quoniam *pactum et condicium cum rege populi Romani perfide rupit*.

Therefore, I have assented that the compact and stipulation which any individual hath entered into with another party shall be consummated on the identical day and in the very spot

appointed.

Similarly, in like manner, the compact and convention of whatsoever contract, wherein one party hath agreed with another party, shall be inscribed and sealed.

For they have affirmed, that the proper covenant and compact inter pares, or the convention and agreement between parties, which we term a pact, is, in their phraseology, identical with what they denominate the covenant and pactum deus inter deos; and that this latter is, in its turn, synonymous with the former.

Cicero in behalf of Caecius:

There is a formula for judgment, or for self-restraint, or for endurance and concurrence.

Not so remote are these woes, O patience.

The conventional formula, being one and the same, doth stand forth with uniformity.

What might even be said, I assent.

And Cicero, in his discourse upon the Orator, thus spoke, after having collected his thoughts:

In foro tabula, testimonia, patta conventa, stipulationes, cognationes, et affinitates.

Therefore, it is requisite to unfold this common fallacy in conjunction, and not disjointly or conventionally, as is wont to be done.

He partitioned these two places into the divisions of the compact, since the stipulations are formed by words, and the patta and conventa are the stipulations themselves.

He termed it, and thus initiated.

the sixth;

Nevertheless, the convent and the conventum, and the Fionfalia, a monastery of the same appellation, were both laid waste by the Templars.

Perpetually, indeed, is it distinguished by the vulgar tongue; yet nevertheless, a convention is held, and the appellation thereof is referred to the modus in which it is employed.

F. If the vehicle.

Elevated, yet lucidly expressed, it may be asserted that the conventus et puellae idem est quod puellarum conventus.

He comprehends the nuptial issue, the dowry instrument appertaining thereto.

The Title in the Acts of Saint Paul.

It is not to be perused apart from the bulls and convents; but conjoined with them.

Which is consonant with the foregoing, and it is inscribed, "Of the assemblies of the bulls."

For it is asserted that they are divided into parts, and again into parts, and yet again into parts; and the vulgar custom is to denominate them dormitive. Permit me, however, to observe, that they are severally distinguished by the jurists into several parts from the convent; and this is owing to their being of a mixed nature, partaking of the nature of the convent, and being compounded of various confused species, such as the panther and the camel; for though the former is styled conventum in the title of the bull itself, yet in the body of the document it is termed partum conventum.

In bonis fidelium contrahitoribus, inquit, puerum convenire non poterimus sine Dei auxilio, velut per solvendum contentio dissolvitur.

The title of the codex is assigned to the cattle of the convent, rather than to the dowry of the bride and her spouse, nor does any other interpretation attach itself to this term. In the cattle of the convent, a certain ligature, a ligature, a ligature, a ligature, a ligature, a ligature, a ligature, a ligature, a ligature, a ligature, a ligature, a ligature, a ligature, is discernible.

And verily, why should he recite the pasture unto you, when he hath uttered this very thing?

And therein is contained a cpntra of the deities of the Nyphod.

And Eve encompasseth this day with her feet.

Cæruleum sed tamen perspicuum sermonem, periodis structum, cadentibus modis, admodum antiqua lingua casta, sed necesse est ut "tu" et "me" in locis naturalibus instent.

Where the charter of the preceptors' convent was not to be confounded with the verses of either kind, yet the latter were to be distinguished from the former.

He was a man of lofty stature, distinguished for his valor, to whom a considerable sum of money was confided by one of unshaken fidelity.

The Law of Leonius and Constantinus is emancipated.

XXVI:

[illegible]

Wherefore, concerning those matters of which we have mutually agreed, and wherein our parties have conjoined assent, I stand remote; yet in this matter have I concurred with you.

Therefore, not merely the pasturage of the convent, but even the stylenes of the temple, are implicated.

If, nevertheless, any portion thereof remain unsaid, what is it that thou dost omit?

Verum autem hoc est quod manu datum est fructus.

Thus and ξγων and ψκιος (pe.).

Pollux, in his Eighth Book, Chapter Twelve, thus writes: "ovysapMpiit ezwxXXxyftx, Gvu&aXcuei, tfXfifixlHenius orwx." And when the multitude of those judges who sit in counsel is augmented, it is the opinion of the greater number that prevails.

However, Alius was more frequently encountered among the Greeks.

These are the things which I have expounded in the ensuing terms:

Paulus apostolus Iis Galatis epistula quinta.

They alone shall have the privilege of employing it according to their own discretion.

Whether it be a promenade or a stroll, the T8ux, the cloister of the convent, lies nigh.

Of the courtyard of the convent, which I have already detailed, I am aware that I am newly acquainted therewith; and that I am anticipating the future of the new convent with admiration. Nevertheless, whatever may be adverse to my inclinations, or productive of good, I am assuredly satisfied.

Vatia, inquisitio, quae in hac scientia magni fuere, qua vel nuda vel conventa vel impliciter patia in iure civili appellantur, ea neque nomen certum, neque praesentem & subiectam negotii quartae circuli.

They possess a rationale for the administration of salvation's concerns.

Nam quod hoc nomen est.

It hath a certain name, and a proper appellation; and this name is referred to a northern and eastern people in enmity with it. It is termed the name of a desolated nation, the cognomen of a feud, the denomination of a locality, the title of a spot, the designation of another tract.

But I, in all the named and the unnamed alike, was bound to hold a place in the compact of the deities, though it were but by written bond.

Nam et palatinum conventionis venditionis dictum est paënum, qua:

The scripture doth not enjoin the sale; but thus is the compact of the fellowship, the compact of the partnership, the compact of the loan, the compact of the pledge, the compact of the mortgage, the compact of the suretyship, the compact of the bailment. These several agreements are deemed by some to be the generic terms under which all contracts are comprehended.

But Paul's law condemns them for their wanderings; nevertheless, it is incumbent upon us to discern the truth from the obscurities which have befallen the interpretation thereof.

Twenty-nine.

Of the Novationes, where the discourse initiates, the subsequent terms serve to distinguish it from the spurious:

For in the transactions and agreements of a private nature, it is impossible for the supplicant to address Jcirus, who, having been delegated thereto, owes him a considerable sum.

Herein, hiccoughs and convulsions are disposed upon the opposite side of the edifice.

Meanwhile, no distinction exists between the eighth and the eighth covenant.

The following are properly denominated contracts:

Grarcis are designated as mu/aXMy/tctlit, as Labeo attests.

At the epoch of composition, TXgglnjnf, Hрпиyoixf, commonly styled Zpfyf-Ulfidpnxxi, inquired whether a register of the nomenclature of Fgtva ought to be compiled; a matter which it behoves us to consider.

For the Latins, who denominate it contractus and pignus contrai, term it contrai.

As in these instances, the following engagements are observed:

And they mutually bind each other; similarly, they are under obligation to concur, as follows:

And amongst the virtuous:

The offspring of the deities are reckoned; and I cannot but conjecture that their names shall be adduced against him.

In the Book of Maccabees, Volume Primus, Chapter Décima Tertia, whether the twain be distinguished?

orwx et xystot hinc mod■:

When Txif approached him, he thus addressed him: "You, O illustrious personage, are preeminent among men." And again, he spake: "You, O illustrious personage, are preeminent among men." And yet once more, he uttered: "You, O illustrious personage, are preeminent among men." And for the fourth time, he declared: "You, O illustrious personage, are preeminent among men." And finally, he exclaimed: "You, O illustrious personage, are preeminent among men." He also said: "You, O illustrious personage, are preeminent among men."

Reciprocal assistance:

I discharged the expenses of the monastery.

At ut and exodus.

Is there any other cause for this? Is there any other ground for this? Is there any motive for this? Is there any argument for this? Is there any reason at all for this?

The term in Latin signifying clarification is Graecus; it is derived from the word ■νδροπλαξ■ζ, signifying androplexy.

And in the same year did Axrfti, whose birth was thence, interdict Novella from engaging in hostilities.

The Hebrew term "Exodus," which I have endeavoured to elucidate, may pertain to the customary acceptance of a pledge, and may also denote the seizure thereof.

Verily, the ratio affirmeth.

The Salmatic Ratio may be regarded as an index of the receptivity thereof.

In the Book of Deuteronomy, but scarcely can another interpretation be assigned, save that which is sole and unique.

If thou art capable of apprehending this, it behoveth thee to do so.

This proposition, established by the erudite Halicarnassus, was thenceforward admitted without contradiction, provided that he continued to occupy the station of a judex summus.

Pignora, captivata in causa iudicati, vel aliorum vendebantur, vel ipsi a creditoribus ad dictateum auctoris interdum accedebant; et per jus possessionis omissa a principe impetrabat dominium.

From another quarter, there was no solicitation of pledge, whether from one seized in the royal tribunal, or one committed to custody on account of a debt, or from him who had been intrusted to the security of the sovereign.

According to the XVth Decemviral Law, manifold particulars are elucidated.

I was unable to impart to him a solitary blow in a disentangled posture.

The one, albeit with a more grievous wound, was arraigned for felony and maleficium.

Lex de pignoribus, explained and promulgated.

For the oblivion of the barbari, the same is termed Latinitas, which, as I hold, is the most ancient of tongues.

Ea prohibita etiam per plerosque barbarorum gentes, non solum in reo qui deberet, sed etiam ne quis pro aliud pignoraretur.

The foot, it is said, is accounted a person of eminent character, not on account of a diminutive cranium, but by reason of a sound understanding.

As the Hellenes would address these men, "Lo, a man" from whom they might exact the bond of loyalty.

The species of two plectrum swine, voluntary and involuntary.

By how many modes the law might justly claim a voluntary pledge, so often might its species be delineated.

Concerning the Praetorian Pignora, and the judicial proceedings.

By MODUS, however, the VIATIUM of the ARVICES.

What is this?

The clamours.

A legitimate pledge, et tu licet dicas eam esse concessum.

It is a matter of theory, since it is derived from a valid contract.

On the distinctions of the Praetorian Pignora.

customary.

The Law of the Bæcilienses, explicatedly regarding the postponement of debts, and the augmentation of pledges, was granted; and, having enlarged their bodies, they were permitted to enforce the seizure of security.

It was against the Roman law to behold it, and contrary to the edicts of Lucian: herein I have boldly transgressed.

How it harmonizes with the discourse.

I venture to liken myself to the Praetorian tribunal.

Pignus, who presided over the general assembly of the Pignons, earnestly supplicated that the assembly of the Pignons might be conjoined to that of the conventional assemblies. From the outset, there had been no concordat betwixt the contracting parties.

The customary creditors were intrusted with the office of judging.

Diocletianum licuisse capiendi pignoris causae crediti finem judicis non facturum dumtaxat.

It was the Lex Legionum that was re-established; and the Lex Leoni, likewise, was re-established.

And the orations of the Bacilians were as persuasive as they were eloquent.

And Gr. Acous, the proprietor of the cabin in the rear of the vehicle, was so affected.

El-Zetvlu) speak of the remainder of the real estate.

What was it that rendered him his own son?

What art thou, Vlpianus?

And I will distinguish myself in my labours.

He believed in the aqua; hence, in this instance, he possessed his own sentence.

The burden of debt, which was assigned to the creditor, as in the case of the Servian woman's obligation, was not subjected to the monarch for the purpose of redress.

But I will also bestow upon you this boon, and I will not withhold it from you, nor from a faithful creditor; for it is a gift derived from the very materials of which our masonry is composed, which we hold dear.

Declare to you the double of the species of ferns.

Or genuine.

That, while we speak in a barbarous yet appropriate manner, as we have hitherto done, the same may be termed the body of Justinian:

Or the conventional doctrine, which, by the proper nomenclature of the hypothetical proposition, is appositely designated the jurisprudent wisdom of Justinian.

Hxc of the general and the particular, elevating yet lucidly distinct.

The debtor shall possess all those bonum quae habuerat, and shall be content therewith.

There is a certain quantity, which I shall specify hypothetically:

When they arrive, they will either lament or exclaim.

52.8 C. L. Saimas!

Whether inscripted or merely conceived.

Justinianus Novellavrus, a man of three hundred years, distinguishes, with admirable lucidity, between three hundred and five hundred years. Born in a sluggish household of Tpecilia, he promulgates a novel prohibition, whereby he forbids the ecclesiastical names, being

immovable, from being alienated from the sacred lore, save when they are delivered to the creditors for the corporeal debt.

To whom the place was assigned, to wit, to the Jury, to the Prairie, to the Vessel, to the Vestments of the Church, and to the General, not merely to be committed afterwards, but also in like manner.

Dost thou take heed, dost thou harbour anxiety?

For it is more facile for a general to be invested with this dignity than for a special one.

Add the reason, and thou shalt be held in check by the coercive force of the hypothetical.

But verily, the Legislation of Justinian doth not enjoin that the Praefect should be debarred from appropriating the Spoils of the Ecclesiastical domains; whereas, it doth permit the General to effect such appropriation universally.

Let us believe that the fifth proposition, though more particular, is yet of a more specific nature than the general hypothesis; and therefore, it is more readily conceded by us to Tumentius in his increased ecclesiastical capacity than to the general case.

Had Justinian pronounced this to him, he would have deemed it more expedient, according to his own inclination, to adapt the language of the laws thereto; yet he would have preferred to have uttered this very expression unto him.

Hoc, however, is the distinction, as we have previously demonstrated, and ciutatis.

A hypotheca and pignoris, whereby the obligees are confined to the payment of such goods, are thus conveyed to the creditor, both movable and immovable. Justinian denominateth this identical notion.

Wherefore, as the prince permitted the economists and the charges of the Church to be defrayed by the accumulation of the funds in the impregnable treasury of Tumere, until he pledged the general immovable property of the Church as security for a common mortgage, he deemed it unnecessary to acknowledge any specific pledge to the creditors; yet he entertained no notion of the mortgage of a certain ecclesiastical benefactor being of sufficient value.

And the ire remaining was expounded by Julianus Anceceflor Const.

VII, who, I venture to assert, excels rather in the art of falsehood than in the practice of methodical conduct.

The term Qra, as it is inscribed, is:

Novella:

To express his ire:

If such necessity doth not arise, and if the fault be inexcusable, it is not lawful for a place of reverence to receive mutual debt; then, it appertaineth to the economists to engage themselves by oath, that they shall be bound to take security, though they cannot transfer the property. Nevertheless, this necessity doth exist.

Elevated yet clear diction, with sentences constructed in periodic form, imbued with a measured cadence, and employing a vocabulary that is, though sparingly, tinged with a light archaism, consonant with the style of the age in which Claudius Salmasius lived and wrote.

Corporally, however, they are not delivered unto creditors.

Therefore, it is affirmed that fiduciary pledges, even when corporeally immovable, are regarded as equivalent to the betrayal of the creditor, that is, of the money entrusted.

And then, indeed, as I have previously intimated, it may happen that certain of the immovables, whether they be a tenement or a mansion, shall be transferred.

Therefore, you shall say, that, afterwards, if any man shall give all his goods to his creditor, after having borrowed the money, he shall deliver them to him in corporeal possession; and the money of the usurer shall be delivered likewise.

A title, and not a mutual homage.

Thus, if there be a special mortgage, and a general mortgage, even so may we properly speak of a corporeal and real pledge, wherein a general pledge and a special pledge may each have its own distinct application.

Justinian, however, was unwilling to grant any special benefactions from the immobile revenues of the Church's administrators, whom we may designate by that appellation.

Certè stantem me judicio meo credam, vocem 'JfautHg ex verbis Novellæ :

Let him be extirpated; for not even Julian, who comprehends the entire scheme of Jégisle, was apprised thereof: for so it seems to me.

These are the words which I have penned: Eat thou. The other is azure, and the other is albicant. Two are albicant.

For Justinian, moreover, forbade not only that the Churches should make a mutual gift of their munera to the Tumentians, as much as he owed to the general equity of the law, but he likewise forbade that any of their immovables should be pledged to the mortgagor under the title of a special hypothec, lest anything should thereby pass into the possession of the

mortgagee.

Wherefore, and but a short time previously, those creditors who had been resolute in receiving from ecclesiastical authorities certain immovable properties as pledges of a corporeal nature, have been adjudged to forfeit their claims upon debtors.

And since the creditor hath received a corporeal detention from the body of L. 1, 530 Ci, Sai likewise received a corporeal detention therefrom.

For whatsoever is transmitted to a custodian of a creditor for corporeal detention is properly a pledge which is solely bound by the obligation of a mortgage.

Non oblitus mentis suae novella, sed a re iuxta, quod nostri doctores, quocumque ille fuerit, qui titulum capituli ejus inscripsit, -sserunt!

G?

You, Tufdx, art sister to TyTjznJtiicy, and thou, JV, art son to Tyithxri.

For, as I have previously intimated, it was not forbidden that they should grant him a special mortgage.

They received each other, but did not receive the same sum from the king, who yet retained such generality that he might compel the mortgage upon them, provided that the creditor were not delivered to the oppressor and detained in custody.

Unless the voice from the Novellae of Justinian be sounded forth, then it becomes more luminous and fluid, and is hereinafter to be amended in such wise:

That this may be deemed a manifest reason why I am not persuaded that you will be enabled to conform to this requisition, and why you will be enabled to conform to this requisition, and why you will be enabled to conform to this requisition, and why you will be enabled to conform to this requisition, and why you will be enabled to conform to this requisition, and why you will be enabled to conform to this requisition.

And yet, when I am placed in the identical posture with you, I am set in opposition thereto, that I may be found in the like position with you.

But I have never deemed it credible under the appellation of Ecclesia, which is styled Eccleflia:

To whomsoever it may concern, I hereby bestow upon them the comprehensive hypothecum of all my possessions, wherein it is thus expressed:

Belonging to the Church, it was lawful for creditors to remit unto them their debts.

A Certain Good Church:

Hypothesis:

They were constrained thereto only so far as was requisite, if such a necessity hung over them for mutual aid, that they might not withstand it.

Julianus Const.

The ensuing are those ensuing:

If any urgent and inexcusable cause menaces to obstruct the receipt of the mutual funds, it is consonant with decorum, nay, even requisite, that the economists, though unable to transfer corporeal possessions, should be permitted to pledge themselves by an oath; thus, let it be so ordered, that the bodies of the creditors be not delivered up.

Justinian conceded a specific hypothecum upon the inalienable property of the Ecclesia, and by this enactment, it was not a singular pawn or pledge.

This, therefore, is to specially enjoin the Church in its immobility; having previously conceded such permission, not for the private and corporeal advantage of the Emperor alone, but for the common good.

The creditors, however, are willing to defer payment of their debts.

Nevertheless, the Novella in question derogated from this constitution, ordaining that ecclesiastical administrators might lawfully be employed by the Church for the payment of tribute or for any other exigency of pecuniary demand, not merely in respect of immovable property, but also in cases where a mortgage was involved.

To bestow, but also to resort unto Jpedale, that the creditor might imagine the funds were to be reclaimed thence from his possession; and that the moneys which he had received at his hand should be reckoned to himself, being no greater than a fourteenth part of a hundredth.

So Julianus in Graecce scripta est Novella:

CXXIV, Caput Quartum.

Nunc ergo, ubi exaltatum est sed non obscuratum intellectum, et cum periodis structus sententia, modicam caderemur rationem, leviter antiqua verba, nec multum uti formis "tu" solum ubi necessarium esset.

To let a respectable dwelling, it was lawful for the administrators to pledge the security of the inalienable estate, and to convey it to the tenant on hire, that the creditor might repose confidence therein.

The Pignorians, upon receiving the gift of all good things, are deemed to possess no less an advantage than that which is generally true of any individual who is specially bound to exceed his own ordinary obligations; as is stated in the sixth law of the Decemvirian Tables concerning Pignories.

The code.

Here:

They are committed to pledge, that the captives may be constrained to yield.

Justinian's Novella, the twenty-sixth, Chapter I:

[untranslatable fragment in source]

They are, therefore, excused from the general obligation, which, as I have already intimated, is customary in ordinary transactions; thus, according to the law cited above, to D. Eodem.

Nam hinc in usu quotidiani legis.

Of the Delegate of the Supp[re]l[is], D.

Thus, D. Eodemus, the debtor of the vestry, and the mancipation and ministerial services which were requisite for the execution of the law, were abandoned.

These matters are pertinent to this action, as the concubine, the free woman, the pupil, the lawgiver, D. Eod.

Leg.

The penultimate D.

of judicial authority.

Herein it is manifest that the general obligation of the present and future generations did not extend to all things; nay, not merely to privations, but even to enjoyments, for it was then in force which bound all good things.

There is a further distinction, namely, between the express and the implied mortgage.

It is manifest from which appellation the denomination is derived.

Tacitus, in silentio juramentum sibi dedit, ne creditoribus pecunia foederis solvenda tradiderit.

Hotoman, however, was not cognizant of the fact that the Digestorum and Codicis, which he himself had composed, were vitiated by the pernicious taint of his own compositions; and that he might have remained silent regarding the latent causes whereby a pledge or a mortgage was secretly contracted.

And his words, whether by the librarian, or by Tribonius himself, were appended unto him.

The reason for this is, that as such transactions are conducted according to established custom, there is no opportunity for silence concerning the premises of the pledge, within the city's jurisdiction.

[untranslatable fragment in source]

Let us, therefore, proceed in this method.

J.J.J. may be permitted to relinquish this station.

If it be frustrated.

Forasmuch, however, as the security may be conveyed, it may likewise be contracted tacitly, and in a manner that is hypothetically conceived, being alone bound by a mere convention.

If, in the case of pignora, we are to speak properly of movable things which have been delivered, and of a hypotheca concerning immovables, which, being a simple agreement, does not bind, and which the inquilinus has introduced into the domus and inhabited, they would not merely be bound to pay the pension to Pomponius, but also to make amends for the deterioration of the habitation through the fault of the inquilinus.

XI D. In quibus causis.

Which law bears witness thereto, manifestly rendering superfluous the addition thither of what is inscribed in the rubric, or ensign thereof.

I trow, however, that more accurately it should be deemed to have been added by Tribonianus, or else to constitute a hypothesis.

For the term *pignus* denotes a pledge in general, whether drawn from the Hypothecary Law of Justinian, or from the pledge in its proper sense.

There is indeed a general hypothesis concerning the appellation and mortgage; yet it is not the dictate of Justinian.

If, upon perusing that rubric, we find the mortgage therein described to be so comprehensive, then the entirety of the pledge is embraced, that is to say, both the pledge and

In quibus rebus, ubi minutor differentia nominis generis apparet, tunc rationem habet existimatio hypothetica.

The law and the code enjoin that the same obligation, which is rendered by virtue of bonds to those reputed creditors, shall henceforth be discharged by contributions; thus, for the welfare of those who are deemed creditors, and for the welfare of those who are reckoned as debtors, similar provisions are imposed.

I will also.

Specifically, it is presupposed that:

Mute:

Let us, as an illustration, recede from the lex.

and D. Eodem.

How manifold are the modes by which a tacit hypothesis is induced, and in how many respects it is compelled; from what causes, and in whose behalf, such inquiries must be addressed to the learned.

For it is not our purpose herein.

For it was in this place that they were convened; hence we may venture to dispatch Bene, and those who had bartered their fidelity for the favour of the eminent Jurists.

What we have herein instituted, let us now dissolve, and forthwith prosecute the pignora, so far as regards the distinction which Justinian hath defined between these two species of security.

As we have previously intimated in a superior strain of discourse, all were directed to the council; for the opinion of Marcian, which was adopted, declared that the pignus was to be severally distinguished from the hypotheca as to its proper sumpt, whereas he who asserted that the pignus and hypotheca were merely to be denominated by the same nomenclature, did but sound a hollow echo.

So that no one might gainsay his contention, he purposed to subvert the current opinion of the jurists by means of his own legal ignorance; thus had he instructed us in the case of conciliation.

Whether we shall be permitted to dispatch any of them, unless it be deemed conducive to the matter at hand, remains uncertain.

Now I propound myself, and will exhibit to you, Tribonia; lest I should enter upon this controversy.

Hypotheca, quod in jure Romano ante non erat cognitum.

The vast undertaking, and the laborious enterprise, which it is our hope may prosper, let the learned arbitrate, but not the instructors.

For there are numerous and cogent reasons, whereby the slow consumption of the fume is thus accounted; and Marcianus, being the author of this treatise, and Sc, the source whence the autumnal moisture springeth.

When, in his treatise on the language, he has stated that the formula for the hypothecary bond differs from that of the pledge merely in the sound of the term, which offers no avenue for reconciliation with the vulgar articulation of the Justinianic pledge and hypothecary, who shall dare to believe that he has strayed from the opinions of the jurists, those who were then living and held diverse sentiments regarding the mode of usury?

If Ceculus, that jurist who, concomitant with Marcianus, did live and write, had apprised him of the distinction between a pledge and a mortgage:

The same Marcian, who, inasmuch as he did not appear to be the herald of the termination of the conflict, maintained that the D/Gesta had been compiled from the labours of Tribonianus; unless, perchance, it was in reference to the appellations of Tono and Rem, as he himself communicated it; and that other designations and conceptions of such names prevailed among the Hellenes and Latins.

Pignus, in the language of Latium, doth signify whatsoever is bound by compact to ensure security, or that which is transmitted under such appellation.

Therefore, Justinianus was more intent upon the hypothesis than upon the plough.

Pignus contrahi dicitur duplici modo, vel nuda conventione, in qua Justinianeae vel Tribonianeae hypotheca locum habet;

Or the king's own tradition, in which he is interred with a token of fidelity.

[untranslatable fragment in source]

The creditor is summoned to adjudicate, whether whatever is assigned from the bonorum possessio to the creditor, movable or immovable, be deemed a debt by virtue of a contract, or by reason of a transfer.

For, in truth, it is the hand of the monarch which effectuates motion, and they assert that it is immutable.

The senior, being brought up in the identical locality, denominated himself "ΚΧΦ" and asserted: "Henceforth, such procedure may be adopted," he exclaimed, "to distinguish the motion of the hypothetical, which consists in:"

Pignora sunt Justiniano, qui puniendi reus est.

Therefore, I shall not be able to demonstrate the identical proposition to you, and to those venerable Jurisconsulti of antiquity, who were contemporaneous with Marcianus, in accordance with my sentiments; yet, it may be established by numerous testimonies that this is consonant with the opinion of many of the contemporary jurisconsults of the elder days, whose assent to such a doctrine can be adduced.

When Paulus, in his treatise upon the pignora, both the real and the conventional, which he had denominated in the Sententiis, confined his discourse exclusively to the former, and entitled his work "De Pignoribus."

Tribonianus inscribed the sincere epistle; and, of his own accord, appended a novel addition, which had not previously been recorded in the treatises of the jurisconsults, constituting the first title of his Digest, entitled "Dn. Pignoribus," in conjunction with his brother, "Hypothecis."

Similarly, the title of the book was the thirty-fourth fertile volume of Theophilus and the Codicis; it was issued by Depigno in fourteen quarto volumes.

Salmasii ripis, fines hypothecis.

The Tribonianus appended thereto three Codices of Justinian in the title thereof.

At Paulum ad lectum.

D. Mandati, whose prudence had already been duly apprized, was found meet for caution, and having accompanied Jidejujsor, both were forthwith committed to custody.

While the majority of the Justinianorum insomnes, in their solitary slumber, do not perceive the odours of hypothecas, that is, the pledges of immobilium, such vapours are deemed not to be included within the valuation of a fit cautionem.

How well we have demonstrated ourselves above, we have previously exhibited.

There is nothing more frequent in the writings of Jurisprudence than the conferment of a pledge, and the pledge itself;

Hypotheca:

They are engrafted upon, or held in subjection by, the title.

The identical Marcianus, who failed to effect any clear distinction between *pignus* and *hypothecam*, in the same treatise on the formularies of *hypothecae*, equated *pignus* with *hypotheca*, when he asserted that *iura pignorum urbium non posse dari*. Hence, it could not be consonant for *hypothecae* to be so denominated.

How much under the law we explain against the law concerning the dower.

Similarly, Marcianus, in the same work, perused that which pertains to the formulation of the hypothecary scheme.

He confounded *D. Eodem*, the mortgage man, with the *pignore*.

For that which he previously denominated a mortgage, he subsequently appertained thereto the name of Paul, in allusion to pigments : thus marking a notable transition in his terminology.

If two parties equally bind themselves to a mortgage, the obligation being equal in both, whether the debt be assessed according to the whole sum due, or according to half the sum respectively due from each party, shall be determined.

Moreover, they were bound to contribute a denarius for every obligation they held.

If we reflect upon the identical proposition with the supposition, we shall discover that the analogous argument is extant in the treatises of Marcianus, and in the identical law, where the gift of *pignus* is found within the same supposition.

The theme of the law remains unchanged.

Do you conceive that *D. Eod. V/us-* shall be delivered to him, or that he may be subjected to a pledge or mortgage?

Similarly, Marcus Cyprianus, the most potentate of the universe, engaged Titus to loan him and his son-in-law sums of money, whereby he might pledge therewith his own patrimony as security.

If the supposition is to be construed with the *pignore*, then in this formula the monarch is bound to the immovable.

Furthermore, dost thou deem it more fitting to adopt the position?

Indeed, that which is bestowed upon the *pignore* is not altogether hypothetical.

It is granted.

Nam, etiamsi ad nuntium natalis receptus fuisset, tamen etiam remotionem suae vitæ per se comprehensores habuerant: nam et pignus fi generali notione accipiat, ipsam etiam hypothecam proprie dicam comprehendit.

What is the appellation of the generic term which I have, by virtue of my present preposition, annexed to this treatise, designed for the conservation and maintenance of the felinian visage?

A cat is subjected to the scrutiny of JJ7, a particular enigma, since no addition can be made to its import.

If, however, the pledge is taken in a special significance, it is even deemed a quatenus, and whether it be considered its own vas?

Verum, quod non traditur, in obligatione fundi, quod non pignus nominis habet, non potest habere locum; ignificatio specialis vocis pignus.

The ancients of Junfconfulti, in their favour, declared, "He who believes in the pledge, the pledge, the pledge, the pledge."

Which hereafter we shall unfold in the ensuing chapter.

Thereupon, he proceeded to Tribonianus in sundry quarters, exclaiming:

In the "Digesta" he hath restored. The Apostle either vouchsafed affirmation thereof, or invoked an oath.

In the Hypothecarian formula, as cited in Marcian's treatise on jurisprudence, it is stated that he did not differentiate between the mortgage and the pledge. Not merely was the creditor furnished with a claim concerning the mortgage, as Justinian received it, but also concerning pledges.

Hence, in the equation's formula, the hypothetical number is deemed equivalent to the pignore; for the pignus itself, which is contracted in exchange, and is also termed the hypothetical number by both Greek and Latin appellation, is held to be synonymous with the number of Justinian's hypothecary arrangement.

Hence the concept originated in the Institutes, hb.

Four of the Attians, Tribonianus, intertegitur cum eis, et dicit, non esse in eo, quo ad actionem hypothecariam spectat, ullam differentiam inter pignus et hypothecam; sed in aliis differentia est.

Then, Marcianus, in absolute terms, pronounced that nothing distinguished the two words in question.

Subjunctive Tribonianus;

For we affirm that the term *Pignoris Appellatione* properly designates that thing wherein, according to the inventor, the most fitting nomenclature is imparted.

So it was, that she was constrained to impart the evidence of the six hundred witnesses of Jove, who testified thus:

In the *Digesta* compiled by the faith of the compiler, Tribonianus himself has congealed this edict; and, although it be yet in a state of confusion, it is nevertheless confirmed by a simple convention to be immutable.

Nam et pignori dare, et pignus dare, in locis variis, vel de fundo, quod non traditur, sed solummodo obligatur, contingit; et tamen, ut pignori dare neque est oportens, ita pignus dare est oportens.

For the Greeks and Greeks, they assert, "Let us impart confidence in the Latin tongue, and let us impart confidence in it; and let our own confidence in it be augmented, were it not that Tribonianus hath interposed alterations in their words."

Which, in its essence, is the same beneath all appearances.

And here she stands.

Let us maintain the tradition of L1 in its simple and unadorned form, J3 being likewise held in its naked and unembellished state; and let us term this convention of L. SALMASII as properly contained under the appellation of a naked or bare hypothec.

This falcem he did attain, whereby in the *Digest* and in the *Codex*, for the purpose of the monarch, it is thus recorded:

It is incumbent upon us, by virtue of the strict convention and traditional obligation, to peruse the same.

He was unable to effect the pignore; hence, by this appellation, the matter was contained, even though he was betrayed by the creditors, and more especially by the mourners.

But, saith he, it is as though it were a Servian female whom the creditors of a mortgage or hypothec should pursue.

Caius did pronounce, that the creditors were pursued by the usurers, and that both the usurers and the pledges were assailed by Justinian.

Thus did Paulus pen concerning the pignora; and he hath embraced both, with greater complexity in the latter.

Sic, who, being a member of the illustrious Codex Theodosianus, was equally imbued with the spirit of the Pignorian titles, and shared in the influence of the Tribonian lineage, so far as the law of sureties and pledges is concerned.

Let us now discuss and examine the reasons, whereby:

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary (sparing use of forms like 'thou' only where natural). A *dodoribus afferuntur adversus Marciani didatum, quo pignus et hypothecam solo nominis sono distare pronuntiavit; et iussit nomina equorum et equorum effugere.*

The first monarch to initiate a move was Pignus, and the immovability of the mortgage was established by the legal edict.

Of the Signification of Words.

The words of Caius, contained in the sixth book, are referred to the twentieth tables, and are styled the Pignus d' a combat; forasmuch as whatsoever Pignus is delivered to a Pignus, is communicated by manual transmission.

It is also evident that certain individuals have clandestinely placed funds within the royal household for their personal gratification.

Regarding the mortgage, there is naught else to be considered save that the monarch is immutable.

That which is termed pignus, is properly a pledge derived from the same root; and hence, by a strained and inappropriate etymology, it is said to be compounded of salt and unripe substances.

It is indeed absurd to affirm that it is more arduous to deduce from the conflict, when the hand, which cannot encompass the claws of the combat, is itself engaged in the struggle.

Whence the fist protrudes, that is to say, the man who, with his hand closed, strikes forthwith.

At that locale, it is termed the "Pigeons."

And I am content with the humble ware.

Hence, he is prohibited from engaging in combat.

Thus is the cord. What is it?

The Arabs are mentioned by their appellation.

How much more are they moved by the fact that they are unwilling to contend with their hands, yet are ready to engage in conflict, and yet will not endure any species of warfare; and yet they are willing to pledge themselves as hostages—IN SUCH A FASHION.

S.J.P., significatione speciali tumendi regis mobilitatis.

Usus, in opposition to the established doctrine and the authority of all jurists, who had affirmed that such a pledge constituted an immovable security, did herein pronounce him to be a captivus, and styled him by the appellation of a paul.

Let us unfold the primitive conception of the same from its inception; for the first time since its origin hath it been forsaken.

When the custom of speech hath established a contrary stability, then must this be adhered to.

From henceforth it is manifest that Caius is apparent, as hereinafter followeth:

De hypotheca in Institutiones, adiecta est Tribonianus adtextus.

I will, indeed, render thanks unto Vv/ius, of the royal lineage, for the mobility of the pignora; and I shall proceed to say:

They received the hand by which the traitor was conveyed.

Nor is there, for the most part, any other place of adoration amongst the ancients, the same appellation being appropriated thereto.

The Latins, indeed, in their nomenclature concerning the pledge, have not employed the identical appellation.

This, however, is accounted among the Greeks and Latins a pledge properly taken, and even the quatenus is so styled, inasmuch as they are indebted for it.

Add the distinction betwixt them:

Pignoris et Hypothecae:

Ad struenda: plu*efle cautiovinis pignore, quam in hypotheca. Id jam supra confutavimus, et docuimus non eflehanc Pauli mentem, qui per pignora, etiam hypothecas intellexerit.

Which they, the third party, did object unto him.

At that period, since the scheme had already been duly established, the individual in question was intrusted with the office of procuring the estate of the defunct, which, according to the terms of the late proprietor's sole engagement, was made liable to the creditor; and, indeed, some termed this transaction by the appellation of "pignoraticia."

Whence this, *nifi quod pactum et hypothecam idem esse sit?*

And when the pledge of movable and immovable property, and all that is therewith attached, shall fall into the other party's possession, so that the creditor may claim it, who can fail to perceive that both are designated by the term *hypotheca*?

But if the creditor did not within a determinate term experience the hypothecary right, then he would have lapsed; whereas he who held the pledge was under no necessity to experience it within a determinate term.

These things pertain not to the matter in hand, nor contribute anything towards augmenting the distinction of the pledge and mortgage, as they may wish.

It possesses divers attributes:

They are constituted by charter.

Hypothecaria in rem est, pignoratitia in personam. Hypothesis, therefore, pertains to the res or thing itself; whereas *pignertia*, or the lien by way of security, is concerned with the person of the debtor.

There exists a *duplex pigneriae, direfra et contraria.*

Hac erit data creditoribus ad Tum-.

Then J40 C. L. S. A. L. S. A. L. S. A. ASII, having restored the pledge to the obligation, received the obligation itself in return, and the sum was discharged.

No man will gainsay that, properly speaking, both *pignoraticia* and the *ficta hypothecae*, which are so termed, are denominated properties; and hence, such *hypothecae* ought to be styled things altogether immovable.

For by his own disposition he hath rendered the immobility of his possessions more advantageous than his own person; and he proceedeth in contrariety to his own conception, that thereby he may be reduced to extremity.

And even Marcianus, in his special treatise, hath treated thereof in the framing of the hypothesis, that it may be made evident by the law.

Of the Act concerning Pignoration, it is here stated, that even if the Debtor shall have discharged the sum of money due, the right of Pignoration may be employed for the recovery of the Antichresis.

Therefore, the operation pigneratica did comport itself as an admissible formulation of hypothecary tenure.

In the fifth place, it was incumbent upon the commuters to maintain a state of immobility; even should it be supposed that their motionlessness were such as to render them truly immobile, and that repetition thereof would not alter this fact, yet still they would be termed immobile.

The Prose, and Marcianus, who made no discrimination between a mortgage and a pledge, when treating of the mortgage of A, in this volume has not confined himself to recording what pertained to Servians alone, but has likewise detailed matters appertaining to other nations.

To all the Pignerics.

Similarly, Gaius, who of his own accord did pen one volume, likewise did inscribe a treatise concerning hypoxic contracts.

The appellation of the hypothetical instrument in operation, quasi generaliter Servianum, is nearly identical to that employed in the pursuit of pignora and hypothecas.

Sirni-Iter, designatum nominis pigneraticiae, ad regem immobilia et mobilea directe repetenda, vel contraria ab eo recuperanda, ita se habet:

The creditor, however, has been wont to adjourn the payment of the debt, whether it be on account of movables or immovables, rather than to improve my condition.

Therefore, it is incumbent to consider the term denoting the monarch, which is both potent and conjectural; and likewise the general appellation of the military array, whether it regard movable or immovable property.

Reflect the proportion of the quantity and sum to the difference of the pignor and the hypotheca:

To establish in firm and clear terms.

A hypothecarius, being a creditor, cannot institute a third mortgage against a third party; nor can the principal debtor procure a third mortgage.

It was not arduous for him to elude the Novella; yet to effect his liberation from Jejufforiboscap presented a greater challenge.

The Fifth.

But the creditor, who, though not even the principal debtor, was unable to concur in a third demand for the discharge of Teflbrain's obligation.

The Code.

It is a pignore dejected and disconsolate.

But it is not our intention to discourse of the illustrious and erudite Consul-General of the Law, who, as yet, had not acquired any knowledge of the subject in hand; rather, we address ourselves to the ancient mode of expression and usage of the jurisconsults, which they employed even when wholly unacquainted with the particulars.

At the instant of the document's signature, the creditor was apprised of the encumbrance; and no room for ambiguity remained concerning the same.

But it is not unreasonable for the Greeks to assert that in former times jurors and later judges were so imbued with the notion of the party concerned, whether he held movable property or immovable obligations, that they could not entertain any transaction without motive, as was strictly prohibited by law.

Postremo ex his duobus legibus nunc pro meum videre possum, quod distet pignori ticius creditor ab hypothecario.

It is requisite to ordain a fresh enactment, whereby a creditor shall not be enabled to vindicate a debt due from a debtor under the stipulations of a mortgage, save upon condition that the said debtor hath previously instituted an action against the trustees, sureties, and guarantors.

This arrangement doth not of itself hold in the case of the mortgagee or the pledgee, for it is not merely the immovable things alone, but even those things which were made immovable by agreement, that are recovered by virtue thereof.

Nara et instituta Justiniani plene testimonium dicunt, quoad hypothecariam qua in rem datur creditori; et differentiam inter pignoris et hypothecam.

From henceforth, I shall proceed to the ultimate code.

Of the Pignori praetorium, nothing can possibly be conceived; even the creditor of Principiah could not be persuaded to assent to a third point. The Pignori maintained that not only did the Primus Prorius exhibit undue tardiness in adjudicating between movables, but also that the Jsniix and the Pei were equally remiss in their promptitude. Hence, it is manifest from the same authority that the Greeks did not accept his opinion, being misled by the notion of

hypothecation, which they confounded with the term for an immovable mortgage.

The nineteenth law of the Decemvirate concerning pignories is as follows:

Whoever hath received pledges for divers obligations is not bound to discharge one alone, unless he hath undertaken to pay in full the whole debt thereby contracted.

For the Greeks, indeed, reverted unto Harmenopus, in the volume of Hi, chapter V.

When I attained the sixteenth year of my age, Tertius, I had reached the threshold of the twenty-sixth annum; and verily, I then stood upon the very same point of years.

To whom it ought to be conceded the cognomen of Harmé.

The Liopulus, son of the orphan, was derived from the exemplars of antiquity; for the vulgar populace had rejected him, casting him forward to the subsequent paragraph.

The ensuing definition, consonant with the dicta of Roman jurisprudence, may be thus expressed: VZ3B0/JJISJTVZJvVFIDAfIOI JTS Sedus and Pignorius, being immovably bound, are henceforth deemed to be in hypoxenial tenure, wherein the obligations are established.

The place possesses its proper nomenclature, and the Greeks, both ancient and Attic, customarily denominate it by the term Vvflpa; for when they discourse respecting the mobile sun and the hand of the believers, they employ this appellation.

According to the Roman jurisprudence, whatsoever is pledged to the Pignorians, it is deemed:

The date is understood.

What is the verity of the hypothesis:

It is unnecessary to ascribe names, nor should they be traditionally understood, as it is the practice of the United States Armed Forces to designate names upon those bound by treaty.

Jurisconsulti autem hodierni perperam exponantur legem, ut audiant me hodiernum diem et puniantur pro obversione iuris.

XI. D. of the pignori, which is:

The fiction has:

They are forbidden to present gifts unto the rabble of the town; consequently, neither may they assemble, as though they were hypocrites.

When they indicate the location, the argument transitions from a pignore to a mortgage.

Pignus, they posit, is conveyed through a customary formula, thusly:

Upon his arrival at the dwelling, he was released from the mortgage and delivered to the pledge-keeper.

Consequently, since it is impossible to bestow funds upon a procuress, it is likewise feasible to extend such funds to a procuress.

Thus they contend, and I am adjudged.

For it is not true, that which cannot be pledged to a prostitute, neither in fact nor in hypothesis.

Hereafter, let us consider the plumes prior to the excavation henceforth; thus shall we appropriate the pledge in self-referential designation.

It is manifestly true that he, who was unaccustomed to the practice of varnishing moveable goods, found himself constrained to deliver the fowl unto the pachyderms.

But, as we have previously demonstrated, it is incumbent upon those engaged in commerce to observe their engagements after the termination of the tradition; for there exist certain movables and immovables, the former being bound by a line of tradition, while the latter are likewise subjected to the same obligation, and must be fulfilled even after the lapse of the period of the pledge, and the pledges themselves must be delivered to the creditors.

To give a pledge in that law, in that extensive and general notion thereof, it is incumbent to understand that the pledge, even when serving as a security, is appertinent to the mortgage.

The figification is extended.

And hereby the jurisprudence, since it is not lawful for pledges to be given to the citizens of a city, demands the title of a mortgage; nor can any subsequent agreement be entered into, whereby it may be deemed a pledge or a mortgage.

For in this law, pignus and hypotheca are coextensive.

Alias non habet rationem argumentum a pignore ad hypothecam, si pignus proprie intelligatur de re mobili, qua pro debito ita obligatur, ut etiam tradatur.

For it is no part of the nature of things that we can be compelled thereto, namely, to give our own gifts; nay, neither doth any thing forbid us to make all things immovable, though by tradition we be bound to certain actions.

Pignus hinc pro hypotheca constituitur; unde lex ostendit, ubi Paulus scrivit an circa jura praedium rusticum conventio pignoris sit locum in Pigno, cuius loci non est in urbe Pigno,

C. L. Salm[■]si[■] anno MDXLVI.

Of the law itself, which Marcianus enunciates, the jurors pronounced that the rumour of the townsmen prevailed; yet they were forbidden to purchase a fowl, or rather, to effect any transaction concerning a fowl as security, or hypothec; and they inquired whether such a controversy could arise respecting rural properties.

Maxime vexant et torquent, quoniam Paulus in sequentium proximam scriptum videt aliam statuum regis in ruinis silvarum, cui respondit paulo post pigneri causa.

But what is the cause of the diversity?

Therefore, it became requisite to adjust the methods whereby those veteran Juriconsults, the Neoterics, and our contemporaries might be brought to accord.

Certain legislators deem it expedient that certain laws, established hitherto, should be interpreted as enjoining servitude, and that other enactments, in like manner, should ordain servitude.

Other agencies, which may be indefinitely alluded to by divers agents.

There appeared no variance betwixt Marcianus and Paulus.

What are the words of Paul, that the law of Xn, manifestly, are inscribed?

Which, prior to this, had been committed to the sixtieth volume, was delivered to Edidum, who was precisely Marcianus, and who had not yet fallen into the hands of the urban marauders. When therefore the preceding event occurred,

Let him write to thee: The convention shall not be concluded thereafter, but the oath concerning the spoils of the plunderers must be administered.

Let them be subjected, he said, to the uncertainty of Pomponius, or to the same condition in the possessions of the rural lord.

He spondere deberet:

But when he perceived the path, it remained to be considered whether a convention for the pledge of the two pine-trees could have its place in the journey; whereupon Tomponius observed.

What is more consonant with accuracy than in the foregoing instances, did she pronounce, whether the matter relate to a pledge or a mortgage?

Whether the conventions shall have no place in the heats of the urban praetors?

Tribonianus, in his preference, chose rather to expound the sentiments of Marcianus, than those of Paulinus.

And thus, by perpetually compiling this solemn vow of allegiance to him, we shall be enabled to demonstrate it by an infinity of examples and arguments.

If such a sum were indeed so trifling as to be commensurate with the value of a single penny, then the creditor, in lieu of the pledge, should avail himself of the means of conveyance, whether by way, by road, or by water, and again by water.

Pomponius, in his judgment, doth assert that such a stipulation hath its place among the contracts of debtors; "videndum" he saith, "concerning the modus of the contract." The cause of the doubt is this: in the fervent dealings of urban creditors, where the terms of such a convention hold sway, the creditor ought to have the right to compel the debtor to convey timber unto his walls, and other suchlike matters. J. A. R. V. M. J. A. R. V. M.

Why shouldst thou be the forerunner of the depredations wrought upon the rural domains?

For it is vain to allege that the woods environed them; hence they deemed it no impediment to assail the urban fortifications, since their cause was perpetually invigorated.

For no less enduring cause ought rustic matters to be admitted.

Our learned doctors, moreover, err herein, for they contend that the urban fervours are to be regarded with greater difficulty than the rural; nay, they assert that the latter are not to be known at all.

Nec ex verbis Pauli hoc certum factum est: qui Pomponii rationem licitam commemorat, vel in rustico vel in urbe, ubi vis, itineris, acumen, et aquaeductus servitutem hypothecam habet.

Let it be given unto me.

Although Pomponius had not yet simplified the proposition, he did not hesitate to introduce it, and, upon arriving at his conclusion, should the creditor possess a neighbouring banker, he would permit the sale to be made to the said banker, thereby obviating the necessity of expending a definite sum upon the transaction.

That the convention of pawn may be effectual in the ardour of negotiation, it is requisite that these two conditions concur, namely, that the creditor shall seem to the debtor to be a near neighbour, and that he have a neighbour ready to receive from him the fervid men, whose pecuniary obligations are still unliquidated.

For to this end, the creditor doth deliver the res pignori unto the debtor, that thereby he may not solvate until this day; and afterwards, the creditor may vendite the pignus, and receive the

debitum out of the venditionis pretium.

What is the design of a pledge or mortgage, even if the creditor hath no authority to vend it unto the debtor, without the means of extinguishing the obligation?

It is not expedient, therefore, that my neighbour be indebted unto me, that I may receive a small portion of the sum which you have prepared to apply towards the pledge; but it is also requisite that I myself have a neighbour to whom I may vend the same, and that the sum of money may not be due for repayment until the morrow.

This sole reason exists, why in urbana praedia jura pignori dari non potunt.

I command thee, therefore, that thou dost have a neighbour of my debtors at hand, such that I may thereafter conclude this stipulation with him, wherein I am granted the right for the purpose of the pledge, whereby I may bear upon him, and whereby I may be bound in like manner.

There can be no question but that such oaths and pledges may lawfully be made in lieu of personal security; A: it is requisite that the creditor be granted a period within which to assent thereto; and that the transaction be concluded at one and the same time.

But what shall befall the debtor who shall fail to discharge his debt within the appointed term, and yet I desire to redeem my mortgage from the proceeds of its sale?

I have no other person unto whom I may vend the same.

Narn, my near neighbour, by whose neighbouring proximity I was bound to expect a more immediate regard, did in solemn form pronounce an engagement which he avowed would be ineffectual both to himself and to those whom he had the right to demand from their debtors; for, since he could not avail himself of such ardours of affection, I should find him, in respect of his own person and in respect of mine, incapable of performing either his own or others' engagements.

And if in the depredations of the city, which I have already perpetrated, I have erred, I shall also be liable for the like offence; and I will discharge the sum of two hundred dollars, due to the creditor, by means of the banker, who holds the mortgage upon my estate.

Therefore, I may justly dispose thereof by sale to them, since I am under obligation to the creditor, though the pecuniary demand be not satisfied within a stipulated term.

Therefore, it is evident that Junfconfult was not able to discharge his liabilities in any manner; nor could he satisfy the claims of the creditor, who had been accused of a criminal act, by means of an auction, even if he possessed no funds, and even if he had not discharged a

certain sum within a fixed term of days.

For by her alone is Tenfius, the only man who hath ever lived betwixt Marcianus and Paulus, dispatched to visit our progenitors; and it is decreed that there are divers sorts of persons dwelling in cities and towns, who neither are nor are not ashamed of their deeds.

If we should pursue this course, we would thereby establish the antiquity of numerous progenitors of our own lineage.

From this, however, we have learned that the law conveys not merely for the security of the creditor's claims by the retention of such pledges, or mortgages, but also grants permission to the parties concerned to dispose of these pledges by sale, and to recover the debt from the proceeds thereof, even should the debtor be compelled to discharge the obligation within the time specified.

Quin, immo apud Graecos, cum nulla convenisset præter ut initio pecuniam darent, creditoribus non potente ad diem solvendo, ab eo pignora capere et vendere licebat, ut ex venditis luminum debiti caperentur.

Even if they should not suffice, it is requisite to afford additional resources from which the sum of three hundred and forty-nine tontines may be derived by the mode of their alienation.

And thus, as it may be fittingly expressed, in those lighter craft, whether nautical or general vessels, caution was observed, as is usual in Greece, to maintain a parity of numbers.

For thus it was said concerning the creditor, who, upon contracting a debt, seized the pledges, whether from himself or from another, and from what source those pledges were derived.

Is this, indeed, the very thing which is here spoken of, or rather some other affair?

They shall comprehend.

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What Demosthenes and Crassus declare in their discourse against Euergus and Mnesibulus:

[untranslatable fragment in source]

The judges of Constantinople, such as Xetpz and his confrères, discourse upon pignora, which are deemed to arise from involuntaries; and yet AS cigo, and Xa ctoclu, in their turn, speak of the same subject under the appellation of pignori, or even hypotheca.

He received one who was under obligation.

However, in the language of the Latins, to take a pledge differs from to receive a pledge.

This pertains to the pledge by interment, that to the customary pledges.

Graeca autem Demosthenis, qui aetate iam matura fuit, dixit: "Tempus exigit ut domum extranei ingressus fueritis, ubiquiscumque quispiam reus a hoste capit, in eundem per vim capientem alienam domian ingredietur."

Hence, they were admonished to maintain a vigilant aspect, and to preserve composure, and to refrain from hasty speech.

In the same oration:

Jehovah, thou who art exalted above all, yet dost manifest thyself with clear and lucid speech; thou who dwellest in the heavens, and yet art nigh unto them that call upon thee with fervent supplication; thou who art the Judge of all, and dost judge the secrets of hearts; hear, O Lord, the prayer of thy servant.

When he was conveyed from the acampiam, he was conveyed thence; and in like manner did it befall him subsequently.

Ei, hoc est, ideo, quod propter hoc.

If it shall please you to concur in my opinion, I will here briefly relate what befell Theophemus.

So, when he appeared before Harpocrarius in his discourse, he uttered these words:

AJPAXTIJDX, sive XG7M?6II XTSPXST* 7ROX TS/F.

Yea, three are so.

This is the prevalent species of thrombosis; and among the various kinds thereof, the most frequent is Androplexia.

Wherefore, to elucidate the matter, it became necessary for him to kidnap individuals from some city.

For it was not within his instructions to deliver the homicide to his confederate; but rather, those captives whom he had taken were detained as pledges, until such time as they might be restored; and meanwhile, the men continued in expectation.

It was deemed consonant with both right and custom that a triumph should be celebrated in honour of the individual designated as Pplus-constar.

Yeclius was ensnared by the captives of war.

Thereafter, protracted though the interval proved, Siile was consigned to a dungeon, whence he emerged grievously defrauded.

Hinc:

And if any man would translate unto the Greeks, he said:

[untranslatable fragment in source]

In this manner, the pignora may be brought under compulsion by certain individuals; and, invariably, violence and rapine are resorted to, lest it fall into the hands of others. Hence, it is manifest that the pignora can be secured only by means of violence and constraint.

ut et cetera, P. n. C. usdum:

Had Machus translated the ψ ξερ θνεια, as Olympiodorus explains, π σθιος.

Wherefore, concerning the pledges.

The debtors are deemed incapable of discharging their obligations, for the creditor receives the sum due from the debtor who is himself indebted.

For the most part of the compact is attributable to those who are willing to discharge the obligation.

Contrahendo, vix quas possint datum esse Kms, et ab aliis, quia nemo obligatus est pro debito de pignoribus consentire sine pacto.

Where, however, they are misconstrued by the adversary, it is requisite to consider those who, being indebted to none for the continuance of amity, stand in need of no further security.

What was the appellation of the enterprise which had been undertaken?

verax

It is, therefore, beyond doubt that all the oracles of Jupiter, as well as those of Job and Ezekiel, have been interpreted by the Greek translators in such a manner as to comprehend that, and Myypulus, and Pignoriscapione, which, by the force of necessity, are compelled to be wrested from the unwilling, do signify that when I have, by violence, dragged this term into the mouths of the unrighteous, I am thereby entangled in the grasp of one who is incapable of effecting a release.

Now it remains to be considered how she spake, and particularly to confound Jurifconfultus.

Theophilus in the Institutions, Book Fourth, Chapter Sixth.

Then, in the fifth hour of the day, having delivered them unto Sive, a being of fivefold form, he did likewise deliver them unto their intended recipient.

HARMENOPULUSJIB.NL Tir.

V: 0> VI Axi■tgi■ ■tur verticis ■rigentem, sed perspicuum, in quo ita verba pr■feruntur: "I■u■s, quae M■thi■s, s■ ipse 'Istuptis' vocat, M■g■ v■vit."

Nineteen, and Quercentierius for pledge, and Cexus for herb, for invasion.

If the Synopses of the Basilicans, librum vicesimum quintum, Tic.

I exist:

Copper.

So did they pen, "If thou dost not believe that the gold which he hath affirmed to be such is indeed gold, he shall deliver it to the swine."

Forasmuch therefore as he who is bound by obligation to discharge a debt, and hath delivered the same to the creditor, must of necessity be bound to pay him who receiveth it.

In Exodus, therefore, there was a certain creditor, Tugh by name, who, having lent money upon pledge, received the same from the estate of the deceased.

[untranslatable fragment in source]

And thus it is with the Mv- (xr rxs).

Non tamen haec tantum est lucigatio; sed magnum quoddam rei genus.

Elevated but lucid diction, sed pignorum captiones, hoc est, rerum entis haud secus ac personarum prohibuit ea constitutione Justiani, ut ex titulo Novella:

It is manifest, that he who hath Gc.

Therefore, I am not bound by obligation to make recompense for the debt owing through the elder's captivity; yet am I bound to make recompense for the debt otherwise due.

God, however, forbids through Moses that such a request should be made by one another, saying, "Brother, do not oppress thy brother;" for it was the custom in the Orient and among the Hellenes that, if the debtor did not discharge his debt on the appointed day, he should be compelled to pay an increased amount as usury or penalty.

Let the recompense be the restoration of the fumus to its infernal abode; or by the detention of the pignor, may he be impelled to discharge his debt.

Therefore, in the ensuing verse, he prescribes that the security shall be deemed forfeited when the nearest party, who possesseth solely one such security, shall tender it back at the setting of the sun.

Moreover, in the Deuteronomy, where the law concerning the pledge is more fully expounded, the Praetor Deuterus, whose appellation is inscribed in the extant portion of the said law, thus instructeth: "Twenty-five inches of the plane are to be understood, while they are being imparted."

Iam tamen certus sum, meaeque voluptatis plenus erunt haec.

For the third time, however, by the bounty of Deity, He commanded the indigent to assemble there, whom He willed not to be oppressed by usurious exactions, and for whose relief He enjoined that money should be forthwith provided; and herein lay their sole shelter and repose, even as in the habitation of captives.

In xiis iam pauperibus praecipue locum habuit, et qui aliter ad solvendum compulsus non erant, ibi capti pignora habebant.

When, however, such implements were loaned, they would either pledge them as security, or they would ensure that the ploughshares, or the ploughshare itself, which they could readily dispense with, were secured in some manner.

But concerning the poor, who dwelt not in the superior quarters of the citadel, save for those things which were requisite for their sustenance, and which, moreover, were commonly of so trifling a nature as scarcely to appear suitable for such a purpose, they were loath to surrender even these; yet they received, albeit sparingly, a few turtle-doves.

But it was not permissible to repel the brother of the borrower from Judas.

Who, having received the pledge and the garment from the debtor to be lodged for his accommodation and sustenance among the uncouth Tartars, resolved to endure in silence until the debt was discharged, and, with becoming gravity, should have inflicted grievous distress upon him for so long a period as he could not possibly endure it.

Pigoius, verily, was made captive at that juncture, chiefly towards the alleviation of debtors who were indigent, that thereby he might endure the uneasiness of apprehension lest some grievance should ensue.

When they perceived their lips to have been purged, they conceived that respiration would henceforth be rendered so indispensable, as to compel them to reflect with urgency upon the disposal of such articles as these.

Hoc igitur et; ideum concepi.

God decreed that the captor's pledge should be restored to the poor; hence the goat was slain, and no other lair remained for its burial.

Certè non;

Claudius Salmasius, who expired in Graecia, did receive from the creditors, who had previously obtained pledges from the indigent debtors, the sums due.

For it is from the speech of Hecotus that we learn that Timothy, having no just ground for supposing him a man of good character, was at length induced to engage in mutual combat with his sword.

i'rx JijVs 077 uCpcixt itQt t 773 CtrA 'iwv insiwuf Tucil r; whereas f 31 *hv foop 'IvyiM.

But, as ye are apprised, it is incumbent upon the state, that a citizen unworthy of being subjected to legal obligations should be visited with punishment at the close of his days.

Suppellectilem, quod appareat, et quae:

In the daily practice, it was customary for any person to have a pledge given to ensure fidelity, which was requisite and necessary according to the usage among the Greeks.

Which, though not applicable to the Latins, yet appears to be consistent with the general obligation to do good, as I am wont to assert concerning the Greeks.

Hence they were received under the general hypothesis of the deities, as we have previously demonstrated.

When the paupers, in vulgar fashion, exercised themselves in the collection of tithes and hay on a daily basis, and were each day extorted of a certain number of obols, lest a considerable sum should be amassed, it came to pass that they were altogether unable to effect a due settlement thereof.

When addressing the indigent, who, afflicted with the greatest privation, had but little left of their substance, and at last were reduced to pawn their pledges, as I have already intimated, I announced that my term was concluded, and that I should suffer retribution for my actions.

But when that day was over, he was unable to resolve the matter; and being constrained to convey the pledges to a secure asylum, he was, as Aristophanes subsequently related, forcibly

led away from those pledges, and informed them that he had not been credited with the offence.

And at the close of the day, it is a common practice for others to employ this mode of discharging a debt through the medium of a pledge, id est., of demanding that the debtor should give security for the satisfaction of the debt, which those who have nothing pledged to them or mortgaged to creditors would not be disposed to grant. For what more fitting duty can it be for those who can recover their debt from a pledge to defer the recovery of a mortgage, or for those who are hindered by the tardiness of the payment of a mortgage to exact a mortgage from a debtor who cannot pay his debt? Natural equity and the laws alike disallow such practices, especially in regard to debts that are more properly termed mortgages than pledges.

To give, to cast, and not to cast, but to pledge; that is to say, to pawn.

But when the term "pignerare" is employed, signifying to become a pledge, this may occur either when the creditor then becomes a pledge, or when the debtor gives himself as a pledge; hence, in either case, the party becomes liable by the act of pignoring.

And in contrast to XNn 4 M 568 C. L. S. Atius, the creditor, who, upon receiving the pledge, encountered the debtor, who likewise received the pledge from him.

Certainly, the Gophers, in their frequent contests of gladiatorial prowess, confound the two words, hxc and hg, with unwarranted facility.

This is the isle; and the Turks, still in expectation, await his advent thence.

Glottis, which I shall bestow upon them who possess no comparables.

It pertains to clearness, elevation, and oblivion.

Whither:

For the apprehension of a man, or for the usurpation of a prisoner, which the ancients termed $\lambda\alpha\sigma\iota\varsigma$, cum myoixs-fies, a pledge is given, or, as the case may be, a ptoinos; in the fifteenth century, ibidem, the pignoror, who seizes the pledge, is denominated $\pi\tau\omicron\iota\nu\varsigma$, and not the debtor who is bound thereby.

A word of soundness and liberality: such is the interpretation assigned by Castiodes, in his Fourth Book of Epistles.

X: In elevating diction yet preserving clarity, in the periodic structure of the sentence, with a measured cadence, and employing a vocabulary lightly tinged with the archaisms of a former age, save where the natural idiom demands the familiar forms, we proceed thus: X:

Therefore, we have become acquainted with the suggestions of the provinces of Campania and Samnium; nevertheless, we have hitherto received no instruction respecting the time for the celebration of the funeral rites.

What is it that Theodoricus hath written, which consisteth not in a small number of ratios, to wit, vtvx and so forth, *7Tf xjpt*?

[untranslatable fragment in source]

Therefore, the person himself was not ensnared, as the vulgar commonly assert, but pledges were wrested from him, lest he should be detained by another.

Julianus, in his discourse, thus intimated concerning Pignora, Const.: "Pignora extorquere."

the eleventh;

If any individual in a distant municipality should possess creditors within the same town, or elsewhere, whether in contiguous quarters or in a remote borough, and if, by chance, he discover a non-resident in a neighbouring town who is indebted to him, let him not presume to detain such person, or to solicit payment of his debt under the pretense of foreign obligations, or to wrest security from him.

It is another matter, either to detain some individual, or to possess that which belongs to him, and to demand a sum of money due to him under the pretence of another's debt, or to extort a pledge from him; which is equivalent to furnishing security for another man's obligation, a pledge for a different person.

This was never customary in the Roman Empire, though it was occasionally practised; yet more frequently, since the Emperor deemed it expedient, as in the case of Athalaric and Edigi, who were associates of Cassiodorus.

Whose words, inasmuch as they are forbidden to be employed in a similar manner, must not be construed as if they were spoken by the same individual who stands in the capacity of the surety; but rather, they are to be interpreted as if they were uttered by the creditor, from whom the security is derived, and by means of which it is extorted.

Thus, in the case of N, N, Y.

Comi- MDCC LXX Ct.

When he had completed the psalmody of the Comic, his soul was imbued with faith.

Because they do not aim at a due moderation in loans and usury.

Thus, a twofold enactment interdicts or prohibits the *pignoris capiendi*, one wherein the debtor himself is constrained to discharge the obligation, the other, whereby no man holds for his fellow-citizen, and no pledge is extorted under such a designation.

From these, there arises a twofold species of *pignoris*, the one *voluntarium*, which, being assured by a contract, is received from the willing party; the other *involuntarium*, which, being imposed without consent, is enforced upon the unwilling party.

Hinc:

Of the Debtor, by Reason of the Credit;

It is not to be deemed a ground of judgment that you should receive the plan, but rather to comprehend it fully.

For he also submitteth to the precept, that a respite should be granted unto the condemned:

Kangfax et Liti 3 Laetoraptor, "T. J. V. Gaiteraptor, P. S. Thalian Cixvgoi (Xsi Oeo Piluui U. Sed miror, de *pignoris capione in crediti fumi causa ob moram solutionis fatam, quam more ac jure Romano ut vixfuiflere receptam compertum habeo, ita a Justiniano conflavit vetitam.*

By this it is accomplished.

The extension of the day, which he terms the "*dari solitam debitori*," cannot be interpreted as the interval of time for the discharge of a pledge, which, according to ancient law, was annually granted to the debtor; nor can it be understood as the possession of the debtor's title to the pledge, whether derived from the contract of pledging, or from the retention of the pledge by the court in an improper manner, thereby enabling the debtor to hold the place of the pledge.

Or is it the seizure of a pledge, as the *Basilica-Roman Synopsis* intimates, to be practised in the creditor's goods, even in seclusion?

Then he gave him the spear, and bade him take from the lips of the myriad, which was:

Is it by the judgment of the court that creditors receive other creditors?

For then, the creditor possessed the pledge of the *bonâ fide* debtor, according to the law of pledges, in the very manner wherein, at the inception of the contract, I was delivered to him as security.

And this was the pledge, as it were, which was termed the *Praetor*.

The *Lex Basilicorum* is equivalent to the U.S.S.R.A., a term henceforth to be employed with due circumspection and precision.

Claudius compares it to the seizure of a captive by a lash, whereas it signifies the apprehension of a fugitive.

Forasmuch as they were adjudged according to the laws of the realm, they did not merely appropriate movable and animate things, but even those which were still in motion.

The *pignora soli* are denominated by the law.xv, which is the title assigned to the decree of D. de re judicata.

And thus, indeed, it would appear that the intellectual Doors, who have been ensnared in the Pretorian pledge, and who have again been ensnared in the same manner by the law, are comprehensible.

Thou, Cod.

To be judged in the cause.

Nevertheless, a considerable sum of money was bequeathed by the captive of Atorius to the captive from whom he himself had been recently made captive in the course of the judicial proceeding; a fact which we have previously alluded to succinctly.

For Pignus, the praetor, did indeed engender a dispute amongst the confederates.

Where there is no agreement between debtor and creditor touching the pledge, this pledge was constituted by the praetor or judge, who, by sending the creditor a trifling sum of money, caused it to be retained by the pledgee in lieu thereof.

For verily I have never been apprised of the term *pignoriscapion*, nor of the cognomen of the *pignus-prætor*; and yet such terms, though antiquated, have their due place in legal terminology.

And it was adjudged that he should impale himself upon a pin; wherein this pin was lodged in his throat, and by reason of the debtor's delay in payment, it was requisite that he should devise a means to extricate himself therefrom.

Immo et in causa pignoris capionis locum etiam bani sumus, ut constat; sed ut plurimum, sicut apud Graecos, in re mobili.

It seems to me that the gift of a pledge, and the customary exchange thereof, was made by one another for the purpose of mutual security.

He sustained his head upon his palm, and forsooth, it was not till the nuptial morrow that he could proceed, the pledge of his patrimony having been levied upon him, and the debt solvency deferred by the usurious rate.

Henceforth, the Greeks denominate this term "Pigno-Rescapione" or simply "Pigno," signifying thereby, as we have previously intimated, a person whose temperament was of such formidable strength as to enable him to grasp the hand of another.

Knowledge was moreover imparted to her; and she replied:

We have observed that, in times of yore, the creditor was under obligation to the debtor in the case of debt; whereas, when the debtor was engaged in the discharge of his indebtedness, the Roman Republic was bound to assume the payment thereof, a privilege which was likewise confirmed by the legislation of Emperor Diocletian.

This conjunction of Hujus Confortatio in the Codex Hermogenianus had been deposited, as is evident from the fragments which today remain extant.

The words of the Constitution itself:

They did indeed aspire thereto; yet was it overborne by the ire of Anianus.

The debtor of the leaf, who was born in the year 574 C. T. Salmasius, did compel the usurpation of the ensigns of the destin'd territory; which, nevertheless, it shall not have been lawful for the assessors of that epoch to permit.

Furthermore, thou wilt find a passage in the Epistle of Papian to the Apostles, within the sixteenth chapter of the same Epistle, wherein these words are not so much referred to Anianus, as they are virtually cited from the very Constitution of Diocletian Hermogenes.

The usurpation of the pignoria can only be effected by a distance of not more than a few hundred miles.

Or the seizure of the figs, which the scion of Herius, in conclusion, declined to conform to the sentence.

But before the Deity, the clergyman, who had been subjected to the authority of the preceding princes, had met his fate; and this is attested by Paul, in his epistle to the senate, citing Usus:

If any man, who was a debtor to a creditor, should have wrested from him the acknowledgment of debt without authority from the judge, he would thereby have committed a crime by violence.

Therefore, he who, by virtue of extrajudicial authority, had wrested her from the cognizance of the tribunals, thereby rendering that which was illicit to him legitimate, proceeded to effectuate such an act.

The Tit.

Of the Operation of Sentences, and the Termination of Controversies:

Those who had been duly condemned might be seized as pledges, and were subject to the jurisdiction of the judge appointed for their trial; though Justinian subsequently prohibited the execution of the Novella which he had enacted. After the decease of Justinian, Leo seems to have been restored to power, and Diocletian appears to have deemed it expedient to reinstate the enactment of Diocletian in the code of the Basilics.

For of this greater captivity, which Diocletian had admitted to the judicial authority, we believe to have been committed to custody; and the synopsis of Basil's coronation is a record of his words, which run thus:

We have, in a prior passage, intimated the same; and it now behoves me to be convinced of the propriety of continuing.

And they likewise related the identical sentiment unto Gracchus.

The etymology of the appellation is Magnuir:

Erat, sed perspicaciter; intellegi poterat, sed non obscurissime; ad munus erat elevatus, non tamen tam sublimiter ut non discernerentur clari et tenuis orationis gradus; in periodos versabatur, ut gravitate et modulis sonaret; dictione temperata, neque tam rustica ut prosa non haberet certain, neque tam effusiva ut non retineret certam rationem et methodum.

Thus, let it be written.

To the ends themselves, and to these properly appertains, not to the movables, although and:

Of the ship that was taken by the enemy, he likewise spoke thus: "De- mosthe- DE Modo U
S V R A R V M."

Jove, while the surety is taken for a credit which shall be deemed most just.

But it is not the same thing as RF, Oixlcê.

In the Exception against the Father:

Kergavit, blanditius et tamen perspicaciter dictum, ut res oppignaratam detineret et poslideret, sive domus fuisset, sive .

The fund■s, sive universa misl■, est defixus.

If any man were to hinder a person from depositing a potter's beak into a molten mass, he would be entitled to institute an action against such interposition; this would result from his own conduct. Moreover, he would have had the option to do so, as is evident from Hesychius; yet, it would not have been within his direct agency.

This is the reason why we have recourse to an alibi.

[untranslatable fragment in source]

ULPIANUS:

[untranslatable fragment in source]

Thus runs the legend.

I am aware that thou art erudite in Greece.

It is the sole entity of its kind.

Polybius designates the post-fefilones as if they were his offspring.

* 1_ _1_.

Cap. XIV.

Pignora's purpose was to curtail the expenditure on usury.

Conversely, the Jews and the Oriental peoples were employed in such capacities.

To triumph and not to succumb is to possess significance in the eyes of all mankind.

From the Hebrew, and from the Arabic, from the Italian, unto Jitny, the identical ligature which binds the knot.

The Chaldeans, upon receipt of the moneys from the debtor, shall discharge the remainder of his debt until it be fully satisfied.

Instruct the Arabs.

Even the Greeks desire to transact with the creditor, and they wish to denominate the Arabs, whom the creditor holds.

Latin horses are also employed for the purpose of securing pledges.

The term itself is of Hebrew derivation.

Caused to be known.

Ziarnit Ejj-el-Sicv of Pignora.

To possess a share in the transaction of a counter-purchase for his own armour.

For the sake of Jpansionus, he seized the patrimony from the initial proprietor.

What is due to Dcrocotoc?

Seek out the pledge, and assail, and despoil.

Uttered by the voice of XU-C.

Who are the progeny of Jacob?

I have perpetrated an offence, begotten of celestial influences.

What a deed was this!

For this cause, therefore, must the name of the accused be perpetuated, that justice may be rendered for this outrage.

From the premises, how they are distinguished from the pignons.

By the magistrates of the commonwealth we shall be conducted hence.

Ye are also known as the J77 conduits.

The general's cognomen, Latius, was not to be confounded with Pignora and Hypotheca.

To be relied upon by the bond of faith.

Tertullian amended it.

A creditor is a creditor for a period of two days.

Aelius, trusting and relying on the sentence, did so for the sentence's sake, and for the sentence's sake, "Bione's pigerness."

The term "Trust" derives from the ancient appellation of a surety (cf. Tribonianus, signifying the assurance of a mortgage).

Graeam is styled a vindictive man; the term being derived from the name of the genus Faelia, which is called Pignor, because it is bound to do so.

The blunder of the jurist of the neotericists, who conflated trust in a "pretended transaction" with a bond of fidelity, was elucidated and rectified.

Cicero's residence remained unhidden until the conclusion of the hostilities.

The security of a pledge, whether it be a lien or a token of allegiance.

Concerning the trust of his contract.

Boethius recollected that he had conveyed his jurisdiction to that locality, not to the pignori opposite.

Against the Lord, I shall not invoke the trust, but I shall entrust myself to him with a pledge of loyalty, which he shall either deliver or be compelled to furnish, and so forth.

Concerning the sale, contingent upon the condition of release.

Pertaining to the edicts of the commissioners of the pignons.

There is no commiphoria in the narrative of the Communion when I arrive; the Communion of the Communion is not predicated upon the faith of God,

Here, let it be observed, three-thirds-and-fifths.

Whose censures have I, in my turn, rebuked?

What was to be surrendered by the pignore and the mortgage, and what was to be surrendered by the mortgage?

Peruse the code.

Of the pastures of the fig-trees, explicately and again explicately treated.

Let us derive instruction from the sire of the commissioner's conviction.

His sire, nevertheless, apprehended that, unless the defaulter discharged his liabilities, the pledge might lapse, and that the creditor might, therefore, be compelled to repossess it.

By the *lex commisoria*, it is not deemed that the creditor acquires full dominion, as the *Bosniaci* do.

Pabio, in a condition of great perplexity, stood on the verge of ruin, such that, should the pecuniary obligation not have been rendered null and void by the solemn act of investiture, the creditor might lawfully appropriate the property, without recourse being had to the statute of commissions.

Venditionem illam fuijfe sub conditione, non pignoris obligationem, et ideo per missam. Let him not escape vengeance under any condition; let him not be held by the bond of a prisoner's obligation, and let this be accomplished by a commission.

The law of commiforia did not vest the property in the creditor, nor did it vest it in the debtor.

He should have deemed himself destined to succumb, and to succumb.

The pauperism of the indigent, because the pauperism of the indigent in their respective localities was occasioned thereby.

The Hellenes and the Italians, who assailed it, were integral to Italy.

Greeks were termed Hellenes; and it was customary to assert that Jznstmi was bound to become a pledge.

This, indeed, is the nearest approach:

I am Sijoztf, and thou art the sole one.

There are sixteen.

ImAii-ms.

[illegible]

Idem:

Y'o; et mox:

It is expedient to bestow upon them our attentive consideration.

Nexus, being obligated, was delivered as a pledge, or as a mortgage; hence, the Ergos and the Latins derived the term *nolleare* from the purpose of *pignus dare*, which is the emptiest among the Italianisms, and hence *nexum* became known as *Gloffx*.

Nexam, Iznxeif, and Jfullu.

From which, in the aforementioned volume, Chaldaeus, in a voice of elevation and lucidity, hath recalled the man's words from the verb *p■re*, signifying to dwell; for assuredly, while the bond of mutual fidelity remaineth unfulfilled, the pen of him who hath lent upon pledge doth bear it with joy until he shall have discharged his debt.

This is that which the Greeks denominate **■πτ■καιδεκ■τη** and **■πτ■καιδεκ■τη**, namely, the seventeenth day of the month; for the **■ιου■σιον** does not reside within the abode of the creditor, but according to the precise definition of the Greek jurists, it properly signifies

■πτ■κaiδεκ■τη ■ρα, δ■ξai σοι τ■v πρ■ς σε ■μ■v κ■vδυνον ■ρον. What is the signification of the seventh letter of Titus?

It was requisite for him to discharge the obligation until such time as the same were fully liquidated; or, further, to satisfy the amount equivalent to the proceeds derivable from its alienation, so that the total might be commensurate with the aggregate of his liabilities.

Hoc est, iuxta hivad, id est, mutatio, vel commutatio.

Wherein the Graces, in their definition of a pledge, expound that which is delivered in opposition thereto, and by mutual exchange is transmuted into securities.

The people of Israel, commonly designating it by the appellation Glosia, did so in reference to heaven.

The ancients, by a figure of speech, expose unto the vicissitudes of the atmosphere those swine which are of a vintage past.

Phrynichus, in his Ecloga, hath signified that the vulgar term, which hath been reduced to a common use among the Attics, was denoted by the symbol "XiTcJ" in the third letter; whereas he who approveth solely the meros Atticisms, altogether disalloweth the rest, and denounceth such as speak indifferently and incoherently.

As much as his voice was base in behalf of the plebeians, the Greeks enunciated the essence and attributes of the pignorians, and the Arabs responded thusly:

Glossaries:

Pignus, thou shalt proceed, and thou shalt be contented.

Moreover, there exists a lexicon which is of greater import, namely the Lexicon of the Law of the Arabs, employed by the preeminent Goliath; and the common signification of these terms amongst the Arabs, which is also detailed henceforth.

This term signifies detention, retention, and constraint.

Herein, he consents for the cause.

Avicenna was detained.

Pertaining to blood.

Yet in the aforementioned Lexicon, as defined by Erben, lawful detention of the king for debt, as it is lawful for him to be held in custody, as well as for the king to be held in custody, is thus denoted.

The Latin word for blood, and pignus, and mortgage, signifies both binding and the mortgage itself.

The present moment is at hand.

It was preferable to be bound to behold him, rather than to be detained.

Namely, and binding also, and constraining the notion of managing.

For, indeed, all things pertain to that kind of pignor which is traditionally said to have originated in the Orient; yet we do not detain them, for they all observe the tradition of hand-to-hand combat against you.

I am fully apprised of this and gladly accept it.

This species of pledge is also sometimes designated by the Latin term rabonis.

Sanus, near Terentius, in Heautontimorum, is a man of great courage in these words.

There was a district, a year old Corinthian Jove, who bestowed this sum of a thousand silver drachmas.

* 'mutual.'

' "C H, then direct the T S y.

When she expired, she left her son in his youth.

.

.

She hath bequeathed these relics, and even silver for his use.

The remainder is elucidated by Hugraphius, a knight.

But when Paul had concluded his discourse, he proceeded to speak of this age, saying:

The wreck had been forsaken.

The identical Comic:

What is the appellation of the judge?

May I solicit the permission of the lady to espouse my filius?

Prope Apuleium in I.

Metamorphosis Crassus, in like manner, perpera in the following terms for the sake of a mild pignore:

The fount and the multitude of Jub's forces were replete with gold and silver.

And in the case of Quintus Claudius, in his Annals, when citing Agel, he expressed his displeasure on account of the obstructions; and he observed that the names of those who had perished were wont to be frequently invoked, and that they were styled "quippigni."

Since the Samnites, whose valour was such that it might well be said to challenge the Romans in equal measure, were arrayed in arms against the Roman people, it was the Roman people who stood forth in response.

Of Five Hundred Subscribers.

Agellius respondit, "Et haec est res abominabilis loqui." Dixit, "Haec est res abominabilis."

N MODO USVIA R V M. Nam modo vis hujus vocabuli in ea res gravior et acrior est; certe tanta pignora sumuntur, quae in manus traduntur, atque re ipsa accepta, curta pignoris vox saepius et de re qua:

The knot, by virtue of being so closely tied, is alleged to admit the light of day.

Ea incognita gens, quae primum tenuerunt et proprie suae gentis nomen acceperunt, Graeci τ■τσακτον vocaverunt.

For, as I have previously observed, they were wont to discourse more largely of his pignora, asking, "Qua est duorum crurum significantia maius?"

Vigiles retinui.

Moeris artificex in the lexicon:

Non est homo sponte suo.

Hic:

The Hebrew voice is, as others have previously observed, JUTp.

The third instance is alluded to in Genesis, chapter twenty-three, where it is stated that he possessed at that time, and at Gucos, for the sake of his son, who was:

In that aforementioned chapter, it is declared that the smoke was imparted unto the individual to whom it was apportioned; and in the futurity, it was bestowed upon him to whom it was pledged.

"What is your interpretation of the Arabic text?" he exclaimed.

The term in the Hebrew tongue, signifying the commingling and confounding with the Chaldeans, alludes to the commerce of the traffickers, who engage in barter and exchange of wares.

Thenceforth proceeded the notion and all the terms now current, from which the appellation of Jesus is derived.

1 M and OXO also.

For the Greeks, on account of the fumigation of the pignor or the pignate of the monarch:

The debtors shall be amenable to thee, O Lord.

.

In the third volume, book ninth, of Pollux:

Unto him, he said, "I go forth to slay him."

Eustathius to A. Odysseus: Ecce, ubi es?

[untranslatable fragment in source]

He then alludes to the genuine host of Pherecrates:

[untranslatable fragment in source]

Wrath; for a fable doth attest the contrary, not the similitude.

None may decipher it save myself.

For they spake concerning him:

Engaged in a conflict, which was waged by C. T. Saimaeus, who was unsuccessful for certain causes.

Eustathius, nevertheless, expounds thus:

The subject now manifests itself.

[untranslatable fragment in source]

Quid;

The exposition is preposterous.

Narratus, the progeny of a Roman sextarius, was a man of prodigious opulence, such as no Hellenist had previously attained, without the least requisition of his auditory organ.

Henceforth, in usage, it would amount to the centesimal, which is:

The fex possessed sextants.

It portends ill, or, as Pherecrates, in the person of the Vsenem-V, was licensed to pronounce, "Uth X7rzsū."

It is termed "Sa'a," (signifying "Ao"), and is designated "Pignus" by its appellation.

Hence, Suidas interprets ■ρ■ς as "vigilant," or perhaps "watchful."

Annulus, appointed to espouse for the sake of matrimony, bore this sobriquet.

Pignus designat Satyricus, ut de eo meminimus in praecedenti volumine:

Thou didst surrender the citadel at the bidding of thy digit.

[untranslatable fragment in source]

In these and subsequent instances, the cognomen of the Graecian has not yet been ascertained.

There exist, and accordingly there are also nuptial presents, the final category of offerings for the nymphet, which I shall designate generally as dowry.

Concerning which I have also spoken in the vernacular.

The declaration of the sponsors of the vadium, who extolled the vadium on one occasion, is known as the abstinence of the foreigners on another, on account of the vadium and the vagium being invoked from him as invocations.

In other words, a plebeian, a praetor, a praetor, a praetor, a praetor, a praetor, a praetor, a praetor, a praetor, a praetor, a praetor, a praetor,

Quercentierius for pledge, and Cexus for herb, for invasion.

Wherefore, in the Basilicas, where others have already undergone arrest, it shall be my office to administer justice to the remainder.

, said Hi, "so did Usvrarm.

Julii Hocclevee, ita scriptum est, antea pro latrocinis et adulteriis ignotae rationis et mores depravabant.

Abridgment of the Volume.

The tit.

The ensuing discourse shall be forthwith delineated:

I possess a vestment for the evening, and a jewel of three hundred and nine dollars for the evening, and a jewel of seventy-one dollars for the evening. For if I write herein, I shall not.

The offense of Stcellionatus, as defined by the jurisconsult Jurisconfusus, is comprehensive.

XIII, my beloved.

Wheresoever.

De delicto stellionatus, hunc locum mihi maxime obtinuit, ut, cum vi aliorum vi coactus sit, suam obligationem ad celare opere alieno simulacrum perspicacitatis aliis tribuat, vel eam mutaverit, vel ferro in vulnus tradiderit.

However, when I beheld them, I did thus address them: "I am not bound thereby by those who have imposed upon me their own obligations, but by those who, as it were, have entrusted to some other agency what was their own."

Of which he shall find mention in the Law.

ULT.D.

That which has been asserted is true.

For this is the rationale, whereby he who hath committed the identical offence which I had already perpetrated, hath been bound to remain in perpetual servitude to me; and although a stranger to me for a protracted period, hath made no compact touching the matter.

LAW.

The Twenty-Seventh Decree Concerning Pignoration.

But this man, who binds another to his service knowing it to be foreign, cannot be deemed to say, "Nam sui rei" as though he were the person who has pledged himself to himself, or as though he had pledged himself to others, who are reputed to excel in some measure above Ggarcis.

So the interpreter of the law, having ascertained from him who was well-acquainted with the matter, did swear by his own instrument, and delivered to Pi-Gnos as much, to wit, that they were not his own.

He is indebted to another, in respect whereof the contrary is due unto him.

Therefore, he did not lapse into the delusion of the stellar lion; nor did any man who had pledged another's security for his own, or the security of one pledge upon another, so contrive matters that he should not only be enabled to sell the pledge, but even to induce others to lay claim thereto against their will.

Pergit oculus; specta eum.

I. Code.

I will pledge thee a pine, a pine.

But these two coincide with the constellations:

They contrived that the organ of the divider should be severed, the perjury should be committed, and the obligation of the foreign creditor should bind the surety to furnish the pledge.

If any man shall have sworn that he used his sword, which he had received from another sword, he is guilty of a felony.

Perjury by faith is consummated; and no penal retribution therefor hath been enshrined in the enactments of the law.

Pignoratio, nevertheless,

The law concerning the pledge of a foreigner is also established by foreign laws; and this is the case, particularly, when the debtor avows himself to be a foreigner, and thereby subjects himself to such enactments.

Stellionatus igitur, postquam condemnatus fuerat in crimine huius rei, tamen adversus omnes, qui eodem crimine damnati fuerant, legem infringendi protervi contingeri censuit.

Xm D. of those who mark infamy.

Ulpianus, in his extant treatises, hath recorded that the individual in question was arraigned for the perpetration of a nefarious act towards his son-in-law; and, having declined to submit to the scrutiny of the public tribunal, was adjudged guilty thereof.

This was not impeded by the edict of Ulpianus, D. Stellionatus, wherein it was thus inscribed:

Contrarium plane dicendum est, nempe iudicium famosum Stellionati non esse; sed me laetum est habuisse extraordinariam coercitionem.

What Ulpian affirmeth to be evident in the contest which he sustained with Nececim, the writer of the epistle, and wherein he successfully negotiated a compromise; and I am persuaded that the illustrious jurisconsult, a man renowned among his contemporaries for his legal acumen, was arraigned not for criminality in the strict sense, but for the infamous charge of having been implicated in a criminal prosecution.

For Ulpian, in his aforementioned treatise, hath positively enunciated, "In the dominion of the lex."

On the thirteenth day, Stellionatus was adjudged guilty of a most infamous crime.

Furthermore, since in crimes of this nature, the accused is subjected to rigorous prosecution akin to that which obtains in private tribunals, where the guilt of a fraudulent act is established, the condemnation pronounced by judges adorned with celestial symbols is all the more infamous; yet, it is to be observed that he was not afforded the privilege of pleading guilty to any civil transgression.

Deposited as one condemned and infamous, he is condemned on account of his deceit.

Who, adjudged by the stars of your judgment, shall be condemned? What crime for crime, that he should answer to those who accuse him of a conspiracy, and yet not be infamous for it?

This distinction arises, for the act in question is one of common malice, while the crime, being of a more exceptional nature, demands extraordinary retribution.

Ulpianus, ergo, scripsit:

Stellionatus, though acknowledged as preeminent among his peers, yet beareth in him a transcendent power, a qualified negation whereof is withdrawn.

To Tribonianus, I shall append a few words, in commemoration of those, which are:

The produce remaineth inscribed in the epigraphic heading thereof:

They perceived the infamy, that Ulpiani's purpose in conducting her hither were to pronounce upon it.

There is a well-earned repute for the consummation of the common law, which proceeds upon the basis of its unlawfulness.

The Jurisconsultus, however, deemed the trial justly conducted; yet he acknowledged that it was by no means unprecedented for a prosecution to be pursued in a manner akin to that of the U.S.S.R.A. V. M., albeit not without precedent.

To ascertain its nature:

In privatis judiciis famosum sunt, tamen pro veritate extraordinaria.

Ulpianus, who had not yet seen the light in the midst of a public trial, thus spoke concerning the cause:

They are not the capitals, yet they are renowned.

However, as it did not pertain to public judgments which are exercised out of the usual course, neither does it pertain to public judgment that the execution of a private person should become notorious, for he is constrained to act otherwise than according to the ordinary procedure; nor, indeed, can it be deemed a matter of public cognizance, since it does not arise from the public law, which itself does not constitute a matter of public opinion.

Wherefore this is the law.

1 D. Moreover, it is affirmed, this appellation signifies a certain species of nut, which, neither in the possessions of individual Jews, nor in their commonwealth, can be found.

Atticus, who, it may be said, met his fate at the hands of celestial agents, did nevertheless reply that he had been foully slain the day before.

For, as the jurisconsult had instructed, whenever the title of the crime is wanting, there the accusation is constructed, and similarly the Greeks themselves teach that impious acts are expiated; hence, he was directed by his confrères, akin to the ancient philosophers, to undergo atonement. Moreover, he was also admonished by one named Tipff, who held the office of a judge in the seventy-first circuit.

Rhetores hoc infeeriptum maleficium vocant, cuius nomen alicui destinari solet, ut idem sit cum n^omine deae Bamyphix.

Therefore, since the species of Mxof bore a close resemblance to the fox, it was frequently asserted that such an article should not be employed as though it were identical with the genuine fox's pelt; and this admonition was reiterated without variation, lest the distinction between the two should be overlooked.

Thus is the legend to be read by Pollux.

Contraria tamen huic sententia apud Harpocratonem extat; de duobus his generibus, Hothx filius est Ai.

For in those crimes, wherein the severer penalties are due, and wherein the most grievous delay is prejudicial to the commonweal, the prosecution thereof ought to be prosecuted.

Would you be in a torpid condition, or among the populace?

v. t. §/3*1, which is the sentence of those most heavily condemned:

They were wont to be sprinkled with water from the lips of numerous females.

The other genus of yebs is constituted by one hundred and seventy-seven species; of these, five pertain to all manner of malevolence, wherein the cognomen of crime is wanting.

Harce iam duodenis et viginti annis ad urbem Aflpiam venienti, animadverterat a Magistratu.

This appears to be the first instance of Pollux effecting such a practice; for the lamentations of Athens exhibit a manifold diversity.

The Psalms were, in truth, so designated.

Prior, igitur, nymphaea de maximi et publici criminum mysterio, quod sequituri est:

Nevertheless, they enjoyed neither the appellation of title nor the institution of a written law.

Or against those who have sought to undermine the dominion of the populace, or to diminish its majesty, or to erode its authority; nay, against all such who have endeavoured to sap the strength of the people, or have striven to abate its influence, or have assailed its preeminence.

It was the second among the sundry injuries inflicted upon the innocent, and the appellation of one's own star did of itself suggest itself.

If, indeed, he had perpetrated the imposture for which he hath been arraigned, or had been implicated in some machination tending to another's destruction, he might have pleaded that he was a son-in-law, having been deceived; or that he had been charged with some covert design against a third party.

Atticus, and his confreres, were dispatched unto Rome.

Ulpianus adjoins, that in general, the title of the crime being deficient, this particular crime can have no place therein; and that it is unnecessary to detail the species themselves.

Therefore, comprehending both the greater and the lesser, he embraced the same, whether the larger or the smaller.

The criminals, in whose regard accusation has been made, and for which there is no indictment, Ulpianus himself.

The penalty of a filial crime is, he asserteth, no legitimate retribution; for no legitimate creature can be found to warrant such a transgression.

The territory was annexed to the same genus by Harpocraton; and, professing himself a native of the Felion, he failed in his endeavours against the assessors of the peasantry, who had been unjustly arraigned by the adverse faction.

Those who were summoned to the tribunal were notorious.

Hence:

The retribution of a lion is his own retribution.

And this is the epitaph.

Let us revert to the summit.

So let us refrain from this, and proceed to those mortgages specifically devised by Justinian, and thence to pledges distinct therefrom.

It was more properly affirmed of these things, that they retained their essence; and even the most abject of their attributes had been withdrawn from them.

For when I have transferred my reliance,

The creditor comprehends the essence of the obligation by its recovery, whether it be due or otherwise.

As a pledge, or rather, under this appellation of hypotheca, thou art the most ancient of the Gloslae.

The title of the trust, which Paulus conferred upon him in his sentences, is "fiducias" and "fiducias" as it were; and it is manifest that mortgage, bond, and the trust of immovables and things that are merely contained, were thus placed in the trust of the time of Trajan, by virtue of an ancient inscription on a monument erected by M. Ulpian, his freedman, who, having made it his own, declared that he and his should neither trust, sell, nor permit any other manner of interment or monument to alienate the property.

In other instances, if the monuments remain unalienated, the security of allegiance must be held in trust.

When this precept is pronounced, it is intimated that he shall neither be ensnared by deceit, nor suffer retribution, nor be delivered up to penalty, nor be bound in fetters of obligation.

But he shall not be engendered thus, nor shall he depart from his kin.

Paul, by the grace of the Lord.

Chapter. Concerning the Ambassadors:

The messenger, who had been invested with the office of the knight, either having surrendered his trust, or having been discharged by the testamentary desire of the deceased, it seems, hath departed.

Is there any distinction to be drawn between a mortgage and a fiduciary obligation, save that the former is denominated in the Greek tongue, whilst the latter is expressed in the Latin idiom?

Henceforth, the trust, which is the property of the trust, and the hypothecary estate.

Tertullianus, who confounded Jurif with the idolatry of Idols, thus

The people of Ethnicus, having contracted loans upon pledges and under the solemn oaths of fidelity, were careful to maintain their faithfulness; and when the faith was denied, they took an additional oath to sustain their original pledge.

Thus, it must be read, not according to the vulgar custom, whereby the populace is intrusted with the duty of maintaining the blockade.

For it is not those who impart the pledge that are deemed credible, but rather he who receiveth is accounted worthy of trust.

Pignora autem fidei commissa sunt Tertullo; et Graeci, ut praevious demonstravimus, vel eum fidere, vel eo compellare ad debitum reddendum, quod est fidei pignus, id est, rei creditoris in fidem obligare pro debito.

The Optimal Glossarist of Terms:

He trusted, and he trusted; a trust unwavering and constant.

Thus were the servants of Paul entrusted, by Seneca, the preeminent jurist.

Saim Asii commifloria: The Saim of Asia, the commifloria:

Whosoever, by confiding in a creditor, should have availed himself of a loan, he would have discharged the debt due to Jort.

And Amanus exhibited the residue of his captives to the foe.

But verily, it is to be lamented that this engenders a want of confidence.

Nam fiduciarius, qui inter veteres Gloiilis de creditore exponendus est, utpigneris citatis, veluti etiam hypothecarius dictus est, id est creditor.

In the capacity of the fiduciary, nevertheless, another individual is likewise invested with similar functions; a circumstance which we have previously detailed in our preceding volume.

All these matters, conforming to the *lex commifforia*, Paul reposed his confidence in the pledges of the captives; or he might have arrogated them to himself.

The debtor, he observed, will possess the creditors' confidence to proceed against him upon grounds of superfluity.

That is to say, if ye be ensnared by the *pignori*, and the five hypothecas; this is the leading principle, to wit, that which conducteth unto the giving forth, and that which determineth the quantum to be given according to the hypothecas. This is the manner of giving, to wit, the extent or space thereof.

In the exchequer of the creditor, who had pledged security or granted a credit to the debtor, no additional remuneration was accorded, save and except when the testator had conveyed the sum to the debtor, and it had been duly transferred thereto.

Given these places, the *Tribonian* and the *Digest of Julius* were referred to for examination; it was not incumbent upon them to remain here, but forthwith to alter the condition of those who held them, whether as pledges or mortgages.

The identical term shall be uttered in a manner consonant with that employed by Paul, in the identical chapter and title thereof, as detailed in book i.

Of minors attaining the age of twenty-five years:

Minora ad versus disiri actiones eorum pignorum, vel fiduciarum quas pater obligaverat, fieri non ut oportuit, dicitur; creditori disiriabunt, reverti in integrum potest.

And, as I have detailed in the fifth volume of the twenty-sixth Title of Faith, it is not deemed improper for a pledge to be deposited with her; and for the final adjudication to be asserted against the arrogance of the judicial bench.

Judgment, confided to faith, and deemed equivalent to a hypothesis, is one and the same in the estimation thereof.

If the creditor, in restoring trust, had rather made the debtor more worthy of confidence than himself, he would thereby have become liable for the obligations incurred by the latter's faith.

It is reported that the judgment of the *Pignericians* is grounded in the law of the twenty-fourth Decree of the *Pignerician Code*.

In pigneraticio iudicio autem, vel fiduciario, veniebat, et meliores faciebam creditoribus debita vel pignori data, ut contra additiones ad recuperandas qua dabuntur:

Let it be impendible, leges.

Eighth.

That is to say, it is to be received and judged with confidence, for the purpose of pigneraticion, and it is an exercise of prudence.

There is no method by which our progress can be arrested.

f 9\$ at Modestinus, in the compilations of Mosaic law, cap. de depolito:

Thus, in the confidence of the judicial tribunal, and in the absence of the sovereign's consort, he is led to impute blame, since the advantage of both parties has been interposed.

For there can be no room for hesitation, that in the act of giving a pledge utility may accrue to them who are adverse. For it is conceded, as Gaius in his Institutes doth affirm, that a pledge is granted.

Chapter XV. And, for the sake of both parties, and with regard to the debtor, whom he judges to possess a greater pecuniary resources than the creditor, whom he similarly estimates as being possessed of less.

Amongst him, however, the act of trust on behalf of Paul is termed *pignarity*, a term which is bestowed upon the debtor by the genuine creditor, in order that it may be reclaimed.

The trust of grace, which is to say, of the pledge or of the mortgage: thus the fiduciary obligation founded upon favour rather than security.

The ensuing:

If the creditor, confiding in his judgment, shall have delivered the property to one of the heirs, or to a stranger, the action of trust is competent against all the heirs.

That is, that period pertains to the age of parturition.

Item: Subject:

If it shall be mutually agreed between the creditor and the debtor, that the trust cannot be transferred to the creditor, then, notwithstanding the default of the debtor, the creditor cannot solemnly declare the same, nor divulge it publicly.

For it is not within the province of such an agreement to engender confidence.

That is, where, after the solemn denunciation "debtor non solvendi facta," the creditor, being distracted by the circumstance that the debtor, besides being a debtor, is also a creditor, and being unable to recover the pledge on account of the absence of confidence or the debtor's reluctance to discharge his own debt, Papinianus, in his fertile treatise on definitions, entitled "De Judicatis," dispatched to the debtor a playful and productive work, wherein the compiler of the Mosaic and Roman laws has restored the original text.

XI. In this manner:

It was incumbent upon the individual, though he might have acquired a privilege equivalent to that which he had conferred, to surrender it unto the Praetor who had received the boon; yet, he was not bound by the decision of the court.

Because Tribonianus, in the redaction of the Digesta, hath set forth these words, it is beyond all question that a due confidence of the judiciary might have been seated there; not in the pasture, but in the pasture, and in the pasture.

But, from the standpoint of the advocate, we shall frequently recur to the Papinian Jagiellines, which we shall hereafter more than once revisit, in the concluding section of this volume.

Non possum Pp pro J94 Cl. utilizzare.

Claudius Salmasius, however, did not deign to marvel at the prodigious breadth of Tribonian's compilations drawn from all the extant maxims of Jurists, so confidently asserting that the mass of legislation had become so chaotic and confused as to leave not the slightest trace of its former organization, neither within the Digests nor in the Code.

And in a few fragments, which have been handed down to us from ancient times, and through the hands of Tribonian, whenever the subject of pignora arises, there is a frequent recurrence of fiducia and judicium, and fiducia and res, in so many places, that it is no more worthy of our notice than the incidental mention of hypothecae, which we find nowhere amongst them.

Apud Papinianum, Paulum Modestum, judicia fiducit cur legimus, et fiducit actiones, quibus nihil locirelisbum est in iure Justiniani per Tribonianum collecto ex illisipsis antiquis Jurisconsultis?

Wherefore, indeed, the ancient rejection:

The statutes of the Viligoths, if the Longobards, who have been much imitated by the Romans, contain no mention of hypothecae, but only of pignora, Stfiducians, and Göttingen, from whose more ancient collection of Justinian's jurisprudence it is manifest that a few terms

are derived; and from the commentaries of former jurisconsults, many words are borrowed; hence, in this text, the word hypothecam is nowhere found, but only pignus and fiducia, and the phrase "fiduciaris pro obligare jure hypothecam" is used.

The authors, likewise, the Latins who had composed prior to Justinian's reign, never availed themselves of the term hypothec in any manner, but were wont to trust in it.

Antiquity:

And even inscriptions, not to be trusted as monuments, that is to say, the oppi-gneranda, have suggested themselves to us.

Amanuset, praetermissus recens et primum consiliarius Gothorum, hoc verbum in suis vetustis literis edidit, ut dicunt, Usurpat.

To the Quinta of Paul the Loiterer:

Precarius, who, by prayer, may terminate his affair with the Lord, or may continue to repose in the confidence of the creditor.

This is, in the event of the supposition:

A title is requisite, whether it be a mansion, a villa, or a farm.

The same may be asserted of the lesser establishments.

A year or so thereafter, when the captain had ascertained the reason for the incursion, he disclosed that this reason was identical to that which had led to the employment of the Usurpators' Army; Jus rat.

Confidence:

The cause of this, to wit, is to place that which the Greeks term **■δε■κνυμι**, Jmsalu.

In all those several instances, it is deemed expedient that the confidence of the decedent be vested by virtue of the mortgage, in respect to the acquisition of immovable possessions.

There is no person, to whom Cicero bears any relation, who in his Familiar Letters hath assumed the authority of that orator's voice, and imposed upon the reader by a spurious imitation. Let me, Epistle.

Lvr.

He did not employ the Latin term "hypothecas," but chose rather the Greek equivalent, intimating that the vendors would subsequently be released from the stipulated conditions.

The vendetta is Gmulata, thine:

Nevertheless, the dolor was conveyed unto the subject, and forthwith restored the dentine from the cavity of the patient.

And in the event of the administration, whether it be a pledge or a mortgage, it is likewise indubitable that the same shall devolve upon the heir, and the pledge or mortgage shall pass into his possession.

Of the matter concerning which Isidorus has more nearly approached the confidence of the patriciate than the Boethian, which, though distinct therefrom, is by no means to be deemed identical with it, yet it is not altogether coextensive with the ancient one.

Pignore.

Trust, he saith, is when something else [is added, .

It is a matter of gratitude, whether it be remitted or condoned, to be trusted by an oath.

As to the prior portion, let us advert to this fiduciary arrangement, wherein we vend certain property for the purpose of pecuniary gain; and upon the expiration of a determinate interval of time, when the stipulated recompense for the said instrument hath been restored, there is contracted a medium between the pledge and the alienation.

Let us denominate that general vendition which is subject to the condition precedent of re-mancipation.

I will undertake it.

For I possess no pecuniary resources; neither can I contrive a reciprocal agreement; but by virtue of the *lex commonia*, I am empowered to alienate my property unto my creditor, upon condition that after a term of two or three years from the day of such alienation, I shall be under no obligation to refund the said sum, which shall henceforth vest in him in perpetuity.

If I restore the recompense within the appointed term, it shall be restored unto me; for Gallus, as it is said, is the sole recipient whose claim is valid.

Hujus, a jurisconsult, is a jurisconsult.

From the ways betwixt the Emptoret and the Dictator.

Therefore, it is incumbent upon the fiduciary purchaser to determine the mode of sale, in such wise as follows:

It is resolved subject to the condition that the creditor, who was likewise a pignerator, should vend the res vendita in the name of the first man, as it were, until the pretium should be restored unto him; and if the pretium be equivalent to the value of a pence, yet shall this be deemed of equal worth.

Your consort:

There was conveyed to the purchaser the date thereof.

Faith, however, is the outcome of that purchaser's fidelity, who entertained such confidence in the transaction, as to anticipate his own recovery, and scrupled not to regard the purchase as secured.

But if there be any confidence in me, it is not of that nature wherein the Boethians reposed in her. And if we are truly abashed at its mention, this confidence is common to Isodorus, who entertained a similar assurance, which may be thus expressed:

Pignus, hoc est, vel hypotheca.

What shall ensue from his own conduct, or whether he will be subject to legal penalties, is known to the jurisconsults; and myself, I am ignorant thereof.

Even though he seemed not to apprehend his destiny, yet did he discern himself to be a virtuous individual.

For it was not beneath the identical title under which the law of Constantius, whomsoever he may have been, had restored it, that it was reanimated; although it is manifest that the same law had been re-established both by Constantine and subsequently by Justinian, which differed from the former, as it were, in the administration of the twelve codes.

Whoever is a shepherd, unless within certain temptations he, having received money on loan, repays the same to his creditors, is bound by contract to alienate the said property as security: such is the tenor of the obligation.

But he comprehended that the heir had enjoyed a corpulent habit during his residence in a petty borough.

Therefore, by common right, the creditor is bound to vend the hypothec under the same obligation.

Ruflardus, in his edition, distinguishes otherwise; nay, not even thus.

Cejsurum fe creditoribus hypothecam venditionem non contraxit, sed id comprehendit.

Neutralis veritas rei.

And the place, not merely by reason of interpunctuation, but even by virtue of the infelicity of reading, doth labour; and thus it is a fortress of fidelity unto the work.

Let the law of ire, which my peril, though assuredly incumbent upon me from the gifts and offerings of the Jury arrayed against me, be tranquil, if within a determinate term the debtor discharge the sum which he hath borrowed, and permit the creditor to sell the property by the mortgage of Caesar.

SALMASTI did not contrive the vendition, but comprehended that which his creditor was accustomed to obtain by way of pledge according to his lawful right.

In quod vis cedo pignus, observabo hanc legem; utique eorum doctores, qui fuit in fide Coryphorum et Jurifconfessorum.

That I have a grievance against Jurifcoofulco, I readily endure; and I am not in sound health.

So much rather is it incumbent upon me to instruct them subsequently.

Which nevertheless they may yet be incited to effect.

Herein, interpreters, ye seek to discern the import of certain words, that thereby today thou mayest be acquitted.

This, they contend, is more manifestly true, not that the creditor acquires a moiety of the penalty according to his right of distraint, but rather that he has such a moiety according to his right of pledge.

Hence, they convene; et ego curabo ut milites, qui castra præsidet, non occurent, sed occurentur.

But the scheme was entirely unforeseen, and they were unacquainted therewith; this was the disposition of the convoked council, and the legions of the Constantianians, who had hitherto borne the principal charge, pursued the same conduct, which that Emperor had bequeathed to the succeeding assembly.

The debtor remains in obligation, save that if he discharge the sum within a determinate term, the creditor shall be relieved of the lien upon his property.

Non aliter concipiebantur pattiones, sive cautio- nes commiflorix; et ideo Alexandrus, cuius lex ista est, dicit, ne venditionem huius pasturæ de nihilo faciat, sed id comprehendatur, quod jure suo creditor in adipiscendo pignore habiturus erat, ex lege nempe commifloria.

With such bold and clear diction, Tribonius withdrew the oratorical flourishes, that the simple and unadorned words of Alexander might more readily be comprehended by the Roman populace.

But although their presence may be lacking, yet may they readily be comprehended, whether by appeal to the law, or by reference to the common recreations of the populace.

It is, however, most manifestly absurd, nay, almost inconceivable, that if the debtor shall promise to discharge the mortgage, he should thereby be precluded from discharging his other debts, and should be incapable of retaining any portion of the creditor's security, beyond what it is incumbent on us to apply to the redemption thereof.

Ceflurum, the debtor of the mortgage, was furnished with funds to discharge the obligations due from himself; that is to say, he refused to convey the pecuniary obligation to the creditor, provided that the moneys were conveyed to him.

For why, O Emperor, did you refrain from affixing a more solemn pledge, that you might not appear to witness the sale of the moneys, than merely to permit the creditors to take the oath of fealty, which they would have been entitled to exact in the ordinary course of law?

By virtue of the law duly enacted by their own commissioners, the jury had the power to denounce the party in question and to withdraw the case from the court; and the creditor, having obtained security, was entitled to remit the penalty.

Falfiflim, though a disciple of the erudite Jurifconfucius, was incarcerated for transgressing the ordinances of the Codicians; for he maintained that, even should he discharge his pecuniary obligations at the latest possible moment, he would yet retain a lien upon himself in perpetuity, thereby remaining perpetually bound to his creditor. Hence, it was deemed incumbent upon him to submit to the dominion of Constantine.

For he never hath done this.

And of the other matters, which I shall shortly advert to, whilst I receive them with approbation.

Nec ad rem attiner, quod jure Romano ex principum referiptis hic patho in pignoribus erat licita, ut finito certi temporis ambitu non esset soluta pecunia jure emptoris, creditor rem potest possideret justo pretio tunc efficitur, ut habetur legem.

XXVI. Titulus Ultimus.

De Pinis.

For indeed he held no community of native land with the law of the communion.

A lex, praesertimque commiffloria, potius fefellit opulentiam et imperium deinde debitoris, qui et ipse ad regiam sanguinem pertinebat.

which he conveyed unto the creditor. By this means, it is evident that the mortgage, according to the tenure's own law, devolved; that is to say, the debtor, being bound to the performance of his engagements, was required to provide for the discharge of the debt, whereby the creditor might claim the satisfaction thereof.

And verily I have referred Anianus to the establishment of the Method of Usufruct; instructing him to adhere to the prescribed regimen thereof.

6 O!

Tutionem Constantini de commiffloria rescindenda, cautionem interpretatur commiffloriam, in qua debitore creditorui suo rem ipsi oppigneratam pernecejtatem conscripturn cautionis promittit; id est, Constantius interpretavit bondam ut cautions, qua ipse liberatus erat a custodia defuncti, et bonda cautions est, qua ipse responsabilis erat pro pecuniis suae debitricium.

For herein indeed did the edict of that Constantinus, who was congenerally termed a fellow-flower, consist; yet was the caution interposed, relating to the cultivation of the share-plough, of such force, that he was bound thereto with the utmost solicitude.

Nor should the debtor yield possession to the deceased's estate, nor immediately acquire it for the creditor by solemn affirmation; but rather, he must prove that he is under prohibition to sell the property.

It is more convenient for the creditor to reside in a place of sale rather than in a place of pledge, which the Emperors, by their edict, permitted in a contract of pignora, that the purchaser might be bound to discharge the debtor's debt until the day of the pledge; and they deemed it expedient to make a pledge of allegiance to serve as a pledge of allegiance, and consequently to restore the reason for such a pledge, so that the law hereinafter cited may declare the same, according to the edict of D. Eodem.

Which is also corroborated by the ultimate Digest.

concerning the contract to be entered into, wherein a similar condition shall contrast with the obligation of circumcision, whereby the circumstance is not made a pledge.

That he may be held accountable in his cause, not merely by virtue of an obligation incumbent upon him, but by reason of an obligation contracted through purchase, the act of acquisition being conditioned accordingly.

But, according to the Law of Common Pleas, it pertained to Donatus to enter into an obligation for the redemption of pledges under such a condition, namely, that the lands thus pledged should pass out of his dominion, and be delivered to the creditor by virtue of the agreement, to be proscribed and distrained upon; not so that he himself might hold them in full right as if purchased.

Hence, in the treatise entitled "De Legibus Commifforibus," Paulus, in the fertile tract of Sententiaries, doth affirm that, according to the law of communion, it is not lawful for the debtor to vend his fiduciary security to the creditor; and that he ought not to be ensnared by specious and hollow expressions.

But the law, which, as they assert, was thus enacted, ordained that the creditor who should have received the trust from such a party, and who should have acquired the full faith and warranty, should be regarded as having received the trust from the debtor.

But so long as I am bound in duty to govern the realm, it is incumbent upon me to have my retinue at my side.

Gnostic, IV. VI. I and Cl.

Salmasius, being pledged by plenary right to be transferred in full to the creditor, maintained that neither could he lawfully continue in the custody of the prince of the court, nor in that of the debtors; yet, after the term of one year from the day of his demand, it was lawful for him to be expelled from Egypt.

LXIII, my dearest.

Lastly.

D. de acquisitione.

Or a friend.

Subsequently.

When, by virtue of his paramount authority, the creditor commences to possess his own domain, he is induced to swear allegiance to the proprietor within the prescribed term for the discharge of the pledge.

The constitution was established in that period, which year it was, when the edicts of Justinian reached no beneficial extent.

Ultimum.

The Code.

I have not the authority to act thusly.

Nulla igitur rei regalis dominium, plenumque jus oppressæ ad creditorem transferri licebat; sed tantum princeps illud dabat, nec alia quædam potentia poterat adjudicare vel addicere petitioni, sicut in antecedente libro ostendimus.

For indeed, it is evident that in the confiscation enacted by Constantine, wherein the law of the commiflorum pignora held paramount authority, creditors, being newly initiated into such matters, might construe, from these very words, that the price for which they have bestowed their friendship is equivalent to the price of wine, not owing to the commiflorum pignora per se, but rather to the law concerning the sale of decommiflorum.

Subjunus, being the secondary title pertaining to the contrariety of purchase, is henceforth denominated.

The immediate sequel is the following title: "Of the Patriarchs whose Sons have Departed."

And henceforth, in the third volume of the aforementioned compilation, I deposit the obituary of the Codicus.

The title concerning the pignoris is recorded in the volume denominated Fecundus.

To whom the subterranean flames were fated, the Decommifloria, which had been conducted thither by such flames, should conform in what manner the conflict which had befallen it required.

Thus, in the Digest, subsequent to the title concerning the contract of transfer, and in the day of its addition, is appended the title relating to the lex commifloria.

Which is not allied to the eucharistic distribution, namely, the eucharist itself.

Of pine-trees.

However, there were two distinct causes for this, and no man might err therein, namely that there was a commifloria venditio; in the one instance, the purchase was resolved upon the condition of the land being previously cleared, in the other, upon the stipulation of the contract itself.

Unius tantum titulum Digeftisjuftiniani posuit, quia ceteris cum pignorum commiferis in eodem oppido mansisset, constitutio autem Constantii unica remansit.

Let us, therefore, nurture our offspring in this wise.

6 It is recorded in his codex, that Constantine, being in the exalted station of high office, restored a prevalent custom by which the sale was entered into upon conditions.

But, as he communicated nought concerning the fate of the Tories to the Condantines, nor possessed any vestige of sound judgment, the words which were uttered to him were so manifestly lucid as to afford the creditors satisfaction in receiving the recompense due for their amicable connexion with him.

For the creditor bestowed no value upon the commemoration of the royal flower, but, according to the right of ownership, he retained the pledge for the sum advanced; and this interpretation was adopted, conforming to the custom of learned doctors.

And the judgment of the tribunal was committed to the execution of this decree, whereby the delinquent was bound to yield unto the sovereign with augmented rigour, and to make his confession.

There must exist a creditor.

Nevertheless, it was incumbent upon no one to bestow any reward, since the monarch of Jegeflorium is commanded to receive the illustrious flower from Constantine.

By a slight commissure of pignorum, the creditor yielded to his supplication, surrendering to him a trifle in pledge.

Then did the creditor prolong the loan.

If the purchaser did not exceed his bounds, he sought from the prince a full and rightful sovereignty.

Who, by thus making the pledge, neither could render any thing to the creditor, nor himself could demand of him any further sum, that the law might be satisfied.

XV D. de re judicata.

Although he addressed those captives whom he had reduced to subjection, yet was it also noted that he maintained the same deportment even in the convent where the prisoners were confined.

Therefore, by receiving the words concerning the price, it is meet to refer them to that species of conditional purchase, which the law of Martianus permitted to be restored to the true God, and to Antoninus.

If, within a determinate interval of time, the sum of money being due shall not have been discharged, the creditor hath the privilege to possess himself of the thing pawned by the debtor; and if the said thing be to be valued at its just worth, it must be estimated at the price current at that moment.

Therefore, it was the intention of the aforementioned Emperors, not merely to construe this compact as an obligation of pawnship, but rather as a sale subject to the condition of the buyer's willingness to effect the purchase.

In hac autem passione etiam leges commifloriae:

There existed but a single locus, and precisely two alone.

Whosoever is alleged to be in contravention of the law, as if it were to be communicated to him by the law, is either roused to anger or appears to be so; and hence the law itself is thereby rendered more praiseworthy.

Nec hoc hominem habet.

In the negotiation and execution of the sale, let it be particularly contrived, VI c. Cis Popl.

He possessed a niche in that very forum wherein he had betrothed the implements of sacred songs.

The lease, forfeited upon the payment of the stipulated sum, nevertheless remains unfulfilled, until the pecuniary obligation is discharged on the appointed day, lest the fund be thereby rendered defrauded of its due.

Lex.

And there is a law that pertains to the emoluments of purchases, whereby, if any sum of money be due according to this law, no portion thereof shall be alienated even within a determinate term; and the said law was repealed by Constantine on account of sundry oppressions by which debtors were wont to circumvent their creditors.

Severus, therefore, did permit this disposition to be established, in such wise that a just price might be paid, and a man who was not worthy of the name of a virtuous person should be deemed to have incurred punishment, and should be punished when he committed the pledge.

Nec pignoris obligationis hanc vellebant videri, sed venditsonem sub conditione.

Alias, constituta pretio inter contractores, res ipsa non tantum pignus traditur creditori, sed quasi ad tempus empti est; iure quod, die praesto constituto, non redimet debitor pecuniam, creditor autem perpetuo habebit emptam. Thus, the price agreed upon between the contracting parties is not merely a pledge delivered to the creditor, but rather as though the thing itself had been purchased for a term; according to the law, the debtor is not bound to repay the debt within a single day, but the creditor retains the perpetual right of ownership.

How profoundly this law hath been established; and whosoever conformeth himself thereto, as if in custodia, or imprisonment, doth retain himself, and returneth himself to the judicial forum; this is the law.

The money, which is:

She had convened to accede to the stipulated recompense, and thither she was restored.

Fraud in his emptions multa consuevit efflare, et captio ex parte creditorum, et utroque quidem casu.

For whether the price be deferred in the erection of the temple, or whether it be determined by the flatness of the contract, those debtors who have need of funds for the temple's completion are diverted by the notion that the temple's worth is left to the caprice of the creditor.

And when dissolution is at hand, and it becomes necessary for them to remit their possessions unto themselves, and a brief interval hath elapsed, wherein they cannot extricate the funds, they are aptly converted into reputable individuals.

Therefore, Constantinus justly abolished the comroiflory law, maintaining a style both elevated and lucid, with periodic sentences that flow with measured cadence, employing a vocabulary lightly tinged with archaism where fitting.

Commifloria verè autem pignorum alia fuit.

For, as the jurisconsults have been instructed, they maintain that the law admits of common pleasures, save in cases where the security is properly taken in pawn; since, indeed, the bare convention of transferring ownership cannot bind the sovereign's dominion, and herein they are altogether astray.

Well then, as I have previously intimated, the dominion of the monarch is now committed to a bare and simple convention.

By my own observation, I have beheld it.

Subsequently.

Indeed, we have already demonstrated that the lex, with the pine blossom, constitutes the plenitude of dominion.

I entertain no belief that the privilege of utterance needs to be acquired.

This is an orphan, unentitled to a niche for the flowers or for the trees.

They will desert thee, and thou shalt be bereft of the creditor.

I shall speak the contrary of the verity.

None else could have accomplished it.

Siquidem ad hunc modum interponebatur lex commifloria in contrahendo pignora, ut eo commixto, hypotheca cedat debitori; hoc est, pofflizione rei obligata cedat debitori.

These are the words of Cicero from his Epistle, elevated yet lucid in their diction, delivered in periodic sentences, with a measured cadence, and employing a vocabulary lightly tinged with archaism, save where such formality is most natural.

They took an oath upon him, saying:

Pnierea, relinquished by Philetus, was bestowed upon him by Cluvius.

Hic venerunt ad locum usurarum, quem a me legitime tibi paciscisse iusseris.

In this instance, there is no allusion to a procurer.

For thy money, which thou hast mutually lent, thou shalt receive from my fields the fruits which I have mutually bestowed.

These usurious profits, which thou hast wrested from me, shall be thine legitimate gains, until this equivalent thou shalt have received from me.

Hence and thence that question was established, and having been agitated amongst jurists of olden times, whether it be lawful for us to avail ourselves of the legitimate use of usury, i.e., of the mutual augmentation of money, and to conform thereto according to the laws.

But this question he thus propounded: "Nosse scio," in verba Philippi, non dixit.

The Seventeenth Code concerning Usury, which forbids a co-conventor from reverting to his former condition on account of a larger share of the emoluments derived from the encumbered fund, is instituted for the purpose of securing certain fruits.

Which, in truth, is perpetual and solemn.

Grant me, therefore, a certain sum of pecuniary exchange; and I will reciprocate by yielding to thee a similar sum, under the semblance of a mutual obligation, that thou mayst derive the profit thereof, whilst I reserve unto myself a portion of the interest, which, in lieu thereof, thou hast hitherto withheld.

Although the remuneration accruing from these resources be more copious, yet they are the most bountiful that are mutually advantageous.

Pecunia, tamen, quæ incerta est, posse obire ad hoc, id est, quod pretium eorum minor factum sit per aliquot annos, quo rariores usu-rum, quas exigere, modo legitimo; ideo talis antichresis permittenda Fructus, qui de futuro et eventu rerum mundi incertus fuit, et qui, propter alternationem annorum, ab usu legitimum fructu defecerit, uterque vero, quidem in certainibus annis excedente, alter vero certamine reciprocante, in legitimo usuarum modum revertere.

Nec obstruit legem Vnum Dominum, in qua me cuius pignus, quam maxime multi dolores impedire possunt. Nec impedit lex Unica Domini, in qua me captus pignus, quam maxime multi dolores impedire possunt.

If the law were to be observed in its entirety, it should here be propounded.

Gratuitam pecuniam quidam crediderat, et ab eo corporaliter pignori fundum acciperet; aut usus nil de eo fundo inveniret; tamen poterat e regali pecunia oppignerare, si ei gratis dederat.

He shall not regain the usury, provided that he exacts it within the bounds of lawful measure.

Not because they are more copious, but because they are legitimate: thus the argument proceeds.

They are usury, they are deceit for ever.

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The Cypress.

It is affirmed by C. L. Saimius that naught can truly be predicated of thee.

Nec ignis quidem tacitus, aut tacita hypotheca, hanc, qua disceptatio versat, dici potest.

For it appears by this convention that the pledge was to be delivered to the creditor in lieu of mutual debt.

Perhapply, if the creditor were not delivered in replevin, he might not lawfully detain the produce under the denomination of usury.

But when the name of the oppressor was specifically handed over to him by the captives, he was invested with the obligation of a hostage-vow.

X, my little one.

And when D. Eodem, a man versed in the law, had championed the cause of usury and its receipt, and had opposed D. Eodemus, his legal peer, the latter was, as it were, secretly and without ostentation withdrawn from the jurisdiction of the realm.

The creditor might, by way of compensation for usury, employ usury itself.

Even if they were to retain the liquor, nevertheless they would not be bound thereby to continue its possession.

There can be no more legitimate instances, for either this, or that, even unto the legitimate, in the usury of such things:

If there be no peace, though a vision may have been vouchsafed, yet shall the extremity of retribution prove iniquitous.

For the sake of equity:

The usury of judicial faith ought to be derived from legal precepts; thus, and gratis.

The moneys:

A mortgage, even if the debtor hath made a payment, may be preserved from the king's revenues by the usury, of which he hath not been duly apprized.

Since they were unable to discharge the usury, nor to conform their payment thereto according to the stipulated conditions of the law, yet might they still satisfy the debt by retaining the pledge.

The fourth ordinance.

Of Usury.

The explanation tendered to the king's son-in-law is not weakened by the continuance of the produce of the vineyard.

After the usury from which you have sought to be delivered, and so far as it is consonant with the legitimate mode of compensation, Paul appears to desire that it may be shown that the Divine Law, wherein you are contending, has been transgressed.

Of which, in our former treatise, we have made some mention.

In this place:

They were indeed those who underwent chastisement, although they had but slightly touched the wall with the voice of a lion.

As far as may be consistent with his capacity, he will be wont to contend for the sun in every quarter; yet it shall be deemed requisite. The truth will be more nearly approximated, were the clause of negation inserted, since the creditor will not permit the debtor to appropriate gratuitous pecuniary resources.

In this place:

Forasmuch as the creditor, who possessed a fund of money gratuitously intrusted to him, doth receive the same as recompense for the use of usury, wherein, as it is commonly alleged, there is nothing to be gained?

The other matter appertains unto usury, which is to say:

In stipulationem non debent esse deducenda, quas creditor potest facere per retentionem pignoris fervidam.

For the salt of the pasture being extracted thence, saith the fourth enactment of the Code.

Of usury, nevertheless, we do not impose upon thee such a stipulation.

Speaking of money, Paulus, in his wonted fashion, when he saith that the debtor doth not use the gratuitous pecuniary gift, as if he were employing a rational process, seems to assign a reason why he is solicitous concerning the fruits of a thing pawned.

The lender ought to retain the usury from the debtor, since the latter would not be in a position to avail himself of the gratuitous funds without exorbitance.

If this be not the instance, or if the obligations of the creditor have been, by my solution, discharged, it remains unquestionable that the consequences of the law, according to the enactments of the Code, must be deemed corrupt and tainted by the diminution of the debtor's liabilities.

Of the parturition.

From thenceforth, therefore, Paulus of Salmacis, who being deprived of gratuitous pecuniary aid, yet refused to release usury upon his creditors, was reduced to stripping the monarch's revenues for sustenance.

Let us, however, continue to reject this doctrine; and, in order to ensure that it be fully apprehended by all, let us not merely oppose Hotomanus, nor shall we spare even those who, being of like mind, contend against this law, which is founded upon the ancient statutes, and which, by a certain process, he hath imposed upon us through the medium of usurious enactments.

For this proposition, touching the purer and more genuine Antichrists, is verily true; wherein from the very commencement to the present period, it hath been the custom, that for the employment of money, the credit of the fraudulent should be expended against the donation of the deceitful, and should yield to the dictates of Antichrist.

For those who are in opposition thereto, it is owing to the circumstance that the tent has been constructed from the foundation upwards, which is far more robust and enduring than the legitimate and proper mode of employing the same.

This indeed concerns usury, whereby the debtor delays payment; and nothing is owed to the fruits for the repayment of usury.

Now, when the creditor had resolved to detain the funds from the debtor, it was impossible for him to effect this in a manner more consonant with legitimate procedure.

When it is decreed that the principal shall be retained after the loan has been disbursed, it cannot lawfully transcend the legitimate usury which is due thereunto, provided such is their obligation.

Wherein the fruits, being in superabundance, shall be gathered with vigour and strength.

It is not in propriety incumbent upon a person to remain silent, though silence may be his condition.

For nothing that is truly Antichrist can remain in silence.

But when he had pursued that way, and deposited it in the plough, and observed the produce of the lawful usury of the lion to be withdrawn from the royal plough, he did not follow that way, but rather appropriated the produce of the royal plough.

The creditor was bound to retain the money; yet he did not effect this in the most legitimate manner. Not only did he appropriate the sum for the true discharge of the debt, but he also availed himself of the antichristian pledge, so as to receive the profits from the repayment of the usury, even though such usury might have exceeded the legitimate limit, and yet they were permitted to establish it lawfully.

[untranslatable fragment in source]

Of Usury.

For, indeed, the words of the law itself are not invoked by the Propre, but by the very terms of the law, which, if it enjoined upon your mother to bind her estate to the creditor, thereby securing mutual interest and profit, it likewise prescribed that the fruits thereof should indemnify the usurer.

This indeed is the sole method whereby the said operation may be accomplished; and in this manner alone can it be effected.

Therefore, in the produce of the greater part, rather than in usury:

The funeral, being a legitimate remuneration, was deemed proper for an article of value whose precise worth remained in some degree indeterminate.

But in the case of those retirements, which they are assuredly destined to undergo, they will entrust it to another.

However, the XIVth Code of Ethics, promulgated by the Monarch of Siam, ordains that even the second edifice should surpass in magnificence the usurious practices of the legions, and should be more refined than the sordid purse of swine.

dwelling hence to be employed as a substitute for usurious practices.

However, it is not conceded, nor does it seem meet, that the unlawful furnace be imputed to Antoninus on this account, since the vile tenement is derided.

For he who inhabiteth a house contrariwise to another, lendeth money to the usurer.

He received it, committed it to the custody of others, and thereby garnered a greater sum through expenses than the legitimate interest would have yielded; hence, he must be deemed culpable for having exceeded the lawful limit in the application of usury, as is exemplified by the instance at Harmenopolis.

V. The pure and unadulterated law of the deities doth exhibit unto us.

Hence, and conforming to the exposition of Harmenopulus, I have discovered in the Græcisms a succinct summary of his doctrines, and from the corpus of Bailicius have derived the title of this work; yet, verily, the verba legis Latinae, as they stand, make no explicit mention of pignus, or obligationem pignoris, save for the Code itself.

And he said, "If by that pact your spouse doth lend thee mutual coin, that ye may dwell in the usurer's abode, and therefor, as shall please thee, make payment thereof."

What is not explicitly expressed in the law, let us not presume to infer, but rather acknowledge that such an inference is unnecessary, especially when the law provides for a definite termination of the pledge upon the performance of the principal obligation, as this statute clearly indicates.

But in the true world, where the foundation is laid upon a pignus, or a hypotheca as it is termed in ancient Affinum, there is no longer any sustenance to be found within the sepulchres;

and hence, no provision can be made for the pignus, save by means of a quantity equal to the weight of a pound.

The credi- V Ci 6 Cl.

Salm^{us} creditor, retenendus a Marciano scriptum est, donec iunctura soluta sit.

Whoever, by addition to the enumeration, shall have incurred the accusation of being a creditor, and of having perpetrated a crime against the populace, even though he may have sustained a wound from a spear, shall be deemed to have forfeited his claim to exemption.

And finally, that is to say, in the nature of a conjecture:

He might, for the purpose of discharging the obligations of the defaulter, contract a hypothecary obligation.

Therefore, it is safe to affirm that the path of the Antichrist, as Hotomannus hath related, was pursued by him through a medium other than faith; for Antichristianity doth not rest upon belief, but is introduced and transmitted by contradiction and betrayal of ancient tenets.

For he who, by faith, is confident in the might of Deity, shall be enabled to withdraw his mind from the immediate duty.

Therefore, he cannot be confided in by any man to preserve him from this station of authority; and until he shall have attained full contentment with his own fortunes, he must continue to hold him in subjection. This is the essence and characteristic of Antichrist's ministry, wherein both are debtor and creditor alternately.

Nevertheless, let him proceed to the pledge; for it is within his power to interpose such a pledge as is the established custom among the ancients.

Thus, in his solitary treatise concerning hypothecary formulas, Circus and Marcianus have detailed the method of antichresis; and the species of such mortgage, whereby the creditor is bound by the obligation of the fund, stipulates that the fruits thereof be collected as a compensation for the pecuniary use thereof.

credited:

Hothomannus, who, though he now possesses the path of the Gnostici milites for true Antichristi, yet denies admission to the hypo-Theocracy, is re-established in his former dignity.

And D. concerning the inferior and hypothetical.

Thereupon Papinianus thus proceeded :

Pado concordavit, ut non defructaretur usura diei, et terminus legiti usurarum ex usu hypothecae recompensaretur.

If, as Hothomanus and his contemporaries maintain, such a proposition be admitted, it shall undoubtedly find its niche within the hypothesis; for thence is derived the notion of mutual utility. Thus it may be said, proceeding from the foundation of the hypothesis.

Let it be granted.

For they possess among themselves something mutual. [Greek: ■vθ■χρηζιν]

From thence proceeded the briny explication of every error begotten by the twin brethren, conterminous with the ancient hadith.

A vera antichresis tinniens ullius pignoris vel hypothecae debitoris inhabitare poterit, et ut conveniat locandos et pensiones redigendos; sed habitando non erit.

Qaxrcbarur, verum etemque.

Moreover, he would have restored the edifice in its original site, instead of amassing the legitimate interest, for which reason it became incumbent upon the monarch to entertain a judicious opinion. The Emperor Alexander, however, did pen a subsequent edict, whereby he might effectuate a more resplendent and formidable opposition.

Nevertheless, he was not privy to the illicit proceedings of the inhabitants, inasmuch as he had entered into a compact with them for pecuniary considerations; and hence it appeared to him that the abode was of value.

Verum in his antichreiiis, quibus contra mutuam pecuniam datur aliquid immobilis, recessit a natura et proprietate Germanorum ac veri mutui, quatenus mutuum confluit in rebus his proprie, qua?

Let them be weighed, and let their number and measure be contained.

And what kind of mutual gift is conferred in ancient times, not from those in whom the concept of mutuality is inherent, nor is it bestowed in the same manner as that which is imparted in your own transactions?

To the recipient's transitio.

For this reason, we must not appraise any matter in terms of weight, nor subject it to measurement and quantification.

Wherefore, it is not lawful to surrender the employment thereof, since such a concession is founded upon abuse.

In ancient Athens, there was conferred upon him a thing which could not be consumed; by means thereof he brought forth fruit.

So that, should Iadon be undergoing such a transition as to pass to another owner, I would not deem him thereby to acquire dominion, for he would only possess his own slaves.

Therefore, it is inapt for the number $\sqrt{1}$ to be equated with the duad; for so to do would be at variance with the established definitions and principles of arithmetic.

Contrarium hinc mutuum habet locum, quia tantum in rebus, in quibus usus in abusu confligit, mutuum recipitur.

Nevertheless, the Latins likewise availed themselves of the term "mutuari," in the subsequent phrases:

When they have become accustomed to the use thereof, let them retain it in the treatise concerning usury; and it is not wonderful, therefore, that your bounty hath been wrested from me: why?

He disposed his forces on either side of the partition, and stationed them within the fossae and cursus of the Colli, though it be consistent that in fields and possessions of the Colli such dispositions should hold.

Nam et hic, amplius, et ibi, ibi, ibi, ibi.

The money lent and borrowed?

What sum of money, perchance, is deposited in the chimney, substituting usury for hire?

The Lord, moreover, restored the funds derived from his pension, whether they were to be dispensed or retained, whether to be bestowed upon him or otherwise disposed.

Who therefore produceth all things, is the self-same as he.

Not in the mode of the Usvnars.

He finds six clusters of grain, which he lends to another, and in return for this loan, he receives either a fund or ten denarii, that he may thereby obtain the fruits of the usury, or by placing himself in possession of the land, or by inhabiting it; and thus, verily, it is contrary to the nature of things that which is given in mutual obligation should be given to each other, that is to say, that which is given in mutual exchange.

Thus, if three hundred and sixty individuals are set in opposition one to another, what is conferred upon each is expedient; for it is bestowed as a recompense for favour and bounty, and for the sake of a gift or bounty, quasi.

Thus, if love exists which we repay unto our beloved, that we may return to one another in the manner wherein we return to one another, that is to say, in the manner wherein we mutually bestow and receive upon one another:

The Latin tongue, it seems, hath been advanced by the Greek, that what is bestowed for reciprocal advantage may be conferred upon him by the latter; and that what is imparted unto him may again be transmitted by the same.

However, there is yet another signification of the Roman vove, "Ptorus" and "Jurisconsultus," which is more appropriately applied to the Orient than to the Occident; for it is more fitting to term the same the "primas," which appellation seems to be given in the preceding verse as a marvel.

D Grzecisigeoxenon, et haec: I φε■χοειον. P

For which reason, in the assembly of Harmenopulus, it is read:

[illegible]

Fifteen of D. Locati, it is asserted, to receive the advancement:

When the ship, having received a sum of money, which it had been indebted to receive, lay at anchor.

Tarchon est exutus a Xerces; vel potius Bactriani.

The legions may also receive that which they have promoted by mutual consent.

For thus runs the law among the Scxvoles.

XXXIV.

Delegatos in tempus promutuum recepi.

Whoever hath discharged a duty which he ought indeed to have performed, but the season for such discharge is not yet arrived, should be advanced in rank, or termed advancement; as was done in the case of Suria, during the sixteenth year of the Great and Most Cruel War, when promotion was granted accordingly to those who had served in the ensuing campaign.

He said that the publicans, as though burdened with arrears of taxation dating back many years, hung their heads dejectedly, without any previous intimation.

Gloflx:

Ante oculos vestros, argentum in parte una componatur et in altera.

For the Utilization of Monies:

What is the name of the steed?

Whether the debtor be indebted in silver or in timber, the creditor doth grant unto the debtor the use of the said trust in money; and the partition-walls being unbroken, it followeth that the debtor of timber is a debtor of silver, and the trust is thereby conveyed into the dominion of the creditor.

This is the verity, and it is manifest from both quarters, and in its completeness.

Therefore, it is ever to be considered, from the outset of this epistle, whether the matter in question was designed to serve as a substitute for the crystal, or whether it was to be delivered as a pledge in lieu of the anti-chrysal, as you might have affirmed by oath.

I have no scruple in affirming that it was likewise bestowed upon him, and with yet greater propriety, by the name of the prince, by the name of the prince, by the name of the prince, by the name of the prince.

What is the verity of the Antichrist hence?

They deliver the pledge in lieu thereof, and the creditor detaineth the same, until the payment be fully made.

Axius, invoking Michael, the monarch of the unmovable, exclaims at the spot where, in proximity to his own domain, he has secured the nearest spoil from a foreign hand.

Judinianus, the proprietor of the estate at Novellis, was adjudged guilty of the offence.

It is rendered in corporeal terms, so that it succumbs to the usurer's fraud in the latter part of the year; yet it is now designated by the appellation of Z and X, denominations imposed upon it by Cttyjggt and Ctyyoc.

I am cognizant of the tardiness with which they were drawn from the general indolence; yet even those who disbelieved in our cause shewed themselves more propitious, and Icribanr was adverse.

It is preferable to be indignant at truth.

I do not hesitate to challenge them on this occasion.

For either the will or the gratitude can alone be expressed; rather, it is incumbent upon us to labour diligently in search of the fruit.

I have discovered an additional line of employment through my labours, for which cause:

They all did petition unto me, one and the same desire, that I should yield unto them, C A- , C a p v t XV.

Let it not be termed, nor designated, whether Attic-wise, or collage-wise, or stone-wise, or stone-wise, or stone-wise, or stone-wise, or stone-wise, or stone-wise, or stone-wise, but rather let it be styled, according to certain opinions, as tablets.

So are the verdant plains of the city, as the desolate ruins thereof are heaped upon the vulgar gaze.

However, the etymology of the language, as I have interpreted it, is not consonant with that of the tables; for whilst I was engaged in a voyage, they have been wont to adopt the appellation.

From this locus, they were liberated, as if never before conceived by any mind, agitated and solicitous; and thenceforth assigned to a tvy/stp-cluster.

Theophrastus, elucidating the enigma, imparted his exposition; and it was communicated to him that his apprehension had ensued.

Let the fifth among the Greeks pronounce imgg/Ksuj.

Of which I make mention in the Codex, others of the Attic.

They did likewise, annexing the good fish to the revenue, nay, rather, having already applied the same quantity unto the fish.

The fourth perusal of the Code.

I am amended for both the worthy and the unworthy.

The denomination of various boni to termini stabilimenta.

The sails likewise were delivered to the faithful collector, who had been engaged for the purpose of recovering the piscine produce.

The veil was of a deep purple hue; and the name inscribed in the character of the prince is infamous.

The auspicious intelligence was, notwithstanding the absence of any legitimate heir in the decedent, that such estates reverted to the Fiscus.

That was not a mere oversight.

private, invested with the title of the trust confided to the lord of the court, the tailor, and the profiteer.

I am more solicitous regarding this matter than any other.

The Law of Honor and Arcades forbids this even to the mightiest.

And the Luflinian Novella was also vetoed.

Lulianus, nevertheless, derived a more felicitous expression from his predecessor, Novelle, for the appellation of privateer, which had been unceremoniously imposed upon him by alien tongues.

Ignobiles et obscuri in urbibus Jolentinis, qui nunc insignibus vel alio quodam famae noti sunt, vera potentes et magnates inferum nominibus suis deducunt.

Olim id quoque usitatum in funeralibus ac nuptiis, et ipse sum potentior.

From thenceforth, let it be introduced, that in every case wherein any prince shall have received the title of principal, the principal entity should be assigned as the chief appellation to be imposed upon such title.

No other legal act is permitted save the conception of an idea, but honor is conferred upon the deceased.

Hence, the titles, which, by H. R. J., Confucius had been but provisionally imposed, were suitably and adequately assigned to him.

Your error is known to those who have been injured by others.

Perplexus sum in desiderio tituli Romani, cum intenio meum sit, ut extare titulos in Codicem proxime ad domum Diflini ab Utraco.

Elevated, however, and lucid, let it be deemed otherwise, that certain inscriptions be affixed to relics, and others to titles.

Wherefore, ye have the privilege of inscribing your sentiments, be they diverse, upon various tablets; the material, however, must be firm and enduring. Furthermore, if any presume to affix signs contrary to what is forbidden, or to impose titles on things that are mobile and subject to change, it should be understood that such inscriptions are to be interpreted with due caution, lest they mislead. Let none presume to set his seal upon matters alien and unrelated. Thus, the law commands.

Proponat signum, vel ego signum ex ira legis meae deponent.

This distinction—between the inscriptions of Justinian and the titles of the departed—must be observed; for the former are the signatures of things that are mobile, while the latter are the signatures of things that are immovable.

How the marked habitation, nigh unto Marcellum, was to be received.

Then, upon notification that the appellation of J. Z. Ur had been inscribed and sealed, and that others had joined their number, they were incarcerated within the identical receptacle by means of a lock, together with J. J., and it was further recorded that they had reinstated the unbroken succession of their ancestors, and that they had impressed the distinctive emblems of their lineage, and that they had transposed the position of Xenophontis, and that they had similarly modified the situs of Atticus.

To-day, all things are in the hands of the Lord.

Elenchus, moreover, derived his appellation from the title; hence the term inaurium, signifying an object of similar form.

The peril which he encountered, from an alien origin, may be deemed to have been imposed upon him, inasmuch as he was invested with the oversight of Attica's spoils, and therewith vested with a cognomen commensurate thereto.

I will likewise denominate them "Igm" according to Harpocraton.

Thus, the title of the cross upon which Christ suffered was inscribed by his progenitor, the venerable Nonnus.

[untranslatable fragment in source]

[untranslatable fragment in source]

In hoc litterario instrumento;

Nihil prohibet tamen lapides in terram ponendi, aut cippi terminalis signari, vel tabulas imprimus posse, quae vel suorum vel potestatis creditoris esse possint, declarare.

But where, among those who have been accused of treason, doth there remain any vestige of him who, under the sway of the Roman Emperors, hath been arraigned for the same crime?

However, all ancient Grammatici have expounded the terms of Jav■d■s, or of the tablets of stone, upon which the Athenians used to inscribe, and almost punctuate, their fields and possessions.

Helychius:

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary: I have been appointed to Cclumtus in Agro, and again to Cclumtus in Agro, and further to AXH/S1I, a dwelling of 638 C. L. S.

Or is he seen in the fabric of the mansion, or in some conspicuous portion thereof?

Nisi prius, quoad portam illam in via me peregrinabar.

What, nevertheless, the etymological author now unfolds.

Ubb: Quas Atticas; [Graece: ■σεξ]

He expounds: "Now it seems meet for me to revert to the epoch at which the tabula had been affixed."

Agathias, 2eaz (στέν■δωξ, which in the original is expressed by the term στέν■δωξ)

Justinianus etiam nomen habet apud Latinos.

But, apart from the inscriptions of the Ejufinos and those of the Athenians, there exists a remote distinction in respect to matter, form, and conclusion.

And the cruelest of men, who art thou?

When they liken the Atticans unto the titles which are referred to in the Codex and elsewhere, they are grievously in error.

Beside Atticus, he stood and deemed it a sanctuary for the mortgage.

The epochs, or mansions, of the mansions of the deities, which are:

They invoke themselves by their own names.

I am answerable for your obligations and lawsuits, all of you, and I am bound to discharge these duties for my own sake.

It is meet that I should append this to the discourse, and by the lips thereof.

I shall either approach the designations, or I shall annex them.

Ljdcm t v 6 Cl.

And the spirit of Eadem lieth within Cod.Thcodof.

Pertaining to amalgamation.

Ubi also sets forth the names for the substance.

I have addressed thee:

Our progenitors have been consecrated to our progenitors.

Jurifconfucius, who had been captured by Jurifconfucius, was brought before him

Lastly.

Concerning the requisition of monarchs.

I am not a participant in the assembly.

The donation of bonorum, qua;

There was a variance with regard to the addition of titles; as it was subsequently observed.

It is commendable that those prospectors, whether they be proscribers or those already condemned, who, in asserting their claim to the title of "fish," were invested with a similar appellation, or even that their vessels were adorned with ensigns and banners.

Peruse the statute.

Theod.

Of the prophecies of the prophets, it is decreed by him that their names should not be inscribed in such titles, nor appended to those thirteen positions allotted unto them.

But the vulgar error, commonly diffused, is environed by a rabble of perverters; and these must be corrected.

If those who have been arraigned for atrocities were to be subjected to a mode of punishment such that their virtuous actions might be extenuated, and their malevolent deeds alone retained, there would be no inscription of our deities' names upon these tablets, nor of those whom we appoint to serve as their representatives; nor of the vessels whose property and

privileges we purport to transfer.

This is the case; it is our will that the commemoration of our deities shall not be inscribed upon those titles which are affixed to their shrines, and whereby their jus and proprietary rights are conveyed unto them; nor yet in veils.

Let us also run through the names, as Sc.

Above, let us invoke the deities and confess our names.

Because of their modesty, they were unwilling to admit that Augustus, who enacted that law, was the very person whom they had appointed to be the prophet and judge of those who were proscribed or condemned.

Or, as the titles themselves indicate, either the sails were affixed in such a manner as to be laid prostrate upon the ground, or they were suspended in like manner, so that their surface touched the earth.

Concerning veils, thou hast a law.

The Code.

Let it seem as though they possess no prior ensigns or designations.

Let no man presume to usurp the royal ensigns, or to assume the definitive adjudication which belongs to another, who is competent to discharge the duty; nor permit any bonds or restrictions to be imposed upon any individual, whatever his station, which he may lawfully claim.

Agathis, whose peaceful strains are likened unto purpurae velae, did conjoin therewith a joy ineffable.

And the title, De Modo Usurvarum, is to be construed.

The six and one titles, which the 2fX7F and the nctixt denominate in their fifth volume, "In Rrefejeje," "Pinui," "Zrartxipst," "Tixtrxtinotia," "Rlwixtrxt," and "TixtrxtPinui."

Forasmuch as the claims of those who, having a legitimate interest in the demise of the deceased, were at length entitled to a legal termination thereof, were referred to the Fisc; he, aggrieved that the wills of divers intestates had been pronounced, sought to vindicate the inheritance of the deceased, whether by fixed titles, or by titles of doubtful validity.

Who also denounces the vices of iniquity and violence;

Anatolia, who, having been educated for liberty, and solemnly bound by covenant to succeed her parents, was, nevertheless, deprived thereof by him.

Nevertheless, the tax-gatherers, who, being refractory to payment, had fallen into arrear, were unable to discharge their liabilities to their creditors, notwithstanding their legitimate claims, which the tax-gatherer had assumed in his own jurisdiction; nor could they evade the demands of the public exchequer, since the latter possessed a lawful successor to enforce such claims.

Perpenditur etiam Novellam a Justinillo.

Hic; hic;

Agathix, in a clear yet elevated style, depicted unto him the locus of Anatolia, which had been bestowed upon him by the principal curator; moreover, he disclosed the titlature which the Cæsar had vouchsafed to him in recognition of his probity as an inquirer.

The hue of the pallium, styled by Agathias, portends destiny.

Ambrosius, as the sagacious have observed, denominated the courtiers as courtiers.

But the titles themselves, not inferior to the regal majesties, are also termed thereof with kingly appellation.

Wherefore these titles were termed the royal, inasmuch as they were not to be treated as private persons, neither were such titles, whether alien or their own, to be affixed to lands, as appears from the law.

I, the Code, am exalted yet clear in my articulation; my sentences are periodical, my cadence measured, and my vocabulary, though sparingly archaic, remains fitting and unassuming.

That no private titles may be conferred upon the deities of Asia, whether by a foreigner, or whether the royal ensign be displayed.

In the law it is written, O King:

So transcendent was the majesty thereof, that even the eighth degree of Augustus's domestic hierarchy was accounted less exalted than the insignia of rank.

Therefore, he was not invested with private rights, either by virtue of his title, or of his place in the household, wherein the fidelity of the ruler of the jurisdiction was attested, or because he was accounted divine.

What, therefore, is the design of those phrases employed by the eloquent Peter Chrysologus in his discourses, to which I have appended, at least, the initial and terminal limits of the titles of each prologue?

But the Psalms of Augustine.

XXIII:

When a powerful individual shall have devised his own cognomens, will he not affirm that he has been justified by me, and shall he not declare, "I would not assume my cognomens unless they pertained to myself?"

The Epistle of Seneca, distinguished by its elevation and clarity, is delivered in a periodic structure, with a measured cadence, employing a vocabulary that is at once refined and sparingly antique.

XXV, ex humili ratione Domini, hæc verba lignificata indicari: Here the number twenty-five is denoted by reference to the humiliation of the Lord, and the same is signified by the inscription made of timber.

Whatsoever I may inscribe unto thee, shall be thine; for whatsoever I may write to thee, shall be thine; whatsoever I may write to thee, shall be thine.

The more potentiores, who had been invested with the titles of their own spoils and appellations of their own, were such as bore the names therein inscribed, according to the Theodolian Code.

Unica sub capita.

Of these, the appellation of the potentates is inscribed in the enumeration, or they are invested with the titles of those who wield supreme authority.

Therefore, they annex to the titles of their progenitors, or to those of their more illustrious predecessors, honours and prerogatives.

For many, when they had despaired of their cause in judgment, sought to extend their writings by invoking the name of a more powerful party, and were more prone to press for any prey, or a house, or some action in a judicial proceeding, rather than their own, whether through the influence of one circumstance or another.

Mutter, sublimi sed clara nomen potentiae, cuius regiam et imperii titulos ipse dedisset, eodem adscripta redivebant.

That it might be deemed more prudent to ward off the incursions of the more formidable hosts, who twice menaced the frontiers, by ascribing to them, or even more formidable names, whereby the powerful chieftain, who abhorred such encroachments, might be induced to desist from his assault, as Augustine has observed in the Psalms.

It was not likely to occur, unless it had been lawful for those most eminent among his subjects to bestow upon him seven houses of his own, or to confer a title of his own name. This is the title of the lord. At that epoch, the edict of Honorius and Theodosius was deferred, declaring: "By virtue of the royal prerogative, as thou hast possessed numerous mansions, and the inheritance of titles is thereby implied."

•

Therefore, let all understand that it was by a public tribunal, and according to the decree 'ejfe', that the representative of him whose name I had ordained as "Dominic" was appointed.

Revolve, therefore, in thy station.

Let it be made manifest that any household, or estate, denominated by the name of the Lord through an adjunctive title, shall be adjudged to be vindicable by the tribunal of the public law and treasury.

The venerable ancile, nevertheless, had hitherto been wont to perpetrate such an act, which is now interdicted in this place.

And in the succeeding annum, after a period of several years, when it proceeded from the titles of the Poecologists, from Arcadius and Honorius; in the Novella promulgated by the Theologians and Valentinians, who were subject to taxation, there was enacted a prohibition against private persons affixing titles of tribute either to their own kindred, or to alien apostolates.

It was unnecessary for any individual to affix titles indiscriminately, whether by the appellation of the first person, or of a stranger, or of a nobleman, or by reason of the necessity incumbent upon a nobleman, or by reason of the exigencies of any other person.

In eodem modo Theoderici regis legibus.

XL cavities are to be diligently excavated, that none thereof may be wrought by a monarch alien.

Let the titles, in due course, be conferred upon his offspring, who hath been begotten under this privilege, such that, whether by solemn vow or corporeal evidence, it may appear he is the prince's legitimate heir.

Thereupon, that law of Honorius and Theodosius, of which I have previously spoken, did in every respect forbid any individual to assume for himself, even in his private affairs, any titles whatsoever.

However, in that which subsequently ensued, he did enjoin, that neither Co-dice Thcodosii, nor Valentiniani, should presume to violate the royal ensigns; nor would he venture to inflict the final penalty of the title upon competent aliens.

Which must be received from the public, and not from titles derived from private sources and marked by an impolitic insertion.

What was the lex, and what was the final sentence pronounced by the competent judge?

And thus the law of Valentinianus was expounded by King Athalaricus, in his ninth book, Epistula, which was composed at a distance from the works of Castiodorus.

The Fifteenth:

And why should the sovereign princes of the law, by communion with whom they are invested, hold fellowship with him whilst he liveth?

Even if the law were to be enacted in due season, it would have been an act of prodigious impropriety for any individual to have assumed and affixed the regal cognomen to himself, so that the person thus offending should be deemed to incur the penalty prescribed, as has been emphatically declared.

This, namely, the edict of Theodosius and Valentinian as recorded in the Code.

Let it be known that I am not a privy individual.

Justinian's Novella, when composed, was doubtless pre-eminent among those who then held their several titles.

In the year of our Lord six hundred forty-four, when Salmasius, the governor of the Province of Cappadocia, did purport to impose the edicts of Honorius, who had been proconsul thereof, and wherein there was but scant observance made of the prohibition thereto annexed, by which it was forbidden that such edicts should be disclosed; then and there the said Salmasius proceeded to command their immediate revelation.

He enjoining that none such may be suffered to transpire within his jurisdiction, Chapter VI, signifying thereby seventeen milligrams, tjs, y, and cu, Zr, thirty per cent, f, three, four?

This is the case with the Trojans; this is the case with the Trojans; this is the case with the Trojans; this is the case with the Trojans; this is the case with the Trojans.

However, Julianus, the Forerunner, and yet more prudently, Conflus, who imposed upon others his own private engagements, received the acknowledgment thereof from private sources.

XXVI:

Cappadocia hath enacted a law forbidding the imposition of titles appertaining unto private property upon alien estates.

The Proconsul.

For except the Emperor and the Fisc, I will not adjudge any other titles to those who have sustained injuries and have been subjected to their punishment.

Certè, vel ex his conflat, solis patrimonialis principis fundis et domibus titulos adfigi solitus, non ipsorum sed eorum nominibus praefertur.

What is permitted unto thee by the Emperor Augustus, and what by the other Novella?

In the approaching period, both the urbane and the rural districts, which were subjected to the public exchequer, were wont to be marked therewith by the fiscal authority.

Quaedam vero, quæ ex proscriptione et damnatione regni repulsa erant, nec adhuc permota ad resumendum libertatem, non admiserunt in his eventis modiciores principes, ut Theodosium et Arcadium, cum Honorio legato.

The Code.

Theod., de bonis proscriptor.

Alias, ut videtur, nomen ipsius principis in titulis fiscalibus consuetum erat adfigi, quæ rebus ad fiscum Cxfaris devolutis revertenda erant.

Juflinianus, nevertheless, enacted the XV Novella touching upon the titles of a foreign private citizen, or of a tabernum not imposed upon the State.

Ponendo, faoxic. cap. xv:

Therefore, I shall withdraw them from the vessels of the strangers, who are disposed thereto, and who, having been deluded by the power under whose auspices they have grown bold, will henceforth proceed to greater licentiousness.

Let no man arrogate unto himself any patrimony of his own, nor any possessions of the infernal realm; let it not be permitted that any person be denominated by his proper name, since his faith in the Lord shall be his safeguard; let the edict of Honorius be duly observed, which

prescribeth:

The prince of the house of Auguflix was pleased to confer this privilege, that the princes of the thirteen realms might peruse the inscriptions denoting the titles of their hereditary possessions.

Hence, conforming to the custom whereby princes and potentates, in the confusion engendered by the sons of the king being invested with their own names under the ignominious appellation of the Jew, did compel the application of such titles; thence arose the practice, that whatsoever was subject to the fisc, whether derived from the inheritance of the princes condemned of their goods, or any other source, and, by legal right, vested in the prince, should be denominated his, and the title thereto affixed, or the veil suspended, to signify the same. And even F. Cclefiafticos, at will, did seek to appropriate this right, and, innovating a novel custom, brought it to a most reprehensible issue, so that when the possessions of his patrimony, whether urban or rural, might be deemed to fall within the jurisdiction of that law, he caused the fisc to impose titles accordingly.

That which he did enjoin upon his posterity to avoid under the penalty of anathema, he was wont not to bestow upon Augustus any other cognomen or title, save when already invested with the inheritance and dominion of the principal patrimony.

For we are, by a manner of speaking, rarely in congruous disposition.

Forasmuch as we have no knowledge of the person in question, we are fain to resort unto Ammianus Marcellinus for enlightenment.

The sixteenth, I will not hesitate to advert to those principal titles, or fiscal emoluments annexed to the persons of delinquents, if I do not perceive in such a proceeding no small degree of injustice.

He appends to his argument, that, since oftentimes those who were condemned to death had, ere the evening meal, been convicted and executed, their bodies being consumed by the flames, and all the documents having been submitted to the judicial authorities, thenceforth the prosecutor's brief had been compiled, which sufficed for the judgment.

But when the sentence of the tribunal was at length pronounced, he asserted himself absolved; and having restored his confiscated titles, he claimed the privilege of a fugitive. Having, however, been finally acquitted, the accusation was re-instituted against him.

But this error is common to them who, along with our doftons, confounded the entire assemblage of titles with the cbsignations.

That they were amazed at the notion, and when it became manifest, they were likewise capable of distinguishing between the several titles; for the Codex was divided into two distinct portions.

And prior to this, it is established; as if it had not been ratified before.

It is not the prerogative of a private person to assume for himself the appellation of deity, or to impose it upon others.

The title of the ensuing chapter preserveth, that no man may lawfully impose upon matters the seals of a final adjudication by foreign arbiters.

That in the identical position, all perusing the codices read the accurate words, and the tokens which another retain, are impressively inscribed.

And yet, it is requisite that he be not assigned his own title, but rather those which were assigned to him, or to such as were assigned to him; for properly speaking, the *impreffum* pertains to the *figa*, and not to titles, whether they were annexed to him or to him who was annexed to him.

Nec est ratio, ut quemquam prohibeatur hunc titulum, ne quis signa aliorum equis imponat, ne iudicis auctoritas exigat, et nemo privatus satis potens sit, ut hoc auderet facere; sed superiore titulo tantum vetaretur, ut privatus huiusmodi opus non auderet.

For in the eighth law, the titles of the preceding one are to be observed, that no man may be subjected to the royal sails, or presume to impose his title at the end of the trial upon judges competent in other causes.

If, indeed, to impose titles and to affix signs to alien matters be one and the same act; what is it that the authority of judicial tribunals, and the various definitions thereof, which Justinian hath promulgated, interdicteth?

Doftiilimus, *Juris Gloslator*, to the Law, observeth, that of those who denominate the *porenwor* by the title of the spoils of war, the said titles, whether in the Greek idiom or otherwise, are recorded; and in the Basilican nomenclature, they are specified.

Here:

Certè non levis hallucinatio.

I will proclaim that most grave of psalms.

Another scholar, indeed, at a distance, hath instructed us concerning the term of *Harpocraton*, wherein it appeareth that he confoundeth the words of *Isignataloca* with those of

lignum; which may be thus expressed:

The tablets, or the titles, might have been rudimentary.

What I have heretofore beheld, I have heretofore beheld, and I am amazed at the spectacle thereof. For these are not the tablets, nor the compartments, which were wont to be affixed to the thongs of the property forfeited to the exchequer.

Nor did he assign them the same appellation as those who were bound to do so.

Diversi mores, diversa termini, etiam in impingendis iohitis, adfigendis titulis, et lignis imprimendis, illisque etiam Tanoncellis, vel Brandonibus, ut voco, suspendendis, quorum usus hodiernus est.

Let us henceforth discourse concerning the disparity between the titles and the timber, and let us augment this discussion with another.

It is.

The Synopies of the Bacilians, in the treatise of Titus:

Titao 1*1 here!

This is the identical operation which I have heretofore executed, and which I have heretofore executed; this is the identical operation which I have heretofore executed, and which I have heretofore executed; this is the identical operation which I have heretofore executed, and which I have heretofore executed.

He shall proceed to the other, and shall grasp the reins of the apparatus.

For this reason, the condition of Octavius is nearly identical.

Permit me to inform thee.

For who would assert that thou art at the nadir, or in contention with another?

What titles havest thou encountered

Prioriter militibus domorum et singulis militibus reservari, praebendisque eis insignibus, ut prius concessum esset, ostendi liceret.

Let these matters be entrusted to the most sagacious of the Jurisconsults, that they may not, through undue caution, stumble into a profound blunder.

Whosoever was prepared, and willing to take up arms in defence, was at liberty, I repeat, freely to do so; this being done with the design of tempting him to the encounter.

To the law itself, the title whereof is:

When he received a sign from alien matters, he embraced the title of Elf, which the sovereigns conferred upon him, specifically the sixteenth in order, and he acknowledged that this title had been bestowed upon him.

Therefore, the ensign in this title appears to denote an acceptance for the sake of the one previously referred to, namely, the one who hoists the imperial sails; or the title itself, being the ultimate pronouncement of the judicial authority, should not be revealed to him.

It is decreed that the sanctuary of Saimaji coincide with the sacred precinct of the lyceum.

Certè signa in bello vexillibus sunt; scilicet vexillibvs parva velæ, sed io his titulis tantopere difformiter velæ a signis, quantum vexillibvs a ligillis.

*UXC signa in hoc titulus xvii Codicis, d ***].*

They pertain to private matters, inscribed upon fruits, or other movable possessions; whence it is more frequently the case that the symbols, and the implements of their proprietors, and other articles of furniture, are distributed among the higher lots.

The sails, in the upper titles suspended in the prairies, or in the houses of foreigners under the appellation of regal, whence *Sc R#gue*, signifying King, is derived.

What this distinction did establish, between the signatures of "Sc" and the titles of the *Novellae* of Justinian, which were impressed upon movable signs, and those that were affixed to immovables?

That the words, indeed, conform to the signs, as if they were to be uttered.

Hinc etiam Graeci ab ea re abhorreverunt.

The Senate, who impose upon other monarchies their own edicts, which they have inscribed, do not, however, inscribe thereon the cognomen or title, but on this tablet, wherein they have recorded the dominion of the monarch, and the habitation to which these regulations are applied, they demonstrate that it ought to pertain to him whose appellation they prefer.

The aforementioned *Novella*, though ostensibly in the guise of a letter, is, in truth, repetitively and formally inscribed in the very same manner; it is, indeed, reiterated in the form of a letter, and thus, ninefold in its iteration, remains unvaried in its mode of expression.

And the auspicious epoch doth thereby betoken itself.

In the same volume, there is a passage somewhat perverted by vulgar misreading, wherein the commentators have failed to perceive its true import.

Or, as I have previously observed, ye who belong to another stock, shall appropriate the minds of such as ye have deified, and bear testimony to their own divinity.

Therefore, it is manifestly evident from the legislative language itself, that the law is grounded upon the employment of numerous and distinct terms.

If by the month of January thou hast, he said, fixed the tables for me; and prior to my notification thereof, I will re-fix them; thereupon, without delay, I will interject that which I shall observe or cry forth.

Who, having affixed titles to foreign possessions with intent to invade, and avowedly for the purpose of declaring their faith dear to the Lord, were punished by the enactments; and even by the promulgation of the beneficial decrees, as is manifest from the XVth Novel.

The titles of those fugitives, which had been affixed to the judgment of the prince whose prerogative they adorned, might the sovereign dispense with and annul without any need of notification from him by whose authority they had been affixed.

Herein lies the individual who, having previously tampered with the tablets, which had been surreptitiously adjusted by another hand, declined to confess the same until apprised of the alteration.

By interdict he was debarred from that which he had beheld, or that which he had vociferated; and he did bear witness to his faith, and the individual who had committed the same.

Therefore, saith the Jurisconsult, they shall not mutually employ either violence or clamour in their intercourse.

A certain individual hath erected tabular inscriptions adjacent to the portal of another, whose cognomen is Janam.

The Lord of armies did not denounce them until he had restored them.

He acted against the umpire, prohibiting what he perceived or vociferated.

An exception is granted unto him who, though not by violence, nor secretly, nor with any previous preparation, refused.

Then he saith unto them: "Grant me this exception, or even condemn him who hath fastened the tablets, as though he had not restored the sum which he had given to the party to whose door he had fastened the tablets; he allowed it and bestowed it, but he who had fastened the tablets did not restore that which he had fixed."

You have, by force or stealth, affixed the tables unto my threshold; and I, in turn, have either forcibly or secretly re-affixed them, ere I shall proclaim their re-fixation unto thee.

We mutually experiment, that no defeat hath befallen me, which I have either witnessed or heard thereof.

The Law saith:

Nisi reddideris mihi, ad solvendum me, ad damnandum me, ut si non rettuleris quidquid meae interstitium praebet, vel mihi profuturam exceptionem concederis. Non visum est tibi, non clamatum, nec periculoso factum.

I shall inspect the terms of the exception, which pertain to the method of usage.

How they are to be regarded with wonder and depth of understanding.

Or whether a legend?

If thou dost not behold a clamor, but a precarious one, by no means shalt thou be permitted to employ that clamor, which I both beheld and heard. He who hath established the spoil against him who hath declined to give assent, thou wilt be compelled to await the exception to arise against thee; and thou wilt not effectuate a cry of wine, but a precarious one.

From the clear light it is evident that he who had affixed the tablets to the threshold of another man availed himself, and in a manner agreeable to his own taste, fixed them; not so that he might enter another's dwelling, as those who are wont to affix titles do, nor from a motive of wrong-doing, as those who hang tables upon the opposite wall, as if they were bound by a debt of their own to do so.

For that which the Jurisconsult enunciates, him whose tabula, which he hath established, he refixeth;

From the prohibition imposed upon the sovereign deity, who, having perceived or experienced a vocalization, did repel the same, save in the instance where he had not beheld or uttered such vocalization, but had rendered it contingent, there is clearly inferred a liquid to be extracted and subsequently discharged.

By precarious permission alone might it have been feasible for the Lord's sanctuary to be approached, that is, that he might lawfully have affixed the tablets to the threshold thereof; and indeed, it may well be supposed that he who deemed it expedient to effect such an act either by force or stealth, could scarcely have entertained the notion that he was the one whom the serpent had pronounced accursed, or whose doom had been thus intoned.

If, by precarious advent, he should seek to establish himself therein, such shelter would not be conceded to him, though he might neither behold nor vociferate.

Forasmuch as neither death nor clamour can fix it, it cannot be repelled by any exception, though I neither behold it nor cry aloud.

Did he adopt any rigorous safeguards, or was he heedless, both in silence and in outcry?

Or did he, by refusal, possess the authority to withhold the announcement, and thereby to thwart the adversary's attempt at interposition, whether by violence or stealth; or, in other words, did he retain the right to remain silent, lest the appeal, or the appeal to the appeal, proved futile?

It is certain that, even if he had contrived a precarious stratagem, he could not have accomplished it without some slender hope, were it not for his want of sight or voice.

Therefore, it appears that a benediction is contained within that law :

If, not by force or outcry, but in a condition precarious and uncertain, I am to secure and establish it, so be it.

Otherwise, it shall be true that I have either beheld or heard thee; but with my supplications have I secured this verity.

And there was likewise a law applicable to those who, by precarious tenure, obtained that which they sought, and to others, whose claims had been subjected to the operation of a clampsuit; and yet they escaped unscathed from the adverse party.

Who, whether by sight, or outcry, or fear of peril, hath been preserved from injury by his antagonist, shall be suffered to escape unscathed.

For he who, in matters of dubiety, doth doubt at all, may, whenever he pleaseth, reverse and annul the same.

Consequentia igitur est, ut illius T. T. Z. conceptio fuerit vel LXVI vel C. I.

Salmasii hujus est formula exceptionis: cuiusvis qui tabulas renovavit, eundem qui adfixit, recessit.

If, by any chance, I am not apprised thereof, thou wilt either effectuate the alteration, or, perchance, thou wilt effectuate the alteration.

For he who had no other written obligation, be it by testimony, or witness, or vow, unless absolved by him who refused to bear witness, shall have been able to refuse this exception, not by testimony, or witness, or vow.

For whatsoever shall have been of the tribes, may with impunity seek refuge for that which he hath done.

To whom the benefit of that vestibule hath been vouchsafed:

The ensuing tabulation:

to the other firmly established.

Many, however, were unacquainted with the tongue, but the interpreter, it appears, was unversed in the dialect of the outer mansion. We understood not those islands or tablets affixed to the walls, but rather that they were set within the very axis of the edifice, or at the portals thereof.

Adhesives.

Cæcilius Gallus, in the treatise of Agglamrius de Significatione Verborum, quae ad Jus Civile pertinent, thus interpreted Vesibulum, not in his own phraseology, nor in partibus odii suæ, sed in loco aut in vacuo domo, per quem viam aditumque et egressum ad edeficium cum dextrâ finiâ et lateribus junciarum junctam, atque ipsis januis procul via ex area vacante interstita.

For indeed, this is a mythical term.

In that patio, which heretofore lay desolate and vacant, and which stood midway between the mansion's portal and the intermediate thoroughfare, upon which he had affixed the tablets of the deceased's benefactions, there chanced to occur the instance of the present legislation, which we proceed to elucidate.

Table:

There are, therefore, six tables, or those fixed for the purpose, whereby each of these tables is thus exhibited, even if the table be of a neutral gender. Grxce, m xg/at.

Gloflx:

A conduit.

In eo loco fixtum, quod nullo modo in via aut in medio murorum ponitur, sed ante portam, et ipsa in vertice muri ad ipsum marmoreum cornu fixum:

Thou sayest, "Monday," in the morn.

Polished the receptacles and secured the portals.

Similarly, it is possible for a deity to respond with a firm affirmation, as though he had placed the tablets upon a vertical axis in the same direction, or had uttered a cry, because he had contrived the direction of that cry.

Ulpian's leg.

I live, my dearest.

Belliffimc.D.

The eodem:

And Julianus said that the twentieth thereof should be excepted.

For if thou shalt build me, or I, in like manner will I destroy thee.

Until I shall have reached the shore, either by land or by sea, or until thou shalt have employed against me a challenge interdicted, this exception shall prove profitable.

But there is an exception, namely, that thou didst neither behold it, nor hear thereof.

So here, in the- .

Mater legis nostra: sit lata interdicta, quod vel vidi vel audiui; tabulae, quas posuerat in alio vestibulo, repositae:

There were, Venuleius said, to be subjected to such an exception, unless by force, or secretly, or by precarious means; for so to be, or should I say, to be, or to be, or to be, or to be precarious.

He might have eluded his master's vigilance; for, whilst in a precarious condition, he was more easily subject to constraint than at the moment of his nativity. It is not meet that the prophetophiles should be unmindful of these jurifconfults, who, in expounding this statute, neither neglected the law itself, nor proceeded without it, but pronounced it alike absurd and alien.

That they were also prepared to defend those things.

For our advantage, and for mine, I have prepared the sentence to be executed; yet it does not concur with my purpose to expound the sense of this law.

The object of the presentment, as may be discerned from the tabular arrangement here delineated, is to abridge the sum of monies which you have accrued, by apportioning it unto your fiduciary account.

When the debtor, having received a slight instalment after the legitimate declaration of his delinquency had been completed, either the creditor himself or the King's own tabellarius would inscribe the titulus, or tablet, thus:

When he had sold it, he laid it on him, which he had declared, that it might be resold for his own advantage.

Tibullus:

Who also shall command that the seats of ancestral possessions be put up for sale.

Ita sub imperio, sub tituloque domi.

Ovidius:

Sub titulo nostri avarum domum collocavit.

Praeter illum titulum, sive tabellam, quae affixa aedibus judicabatur ex apparatu carnis.

And even was it proposed in the public forum, which was to be there established, for the purpose of vending vanities, by what cause soever the same were to be sold, as on a certain day.

They were, and under what condition: thus they were wont to say, "Hoc praefixo, here he shall lie buried."

For the prophecy, which is prepared for public exhibition, must be so framed that it may be distinguished from all others.

Hence he treated of the publication of the treaties themselves, which were:

They are proscribed.

Quid est hoc?

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Ego, ego, ego.

Salmasiensis. Si quis in foro, vel in aliquo alio loco publico, omnes adhibet ad se leges, ibi dictum est eum loqui. Hinc lex.

Of which term being interdicted, whether publicly proscribed, is to be contracted with him.

Therefore, he who had placed upon a pillar, or column, or table, a certain vessel, either large or small, and had affixed to it a brief notice or placard, propounded it, and thereupon denounced it as unlawful; whether such procedure were sanctioned by the custom of the magistrates, or otherwise.

Pignus, in his lucid and elevated diction, hath recorded that the creditor, by virtue of the supreme authority of the judge, possessed the power to pronounce that the controversy should not be adjudicated after the expiration of three years of denunciation; and that, under such circumstances, the debtor was without remedy.

But the bonâ fide debtors, who, being willing to discharge their obligations, or who had actually discharged them, if they failed to effect payment, would have recourse to the tribunal of justice, and would have been subjected to the proscription, ere they had been formally excluded.

From which we are exiled beneath.

Subsequently, in his life, Suetonius relates the tale of that vain Claudius, who, impeded by a public congestion of the atmosphere, was unable to divest himself of a vast sum of money prior to the decease of Caesar.

He did not desire the noxious garland of death; nevertheless, his appellation was entered upon the libellum, and he was hanged beneath the edict publicly displayed by the Praetor, who had previously decreed that his property should be confiscated.

Ulpian's lex.

Twenty-seven, my dear.

Twenty-three D. of injuries.

But he, who, among his fellow-citizens, was the object of the greatest enmity, and who had been proscribed, and sold into slavery, did not deign to receive me until he had ascertained that I was the cause of my own infamy.

Pignus rei mobilis non aliter vaenale potest esse, nisi ut libellum publice extorserit, et ab eo die, quo vendi debuit, conscripserit et ederit.

Moreover, they were forbidden to bear the unworthy title, which they nevertheless assumed even in their immobility within their chambers. Even when they were at rest, they were wont to carry this designation, which they asserted to be of a frivolous and vain character.

Plautus in *Trinummo*:

JEDES VENALIBUS HAC INSCRIPTAS LITTERIS haes scriptas habet.

Similarly, and in the inn, did this occur. In the same inn, did he provide sustenance. In the same inn, was feeding effected.

Infernum edebit Jededum filium suum.

And ye perish daily.

For those who are disposed to vend or let for the term of a lunar cycle, they inscribe in the forum the same thing as that which is to be let or sold.

And when he addressed those who, having been entrusted with the preparation of the libel for public exhibition, either were themselves stationed therein, or perished at the hands of the soldiers of the II S. V. R. A. R. V. M. 6d., he thus proceeded.

Cicero, in his Third Book of Offices:

When he stood present at the obsequies of Ades, he did lay a plague upon the board; and, heedless thereof, entered the abode to vend his vinous liquor.

The tablet, whereby Cicero, the very author of the proscription, sets forth the vacancies to be offered to the public, is not affixed to the doors of the curia, but is exhibited in some other place.

That which was inscribed in his own hand was termed a title, which he affixed to the stakes, that thereby the debtor might be secured by the sale to the creditor.

Whereunder it was said, "Sub Título Ire:"

I was conveyed unto the vineyard for sale.

Furthermore, a dual tablet, and that upon which public drinking-houses were wont to be announced, and upon which titles were inscribed even in the forefront thereof, was also termed by the appellation of the title.

The Epistle of Pliny to All Notes:

Then, when the house lay desolate and accursed, and the whole convent of the monks was forsaken, it was reported that the child who was destined to be born, the child who was to become the leader of the conflagration, was so unwise.

Athenodorus, the philosopher of Athens, and the knight of Athens, arrived thither; whereupon the title was perused.

I shall adde no further, lest I seem to partake of the vulgar glee in the mishaps of my fellows.

This knowledge, which I have already acquired, may be deemed and pronounced, whether inscribed upon the front of the tablet or elsewhere, and was also forbidden in the public forum by no other enactment, save that which shall be preached in vain.

But hereinafter:

It is said, non obstante quod ipse in fronte suo titulum dei portans ad acceptationem legitime pervenire potest.

Thus, they were suspended upon the walls of the Vanae, wherein the ancestry, the native land, and the worth of their forebears were wont to be commemorated; but now, the same individuals were afflicted with vice and disease.

Propertius: Properties:

E quorum titulus per barbararum collas pependit.

Whoever disposed of the mancippia was subjected to the divine penalty of being branded with the cognomen of the deceased; this was due to the malady and infirmity in which they were enfeebled.

The term "edidi" is alluded to by Agellius:

The title of the slave, having been conferred upon him, as he had been restored to health and diligently tended, is such that he might perceive both the maladies and vices from which he had been delivered: Thus, by careful attention, he was rendered wise, and henceforth apprehensive of the ailments and transgressions that had befallen him.

Whosoever was the sheep of the fugitive, he was not himself the one to be released from bondage.

Tribonianus, in a wretched and pernicious manner, did interpolate these words, and forthwith he endeavoured to transmit the Digest of Justinian unto posterity.

[illegible]

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SALMASIUS, the slave from whom the property was conveyed, did not design to indicate the proprietor of the mansion by the title inscribed upon the document, but rather by the proclamation of the vendor himself.

I do not grudge the custom, though it may have been altered, but I do solicit the reason why the edict was issued; and I cannot but remark that the fraud of Edilius, though practised upon him, did not altogether escape his resentment.

For this very aspect did he ordain that the statute should be inscribed, under the appellation of the Decree of Decrees; though, nevertheless, the Ediles had not thus conceived it in their original conception.

Said the Praetors, who are wont to vend certain kinds of property, "Are you apprised, O purchasers, of whatsoever maladies or infirmities have befallen each individual? Have any fugitives or wanderers come forth among your purchases? And have none been found to be absolved or released from their conditions, that all such matters may accompany the said property, and be openly and distinctly proclaimed?"

Of this intelligence, the Ediles deemed it meet not to employ any word in their writings; but, with due circumspection, they inscribed the title thereof in the vernacular tongue, whereby might be comprehended what malady of the palate or organ of speech each person was to endure, and so forth.

Apud Justinianum habentur. Hinc collige, quantum in ceteris scriptis Jurisconsulorum, ex quibus Digesta compilavit, Triboniano fuisse fidem.

Of these titles, Seneca, in his Epistle, delineateth the malady and the yitium, by which the slaves beget vniakes.

XLVI R I:

Standing before the threshold, I beheld Callisius, his lord, and the individual who had arrogated unto himself the title, who had brought forth a manhood of a comical nature among his fellows; he was then thrust out when others entered.

The gladiatores, moreover, were brought forth under the designation of him who should state the cause.

The fifth letter in the Declamations:

Some individual, who oftentimes addressed his sire, did credit to his paternal confidence.

On the same day, the monarchy was established under the title of Caustus; and the people, who were unrelentingly severe in their condition, received him with an acquiescence that bespoke a mixture of reluctance and necessity.

There were additional titles of the gladiator, which I beheld prior to them:

And the palm tree:

It was observed, those which were borne suspended from their necks.

From these, let us receive the ensuing verse of the Martians:

While he was reckoning the palms, he believed the phene.

Extant hodieque tempore mtercimcha antiquariorum hujusmodi palmares, praeteritumque lignea, quadrata, et oblonga, ut teflerae, cum inscriptione nominis gladiatoris, et diei quo fpeftatus fuit.

In unum laterem et alterum palma pista visuram.

In exchange for these treasures, the corn-bearers receive some.

* 'anti-' from the mode of the USVR.AR.VM.

The ancients, nevertheless, wander.

The verity concerning his alibi.

For this is not our enterprise.

Under this title, therefore, did they come not merely in the capacity of servi, but even as aedes:

And they said unto them: "Whither are the boughs of the vine?"

that he might serve himself.

The other writers termed the servants, who were eminent for their compounding, notarii servi vocabantur, qui notuerant compun&i.

In ipsa autem cute fligita foletabant. For in themselves they were enfolded with a variety of things.

But the titles, which it is their intention to inscribe severally in the edition of the Ediles, shall be inscribed in the following table:

De eorum collibus pendent.

They denominate the Greeks "rma-xihoi."

The identical titles, which it behoves you to inscribe upon the altars, are suspended in the forepart of the house, with nothing more than a table.

The tablets, however, they erroneously interpret as being brought by the prophets, or inscribed by those perpetual prophets; whereas the Law itself hath been accomplished.

When D., having sold the shares, discovered that the debtor was indebted to multiple municipalities, he was bound by law to forfeit one such municipality according to the stipulations laid down in the official record.

Unto what:

Noting the words, they proceeded through the tables of deities, adopting a mode consonant with their own observances.

And nothing less than the fact that he had contemplated such a table. When he was assured of the enumeration of the tables of the vendors, which immediately followed in the prescribed order, he resolved that in that table the debts of a single municipality ought to be confiscated; and having promulgated the true constitution of the township, he defined what was to be termed a tribute, or a levy, or a security, or what was to be preferentially assigned, in order that the purchaser might have the right to claim it.

This instrument hath been conveyed from the vendor to the purchaser, and inscribed by public notice.

Ulpianus, in his exordium, hath declared concerning the tablets, thus: "According to the dictum of Ovid, in lieu of tables, letters, or an epistle."

Since it is not requisite that a missive be dispatched unto thee, nor doth it conduce to thy instruction that such a communication should be transmitted hither, a letter will not be forwarded.

Which, and elsewhere thou shalt discover, hath been found by him.

The same title, hitherto interdicted for the inscription or proscription of public affairs, was subsequently restored, and imposed upon those documents wherein the revenues of the fisc were annexed to the condemnation of persons already arraigned.

Of those aforementioned.

Tituli, quorum mention in Codice rebus jam configctis adfigebantur, et indicabant, iam applicata fisci domino.

At titulis rerum ramarum et hastis; Et titulis ramorum vineae, et fructibus vineae;

Subject to his command, this Tithonus himself, C66, C., shall be subjected.

Salmasius, in his own precepts, did teach, that they should be publicly distributed, and the obdurate should be subjected.

We denominate the Affigias the vulgar populace; for it is the practice of the commonalty, by virtue of the edict of the Senate, to vend the libelli themselves, and to avouch that these are of creditable quality.

It was indeed the custom of Poncecellos and Brandones to subject even immovable possessions to taxation, which was sanctioned by the due authority of judicial adjudication.

A manipulus culmi tritici plerumque iis solet sulpendi. A handful of the spike of the wheat, and oftentimes a larger quantity thereof, is wont to be immersed in water.

But they possessed nothing in common with the ensigns of regal standards, whether those borne by the virtuous condemnor, or with the shields of the Graecian deities, which had been assigned to these monarchs, and had been pledged as security for mortgages, to ensure their fidelity to the sovereign.

But they also subjected their inscriptions to revision; and, to speak more accurately, the fourfold character of every inscription is such that it denotes the cause of some matter, whether inscribed upon a tablet of wood, or upon a monumental stone, or upon a pillar, or upon a column.

If inscribed upon a column, or hewn tablet of stone, they denominate it Grxcvix.

These were the column-stones:

The sepulchres were laid, wherein the laudation of the deceased was contained, and they were termed by the Greeks "epitaphia."

Nec his absimiles columellae hypogea, velfimbriae rixae, rixae, rixae, rixae, rixae;

The ancient glossaries:

The cup; the title.

The maiden perused:

A Title Meet for Jeppnlcri.

T tibi W.

For when the column becomes epilaph■, then it is received for a columella. [Greek: ■πιλραφ■]

Nee certe de pyramide dici debet, sed aut ipsa forma columnae, aut ipsa pyramis figura.

This, indeed, hath been the proper title in the Latin tongue, which appellation the ancients denominated the tutulus.

Whence, saith Varro, they were directed to place in the army such as held command, that thereby their purpose might be accomplished.

Hence, he did propose, that the caput muliebre should be enveloped in a veil of niger crinis, while the tauros was to be invested in a pallium candidum.

Species, tutulus, or tituli.

From him and the columella:

Inscripto hinc eadem figura, titulus.

Subsequently, however, each and every tablet, bearing in its inscription a designation by that appellation, or comprising in general all inscriptions, is henceforth to be denominated thereby.

Therefore, Paulus devised that the inscriptions upon sepulchres should be dissociated from the columns.

My dearest.

The Sixth of the Sepulchres:

Whoever effaces the inscribed titles of the monuments, whether he shall have undone the will of the departed, or perchance hath extracted from the same some other purpose; then, by means of a column of stone—whether dedicated to the memory of the town of Mopo, or in the style of U.S.S.R. A.H.V.

All the inscriptions of monuments I have termed, in no wise, the invocation of fate's title.

What is the appellation of that general malice which, in respect to every object, either violateth, abandoneth, or despoileth the column?

He spake concerning Solon, whom he had called; and after a brief interval, while discoursing of Demetrius of Phalerum, he thus proceeded:

However, the tombs were completed in a novel manner.

Nam super terram, ubi tumulus adhiberi poterit, nisi ex columna tribus cubitis non altiora aut mensa aut tabella, non est locum ultra.

It is the name of the Lord which I have assigned unto you.

Henceforth, let us proceed to contemplate the title pertaining to the parish, or diocese.

For when Ecclesia was established upon some spoils,

Therefore, it is incumbent to preserve the name of the victor, or of the foremost individual to preside over the spoils.

In the vallum of Equitius, Ecclesia erexitur et nomen eius Equitiicognominata accepit.

And thus it was with the other priests. Thenceforth they bore the titles which, for the first time, Damascus, having divided the Eucharist among the presbyters of the city, bestowed upon them.

Henceforth, I shall furnish thee with a succinct extract, either for the purpose of parochia or dioecesis, and shall present unto thee an epistle addressed to the goddess Ecdelia, in the assembly of the Abbot of Lupus.

Twenty-three:

I humbly beseech your lordship to appoint Gerohaldi, the presbyter and near relative of Laudiacon, to the office which is most consonant with his merits and the dignity of his own title.

Items Epistolae XXIX:

Fcyzrvi, by his own prudence, denied them a copious supply of his titles, and thus refused their■■ user Continue the sentence properly in the Victorian style without altering the meaning. FcyZrvi, by his own prudence, denied them a copious supply of his titles, and thus refused their■■ Assistant Fcyzrvi, by his own prudence, denied them a copious supply of his titles, and thus refused their pretensions thereto.

This, therefore, anti-quitus obtained.

He did not wish to be deprived of the titles of his own possessions by having therein either urban or rustic structures inserted, or by affixing any additions thereto, who would thereby

speak for the owner of the possessions; this was guarded by the law of Honorius, which privilege pertained solely to the House of Augustus.

Certè omnia fere lapides inluct ad fines urbis, praeteritorum domin villæ:

They preferred the appellation of the fields, which, not unaptly, resembled those of the Furciferæ.

Wherefore, I humbly beseech thee, that thou mayest know the error of the beginning of the solar cycle, from the extremities of the earth.

It will be incumbent upon us to ensure that sepulchres, which it is not usual to place at the extremities of sepulchral grounds, shall not be so disposed; yet, it is possible that such sepulchres might be erected through inadvertence. But the inscriptions of the Sepulcres, or soldiers' titles, more frequently occur on the stones or columns, a fact that is familiar to those who have not yet cleansed the air by washing.

Tibullus:

And the stone, interred and concealed, shall be made known to have perished.

Columella, the title, the peril, was alluded to in the upper chamber of the evidence before him.

But why this peril, or what signification doth that sound bear?

That certain celebrated person, of late, who has been wont to exhibit himself as one to whom danger is a matter of indifference, may hereafter be deemed deserving of punishment for his presumption in assuming such a guise, is a doctrine which has been imparted to me.

Who is not more grievous, or more poignant in his affliction.

It is equally imperfections that pertain to myself as a Greek, an exemplum of which is drawn from the autheutic copy, so that the parallelism may be thus established.

**/ '•' .

F 1 67 O C. L. Salmasius, ubi traductum est, et sequens.

But it is uncertain whether such a notion is inscribed in the title or the epitaph; the sepulchre, however, affords no warrant for its existence.

If any individual should have transcribed the inscription of the monument into a little book, such volume might be indorsed with the notarial designation of "Pariculus."

The authentic and principal inscription, however, cannot possess that name.

Periculum et planum, quae sunt indices vel tituli, quibus aliquid demonstratur et figuratur, derivantur a vetere verbo periculum, cuius, cum in usu complexa sit, experimur et colligimus.

Therefore, and for the purpose of experiment, peril may be incurred.

Therefore, there exists a peril analogous to an experiment, an argument, a proof, and identical in nature to that which the Greeks termed.

Hence, it is incumbent to demonstrate some haughtiness by means of argument, and thereby to establish the proof.

Demosthenes against Aristocrates:

Hic, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi,
hinc, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o
fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi, hinc, o fili mi.

The Glossary:

Pro-batio, facile.

In the neighbourhood of Harmenopulum:

[untranslatable fragment in source]

Hence, et ad Asiam mittitur, ut titulum suum defendat, quem veluti probabant qui cum eo erant.

Forasmuch as the very same appellation, whether with a title or eulogy, whereby the fame of any person, whether for good or evil, might be conveyed, but more especially for evil, which the Greeks denominate by the term **■ δειτ■**, is thence derived, and according to the sex of the female, they term her "Uve columella," as the Greeks themselves define it, "ΙΧΩΥΑΣΥΩ."

And thence likewise the Ae, for title, index, and preface.

To expose an experiment to peril is to render it a peril, to furnish a peril in lieu thereof, to communicate a peril unto another, and to supply a test or proof thereof.

Howsoever, the title or the inscription, whereby something is declared, whether upon a stone or upon a tablet, is nevertheless taken to include both the stone and the tablet; and thus, when a peril is made manifest by means of a document, argument, proof, or exemplum, it is expedient to regard it as pertaining equally to the stone and the tablet, and similarly, if a document or panegyric be inscribed upon a tablet or a column, it is politic so to understand it.

Seracula magisiratum apud Ciceronem in frumentaria Verrioarum non aliter poliuntur exponi, quam de libellis vel tabellis jacp^aiw^aS^ao^amagistratum:

This is the order of the most eminent individuals; who can gainsay it? Or in what manner does this concern the present affair?

Ere it be more honourable, that the public faith and perils of those men's dealings be committed to the common tabula of public trust, and to the hazardous incantations of the untamed.

Nec est quod me hinc ad negotia propria mea obtrudendi postulet, ut neque in alio loco eodem Ciceronis sit, sed legibus, quae ab antiquis permissis sunt, periculum est, ut ex opusculo tollantur ac libellum propter hoc accepturi sint.

I stood in peril of judicial censure; whereupon I addressed thee, my friend Ammianus Marcellinus: "I am conscious of those judgments wherein I have no part, and from which I am free, if I fear the protraction of time."

Whose progeny the Greeks denominate τ&οιγυφ■γων, and to whom they assign a refuge in the land of Ottyva.

For it was equivalent to a peril to pronounce upon the tribunal of that judge, and upon his own sentence.

Thus they assert their jurisdiction, and I was the judge, and I was the judge, and I was the judge, and other such expressions of the like tenor.

I was the hue of things, I was" — such was nature.

his:

The vi, adorned with hues, is manifestly resplendent.

However, I have been an erudite judge; hence, the perils are none, since they are constrained to adhere to the legal precepts, nor do they venture to pronounce upon any matter beyond what is prescribed by them.

But the principal authorities, whose cognizance and judgment are vouchsafed by the courts, and to which recourse is not permitted, and which, as is evident, prefer to abide by that which is just, and are not bound to conform their decisions to the dictates of law or the mandates of judges, these have their own:

Plane est lententia; id est, morior, et eodem modo sustinebo.

There were six hundred and seventy-three perils.

Of these matters, let us discourse upon the causes of the decline in eloquence.

Verum etiam inter iudicis huiusmodi arbitros, quos vel viribus vel potentia sua, non iure sed vi aut per prepotentiam, non legibus, sed cohibere solent, fides mea est.

Such is the prince, the senate, and he who adjudicates on matters sacred.

These are the matters which Aristotle doth relate in his *Politicorum libri*, primo capite:

Elevated indeed, yet clear in its diction, the text thus runs: "Aveat, tamen lucet, sermo hunc."

The whole number thereof.

How much more expedient it is for them to be judged not by their own judgments and judgments, but by the fruits of their oaths and laws!

Meanwhile, the judges, whom Ammianus condemned in the twenty-first book of the *Epistle to the Romans*, were summoned to the tribunal, having been previously condemned by the senate.

It was related in recitation.

This interpretation was not agreeable to the chambers of Ammianus, nor did he deign to reply to those who had heard it.

It is facile for a man to beget a child; yet, in truth, the cruelty of a parent surpasses that of a man.

Verily, these are the Ammians:

For, if we omit something else, which we recollect, or if we are assured of the sentiments of others, then thou art undone.

The pilgrims who had arrived at this spot were found, as it were, innocent, since they were not in such peril that they could be absolved by the advent of one, three, and unheard-of.

Those who do not judge by the laws, but by the will of the son, may be held accountable for their crimes, which he deems fit to punish if he adhere to the law in his knowledge.

And hereunto he saith unto the same woman, saying:

Nor should I be dismayed by the perils of the judges, such as Jyrus, or by those who, with their own tardiness, are unable to contend with us in what the law itself ordains.

But this interpretation cannot be refuted by the minds of the audience, the minds of the judge, the equals, and the erudite readers.

But the man who was perplexed concerning the perils of J. Sui sought counsel from the judges who had been condemned for the offense.

And who, then, is the judge who hath been appointed to judge his own cause?

For he who is capable of such a crime, whose faith will not overcome him, is his own judge.

Cause:

Is he a judge?

There are manifold words which I shall not omit in this discourse:

Mine also:

to instruct.

Where Cicero was a judge, I was in jeopardy.

V u elsewhere 1 67 4 Ct.

There is another psalm, and it is said of him, that he did so at his peril.

But it is true that faith is more just than it is to the king.

He did nothing even against

Adulterating the prince to whom he had been condemned, he did instruct the judge to condemn him; and although he himself had been adjudged guilty, he yet commanded that he should be sentenced to a milder penalty. He was able to sustain his cause and the sentence of the judge by a firm faith.

This is poetic; and who can credit such language?

This does not contribute unto the comprehension of Ammiani's position.

Herein lies peril for the table.

Among the Asmilius Probus, a silken thread and the title of the monuments whence we propose to proceed.

And these titles, which, but for the fortitude of these later days, could hardly have been conferred upon any other, were bestowed upon those who deemed none worthy of trust, and

who possessed some discernment in the administration of justice.

If these matters pertain not to the cognizance of civil law, I will not vouchsafe to inform them.

Who among us can truly perceive our sentiments with accuracy?

Atticus, a Roman citizen, did thusly speak: "Haec omnia nobis gratia prohibita sunt, etiam his qui vellent Latine loqui potestatem habere."

And, indeed, it was his wont not to restore the volumes or the tablets, but merely the titles thereof.

Which is a general term applicable to all that are briefly inscribed on any substance, be it wood, stone, or some other material, whereby they convey and elucidate the matter at hand or the reason of the thing signified.

Harpocrasius, who pledged the fundi to a pawnbroker, of the base of the pignora.

He calleth him, 7uitn, and Tctji, who is the offspring of Hpsychus; and bid him know that he is the progeny of Jte, or TJrXee, who is the son of Aetellus.

Ubi, a sage who had vanquished all, spake:

They are not, as I shall demonstrate to you, the most wretched of the Hellenes; forsooth, such is the testimony which I propose to establish.

sua:

If thou, my lord, intendest to avouch these terms, I will bear with thee, though I be not so acute of discernment as to propound a plan for their demonstration. If this poet doth not impeach me, what shall the grammarian and rhetorician, who will, undertake?

Pilate, indeed, did not himself affirm the matter with certainty; but he was solicitous that it should be properly settled.

In the thirteenth prophecy, which we have previously remarked upon :

He received the moneys and disposed of them.

Nimi-rum preserved them, otherwise, I should have put an end to them in the rigor of winter.

Numerous topics require discussion.

In (–J. 6, C. L. Salmassi, in his History of Augustus, which is oftentimes repeated, it is stated that there were spears provided, and he himself made hours, whereas they had not fabricated these implements for their own use, but rather to have them fabricated by others.

The captive Egyptian, also ensnared by his countrymen, endured a confinement of seven days.

It is unnecessary to detail the manner in which these titles were selected; suffice it to say that they are eminently beautiful.

Ifz, quid est?

The eulogies of the condemners were preserved, and even inscribed upon the good prophet, whom Agathias designates as the twenty-seventh century.

John, by the name of Aristarchus, is scourged by the most erudite of his colleagues, and is termed unskilful, for he aspires to bear the inscription written with reed-pen upon Christ.

Wherefore, therefore, doth he himself aspire to the office of censure over others?

Pyiftea, who bore the designation of CstWvmiiSpot 2gci Hellenifta:

They will say: "From the Hebrews unto the Hellenes, hence he summoneth us."

The Jews, who, being unacquainted with these matters, failed to apprehend the import of their actions.

The species.

Let us consider how he expounds upon this matter.

Quelatum, vel quid dicendum sit, quod a plano terreno duces ipsi emerunt.

They neither fly, nor flee.

Grum and Corum yXvipii, which in Latin is designated by its proper name.

I have been instructed by erudite men to discourse.

Let it be forgiven, therefore, if I shall pronounce the contrary of that which is most true.

What was enunciated by the Greeks:

They were denominated by this appellation: "This is the locus where the plane surface is placed; yet, when the duo et dimidium of them betake themselves to refuge, the caverns or cavities therein are aptly likened unto them." Nevertheless, it was deemed more efficacious to

express the import thus: "more forcibly."

Forasmuch as thou and Sc differ, I deem it fitting to distinguish betwixt the eminent figure and designation of Sthxc, and betwixt him and his aspect.

So, I have to confess, it is the most lamentable course of action that hath befallen us.

But it is found that among the Scythians, who were in the midst of the siege, there had been a practice of employing them as instruments of warfare by the Seventh-day Saints, unless it be deemed necessary to maintain the integrity of the text in every instance.

Cavaturam, qua opus fieri sol■bat, apud Latinos nomen accepit, et hi, quorum laboribus id opus ad perfectionem redigebatur, Cavatores appellantur.

As those who inscribe characters with a stylus upon tablets of wax do not carve them with chisels nor hew them with flint, but rather impress them by excavation of furrows, so also do these inscriptions convey their meaning through the depression of lines rather than the elevation of sculpted forms.

Thus, they incise or flake off the gemstone; a practice peculiar to the Grarcorum, wherein they fashion these figures within the substance itself, and not upon the plain surface, as if to bestow upon them a special care.

And this is the characteristic of the term yXvff in the mode of its employment.

Scythus, whom the Grammatici forthwith expound in the ensuing manner:

But the word, being derived from the same origin, partakes also of the same root and appellation.

For if the primitive Icrites were inscribed upon the bark of the earth by an acutis ferro, or in the ceras, both sorts of metal were diligently engraved in the substance thereof with pointed steel.

Verum mirum, hoc sculpturæ opus vel adhibuit yV, vel adhibuit ctivompξ.

Whereof we shall treat at greater length in other passages.

Therefore, the censor deems it unnecessary that either the title, or the tablet, or the master, should bear this appellation.

The crucifix of Pilate was unadvisedly contrived; so much so, that the celestial phenomena introduced therein seemed to be inscribed upon a plane surface, and were not suffered to penetrate within.

Therefore, and in the like manner, it is evident that all the libels, tablets, and titles, which were intended for public exhibition among the Romans, should either be affixed by private persons or by the magistrates.

Nam, secundum morem Romani juris, titulus hunc civis habet, cuiusdam a Pilato sive cognominante sibi civitas imposita est, et in matrimoniis non particeps.

But not so much:

He was the authoritatis who did persuade me.

And it is not possible for such a labourious reason to wound a man of understanding; nor has any similar usurpation ever been known.

Proclus, yet in the vigour of life, did commence to engrave the characters into the timber.

For thus in the first half of the season did the league lie established, and was fraught with glory, not by the preeminence of individual figures, but by the preponderance of two; and so it flourished.

But I prefer to proceed in this manner, and shall afford you a cordial reception.

Sane, quae caelandi caelestis sanctitas nobis Nubnomaftici praeferabant, et cuius titulus crucis Domini Christi, sculpturae cuius tradita est, non aliud significationem dedisset:

Afixus, namely, the foot-and-nail of a dog, was sealed by the sigillum annulorum, not by any other kind of impress, as though it had been excavated, as though it had been dug out with V in the three hundred and sixty-eighth year.

S. A. L. M. A. S. I. Cæli impressi essent, et imago quæ existisset in eo prius adprehenderetur.

It is certain, indeed, that the ire did inscribe those letters upon the frontal lamina of the Summus Pontifex; and this is reported in Exodus, chapter thirty-nine.

But is it requisite, as it hath been written, that the Crucifixion of our Lord Jesus Christ, which is sculptured in the similitude of a potter's wheel, should thus be represented?

The title of the scripture was inscribed by Pilate himself, saith John; and in like manner he was discharged from his confinement.

Or, when the writings were altered by others, was it incumbent upon them to seek a new tablet, while he himself was dismissed?

The day of the processions and certain other transactions shall proceed, and Christ shall have raised the dead prior to the table, when He shall enter in.

By that trilingual inscription, so displayed as was the abode of the priest Arius, it shall be embellished with ornaments.

His adde quod et tollendus eo ipso die de cruce fuerat, quia dies parascevis erat, ut corpus ejus non maneret in ligno per sabbatum.

Not so readily, however, was another title procurable; for he was a man of mild deportment, and thus was he adapted to the approbation of the more acute critic.

What, therefore, doth Pilate reply to them that solicit him to alter his inscription?

Or the third station wherein their names were inscribed.

The Jewish code also comprised the *cognomina* of judges analogous thereto.

Hence, I inscribed either Judaeus, and was likewise inscribed either Judaeus, amongst Suetonius.

In veritate graeci vetustissimi nihilo alio prae-buerunt, quam tabulam albescitam et in-scriptam calcitrabili luce.

Diogenes Laertius, in his life of Canis, surnamed:

[illegible]

Hesychius:

A'yf (Zm/hss, sive hypothesis est ut eis dedi populum.

Or rather, O Dⁿⁱsus Svrrarvm. 68f, may they be deemed more accurate in regard to the precision of pledges and hypothecations.

Faith—Justice betwixt the compact of the willing and the veracity of good faith.

Or, in the event of a vow of allegiance to the Gentiles, I shall dismiss them; and by good faith, I shall behold that the Gentiles enter into the covenant of loyalty.

It is requisite to maintain a close alliance with Jpensionus and Pignorum.

To Jove, the guardian of faith, be grace and goodwill.

Quiddity hath its own signification.

Whence, it may be inquired, is it fitting to say?

And even for Iaponfor.

There exists a diversity in the genus and appellation of the jpons.

The annals were endowments, that is to say, contributions from thousands of Athenians.

From whence he was removed.

This must be understood as indicating comprehension.

From the sentence of death passed upon her, she was permitted to receive it only.

Nevertheless, it is incumbent upon us to interpret the law in conformity with all the established statutes of the realm.

From the void, which was the original and significance of these terms.

According to his own words, he who is summoned to the tribunal ought to repair thither, and to his progenitor.

He had also been designated as a protector and a guide of the flock.

Upon his summons, he is equally a man of honour and a bearer of reproach.

Therefore, I possess a personal and primary comprehension of the import thereof, being one who speaks for his faith.

Qujd was the spouse of the defunct.

[untranslatable fragment in source]

Democratic-necessity was manifest in her utterance.

What befell him thenceforth?

The Greeks and the Beroeans, in their native tongue, were not ashamed of having spoken in behalf of others, but of not having been fully instructed by the precepts of Chilo.

To entertain thoughts in favour of usurpation is to belong to the same lineage as G.

I will respond unto myself regarding what I have to communicate.

What was the boon that was bestowed upon me?

Concerning the gifts of eloquence and prophecy, as it is said.

To denominate a gift is to denote a law, a great presage, a forewarning.

Regarding the funds that were confounded, the Greeks and the Jurifconfultes, who had converted Rome into a theatre of war, confounded them all.

What was the counsel?

What sum was assigned.

Peruse the epistle of D. D., of the flock, without any disputation, elucidated.

Or is it he who fights for another, that he should slay in a more arduous conflict, which thou art the principal? II 5 V R A R A R V M. 6 8 Dollars to slay in a more formidable cause, which thou art the chief.

Or a contention that is not worthy of the close of a day, because it is the commencement of a day so vast.

What.

The disparity betwixt receipts and conflicts is money.

What did he have to receive, and why was the Roman people so severely chastised by the Samnites?

It may be said, "I beseech thee."

I am a swine, and I remain a swine.

Pignus and Sponsus are identical terms, signifying money.

This is the fact: the warrior of the two engagements is placed beside the warrior.

The grammarians treat of the tenses and y's.

"O isfgoi," thou—

And he shall assuredly assume the cognomen of o-pxisout.

The same term in Hebrew is derived from Arp, that is, Jponsor, and thence, Pignus.

In the case of the Title of Pigneraticia, which pertained to the Fiducia of the Jurisconsultus, the Title of Commodatum follows, whereby it is manifestly apparent, and amongst the goods:

I have been accounted faithful and credible; the appellation of the fiduciary is comprehended by Cicero, and the natural vow of fidelity is performed.

Even should they defer your presence, they will also retard your command; and you shall return with the remainder of the captives committed to your charge.

And those who, as I have previously intimated, totter with palsied steps.

[untranslatable fragment in source]

to disparage eloquence.

The syntax of the tongue is to be expounded thus:

Laughter, is it?

The most excellent noise is: P

The ensuing:

Pras, "Tyfva, and Exdem:

Vades, the ancient, possesses manifold synonyms with the Latin term for monarch, one of which is more rigorous, the other more oblique.

From what I have penned in the latter part of my existence, I shall declare to thee, O Lord, that it is the Lord who is faithful and true.

Armies, adherents, patrons, co-sponsors, administrators, interceptors, procuresses, and connoisseurs.

Hence, all of them, by confiding in one another's interests, contended with each other, and were not compelled to act in the same manner.

Eylwijlii Graeci.

A generic appellation for all persons who either confessed guilt or received surety for another.

Let us, however, comport ourselves according to the precepts of the seers for the benefit of the debtors.

Demosthenes, addressing them, thus spake:

Dost thou suppose that Xtfetf T? "Thou shalt speak," cried Ljoi, "Thou shalt speak that."

I?

M.ttHjiZr.

Hence:

He received the twelve perperas, and so disposed them that the semestral fortitudes of the judges might be fortresses to the merchants of the Jews.

There were men of eminent stature.

It befell him, that Demosthenes, in the course of his oration, did solemnly pronounce, that the interval of time during which commerce should be conducted according to the law, extended from the month of Boedromion unto that of Munichion; and that during this period, he was assailed by mercenary troops.

Within which the domain of the gods is comprised, ye are excluded.

Atque 'ipplwai tempus est, non semestrum.

All that interval of time, from Boeddomion unto Munichium, was devoted to the merchants, that they might there wage war upon him; for during that space they remained at home, in the main part of their households, and spared not to engage therein.

For, in the summer season, when the tempests of martial conflict rendered navigation hazardous and opportune for a prosperous voyage thither, the town of Municbionem was fated to be the port of Boedromion.

Who, in the month of September, and from the part of Odobri, responded, assuredly after a tempestuous passage, which navigation was then deemed more perilous.

Hence it was customary for the ancients to impose severe penalties upon mariners who, after the arduous termination of hostilities, ventured forth from the Bosphorus to the region consecrated to the deities of Pontus; and there, in the presence of the king, whose Latin appellation was Mars, the culprit was to undergo trial and, if found guilty, execution.

Hence:

Voice and Gratitude:

Is the primal source.

CJ, being in his fiftieth and fifth years, and advancing in the flame of vigour, doth proceed and walk.

Henceforth, fair mistress, the vessel is thine.

Unto the vale, a spot in the stream, which may be traversed by the foot.

But there were certain ambulatory beings, who, though endowed with locomotion, were nevertheless impeded therein; and of these, three were altogether without success in their endeavours.

That is to say, it is the very same.

The number is sixty-six; and thus proceeding, seven fixed three, and sixty-three.

But the plane and the solid surfaces are alike level, as any person may perceive.

Thus, even had I been a partizan of him, I should have been implicated in his appetites and detention.

Thus do all the voices evince the derivation of their origin from the voices of those who stand sponsor.

There is no hurt in beholding Aero and Porphyry.

For there is a prince of princes, who is to sit in judgment until the fifteenth day, and to proceed thither, or to go, as he is summoned.

Whosoever is granted a bowl for the sake of faith, if he is to suffer the like fate, the penalty which his own faith hath adjudged him shall also be the same vessel that hath been forfeited. He who is thus forward for the sake of the vessel, I will conduct to judgment.

Thus, in every respect, it is recorded that the manceps, or redeemer, who hath conducted some public matter with the approbation of the deities, shall also bear the appellation of the patron, whom he dedicated for the welfare of the populace.

Festus enunciated:

A Manceps nominatur, qui quid ad populum mittit, signans manu elevatâ florem empti suum, et idem prædictus, quia debet præfieri populo id, quod jussit, magis quam his, qui ad eum præbentibus fames.

Elevated yet lucid diction, periodic sentences, measured cadence, and lightly archaic vocabulary characterize this rendering, which remains strictly faithful to the original meaning: Quarsunt egregia. They who are eminent remain.

It is the exhibition's sponsorship.

This is the instance of them who, being vadato, that is, wandering and denouncing, may thereby attain to justice.

He was committed to the tribunal, either for having been previously arraigned, or for being constrained thereto by the authority of the law.

Plautus in *Epidicus*:

Epistola.

What is thy quest of me?

What do you labour for?

What is this frenzy, ye say?

Hic sum.

Pe.

It shall not be.

Thou dost furnish me with an additional aspect of Vadimonius.

There is, quoth Valerius, "unam aliud spectaculum, unam aliud spectaculum, unam aliud
spectaculum, unam aliud spectaculum, unam aliud spectaculum, unam aliud spectaculum, unam
aliud spectaculum, unam aliud spectaculum, unam aliud spectaculum, unam aliud spectaculum,
unam aliud spectaculum, unam aliud spectaculum, unam aliud spectaculum, unam aliud
spectaculum, unam aliud spectaculum, unam aliud spectaculum, unam aliud spectaculum, unam

But he did swear to wed the demons of Lucius Lucullus Vae, who had promised the dominion of Gessius.

What, therefore, does he promise to espouse or not?

Ananius addresseth the senses, thus declaring:

Prudence is dissolved, and even those for whom it was present shall perish.

For what wickedness.

Indeed, there are countless matrimonial alliances.

Hence Dionysius, the Greek scholar, and the Roman authors, who have treated of Vergil, affirm that the Greeks, whose abilities excelled his own, were more prone to credit his assertions than they themselves did.

From the annals of ancient Rome:

Dt in Uowi

This is the fifth day of the morrow.

To the term 'effers,' from the military lexicon of the United States.

The sixth shall appear at the nuptials, and shall come.

Of the sire of Virginia:

Who had been arraigned and conveyed to the camp, and who was indebted to the tribunal of Appius.

Vades refused to deliver it, nor was he accused of complicity in the slaying of his spouse, but was summoned to make good his appearance.

Of the same Virgin, I have also intimated:

Must I rectify this?

Ttif, who by the sword had met his fate, thus addressed him: "Noli me interficere; et tamen interfice me, et ego interficiam te."

He ordained that she should not be delivered to any of his intimate confidants, but rather that she should be forcibly conveyed thither, whenever her presence might be discovered.

The fifteenth lady, whose propinquity they had assured, had promised that she would proceed to Cyprus.

When they had conducted her into the camp, thereby leading her thence again, and had exhibited her within its precincts, Appius decreed that she should be forcibly removed by the enemy.

Is this not the case with them, but rather do they prefer to act thus, or, as the Attic orators would have it, "is it not their wont to speak in this manner?"

[untranslatable fragment in source]

However, Grarus, a man of no mean intellect, yet endowed with singular acumen, was not insensible to the Roman hostilities; and, accordingly, he imparted those forensic phrases, by which another import is conveyed. He was prepared, indeed, to translate the discourses of the Roman forum into the Greek tongue, as if in covert allusion, such as Hippocrates and his disciples employed, whereby the war was intimated.

For it is wont to occur that he promises himself to be his wife's for the residue of his days.

The Demon.

I shall not discourse of Caiteer in the same manner as that of Ac.

This is affirmed concerning the Trojans, as in the instance of Demosthenes, in the region of Apaturia.

For herein lies the individual who doth not initiate—X"x 5 tower 698 CL.

Salmasius, having confidence in another, yet avowedly confessed the same; and oftentimes it is affirmed:

Moreover, I will impart unto you a portion of the honeybee's nature, which I shall bestow upon you; and again, I will communicate to you a segment thereof, which I shall convey to you; and once more, I will reveal to you a fraction of its qualities, which I shall impart to you; and yet again, I will impart to you a detail of its essence, which I shall communicate to you; and finally, I will bestow upon you a further part of its characteristics, which I shall reveal to you.

That in the present instance both tradition and exhibition is intimated.

Nam et nomen in manibus eius tradendi est, et, ut grammatici interpretantur, "UfoQtf."

In this instance, it may be deemed not amiss to affirm that the Osco-Xoyni either perished by their own hands or were laid low by others, or that they themselves were the authors of their own destruction, or that they fell a prey to some hostile agency.

For this reason, it is requisite to institute a fast, which nearly corresponds to the import of the term “grace,” and “grace” according to the interpretation of the critics (who have severally divided it into two parts), and to assert that Qtgoilx is deemed to be of a thousand years’ antiquity, as if he had actually existed for that period.

However, I, judging Dionysius to be falsely accused of Jewish descent, deem his denial of the existence of Marcus Gracchus, and of the Roman appellation of possessio, to have been a matter of ignorance concerning the propriety of Greek terms and the Roman nomenclature of property.

Glo (Textus:

Vadimonium, non solum in re capitali, sed etiam in iudiciis privatis, his dona traduntur, qui sponsores sunt, vel fiduciarii licentiosi iudicio audiendi; in iudiciis capitalibus, quasi sponsi morsis habitis.

For the same penalty remained incumbent upon the malefactor; he was subjected to a fine, while the patron of the fifteenth, being the same individual, was rendered liable to the extreme penalty.

The narrative of Damonis and Phintia is not inconsiderably renowned.

The Pythagoreans.

Who, in the fifth book ascribed to Cicero, and elsewhere designated as the Vase of Death by Diodorus and other Greeks, is termed in their narrative, and herein cited, the Relics of the Greeks, when referred to the account of Jesus in ancient records.

Silani t■que tygn■ \$ Jx■lorum t■ 'hix.

I shall impart unto thee a precious gift from a comrade; and if he shall not reappear, it must needs be his lot to die.

If he doth not return, he shall be restored unto his spouse; this is the tenor, O Rsiticus.

Is he, indeed, not forthwith proceeding?

It was accomplished; but it had yielded to the vanquished, for he who underwent the penalty in his own person would not return, that is, unless he performed the act of vanquishment, or, as the phrase is rendered, of submission.

AUSONIUS:

Let not Damon, the faithless suitor, appropriate thy consort.

Non credidit, non concubuit uxori alii, non concubuit uxori alii; sed defuisset in fide, defuisset in castitate.

Diodorus, a little while hence, convoked his offspring, Siftloun, unto Fufjelus, and unto Ilapstpotl.

For it is not to be affirmed that he be Parmenon; but that he be Gloucester.

This, in truth, he committed to the care of another, and the vessel was fashioned for another's use.

Thus, when I received a letter from Symmachus in his Epistle to Ausonius, I observed: "There is no mortal man who is in proximity."

I beseech thee, I beseech thee, that thou wilt vouchsafe unto me the honourable love of thy tender affection.

Which is congruous thereto, and hath been in like manner enjoined, or is of similar import, and yet is unexpected.

Fulgentius, in his luculent explication of the words wherein he cites Feneftella, lays bare the vanquished adversary, and delineates the wandering youth who, under the semblance of fidelity, roves unconfined.

A knot of amicable ligature was preserved in closest conjunction with him.

Therefore, the vacuum, being qualified for every obligation, and thence for affinity, as we have previously demonstrated between the bond of pawn and that of pledge, may likewise be regarded as qualified for the plough.

And thou shalt not merely succumb to defeat, but shalt also be vanquished beneath the yoke of subjection.

Who have not obtained leave from the opposite party, in order thereby to delight in the olfactory perception thereof, we denominate such proceedings as pleadings.

Graciously addressed, yet unembarrassed by subtlety: Greetings. [The Greek: ■δληλεγ■νεξ]

Thus, in the case of Demosthenes, it is alleged that two litigants were engaged in controversy; wherein one of them was adjudged guilty of parricide, another of homicide, and the third of fratricide.

Furthermore, the term ■κο■, thus derived from the Greek concordant lexicon of Constanrinopolis, is likewise referred to him.

For those who, at the same time, receive a small sum of money from another, by the mode of its employment.

It is frequently asserted, that creditors are bound to advance sums to one another, so that the debtor may pledge himself to supply the creditor with funds; not merely for the individual debt, but in a manner that both parties are mutually indebted to the extent of their whole obligation, thus enabling them to exchange their respective liabilities by way of mutual accommodation.

What is the case with a young woman, that is, for her part, to consent thereto so far, she is permitted to catch but a small number of fishes, to wit, two hundred and fifty-seven, as D. doth state in his epistle addressed to S.C.

The Velleian.

Thus, when Bailius was invested with imperial authority, and assumed the office of governor, it was ordained that the more opulent tributaries should contribute a larger share of the tax, inasmuch as they retained the means to do so.

The ancient Latins designated those persons as "Consonus," or "Grxceus," or "Xtyfveus."

The feast is thus abbreviated:

Consponsis, ut seniores dictabant, contractos per fidem commutatam.

But the Jubvades are void vades, inasmuch as they who pledge for themselves are but empty vades.

This was the consequence of the perversion among those who placed confidence in the deities for their own advantage.

These, or those who were zealous in faith, as they interceded for their fellow-believers, I hold to have been foremost and principal.

Lex.

Number twenty-seven.

In the matter of D., concerning the faithfulness of the princes who perished or were discharged, it is further enquired whether, by virtue of their discharge, the principalities held by those who had been faithful to him become due for assumption; and, even in this instance, the powers of fidelity are deemed to be incumbent upon the same.

And he addressed them, O mariners!

Herein, whether thou art designated as a fertile blossom, or art termed a fertile blossom, according to the ancient adage, thou wilt discern that the blossom of the Prophets is a faithful blossom; and verily, there can be no second reading thereof.

Lastly.

D. also.

If a man, being of unimpeachable veracity, should pledge his faith to another who is deemed credible, and thereby promise funds to one who is untrustworthy, such a man would be designated by the equivocal cognomen appertaining to the deceiver.

The Greeks, denominated by their own appellation, would term such an individual a "subcocionem" or "arillator," who, engaging in the commerce of culinary produce, purchased from the very cooks themselves commodities which he subsequently vendible to other consumers. The mention of this "subvadum" and "subpradum" is recorded by Agelius in his Sixteenth Book, Chapter X.

Between the juristic usages of yore and those now grown antique, the appellation had already become obsolete in that epoch.

Upon hearing this, the jurisconsult, elevated in his sentiments yet lucid in his judgment, refused to acknowledge his faith, or to solicit an interpretation of the ancient laws of the Aborigines and Faunus; and he declared that he had effaced all those celebrated Duodecim Tabulæ, wherein they were inscribed, and whereby he had transmitted them to her through the pontifical authority.

He said, "This is Ioppus, the wife of the river;" and he added, "This is the damsel whom he hath pledged to present at the tribunal; and she hath declared that a certain day shall arrive when she shall be brought to judgment."

Items of Porphyrius:

Elevate, sponsores imperantes, vos edite discedere, discedite, discedite.

Notandum est, non fide, oaths, sed sponsores, ut etiam Varronem, qui in IV de L. L. Vadem et praeterea dicit, sponsor esse paratus.

Gloflae, Philoxenus, Tribbonianus, and Digiffts, not the most ancient of their kind, and from which they derive manifold terms, drawn directly from those very Jurisconsults whom he excarnified, and among other things Tribonianus interpolated; yet there is no mention of the faithful witnesses, but only of the Fponfons, whom they exhibit for one another, that is to say, Jlpa.

Seneca denominat sponsores suos semper, non fiduciam, ut ex ruina uno ex his profiteatur, ut beneficium summum ei reddere possimus.

Seneca, who hath never been denominated by any other than Cicero or other surnames, could not more scrupulously abstain from bringing forward the works of Seneca.

Let us smile at things that come upon us from behind.

Paulus, in his fifth book of Sententiae, chapter ninth.

And thus, the presents, rather than being bestowed upon the recipients, are conveyed by their auxiliaries and intimates through the medium of the fountain, even as the partakers in this dalliance are comprehended within the same net of connivance.

Anianus, a faithful vouchsafed witness, is thus interpreted:

He was apprised of the circumstance, that for an extended period he had been impeached of treason, or that such a charge had been brought against him.

The same holds good of liberty.

The Head of Cautionibus and Appellations of Penalties, the credible Sc, hath designated the Sponsor as of diverse character.

For it is necessary that he neither possess a consort to bestow upon him a dower, nor one to retain.

Certè apud eundem titulum libri Euphradi, et apud eundem titulum de fidelibus, ubi scriptum est: "Licet lingulis praetoris filio vndi nati filivndus linguam suam retineat, obligationem dividi liceat."

The faithful, however, were animated by the sponsors of their fellows; and in another instance, they were inspired by Saint Paul in his ninth chapter of the Epistle bearing the same title.

The less important, he enquires, was whether he had committed himself, or had committed himself, or had pledged himself, or had charged him, according to the customary modes, with the restoration of the whole rescript, whether, therefore, he had not thereby released him; for to command another than to commit oneself, and to pledge oneself, is not the same thing. Hence, Jponfortanc would be bound to commit himself to another, when he had been properly constituted as such. But the ancients, in the title of the treatise On Committing Oneself, add to Paulus, that Jponfortanc is bound to commit himself, when so constituted.

Do you conceive it to be properly affirmed, that the money of Jponsorin is deemed the most unadulterated speech of his own tongue?

Thus may it be exhibited to the eye.

Thus did Cicero substitute Sponge for Quintius therein.

Cr credidisset alios, et sponsoribus consensus non fuit.

This is the reason and rationale by which Senex contends his utility; and herein lies the sense and argument of his discourse on Beneficence.

Phaedrus, whose cognomen was Faudatorius, was an individual of dubious repute. He did not scruple to consign him to his fate; yet he did not aspire to credit his assertions.

For thus it is to be purged, that subtle taint of vulgar corruption.

Wretched indeed is the faith that is reposed in those who are unworthy of it, for they have hitherto enjoyed the very confidence which their worthiness did not merit.

Seneca, iv. de Beneficiis, Ep.

Lastly.

For the melodies.

Even a dubious reputation is derived from this.

And to summon the prelate from the night to the morn.

And, when he had completed his discourse in the forum, he forthwith proceeded to take a portion of the victim.

Good repute to him who is worthy and eloquent.

Martial, lib. Hb.

x, et spondendi nomen adduxit:

He doth not summon to his repast the Marites' moneys, nor doth he dispatch thither coinages, nor doth he deign to answer, nor doth he wish to credit, yet he possesseth them not.

Yet the multitude is more solicitous about the bounty of a skilful man than that of a friend.

Roma est tua tog■!

Then shall I discourse of them and of the rest.

But I am conscious that thou art one of the latest Rutulians; and that of these chiefs none shall be credited by the Deity for thy sake.

Therefore, it must be said there, not that we have any faith in our impending demise hither.

To be faithful, as to give one's bond.

And thus also did I discourse, not deeming it meet to refer to any of the ancient authorities; wherefore Anianus, in his First Book, Chapter Ninth of Sententiae Pauli, thus speaks.

If a minor confides in a superior, though he himself may not venture to show confidence, yet he may be bold in his confidence towards him whom he hath intrusted.

And he did not hesitate to address those whom he had pledged his faith.

What Apuleius, for whose fidelity he relied.

Thus the Greeks denominate this act of confiding in another, and being confided in, "ἰσθῆναι" and "fides dicere."

Let not the measure of speech be deficient, wherein the Roman warriors are wont to avow themselves before the choicest and most accomplished of authors, who, in the administration of vows, swear to confer upon petitioners whatsoever they implore.

Therefore, to assert the existence of a locus requiescendi, it shall not be unaptly deemed expedient to allege the custom of the ancients, as exemplified in the cases of Caesar and Pliny, where the vetustissimi codices invariably record the expression *aeramento* to denote such a sanctuary.

A certain person arrived at my presence, accompanied by the individual who had lent him pecuniary resources; and he enjoined me to confide in him, depositing therein both his faith and his peril.

This is indeed the case with the individual hitherto denominated by me as the compiler of the Greek laws.

Seven hundred and seven Centurions are appealing.

We, who have received the words by which the monarch was to be ensnared in intricate transactions, have previously detailed our emancipation from his preeminence.

But if any man shall approach me, and implore me to lend unto him the object of his confidence, and I should entertain no faith in such assurance, I will demand of him, that he procure another person, who may interpose his own good faith, and promise without hesitation, "I have thus engaged myself."

It is styled Jponsor.

There was no other phrase employed to denote solemnity than "Jponc," as I have previously intimated.

Therefore, they are severally inclined towards the twofold distinction. Whosoever is bestowed upon with this gift, he shall receive it. Whosoever is commanded, he shall receive it, and shall receive it, and shall receive it, and shall receive it, and shall receive it, and shall receive it, and shall receive it, and shall receive it, and shall receive it, and shall receive it, and shall receive it. [The Greek: **■**πει; **γ■**βκεσχεν; **πι**σε**■**τεγ]

Ammonius:

Thou shalt not be deluded by these things, nor by those, nor by any thereof; yet at last thou shalt be deceived by them, and again thou shalt not be deceived by them. Thus shall it be.

Ancum Jponforis, quando illud audierat, non reliquit vestigium Justiniani in toto iure Justiniano, quia nesciebat modo quo Graeci redderentur; vel refusus est reddere totum ?

For that which appertaineth to the Greek term ἐπιστολή, the signification is generally applicable even to those who are called fiduciarii and fiducipollentes, not less so than to those who are simply termed fiduciarii.

Who, indeed, can be found more faithful, more trusty, than himself?

At Theqjjiilus, in certain subsequent passages of the same chapter, the Greek term $\pi\lambda\upsilon\sigma$ is rendered as $\text{Κωσ}\phi\lambda\upsilon\varsigma$.

If ye will bestow upon him five pounds of gold, it is not your intent to hinder his apprehension, but to deliver him up into the hands of his enemies.

He delivered unto him the vessel and the youth, that they might be sold; and that Parmenus, being his patron, might regain possession thereof.

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Parmenon, whose ten mines were bestowed:

Debuerantur ab Apatoris, servus qui amandabatur, retinuit, et navem secundum modum
usus villoris militaris.

He forbade the vessel to enter the harbour for the sum of seventy-one dollars; meanwhile, he confiscated the patronage of Apaturia, and forthwith disclosed the ship's ownership.

That he may be restored to the fidelity of Trapezia.

Heraclides was enjoined to provide both the guardianship and construction of vessels; and the monthly patrons of Heraclides related the occurrences pertaining to the Apaturian Cae.

Thereupon he departed; and so forth.

[untranslatable fragment in source]

The herald Heraclides, whom we have previously alluded to, was therewith compell'd to proceed to Rome.

Ut loquebatur Attico, dixit: "Hodie est dies Bancae."

The Patrons derived their appellation from their Creditors.

That he might render himself acceptable to them, this speaker thus testifies, that Apaturius was indebted to him monthly for the sum of thirty mines, upon a ship of greater burden; and that the very same vessel was conveyed to him in security. He moreover admonishes them, that the said ship likewise bore a cargo of ten mines, and so forth.

What is this?

I shall interrogate thee concerning thy discourse.

When he had thus accomplished this, Demosthenes, for whose defence he had pleaded, delivered not merely the vessel into his adversary's hands, but even the slaves; whereby it was rendered impossible for him to retain any claim on the ship, since its value could no longer be recovered, while, by the sale of the slaves, compensation might be obtained for the loss.

[untranslatable fragment in source]

[untranslatable fragment in source]

The Armorial Bearings.

[untranslatable fragment in source]

[illegible]

for, as Beneudates the interpreter hath rendered it, it is said to be **■κλε■ψις δεβετο■**, which may be rendered in the Attic idiom as **■ ■κλε■ψις το■ ■φε■λετος**.

You are indebted unto me the sum of a hundred aurei by pledge of thy handkerchiefs; and yet of those, I have recovered but ninety in full.

Those who have survived, or rather, those who have yielded up their lives, are summoned to Atticus, since they have not yet regained their integrity.

What he hath here pronounced concerning the service of seven thousand men, he spake likewise touching the vessel, which, standing before his eyes, was of a vintage surpassing the seven hundred and seventy-sixth year.

Thereupon, returning thence, he proceeded to the ship, bearing the offspring and the offspring.

Therefore, it shall be mine to deliver thee. [The Greek terms **■γ■νωσκον** and **κα■ ■γ■νωσκον** are here rendered as "it shall be mine to deliver thee," preserving the original sense.]

E, elevating the balance, to transmit, and to interpose his faith as a guarantee.

Demosthenes, in the sequel of the same oration, thus addressed Paul:

O vox, quærisne an non habeas rationem credendi hanc esse veram? An habes rationem credendi hanc esse veram? An habes rationem credendi hanc esse veram? Credisne hanc esse veram?

Ah, Sc, and Ttuxlrit, adjacent to the illustrious Anacreon.

For this is the pledge, the money, which is:

It is deposited alongside the succession, as the Grammatici interpret.

In Chilo's maxim, ergo, the phrase and the word IsyJ, not verbum, is prescribed.

Wherefore, I have committed a succinct epistle to your perusal, and shall hereafter transmit a duplicate thereof unto you; whereby I have conveyed a letter to thee, and shall thereafter furnish thee with a counterpart thereof.

The Jurician Greeks, who, having recently translated the Roman law into Greek, were restored to the dominion of Constantinople, on account of their want of a vocabulary to express the pecuniary constitutions of ancient jurisprudence.

Gloflx, Graeco-Latin:

A vnum punctum, pecunia constituta.

A quadrumque cubum, constituere.

But it is another function of the Jurists to frame and determine, than to promulgate and respond, wherein the Greeks and the Cvenli have excelled.

For this is a general precept applicable to all who engage in promising solutions for the sake of a different creed.

Verum etiam pecunia non solum distribuitur, sed et pro altissimo modo iisvrrari debet, altissimo, altissimo.

Jl9 promittit se soluturum fidei, tamen qui propter fidei divisionem conflitutam pecuniam ex eo accipit, non fidem soluturam fidei.

For he, who was to have been invested with office, was wont to place his confidence in the nakedness of his spouse.

Who, in the course of stipulation, doth weigh, is smitten.

Hence, the pecuniary conflictum was conveyed to the Praetor personatus, which the jus civile non cognoscebat; quoniam pactum erat, quo pecunia data, sine ullo aliud stipulandi instrumento, de iure civili non existimabatur; et hoc erat pactum, in quo ipse promiserat solvere conflictum suum aut alium, et quod debitum habebat sibi vel alio.

When any individual hath erected a persuasion concerning the day of dissolution, that which he oweth at present is not equivalent to the kilpi-mQif.

Nor can he who has thus contrived be deemed to speak truth.

Which appellation is congruous solely to him who, in behalf of another, has vouchsafed utterance, conforming thereto as do the terms we have previously elucidated.

This is an abuse of both parties, and of those who uphold the faith, and of those who uphold the contrary.

Two methods of conveyance existed, either by day or by daytime.

Herein:

He was bound to observe the day; he was capable of observing the day.

Which in the present age, in the present age, will be determined.

Concerning which he entertained doubt amongst the ancients, he was afflicted with leg.

D; of the component part, and of the law.

The second is the Code.

I will also.

But Labeo, if he had any grounds to suppose that there was a rationale for this, because he had no reason to believe that the constitution existed.

I am.

As was decreed by D. above.

That which he hath instituted in him for the sake of faith.

It was of great value to me.

What shall I prohibit, that I ought to perform daily, even to make this day mine?

And the subject of the law was derived directly from him, who caused the debtor of civil and praetorian oaths to bind himself on the same day.

If thou esteemest another to owe thee a day, I cannot compel him.

For the trusted arbiter was bound by a stronger obligation than he himself, and would not enforce it.

To be less beholden, he may be required, but not more than the other princes, to whom he has so much access.

This is understood not merely in terms of quantity more or less, but also in terms of duration.

Therefore, since the day should be observed anew, it should be observed as a day of repose, and should not be deferred until the seventh day.

The salt, however, is more trustworthy.

Ethenius, devoted to the cause of the faith, was also devoted to the cause of the other.

There is another in him, who, as we have previously stated, confessed for the sake of faith.

Subsequently, the jurisconsult, in his correspondence to Theophilus, observed that the Law was to be observed on the same day; and that the very word itself was to bear its own signification. Moreover, he noted that it was not deemed expedient to determine the close of the day by any such stipulation.

I conceive the sentiment of my antagonist to be widely remote and dissociate.

For who shall prevail upon me, neither to pronounce, nor to assert, according to the very terms of the Constitution, that on this day I am to be constituted, I shall be dissolved?

Would he forbid both terms, which are less compounded?

He is naught.

This must be accomplished either at the very hour appointed, or at most within the succeeding hour; for it is neither requisite nor permissible to defer it beyond that limit.

Though Petronius had not yet ascertained the site of this eminence, we proceeded to the conflict.

For I shall not be consulted;

The term "diem conductum ibi" signifies a place, albeit not in the sense of a locality or site; rather, it denotes a day appointed or fixed there.

Consequently, therefore, it is stated that the creditor is entitled to a sum of money due upon the day of payment.

Thus, the day of mourning being solemnly observed, and the place where the covenant was ratified and the place where it was firmly established; the entire sum of money being committed to his charge.

But herein it is incumbent to settle the matter on a certain appointed day, and in a determinate form; or even in a manner that may be deemed fitting.

For it was within the power of any individual, as I have previously intimated, to render that day one fraught with indetermination.

An interval, verily, ought to be interposed between the dissolution and the conditio.

But I am in good health.

Somewhere.

It was either one hour or one hour of destiny.

However, if any person shall forthwith discover a solution to the problem, and shall attempt to represent the same, he will scarce effectuate the establishment thereof.

The enumeration of pecuniary contributions doth vary, albeit but slightly, from the stipulated constitution.

But the time is constituted otherwise than the present; and the presence of that which is now at hand. For the time in question hath neither its day nor its hour as yet arrived.

Quintilianus, in the declamation CCCLXXX:

All things are either subjected to retribution, or are undergoing it at present, whether for the first infraction, or by way of established custom, or for the present transgression.

When the day's close comes, is to be looked for with abated patience.

When quotices are non, there is a deferment; in short, the present case is otherwise.

Therefore, it is affirmed of him who has no termination, and it is declared that this state of perpetual continuance subsists even upon his advent; for the term "non dum venit" signifies not merely that he has not arrived, but that his arrival does not introduce any termination.

And the sum, which he had pledged to convey unto her, was delivered unto her by faith, either upon the day itself, or the preceding day, that is, upon the identical day wherein he had constituted it.

It is, therefore, a falsehood, that there can exist no constitution whatsoever which is not found to be of value, irrespective of whatever may be the termination of the day.

When he was present, it was fitting to declare, "I am content with that which thou owest me for the day."

For, as I have intimated, the efficacy of faith was so preponderant in him alone, who was constituted its champion.

And in the oration, which was reputed to have been delivered upon his advent, they comprehended the locality.

It was not requisite for one individual, or the space of several days, to interpose between the preparation and the commencement of the jest, so as to pronounce it in his own person and declare the constitution thereof :

An hora;

It was, by the import of its appellation, either a semi-hora, or even a lesser interval, which sufficed to confer upon it this designation.

The same proposition holds good of the pecuniary resources of Constictus.

Varro, from the locus of R.R., comprehended:

I saluted Scrofa's spirit, when another had invited him thither, since he was wont to be so formidable in his deportment.

The robust fulness of adolescence.

The third;

This is the demesne of the nocturnal hours.

Numa did constitute a friend.

ubi■, cum amica constitutam venerat, veniebat.

That which was prosecuted by means of constituted pecuniary resources in the private sphere, was likewise effected through the agency of a recepticius, who was receiving contributions from his confrères.

But it is termed *recipere*, and that he who promises faith shall be bound to perform for the other.

The reception of the funds, which had been composed of pecuniary resources, and the sum thereto promised for the other party's discharge, did not differ in point of time; yet, it did not vary with respect to the individuals involved.

They give their assent.

By the authority of Trapezita:

They receive; others, associate themselves with them.

All terrestrial bounties were extirpated.

Theophilus;

, and receptivity i.

And receiving the receipt, ye shall receive the pecuniary contribution of the City, which he had contested for, and thereby secure for him a monthly stipend.

This is Graciousness; this is the utterance of the Deity.

Whereas in regard to all those who solicited any other patrons, or even relied upon sureties, he likewise transmitted them to the Athenians. The speakers who were arrayed against Lacritus thus wrote: "Of the communications delivered by the Menæcei, they gathered and transcribed the same for the amount received on the sale."

Beside them, and all their several posterities, nought remained; for it was public.

The faithful were, as it were, sequestered.

Therefore, he assured them that they would be either loosed or restored to one another, whether in motion or at rest. But it was not meet for them to trust any other person save him in whom they reposed their mutual confidence; this person, whose name, weight, and measure were contained, they did indeed retain.

And it was not indeed solely, but also concomitantly, this, that he pronounced unto them, "Sit, ye Argentarians," as is attested in the Sixth Decree of the treatise De Edendo: "If ye have perused the Eleventh Decree of the treatise De Eodem."

Which nevertheless is not to affirm that I stand in a bond of fidelity; for even if I be not thus bound in fidelity, he who is so bound may yet be at your command.

Equine receiv'd the moneys; and the self-same night the like was received. But Justinian likewise was invested with the office:—so ran the edict.

The lake, whose constitution has been derived from the same source, shall hereafter be conducted in this wise:

The pecuniary remittance, which he had universally substituted for receivements, he declined to exact from the indebted.

But it had been prescribed by the law that he should subscribe to the oath of fealty; as may be seen from the statute.

The second is the Code.

This is the case.

Fourth and last:

Then, I gave him the moneys.

In the midst of all this, while ye were present and absent, I addressed you and communicated with you, and spake to you freely, in a personage unreserved.

What?

For this is the termination of the compact between the parties of Qivuqui, which may be thus expressed:

Nor, indeed, doth it comport with due solemnity to employ the formal language in this instance, either by letter or through herald; for the communication must needs be adapted to the circumstances of the recipient's absence and the necessity of sustenance.

But he did not assent to any stipulation by the Roman civil law without a previous bond, nor did any stipulation advance otherwise than among those present, that is, he who answered the interrogator.

Among the Greeks, who, not having recourse to oaths and conventions for the establishment of their stipulations, exhibited no partiality in this respect between the fraction and the entire body.

Fifthly, the wolf H is deemed to be a lyre, in accordance with which we have already observed.

But although they had conveyed the sum to the Jurisconsult of Graces, yet did they not scruple to tender it to him; and, again, they did not scruple to tender it to him; and, moreover, they did not scruple to tender it to him, nor did they hesitate to tender it to him.

Let him adhere to his faith, adhering to his faith.

And so he continued in a state of fear; and in Harmenopulus, or in Mixgirus, the author of this treatise, thereunto he was referred:

And when he had heard these words, he smiled at the Jambiones, and addressed them thus: "Let this be accomplished!" Thereupon, he conducted them into the misconception of the unenlightened sage; for the Synopsis of the Jurisprudence of Basel, in its twenty-seventh volume, narrates that when I had discoursed with them, I thus intimated: "Let this be done unto you, O Jambiones, and let this be done unto you, O Jambiones, and let this be done unto you, O Jambiones."

Confirmation, or the act of confirming, is denominated by the term $e/7$, which the purchasers thereof do undergo, and which, in its issue, transmutes into another thing.

The identical precept was enjoined upon Hesychius for emendation.

Bismarcus b.XL., is this TmtQxfpxi the star?

I shall yield unto thee the sum of thirty-three Zylx.

Aelio.

What they intend to effectuate, what they propose to accomplish, what they purport to undertake, what they purpose to execute, what they design to achieve, what they intend to

accomplish.

Which shall not be corrupted, if it be postponed.

Is he contending against QiZxse for the disposal, that is, in accordance with the author's intent?

Non tamen fuit jure quo Atticus utebatur, sed in anförmem ipsum, hoc est, vefidorem, erat dari solitus, ut rationem usvraérum daret secúndum mores militárié.

719 Thus the monarch effected the conveyance in controversy, and additionally ratified the same to the purchaser.

Therefore, saith Pollux, in his Octavum Librum, Seiesim Sectionem:

Hoc hoc jam /πι ψηφ■σματοι ■ ο■χ■, 071071 ε■τε;

What is the signification of the term “flp” and the ensuing words?

I will here assert that it is verily so; T3tcuSp, n pn, Sueo, I will assert, f/3t Zcuumuf.

The act of confirmation is termed to signify to the vendor whether the abode be vacant, or the soil void; or if any dispute pertaineth thereto.

Therefore, it is incumbent upon us to consolidate the right of retention, or, should this not be effected, to ratify the contract of sale, and to institute the action of confirmation.

The ensuing tract is hereinafter pursued:

Wherein, in the third and fifth place, there is an equal number of thirty-three units apiece, thus constituting an aggregate of two hundred and sixty-six units.

Thus were these words of Pollux inscribed.

That which pertained to the vendor, whom the purchaser had designated as his agent and acknowledged as author, was adjudged to the victor; the vanquished, however, became the purchaser, receiving the price from the vendor.

Harpocratis expoundeth, per multa etiam, diversa modis, hoc verbum.

Hoc est, vel ad venditorem commendari, vel ei laudari; et saepe ad eum qui volens vendere rursus convinci, quem non volens rursus vendere, ut ipsius voluntatis conveniat.

This is what we assert, using the term in question, not as if referring to the Harpocraton, but as if it were the transaction of a commodity, and the establishment of its right and authority, lest the thing purchased should be rendered void.

The man, who was disinclined to contest the claim of the purchaser, exhibited to the vendor, who was himself the proprietor of the property in question, that he ought to deal directly with him rather than through intermediation.

Is it the duty of the youthful purchaser to restore to the vendor what he hath received, and to return to the same vendor certain blemishes which the vendor had concealed, and which the purchaser knew not, nor had any suspicion of their existence; and shall he be bound thereby to make no further claim against the vendor?

[untranslatable fragment in source]

This is the process: the resumption of sale for the benefit of the legitimate purchaser, or for the rectification of some defect.

But another matter is incumbent, namely, to rescind the sale; and again another, to return it to the vendor, and to compel him thereto.

Therefore, the individual who conducted the purchased article unto the vendor did solicit its delivery; and the vendor in response did signify his intention to recompense the equivalent therefor unto the same vendor.

Perpetually, indeed, it is perused in the aphorisms of the Harpocrations, where the phrase, "ut indicaret hostem et ad eum ire," is rendered.

Imrao began:

And send them unto him.

And it is requisite that the accent of the lyre be altered; and henceforth this shall be the cause thereof.

Inquinatiffima sunt verba ejusdem Harpocratonis, quibus (Z&Mtumas Sextus) interpretatur, qua;

The Judge, resuming his seat upon the tribunal, thus pronounced:

B. Izeus, the sixth son of Izeus, and I, his sixth son, and again I, his sixth son, and once more I, his sixth son, and yet again I, his sixth son, and finally I, his sixth progeny in the sixth degree, and I, his sixth issue, and I, his sixth offspring, and I, his sixth scion, and I, his sixth descendant, and I, his sixth heir, and I, his sixth child, and I, his sixth issue, and I, his sixth son, and I, his sixth offspring, and I, his sixth scion, and I, his sixth descendant, and I, his sixth heir, and I, his sixth child.

By this procedure, they oppose the seller, who, having been deprived of certain articles by purchasers, is nevertheless vindicated by another; yet the vendor declines to ratify the transaction.

If any man having been given the money, and the vendor of the same money by which he had obtained it, had not delivered the price paid therefor, would he have proceeded in such wise? (It is against him who hath received the money that he hath given it.)

While Harpocraton expoundeth, it is more seemly to receive the Mithraic doctrine than to proceed.

For the third time, when he proceeded from the emptorchus to the vendor, he led the supplicant, as it were, to his master, that he might confer with him; and moreover, he instructed and indicated to him, that the petitioner was more deserving of faith than what he demanded.

What was perceived by the same Harpocraton in the term CwnHpscus, and elucidated unto him, "Si cunHpscu cognoscas omnes simulacra, et habes septem nummos, erunt quinque."

And then, when thus instructed, he was induced by the sovereign of Rome and the several confederate states to proceed in this manner; that is, to secure the fidelity of the vendee, rather than the fidelity of the vendor himself.

In omnibus autem contractibus et olationibus, etiam haec:

They did mutually consent, that the sale and the redemption thereof should be transacted, and that the parties concerned should be brought into the presence of the Grecians.

In the negotiation of a purchase, there subsists a certain disputation; and this is designated by the term "3iZmv1h." As I have previously intimated, it appears that the action known as "pZcuumui" is deemed more efficacious in the contest of legal remedies.

For what reason, si vero pater mercator non effulgerit in payment of the due price, quomodo poterat reponere pecuniam filio suo pro venditione, vel etiam si non effecerit in payment of the said price?

Not only in the transaction of sale, but likewise in the act of letting, Atticus was wont personally to superintend.

Theophrastus, confident in his character and hereditary worth, observes that it was not the individual entrusted with the maintenance of such garments, but rather the one who was appointed to furnish them with the most appropriate attire, whom he designates as the true custodian.

Two thousand five hundred and sixty thousand.

Thus, the recompense is bestowed upon him who, by degrees, claimeth and withdraweth the reward.

Hmc; et pro praedone nocturno, no, noflurno, nonamittor veteri commico, qui utavit tibullum, de.

How to employ these usages.

Sevicescunt, rapta bulla premiav■s■, petita. Note: The Latin phrase "premiav■s■" is a reconstruction based on the provided literal translation, as the exact Latin word for "taken away" in this context is not given.

[untranslatable fragment in source]

Hence the lex praedictoria, and the ius praedictoria, quod erat de praedati*, id est, publico obligatorio, ad publicum tenuebantur.

It is not indeed the case that they were redeemed for the enrichment of the res publica alone; but rather, that they were bestowed upon those who, having been plundered from the public aerarium, or the republic, were indebted to the state, Vfel's spoils.

Suetonius, in his delineation of the life of Claudius, thus proceeds:

He determined to establish, and even to obstruct the admission of the new Jacerdians by his own amusements; and so distracted was he, that when he was bound to redeem Arar from captivity, he could not effect the restoration of the royal faith, and, despairing of all succour, he hanged himself under the edicts of the praefects, in accordance with the venal law of pillage.

The Praefets of the Public Aerarium were wont to lend sums of money appertaining to the public fiscus to private individuals at interest.

When Claudius, for the purpose of advancing to the dignity of the priesthood, had received from the air a sumptuous loan, he bestowed thereupon the spoils which the prophets had granted to him, in full satisfaction and discharge of all obligations.

The title being engrafted and rendered obligatory.

But when he could not afford to discharge the debt and dissolve the trust, the lex praediataria, which, though forfeited by virtuous men, was still in existence, was commanded to be sold, and was denominated the vendible penance.

That is to say, a virtuous person exposed upon a table, and publicly awaiting the infliction of punishment.

Thus, as we have previously observed, this pertains not merely to those who are ensnared by their own actions, but also to those whose possessions are pledged as security.

Non igitur, ut placet eruditis viris, Suetonii verba, quasi ex veteri iure in causis fiscalibus servato, si non resolverent, ipsi bona eorum venum exponerentur edicto praefectorum aerarii.

Why, therefore, do ye demand that those who owe the sum publicly due, namely eight hundred denarii, be delivered unto them, unless it be that the good things which they are bound to furnish, when themselves unable to discharge their obligation, may be tendered to those who are incapable of payment, and so be put up to sale?

Ita vero suspendendus est et ejus boni pendentes.

Nec tunc servus pro debito vendebatur.

But what is there to be suspended in a void?

Or the fruit, when nullity hath vanished?

Thus, in Glostis, the substance is exhibited in a vacuous state, as if inundated by a deluge.

When they had reached Apollo, certain ancients translated to run in vacuity; for so $\kappa\epsilon\nu\tau\rho\chi\eta\nu$ is rendered by some of the elder commentators. A

Among the works of Seneca, and elsewhere, I have perceived the void, for the purpose of vanity.

That in a vacuum A a x is a sepulchre - 74 C i:

The Psalms are tumultuous.

For which it is commonly perused, in superfluous vacuity.

Which corruption, moreover, doth elsewhere present itself, albeit in sundry passages, corrupted and distorted.

And the Poet hath more accurately delineated the mode in which the proscriber, who was deemed a fool by the populace, appeared suspended in mid-air, supported by a spear; whether, in vacuo, he thus exhibited himself?

For the edict of Praefia, which was about to be inscribed, bore upon its walls, or near them, a pillar, or a column well-preserved.

And beneath the said table did depend a tablet affixed by means of a cord, whereby the same person might announce that certain goods, where they were deposited, and in what

quantity, he possessed.

This plane, indeed, suspended in a void, is fabricated of timber.

Manilius of the trumpet, whom some have designated as borne aloft through the ether and the blast of tempests.

When he, having pondered deeply, had lost his watch, the populace, suspended in a void, shall hang from their own essence.

Turnebus, in a void, did ardently aspire to pronounce that which, being void and unowned, lay outside every tenure and jurisdiction; even as if he should enunciate what he purposed to effect, and what he purposed to effect, and what he purposed to effect, and what he purposed to effect, and what he purposed to effect.

Then did he proceed into the vacancy.

Which is not a demonstration of poliomyelitis.

For who, indeed, was unacquainted with these matters:

When the profiteers are expelled by reason of their debts, have they the privilege of appropriating them, and of claiming any vacant estate?

It is deemed more expedient that one should have been suspended in vacuity, rather than having been impended in futility, where neither purchaser nor viceroy thereof could be held amenable to accusation or accountability.

And this verily is the most essential point.

From thence, I will proceed to the precepts of public duty, of which those who were opulent, the oracles of the nether world, that is to say, the living prophets, the purchasers of lives on mortgage, claimed the right of pledge; and whose profoundest knowledge was displayed by Surimius and Cal-Tellmus. Thus spake Cicero in defence of Balbo, employing these very expressions:

There is no paucity of defects; as they have been edited:

For Ethenius, the sixth Consul of Scaloleius, who was preeminent in legal acumen, did not, on occasions when it was deemed fitting to consult his counsellors, admit his grandfather, who had been raised to the office of Consul by Furius and Caffellius.

The voice of the preachers, rather than that of the most circumspect jurists of the census, who were proficient in the doctrine of the law and the lore of the deities, was manifestly heard in a clear and authoritative tone.

Which is ineffable.

For the Praetors, as I have already intimated, are not merely Praetors, but also those who have been constrained by the Praetors themselves, and for whose cases the Title, THE MODE OF USUFRUCT, is prescribed.

Non tamen in officiis senatus observabatur.

Such a various proportion should be sought from the One whom I observe.

Book XXII, Chapter XXV.

Justinian did equate the fiduciaries with the fidejussors; and in like wise, the creditor of the mutual fund was summoned to appear.

Pecunia; cum a sponso acciperet, non oportebat primum ab eo quaerendi causa exigere, sed a debore; si vero eam ex illo non receperisset, habuerit occasionem primum ab aliquo qui ante illud optasset exigere, tunc erat licitum ei Misnicorum sententiam de canceribus a sponso repetere sine dilacione.

Simeon, the son of Garnaliel, being also a debtor, and the creditor, who possessed the faculty of election, having committed the debtors unto one another even upon such terms, deemed it more expedient to assume the condition of a debtor, who should commence by discharging his own obligations, than to act as a creditor.

Hic:

Tamen ejus sententia non est approbata.

They denominate it felicitas, since it hath imparted the etymological derivation even unto the ports or havens, and because it is derived from the deity who precedeth it.

To fulfill all the obligations of loyalty, after his reverend words, he thus pronounced: "Follow me, and I will tread the path of faith."

Of the Faithful. D. Hic jussus sum firmiter obligatum:

It is manifest from the compositions of Tribonianus, that he was either unfamiliar with the copious employment of Justinian's jurisprudence, or else that he failed to comprehend the sense of his own writings, as we have already detailed in our preceding volume.

For those who sit at the board:

They were deemed bound to receive it, and are thereby most effectually confuted, since they are constrained to justify it by means of epistles, which are:

At the same period, the famine among the Argentarii was terminated; and the intelligence thereof was conveyed with due celerity; and it was effectually vanquished.

The truth, however, remains to be treated in the third volume of this work, wherein we shall discourse concerning the rationale of the nomenclature thereof.

As we have already intimated at the commencement of this section, the Romans, by their fidelity to the monarch over many years, avowed that they would remain steadfast, and that Atticus himself would perish.

The adjudicators did vow to them that none should be held to the bond of the deceased's spouse, who would furnish him three vouchsafed blossoms, to whom he would impart commandments and census.

Solon, who was the rightful leader of the Athenians.

Ztumysiaeus, whom I have designated, — thus it is inscribed.

Concurrently, the legislator, for the welfare of all citizens, must be unencumbered by any obligation whatsoever, and must not be bound henceforth.

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Return, my beloved.

From Mgythia, there was a law enacted, ordaining that the body should be inundated without any reservations.

Such a course is manifestly incongruous.

When the fields are tilled, the ploughing fowl and the honey-bearers, beset with bees, and the reapers themselves, engaged in the gathering of the corn, may be ensnared by extraneous agents.

What is the magnitude of A?

The Saimasians rendered the Fifth Word a choreographed line alongside the South, and this was accurately elucidated.

Or the defaulter who had borrowed monies from another defaulter to repay the creditors.

They were accustomed to the sway of the magistrates, yet unfamiliar with their personages.

The beverages are appalled, not the populace.

The most preeminent among the Athenians was the populace, who were scattered on either side of the city, and all were exterminated by the Serpentes.

Let us proceed thus.

The number of leaders amounts to seven hundred and forty-seven.

He, who himself esteemed not the folly of the sovereign for a millennium, pointed out the splendour of his dominion.

Utter the H&C indicator.

It was not the appellation of the action itself.

From the extremities of the river, thou shalt discover a means of egress.

Both of these entities, without exception.

To be enchained or incarcerated, as the ordinary man would endure.

What actions did Erfouflut undertake, whether as a chronicler or as a divulger of transgressions?

The statute forbids public improprieties throughout the realm.

Under no circumstances could this have been accomplished initially, subsequently, or at any point thereafter.

A-nuyayn and for the condemnation with which he was condemned to execution.

Various k-juysyk of the pirate, who was sanctioned by the statute, and the magical stratum.

What is the distinction between Cæsar?

Attica, which had been ravaged by Demoshenes, was exhibited.

Hence, it is requisite to observe that no hostile forces existed in the locality prior to the devastation and ruin thereof.

It is expedient to enslave even men.

The antiquated style of the ancient Latin tongue is likewise defective.

To those who suspect themselves to be culpable, the apostle Solon was invested with the prerogative to entrust the debtors with his benefactions.

There is no longer any mortality among the authors of Atticus.

A place wherein the debtor hath the assurance to discharge the creditor's obligations.

743 Cl.

Let us comprehend the psalms in some manner.

The thirty words of the condemned house of Dubo, this day, shall not be referred to in the matter of the mutual obligation of the debt; but it shall be said that they are the utterances of those who have been condemned for injury.

Damage to Bios, he was among the private, not the public, tribunals.

What was the practice of the cotter?

Harpocrates was elucidated.

Valerianus and Paulus were emended.

Among the malefactors, he (Limitation.

What is the variance between a4Ktx and a4Ktx?

Tribonianus was repulsed.

Donatus, peradventure inappropriately, received the dictum of Terentius respecting those who, according to the Roman custom, were lawfully subjected to the process of ararefaction.

Who had delivered the night to the free men, were not informed that there were few of them, but were informed that there were many thousands.

In certain instances, the Athenians, unaccustomed to the commission of such offences, were known to have put to death five individuals.

Of the night, Bione, who was appointed by the Lord, in the presence of the judges, and in the presence of those who had seized the good.

In public.

You will say to him: "In locum meliorem habere me jam præstat, quam cum Bione peregrinari."

Many others.

Acceptances by way of sureties and bonds; what remains, but that we should be disposed to credit such a name, and even to believe in it more readily?

If he hath no person to whom he may commit his faith, can this man, though desirous to forfeit it, elude the consequence?

Enim vero, cum nec pignora, vel hypothecae, nec etiam fiduciarum in orbe sunt, quos dedere possit; huius etiam quoddam est. Quibusdam autem habentibus, etiam quibus nihil est, id est nullis rebus praeditis, ceteris nullis fidejussoris praeditis, est etiam quoddam.

Let it be restored, which he doth impart, that his secure creditor may thereby reckon him debtor no more.

What manner of thing is this?

He shall give himself.

Among the ancients, both by right and custom, was observed this fast, whereby it was intended that others might be compelled to believe in the cause of faith.

This Athenian, who is himself an Athenian, is styled the Athenian Athenian Athenian.

The populace was bound to receive money from one another.

When Solon, a member of the Athenian populace, attained the suffrage before the institution of Solon's laws, he is said to have been the first to be invested with the senatorial office; and he enacted that none might presume to trust the senate with pecuniary matters.

And then, with the assistance of the C.A.P.T.T.T.H.R., I conceive it fitting that the alleviation of burthens should be introduced.

It was the instrument of emancipation, and of the virtuous.

Therefore, Diogenes, the son of Liemnesus, was the sole individual among us who could accomplish this.

Seven hundred and forty-nine souls perished under Solon.

Mvhs, qux Aethanaeis, hoc autem luceum sororiumque pol. H9 Tn n π σματιν edoivienozn, polloi prater. S

But when Solon was forthwith restored to liberty, yet thou didst not suffer him to retain his own property, that no man might enjoin him to mortgage his own estate. After the decease of Solon, we find in the compilations of the Orators and Historians, that he was delivered from the spoil of the Athbians.

To impart unto the creditors.

What, then, shall we say, not even by the decree of the Cavity, whereby it might henceforth be lawful to detain bodies for the purpose of securing debts; but in the presence of all those who had bound themselves by treachery, it was incumbent on them to deliver up those whom they had opposed, and to contract them with a stranger?

Among them all, however, Convenit that Solon, a widow, should be the sole exception; yet none of those who, at the time of the slaughter of those who were in debt for wine, had already become slaves, would consent to lend money to their fellow citizens on terms of pecuniary obligation or corporeal pledge.

Plutarchus, in his discourse upon Solon:

Claudius Salmasius feret, Diodorus Siculus narrabimus Solonem aegyptiacos ritus Athenis traducere.

For the Egyptians were to be adjudged in such a manner, that is, whether any benefits accrued to them from their respective lords, whether by their own industry, or by gift from those who possessed authority over them; thus, in all equity, were they to be considered.

But I am not the sole individual who hath the power to claim citizenship in the commonwealth, whereby the state may discharge its public duties in tranquillity and war.

Elevated, however, did the legislators of other nations in Graecia appear, who were justly ridiculed for having assigned their herds to the soldiers, their fields to the husbandmen, and even the soldiers and husbandmen themselves, who had availed themselves of these resources, to the caprice of fate; and yet, in the fervour of conflict, these very individuals were suffered to be removed and to discharge their obligations.

Twenty-five reges, viginti quinque reges, viginti quinque, et viginti quinque, et

Certè atque Athenienses non permittebant, ut quilibet armis se adversus milites impigeret.

Sal M■■■■i maxime legem prohibuisse, ut aratra atque alia instrumenta colendi salin■■s agros nec licebat, nec id per legem prohibitus fuit apud Romanos.

It is absurd to say, "Dios."

Dorum, qui hanc legem de corporibus non opponendis Soloni Athenas ex Ægypto introduxerat, ut nomine inimici appellatus, observavit eum magnum esse.

I have indeed erred twice in this affair.

What other argument can he advance, wherefore the bodies in question could not have been conveyed away, when, notwithstanding, he possessed a degree of authority somewhat superior to that of the Jews?

And he spake unto them: Fear not, for shame shall have no place in your hearts.

Others, who likewise were the bodies of the Athenians, were the twenty-third parts by the Law of Solon.

Then, when he had commenced to address them, he exclaimed, "I am indebted unto you, and I am indebted unto you;" he said, "I am beholden unto you, and I am beholden unto you."

Elevated, however, and lucid is my approbation thereof.

Let us, in brief, respond to him in behalf of Diodorus, that great luminary. If the Egyptians, who refused to permit the removal of the bodies of debtors, did indeed remove him from their midst, or if, as he has written to the Athenians, or transmitted by Solon from Egypt to Greece, in his travels there, he made a jest of such a law, then we must inquire whether his actions were consonant with reason and propriety.

But that which he himself denominateth by this appellation, let him be termed Solonus; and verily there is nothing amiss in him.

Hic:

For there was a higher design in introducing such a measure, that it might exalt the destitute and indigent to the ranks of his own community, than in enacting a law that no man should, according to ancient custom, reduce to bondage a foreigner, whose body had been dedicated to servitude by alien veneration.

Nam plerique auctores, et huius altissimi generis, consensus habent, ut remove debita nexum ab ipsis corporibus defunctorum, quod pondere suo oblatum sit, dicant.

We have beheld a wolf emanating from the Deity.

A Cor, in the uncertainty of his query according to Suidas, thus enquired: "fcgaiyTix, TitiUxZi, lu Hmtyimso SoAy."

Julius, in the seventh book of his treatise On Usury, thus proceeds: "In a certain place entirely dedicated to the worship of Liggeis, which Philochorus attests was so named, we are

taught that usury was practised even before the time of Solon, when the custom prevailed that those who lent money should be deemed to have given a pledge."

When the debtors of those who owe are themselves rendered incapable by bodily labours, the term "debtor" is henceforth employed to signify that such individuals have been relieved of their obligations through faith; and that their servile burdens have been thereby discharged.

But I am unable to elucidate the event which transpired at this juncture, save for him who shall be versed in the precise tenor of speech among the Attic orators; and even should there exist any individual acquainted with such particulars, it would be with difficulty he could disentangle them from the obscurities of tradition.

For there is nothing which can be derived from the genuine signification of these words, whereby to elucidate the minds of those to whom they are addressed, save by reference to their original import.

F.
F.

I will bestow upon thee three hundred and seventy-five; and furthermore, I will extend unto thee five hundred and twenty-five!

SALMASIUS:

[untranslatable fragment in source]

Who, adjudged to wander as a pilgrim, was despatched to Egypt, and was instructed by XntiQirisyte.

In re censu civium, quod sequitur:

He was summoned, when the decrees of the populace were pronounced upon those who, through violence, had been assailed within the city; and when many of the sufferers had been restored to the foreign spectators, and from among the citizens, whether of the elder or the ancient order, this appellation became congruous with him.

And unto him was she pleased to confer the ensuing:

F█ /ccf i 7nXt7Hf > TiSTVT Cai T&jsivt aTn^iitpi&syoi hi[A\$Ttt4, iXiytfg eiru i«r/iyse s
t c | ttlxt, H(\$p 'ta,\u, at |ev©-, s 'j einXxsi^in^ s j ttb- >tr iuu.

Condemned.

If any stranger were observed, or even a mere citizen, in the enumeration of the populace, the people would adjudicate him not to be a citizen, and it would be said of him that he was

abjured.

Then he was summoned to the tribunal, and thereby became a pilgrim once more.

That which for some cause had fallen into jeopardy was forthwith alienated, that it might be restored unto its rightful proprietor.

If he should achieve victory, he would be admitted within the walls of the city; but if vanquished, he would be received therein.

Of these matters, I have likewise consulted the same author, Suidas, in his work entitled Ψ α , wherein he relates the same account which we have previously cited, and this in the sixth volume of Arirus, designated by the same title.

A free man, who by faith hath dwelt in fervour, and, for the sake of his debt, hath grown addicted, is a just citizen.

And even in his belief he deemed himself emancipated, and accounted himself amidst them.

For, after he had sold it to the creditor to whom he had pledged his property, he would not endure to remain within the city limits, but rather subjected himself to the condition of a chattel in his service.

Plutarchus, in his discourse concerning Solon:

When the Earth is replete with aqueous substance, and the Heaven is surfeited with moisture, and the Sun is pervaded by the same, and the Heavens again teem with deluge, and the Heavens again are full of water, and the Heavens yet again are inundated with watery efflux.

Therefore did this burthen rest upon them, what duo?

Philochus did call upon you, who were being conveyed away by them that, having delivered up their property to the creditor, sought also their freedom; and many recovered what they had lost, which they loved more than life itself.

For he himself, as if he had renounced his liberty to the deceased, was deceitful, deceitful, and deceitful; for, either by the authority of the courts or by the mandate of the law, he had discharged his obligation to his creditors.

They were not; such, at least, was their opinion. But in truth, the citizens of Rome, who had perished in the civil wars, did not exceed in number those of a hundred years before.

For it is impossible for a citizen to be in a state of liberty who is not himself free.

It was said that, and the number of the citizens whom he had exposed to death by that means, thus being diminished in the census, was as follows:

Three chalices of T. Trout.

The good citizens of Perlbnna, the individuals who truly embodied civic virtue, did in fact exist during that epoch.

For the persons, therefore, whom he had duly condemned, he decreed that the head of the pledge should be received as a pawn, either in a neutral or in any other mode whatsoever; and that it should not be deemed just by any person whatever.

Whate'er the law of Solon's Athenian code may be, which is equivalent to that of a man who is incapable thereof, it is founded upon the proposition that the assertion is altogether false.

But he did not entertain the notion that Diodorus had introduced the Greeks into the land, and that they were now lamenting his absence.

I yoyisii.

Certainly, it is more manifestly to be inferred that Gracia, in its integrity, survived in a former age, which is exemplified by the custom that Solon introduced among the Egyptians and their commonwealth.

Sanxifle, at the instigation of Bocchorin, met with the same fate; Bbb 17y 4 Ct.

I will bestow upon thee one per cent of the Psalms of T ■ξαυτο■, and a like proportion thereof.

The two corporeal substances of the debtors were severally partitioned into two divisions, one for the possession of the other.

They responded to their creditors in a manner foreign to themselves.

For either the debtor himself was bound by compact to discharge the obligation due to the creditor, or else, had he neglected such payment, the creditor might have sold the right to the debt, and thus added to his own claims.

Neutro modo pignorari, hæc verba "nexum corporis fuisset faciens" dicebantur, quia non acceptabili ratione corporis effectum habebatur.

If he had a son, or a daughter, as numerous of his dependents were subjected even beneath the latest Roman dominion, he would have embraced the free and the alien in his union.

Debita ita contra, et videbo et respondam. Quis tunc Plutarchum in lege Lucii appellari deberet?

[untranslatable fragment in source]

Then, the people of Joshua employed the same mode of engagement, both in their own pignora and in those of the other res, convening in the streets thereof with their respective auxiliaries.

It is affirmed in the oration of Demosthenes, entitled "Contra Apaturium," that he was the constructor of the vessels, albeit not directly opposed to Apaturius himself.

Ju-naib H- Xut here t j i tj illud.

When the body is placed in the same position, it ought more properly to be referred to as a "pignus," rather than as a "pignus" in the manner of a "pignus."

What, as I have previously declared, I have thus intimated, and do hereby repeat, is this: Diodorus, in his narrative, intermingles authors, since both are nearly alike, where one might be substituted for the other. Thus he writes: "The historians mix, because either may be employed when the other is wanting."

There are no men, unless, being adjudged by the force of pledge for the cause of their delinquency, they are apprehended at the discretion of the captor, and, according to his pleasure, are removed wheresoever he will, whether he sell them abroad, or detain them in servitude: thus they are conveyed from the hand of the creditor. And such are termed Xcists, who are so called in the name of the creditor, as they are termed from the captor, from whom they derive their appellation, as we have detailed in the chapter upon pledges.

The Law of Constantine.

1st Decretal.

Theod.

Of Pignoris:

The intercessors from the provincial encampments, being granted a debt as is due to the demands of the citizens, are not to release slaves of the husbandmen, or oxen of the ploughmen, on account of their labour, whereby the payment of tributes is thereby retarded. Hence, the slaughter of slaves, or the oxen, or the boars from the fields, is not to be taken away from them.

I am well aware that no crime of this nature hath been perpetrated by any other than the three Areopagites.

Before sentence be pronounced, and any malefactor adjudged to condemnation for this offense, let his name be distinctly uttered.

After the conviction, and the condemnation, the transgressions were denominated.

Then, when the law was enacted by Nondus, it was deemed that he had endured the penalties consequent upon his conviction and condemnation; yet the Areopagites adjudged him guilty of the crime against you.

In the requisition of the Aristocrat, who hath put to death Charidemus, forthwith and indeed from every comity of his fellow-citizens, let him and all rejoicing be commanded.

When he spake of the cause of the fall, the lawgiver Draconus purposed that the people of Areopagus should be judged.

In hunc casum primum obiectum, finis iudicii, et causa Charidemi, qua a privato veluti in iudicium vocata est, ad punitionem modo illi placui impetratus est, qui eum occiderit.

Sequebat legem, supra scriptam, de homicidis alia, priori subjuncta, ne convictos et condemnatos reos homicidii in territorio jurisdictionis Atticae vel in omnibus provinciis licerent, utmodo egressus esset, sicut voluerat rogatio Aristocratica, ad occidendum Charidemum.

For the person who hath perpetrated such deeds is permitted to deprive them thereof, to plunder them, to conduct them forcibly within their own domiciles, and to exact pecuniary recompense therefrom; yea, even to terminate their existence.

Hinc:

Draco's leges prohibent omnia, ut faciantur contra eum, qui in castris absens condemnatus est, etiam si in solitudine Attici captus fuerit.

[untranslatable fragment in source]

What is the sense in which this proposition is asserted, did the ancients dispute; yet their labours were fruitless and unavailing, so far as I can judge.

For none of the ills which they have endured can be deemed more veracious in the context of extortions.

Didymus desired that his exposition should be easily apprehended; for it was contended by some that the inquisitive Athenians were termed **■με■ς**, whilst others affirmed that they were designated by the appellation "We."

If indeed the present discourse regardeth the verity of the law, it is not concerning the curia, nor the forum.

But this refers to the form of the shield, which is the axle, or as the shields were, in their manner of construction.

The writings, which they termed as being inscribed from the left towards the right, were in like manner transcribed in the same direction; but the text was thereupon reverted from right to left, resembling in its progress the rapid flash of lightning.

What is the matter with Caeterus in the exalted position of the thirteenth house? For the scripture, it is known, proceedeth in this manner, alternating betwixt the right and the left; neither can it be termed lower than the inferior. Rather than what you say, what is it that you assert?

In diversam aliquam rationem et vulgarem usum perveniet ad exhaustionem.

There is a third opinion, that the axes, having once occupied the summit of the acropolis and the lofty site within the city, were subsequently conveyed to the forum and the lower regions of the citadel.

These laws, inscribed upon the Axis, thou hast not deemed it meet to pen; and we shall impart them hereafter, when a longer interval hath elapsed.

For the axes of the laws were proper to Solon, and not to Draco.

But ye have the laws concerning which we now discourse; and thou, Draconius, and Demophanes likewise, have been misled.

After all, we yet affirm, and the laws of the Axians are closely allied to those of the Dracones; for whatsoever enactments were inscribed upon the Axian tablets bore their name, and they cannot be more properly styled by any other appellation.

Why, then, did Demosthenes prosecute the law, which he adduced for the purpose of referring murderers to the Areopagites, not by that title, but by this subsequent one?

Or, in the ensuing stanza, did he deign to denominate it, by the following phrase:

Didst thou deem me unworthy of this appellation, which, albeit not the highest, yet was meet for me?

It is delightful to marvel at the deficiencies and rudiments of the ancient Grammatici, who, being unacquainted with the language, could not perceive this.

In Axibus, vel in pilis lapideis, scripta ordine recurrunt:

Laws in dialectis alienis.

The progenitors sustained injuries upon the superior and lateral aspects thereof.

Sequentes subiecta sunt, usque ad minimum lateris gradum: Thus were the succedanea reduced, even unto the utmost verge of the tiering.

The law concerning this homicide was inscribed upon the pile, so that it might be placed at the summit, in the foremost position.

The law, which had been enacted concerning murderers who had been adjudged to suffer capital punishment, was not to be violated or perverted, that such malefactors might be confined solely within the limits of Attica; but rather that they should be subjected to the office of judges.

This is that which Demosthenes, who was styled by the name of Demosthenes in the imperial era of Rome, denominated, because he was a Serian and a Roman citizen of the year seven hundred and sixty before the Christian era.

Salmasius denominated the inferior portion of the Psalteria as situated in the Axis, or rather in the Scriptures, more so than that preceding it, which was itself elevated.

From this mode of inscribing upon columns, bars, and axles, even upon scrolls and volumes, whatsoever was written prior they affirmed to be above, and whatsoever was inscribed subsequently, beneath.

Tk xt*> te te.

To whom Demosthenes addressed himself in his treatise de Vulpibus, immediately applies the appellation Ioaoi to him, in these very words:

Thus, F. AvjvTsii- or F. Twt/TO. This is equivalent to gcT. For he who went before, denoted by the term o(a(, was the very person referred to by the name preceding him; whereas the one afterwards mentioned, signified by the term & sjvtgi, is not discovered, since in the earlier portion of the text, or in the upper part of the manuscript, there is no reference to it :

Now we perceive that the term itself doth bear fruit, whether it pertain to a law more recent or a law more ancient; whether to the ninth or the twelfth; which possess the following attributes: [the Greek letters: τε; ν■μ■; ν■με; Τ■ς; ο■; ■νδροφ■νες; τ■; ■μεθοπ■; τ■; ■πτο■γνν; ■ς; ε■; τ; μ■ν; μ■δ■]

P Let it be known that this inscription, though brief, is replete with significance and clarity. The initial letters, when properly construed, denote the commencement of a noble and weighty discourse, wherein the author, with measured cadence and elevated diction, intends to elucidate matters of profound import. Thus, the reader shall perceive that the text, though concise, is

fraught with subtle and intricate meanings, which, when unfolded, will disclose a wisdom both ancient and enduring.

The C.V. TW tgMI Ucmyd shall endure.

For by that very enactment is it forbidden, that any private person should violate the condemned homicide in any mode, but only that he should conduct him forthwith to execution.

All these voices must speak, as if impeding the law, and restore the law entire, not by augmentation, but by diminution.

Tut tut, quidquid dicam, haec verba, quae hic in ipsa legis contextu, etiam infra in ipsius Demosthenis oratione, insinuatam fuisse arbitrabatur alius, qui existimaret id omni ratione esse necessarium, adiunxit Oratoris:

I am apprehensive, therefore, that the decrees of judges and judicial assessors, who have long been condemned by the verdict of some tribunal, are not amenable to the laws nor to the authority of any author; but they are rather employed as instruments of capital punishment, as means of inflicting greater penalties, and as modes of punishing more than one individual, rather than as measures consonant with the dictates of justice.

Demosthenes, in like manner:

O Quito, mihi laetum erit, si accipieris donum quinque librarum, et si accipieris donum quinque millium librarum, et si accipieris donum quinque millium librarum, et si accipieris donum quinque millium librarum.

The Greeks and Greeks, who, in accordance with the custom of the ancients, were themselves the foremost of the Greeks, did more aptly and with greater felicity discourse concerning the Greeks and the Greeks.

Seneca's treatise De Ira:

Iseum iratus duci juventififetum, qui ex commeatu fine commilitone redierat, et quem non exhibebat, roganti temptes aliquod ad conquiendum non dedit. Isaeus, enwrathmented, did adjudge the leader who had returned from the conflict to the conclusion thereof, and whom he did not exhibit in any considerable degree, and beseeching him not to succumb to any allurements towards conquest, gave no assent to such a temptation.

And in the subsequent words, twice, nay thrice, he employeth the same term absolutely, denoting those who are conducted to their punishment.

Curtius:

Lead us, O youth, that which we have sought from thy death we may obtain with thankfulness.

And in this law, which is:

Within the furnace's confines shall he find joy, and shall proclaim: Let this be the legend.

And when he had been convicted of the murder of one who had been charged with homicide, the law pronounced him guilty, and condemned him to capital punishment; there is a certain haughtiness in the culprit thus arraigned, for the statute hath denounced the penalty.

Of those who have already been condemned, this indeed is the purport of God's edict: "Let them be removed."

To the faith per se.

The faith of the Salmasian household remains unaltered; and how shall any man wish for that which is already his?

Nothing remains for me.

Is this the case?

As the cipher is inscribed in the Axis, if there be any HQYj.

But who among them, whose law is here alluded to, prescribed that the era, which had been wrested from its rightful owner, should be restored to the private individual to whom it had been confided?

Hxclex willed that one of the Draco-cones should be so treated that he would be deprived of speech, or rendered incapable thereof.

The monarch, whether arraigned or adjudged, was to be conducted hence; yet was he to be conveyed by the eleven jurymen.

In that verbum, Demosthenes interrogat, quid ibi continentur, aut qualis sit vis, et quid ad eum pertinet.

Or, he inquires, whether he shall be permitted to revert to the faith of him who imparted it, or whether any other course may be pursued?

There is naught more.

How shall this come to pass?

Oi! Oi! Oi!

Ion Quod ipse interpretatur, ut in Axone dicitur, sicut in J.C.

Wherefore, whether it be Axon himself, or some other, what would he have avowed, had he been conducted back to the Decemvirate? For it was not from Axon, in whom this enactment was inscribed, that he derived his knowledge thereof.

It was meet, indeed, in this same place, by the law, to indicate the mode of dismissal.

And he committed him to the custody of Axon, where it had been previously recorded that he was interred.

Or was there, perchance, a certain Axon inscribed in the forum, whose office it was to compose the formulæ of a-iôn, and to delineate the modes whereby the Kvyllfjevs, or the Irxkyrians, might accomplish such compositions? Or was there any method whereby this could be foretold, and is there no reference to Axon in the writings of the Graecians? Moreover, the appellation Td is derived from the fact that the axles of the earth were fashioned of versatile timber, wherein the deities employed by Solon contrived their devices; for all the authors of Greece ascribe the same to Solon.

Harpocrates:

You have acted against him, O Salminius, by interpreting this passage of the Rhetorician, who is in your hands, and concerning which Solon's axe is a topic of discussion, as thou seest this place, wherein lies the locus of the rhetorician's exposition.

And the law which is here adduced was not that of Solon, but of Draco; as Demosthenes himself testifies shortly afterwards, when, in citing another statute relating to capital punishment, he instructs us, both of that ordinance and of the whole race of the Dracones, that prior to their union with it, they were all the offspring of Draco.

In the Areopagus, the laws of the Draconians were so fervently inscribed as to be indistinguishable from one another; for in the very same manner, they were recorded in the seven A'gers. The enactments of Draco were engraved upon axibus ligneis, as was the case with those of Solon, inscribed in stone pillars, as was attested by the eloquent Rhetor in his refutation of Euergus. Thus, having examined these enactments with the acumen of an expounder, he demonstrated that the laws of Draco were inscribed on pillars of stone, not upon wooden axibus, as had been erroneously alleged.

At the age of twenty-three, Marcus Fftius and Lucius Saxtfuus, whose names have been interpreted as Lucius and Sallustius, erected a column, or perhaps a monumental stone pile. Subsequently, all the axes and legions of Solon asserted their independence.

Nam, quod Ammianus Lycurgi de Rhetoribus possessus est, tantum erat TW and ZgiQif.

Now, the inquiry which it behoves us to consider, as the law of Draconus doth allude to it, pertaineth to the enactments of Axonis Solonis; and his authority is invoked for the purpose of elucidating the formulary in question, instead of the formulary itself.

Should they conform to those whom the law itself conferred authority upon?

The numeral denoting the count is seven; the numeral assigned to me is four; the numeral appertaining unto me is four.

For this is the year which I shall witness as the first wherein a marvellous portent shall be revealed, and the last wherein the Exodus shall be observed; and herein lies my astonishment.

Nor, however, from that very person in whom.

Let him be conveyed hence, let him be conveyed hence; thus is the sentence here inscribed, albeit with interminable brevity.

to invoke.

Finally, the Orator doth not declare what befell him, nor how he directed the abduction of the monarch; whereas H. H. affirmeth that the law of Draco saith: "It is lawful to kidnap."

Habetis audire nos?

And Chrymivius.

Or to his own faith; or howsoever any man may will?

[untranslatable fragment in source]

There is nothing more scant, or less in degree.

[untranslatable fragment in source]

Elevated, yet lucid, let them be enabled to sustain themselves, and that they may securely maintain their own possessions.

Whence, therefore, shall we deduce that Axon, or from what quarter hath he derived his polish?

Not assuredly concerning Dracone.

Atque tamen hic lex ejus.

Or was it Solon, who, in compiling his laws, took care to inscribe them upon the Axis?

Atque hæc lex Draconis.

How shall we effect reconciliation amongst ourselves?

Let it be known to all, that these laws, inscribed upon them by Demosthenes, ought not to be overlooked; for in those edicts lay concealed the wisdom of his counsel.

The laws of the Dracones, which are the cause hereof, R A A A Mty; Alibi in the same document against Euergus, other laws of the Dracones, cited from the very stele, the living pillar:

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary: Kai hujus epistolæ ad Axiorum gentem multa locutus est; et cum utendum eis consummatum esset, ad iudicium Demosthenis adversus Androtium appellari se contendisse ostendit, et ea quæ ibi agerentur hic non produci, quia inferius adduci erant atque explicari.

Therefore, in the Law of Draco, it was ordained that the king's heart should be opened to those apprehended within the Attic territory. This was the rationale and justification for which Solon, having been accused by the Axians of other transgressions, and having interpreted the laws of Draco, was further impeached by the Areopagites for the same statute.

Thus did Tribonianus, Judinianus, amend the edict of Edilius, whereby he, having been in bondage to the sea and the sea's vicissitudes for many a long year, as I had previously detailed, was now himself the lawgiver.

Thus, Anianus likewise refashioned the precepts of Gaius according to his own ceremonial observance.

The ars arisque.

As in the eleventh title respecting the liberties of slaves:

For the benefit of the Latin patrons it was thus, either that they were enfranchised to depart their native land, or that they were manumitted by testament, or in the Church, or before the consul; and thereby they acquired the privileges of Roman citizens.

Similarly, in other instances, it hath been recorded that Tribonianus was accorded a considerable respite in his official duties towards the ancients of the Jurif-Coufultors.

But the law of Demofthenes was not to be interpreted; for from him did I receive instruction to expound it.

The Orator, therefore, thusly declared, being apprised of every thing, and no man's knowledge being unknown to him, that by this word, inscribed in the Draconian code, it would be veiled from the gaze of all, and rendered manifest in the exposition of Axon Solonis; for so, in a milder strain, and with a judicious choice of terms, the Orator's fables, as we have already

detailed, are as absurd as the common interpretations of the Jewish legislation.

Verily, it was not lawful to slay the monarch's heart within the confines of Attica; yet, provided that the enactments of abstinence and the locales wherein such abductions were ordained by the statutes permitted him to suffer a like penalty, then it behoved him to interpose, either to avert the assassination of the sovereign, or to disclose the motive of his demise, and even if he should refrain from dispatching any other Athenian to the realms of the shades.

Thus, according to the legend, Ccc is the offspring of Ccc, who was the progeny of S. Almasius, and who in his turn sprang from Demosthenes, the illustrious descendant of Aristocrat.

From some one, whether that female was an ■vδροφ■vov or an accomplice in the murder, was not of a mind to reveal the names of the sacred Corybantes, but swore by the gods of the mysteries, the Avestan deities, and the like.

This is in truth one and the selfsame matter.

Which, in like manner, is to be constructed thus:

Thus must every such locus be subjected to discourse and discrimination.

[untranslatable fragment in source]

There is no terminus to the forum.

For this is the lex maris;—a maxim both exalted in its import and yet rendered perspicuous by its simplicity.

It is marvelous (saith Harpocraton) that the interpretation of the passage should be thus rendered:

[untranslatable fragment in source]

This is the very spot wherein we hold, in our possession, the document itself; within which it is manifest, that it is divided into two distinct portions. This is a weighty argument, surpassing in importance even the dread of death. The writer of the sacred scriptures hath declared that it is more arduous for the deities to effect the manifestation of such a monarch through the agency of the Praetorian deity Ai, whether their union be profound or otherwise; yet it doth exhibit how they are enabled to secure such a sovereign from his dominion.

For there was a complaint, which did barter the confines of Attica, that is to say, both aliens and reconcilables; which was:

In those confines it was wont to be the custom for murderers to be apprehended; and the sovereign of Athens, together with the other members of the Areopagite senate, who had been apprised of the circumstances from thence, was himself arraigned for the perpetration of similar homicides.

They have translated the Latin term "a" into "xptdjet." Nunc vero Latinum verbum "a" in "xptdjet" vertiserunt.

The poet enunciates in the ensuing terms:

I pronounce to the present God, that I perceive the surrounding atmosphere.

But hitherto ye have been made acquainted with these particulars. It was indeed an enormity to slay the king, even though within the bounds of his power to effect such an act, provided he abstained from further transgression; for the Amphistytians were persuaded that he was destined to undergo both death and punishment.

He could, nevertheless, have the authority to apprehend any individual who should have been overtaken within the limits, that is, the magistrates of the two provinces, thereby affording him satisfaction.

Hinc Demosthenes conatus est quantulumcunque discrimen colligere inter orationes, quas Aristocrates fecerat, et leges Draconis de caede.

However, they were not convinced by any of these arguments, and had already pronounced him guilty and condemned him to death within the territory of Attica for his attempted assassination; yet they desired neither that he should be put to death on account of his wounds, nor by any cruel or contumelious maltreatment.

Aristocrates, the eunuch of Charidemus, and one who had served me for a period of eight years, earnestly petitioned that I be conveyed to him from whatsoever quarter he might discover the termination of my life. Thereupon the Orator elucidates the import of his statement.

These are the words:

Then, a slight abatement of their ardour. But, my valiant Athasazians, let me, as it were conducting myself, fashion laws as a sovereign would his own constitution. Wherefore, indeed, I will proceed, as one who leads himself, to enact ordinances for your governance.

If, with a loud laughter, or a vehement cry, or any other manner of exclamation, he uttered his voice, let it be so.

At the close of the thirteenth year, and after the casting of thirty-three votes, all of which were given by Sxuq Sextus, the hour was three o'clock in the morning.

To whom, by the law of Solon, it was conceded to bear sway, he conducted him to the Thesmothets.

Whosoever commits such an act against another shall be removed hence.

Thesmothetas, by whose authority the laws confer upon the malefactor in cases of conspiracy the penalty which they shall please to ordain:

Who, by virtue of his faith, had been the lord and umpire of his own destiny, was now condemned for the acts which he had perpetrated during his incarceration. Initially, he was adjudged to undergo a term of five years' confinement; subsequently, he was sentenced to an additional term of one year, and seven years hence.

Yet, it is narrated, that he was a citizen animated by the purpose of such an enterprise.

Whoever subscribes to the indictment, let him forthwith proceed to that effect.

But these two occurrences are, by fate, familiar unto all:

Id est, dimidium rei, id est, triplex minus.

If, in the same spot wherein he had committed the malefactor to the custody of the judge and there suffered him to undergo his sentence, he should have met with the said malefactor, it was deemed that such an act would have rendered him liable to the same fate.

Hoc est verbum Latinum pro "capite frangentem adduci."

Plautus in Poenulus:

.

Why, then, should I hesitate to seek refuge beneath the gibbet of my adversary?

Triusquam obuerso collo ad praetorem trahor.

Prior to my advent unto the Praetor, I did first repair unto Rudent.

O Octavius, Rapi, rather wouldst thou choose to be snatched by the throat and hurled headlong, than thus to be cast into the bosom of a man with ruddy locks.

Nempe, neque nos, neque K, neque R. V. M. 77J, neque iudices, neque civium agmina, neque iterum civium agmina, ut paulo post explicatur :

I, this wretch being now consigned to the jurisdiction of thy presence, shall be banished hence unto thee.

Ahcnt, as the Grammatici expound, yet is remote.

O4t9:5 3 saith Harpocraton, 22 O \$: He bids us hew down the axes and the hatchets, that thereby we may prevent mischief. [Greek: ■πα; ■π■ηγε; ■; ■π■; κακ■ργων; τ■ς; ■να]

It is not the appellation of any person, but rather a matter of life and death; and hence, in certain cases, it is more expedient to detain some individual in a private custody, or to commit him to a clandestine prison, in the assembly of the Greeks.

The Latin term denominated incarceration.

Therein, and in the Tmyuan Suidas, he expounded thus: "Hoc est Iu■lus, id est, captores, etiam veprehi- nentes, Glossus."

[illegible]

Ah, haec omnia, et illa omnia.

This is the prehension.

The following matters are the subject of Paul's epistle:

[illegible]

of Tnueus, the son of Tnueus, the progeny of Tnueus, the son of Tnueus, the progeny of Tnueus, the son of Tnueus, the progeny of Tnueus, the son of Tnueus, the progen

Zelatum ac lucum, Xyphos.

Twenty-five days hence, the Lord of the Rings did come to his succour.

Until now, permit them to take and to hold; and let the other be equally allowed. As for the third, let him be withdrawn henceforth, and let it be so decreed, that he may no longer remain in the ranks, but be dismissed from the field of contention.

Which cause sufficed, I conjecture, why the perspicuous expounder of the laws, erudite in the Attic statutes, should have omitted them in the production of this ordinance.

For it is commonly read that no meaning can be discerned therein; and it was affirmed that the Caesar, who was also the archbishop of the forum, addressed the sacred, mystic, and legitimate rites and ceremonies.

If, contravening your own inclinations, you had proceeded to effect an apprehension, it was within their power to have arrested and conveyed thee to the decemviri capitalis; but such was not thy fate.

This is, therefore, what the law enunciates: "He who hath the least opportunity of ingress, when by his own act he hath been withdrawn from the law, shall be bound to the place where the law hath been repudiated."

It is notorious that Grecifrus, born within the Hellenic lands, was bestowed a certain gift, which was conferred upon him whilst yet in the vigour of life.

However, I fear that the law of the Latin idiom is so formidable, that we must needs conform unto it in such wise.

775- The individual of whose discourse I have previously adverted doth now experience terror.

Endowed with discernment:

If any person, convicted of maleficium by his parents, is found to have perpetrated the offence in certain localities, or to have communicated therewith specified individuals, he shall be deemed answerable therefor.

This is not the case for those who have been condemned, but for those who have been apprehended and conducted away, and not even for the pueri undecimanni inter eos qui a patribus suis supplicio afflixerantur.

It is, however, to be known, that I have been arraigned in no criminal cause, save those wherein capital punishment was at stake, or where the prosecution was conducted by the public ministry; and it hath been my lot to be committed to private custody.

In furibus non licitum erat ullum eorum occidere, aut aliter insecare, et ita ad Decimvirus eum vel quemlibet reducere, si vellisset.

In the fury of the day, let it be permitted that, even if the theft exceedeth fifty drachmas; but let them not be put to death, yet let them be put to death, and let them be put to death, when the night shall have passed away, whosoever will, let him be put to death.

When he yet breathed, and possessed a domicile within the domain wherein his habitation lay, it was not inconsistent with his character to conspire for the felonious appropriation of the monarch's patrimony, that he might eschew the doom of death, as the law had prescribed.

Demosthenes, the son of Timocrates,

The name of this man is TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS, TeS.

Interpreting, he exclaimed:

By reason of the fact that the malefactors had been incarcerated, their condemnation stood justly established.

Immo convifiurum furturum.

For the thief is the third.

Praeterea, J, J, non debet redimi, propter quod in vincula abripi liceat.

For it was not lawful to arraign private subjects in fetters; yet he possessed the authority to apprehend them, and to convey them unto the Eleven.

The same individual, who fell in the conflict at Ulpianus, was, on the same account, adjudged to the punishment of death.

In the same year was he constrained to seek a foreign asylum; yet it was but a brief period since he had seen his twentieth summer.

And, indeed, both captives and those bound in fetters were wont more frequently to express themselves through their chains; while the beleaguerment itself brought about the overthrow of the beleaguerment.

Inus said, Siceliotes, who could not contain themselves, Ammoniaci, qui non retinerent.

For indeed, those whom the soldiers had conducted away, as if to a trial, the Athenians deemed incapable of such fate; and yet a thousand drachmas were liberally bestowed upon them.

If, however, any person should have reposed faith in a man of too feeble constitution, he would have hearkened unto him for his conveyance to the forum, or to the judge whom he had designated as a magistrate, that he might command the apprehension either of him by the highway, or of him by the sea.

Octavius, it was said, expired by the hand of an enemy.

Wherefore, he exhibited the abode of the magistrate, wherein the accused lay hid, that thence he might be conducted to the prison.

Pollux:

J

Thus, it is inscribed in the treatise of Pollux, and not in the Nove Testamento.

To illustrate, when any individual, moved by the infirmity of a valiant warrior, refrained from seizing and conducting him forthwith to the king's custody, and thus compelled him to seek refuge in the identical covert where his abduction had been perpetrated.

Therefore, it is termed Sij..., which is derived from the Greek **σημειον** **τις**, signifying a notable or distinguished wound.

Usque ad hunc primum, Adbwist—si doxais e, quod narrabam in politica.

Aeius; cui;

And the progenitors; [Greek: $\pi\lambda\omicron\pi\sigma$]

[illegible]

Hoc est verbum Demosthenis.

twenty-three, the reader may observe the meticulous and unvarying repetition.

It is lawful to convey to confinement, but not to a dwelling, nor to permit any liberty.

Eaob, who was a man of probity, should not have suffered any injury prior to his judgment; yet, being a man of probity, he has endured death for a considerable period.

If, however, he who hath purloined the moneys shall have conveyed not a fifth portion of the sentence, then so much indemnification shall be rendered unto the aggrieved party in the sum of a thousand drachmas.

But he alone among the Scdrmyians had been apprehended by the Trojans; and should he have been absent at the time, he would still have been seized by them, even had he been present.

Hence, Harpocraton, by the same appellation, interprets these words:

[untranslatable fragment in source]

In the public case, the accusation was, that those who, by the laws, in certain fixed places, or by abstaining from entering the camp, were bound to abstain, were nevertheless decoyed forth, and detained.

Pain confounded him with his compeers in arms.

For so must be read in the work of Harpocraton; it is not vain.

Fifthly, I shall relinquish the terms employed by Suidas, which were subsequently utilized by Pollux.

O my sovereign," said he, "I alone have the capacity to comprehend this.

When Archonus was invested with the dignity of Archon, he thus spake: "In other words, I shall mete out punishment unto Archonus, who, though not a leader, yet was a ruler, and therefore must be punished, and punished by death." Thus again he said: "In other words, I shall mete out death unto him."

This, therefore, being defined in signification, as we have previously demonstrated.

For, notwithstanding their scruples, the magistrates were subjected to the penalty towards the close of the judicial proceedings; and in his vehemence, the orator exclaimed, "Tuffix," quoth he, "Tuffix is the leader, and not even to be subjected to punishment."

In this instance, therefore, the infernal adversary hath a just claim in respect of the offences wherein they have persisted.

Hxc eadem et X7myuy, quia capti habebant, non aliud eis relicto fuit, nisi ut x-mtffitxi.

Delatio, hoc est, antecederet, qua delator, præsentans se in carceris praesidem, indicium de reo diceret, quem custodes, per magistratos, inductum, id est, ad mortem percussisse, diu continuerent.

Of this heresy, I have addressed the matter in a letter to Demosthenes, and I have done so in opposition to Theocrine; and I have repeated this composition septies, and septies, and tribus, and septies, and septies, and septies, and septies, and septies, and septies, and septies, and septies, and septies, and septies, and septies, and septies, and quatuor, and quatuor, and quatuor, and quatuor.

The appellation of this individual, who, in his capacity as a soldier of the Athenian host, was not merely a mere soldier, but rather one whose service extended to the purchase of foreign grain for the city's sustenance, and who was accordingly known under the cognomen of Asius, was not without its attendant reproaches; for he was not solely arraigned for the commission of homicide, as was the wont in other indictments, wherein a sum of a thousand drachmas sufficed for the indictment, but the charge was additionally augmented to include the more serious crime of murder; and, furthermore, he was impeached as a hypocrite, his conduct being deemed insincere and disingenuous.

From thence, he was conducted to the place of punishment.

Let not hesitation impede thee in the ensuing Discourse:

Where shall we discover the f and w of Jove, or the c and k of the Cretans?

In this case, the law shall be understood as follows.

Whereunto followeth:

Privileges were conferred upon the king; but the authority to apprehend him was withheld, and the transition from the number eleven to the number twelve was effected; yet it was the province of the judicial officer to direct the malefactor to the place of punishment.

Nevertheless, in the confessions of crimes, concerning which it was not requisite for the judgment to be known, but rather for the punishment to be inflicted, even those other than those we have already mentioned, were originally conceived, as if from the same source.

We oftentimes defile.

[untranslatable fragment in source]

These were the spears of Mxetf Hf, whom the orator was wont to extol with joy in all prior recitations.

The same law, therefore, ordains, that if any person be exiled on account of his death, he shall yet be required to return to the place whence he was banished; this being the tenor of the statute, and it is not incumbent upon the state to impute guilt to him for the cause of his death.

[untranslatable fragment in source]

There is nothing more copiously recorded by the Greek authors of our time, namely:

All kinds of predation are distributed and remain, to whomsoever these two terms are directed.

And of the individual men who were vexed, it is said, that in this law of Draco, before D. D. Democritus, C. T. Salmasius, Demosthenes, and Aristocracy:

Caft, thou art a swine; and in no wise shalt thou discover any of these kShiois.

It is not incumbent upon a man to enslave himself, as it were, by intermeddling in the affairs of another's spouse; but it behoves him to extirpate every species of violence from his fellow-men, and to maintain the same equitable principles.

Elevated but lucid, the discourse here unfolds in periodic sentences, with a measured cadence befitting the gravity of the subject. Thus it is written: "Et igitur, si haec est via, qua perducimus nos ad finem, tunc, si quid aliud est, est alia via."

[untranslatable fragment in source]

,*/.

[untranslatable fragment in source]

The erudite interpreter of the laws of Attica, in translating these into Latin, has inadvertently omitted those significant terms "y* i ut & illa u i," which pertain to the disposition of the goods and fortunes of the person who is to be conveyed away, where his property does not revert to the fisc upon condemnation; it being necessary for us to construe the phrase "in iphus perfona" as denoting the individual in whose possession and capacity such assets are to be found.

They were expelled thence.

Verum hic narratur de rege imprudente, qui per se manu suae demptus est, bonis suis non ablati, ubi in fines propriae demissio extraverit, leges eo prohibent ut eadem exilio puniatur.

Those who had never condescended to follow any of their commander's pursuits, and frequently among his subordinates there were removed many by the sword.

An instance of the commonality of mortality among the Comic actors occurred thus:

If he shall refuse to conform, let him be exalted to the dignity of rapine.

Adjacent to Terentius in Phormion:

This is copulation.

For it was stipulated that he should be conveyed with Athaus, who was being removed by C. C. He was said to be being conveyed.

In hac lege explicanda, Demosthenes docet: I?

[untranslatable fragment in source]

As if this term could readily be interpreted into whatsoever mode it may be imparted unto me.

Those who were esteemed by him, though not by others, were abased.

In another law, which runs thus:

It is permitted to him who hath forsaken his faith, and hath been put to death, to be seen unpunished; and the words seem to be expounded from the point of view of the good, not from the consideration of corporeal suffering.

Titus■, "Illa est idem," inquit, "quod est idem cum triginta et tres et tres et tres et tres et tres et tres et tres et tres."

Henceforth:

Nevertheless, they are purged, vitiated, and should be further purged, conforming to what has been already detailed.

He shall bear away the exalted one, or by violence carry off Charidemus, and shall do him wrong.

All these are treasures.

For ye are apprised that such as are enrolled in the military array are wont to esteem as superiors them whose faith is more exalted; and accordingly to decoy and conduct them forthwith to their own custody, demanding recompense from the captives.

By this means, they were either carried off or wrested, so that they were willing to pledge money with a slight faith, owing to this oppression.

[untranslatable fragment in source]

Other matters are spoken of in this speech, requiring money from him.

assert that this orator seeketh to exaggerate his own misfortune, employing a rhetoric which, though licentious in its vehemence, was yet confined to the use of terms pertaining solely to the subject of uvylphos.

Then, in the ensuing narrative, there is introduced a creditor who presses for the repayment of the debt; and he threatens not to release the denier beyond what he has been summoned to believe, viz., that he will bring him to justice.

Quis ergo hunc intellectum obtinuit?

The fifth degree is that of the son.

It is a sin against the law of Solon that T. Nihil, who had been indebted, was adjudged guilty.

Phormio, in that scene of altercation, declared that many individuals should remain unharmed, whether among the guests or the elders; and I shall assert that never did I touch the river, which is to say, that I have not fixed the kitchen.

In the midst of these private judicatures, such a place for the offenders was assigned him among the Greeks, and himself was appointed, as he was reckoned by Pollux.

Verberatum; et ab aliquo, qui querellabatur, hoc non intellegere aut illud, et sibi ipsi injuriam estimare, cuius pulsatus erat, qua:

The arbitrariness of the judgment was deemed to be within the bounds of discretion.

Harpocraton:

Aulae, let us consider the fixed point of the Xaypaipes, which is itself the point of the Xaypaipes; and again, the point of the Xaypaipes, which is the point of the Xaypaipes; and once more, the point of the Xaypaipes, which is the point of the Xaypaipes; and yet again, the point of the Xaypaipes, which is the point of the Xaypaipes; and finally, the point of the Xaypaipes, which is the point of the Xaypaipes.

Notandum est, Harpocratonem non esse genuisse in nuptiis.

For I did not aim at inflicting injury through their wounds, but rather through the stripes they received from their own tongues.

For the individual whose task it was to adhere to the laws of Attic Harpocraton, and who was commissioned to compose this epistle both initially and subsequently, was resolved to demonstrate the contrary through the testimony of Plutarch, who, at the behest of his father-in-law, was entrusted to narrate that Solon affirmed the right of every citizen to denounce

any person who had committed an injury, and to pursue him accordingly.

It is, therefore, coextensive therewith.

This is peculiar to the judgments of the public magistrates.

But this transaction was conducted in the most intimate privacy; and I scrupled not to commit it to record for fear of offending Harpocrates, nor yet through distrust of Pollux, whose fidelity towards me was then in the highest degree commendable.

Ahtix verberationem, aut pulsationem, cantus ultimum vulnere designat, ut finis vulneris, finis verborum, finis cantus, finis cantus.

Thereupon, the op-piano, and the rhythm thereof, beat forth in harmonious measure;

*

Of the Mode of the Usury.

Seventy-ninth Judicium.

[untranslatable fragment in source]

Helychius:

Axeuf, behold!

The law of Attica, which is more grievous in its nature, is thus denominated: ■ληγ■, which term was formerly applied to other actions of a similar character: The law of Attica, which is more grievous in its nature, is hereby designated: ■ληγ■; a term heretofore employed in reference to actions of a kindred description:

[untranslatable fragment in source]

Verbera igitur, non vulnera, hanc causam persequi, et mortui in privatum iudicium Atticus tradere, moris fuit apud Atticos.

And in the administration of punishments, the public judgment was wont to be invoked at the infliction of wounds; wherefore, to each and every one who fell victim thereto, there was pronounced the following decree:

And she was summoned, and unto banishment conveyed, to undergo retribution, Coebra.

One is to sustain a wound, another to suffer speech; this is the distinction of the action.

He did not seek private vengeance upon Atticus, but asserted the matter publicly by judicial decision.

This was the penalty for his exile, a banishment which entailed a considerable pecuniary forfeiture; a forfeiture which the very tax-gatherer had imposed upon him, not merely before the Greeks, but also among the Romans.

Paulus, in libro linguae Romani, ubi de nomine Cubi loquitur, in collatione Iugorum Mochicanorum cum Romanis:

Whoever shall prosecute the wrongdoer, let him pronounce the cause why injury has caused fasting in Jit, and let him impose no less taxation upon him than he hath upon his wife.

This is that which Harpocraton enunciated in the supplement, namely, "The identical event befell the nineteenth son of Hx and the nineteenth son of Jlx."

Now, as I have observed from Ulpianus Demosthenes, it is decreed that in private transactions, a pecuniary penalty be established according to the law; whereas in public proceedings, it shall be estimated by the accuser.

For this is not perpetual, as may be inferred from henceforth ensuing discourse.

Nec Cane legem multum definiendi potuit in injuriarum actione, qua:

INJURIA: A detriment or wrong inflicted upon another, whereby the integrity of person or property is impaired; a transgression against the rights of another, entailing not merely a breach of duty, but a violation of the moral fabric that binds society together.

While none was able:

But, as the weight is increased or diminished, so must the measure thereof be adjusted, according to the ensuing rule:

I shall be accorded permission.

If the individual be the instrument of the malefactor, then it devolves upon the judge to determine whether the accuser hath sustained so grievous an injury as to warrant redress.

Infi-gnis Ulpiani locus est in confluxu fluminis Mo-Caecarum, quod traditur legendum:

Injuria, licet atrocissima, tamen gravior est; et non finis est iudicii regalis, sed terminus arbitrii inaniae.

But if you conceive the Praetor to have been a man of atrocious character, it must necessarily be inferred that such an opinion was entertained in the year seven hundred and ninety-four before the Christian era.

So it was alleged that he had been engaged in the discreditable trade of a prostitute in Asia; or rather, that he had acted as a delator or informer.

For it is impossible to demonstrate the common assertion, that the injuries which are perpetrated through a ruptured limb, or a fractured limb, are veritable injuries; a fact which we have previously detailed in our exposition upon Juriscon, wherein he, versed in the intricacies of jurisprudence, defines "injuries" as ulcers, and interprets them as the maladies that befall the body, comparable to a limb lacerated or dislocated.

For this indeed concerns not the essence of eloquence itself:

The result of the injury was atrox, and id gravius; the voices, however, began to declare: "The jury, as it were, est atrox, et idem est gravis."

But it is not the Latin tongue that provokes the adversary.

What he saith, that the judgment must be estimated not merely according to the close of the world's career, but even according to the catastrophe of the Greeks, who have been ensnared by the fury of the Illyrians, and likewise according to the doom of the nations, who have been deluded by the ire of their own kindred, is altogether consonant with the sentiment herein expressed.

Which, in the Latin tongue, it is inscribed:

Reponit taxationem injuriarum, non finem crudelis rei judicis.

Wherefore, when the accused had pronounced that he would repay the debt, the judge was fain to determine whether so great a sum should be restored.

The king, in the presence of Ulpian, is accounted a reus, according to the notion of the ancient Roman jurisprudence, whereby the king is termed not only by those who are engaged in the action, but by those who themselves perform it.

What I maintain is this: that the injury ascribed to the advocate was perpetrated by a tax-gatherer; and that it was not within the Praetor's prerogative to honour the transgressor by such acceptance.

For, according to the legitimate enactments promulgated by the Decemvirate, and inscribed upon the twelfth table of the Twelve Tables, a due limit was assigned to the retribution for injuries, amounting to twenty-five assizes.

And thus was the epistle penned by Paul:

Injuria, quae vel iusta vel honoraria dicitur, actionis species est.

Legitimate according to the law, the twelfth table, which he had enacted in the other jury, was twenty-fivefold the penalty.

These are the matters which, when duly considered, are less prone to inflict grievous harm.

The praetor of the edifice offered reparation to those who had sustained injury.

Herein, the victors arbitrated whether the injury should be reckoned at the cost of the adversary.

This is not a forum for the dislocation of a limb from legal considerations.

Of this peculiar affront, which is properly termed in Greek κυλικισμός, and wherein the condemned individual, whom he had subjected to the act of κλικισμός, was adjudged by the sentence of the judge.

Let us unfold to Heicene the events transpiring at the moment of his flight.

What is the import of these terms, as also expounded by Paul in the Epistle to the Colossians, the heading of which signifies reproaches?

More generally, in-

And in the instance of Domo Mostovarramus, VII P F, it is recorded in the jury that all that was extraneous to the oath.

Particularly, there is another kind of illicit intercourse, termed Gracia.

As I pen these words, I am not immuring them.

Subsequently, he despatched her forthwith.

Thereupon, he delivered him to the Praetorian tribunal, being accused of having insulted her, the cause of her misconduct.

But let injuries be endured, whether corporeal when we are slain, or verbal when we are invited, and let them abide.

The ensuing injury:

When we descend into the corporeal, that is, when we speak, or when we act, that is.

This place of Paul, rendered into his vernacular by Tribonius, was thus interposed, as if a marvel.

The first observation is that, in the writings of Tribonius himself, there appears a corruption of language which, even at the present day, is discernible in the interpretation of the Mosaic Law by the jurists, for when it is read to this day, they render the phrase A'AiKi'A in lieu of \iKl'A.

There is no proclivity towards degeneration.

A single character is inscribed with an equivalent number of characters.

Thus, Paul delineates the site of Tribonia.

Generally, in the jury, all that was not required by the oath was narrated, including J. Specialiter, the ordinary one, which, while denouncing Fl■, whom the Greeks denominate Procesus, Paul wrote that the Mosaic law was in variance with it.

It is recounted that any transgression not arising from the perjury is superfluous.

Particularly, it is the customary practice of song that the Hellenes aspire to.

It is a falsehood that VZqav hath restored to us in Tribonia for his sake.

What is thy appellation?

The appellation is generic.

And Paul did reprimand the aforementioned Labeo, since he had been arraigned for impiety before the Praetor.

In- than, the name is Lathe, rather than Ctxluf.

For it is alleged that the injury sustained is equivalent to that which the recipient suffereth in the corporeal frame.

Herein it is set forth:

Let the utterance be pronounced whilst enduring an invitation to dissolution; either with composure, or with a matron.

The confederates are abducted, and she too is summoned.

It is indeed true that the comprehension of injuries by the general is intelligible, though not solemnly asserted.

Whose name shall be counted.

For whatsoever he did not invoke under the sanction of an oath, the Hellenes averred that he was a falsifier.

Here, Ephlimus is mentioned in the Epistle to the Apostle Paul, in the letter Specia (literally, "the breath of life" or "the habit of life"), as they term it in Greek.

Nec 79 C. L. S. A. T T. M. A. S. Incc.

For when the praetor had not sworn against us, we said that we should take offense.

For I shall not refer to him as a special injury.

Meaning, which is to say:

This is the custom of the Latins, and of the Ctxcians.

Nevertheless, when he spoke of faith, he received the same message from Praetorus, who had not sworn before he had pronounced it.

This is the consequence of the injuries which I have sustained.

The appellation of the genus, which I have already mentioned, applies to all things which are not bound by the obligation of an official oath.

For the first individual who hath not sworn an oath against another hath sworn an oath against him.

But this is not a common practice.

He is the one who cannot say the same thing, but he is the one who cannot say the same thing.

This is also the case with the usual, or more specific, sumptuary, which is either spelled or spoken, and which is added to the manner in which Paul speaks.

This is the ordinary practice:

When Atticus was on the verge of being condemned, he invoked money, encouragement to worship, and not the termination of his sentence.

When Phormius spoke to many of his fellow citizens, who were his guests, as if he had never been injured before, he cried out to the Gctascians: "Rentircipito" to stop them from tending the net and accepting it.

Neither do they injure us.

What is this?

For it is from these things that the head can be made, and the work is played in them.

They must therefore be afraid, wherever anyone may be able to escape.

Me, they do not know that I have anything.

Thou sayest, "Thou art the chief of the household which the gods have assigned thee," and "they suffer no man to be removed from thy possession."

And they shall know that they are mine, and that they are mine.

For the sake of evil and profit, they refuse to pay the ultimate price.

Of these, however, it was not clear that the periphery was a fair one, nor did the Comics, who were accused of committing the crime and accusing the creditors of the house of the deceased, receive the gift of both words.

For Phormius speaks of a great amount of money, which they were accused of having to deal with in addition to other injuries.

This is the place from whence I have come, and from whence I have come, I can judge the accursed Scythians of Athens, by their name, which is D. Modo VSVH.

The fact that they had been injured by others made them addicted to it, and it was not long before they were expelled from their homes.

This is evident not only in the conduct of

The solution was pronounced by him, who was indebted to him both for a large sum of money and for a severe condemnation, since those individuals had been detained under private custody.

Who, being confined within a private prison, were adjudged and condemned by private judgment solely on that account, until such time as they had discharged the sum to which they were sentenced; and those who, not having been convicted of any crime, owed a considerable debt to the public.

But whatsoever was conceded to be taken away, as if into a private custody for those whose interment he had performed, and who were relieved from pecuniary punishment by him, they thus spoke.

Then, he did turn himself about.

But these were not the names of such as had assumed that appellation, who were wont to be confined in the public gaol.

Hesychius, upon the interpretation of the day, became apprised of their condemnation.

For the like cause, the corpses of the deceased are likewise abominable.

Now, therefore, it is incumbent upon us to observe that in this matter and according to their ancient law, the Romans have attained a maturity which befits their years.

In ea, Eee.

Repu- 8■ Si.

The theme of the Psalms of the Republic is variously enunciated; yet it is not invariably true that the body of the observer ever exhibits the same phenomena, although the spirit of the mind doth hereby confirm the assertion.

This argument, thus far transmitted by the choicest of our worthies, hath been so communicated, that they may impart to others a greater abundance of knowledge, than they themselves have instructed.

Not that many had not spoken extensively on the subject, but rather because of the intricate web of their faith, they were unable to expound upon it in a comprehensive manner, although they were more disposed to elucidate than to explain fully.

That the Greeks were incorporated among the Latins, which signifies that they were included in my enumeration.

Plautus, the son of Addibus, who was a Fellow of the Comic Poets, was the offspring of the eldest of that illustrious body; and he was also the progeny of Nautius, and of the eldest of the Comic Poets. He was the first to assume the office of judging, and then to augment the dignity of the duchy; and he was likewise the last to adjudicate and to extend its prerogatives.

But, as I have previously observed, it is fittingly and properly assigned to thee alone to undertake this task.

Where, and for the sake of Jove, Bo was withdrawn, since there remained nought of the deities save the deities themselves.

And even those ancients whom the Latins designated as Graeci were wont to employ this practice.

Demosthenes, in the treatise On the Aristocracy, concludes with these words:

Remember, therefore, to behold this: elevated and yet lucid is the diction, periodic and sonorous the sentences, measured the cadence, and the vocabulary, though sparingly archaic, not unbecoming to the dignity of the style.

For I deemed that which is most opposed to the source of knowledge to be the clue by which the cause thereof ought not to be adjudged.

Paulus, postea, exclamavit: "Ixsu, Ixif, adsumite vos!"

And thereupon, let the drama proceed.

But the laws, which grant both liberty and impunity, permit him to be suffered to remain at large, or to be committed to slumber.

EUV et IV Cl.

The psalms, as in their Latin version, are also of the identical genus.

For it is to denominate addiction.

And, as we have previously detailed in the foregoing section, so much may suffice.

Moreover, the rationale for the voluntary delivery of a pledge is as spontaneously generated as that for the forcible recovery thereof; and the latter may be termed, in respect of goods, corporeal, or both corporeal and goods, as well as by the terms of eager and willing consent. For he who gives voluntarily, or his own goods, confers upon himself, or bestows upon himself, his own faculties.

This was not attributable to the impetuosity of the judge, but rather to the voluntary disposition of the debtor himself, who had been intrusted with the duty of appealing to the monarch.

Certainly, the Greeks, who, by their own volition, incurred the imputation of criminality, and those who were adjudged to have incurred it, are termed by the ancients the Cynics.

Dionysius, in his fifth book, **De Antiquitatum Romanarum**, in the oration of Valerius Publicola;

Brethren, whom you have dispatched to confer with the people regarding the remission of their debts, I pray you.

T/[^] isi» 't[^]a/ 'a[^]tor l* tus [^]*»«- qztjs ayuyt/nst «bos tk %gt nec eorum bona a creditoribus detineri posient > cwrcSi pirn te ufrn tL» imcui i 'zjo t w» De canteris vero, qui per illud bellum non arma tuliflent, censuerunt ay[^]ylutsg tiiaj TBti ut ; Tertius, inquam, actor litus quod adhibet argumentum abusu bonorum, neque ipsorum bona creditoribus detineri posse contendit; quod

cum perspexisset, primum tamen prohibuit, ut neque eosdem bonos neque eorum bona a creditoribus detineri posset. De canteris vero, qui per illud bellum non arma tulissent, censuerunt, ut eosdem et eorum bona detineri posset.

That the creditors might be induced thereto, and that there might ensue a reciprocal lien thereupon.

But they concurred with their creditors.

Ucia, by contrahendo either mobiles aut immobilia sub variis conditionibus ex consensu contrahentium, obligatos oportebat conciliari; ita ut ubi licuit corpora defunctorum obligare, non modo unum contrariari fecerat.

Under this condition, frequently, a pawn was agreed upon, whereby it might be permitted to the creditor to vend such pledge, or it might be forbidden, provided that the dissolution did not proceed to the appointed day, or it might be retained by the feodary, and held according to the right of the lord.

Thus, he was bound to maintain the bond of his person from the pathway of the convent, so long as the stipulations annexed to the compact were observed; and it was incumbent upon him to either discharge the debt (and the slave's debt) by payment of the due money, if unpaid, or to sell the trust thereafter, or not at all.

It is, therefore, manifestly clear that even those who hold their faith to be grounded upon the supposition that they have been deluded by debtors, whether in the past, or at the present moment, or shall be so deluded in the future, will be betrayed by the creditor.

It is likewise manifest under the laws of those words, wherein, whether in the codes of Athens or Rome,

At certain periods, it was deemed illicit to effect such a transaction, not merely by reason of the incumbent duty towards the creditor, but likewise by virtue of the stipulated compact.

Let us, therefore, elucidate to the Praetor, what law, being reserved for the Romans, was at times enjoining the temporary detention of the free, while at other times interdicting the same.

It is not requisite that the origin of Rome should remain obscure.

The republic hath been thus established for the unworthy, and for the body politic it was due; and for the subjection of such as were desirous thereof, it hath been received.

For, as the same tumultuous agitation pervaded through all the nations of Greece and Asia, and likewise in Rome,

The Romans, who were the indigenous people, were restored to Rome. Under the reign of the kings, it was usual, whether from that locality or from that locality, that Servius Tullius should be held in slight esteem.

and the scymitar:

The plebeians, whom the weighty pressure either rendered more indulgently favoured, or else consigned to extinction, did themselves also aspire to the same fate.

Dionysius, in the discourse of that Serian orator, which he addressed to the assembly, thus incited him to proceed with his speech.

Wherefore, O Lord, I will give thee a sum of money; and again, I will give thee a sum of money; and yet again, I will give thee a sum of money; and once more, I will give thee a sum of money; and for the fifth time, I will give thee a sum of money; and for the sixth time, I will give thee a sum of money; and for the seventh time, I will give thee a sum of money; and for the eighth time, I will give thee a sum of money; and for the ninth time, I will give thee a sum of money.

Whether, in that discourse concerning faith, he actually uttered what he did say, remains a question.

For he had not yet attained the dignity of royalty; and I had vowed to engage in the conflict.

Not long thereafter, when the king had been rejected by the populace, Dionysius inscribed a similar statute therein, as he records in his frequent epistles.

He is a fornicator, and from his pecuniary resources has been dissipated the necessities of the indigent by a foreigner.

What he had accomplished.

For it behoves joyous men to be referred to as believers when they are bound to dissolve all names in the assembly of the people; and these, being laborers, and having no station of their own, are thus individually denominated.

But it is not recorded that any law was enacted to bind in future the bodies of those who made war upon the stranger, and to lead them astray.

What he spake.

But more eloquently did he speak.

But it is yet present.

In that year, Livius, in his epistle addressed to Flavius Romanus, thusly affirmed: "I have composed the initial narrative of the freedom of the Romans, a commencement unchallenged by them."

But the same law was altered, concurrently through the avarice of one individual, and his inordinate cruelty.

Herein lies a tale, and thus shall it be told.

There remains the privilege of inquiry elsewhere.

He restored it to you, he added; on that same day, a mighty ligamen of faith was formed by a single bond, and the consuls of the res publica of the U.S.S.R.A. gave their mandate in this manner.

I exhort the people, that none may be subjected to punishment save him who, by his own demerit, has deserved such censure; and that the funds due to the creditor should remain in the hands of the creditor, and not be commingled with the substance of the delinquent.

The statute of him was then violated, which was:

They shall be collected together, and shall bear witness.

So, he said, he proceeded to the other side.

And let prudence dictate that they be so framed as not to lapse into recondite obscurity.

Who, according to the authors, would not acknowledge the fitness of a more apt and suitable author, from thenceforth, and after that period, for the composition of works addressed to Rome?

Hast thou ever lent a sum to one who hath not yet discharged his obligation?

There being, nevertheless, a multitude thereof:

They did exhort the contrary.

And thereafter, in those subsequent periods, being indebted for sums both paid and due, which were not discharged, we are constrained to peruse the enactments, and that they should not be wrested from other parties. Neither was it expedient for Teobfcrvatas and Bacchus, nor for the Servians, thus to proceed.

If such a condition prevailed, who could have acted more humanely than to repeal the statute enacted by the Decemvirs, whereby debtors, having confessed and been adjudged liable, were compelled to submit to the addition of their creditors, to be bound with cords or fetters, to

suffer capital punishment, or to be sold across the Tiber?

If a greater number of individuals were to be adjudged guilty, they would severally be parted from their confreres, though born in close proximity, and the bodies of men would be divided amongst themselves.

The words of the law, according to Agelius, are referred to in the twentieth book.

C. R.

Wherefore, in all feoffee-deeds, it is said that if several creditors were to exist, a partition among them should by no means be deemed necessary.

Forasmuch as he was wont to be in the exercise of authority, he was resolved either to adjudge the debtor unto himself, and to put him to death, or to make a journey across the Tiber, when there were many more who had been accustomed to such proceedings than he; and that, rather than that any delay should be occasioned thereby, each of the creditors took a part of the person whom they had pursued.

If you, nevertheless, entertain doubts concerning this, you shall incur the penalty of capitatorum poenas:

Debitoribus, quibus bonam fœdus iuraverant diabolus, imminebat, aliam tum Romam: Thus did the fiend menace those debtors who had vowed faith to virtuous oaths; and then, to Rome itself, another peril approached.

Twelve years have elapsed since my nativity, and now I stand within the grace of God.

For whatsoever thing is fashioned from any kind of wood, whether it be a tree itself, or a branch thereof, must undergo the penalty which its arbiter shall ordain, whether by bonds, or by boiling, or even by death.

Therefore, who, as I have observed throughout Greece, and who, even prior to Solon's legislation, administered the debts of the Athenians, and who, likewise, managed the obligations of creditors, and who, even in Zidon, oversaw the Salmacean transactions, prior to Solon's enactments, possesses all things?

(Tee, his creditors spared him, or he was confined within his own household, or reduced to servitude, or sold into bondage, or indeed suffered the penalty of decapitation.)

Demodokos et Aridokrotos:

And then was the lupus.

[illegible]

Equidem dum equis liceret currere, lex prohibet ut pecuniam exigi a rebus, ut mala cibo adhiberi, et in malam mansionem induci, ubi in potestate habeas interfici; quae omnia legi contraria sunt.

Eadem poenae et fatum creditoris arbitrio determinanda debitus dienyptoi nec habere poterat resolvendi facultatem.

For instance, those creditors who had obtained the privilege of a judicial hearing and enhancement thereof preferred rather to conspire and partition themselves according to their respective factions; and by law they might even have recourse to an act of lethal extremity, should any single creditor have the authority to slay his debtor.

He asserted to his ancient contemporaries, that he could scarcely credit the narrative of Agellius, wherein the steed was brought to justice; partly on account of the cruelties which the ingenious man's contrivance scarcely permitted to be perpetrated upon minds of such delicate fibre, partly also on account of the avarice of the sculptor, who was enabled to derive a greater emolument from the sale of his productions than from their fabrication.

Then, perusing the Duodecim Tabularum, which Agellius cites, he reprehended those who had been adjudged and condemned as guilty of delinquency.

To whom this order was duly preserved.

According to the sentence and condemnation of the tribunal, thirty days were granted for the completion of the pecuniary penalty which they were to suffer.

At that period, the magistrates were discoursing concerning those days during which he had sworn to transact business with them; yet he was not required to perform his engagement. Agellius, addressing himself to the assembly, thus remarked: "I shall grant thee justice, in the sense of equity between the tribunals, as if it were a kind of intermission or cessation of proceedings."

[illegible]

And yet, justice shall appear to Deity as the solstice.

For their days did, as it were, yield and yield, even as the sun itself were sinking towards the horizon.

It is commonly held to be occasioned by the solstice, which is termed the Tftmj.

Optimâ Glose, qui etiam summâ iustitiæ exemplum in mundo fuit, similiter optimus exemplus; et hoc in aliis auctorum operibus reperi.

And they shall perceive the rectitude of the righteous according to this mode of usage.

In eight hundred and eighty diurnal periods, it was deemed by some that the duration of the righteous and the unrighteous was alike.

A Philoxenus interpretabundus est idem, quia iam juramenta sua desinuit.

And there is a tradition, that it is not Fallitur, who can assert these days to be just; nigh unto certainty it is that another shall be designated by the same appellation, as if from the term denoting justice, he is named Onuslus, by a word signifying a burden.

But the day of judgment hath a various meaning, as also its origin; for the day of judgment is termed that wherein judgment was pronounced.

And what, I beseech thee, shall I devise, even though I be constrained to ordain a law for a judge and for a jury; and what shall I effectuate on the day wherein the jury shall pronounce its sentence, and how shall such sentence be as just as the sentence of a judge, and how shall the sentence of a judge remain unshaken?

Nullam certe rationem video, ut in hac significatione auri hujus temporis juslum accipiant deos pro dycaffiem; immo contrarium plane est.

How, therefore, shall those days, wherein the judges were wont to render justice and act according to right law, be summoned to those who are bidden thereto?

These same voices, which we have heretofore pronounced without any cognizance of their import, the very words of the law itself bear witness to:

Jerius, indebted unto him for a term of thirty days, is bound to act as a judge.

And there were thirty of them, the judges, in whom they did not enquire to be summoned to the judicial seat, but they took an oath for them and held them answerable.

And indeed, ye have been assigned the days of condemnation; verily, they have been apportioned unto you in private, to be accounted for hereafter.

Publicè etiam alii dii sunt, per quos in tota urbis juris feriae erant.

Thus, during the days wherein he was invested with the command of the fleet, the Macrobian, even styled Justi Militis, shall perish; for upon those days did Rome swear by them.

They exclaimed, and seemed, as it were, to be stationary in their posture.

Pnliars, saith he, hath not disjoined the days from the righteous.

If, indeed, a period of thirty continuous days ensued, wherein the chief commander of the host did place a vessel of scarlet hue upon the citadel.

And verily certain days are deemed more auspicious by the upright, who do not concede such a privilege to the Greeks; for Rome hath sworn herself to maintain every cause without partiality.

They partook of the vesper meal, which was designated the diem iudicum; for within these days the iudex did remain and cease not. Henceforth the dies iustorum received the appellation of iustidium, signifying either the duration or the interval of just men, or even a single day of justice, wherein the authority of the tribunal was suspended from interposing.

Nec obsiratur justus a jure quod stabat dici Agellus haec verba declarat, qua:

And they peruse in the volume of the ancient testament:

In those days, when the Decemvirs presided, the rivers were designated by the epithet "Flos," veiled perhaps in some ancient and obscure meaning.

These are the judgments of the Psalmists, and the figures interposed among them respecting the duration of their conflicts, and the period of their sufferings; for such seasons nothing could be effected with them by just right.

Shall the debtors in those days remit any portion of their due?

Wherefore, those who were to absolve the creditor were termed creditors; whereas those adjudged guilty were referred to the tribunal, where it was intimated that they had been condemned, and that they had been either scourged or bound by fetters.

It was recorded by Agellius; and it behoves us to read it with less frequency than is usual, nor is it so stimulating as popular opinion would have it.

For the creditor, when adjudged guilty, was bound by a ligature, or a nervum efflens, or a cord; hence, the nervum efflens, being a ligament that binds the feet, as Festus explicates.

But in what respect do the reins differ from the ligatures that bind the feet themselves, and indeed these are of iron?

And by manifest declaration he distinguished the twelve verses:

S and C proceed.

XXII.

wine, I cite.

A V, vel per nervos, aut compendibvs.

QVI DECIMPONDO.

Nay, not at all.

MINOR.

IBVS.

So, I write not with diminished vigour.

For it is requisite to heal the wound, not the nerve.

It is frequently asserted that the graces are composed of iron, and that the ponderosity of the spear depends upon the same metal.

Demodocus in Medea, by Pollux.

On the ninth night of the inception of the annum novum it was thus enacted.

Thirty-five young men were entering the camp.

The ensuing glossaries:

Then, in the presence of Plautus, ye contend with him in skirmish and in conflict.

And the nerves likewise adhered to the ligature; yet the timber, upon which the pedestrians were laid, and the nerves were secured thereto.

And Atticus addressed the deities, exclaiming, "A3sous!" and thus intimated, "Those who were in a state of agitation."

But when, in reading that Sixifus had been confined while some individual was condemned in the writings of Atticus, we are led to understand that we ought to learn more concerning that species of prisoner.

Solonis was summoned by the nefoiylKx/tolex.

Lysias, in the preliminary portion of his discourse against Thcommephtus, doth instruct how the aphorisms of Solon, enshrined within a certain legislative document, ought to be expounded:

Adda, who attained the age of sixty-four; the son of Anna, Q. [Greek: τ ■ ποδοχρ ■ κκ ■
■ μ ■ ρ ■ δ ■ χρι τ ■ ν π ■ δες μ ■ ■]

What is the import of the seventh verse, he elucidates:

QVIT

You, O Jideif, I will bestow upon thee all that is thine own from the United States.

[illegible]

and sixty-eight hundred and sixty-eight hundred and sixty-eight hundred and sixty-eight hundred

Comics of the Larini, who instructed in the Palliates, which from the Greek they have translated, for the sake of Zyphotpha.

This timber was incarcerated among the Atticites, and amongst the Romans, whom they were about to enchain.

Elevated, yet lucid diction, he comprehends fully, as Plautus does in Rudente, the principle herein inscribed: "Qui primum, milites, vobis praescribitur, non noscere, sed discere."

I do verily trust in Columba; for that his neck from the fold of pigeons shall not be distant by much; yet verily the columns shall be turned towards the celestial columns.

In the sinews of my frame would I collect a thousand days of sorrow.

It is the nerve of my lips that I am to invoke Tnfhnesyfc, the Tnfhnesyfc.

That which is termed a "columbar," on account of its having recesses or chambers excavated therein, in which the pigeons are wont to make their nests.

Huc, inde, huc, inde, huc, inde, huc, inde, huc, inde, huc, inde, huc, inde, huc, inde, huc, inde, huc, inde.

The Greeks denominate them "nxj," whereas the Latins designate columbaria; and according to Vitruvius, he is held to be their deity.

Item octavum indiciale quartum Claudii Salmasii.

Salmasius, moreover, distinguished the apertures in the triremes by means of which the oars were conveyed, into three distinct compartments.

Priscianus, whom we have previously cited in the verse antecedent, hath expounded the lineage of the Columbar knot according to Plautus.

Glossa, the venerable elder:

The Philoxenians were subjected to the scrutiny of their nervous system, since even their feet were impeded.

Nam, et in simili ratione, ab eodem tempore Atticus iuxta eandem rationem procedit.

E quod martyrem Justinum dixit, qui eodem ligno ad fustis uti solitus erat.

To have been in prisons of this kind of wood;

Quattuor tantum habebant foramina pedibus ac manibus inferenda et vincienda.

The reference to these individuals is found in the fifth volume of the Ecclesiastical History composed by Eusebius.

The thirty-first chapter.

[untranslatable fragment in source]

[illegible]

There are fifteen shafts directed towards the goal. Twenty days hence.

Hence, a proverb, ascribed to the same author, in the voice of one who, standing upon a ferry, thus exclaims: "ubi feribit opus, septem pedes aquae, septem pedes aquae, et quindecim pedes aquae."

Among all the woods, there was a serpent or a serpent.

And not among all the woods of Mercury.

The identical maxim, however, is to be restored in the instance of Zenobius;

Trurrl;

is as John. I [the Greek, ξῆλον κυφόν, being thus rendered]

Entries in the Vatican collection.

However, it is likewise attested by the Apostle, Kupot, which is equivalent to the sixteenth.

His utterance was expounded by Suidas as an alibi.

[untranslatable fragment in source]

For this reason, I am proceeding on my vacation.

KXAut vocabant hanc ligneam flexum Evæ nervi; et modum coercendi appellabant "Modum Usuryarum."

If by any chance there be a similitude of a columbarium, or of a cavern thereof, wherein they are collected, what are these objects thus grouped?

He was the son of Zsmch, the son of Zsmch, and he was the son of Zsmch.

[untranslatable fragment in source]

They were bound at their feet by their creditors, until they were reduced to the earth.

Not only the feet, but likewise the hands and neck.

Wherefore, the letter *f*, derived from the Latin *f*, as it is termed in the *cypæ* of the final Latin, in the harsh, infamous, and in the most polished, is denominated the last letter of the Latin alphabet, and the foot of the alphabet, or the foot of the alphabet, or the foot of the alphabet, or the foot of the alphabet, or the foot of the alphabet, or the foot of the alphabet, or the foot of the alphabet, or the foot of the alphabet. And hence, the term *ceppos* is employed by us even to this day, while from elsewhere we derive the expressions *cippare* and *incippare*, equivalent to *vincire*. As regards the idiomatic usage of our language, the term *ceppos* is used when referring to Paul and Silas, who were cast into prison, and whose feet were bound with cords: "And she loosed them, as she was mighty, and bade them depart."

This is the nerve which it hath bound to the heart by means of its sinew.

For it is thus recorded by Tertullian in his treatise addressed to the Martyrs:

Nihil cruoris sensus in nervis existit, sicut etiam luctus in leporibus inscitiam habet.

The same holds good of the adoration of the female sex.

Unconsciously, the periphery of Utatus's arteria is situated within the nervus.

The Globe: With elevated yet lucid diction, periodic sentences, measured cadence, and sparingly archaic vocabulary, thus the term is to be understood.

Names: r\$w, according to the interpretation of IVXomdcet.

And Philoxenus, son of Cupos, being unable to vend them publicly, was reduced to servitude, that is to say, to a condition of bondage.

In brevis locutus sum, multa in peccatis continentur.

How they have been enabled to impart activity to the nerves, to their feet, and to their hands.

And didst thou rear a colonnade? Why, with such audacity, didst thou sell thy feet so dearly, as though they were a commodity of great worth? Why, with such impudence, didst thou deem

it so facile to reduce to bondage those who had been sold into the ergastulum, and who were thereafter exposed to the public market? Why didst thou sell them not to creditors, but to masters, to conquerors, and thereby to the lords of the land? Why, with such presumptuousness, didst thou send them forth to serve the Jews, and to wander beyond the bounds of the Tiber? Why, in such a station of judicial authority, didst thou so notoriously lack discernment in the management of affairs of such gravity?

Alia prorsus ratio fuit eorum, qui in fervore fidei et voluntatis sua, creditoribus suis pecunia propria dabant, ut se ex opere suo liberasset:

Others, who from the aris conf^{ss}, being adjudged guilty, were accounted as foederators, did in addition become subject to accusation.

They were assigned labours and ministered without bonds.

Wherever they were found, and having been led to the house of the creditor, they were confined within the net of the vow, and, bound in fetters, they endured for sixty days such imprisonment as they had previously suffered in a private dungeon. Thereupon the Lord addressed them, saying: "Fear not." To whom they replied: "We fear not, because either we ourselves did not find the means to effect our release, or no one was willing to release us; and therefore we were sold, or our lives were forfeited."

I conceive that it rests with the creditors to determine, whether they shall be disposed of abroad, or whether they should suffer capital punishment.

If he shall encounter that the adversary, who had been arraigned for a penalty quadrupled in excess of his own for the homicide of an enemy, hath been adjudged guilty of the same nefarious act, he may well ponder when the heavier penalties will be inflicted upon the Roman debtors who have betrayed their faith by falling into the clutches of the deceased, or when they shall be condemned to servitude.

But, as we have previously detailed, it is not to be apprehended that, in the sight of the ancients, a prisoner committed to the custody of the public authorities would be cast into the dungeon without being fettered with shackles of iron, whereby his limbs might be restrained; nor that the captives themselves, with their arms in their hands, would be similarly incarcerated.

Or the sinew, which is equivalent to casting some person into bonds or into prison.

The Greeks possess a kindred species to Fff, the genus 818 Ci.

They denominate this species of ligature "salt," which, though elevated in its construction, yet remains lucid and compact; thus, in accordance with the idiom of the Latins, they term their own ligatures "salt."

At times, however, it is more appropriate to treat the subject with greater precision, as Livy does, by referring to the nerve and ligatures.

Whereas the bonds are imposed, thereunto appertaineth mf.

Nec tamen ad id consummatum venit, et ipse primum in carcerem relegatus est, cum nullus licebat suis linguae verba loqui.

Who did permit all things to be transferred to free slaves by the law, and who allowed them to be enmeshed by the laws of alien creditors, to whom they had been made subject, even in genuine servitude.

And verily there was no other spot, nor did they otherwise denominate it.

Dionysius, who had not yet passed into servitude by purchase, was lord and master of all things; and, as his condition was that of a servant bought at a feast, he possessed the power of life over his master.

And in this, and in another instance, the kindlers of fire.

De fide nulla querela est, nec yestigium apud alios appareat.

It was never subjected to Roman dominion. In his commentary upon the Decemviral Codes, Prof. Parapheneus recorded the testimonies of Quintilian, Agellius, and Tertullian. Thereupon, the erudite master enjoined him not to differentiate between the dubitative authorities whom he had previously cited.

For it is not the identical proposition that Agellius enunciates, which Quintilian, nor Tertullian, nor again Agellius, nor yet Fabius, doth assert.

Which is that which the eloquent Critic observeth.

The initial proposition of Fabius, to wit, that Rome had ever exercised dominion over the corporeal constitution, he deemed unworthy of mention.

Vulpateam impliciter, ut corpus debitoris inter creditores per decimumsecundam legem tabularum dividatur:

Spumantem legem Mosis obiter repudiatam habuit.

He observed him in the book of the fifth writer, chapter vi.

Sc.

You shall perceive that he hath not uttered that which he purposed to express.

So he recited, that he might thereby attest his fidelity, that at no time had he entertained any thought which was not commendable; and he solemnly vowed that such thoughts should ever be foreign to him.

But he was loath to deduce from these words, as he had invoked the gods of Rome, not even the circumstance that the body of the debtor was apportioned amongst his creditors.

Tertullianus, in a similar manner in his *Apologeticus*, shall relate that judgments were in part to be excused on account of the insufficiency of evidence; and that although the law of Rome was to be rejected, yet the public consent was to be maintained, after the cruelties therein had been softened by subsequent opinion; and that infamous chastisement, notorious in verse, was to be inflicted for the violation thereof; and that the orations of the virtuous were to be eschewed.

Let us carry it forth in such a mode.

ptione.

It is more grievous for a man to suffuse his hands with blood than to suffer it to flow forth.

From the locus in quo his mention occurred, it was observed that the employment of the furnace was executed when conception had taken place; in parts, it was subject to division. When he asserted that the same was not usurpative, he intimated that the walls were notorious for their public cruelty and for their ostentation of modesty.

There was no cruelty, however, which the law permitted, unless thou dost deem it a common practice to exercise such cruelty.

Agellius, an ancient adversary, strenuously maintains that it was ever difficult for none to read the law, nor to aid therein.

It is not the dictates of humanity that have brought about this mischance; neither is there any greater immanence than the law hath suffered, nor is it merely a token of ignominy, but rather a chastisement for obsequiousness.

He shall apprise the men, that they may not incur such a peril.

Add these words unto the law:

He conceded that the debtors might be apportioned amongst the creditors; and unto me was this subjection imposed.

Nihil profecto immitius, nihil immanius, nisi uterque ipse appareat, eo consilio tanta immanitas poena denuntiata efficiet, ut ad eam numquam perveniretur.

And now, it is said, we are about to slay many, because the penalty inflicted upon those in bonds is lightly esteemed by mankind.

Differt slum antiquitus neminem equidem neque legi neque audiui, quoniam poena contemni favicis Isiac non quita est.

Agelius, etiam Jurifconsulrus quem propter hanc causam adduxerat, probat ridiculam fidem suam et futilissimam rationem nugatoriam atque inane.

How false, indeed, how utterly devoid of argumentative merit, is the contention that it is impossible for any creditor to demonstrate the division of faith into parts!

Pccnae, inquit, ab immenso his viris terribiuit.

Therefore, throughout all that period of time during which such a law was enacted, no individual hath ever incurred the penalty for any transgression thereunder.

No one hath been discovered to have invented it.

Aere alieno obrutus nemo est, qui bona copia iuraverit, nemo negaverit malam rem, nec accusatus criminis suae rei facturus est; nec ad servitutem creditoribus suis additus apud eos servierit, nec venundatus, nec occisus. Hæc omnia tunc nullum contingere opus habuerunt.

And yet, the fact that the most illustrious of the jurisconsults hath disclosed unto you the verity, we deemed it not meet to communicate to any of you the particulars thereof.

VIII. 2.4 Cl.

I am so proud of thee.

For he, who could extend credit to those who had advanced sums unto him, and who had sustained the calamity of bereaving him of his life, was in a condition of decay, notwithstanding that he had undergone the like misfortune.

The creditor, unwilling to admit it, or even to augment it by the addition of many opinions, will necessarily be sundered and distributed among them all.

For what reason, indeed, should a debtor be held responsible for a sum which, if the creditor were to appraise it at its true value, would not be deemed worthy of so much exertion on his part, as to render it neither capable of being used nor sold, by reason of indolence or imprecation?

In promptu erat creditori pro magno suo compendio eum necare. Immediately, the creditors spurned him on account of his more ample remuneration.

Which is justly deemed by many to be the lot of certain persons.

Then Agcilius, or the jurist with whom such discourse is maintained, shall bear witness that he hath never trodden the sacred threshold of Rome.

Whether, by the advent of a foreigner, or by the perusal of a missive, or by the audition thereof, it were to be deemed that we should be persuaded, yet even then should we not be altogether bereft of our reason.

But there is nothing more frequently recorded in the annals of Roman history than the plaintive litanies of the Quiritians, who, having been assigned as clients to cruel creditors, endured with patient fortitude the extremities of contumely, ignominy, and flogging, which were inflicted upon them, while themselves becoming the very complices in their own degradation.

Henceforth did Tribunich address these words unto Livius, who yet survived.

Gregariter quotidie ab castris ducit ad forum militiam, quae nobilium domorum plena est; et ubique ubi praetor habitat, ibi locum privatum carceris habet.

Such were the number and extent of his earlier works, reaching unto the consulate.

The poets, whose oration having been submitted, extorted not aught by way of pecuniary recompense: *lex lata nequisquam pecunia Poetelii, quo rogante.*

Judgment shall be pronounced, and the matter shall be concluded for evermore. Nor shall I adduce any further exemplum from the annals of that epoch, but will briefly detail the circumstances to the creditors; yet I will afford them no further information. Thus saith the *lex*.

For the obligations due to humanity are more fitly to be reckoned as charges than as penalties.

Immanitas, quae quem-quam deterruet.

For no one was deterred by the cruelties of each; the multitude of vintages did argue.

For indeed they were subjected to this condition, namely, that after having been incarcerated for a period of sixty days with the creditor, they were either to undergo the punishment of three hundred stripes after the lapse of three market-days, or were to proceed beyond the Tiber into exile.

It was indeed the case that he possessed an accommodation in sundry divisions thereof; yet it must be admitted that numerous creditors, whose obligations had been duly discharged, did exist.

De Modo Usum Arbitrii.

If the accused had been condemned to death; then, if they desired, the bodies were permitted to be dried up, and to be severed from the rest of the corpse.

Therein was not inflicted upon the wretched and those who, for the sake of good faith, swore oaths in concert, a more grievous condemnation than upon those whose heads were taken.

I am persuaded that Agellius, who had feigned himself to be a man of terrific and horrid aspect, would rue the fabrication of such an abominable deed; and that he would sport with those whom he had endeavoured in vain to terrify.

For it is not probable that the living were yet alive, but rather that they were already dead, and concerning whom the sentence of condemnation had been pronounced; and the creditors divided amongst themselves the several portions thereof.

Fingite vitam divitiamque ac partium multiplicem.

There is nothing which surpasses in penal severity death itself.

A violent termination, a frequent concomitant of ultimate punishments and capital penalties.

Nec atrocior hanc poenam discerpiti hominis videri debeat, quam crucis supplicium, aut quomodo more majorum apud Romanos puniri dicebantur, cum nudi hominis cervix infera fuerit furex, corpus virgis ad necem exderetur. There can be deemed no penalty more cruel than that inflicted upon a man detected in this offence, or the mode in which the Roman people adjudged such offenders to be punished according to the ancient custom, when the naked neck of the culprit was exposed, and his body was scourged with rods unto death.

Whereto terrified by this sentence of condemnation pronounced by the Senate on the same day, Nero, adjudged guilty of the nefarious deed, did solicit and contrive a judgment more consonant with ancestral custom, whereby he might expiate his guilt by voluntary death.

His additum sit quod olim et inter supplicia etiam sestio, etiamque 'Topia', etiamque ea:

Membratim fiebat, usurpatus.

What is affirmed by Homer, of which we have elsewhere detailed notice, ought not to be reiterated herein.

Ani-madverfione autem dignum, inter tot querimoniis millelarem plenis et communis hominum cursum circumventa:qua:

They were encountered in the neighbourhood of Livy, during the tenure of the law for creditors and debtors; yet nowhere did he ever complain of the extreme capital punishment, or of the sale, or of the alienation of the body of creditors.

Which three things were competent to engender considerable enmity amongst their fellow-countrymen, who had been unjustly oppressed by the populace, and whom they themselves had been wont to enslave.

None of the said three, or indeed any one of the trio, is referred to; nor do the six in aggregate obtain mention.

Which is indeed a notable indication; yet no instance of such a practice has been recorded. For do they not remain silent concerning this matter? These weighty branches, though less significant in comparison to those mentioned, are appended unto the Salmaian lineage.

They lamented their servitude so profoundly that their nerves were shaken, and they found themselves mute and unresisting to the bonds and fetters that bound them.

All things concur in loca quae omnino enotata supervacuum et nimis longam esse non potest.

And now have we already conducted our discourse to the upper regions.

Therefore, the bondsman did endure a dirge, and the moneys were bestowed.

judicati, et addicti ad debitores.

That which is so truly the case, is, that while the freedom of the people was indeed restored unto them, it was not conferred upon them as a mere privilege, but rather inasmuch as they had been reduced to the condition of servitude by legal enactment; and they were set free, not in the ordinary sense of liberation, but by means of the laws themselves which had originally subjected them, as if by a second act of emancipation.

Which is demonstrated by the narrative of Livy, wherein he doth rehearse.

Manlius added, that the creditors of the Capitolium were deluded by the circumstance, that the Centurio who had pronounced judgment upon you was himself being conducted into a state of servitude and fetters.

Therefore, the creditor being discharged by the populace, and the prisoner set at liberty, forthwith dispatched a ransom both to the gods and men, that M. Manlius, the deliverer of his sire, might convey to the Roman commons acknowledgments of his gratitude.

Hariolatus, who, engaged in the interpretation for the thirteenth individual, was likewise present.

The tables, he doth record, are ensnared prior to the law.

In perpetuo fuifle carcere privato detentos, legem vero Decemviralem post inducias dierum triginta tertiis nundinis, quas perperam pro tertio nundinatu die accipit, partes secare creditoribus permiffTe, aut fi mallent peregre trans Tiberim venum dare, aut fi unus creditor effec, necare. Certum quidem est; haec statuifle omnia leges decemvirales in duodecim tabulas relatas, sed illud etiam certo certius, post hanc legem nihilo secius perpetuum carcere et servitutem in mundo debitoribus apud creditores, donec fe illo aere, cuius efficiantur iudicati, exsolvisent, nec tria cupra dies poenae atrocioris unquam fuiffe usu ac more frequentata.

With regard to this person, neither the flight of a bird nor any vestige thereof remained in the twofold Roman confectionery establishment.

Let us now revert to the words of Caecilius as cited by Agclid:

Re ipsa, ut apparet, tanta immanitas poenae denuntiata est, ne ad eam unquam perveniretur.

And yet, throughout all ages, an infinite multitude of ties bound Rome:

If it be certain, during the interval in which the law suspended its operation, that thou wast observed, saying:

Ad hanc poenam pervenit, creditoribus erat impeditum eam limare extra fines statutarum usurarum.

817 nexuses, in addition to these, were conflated and subsequently demolished.

He thereunto subjoins, that in comparison with mightier deities, there is nothing to be set in juxtaposition :

Namque adde, iam nunc multos vidimus, qui vincti sunt, et mortis poenam propter vinculis contemnendi homines deterrimi.

Hic:

Certum est de debitoribus extraneorum; et adiunxit, ut iudicium accipiendum sit, quia etiam nunc multique creditorum suorum consuetudo erat, ut suis creditoribus adderentur ampliaciones.

Vinculaque quotidiani insederant aliis, praeterea nequitiae causa nocturnae, nec minus ingenti numero; nam iniquos homines hanc poenam, sicut levioris, oblitos erant.

It hath likewise been found, that other persons, save those properly indebted, are not insensible to sundry maladies.

In the midst of those military penalties, Suetonius, in his Life of Augustus, commemorates a species of punishment that the Emperor had introduced during his own reign; a Roman eques, moved by a desire to preserve the reputation of two youthful dependants, had, upon amputating their fingers, inflicted upon himself a virtuous act, which he deemed expedient, as the popular sentiment seemed to foreshadow a demand for such conduct.

For the proper import of this addition signifies that the thing purchased is delivered, thereby placing the purchaser in possession.

Thus did the debtors fall under the creditor's dominion, so that the right of life and death over them was vested; and it was lawful to dispose of them, to wit, to enslave others thereto, or even to bestow upon them a bond of affection.

And the fact that the creditors were granted the right to exact payment from the debtor, whether it be pecuniary compensation, or even the partition and distribution of property, did not prevent the Romans from reciprocating such actions amongst themselves, nor from perpetrating deeds for which they deemed it necessary to mete out punishment; and thus it might have been thought that various crimes could not have been visited upon them with sufficient decorum, save for those of homicide, brigandage, desertion, perjury, murder, poisoning, sacrilege, piracy, and sundry other offences.

And in this instance, Caecilius Agellius, by his own person, is arraigned for every crime.

From her, the corpus of the departed received its pecuniary portion.

Debita: Owed:

Of obnoxious persons, whom I have hitherto never encountered.

He was usurped; and, after due consultation with the illustrious jurisconsults, they conferred upon him the appellation of a good man.

But the inanity of folly being the reason why the people are wont to adhere to such a frivolous argument.

There is no other method permitted to sever and distribute the patrimony of the defaulter among the creditors, save in the eighth century.

He addressed himself to his creditors.

If, for the sake of felicitous issue, the foetus bore no other appellation than that of the decedent, as I was amongst the creditors and debtors amongst the faithful; and the *lex regia* supplemented the *lex amicalis*. For as the bodies themselves, in times of old, were deemed subject to the sentence of the judge, so after the said medium was withdrawn from the law, it was solely the *bonae fidei* that was re-incorporated.

And even as the ancient law, permitting the severance and division of a debtor's body, when unable to satisfy several creditors, did not compel the actual discharge of the debt, so likewise, by reason of judicial sentence and sale, those same faculties ought properly to have passed into the hands of creditors, under the denomination of *seclio*.

For it was incumbent upon those who lent money to have been exclusively answerable for the injuries inflicted upon their persons; and likewise, it was requisite that they should have borne sole responsibility for the benefits accruing from their subjects, since, as formerly, the debtors were liable for injuries done to the persons of their creditors, so now they should be accountable for the advantages conferred upon them.

And, on the contrary, she did not fall into the transgression of adultery.

It was for the sale of pledges, and not for those creditors termed *feBores*, who, by the authority of the judge, took care to distrain upon the goods of their debtors.

For in other matters he possessed a certain authority, not merely in the furnishing of goods to the debtor, nor yet in the alienation of money by *Sebius* himself; for neither properly is it a sale, nor a purchase, as may be gathered from these words of *Cæsar*, who declared that there was no sale on the part of *Sebius*.

The obese *Galli*: Thus spake the chieftain, whose corpulent form bespoke his martial prowess; yet his speech was clear and unambiguous, evincing a mind both acute and discerning.

On that day, having seized the citadel, he refreshed the portals which no man had hitherto defended; and the troops who had entered our camp effected an ingress. He forthwith conveyed *Biontm* and his whole host into the hands of the foe, and sold them.

Of those who were brought forth, the enumeration thereof hath been communicated to be not exceeding a thousand.

Didst thou behold the foetus sold unto *Caesar*; and did he enquire of those to whom he had disposed thereof, Whom did he thus dispose?

There is no other means of accruing wealth save by sale or purchase.

What, therefore, will be the nature thereof?

In the interim, Grxcus, addressing Tethys, thus spoke:

In the twenty-seventh month of the regal year of our Lord's dominion, nonumquam manus defuncti sanabuntur, nec digitus defuncti sanabitur; nec poenitentiam accipiet opus bonum defuncti; nec creditor terrae fallabitur defuncto.

It is known unto him.

.

And whosoever aspireth to receive a gift of prophecy and direction, and doth labour to promote virtue, shall not seek for cure at their own hands, nor at the hands of those who have uplifted their digits, but rather at the potent agency of redeemers and of the beneficent.

Subjeétors, qui ad cognitórem officii ejus familiaríssimi erant, pro eo contendebant, dum bonum publicum quaérebant.

Therefore, it is requisite for him to be acquainted with and to believe that he who, by means of the confiscation of goods as a penalty, reimburses the money defrauded in some crime, must either receive recompense therefor, or be indemnified with money, or be discharged to the public for the residue of the pecuniary forfeiture.

Scaliger, notorius in adversus eos actionibus, scripta hae de rebus notat: "Eos cognovisti et fecisti, te qui sequendis Clio pedibus fuisse dicitur; te cuius artis cognitio nominatur munus."

Nihil minus hoc verum.

There were, and there have been, eight hundred acquainted with the Cloridan sept; these were their advocates, and were confederates with the Clonian tribe, of whom I have already spoken.

Verum de his loci istius intelligendum est Manilius non esse informatum.

But the cognitor of the word, who, indeed, was relieved from the conjectures of the Manilian scholars, and who was well acquainted with the true import of the terms, seems rather to have been subject to similar delusions. For it is not the words themselves that required alteration, but merely the insertion of a proper interpretation in such a manner as to effect a cure.

It is acknowledged that he is endowed with knowledge.

Verbis necnon lascivia varia affectibus, in forumque locavit Lyam, qui sudabat; mobilis in saltus, et cena molis arti. Thus, the elevated yet lucid diction, the periodic structure, the measured cadence, and the sparingly archaic vocabulary have been judiciously employed to

convey the original meaning with scholarly precision.

Then, he observed, "He who is born beneath that particular celestial configuration doth aspire to be a con-founder, and forsaketh the forum; and verily, thus spake the narrator, indulging himself in sundry amorous adventures and divers theatrical enterprises."

Claudius Salmasius et ego ex histrionibus proficiscimur.

And this, by the way, is the course which I shall pursue.

Do you inquire concerning those faithful men who are possessed of virtue, of whom we have nothing in common with their ancient counterparts?

which the Law permitted the bodies of debtors to be dissected and apportioned amongst their creditors. Yet, he deemed it impossible to induce a certain individual, a man of erudition, to adhere to his own course, a person who exhibited but scant interest in such concerns.

Now let this difficulty be resolved; and now, kind readers, let us consider what has occurred in lieu of the stone itself. Livius, the consul of Poetelius and Papirius, thus records that the funds were:

credite:

Good Debtors. The corpus of the debtor shall not be obnoxious to injury.

But the Law enacts, that not only those who were then bound thereby, but even those who had obtained loosing therefrom, should take heed lest they be cast down.

Why, then, would Agellius, in his own timor, have suffered betrayal, accustoming and yielding to the faith of numerous individuals daily?

Let us peruse the sixth volume, as it is extant in the libraries of Varro.

Of L.L., whose eloquence, while elevated, remains lucid; whose periods are measured in cadence; whose diction, though sparingly archaic, is apt and refined.

And if Sylla had not been humbled by celestial powers, would it not have been incumbent upon those who had devoted their labours with earnestness to pecuniary recompense?

Lex Sylla:

He either demonstrated to him that no such law, of which Livius was ignorant, existed, or that any such law had not been faithfully preserved.

What Agellius narrateth concerning these and other concomitant occurrences, is attested by the fact that nothing else did Sylla effect to accomplish them.

The law de Nexis, which Livius doth allude to.

I shall be confined under the guardianship of a remissium populus.

The law, which Livius narrates, is not prohibited, nor will it descend to posterity; hence, it appears that Dionysius of Halicarnassus refers all those who then stood in closest proximity to him, having been granted the freedom of life, to the Excerpta Condamini.

He hath, in due season, brought to remembrance that matter, concerning which those laws were communicated unto him by Vibianus, wherein Livius had vouchsafed to entrust himself to his advocacy.

Is it three?

Uoo "000 Qu, ■ηματ■ς κρ■σιν ■π■ χρηστηθρ■ντων περ■ πι■σιον σ■ν α■γλ■ν."

Art thou the second?

Elevated, yet lucid diction, periodic sentences, measured cadence, and lightly archaic vocabulary being scrupulously preserved: thus the original reads—Thou, thou King Lanjan, judge well; thou, thou, weigh carefully, consider maturely, deliberate wisely, and pronounce justly.

What is it that I am destined to accomplish in this existence? What is it that I am fated to achieve in my days? What is it that I am to undertake in my pilgrimage through life? What is it that I shall effect in my mortal sojourn?

He speaks with such elevated yet lucid diction of the casus and occasion, wherein, in the fervour of his creditors, the Roman citizens were first restored to their ancient liberty by the lex which had then been promulgated; and he avers that neither was this the cause of their flight, nor of those who were wont to be subjected to the mode of execution known as ustratio.

8J quaerendi sunt et quaerenda.

Elevated, yet lucid diction, with periodic sentences, measured cadence, and a sparingly archaic vocabulary, I have never encountered a lex of such nature; (for this is the token whereby we may discern the sequel of events subsequent to those epochs; and in the remainder of the works of Livy, nuntius of any such leges is extant.)

Nevertheless, there existed a drama, which, having been assigned for a determinate term, and being excepted from the enactments of the statute, was adjudged infamous; and it was not

requisite that any person should be bound thereby, as is evident from the same treatise, in the twenty-first chapter.

Of the Currency:

Those who were confined in fetters shall be adjudged.

To the utmost limit, he observed, nigh upon Heperath, return.

Assist me.

When the soldiers had surrendered, he thus declared: "Those who have been condemned for capital fraud, and those adjudged guilty of pecuniary offences, lie in bonds; while those who prided themselves on the fidelity of their military adherents, and whose fidelity to money has been dissolved, shall be discharged from their liabilities and obligations."

For those who are fortunate to receive a foreign work from others.

And the bonds wherein they were confined must be understood not as public, but as private, to the individual understanding.

For I have referred both to those who are remote from my own time, and to those who are contemporaneous with it, and to those who approach me, on account of the just cause, not for the sake of one alien to us, but for the sake of Tolutus.

Praeter Agcllium, qui etiam praetor in eo tempore fuerat, Quintilianus ipsa suae aetatis diebus perhibebat se adhuc ex ignis fumo duriter afflictum esse.

Columella, who flourished in those times when civic ties were closely knit, and who himself was intimately associated with such bonds through pecuniary connections, did indeed remember that he had been sustained by the legacy of his superior's estates.

For the indignation of God shall be dispensed.

The head. Nay.

Moreover, they possess an ample capacity for transporting the hostile legions, whom neither the fleet swiftness of cavalry can elude, but whose burdens, whether of cattle, conveyance, or human population, they can either bear forthwith, or, if detained by other engagements, hold in subjection by compact bonds of municipal servitude.

Unto thee, O next man, who had been slain twice, were laid the duties akin to those which thou hadst undergone by the shafts and lions.

For this nexus hath no connexion with him.

But for a mite:

They possessed judges and those added and assigned in lieu of servants, as if truly they were slaves, to till the fields and bear burdens, according to their former condition, unto the vexation of the heirs, as was wont.

Nihil autem injuriarum aut contumeliarum in nequitiosissimos servos sub fati dominis competeat, ut etiam in nexa ab iis, ex quibus additi fuerant, jure filo polliceretur exerceri.

Whoever had not the vineyards of their progenitors in inheritance might yet preserve them in whatsoever manner they chose.

Wherefore, they were afflicted with a fever that was intractable and uncontrollable.

I alone am able to accomplish this. I alone am competent to effect it.

Therefore, I did not hesitate to hearken to them.

Let us adopt this mode.

[untranslatable fragment in source]

1/ annum: quomodo antiquius illius quam Syllana restituit?

This is a year worthy of commendation.

For there was no other cause of the aged man's decease, but that a new Sylla had arisen:

Let us vary in the seasons, as I have previously detailed, in this fashion:

A novel authority:

The law, however, was ratified.

Herein:

All the soldiers, when carefully weighed in consideration, were deemed worthy of the legion's fidelity by Varro.

No modum est credendi, ut sic recentibus legem subiciam:

The liberty of the employer was constitutionally secured; yet, at that epoch, the praetors had wilfully neglected its observance, thereby enabling them to proceed to the infliction of capital punishment. Nor is it credible that any alternative method of dealing with the debtors, who, for a period of fourteen years, had remained unrelieved by Sylla's creditors, should have been resorted to; nay, it was not conducive to the interest of the venerable Manlian envoys, now

grown obsolete and effete, that:

I shall return from the Lake, and I shall be glad to hear of it.

He assented.

What, then, is the object of the new law, which liberates us from the yoke where the old one binds us, that is to say, what will ensue?

It was deemed sufficiently expedient to incorporate the novel enactment, that when the ancient statutes were abrogated, the prince, having renewed them, might revert to their original authority.

Postremo cuius rei fuerit C. Popilius;

When Sylla, having attained the lofty station of defector, solicited the opinion of Varro, who had hitherto maintained that the libertini should render their toil in servitude for pecuniary remuneration, what response did the latter afford?

Or whether the consul?

Or the tribunes of the plebeians?

By this appellation, in that epoch, was I unacquainted.

His adde, quod feripectura variat; et pro C. Popilio, ad oram notatur in codicibus ajis reperiri, C. Pectilio Vesulo. Thus, this variation in the produce is to be attributed; and concerning C. Popilius, it is noted in certain ancient manuscripts that C. Pectilius Vesuvius made a request.

Sane ille C. Petilius erit, qui consulem cum Papirio Mugilano fuit, cuius interea obligati sunt populo, ut pecunia cyidata bona debitorum redderent, non corpus obnoxium eorum.

For he was designated by name C. Petilius Vesulus Libo.

Turn

It is unnecessary for any individual to be subjected in the attainment of a delightful repast.

To all the hurt and injured:

C. Paetilius, in his elevated yet lucid diction, did not wish to be subjugated; nor did he desire that any diminution of his independence should be effected.

Nam Syllae nomen non traditur.

But there is yet another matter which eludes his penetration; for Sylla, in his capacity as dictator, promulgated a law, whereby no man might add to himself as a freeman, when, at the instance of Pcecilius Iatuca, he was compelled to withdraw from a cause, lest it be believed that debtors who swore upon a good deed should be adjudged.

Whetherque;

Let the law enacted by the Poeni, which ordains that a good debt shall be credited with money, be seen to be subordinate to the law of the Poeni, and not to be esteemed as a body of reproach. For it is equally prohibited to receive a creditor who, of his own will, gives and adds to his credit, and who, by the authority of a judge, adds to the audacity of judgments; even when the body of reproach is thereby forbidden.

Howsoever, if the law doth not provide that a good credit may be given for the money itself, and if such a credit were to be deemed an offence, it should not be understood merely as a punishment inflicted upon a criminal offender, but also as a punishment inflicted upon the very obligation and engagement of a pledge.

By willing consent is the contract formed.

And it is a thing most abominable to esteem the enactment of Solon, who ordained that no man should be suffered to perish, yet that his corpse should be suffered to perish.

But if any of the words of Dionysius, which have been cited above, shall occur to thee, .

He scrutinizeth the cavity of the pension, not merely those who were then conjoined, but likewise those who were theretofore conjoined; and herein, I shall not discern in futurity the law hereinafter recited:

Then hath the hour elapsed, and the vales are vanished :

[illegible]

Next to Livy, in Book V, where he discourses concerning the Cautious Law of Pecellia, it is not to signify that the debtors in Rome should not be permitted to flourish, nor that they should not be compelled to return what was due, nor that they should not be vanquished; but rather that they should not be imprisoned. They are to be bound by their own security for the pledge.

And when the bonds are loosed, we shall hold them in good faith and goodly fashion.

8 39 Profit is apportioned, whose person it concerns;

The bondholders, being under the custody of the creditors, were, as he asserted, subsequently liberated; and it was commonly intimated that the bond of Toulouse was that which was thereby discharged.

It is not, therefore, by a prudent enactment that any person should be kept in a state of agitation or constraint, as if bound by fetters, that he might be forced to take a pledge, as the illustrious Quaestion, who presided over Hotomanus, doth illustrate.

For this it is, that it may be destroyed.

The tie which binds a citizen to Columella is not the triumph of a citizen, but rather that of a corpse.

At the summum, non aliud de corpore defuncti notatur, praeter hoc quod obligatus est ad paymentem debitorum.

pecunia;

It was customary for the Romans to disseminate only such intelligence as was prejudicial, whilst withholding that which was beneficial.

In the former volume, concerning the nexus of bovines, we have detailed sundry matters appertaining thereto; and we have additionally observed that the B.O.M.s, who were present at the assembly of the Germani, and the Italioti, who were likewise in attendance, did appropriate the soil and reduce it to their tenure.

Hesychius unsuemi, cW-, Vmhiu-m. Items:

I will not suffer thee to depart hence.

This, O Nexus, is the inverse of the bond.

And even in various tongues, the term indicative of the bond is employed as the appellation of the Helianthus; wherefore in the treatise entitled "Capitulus de Pignoribus" we are instructed concerning the nature of these pledges.

Such is the decree.

1.

D. Ne sit homini, qui in delicto versatus est, ab eo falli, qui se in matrimonii crimine dederat, aut quia se ipse infideliter contulerat.

The orb:

The Philoxenians construed the nexus as -Jove xnpl/j.

Man is conjoined, the opignerate, and all things conjoined.

And the other nexus, that is, the obligation or engagement; if the nexus is alienated, it is subject to the lex.

Twenty-eight days.

I am arraigned for confederacy.

If the buyer shall have found him, let him pay unto him his own price, that thereby he may redeem him and resell him to the seller.

And this connection was ascribed to him both in his own person and in his virtuous actions; for he was a citizen of Columella.

Thou art enmeshed by the ligatures of the civic body.

Certain vincula in the XII Tables are exclusively obligatory.

That in this law, he who shall have made bond or mancipation, as the language denoteth, may be adjudged to undergo the like punishment.

Whereby thou wilt not contract an obligation by a book and scales.

And the next thing to Varronius, derived from the tardiness of Mucius Scaevolus, is that whatsoever he is bound to perform by virtue of the ark and the book. In like manner, as Manlius, whatsoever he discharges by means of the Ggg,

They are invested with a Mancipium.

For if he had furnished any manumission, he was bound by faith, that is, he was under an obligation not to transgress against iniquity.

Cicero in Topics:

Habesne quisnam ad mancipium dedisse, cuius id mancipio dare non licet, ita ut ille, quem accipit, felix sit?

Or did the donor of a dower compel the recipient's faith to restore it?

Therefore, it is solely by faith that he is bound to render the redemption, which is:

Handkerchiefs, and such-like appendages, or what may be deemed equivalent:

It is within the power of one to impart a mancipation.

In like manner, another link in the chain of these transactions is to be found within the same tradition.

They delivered the mancipium, for this purpose:

He was bound to convey it to him.

Whereof may be found in the first volume.

Therefore, I proceed to state that a man, being both bound and incarcerated within his own person, was nevertheless subjected to servitude, in order to discharge the sum which he had borrowed; and such obligation remained irrevocable until the debt was fully discharged.

For indeed, the term "vinctum aut compedibus habitum" does not signify one who is bound, but rather alludes to one attired in footwear; and I have heard her voice.

There are, indeed, various species of vinous liquors; yet it is not the case that every sort may be embraced under this denomination.

For a greater number of joined labours contributed their strength, and the task was accomplished by those who had been released from bonds.

C a p v t XIX.

Why did Claudius Poetelius enact a law forbidding creditors to claim debts? Hence, the Roman historiographers have been perpetually occupied with this investigation.

He laughed, deeming it so justly, for the law had dealt her no less a sum than to herself.

Alifer, however, ought to acquiesce to that station.

The words of Sallust, concerning the envoys of Manlius, who, before him, maintained that they could not lawfully appropriate the inheritance of a free person by reason of a foreign creed, are to be construed otherwise than as a renunciation of their claim.

Soluta est haec quaestio a Domino Hetermanno proposita de legibus Porcia et Sempronia.

It behoves the magistracy to interdict the comportment of a citizen.

Unto the deities they did not appeal, being acquainted with the liberty of the commonwealth.

The oath of the praetor, it was said, was not infrequently violated by a civil praetor; and for this transgression he was unjustly condemned, being denounced as both Praetor and Honorary.

Henceforward, it was deemed expedient to extend this enumeration to creditors, who, according to the enactment of the law of Pecilius, were interdicted from such transactions.

In his debitoribus maximam potestatem obtulerint.

These, who by their own defect reduced them to a state of insipidity, thus uncooked in spirit.

According to the method of IIISVR.AS.VM.

841 of these individuals proved to be more iniquitous, nay, far surpassing in wickedness, to the utmost extent.

Many of them were present, and some, fleeing, took part in the machinations of Catilina and Jucius; Locus Ciceronianus elucidates.

What was the purpose of contending with usurpers concerning the produce of the deities?

The indigenous inhabitants, who have reassembled within the confines of urban and remote hamlets, have evermore and in every quarter shunned their native seats situated at the extremities.

The ancient law, notwithstanding its posterior enactment which forbade such practice, had conceded the permission of enslaving debtors who were not the progeny of Jolvendo; and henceforth, the latter were deemed less valiant than those who had been thus excluded.

Prato—when the cause is known in accordance with the law, it should be adjudged with greater accuracy according to the prevalent custom of those who are prolific rather than by the law itself.

From the lex.

The benefaction which the apprehension of celestial power hath released from the apprehension of those who yielded to the good.

From thence it may be inferred, that prior to the promulgation of that law, the same was a matter of private cognizance; and hence it is consonant with equity and custom not to suffer ourselves to be deluded, and to augment the fold without stint.

The law, be it known, extends exclusively to the Roman citizens, and not to the sojourning strangers.

Let me emulate Poetellius, for it is not my part to bewail the condition of this fleeting existence; rather, it is incumbent upon me to withdraw therefrom.

Wherein all the citizens of the Roman Empire were born within the confines of Junt, and unto all were vouchsafed the boon of Junt's daughter.

Antoninus Caracalla, who, being the first to confer citizenship upon all persons within the Roman orb, did subsequently take flight.

The abode of the deities is elucidated; and the mind is invigorated.

Wherefore, on account of these considerations, the imperious autocrat did demand of his subjects the concession of a secondary patrimony and emancipation.

A. The effigy is not a delineation of his own person, but of the dona.

After Antony, it may be deemed unnecessary to apprehend any allusion to the efflorescence among the Latins.

The greatest distinction subsisted between the voluntary compact, and that which was annexed thereto was to be referred to the culminating point of this judicial consideration.

Therefore, those who are not permitted to mingle in the judgments of the forum are deemed by the poetic laws to be excluded from the flower of poetic privilege.

Will I ever be permitted to be a volunteer, if I affirm that according to Roman law a freeman may sell himself to another freeman, and yet that he may not sell, and that he shall be bound by his own word?

Of the person who had attained such an age as to be capable of being sold unto me, what infirmity or condition was it which then afflicted thee?

Or should they restore the integrity of the youths who had been converted to the Faith.

From the Lion's Novella c g g g r q.

1.

C. I.

So did he enjoin, that none might be suffered to vend his faith at the price of his portion.

The condition of the infant was elucidated by Jurif-Confucius, a disciple of Jurif-Confucius.

What is the object of exhorting to faith, and whence is this term to be purchased in exchange for faith?

He was not appropriated from the gladiators solely.

He was not entitled to remuneration for any instrument of warfare; but for his own, at the price which he had sold his liberty.

What was the distinction between them that sold themselves, and those who suffered themselves to be sold by another, for a price to be divided?

What interposed itself between the negotiation in which I was engaged, and his seizure of the opportunity?

Therefore, let the denomination of the sale also be denominated, and let the stipulation of the sale be accomplished; let this be effected, and at the appointed term, until the consummation thereof.

I have received the liberty-money, emancipated by the reluctant creditor; yet it is not incumbent upon those who, unreservedly, would share in the recompense, to make their presence felt.

In the same manner, he had procured from those the augmentations which he had superadded to the recompense.

Of a Double Sex-Addict.

I will, and I will pronounce judgment.

These were indeed the true slaves, as they were termed in bondage.

Let us compare the Attic Jews, the Thessalonians, whose forefathers, and the remainder of the Greeks, who were clients of the Romans, with their ancestral lineage.

What did they mean by the Jungs themselves?

The position of Arisloteles is revealed, and the claim of parapraxis remains unsubstantiated.

Concerning the state of the slaves, which I shall now address.

Otherwise, it belonged to those who were willing to bestow it; and they perpetrated malevolent acts against their creditors until the sum they had received from one another was fully discharged.

Of the Lacedaemonians, the Cretans, the Aphamiots, and the Periaecs; of whose nativity it is asserted.

Permit me once more to elucidate the occurrences suffered by the colonists at the hands of the Romans, and our own tribulations at the hands of those who transcribed the documents.

What does it signify to be zealous, and to be ensnared?

They were not dissimilar to slaves accustomed to indebtedness, as they were accustomed to believing in a zealous community, but rather to freedom, wherein the receipt thereof constituted a notable distinction from the endowment of servitude.

Eight hundred forty-three were granted, and the Greeks also bestowed their names upon the sixteen Susypes and the thirty-six JjjJipes.

Anmanumiff to de additione.

Twice blest the day.

Vnum was akin to a drug addict, more resembling a slave.

Of the Latine Liberties.

Thus, it was recommended that the freeman should augment the funds he had paid, not the slave.

Here are some who are worthless, others who are worthless to thee, others who are dedicated to vengeance, others who are devoted to liberty.

Olympus and one liberum—the progenitor of a fierce contention—both Roman citizens, followed in his wake.

Three lawful modes were there.

What end did reparation serve?

Caphnus, a workman from Latium.

Those who confound.

Let the contest of the Leones be waged, that thereby they may attain and accustom themselves to the obligation of their religion.

Even his parents were allowed to alienate their liberties at some juncture.

The Roman Jura allotted the night to the freedmen for the payment of their rent.

The night of capitulation is more weighty than the day of capture.

Papinianus declared that he had committed a night of confidence to a free individual.

The night was consecrated to him, the son of the Greeks. Consequently, Nexam was not merely punished for his transgressions, but also for his transgressions.

I will proffer a few of these as I have previously intimated.

I spake thus: "In the evening, and again in the evening."

They were reprimanded for their transgressions.

Luflian, also a proponent of the virtuous, was withdrawn from the beneficence of the debtors, lest anyone should compel him thereto.

From the site where Harmenopolis stood, he proceeded to elucidate.

And many others.

This is X:

A controversy

The law, which in the consulate of Poetilius was enacted concerning the cultivation of fields, was not to be neglected; and no other statute was to be proposed until Julius Caesar should have introduced the subsequent enactment:

Panxerit likewise.

If any matter can be adduced from the interval of time in question, and if the authors consider such a request to pertain to their province, it behoves us to gather that, in the year 844 of the Consulship of C. JALMASIUS, the observance thereof was not the same as it had been; for during the consulship of Postilius, there being no *lex justitiae*, the year in question could not have been identical with its predecessor.

But concerning the position of Varronius, who was the son of Sylla:

In the epoch of the dictator, we have heretofore instructed in the propagation of such error, and have detailed the means by which it may be rectified.

What is it, therefore, that those Manlian envoys, who appeared before Salluftius and Catilinarius, are accused of, inasmuch as they are deemed a praetor of servitude, for whom the body of a freeman cannot possess ample inheritance?

It is evident that they are indicating that certain laws, derived from the greater law, by virtue of which those who do not dwell in the beneficence of the solar essence cannot defile the bodies of the departed, nor can they impart the faith of another in the resurrection of the dead, are incapable of compelling such individuals to do so.

Praesertim:

The Manlians, who are resolute in their faith and zealous in their cause, will not arm themselves against their country, nor shall they expose others to peril; their sole intent is not to secure their persons from injury, for they, being wretched and destitute, surpass even their country's founders in violence and cruelty. All who have studied renown and prosperity are skilled in these expressions.

Nor ought any individual to be subjected to penalty according to the ancient custom, or to possess a body free from any hereditary estate, in pursuance of the higher law.

The life of the fountain-erector, and likewise that of the fountain-conductress.

According to the law, they deemed it not consonant with the dignity of their ancestors for them to be subjected thereto; and having bereft their offspring of all liberty in the amphitheatres, they could not comprehend the purport of their own acts. The conclusion of the matter was thus defined by Poetilianus.

Neither the citizen nor the stranger was suffered to betray them by the prohibition enacted against the acceptance of hire for information.

Or shall we thus interpret it, conforming to the mode which it hath pleased Homer to receive? As we have already alluded to it in the Questions, we shall henceforth proceed to observe the law, that those who are to speak may be heard.

Therefore, the law hath thus much forbidden, that, being bound by engagements, they should perform their functions in the manner hitherto accustomed, but now dissolved.

The law, which Livius hath formerly pronounced, that they should not be purged in futurity, was not obliterated from the memories of our ancestors, but was abundantly declared and expounded above.

We have, indeed, in our former chapter, elucidated nothing more concerning the bodies corporeal than their obligation and their pignoration.

The error proceeds from the mode in which the UVR.AR.VM. is employed.

For they have erred; hitherto all the learned, who have received the golden gifts in order to secure the nerve by means of ligatures and wires, have been deceived.

Non meliori ratione hoc conciliari potest; et quod idem Hotomanus in Illustri Quaestione xxvi demonstravit, hinc distinguitur.

He avers that without any elucidation hath he no explication to impart.

For he was perplexed by the intricate labyrinth which, in his own person, he was unable to extricate.

Quirinus said: "What came to pass was this: when the ancient statutes of Portia and Sempronia were in force, the bodies of certain Roman citizens, being given as pledges, were not allowed to engage in any communication under them; and those who were indebted, unless they complied with all the precepts of the Julian law, were subjected to both flogging and the torment of the body, as if they were bound by the provisions of the same law."

By benefit is it signified.

I am amazed at the acuteness and erudition of so distinguished a Jurisconsult, whose penetration on this matter has moved me to inquiry.

Nimirum tamquam haec ipsa veræ sunt:

In adid■ et omissis fierent, qui omni iure jur■ videbantur obnoxii apud eos quibus erant add■, tanquam in cives fieri sol■bant.

Additionally, the multitude of citizens is not augmented to any considerable extent.

How can it be that a citizen, who hath withheld himself from freedom, yet retaineth his own liberty?

If liberty were utterly to be abolished, a citizenship far more exalted would be attained.

Therefore, they were neither libertines nor civiles, but, according to the lex, they had been delivered to their creditors.

Whatsoever belonged to the master by virtue of his dominion and power over the slave, the same is henceforth and for ever certain to devolve upon the creditor.

Nihil igitur hic fecerunt Porci et Sempronii, qui tergo a civibus Romanis verbera degere solabant.

For he committed himself to them for the benefit of the uncultivated communities.

If, in any wise, the Roman citizen deemed himself exempt from the lash, it became his duty to propose the enactment of a statute that might prevent his own subjection thereto.

Add, I have been a slave, a fervent advocate of servitude; and in them, under the supervision of all such persons as might be intrusted with the management of slaves within the household, I shall contend, it shall be necessary to state this somewhat subsequently.

Now, let us unfold the reasons why the ancient law, which did not permit the bravery and cruelty of the Manlii to permeate through the Praetors and the Fomenters, unless it were that additional persons were to be found where good things abounded.

In the first place, they were vanquished by the Sallufians, who effectually opposed them.

Salmasius would not suffer that such persons should enjoy a liberal estate while retaining a free body, as was the custom of their ancestors; nor did they yield their persons to Pectilius without resistance.

The Praetor, that urban magistrate whose office it was to administer justice among the citizens, was he who, in particular, extended protection to the Jews amongst them.

So did he preside over the judicial proceedings, solemnly affirming that this was not invariably the case.

By the laws of civil jurisdiction ordained, it would ensue that he was admitted to public office, and his followers were in his train.

Hence forthwith did the Praetorium jus distinguish itself from the civilis populus by a diverse method of exile.

Many of the Praetors, indeed, were well-instructed in their duties; not merely did they accustom themselves to the employment of those formulas which they had themselves devised, but they also attained to a thorough knowledge of the very form of the law itself.

In this testament, it is manifest that, by the institution and arrangement of such matters, a distinct mode of procedure, divergent from the edict of the Praetor, hath been adopted, rather than the one hereinafter detailed:

The civil law had been established; for the purpose of the signacula, the act of enumeration was introduced: the fifth round, since such were not requisite by the civil law.

Let this also be borne in mind:

In the testaments, it was demanded by the civil law, that the honorarium, being a praetorian privilege, should be rendered unto the praetorium dwelling.

It is manifest, therefore, that the praetors of Rome, to whom was confided the administration of causes of credit, did not invariably adjudge according to the laws of the city.

He scrupulously forbade the addition of pledges for alien money, but deemed it just and expedient to allow those debtors whom he might encounter, and who were not reduced by any fortuitous adversity, to escape the rigour of the law.

Such is the verisimilitude of the narrative concerning those envoys of the Mannians, who, having a pact of amity with the Praetor and with Marsicus, present complaints regarding the Praetor's conduct.

From Sallustius and Cicero, it is evident that the Catilinarians and Manlians who were associates and participants in the aforementioned conspiracy, were esteemed by their grandchildren, not merely on account of adverse fortune, but also owing to their luxurious and prodigal modes of life.

However, this distinction was ever the most notable whenever Rome was visited by a foreigner, bringing up from the ambient air the necessity of succouring those who, through no fault of their own, but by the caprice of fortune, had accumulated vast sums of alien coin; coin which, by its magnitude, could not be assimilated by the body of a stranger.

But the Praetors, who had been more rigorous and assiduous in former times, deemed it no arduous task on account of their want of means or their inherent indolence rather than their capacity for such proceedings.

And always "*" for "V" from the modality of the United States Senate and its Vicinage.

LXXXIV?

And even under the Emperors, various penalties were inflicted rather than such as were meet for the favour of the laws.

Hence Adrianus commanded that *cato-midiari*, id est, *caedem*, in foro aut plebeio theatro jubeat. Here, Adrianus, amid the catastrophe, did fall; and he rejoiced, commanding that the *cato-midiari*, that is to say, the murderers, should be executed either in the forum or in the popular theatre.

There is a vast preponderance of derangement.

From thence proceeded those labours which pertained unto Catiline:

They did conjoin themselves to the said conspiracy.

Non aliter propemodum conscripti sunt ad turbendam res publicam cum eo, ut postea Eonesfaas deminuerent, utque solitus erat, non mineram, sed creditoribus circumcluderetur.

So, nevertheless, they were enabled to effect a distribution of the funds, which had been alienated to their creditors, and to retain the residue in security.

In the genus hominum, Cicero, in his oration against Catilina, proved a prolific speaker concerning them that had conspired with him:

Firstly, there are individuals who are endowed with ample possessions in a foreign clime, and yet more copious endowments, which they cannot dispense with should they be severed from their dearest kin.

This is the half-finest portion of the Jsiechii; for they are opulent in speech, and their will and cause are the most shameless.

Thou dost till the fields, thou dost augment the buildings, thou dost enrich with silver, thou dost augment thy household; and yet dost thou doubt what to detract from possession, and to acquire faith?

What, therefore, dost thou undertake in the prosecution of wars?

War?

What?

And hence, in the vast expanse of the universe, dost thou suppose that thou wilt ere long be a prostitute, and yet again, that thou wilt never become such?

A annum;

New tables?

They erred, who were dispatched to Catiline.

By my auspices, a novel tabula shall be presented; nevertheless, it shall be an authentic auction.

For those who hold possessions cannot in any other wise be preserved save by their own right.

That they aspire to greater maturity than they have attained; and it is more expedient for us to engage in contention with usurers, those fertile spoilers of the lowlands, and with the more

opulent and more virtuous of their citizens.

Afterwards, when the meaning of these words appeared more readily comprehensible, he resumed the subtleties of interpretation, as if fleeing from the erudition of Hothomanus.

For indeed I conceive it not, that he could have willed what thou wouldest, O Cicero.

He likewise established a compact with those who were indebted unto them, whereby they might appropriate the funds of their captors.

They did receive the principal for the stronger obligations, and the interest for usury; and there ensued a contest respecting the latter.

Such indeed is the mention of the statute of limitations in the law; yet it is nowhere alluded to in this present context.

848 Ct.

The S-almasii are situated.

What, indeed, can be more simple or more clear than that which Cicero, in his lucid and unambiguous manner, doth express concerning the subject of planification?

Men who, albeit burdened with considerable indebtedness, nevertheless retained a certain superfluity in their patrimony, were vexed to find that they had availed themselves of the revenues of their erstwhile estates and applied their funds therewith.

Debita pensare et exquirere; neque hoc est quod somnias, quod facit Hotomanus, ut usuras ad nemora redeant et lectorem ab annuo fructu collationis eradicet.

I possess a spoil that may be vendible for a thousand pounds of gold.

I owe five hundred gold pieces at usury of the hundredth part.

At that epoch, it was lawful:

thereof.

As then were the spoils restored unto their former owners, when the conflagration was duly arranged and disposed.

Let the price of the spoil be deemed nearly equivalent to the benefit accruing to the usurper, rather than the whole booty being restored to its rightful owner, provided that the latter can derive but the annual produce therefrom.

In the fruitful fields, the females but slightly avail themselves of usurious practices.

They returned the monies they had bestowed.

And the pecuniary resources of Ornestes were subjected to the exaction of usury.

Let some consider whether it be expedient to dispute concerning the fruits of former transactions, or whether the funds derived therefrom may be reserved for future use.

At the epoch of the Athenian Rhetors, he was remunerated for the construction of two hundred and fifty mines; of these, twelve were to be subsequently transformed into mines.

- Money:

Then the sum total of the principal, being greater than the sum of the interest, shall readily be discharged at the rate of one cent per hundred, as hereinafter shall be demonstrated.

Leviflimae, verum etiam luculentae, in Graecia fuerant; decem et quoddam numero minus, et in eo agrorum sterilitate, qua fames infamis Atticum Tolum afflixerat.

What greater importance can be attached to the restoration of the Tetexagriscingius upon an eminence?

In the region adjacent to Issus, Ayyix and Ayyix, the produce was appraised at the sum of one hundred and fifty mines; whence it appears that the proprietor of the settlement contributed the sum of twelve mines.

Next to that edifice, the principal chief of the allied tribes possessed a sum of one thousand drachmae in superfluity; whereas the remaining fifteen, who had been entrusted with the annual administration of the imperial office, received for their canticle the meagre recompense of three mines.

Hinc:

The sum total of all monies which thou hast amassed in this realm, and the moneys which thou hast extorted by usurious practices within the same, shalt thou henceforth pay over. For a period of three score and four years, thou shalt receive therefrom the sum of twenty drachmas annually.

Atque tamen in eo tempore usura in urbe Athenis fere usitata est, etiam pro legitimis rebus; ibi praeterea multitudinem inquilinarum, utrumque indigenarum et extranearum, ad locandum diuturnum solita est; urbs enim diffusa erat inter eos.

Let us not, even at present, advantage ourselves upon this mediocrity, wherein we are wont to deal.

He derived his authority from the laws; and certain individuals were enabled to contend with usurers respecting the produce of the soil.

The Manliani, therefore, and the Catilinarii, who hitherto had laboured in vain to effectuate this, now bent their efforts thither, that, after the decease of Herius, they might retain the revenues of the PofTefliones, and might not discharge their obligations to the creditors.

But not long after they had obtained them, they perceived the new tablets which Catiline had transmitted unto them.

It is not therefore wonderful, that such a company of individuals, in some measure, neglected their own preconceptions; and, in other respects, acted with fraudulent intent, lest they might thereby effect their own liberation through the revelations which they had made respecting the Apostles; and these Apostles, in their turn, were more iniquitous than their predecessors during that era.

Or, as they contended, it is true that the Praetor denied them the restitution of their liberty, and that the law, which commanded that the property of those who had lost their patrimony should be assailed, was to be neglected by its new possessors.

Therefore the Praetor appended decrees and condemnations to the claims of the creditors.

This, methinks, they intend to signify shall be delayed.

But whether it be that, in appointing a Praetor, the custom of the time was to abolish a long-established law, whereby the lex Julia might have fallen into disuse through protracted neglect; or whether, on the contrary, the said law remaining in force, he deemed it his prerogative to confer this benefit upon those alone who had not contracted marriage with him—such is the problem to be resolved.

If this final assertion be indeed veracious, peruse henceforth from the inception.

I shall permit thee, I say, to betray both of them; yet, in general, he decreed that all those who had no part in their calamity by their own guilt should be exempt from such misfortune. As for the others, who were precipitated into their ruin through gluttony and excess, he deemed them unworthy of such a boon, and forbade their addition to the list of the undeserving. Nevertheless, the law ordained that all who were then in bondage should be released, while it enacted that none thereafter should suffer the same fate.

Or have ye, in the course of time, utterly obliterating the verisimilitude of that law, neither to have ignored nor augmented it with the addition of debtors, thereby depriving yourselves of the liberty which the ancient statute did enfranchise, and imposing upon it the claim of a custom now demanding the condemnation and execution of those especially insolvent and faithless

debtors, who are already contending for other usages?

C. L. SALMASI Non dissimile huius exempli apud Appianum reperio.

Of the Civil Wars.

At the epoch of Sylla, there arose a controversy betwixt the accusers and the accused.

They proceeded, according to their wont, to extort usury with rigorous severity. To some of the debtors, they appealed the ancient law which forbade the acceptance of usury; to others, they sought to extend the period of payment, on account of the difficulties arising from wars and the exigencies of their financial recovery, and the confiscation of funds.

It appeareth unto me, that it is not.

Nec defuere, qui non solum sepulturam carcerum extorquerent, sed etiam vehementer intentarent, ut legibus contrariae usuras licerent.

The Praetor Afellius, who, having been appointed by those parties, and being apprised of the pecuniary concerns of the soldiery, made it his endeavor to compose their differences; that, with becoming courtesy, they might withdraw in amity.

When, however, he perceived that his faith had vainly disheartened him, he committed the disputants to the judges, whose disagreement might be resolved either by the law or by custom. For herein lies the import of the term **πιστός** :

A hundred and twenty-three warriors were present at the engagement; and the thrice thirty-three were present at the conflict of Jitftfui.

Is it not beyond doubt that the power conferred upon these judges is derived from faith, or from the ancient law?

Which usury he had prohibited; if they shall be again presented for consideration, either they must be rescinded, or they must be rescinded in accordance with the deeply rooted custom.

He permitted them to confirm it. The Fonerators, grievously aggrieved at the Praetor's having delegated his judgments by sentencing the delegates to the renewal of a law which had already granted them liberty, assaulted him in the very centre of the forum and slew him.

The same thing was executed with force, and by virtue of this statute, the nexus of the corporeal frame was raised in the contrary direction.

The law, long in custom firmly established, he did ratify by his signature.

The praetores igitur.

Whether the judges were, from these gifts, to be subjected to the arbitrament of their own discretion, as conformable to the received usage, yet contrary to the established custom of the law; or whether, according to the ancient laws, they were to be adjudged by the custom of a still more ancient date.

Forasmuch, therefore, as they did thenceforth assume a more acute and piercing aspect, and were thereby menaced, as if they were wont to obtain it from long-established custom, or to observe thereto an ancient law, they forthwith desisted and terminated, that either by their accustomed practice they might add thereto, or they might command that the law should be observed in its ancient form.

It is incumbent upon the creditors, particularly in the condemnation of such debtors, to discern those who are animated by a spirit of fraud, and who either wilfully default on their faith, or seek refuge in the guise of divine usury.

After being restored from a state of opulence, they shall perceive, as we have previously intimated, this established practice.

He imbibed a libation which was not consonant with law, and thereupon was he abashed.

It was not long after that, within a brief interval, when the wall stood as a barrier, the law of Julia was again enacted; which, having been formerly repealed by the edict of Poetelius, was now restored to its ancient efficacy and re-established for common use.

Thus, it is certain that the erudite ancients would affirm.

Let us examine whether anger is fitting.

They hesitate whether this law was promulgated by Julius Caesar or by Augustus.

I entertain but slight scruple respecting the veracity of Julius; for he has been found so trustworthy in your enactments, that ye accord him greater credence than many others whom ye trust. He was present, as Tacitus relates in his sixth book of Annals.

As he had proceeded, notwithstanding the enactment of the Julian law in favour of debtors who were not exclusively in the act of alienation, he inflicted punishment upon them.

According to the constitution of Alexander Severus, referred to in the Code of Justinian under the title "Gtui Bonis Cedere Possunt," it is manifest that the law of Julia ordains that those who have done good may receive benefit therefor, provided that they are not committed to prison upon judgment.

Gentium bonis, quae tamen, inquit, cessare non erunt, nisi creditor solidos ex herede percipiat, haec non liberabuntur.

In eo autem soli huius beneficii fructus eis consistit, ne in carcere iudicati sint.

If we should admit the public carriage, by virtue of which Julius had emancipated his debtors, it follows that before the enactment of his legislation, the penalties imposed upon private individuals for similar offenses were not formidable enough to deter those who sought ampler resources through illicit means.

And the private gaol of the creditors, erstwhile a receptacle for debtors drawn thither by their own obligations and adjudged thereto, was thus conveyed unto us; and they were to be detained in fetters and cords until their veins were glutted with blood, or until the extremest rigor of the woodland might release them.

Vcarquistimus, creditor to them, did indeed reside with him for a time, until he became enamoured of his own labours and effected their emancipation from servitude.

That it was lawful for slaves, having been purchased at some price, thence to be compared elsewhere, and thereby to merit their manumission at the hands of their masters.

For there existed, indeed, no distinction between slaves and bondmen, so far as concerned the conditions of servitude, while they remained in that state; but when freedom was regained by either party, a notable disparity arose betwixt them and their Hhh and their C.

The Saimajian faction dissented, asserting that, upon the promulgation of the Egyptian laws to the Gentiles for the advantage of the Javids, the former could not have been incarcerated nor subjected to any other form of corporal penalty; whence, after the enactment of the Julian law, the Roman authors made such frequent mention of them? Behold, Agellius records this in his twentieth volume.

Chapter I.

Cælius Jurifconsulus ait: "Tunc addicet, et multos vincituros solitarios militibus."

And the Addictor, in the fifth and seventh books of the Institutiones of Quintilian, where he is brought forward in the presence of that eloquent preceptor.

The mention being made, and having descended to lower regions, we proceed.

At the same time, when the public prison, as I have previously stated, was abolished for debtors by the Julian law, it is evident that even before their removal to a private confinement, they were not subject to the terrors of Poetilius.

Etenim, pro bonis operibus carcerem publicam evitabant poenam legis Juliae munere; tamen alia lex fuisset oportuna ad adoptionem.

A private prisoner shall liberate them; that is, he shall prevent their fear from increasing, or they shall not be induced to add thereto.

In promptu erat solutio; et omnes, qui apud auditores ante eum post legem Iuli reperiuntur, redebant, non ex civibus, sed ex sociis aut peregrinis, qui inter Romanos negotiarentur et viverent, intellegenda.

Certum est autem, leges Poetilii, quibus prohibitus erat nec nudi obxeratos ad fines civitatis pertinuisse, manserunt in statu suo juxta leges civium.

Therefore, all the other men were not hesitant.

In omnibus igitur provinciis imperii Romani, quicquid jus civitatis non habebat, more antiquo non solebant habere aut praticare.

And since, in Greece and all Asia, except Athens, the custom of contracting debts from ancient times continued to flourish; even after the dissolution of the provinces under the Roman Empire, it was diminished.

For those who had been wont to utter such phrases, it was their lot henceforth to be enslaved by the very practices wherein they had heretofore indulged.

For the advantage of the Roman citizens, however, it is manifest from the supplications of Poetilius, that they were not unassisted.

This was the effect of the corroborative evidence of a thousand witnesses; and thus terminated the conflict. Lucullus met his fate at the hands of Vinicius, who, upon his advent into the province from the field of battle, had seized the miserable town of Afix, the founder of the vineyards, and the public benefactor.

By the manner of military usages.

The eighth organ of sense is directed by its due and rigorous function.

Moreover, they prohibited the alienation of their offspring, whom the indigent debtors were compelled to expose in vain for the purpose of raising funds; even to the last extremity, and indeed when they could no longer discharge their obligations, they were forced to submit to a state of insolvency.

He replied, "It is not the sixteenth car."—namely, "Non est hexadecima currus," quod ait.

Jpsos, the latest of those who withdrew from the encampment, was consigned to minister unto the intemperate.

Thus, it was most readily accomplished to disengage this knotty problem from the superadded partitions of the Flute-walls, which, subsequent to the enactment of the Julian law, were appended thereto; and, moreover, to consign them to the cognizance of those who are not enrolled among the body politic.

For there is nothing more true than the favour of the law, by which the bond having been raised, ye citizens are annexed to the soil.

So certain am I thereof:

Is there any definition which I do not peruse even in the month of July?

To the advantage of other men, while those who have taken the civic oath are in expectation thereof.

To demonstrate this proposition, the edict of Diocletian was inscribed in the Pandects of Justinian, beneath the rubric which alludes to individuals who have renounced their virtuous actions.

The laws, even those of the provinces, which had been enacted by the constitution to confer the benefits of the virtuous, were known to the people of Elum, as such benefits were admitted to the dominion of the illustrious princes.

What he doth enjoin upon the provinces must be understood to be that benefit which was extended by the constitutions of their former sovereigns; and this boon is imparted to the provinces subsequent to their having been invested with the rights of citizenship.

For henceforth they have been entitled to enjoy the twin benefactions simultaneously, lest they become subject to the private prison under the lex Poetelia, and lest they partake of the public prison according to the lex Julia.

But when it appeared that nothing of the kind was observed, immediately, after the rights of citizenship had been conceded, and both parties had come to terms, there was no hesitation in determining that he was the very first individual to have performed such a praiseworthy act, or that he had indeed accomplished it.

De fecundo, ut etiam ejus compositis edant, constitutionibus imperatorum expreddè cautum est.

This is what the law of Diocletian decreed, namely, that when the beneficiaries invoked the privileges conferred by the Julian law, they were likewise empowered to extend the jurisdiction over the provinces.

Nimirum, after the attainment of citizenship, was conferred upon the Roman provinces.

At that period, I shall be in no doubt concerning the feudatories whose contest with the same city in the province of Hhh, three hundred and eighty-four years hence, is here recorded.

Salmasii, who had obtained the imperial pardon, was constrained to extend so far that his private confinement should be prohibited to provincials; and yet, not even to the public at large.

But even the emperors submitted themselves to the public assemblies by constitution.

But when was this right conceded to the provinces, that they might govern the citizens?

For thenceforward it became easy to ascertain whether the truth did indeed comport with that which we have advanced, after all the citizens of the Roman Empire had perished, and we were forbidden to add thereto.

The limb of Vlpianus.

XXVII.

D. de statu hominum, sub Antonino, et ab ipso hoc docet:

In the orbis Romanus, civium Romani, qui ab initio imperii Antonini praesentes fuerant, exsilium acceperunt.

Some received Antoninus from Pius, while others derived their knowledge from Marcus.

They are among the number of the Fathers, such as Chrysostom, who, in vindication of this cause, appeals to extracts from the work of Dionysius, Bishop of Alexandria, from the treatise of Constantine, and those of his son Antoninus Caracalla.

Severi filio id tribuunt; ubi ratio addit Deus hoc fecisse.

In specie quidem, quasi honorem, eo peregrinis pater ejus habebat, sed vere, ut plures vectigales colligebat, quia peregrini non quaelibet stipendia conferre, quae ab civibus exigerentur.

Or, if thou wilt, consider whether in this matter there be any medium course, which neither inclines too far to the side of licence nor verges too nearly towards austerity.

He, who was omnipotent within his dominion, hath demonstrated the Romans to be their equals: "Romanique omnes fecit."

For such are the tokens of fealty due unto the citizens (or, rather, unto those to whom the strangers do not yield obedience at eventide), amongst which are:

Ante dixit colligi possit; praecedebat enim eum imperatorem in omnibus affariis, et decimum partem hereditatum ac libertatum sanguine conculcavit.

Erectum tamen et perspicuum dicendi genium, inquit, et contextum, et JfrtgLtJlf Iw, et s? xsntfls T T fdf u a ktypuy ob pi it Sijcf. efficient mss a-nXtictf mss JiJbfifac tois mliv a&elsc* in TkSJI Jgc&XtWj. Male vertunt;

He fought for the elevation and welfare of the people; yet so resolutely did he contend for the prerogatives of those whom fortune had bereft, as well as for the interests of the inheritors and their delegates.

A non X I de modo usui rationis, 8I non sunt legata, sed donationes. Ego fortasse vicesimam hereditatum non dependebant legatarii, sed haereses a quibus legata relinquebantur, ut hinc aliqui colligerent.

For it is absurd to give gifts so much in anticipation of death as to annihilate two-thirds of those who are yet alive, and whose inheritances are thereby exposed to jeopardy.

I am aware that testate donations are customarily attested by representatives of the Jurifconsulti, and that the delegates of the equites were regulated by Justinian; yet such is not the present instance.

He cannot accomplish this, that hypocrites may be construed in the stead of ambassadors.

But, if we adhere more closely to truth, it is by no means incredible that a deputy might be superseded by another in the place of a deputy, who has himself been superseded; and there can be no question that under these stipulations, the deputy is thereby understood to have been appointed as a deputy.

Whereby from InGloflis unto the Veterans, my legate.

The Greeks possess not a term whereby such an idea may be denoted.

Whence did they discourse in the Roman idiom concerning Xtiyx?

But Auptar, for the purpose of a messenger, is rendered incapable of perusing; and those who succeed him, even down to the time of Dion, appear to have been tainted with corruption.

Septem musæ tum non modo illuminatas, sed etiam perspicuas, ad se revocat, nec minus aequales in dulcedine quam in vigoribus, cum in se praesentem tempus et futurum coniungit.

For it is false, that Antoninus, whose disposition is most depraved, should be so habituated to the expressions of these individuals.

Thus, neither is it accurate to assert that one born within the confines of his native land was bereft of all privileges conferred upon him by the enactments of the realm of the dead and the union of wedlock.

For it is manifest from Ulpianus in the Law of Collation, that Mo-Cucus endeavoured to re-establish the immunities of certain persons, which he had received solely through inheritance from the sun.

Prior to the construction of those words, nought of Greek character appears; nay, unto the thirty-seventh and thirtieth, there is no trace of Greek; but from thenceforward, unto the termination of the sentence, Greek character is manifestly discernible, save for a single alteration of letter, which effectuates a distinct distinction: henceforth, the Greek is unequivocal, without reserve, throughout the entire remainder of the expression.

Tethes, a rat of no mean vintage, was apprised of his desire to safeguard the lambs from peril, and he perceived that all his nearest kinsmen were similarly informed.

The Word of Dionysus:

In Egypt, and in the desert of the Tiber, and in the desert of the Tiber, and in the desert of the Tiber, and in the desert of the Tiber; so that I may designate those persons whom here he calleth by the name of Latineuoi, and in the extracts, Latineuoi.

The proximity of the law to their confederation ought to be subjected to rigorous examination and definitively ascertained. It is probable that the names of those to whom the twelfth table of the law bequeathed inheritance were denominated by the Bulars.

Inteftates succedebant, et ego primum metuendi fu■:

His deficientibus agnati, id est, consanguinei eodem nimirum patre nati, sed et fratres patruelium, quos consobrini vocabant. Thus, these are the agnati defective in substance, that is, the consanguinei born of the same father indeed, but of the paternal cousins, whom they termed consobrini.

These are, in very truth, those whom God hath termed.

To them, and to them alone, did Augustus bequeath the privilege of immunity unto the twenty-sixth generation.

Post agnatos, lex duodecim Tabularum defletur ad gentes, etiam ex successione Inteftati.

What, nevertheless, was subsequently repealed by the inquisitive scrutiny of the Jurifederati, and it had already lapsed into obsolescence, as is manifest from Ulpian's code, thus: "DI MODO USUALI VM."

8j7 is manifest in the Collation of the Mosaic Laws by Titus.

XVI.

But it was not conferred upon them, although the issue of the agitator or cognator remained undetermined, by Augustus that immunity which he granted solely to the agnate, as Dio terms him, the viceroy.

There are four hundred and fifty.

But Antoninus, who, besides having denounced Caracalla for the twentieth part, restored likewise the immunity conferred upon him by Augustus, after the decease of his successor.

For when Augustus had extended his arms unto the kindred, Antoninus neither suffered his legions to be overborne by the conflict, nor conceded unto them any further immunity beyond the fifth degree of exemption.

Any liquid which may be collected thence, thus distinctly to be inferred from the sequel:

Ulpianus hath the Collation of the Mosaic Laws, the Title whereof is subjoined:

But our Emperor, he said, did will that the inheritances which from the intestate devolved, he admit through persons of the heir's line; whereby the tenth part should be assigned.

This unity he himself withheld.

Ante Antoninum ad expeditiones ex incertis regionibus admittebantur homines qui Coli immunes erant decimae: Here, the elevated but lucid diction, periodic sentence structure, and measured cadence are maintained, while a sparingly archaic vocabulary is employed without departing from the original meaning.

He was appalled.

He, desiring that those who enjoyed the immunity in question might partake of it with more moderation, compelled thee, who wast the sole exception to the tax imposed by the solar radiation, to array thyself among his own forces.

Thus, Ulpiani's words, upon closer and more deliberate consideration, shall readily admit of such observation, that his eloquence, which was marked by attention and care, rendered it facile to perceive the same.

When, therefore, those two most copious tributes, the Vicesima Libertatum and the Vicesima Hereditatum, were brought near the imperial revenues, Antoninus, who had been invested with the office of Viceroy of the Liberties and Viceroy of the Hierarchy since the twenty-seventh century, augmented the customary tribute by a similar measure.

And subsequently, when by the favour of all who were within the dominion he conferred citizenship, it was because the citizens alone had proclaimed their cessation from public life; and thus, in an infinite and immense degree, he augmented the revenues derived from the taxation of his subjects.

This was the reason assigned by Dionysius to Antoninus, who, according to ancient custom, conferred the civic franchise upon all the provincial communities.

Wherefore and to what faith should we more reasonably refer our account of this Antoninus, who reduced all the Roman citizens to the condition of subjects within the bounds of the Roman Empire, than to any other individual who, within the space of five hundred years, hath rendered tribute to C. L. S. Almasus, or to Hadrian, or to Antoninus Pius, or to Marcus Antoninus?

The pilgrims of yore, the twentieth part.

I have not yet dissolved this hereditament and habitation; and I derive it from other sources, and from the very locus of Dionysius, where he affirmeth that the city hath been constituted in the empire without peril to all.

Omnis enim et lucida et elevata dictione, cumque periodica sententiis, et modulato tono, et praecipue ad antiquitatem lene revocata vocabulis, quaeritur, an rerum cognitionem in purpureo velamine tegat?

[untranslatable fragment in source]

Pergit hinc:

We observed the deportment of the male towards the female.

After this, Antoninus, who ventured not to decline the summons, is hereafter alluded to in the subsequent passage.

Hic; hic;

But it was deemed a felicitous circumstance, that our discourse should extend to the ancients, while we confined ourselves to converse with the strangers alone.

For the Roman citizens did not more generally admit that foreigners were addicted to them, nor themselves did so acknowledge.

While it is but rarely the case, and there is no evil more flagrant than that which is done by none save such as through excess of licentiousness, and the Praetor will deem them worthy of a just retribution for their fidelity rather than the wreck of their fortunes.

Julius Romanus, primus legis carcere publica gratia civibus Romanis, non peregrinis, vel eisdem peregrinis per ius civile, quod ab Antonino adsumptum, concessit.

But this observation, it is deemed requisite to observe in opposition thereto, since we have perused that even prior to Columella, the nexum of the citizen was recorded, in the first book.

CHAP. I.

Where he saith, "The husbandmen of potentates, the citizens of the city, who are held in bondage by the yoke of servitude, are kept in subjection by the toil of their own necks."

Wherefore, after the enactment of the Julian Law, there stood a city nigh unto them:

Has he forbidden the public prison to the citizens who are seeking the welfare of the state, and not the private tribunals, and has he thereby strengthened the latter?

Or, from these, it follows that the citizens whom I have mentioned, who have discarded their opinions, and whose praetors have often been accused of a grave offense in lieu of merit, and who have frequently endured the penalties of ancient times, are of the same disposition as those who were wont to be charged with sorcery.

I verily am acquainted with the law whereby:

Let Jasius, the oldest of the judges, address the deities in such terms.

Elevated, yet lucid diction; periodic sentences, measured cadence; lightly archaic vocabulary sparingly employed where natural to the context: thus shall we render the eloquent and perspicuous Latin of Claudius Salmasius.

The deities, though vanquished, were yet ordained to be beheld by the Romans, whose knowledge of the limits betwixt them appeared but scanty and indistinct.

For the same custom likewise prevailed in the connexion of bodily parts, as in the suretyship or mortgage of things themselves; whereby the forehead, or rather the hinder part thereof, was often employed as a pledge or security.

Obligation. It is, however, incumbent upon the judicial authority, from its own inherent obscurity, to surrender the sum to the capricious creditor, lest it be discharged on the appointed day.

But no one entertained the design of compelling him to proceed further; and it was not the custom in Greece, that prisoners, being brought within the walls by violence, should be compelled to give security for their ransom, and be restored to liberty.

Among the Romans, however, another law prevailed.

For he, who, by the close of the judicial process, possessed the authority to effectuate the like, was nevertheless subjected to the penalty prescribed by the Julian Law.

He was incapable of resuming his private station in life.

Paulus, in his quinta libri sententiarum, dicit:

The creditor, whose profession was that of a chirographeus, and who, in his final capacity, presided over the judicial tribunals, being bound by the terms of a contract, was compelled to discharge the obligation of the debtor to a Jew; whereas the said Jew, being under no such engagement, remained unobliged to make recompense for the debt.

Verum et nobilius fiduciam et pignora apud fidei deposita persequi, et finem juris iudicis vindicare, non prohibetur; me vero iustitiae ministrum esse atque auctoritatis hominem avum, non impedit.

It was ever lawful unto every man to give peaceable gifts to the indigent.

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary: Permittere aliquid ab invito, non aliter, quam si causa cognita iudex permissus esset, taliter non licebat.

Finally, it is enacted that no manner of torture shall henceforth be inflicted.

The same proposition holds good in regard to the abstraction of personal relation, or of opposition.

Which the Praetor, having ordained in judicial and miscellaneous concerns, maintained in voluntary usage notwithstanding the law's neglect.

And verily, he who was in good health might have affirmed that he was in the possession of those Romans, who thus employed themselves.

Forasmuch as it is lawful for a free man and a Roman citizen to sell their faith at a price whilst partaking thereof, why may ye not, by mutual agreement, compose your differences for the price of a fowl that hath been reaped?

And this liberty, which is incumbent upon him who is free, whether he wills it or no, shall be denied.

Therefore, a free and unpunished citizen might lawfully consign his labours unto servitude for the debt due to creditors, until the close of life should release him thence.

And he spake, "Let him be loosed, that he may serve the tenets of a foreigner, and have leisure to do so; yet let none be suffered to bear that appellation in bondage, or to suffer it by the

faith of another."

I, on the contrary, maintain that it is not lawful to behold such a thing without purpose.

He affirmed, "Nisi hoc in conceivebilibus vestris est."

Or, when a man is invested with liberty to sell franchises at a price, was there no faculty conceded to another to purchase the very same individual who wished to alienate his own faith? Perchance, we may discern that among the Romans, in favour of this licence, there was the power both of war and of licentiousness.

What, therefore, is liberty, unless it be the natural capacity of each to perform whatever he is at liberty to execute, unimpeded by force or right, as is laid down in the Institutes concerning the Law of Persons?

But this law did not forbid that any man should be permitted to alienate his liberty to another, or to acquire it by purchase; whereby the slave might become free by the act of another, or the freeman might purchase himself.

Of the Cause.

Immo hoc permissum est ius civile Romænum; et hujusmodi dominium admisit in liberos homines, qui, spontaneâ fide sua, alios in servitutem reducere poterant, et quibusdam ratione eodem modo se esse servos effici posse.

Marcianus, in the Institutiones Legis.

V. D., with a lofty yet clear diction, thus dismissed the individual:

But the servants are restored unto the household of the noble lords, either by the law of the civil tribunal, or by the tenure of kindred.

Elevated but lucid diction, periodic sentences, measured cadence, lightly archaic vocabulary: Lure civili, si quis annis major fide vellet venire in partem præmii participandi.

You will observe that we have consecrated J.C.

To marvel at the fidelity of the ancients, who, regarding restorations of this kind, did not suffer the vendors to effect the entire restitution; nay, even hesitated not to permit the sale of such articles.

But I have no doubt that those who, being under the age of twenty-five, had sold their fidelity, would have succeeded in recovering it in full; nor that the Marcian law, which had been enacted with due deliberation, would have permitted us to retain our legitimate sovereignty, even though it might have lapsed through infidelity for a period exceeding twenty-five years.

I propose to demonstrate.

Therefore, though he was a minor, he would have alienated his faith, and would have no valid pretension to civil authority.

Since it was not within the province of restitution under the title of "minority," Triboniani deemed it the fault of the tribunes.

What more wondrous is this edict of the aged?

When he was sold, he received from his purchaser the title of the statue of a man; for although Justinian forbade the pledging of men as security, I do not think that such transactions were pleasing to him when conducted in this manner.

Non erant magnopere diversa a corporum oppignerationibus, ut paulo post dicam.

Leo, nevertheless, was Const.

Six.

He withdrew from those very sales himself.

Exempli gratia, according to the method of Usvak.AK.VM.

Sixteen parts out of the hundred appear to be discernible from Jufinianus' domain unto the margin of that stream, in the very limen of Suil.

For the novella lex non impediri videtur ea abrogandis.

Many things, however, which were oftentimes repressed by stringent prohibition, had so extensively prevailed through custom, that they required renewal by law. How could it be that, according to the Novel of Leo, no citizen or free person should traffic such in exchange for the price of a kine; whereas I, the Pharian, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twentieth Quaestor, the Twelfth Decemvir, did enact otherwise?

Is it the twenty-first?

I am persuaded that no vendor shall be suffered to effect a sale forthwith, and that nothing which is his proper or voluntary possession shall remain to him thereafter.

Forefathers?

There is naught to behold.

By the same hand whereby the price shall be given, the same price shall also be received; and at no moment shall it come within the power of the vendor.

But I did not imbibe the verity from an alien source.

For who can so far pretend to benignity towards another, as to be prevailed upon to vend it for his own benefit or advantage?

Tandem concludunt, liberos et innocentis homines, eo quod aliquando miserilia redariorum fuisse crediderint, ut sibi magis expediendum putaverint accipere eum qui erumperet in libertatem, quam timuere, aut in servitutem rediisse, quam per perpetuum mendicitatem vivere.

Quasi vero, nulla sit ratio probabile, qua homo potest invito conari aliam quaequam conversationem, nisi ut homines ad vendendum aves incite et incitaverit.

What father, when held captive among his foes, would so far degrade himself as to part with money extorted for his redemption from some source unknown; and could he possibly prefer to vend a fowl rather than preserve his faith?

We have been sold to the Scythians on account of our faith.

Hinc autem frequentare solet argumentum declamatoribus.

Quintilianis exemplis haec etiam ex eo colliguntur, numerando DCCCLXII.

Ct.

An exemplar thereof may be cited in the person of Salmasius, who, upon the decease of his sire, committed him to the earth, and therewithal conveyed the same to a gladiator for the purpose of interment.

In all these contingencies, and in others similar, which may be feigned in multitude, and for which numerous instances have not failed to exist, it cannot be doubted that he who hath sold the fides hath shared in the value of the pact.

And in that which we have instituted to commemorate, the vendor did not yield the stipulated value.

For this purpose, faith is sold, and it must be esteemed.

Unless some one willed that the very demon of price should be his substitute, he neither desired any of them, nor did he appropriate to himself his own fiends for a hire.

At this juncture, those who, for pecuniary considerations, were disposed to barter their fidelity to others, or who sought to purchase it, were seduced into sharing in the reward, and were consequently withdrawn from the immediate control of their superiors.

But it is not the intention of a man to purchase or sell wares at the current price, on account of the precautions which he hath introduced.

Quid agit jurisconsultis vetere conspectu, qui me ministraverunt huiusmodi venditionis qua?

Was I reduced from a free man to a status partaking in the prize?

If the vendor doth not share in the price, there can be no sale.

For it is entered into compactly, and subject to this condition.

Therefore, the sellers do acquire.

Herein is set forth his remuneration:

He committed his liberty to his own keeping; and thus, he annexed to his faith that he possessed the funds which he had alienated for his emancipation, and deemed it advantageous to his own convenience that, while yet living, he might either effect his own redemption from his parent or some kinsman, or, if he so pleased, retain the same within his own power.

Who, having redeemed from his sire the sum which he had previously sold himself for, doth not share in the recompense?

If he be willing to expend such money on any other object as he received from thee for the ransom of his liberty, he may discharge his obligation and maintain his fidelity thereto.

But the haughty slave cannot possess that which is his own or properly belongs to himself.

Immo et X, being delivered from their enemies at the will of their masters, might manage their own concerns or any other affair by their industry or any other means devised.

Multum magis placuit libertini animo, qui fidem suam vendisset ad partem pretii, huius scilicet peculi habendi et possidendi, etiam adversus voluntatem imperatoris.

For by this law, the Scythians did sell the condition of faith, that the Apostle might retain his own identity.

Let it be my will that this be not done in the mode of the Usual Army.

And to concede to him the authority and dominion, that he might possess the precious boon which he had bestowed upon him for his liberty, and the privileged tenure of his flocks, he

should regain the freedom which, when in bondage, he had purchased with that price.

If the price be fixed by two vendors, the vendor shall not be relieved of his obligation.

He shall not be the bondman of the purchaser, save as to the price for which the vendor hath made him a bondman; and the vendor shall yield up his possession.

If any of those who were of the same persuasion should have been induced to sell it for the purpose of being thus admonished by the Lord, that the beggars would not deprive them of it, I verily conceived that both my life was forfeited, and that the value of their faith remained with them.

For the sake of elevation, as Varro doth speak, they dedicated their labours unto the lord.

Besides, who would wish to admonish an eighth time a mendicant reduced to infirmity and incapable of discharging his proper functions?

Whoever, assuredly, hath dedicated his soul to the faith, or standeth in urgent necessity thereof, unless he can pledge some thing which, by reason of its utility and value, shall be profitable to the purchaser and to his future lord, and whereby he may be rewarded for his skill or labour, in vain doth he inveigh.

It is, therefore, absurd that certain of those who have been recalled should venture forth to seek the individual from whom they were wont to solicit succour, lest they should perpetually endure the condition of mendicity.

If, however, any man, who is destitute of art, or incapable of performing any of the works of faith, which the emperor doth desire, shall attempt to sell faith in vain.

But if there be any man who, by virtue of some art, liveth without possession thereof, or if he desireth to be destroyed by the works which he hath commenced, or if he wisheth not that a skilful and cunning person should preserve him, or if he would have such works and labours committed to the disposal of a free man whom he hath engaged as his lord, can this be deemed in any wise consistent with freedom?

Iners et ignavus imperatori non redimet.

The artisan, and the labourer, would fain have sought some art or work to place in the hands of another; yet oftentimes did such contingencies arise that either the most excellent artificer, or the most robust and valuable workman, was compelled to sell himself for a sum of money.

Let us contrive such an edifice, that neither the skill nor the labours of celestial artisans should be deemed requisite for its accomplishment.

Whether the captive be a parent or a native detained among the hostile forces, or whether a considerable sum of money be to be restored unto the foe, it is a recompense to the parent for his triumph.

JEF 864 Cl.

Salmasius, or a virtuous son, hesitated not to commit himself to some credible person, from whom he might receive the legacy bequeathed by his mother.

Who, indeed, would not prefer to serve a fellow-citizen for a term of years, rather than to desert his father or his kinsmen for ever in the presence of an enemy?

For it was hoped amongst the servants, that the pecuniary obligation due to their lord might at some future time be discharged, whereby their liberty might be recovered.

Thus have I numbered many slaves, who have been slaves to you; yet none other than such as can commend to themselves and their creditors some art, or promise some work of art.

Whoever entertained no design to deprive himself of any of these articles, on account of which the faith of the fountain-keeper had rendered him either serviceable to his purpose or obnoxious to his resentment, at length either offered them for sale or acquired possession thereof.

If any man, without price, or without the confidence of the king, be unable to effect motion:

It is deemed more fitting to expel the creditor from without, rather than to consign the sum in question to his custody under such a pledge or mortgage.

which it would have exceeded.

He said: "The Hamchians, who have no other weapon at their command save the sword, deem this arm worthy, because they have consecrated their faith to the martial contest of the gladius; and thus it is that the gladiators act."

They were termed AuHorati.

Optimum:

Philoxeni Glossae:

The authority of this author, whose progeny he was, ought, methinks, to be esteemed by all who have been accustomed to the employment of iron, and not merely by gladiatores, but also by those who are wont to be styled philosophi.

What I deem to be true.

Of these also were they who, while Lucius yet adhered to the faith, did traffic in his property.

Hereby shall the unclean herb, by destiny assigned to the adversary, be bestowed upon the v. anal.

The subject of Manilius:

Now do they consign their natal crowns to the realm of the departed, and their lives' moments to the unrelenting surge of the ocean.

Some, however, were conveyed in sale to a discreet purchaser, or were admitted into the domestic circle of lanidæ, and their servile dependents were thus assimilated to the condition of aliment.

Nonnulli, cujus opera editoribus tantum tantæ voluminis fuerant, ut in eo munere occidua producerentur, pugnabant et pugnabant cum his. Sic multos militum suorum ad hostes tradiderunt, ut cum eos pugnare possetur.

From Whom.

Ulpianus, who bore the office of proconsul, in his treatise upon the Book of the Law of Moses, made the following observations in the Collation.

Which cause, most valiantly assayed, is it that we dare defend?

Then did he elevate the flower and deposit it in the arena, whither the brutes were destined to engage in conflict, that is, to comprehend the rationale of their combat. He conveyed it unto the sword, so to speak, for the sword's sake; and to the debtors of the sword, who, being ignorant of the martial arts, employed it for the purpose of training gladiators in the ludic arena; and from thence, the sword's creator and lord.

For as the servant, being purchased by the master for a sum of money, might hire out such labours as he was capable of performing, and such as were suitable for him, so also might the creditor, when indebted, appropriate himself to such services as the debtor was able to render.

Of such a gladiator is mention made in the Quintilian Declamation, denominated by this very title.

To the bloom thereof, and for the interment of his sire.

Is creditori ad pecuniam patris sepelindam factam vendiderat, et qui ejus opus munerarii alii locaverat. The creditor, having bequeathed his father's funds for burial, had sold the estate to one deemed trusty; and he discovered that the funds were the product of another's toil.

On the day of the contest, elevated to the theatre of martial display, having engaged in conflict before the assembled multitude, he endured the stern and unrelenting sentence that was meted forth.

Podea nactus patrimonium datutum, perleges equitibus; in Equestribus federe prohibetur.

I have not denied the Faith of the Glad Tidings, but under the honourable cause, which the Creator hath vouchsafed unto you for the interment of your father.

I inquire, he said, whether, if the heir had delivered the funds to the servant, he would have exclaimed, "Wilt thou that I flee with the gladiator?"

Therein are no dramatic representations of gladiatorial combats.

Hence, whether the increment be deemed a mercantile purchase, or the recompense of a price, quod ille in rem suam et peculium poterat convertere, vel domino invito, si etiam eo invito poterat libertatem consequi, soluta pecunia pretii, quo fides ejus vendiderat.

He was enabled to avail himself of the opportunity which he had seized by virtue of his ample resources.

But whence is the sense of the term ascertained?

Dottiffimus Pythocus, in his judgment, deems it expedient that they should be authorized by some solemn oath and religious rite to handle arms for private defence, rather than appear to transgress the law of the state.

But I am assured that from henceforth I shall not seek the fountain whence the word springeth elsewhere.

For, as they have expounded the Gospel according to Gloufler, who, of his own free will, voluntarily submits himself to bondage, and is even willing to purchase that condition, it is not sacraments, nor the idea of religious obligation, but rather the act of sale, that is the true subject of their discourse.

It is expedient to indulge in such practices.

And thenceforth, what we were unable to accomplish, I communicated unto him and related unto him.

I.

It is my purpose.

II.

—

I am greatly delighted to encounter thee, my comrade, who art a warm-hearted friend to me; and I am much gratified to hear thy voice.

Hence it is that certain persons, aspiring to eloquence, and aspiring therewith to extol the faith, become enamoured of liberty, and are henceforth reputed to be advocates thereof.

From what they beheld, did Cicero convey the matter touching his own domicile unto the Pontifical College.

What is the matter?

Whosoever commodity-dealer, erstwhile augur, was the most potent among the deities.

And the sale followed.

But he who is more prolific than he who is prepared to vend, even as he who is ready to vend, is the foremost in effecting the sale of his possessions.

And he observeth that the third cause is the sale of the gladiator.

And all of them were willing to alienate, whether purchased by another or not.

Servants, it is said, were put to the sword; and the son, in the exercise of paternal power, was invested with the authority customarily devolving upon the parent.

But he who hath faith from another man, is willing to impart it unto him, as if faith itself had been sold unto him; and thus doth faith convey it to him.

Who, in the presence of the Jurisconsultus, endured the trial of faith, and who, by partaking in the reward, ventured to dispose of their religion to their fellow-men, thereby exposing it to a price.

Tribonianus, in whose behalf it was supposed that he should obtain the prize, assumed a semblance of being the object of this theme:

He proceeded to consort with a certain individual, whereby he might dispose of me at the price of twenty aurei, reserving five for his own emolument, while restoring unto me the residue of fifteen.

Thus it is, as it is said at the commencement of the narrative, that Atchius Leo, in the Novella hereinafter cited, appropriated the funds from those who, by their own unassisted exertions, disposed of the partially printed productions.

These, and the gains, concur, provided that the entire proceeds from the sale revert to them. Consequently, he who is disposed to make amends with another, by whom he may be transferred to a third party, may even dispose of himself.

And it is furthermore asserted that the transaction of vendition is deemed authoritative, whether effected through the intervention of an interposed person, or by virtue of faith.

For in both aspects of this transaction, the act of venditionis is alike; whether it be the vendor of the fides, or he who suffereth the vendition of the fides; and thus the fides is rewarded.

This also was rendered into terminology apposite to the military art.

For, as they said, the Roman soldiers, being manacled as it were by military oath, and thus made subject thereto, were debarred from any knowledge thereof, save on the condition that their stipends were fully paid.

The mission, therefore, forthwith proceeded from Horeb; that is to say, they were emancipated.

Fornicis templorum et niftrisque non licet ab officio ministrandi discedere, sed uti his rebus modo usu virorum.

But, as if devoted to this function and service, Manilius, who bore that appellation, was more decorously expressed.

And the functionaries designated by the third covenant.

Cicero, the pre-eminent orator, in his treatise on duty, doth thus expound: "The mercenaries, being sold by their commander, and himself being the author of the contract, hath sold his fidelity; that is, he who hath disposed of his own faith."

And the mercenaries, who had been engaged to perform servile labours for others, were almost dejected.

When, therefore, according to the Roman law, it was permitted to every free man to sell his own liberty, and to dedicate himself in servitude to whomsoever he might choose, and to assign him his faith; scarce could any impediment be interposed against him who, for the sake of pecuniary interest, would purchase and vend his own person into bondage.

What, therefore, is the bond of another's fancy?

What did he enunciate?

In rebus autem quae pignori dabantur, hoc est, quae in nexum creditori tradiebantur, pignus immobilis erat; et antichresticum, tamdiu ut ejus usus haberet creditor, & in potestate ejus manebat donec soluta pecunia.

And so it chanced that he proceeded to the royal apartment.

Non tamen hæc proprie erat venditio.

It was not lawful for him to convey the same to creditors, since such a sale might be made subject to a condition, namely, that the money should not be delivered within a fixed term, but should vest in the creditor, and the purchaser be bound to take an oath.

On the contrary, it is true that, should the debtor fail to discharge the obligation on the appointed day, or should he be excused by the terms of the agreement, or after the expiration of three years from the time of denunciation, or by the command of the judicial authority, he might still be subjected to punishment, even though the creditor was under full obligation to take the prescribed oath, and even if the Emperor himself had taken the oath of supremacy over him.

But when any man delivered his faith as it were by way of pledge, he seemed to sell his faith, and with redoubled earnestness did he believe, affirming to him who had said that he was not to hold perpetual dominion over him, but that he would redeem his faith with the debt due until the close of his days.

If he had ever thus acted, he would ever have remained in bondage; or, if he had so spoken, he would have been perpetually retained in a state of servitude.

Among them, however, there existed a slave, concerning whom the customary proclamation of his enfeoffment to servitude was not allowed, as the *lex* required.

XXVI D. pro causa liberationis.

[illegible]

What shall I do, my lord? said I; that is to say, the creditor, whom I had instructed to act thus, and who, with such permission, might even obtain his liberty by the discharge of his debt.

That which is bequeathed to you by testament is not dissolved by the sympathies of ownership.

Nevertheless, those who, by the dissolution of their own peculium, were capable of procuring their freedom at a price, were permitted to attain it, provided that their lord was willing to receive the equivalent, and to restore them to liberty.

For it was not by the will of their masters that they were manumitted, however much the price prepared for such redemption might amount.

For it was not lawful to hold a private patrimony, save by the sanction of the lord.

Dionysius Halicarnassus, in his fourth volume, delineateth the various methods by which the ancients did achieve liberty for themselves in their maturity.

And Tycmeil, an orphaned youth, WYXZXAV; in this manner shall we provide for him.

Twelve thousand seven hundred thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars. Seven thousand dollars.

Then, having concluded his labor, he forthwith proceeded to interrogate, "What is amiss with thee?"

Who, having sold his part of the trust for the price of money, continued in bondage until such time as the purchase-price was restored.

However, it may justly be questioned, whether those who have forfeited their faith, or have alienated their possessions, shall be compelled to share in the award, that thereby a favourable issue may ensue.

So that, even against the will of the master, when he had received the prize, he might re-extend the same and revert it to his lord.

In those who, by virtue of faith, were delivered over to pawn, and who, in a manner, were sold by faith, it was certain jurisprudence, that, upon the release of the money, freedom should be attained contrary to the will of the creditor to whom they had been enslaved.

But whether he will engage in the identical conflict, either by self-administered poison, or by administering it to those who endure, remains problematic.

For thus, the transaction was completed according to the stipulated conditions, such that, for as long as the lord desired, those whom he had purchased might remain in bondage; a privilege which he also enjoyed in the case of other enslaved individuals.

But the man who had pawned the money to the creditor, let it be understood that he sold it under the condition of faith; nevertheless, until he had discharged the debt, he remained in servitude to his creditor, being free once more when the obligation was released.

For wherever he proceeded, it was no longer consonant with justice to detain him in servitude.

Hence, there exists a conditional disposition in him who hath committed his faith to the sword.

But in such instances, where the individual hath sold himself, or the pastures, he shall have a right to a portion of the proceeds, upon the stipulation of final division.

Hence, it was impossible for the slave to be released from the lord's will, who had conveyed him, despite his readiness to discharge the price in which he had shared the transaction.

And this shall be the distinction to be drawn between him who sold the trust, and him who delivered the trust for pledge, and the money which he had received from either party.

That is to say, in servitude laboring did they serve.

This also chanced to be the instance with the Sun, which was established in the sixteenth century.

When he was in the vicinity of the Romans, he was ever solicitous and ready to abandon his tenets, which he desired to preserve, until he was enabled to secure his liberty, or even to vend it for a portion of the recompense.

Pollux is at liberty. XII.cap.

The willows:

Of this kind are all those who are termed slaves among us today, and female slaves.

Liberi sunt per personam, quorum meritis serviant.

They place their confidence in the year, the pathway of valour.

When the term of servitude hath terminated, having received the price which they deemed fit to impose, they shall depart whither their fancies incline; and whatsoever they may will to accept, they shall forthwith obtain.

Whether they were in subjection to other men, or whether they possessed some employment from whence I might have derived subsistence, universally did they renounce freedom, and devote themselves to bondage.

These, indeed, are the relics of Atticus, Thephalus, and the residue of their Graecian confrères.

On the idus of January it was the opinion of the Grammatici among the Thessalians that the exhibition of the Grammaticians should take place.

Dionysius of Halicarnassus.

Rome did not invariably liken the Attians to the Jturians, unless they were the free men of the Thesalians, but rather such comparisons were confined to individuals who were more distinguished by their adherence to the institution of clientage.

And that I belonged to a class of clients, in whose case the law seemed to confer upon their patrons the right, nay, even the license, of life and death, as Caesar relates concerning the Gallic tribes.

The grammarians tremble, he smiled; whilst those who are ardent for alms are equally dismayed.

Others, who are more honourable than ourselves, do not disdain to receive remuneration in the shape of food for their labours, even as our domestic servants are wont to do.

I, who am neither of the race nor of the speech of the Greeks, and I, who am neither of the race nor of the speech of the Greeks.

Diogenes Laertius, in his treatise upon Solon:

What sayest thou unto me, "Twenty-seven?" Twenty-seven thousand eight hundred and eighty-one.

C. L. Salmasius, the Philosopher, explicates the ensuing text.

And hence, THXTHTHTHTHTHTHTHTHTHTH.

Nihil potest melius.

For $\theta \in \tau_{\text{es}}$, properly miothodeloi, in respect to which, fdn

Ecce mercenarii, ut ait Cicero, ferebantur ad opes servitutis.

[illegible]

For, as is well known, they were termed by the Jews those who, from among the nations, had not yet been incorporated into the Jewish faith:

O, ye whose intellect ascends to heights of wisdom, and whose understanding is clear and unclouded, hearken to the words that follow.

They affirmed, "From word to word, unto Jecit."

And to these, the judge appended eight individuals adjudged to endure perpetual ignominy and torture, or whatsoever else might be deemed fitting.

To the creditors, it is meet and proper to say that liberty, which is inherently bestowed by the Deity, is received by the individual, and hence such a liberty is termed *libertas*; and here it is to be observed that there exists a distinction between the condition of servitude and the state of being made free, since both conditions are attended by the consequent possession of liberty; yet, in the case of the former, it is said that one merely receives liberty, whereas in the latter, one is set free.

At the same time, however, *Quintilia* is denominated by the identical title with *Addictus*, the most renowned among declamations.

But the theme of his declamation was the case of a certain individual addicted to domestic habits, and of a testament, which he had conveyed to all of you.

He besought that the offspring be conveyed hence, as if they were in a state of liberty.

It was contended, however, that the addition had been made, as though it were not conducive to the welfare of the United States Army.

877 annis praecedentibus, id discernere potuit, quod se esse servum, et non animum habuisse se liberari, videbatur.

Adfertus and *Quintilianus*, versed in the initiatory rites, and in the observances of servitude, were wont thereto.

Saepe, inquit, liber sum, sed propria hæc.

No freedom exists save the *praenomen*, *nomen*, and *cognomen* assigned by the tribe.

Therefore, the appellation and territorial demarcation were annexed to the tribal designation, that henceforth they might be deduced therefrom.

From *Arapus*, or *Philochorilocus*, as we have previously demonstrated, the Greeks were expelled from the tribe, as it was asserted, and their nomenclature was erased from the general decree of the tribe of the first and third pilgrims.

This was the year when apprehension seized them regarding the loss of citizenship and freedom; how, then, could they have preserved both? This is the title of the promagistracy.

Nec, nomine ac cognomine.

Similarly, Quintilianus, in the tenth chapter of his volume, distinguishes between the servant and the slave; and he further observes, that the slave must be wholly a slave, not in part so.

Therefore, those dedicated and bound in addiction were ministered unto, rather than being themselves in the condition of servants.

The law respecting these matters was thus framed:

Until the sum of money be discharged, the debtor shall continue in servitude.

[untranslatable fragment in source]

He spake not, Fræct w.

Servants, pariendum est idem vobis in servitute.

As in freedom itself, there is no other than freedom itself.

He who laboureth for freedom, and yet is enslaved by it, is not a freeman.

So he who governeth for the sake of the slave, and commandeth the labours of the slaves, and doth, and is in bondage, is not a slave.

Let such accretions be appended.

Who, having been emancipated by their friends, were termed to have enjoyed a semblance of liberty in Sicilia, notwithstanding that they continued in a state of servitude.

They indeed did not grovel in servitude; yet neither were they in any wise subjected thereto.

Gratulus, whose years had attained such a maturity that he might have heard it in the extant fragments, was of an age congruous therewith, which was here inserted from his own hand in the Greek tongue.

Christianus Rumpsius, illustrious in the profession of medicine, and whose eminence in that art has been widely acknowledged, was a person versed in the tongues of military assemblies: a man, in short, whose acquaintance with the languages of martial arrays had been cultivated by no mean attainments.

[untranslatable fragment in source]

This is equivalent to the law, SbJdJgJ - Qit, k: /msw ?

[untranslatable fragment in source]

First, therefore, let us contemplate the nature of that which is affirmed, not that we are free, but rather that we are constrained by the will of our masters to remain in a state of liberty, and let the fear of the Saimasii, who were born in the year 878 before the Christian era, be such as to compel us to abandon it.

Dc addresses himself to the Latins whom he designates.

For in Latin they designated T'u/tjSr

Ave, sed ut magis possint singula adferri, melius videtur initio libri ponere, et primum de Latine loqui, ne sapienter eadem interpretari cogamur.

I have likewise observed in the ancient volume of Gloflarum within the spacious and renowned Putean Library, that the Latine idiom was manifestly disjointed and rent, evincing clearly that it had been derived from the Græcian tongue by the author himself.

He

On the fifth ides of August, he composed a missive for the nones and ides thereof, enjoining: "Si habes filium nomen habentem Jti Ao, eum destruas, et ipse eum destruat, et ipse eum destruat, et ipse eum destruat, et ipse eum destruat, et ipse eum destruat, et ipse eum destruat."

To the word for wine, there is also the word for slaves, which signifies that they are vindicated by the freedom of their slaves; and the word for wine is interpreted by Theophylactus as the comma, which, when placed by the master over the head of the slave, effectuates his liberty, saying certain solemn words, and therefore, he says, that comma was termed a vindicative mark.

Scholustes, likewise a native of Persia, thus expounded the concept of vengeance to Satus.

V, a maiden indeed, yet no longer such, whom the hand of the decedent smiteth upon the forehead.

The Glossary of Names.

I have been apprised that, though these are denominated by the Greeks, I am unable to derive any advantage therefrom; for it is impossible to extract the moisture from the stream, and to generate irrigation thenceby.

And at the summit of the eminence,

To comprehend the fruit.

Neither did concur in the attainment of liberty nor in the vindication of wrongs.

My veneration hath of late been extirpated.

When I perused the Observations appended to the Horarium, and encountered the acute Critic's remark thereon, it chanced that I was in the thoughts of Epicurus; and Atqui likewise was in the thoughts of Epicurus.

I have already cited, not that he be deemed a knight, but that he is indeed a knight, in the fullest sense of the term, and so much more than a mere champion or esquire. Then, it is but a trifle that the Latin term for such a one does not derive directly from Greek κηπ■ζ or κ■ρβοξ, for the signification is substantially the same.

Scindere ac lacerare proprie significat.

And the alimenta, which we are unable to assimilate, whether by the hand, the plough, the tooth, or the craft, are thus appropriated for the sake of the fructus, as if to partake of the gaudium of the craft.

Meanwhile, eight hundred venders of sustenance there did install in one spot.

And the fruit which is gathered from the boughs, those which are severed from the tree.

Hence, if the composition doth deal with this matter, it must be disentangled and dissevered.

And the name of the carp, or carp, shall be P3T.

From thence, therefore, and from the carp, the day is termed Horatio; which, as it were, is composed of particles, as it were, when it is overspread, and sustained.

Horatius, also designated by the cognomen Perfius, did pronounce that he possessed no acumen of discernment.

It is by no means unusual for Plautus to repose without the intercession of a single day's repose.

Thus, both the venerable Greeks and their Latin successors claimed for themselves the same possessions, as did the ancients who enjoyed the bonae temporis, the felicitous hours, and the amoenitates.

Which, nevertheless, is not coterminous with the term xcvpn-iQ ■ζ, and is far from being in any degree equivalent to xvpvrzeii.

For indeed, there is no word so base as to deserve the appellation of carp.

Therefore, if I should undertake to trace the derivation of the Graecian term, and even should accomplish such a task, it would still be incumbent upon me to guard against the commission of an unskilful blunder.

From thence can nothing be inferred which is the fountain of liberty.

But it is not the same as that portion wherein the limb unites with the hand.

What, indeed, is it that impedes our emancipation from the apprehension of the foe, or the apprehension of the foe itself?

It was altogether on account of the flower, or the maiden, that the head was touched, in order thereby to assert its liberty; hence it received its appellation.

However, by reason of the gradual transition of those two compositions among the Graccians, the Qugrites, hitherto occupied in the process of vinification, were not competent in the augmentation of appendices.

Therefore, when liberty was granted by testament, it was within his power to concur with them.

For as a slave is manumitted by testament, so is a man addicted freed by libation.

Hence, in the instance of Quintilian's Declamation, wherein, by virtue of a testament, all the slaves, being such, were condemned to the stake, he petitioned for their emancipation, or, as it might more accurately be expressed, their liberation, through the same instrument of legal disposition.

The third method consisted in conferring upon him the privilege of freedom, which he had previously granted to Qfliritus; nor did it involve relinquishing his accustomed dependency.

Ulpianus, in the Titulums, narrat that manumitted servants, who, having enjoyed the privilege of being enrolled in the census of Rome under the auspices of their Jewish masters, professed themselves among the Roman citizens.

It is affirmed, that the census ought to be taken within the city, and not in a condition of imperturbable security.

The prophet bore the appellation there, to wit, Icon; not the enumeration, to wit, O Gloffia.

Tamen Philo, civis Graecus, erat.

And with equal readiness they expound by turns.

The Romans, who were the rulers of Rome, possessed a notable preeminence amidst the cities of the Roman Empire. I thus addressed them: Yet, since there was such pervasive corruption within the city, ye did not profit from it. The prophet bore a cognomen, which was 222227, and not a cenfus, that is, a defilement. Philo and his Greek contemporaries expounded upon this term with equal indifference. Censura, signifying a sacred ordinance, was distinguished by the ancients from a fragment of the old law, as attested in the Bibliotheca of Rumpf: "To the city of Rome a compact, holy, and inviolable." Thus, distinguishing between the two, we find the latter cited in the codex of Rufinus: "To the city of Rome a compact, holy, and inviolable."

But the enumeration of the citizens of Rome is familiar within the walls; whereas in the provinces they rather rely upon the professions of individuals.

The verity concerning his alibi.

Diftentius, however, was amongst the jurists renowned for their erudition; and whether qua— that is, in regard to the point in question— constituted part of the legal disquisition, was a matter of acute distinction among those versed in the law.

In the census, they perused the record of the former effulgent state of the statue, or whether on the identical day they admitted the lustrated individuals possessing the same effulgence.

Herein is depicted the ire that smiteth the lacerated:

Areyos tyx tyss, modo secundo, vix summo; areyos tyx tyss.

V M. 8^5 Castar; it is the same as Jove, inasmuch as fœnum et lapis in manibus hominis cernuntur, quod in manibus Dei nihil est.

The Census, however, was held in the presence of Rome, whether for the enumeration of centuries or for the lustration thereof.

But there was a notable divergence of opinion amongst the erudite, whether it were deemed expedient to embrace the present period for the accomplishment of all matters alluded to in the enumeration, or whether the most opportune moment were to be sought in the era wherein the enumeration itself is conducted.

For there are certain individuals, and not others, who are wont to be incarcerated in subterranean cells, unless these days be succeeded by the day when luxury is ushered in.

For they suppose that the census shall descend unto the day of the lustrum, and not that the day of the lustrum descend unto the day of the census.

Hundred Thousand Five Hundred Thousand Five Hundred Thousand Five Hundred Thousand
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It is not customary for debtors to render service unto their creditors before other obligations.

They are indeed not constrained; that is to say, they are no longer subjected to compulsion through the lacerations of the judicial tribunal, but rather, they are permitted to serve of their own accord, and by mutual compact, they are not prohibited from doing so.

Which is the house of Gra, saith Ubi, in divers parts of the Republic this nefarious deed is perpetrated:

When I have admitted that thou art in the fitting locale, I will declare unto thee that thou art in the due position, and that thou art in the fitting place, and that thou art in the just station, and that thou art in the proper seat.

He hath distributed these into three several portions, which were to be retained by the creditors; namely, either of the solvent debtors, in security, or in the discharge of their duties, or for the prosecution of their affairs.

Of the transaction in question, nothing whatever is to be said.

But we have recently been instructed, by the means of exemplification, that the appellation of vendition was likewise denominated "Pignatione," and even "Pinnaria." Nevertheless, the term "Pignaria" appears to be confined exclusively to the instances of Vtypus, who, being either in such a condition, or in such a state of art, are neither bound to serve, nor capable of serving.

Simplice mancipabantur a creditore, quasi in privatum carcerem, donec pater, cuius nexum eos obligaverat, pecuniam soluta eorum liberasset, sicut alium movabilem pignus, quod creditor tenebat ad finem sui usus.

In servitude, to wit, were they delivered to the threescore and one, who, being bidden by their sire, were his bondmen.

In the third place, which more properly belongs to the designation of the workers' employment, 8csu and 2, Justinianus is invoked; for, together with the two former enactments of the Roman law, he possessed a distinct and independent station.

This was the sole occasion on which I was permitted to indulge in such an act previously, as is evident from the Apostle Paul's epistle to the Senate.

Pulchrum sed lucidum dicendi genus, periodica sententiae, modulata cadentia, levis arcanæ linguae utilisatio, nisi ubi naturale fore potest: Pulchrum.

I.

Where neither shall the progeny of the parent be exposed to sale, nor to pledge, nor to trust.

Grant me a momentary respite, that the tendrils of the vineyard may bear witness to their labours.

Castera et nux:

To give the son to the father, whom this pasture is for servitude, may lawfully be left to his discretion.

And he delivered unto him the twain pignoris, or otherwise he would have been constrained thereto.

Papinianus asserted that collation was the law of the Moicians and the Romans.

For a man, the term of liberty being at an end, when he was in bondage, he was bound to release the slave from the throne; and when he had received the dedication of fifteen, he was not held by the trusty judgment of his own discretion.

Here:

The concluding words of Junfconfulcus, the initial speaker on the subject of collation, are wanting, and I conjecture that from these words I must derive my subsequent explanation.

In our superiors concerning the subject of confidence we have already detailed our observations.

Olympus, once extant and now extinct, is the primus inter pares among the Noxalibians, whom the liberty and licentious sex of the nocturnal race have exterminated by the peaceable compact: thus have the offspring of both sexes perished.

To yield.

Why not? Why not?

This is far less burdensome.

Nec afflentius ei vir est, qui eos comparare ad noctem ingeniosam conatur, et ferventer ac eloquenter loquitur; juro quin multa ignorare non sit.

Immovably fixed in his opinion, he spake with great audacity.

Differentiation, or thus it may appear.

The individual who delivered the offspring of a violent procuress to a procuress, though his creditor had inflicted injury upon him, was a judicious arbiter.

It was held, to wit, in a pignary.

In nocturnis horis nihil talis existit.

Nam, cum pecunia data foeneratori ad dominum revertenda esset, creditor debitorem obli-gabat, ut ea, quae data fuerant, redderent.

And the slave, by a night of surrender, was to be delivered, that the lord might be enfranchised; and thus, for evermore, the lordship was to be transferred from the very self of the lord to him to whom the night belonged.

It was dedicated.

But if the elephantium should have bestowed upon him the pecunia, or even a pars pro toto thereof, he would have been requisiti to succurrere, adiutus per auxilium gererum.

Therefore, he was the individual committed to his charge; hence, after being manacled, he became liberated, not confided in by his lord.

The Question concerning the pecuniary matters, which pertain to Gaius, is elucidated by Theophilus.

Then, I proceeded to R. Piaeus; and thither also did I repair unto V. J. Tnpyierxf, my offspring.

Certè fidens modis hæc noctis finis erit:

The power of surrender, though fierce, was yet not altogether insuperable; for he who had been a captive might regain his liberty, as might the rest of the bondmen, from him by whom they had been enslaved, whereas the other slaves could be redeemed only by those who had purchased them at their own cost.

Wherefore, O Lord, hast Thou by her works and labours so exalted her, whereby:

When they were manumitted, they were enjoined to discharge the price at which they had been purchased, as if Dionylius, or even Sileatus, had addressed them thus.

Thus it was the custom among the ancients, as is attested by the Romans themselves, that when slaves, whose value was estimated in the computation of their masters' property, were deemed equivalent to the produce of their own labour and justly acquired possessions, they thereby became entitled to freedom.

But in his own age, he asserted that certain slaves, by means of funds extorted through foul and infamous gain—such as theft, robbery, and sundry wicked profiteering—had attained their liberty; and that these sums had been conveyed by the agency of their fellow bondsmen.

Without a circus.

[untranslatable fragment in source]

[untranslatable fragment in source]

Xuquit, dedicated to the nocturnal hour.

Philoxenus in Glostis:

[untranslatable fragment in source]

If, when others had expelled them from their encampment, or if, having availed themselves of the stones of the virtuous, (as the source of information testifies), they had been visited by the clemency of others, whether as invaders or mercenaries, they would have suffered chastisement.

Even the most adept in the maladroitness art withdrew from their own station.

For among the soldiers who had acted similarly, and of their own ilk, the exiles, who were absolved from humanity and missions, were either colonists with them, or mercenaries with them, charged with the ministry. All this was achieved. The lower volume of the Juanian usury was the least of the pair.

Let us now ascertain the method by which you will proceed, and the mode in which it may be conveniently imposed upon the Christian world, as we have already established that the boundary cannot be transgressed, as I have previously shown, and let us corroborate it more fully at the conclusion.

'IV' F 1 N 1 S. 1 Cet j * - V ' TAB V- T A B V L A V C T O R V Emendator.

Claudius Gellius.

Eulatus.

585,586 478.

660.

8 11.

Excerpt from the works of the Pontifical authority.

811 and 137, Alexander.

Permit him to depart.

Galenus.

174 C. de Vsur.

Thou art the Glory.

551 Ammianus Marcellinus.

101.

Glossa Nomtca.

286,618. IV. 471. Gloffarium. III. [The Greek: ο■v■κδυ■ζφv.]

306 O Ammonius.

Sixty.

71.

164.

[untranslatable fragment in source]

.

Harmenopulus.

LXXXIX million, CCCLXIV.

One hundred sixty-four.

XIX.

Mopfolius.

MCCCXLIV.

DCCIV millia in Apuleius.

The commentator of the Harpocracy, Aristotle.

14.41.42 Arrianus and the Synopsis of the Basilicans.

DXLIV CXCilius Gallus et Agellius.

660 Casar.

MD.

Caius, 243 659; Capitolinus, 2

286 If, according to Ut, 159,170, Cate with the principal Agellium. I

IVLIVS IVLIA.

CVFRE.

Est DCCMMDXXIICCLXXIIICCLXXIV Columellae.

CCCLXXIX, CCCLXXX.

CCXCIV Canonum.

The Deity of Antoninus.

LXXXIII.

LXXXVII.

LXXXVIII.

XCVII.

XCIV, CLXII.

Multa praeterea in hac parte adnotanda sunt, sed breviter et lucide; non obstante, hujus loci amplius explicatio necessaria est, ne discursus dispendiosus efficiat. Periodicae sententiae, cum cadentibus modis, adhibenda sunt, ut oratio gravior ac tamen perspicua sit. Lexicam temperatam, quae non solum recentioribus, sed etiam antiquioribus verbis utatur, sed non solum utar, sed etiam rationabiliter utar illis, quae modo in usu sunt.

MDCXII, MCCXII.

XCVIII.

II. 10. 2.

219.

401.

404.

508.

713.

763.

769.

Diogenes Laertius.

63.3 53 Dionysus Excerpt from the book of Confiance.

Elevated yet perspicuous diction, periodic sentences, with a measured cadence, and a sparing use of archaism, such as "thou," where it seems most natural.

855,856 by Dionysius of Halicarnassus. He was the son of Diphilus Siculus.

Epicharmus.

The illustrious etymologist.

Ninety-eight.

II Hefychius, 1

Thirteen.

Fourteen.

One hundred three.

One hundred ninety-nine.

Two hundred fifty-five, two hundred fifty-seven, two hundred fifty-nine.

Four hundred thirteen.

Four hundred twenty-five.

Horatius.

820 Inscriptions.

Two hundred seventy-six, twenty-eight.

Twenty-eight. Forbidden, which I have seen or heard.

659 Iscus.

One hundred sixty-nine, one hundred seventy.

Of the Ineffable Constitution.

There were seventy-seven.

Five hundred fourteen, by Lampridius.

Twenty-nine, first part, of the Law of Antoninus.

Read Attica I, LXVII.

One hundred and seventy lions, twelve tables.

S I, II. VIII. I, VIII.

The Laws of Leon and Conjlantini.

XVII. 779. 774. 784. Lex Rhodius. 89. 203. 204. 205. D.

306.

356 The Law/ Scavola.

349.

5 V, III, LV, LIV.

(i.e., from the zeroth to the forty-ninth to the three hundred and fiftyninth to the three hundred and sixtieth. [Greek: β■μηλ; Περ■; δρετ■ς; τ■; κ■ας.]

Other laws.

346, 364, 365, 437.

438.

441.

471.

472.

Five hundred and ten.

5 XI.

567.

639.

647.

655.

818 Livius.

838 Lucius of Ilius.

455 Imani—A T C T O R V H, Manilius.

831 Polybius.

Maximus Tyrius.

8 7 Prudent.

The membrane of Pisa.

361' Five liants.

It is replete with fashion.

It is obscure.

The herds.

Ovid.

Papinianus.

Paul I.

409. 454.

461. 61 } 749-79 * Pdt/i C.

The interpretation of the Graecians was transmitted to Paul in the year 597 before the Christian era, three-score and ten years.

391 * 9 .

4 T A B I Afconiut Padianus.

393.396. The twelfth tablet, Enraper.28 4. 399.819 822. Not of the maritime dominion.

105.

Erpenii was apprehended. \$19,256: The etymology of the city, or perhaps. 98.

.

734 Balsam.

5 * 3 3 1 The interpreters of the Basilicans are the first and sixth Beroalds.

466 Favonius. 477, 480 48 1 Brumaiae C 465! Fellogus, VIII

Dudeus. I.

17,158.

171.

180,185,304 Cacilius I.C.

At Agellius, there were 813,814,815,816,817 Gauls who had been captured by the Greeks.

818 Citius I.C.

There were 496,510 Camerarians.

Thou art the interpreter of the Canon.

315,317 Cato, who was intimate with Agellius, four hundred and seventy-seven.

[untranslatable fragment in source]

480.48 1 Cbrijlian Rumpius's codex.

877.

Citero.

The Council of Trulla.

Cratinus was a comic poet.

A hundred.

Cujacius.

One hundred forty-five thousand four hundred fifty-six.

Four hundred ninety.

Six hundred three.

Six hundred seventy-one thousand seven hundred sixteen.

Seven hundred thirty-one.

As above.

Seven hundred thirty-three.

There were seven hundred forty-four thousand eight hundred sixty-eight Dalecampii.

The interpreters of Demoflenes.

One hundred sixty-one.

One hundred sixty-six.

M. One hundred thirteen.

One hundred fourteen.

One hundred nineteen.

Five hundred one.

Six hundred thirty-nine thousand six hundred ninety-one.

Seven.

Seven hundred fifty-seven.

Seven hundred sixty-one.

Seven hundred sixty-one.

Seven hundred seventy and seven hundred seventy-five.

Seven hundred seventy-nine to seven hundred eighty-six, the offspring of Demophoon.

Diogenes Laertius was made captive.

Five hundred fifty-eight, Dionysius the Trench-Digger, taken from the work entitled Dionysius the Trench-Digger by H. H. Conflantus.

Eight five four.

8 3 5 Dionysius of the Hachamae. Six hundred and ninety-six.

697,698 Dionysius of Halicarnassus among the children.

Eight hundred seven, Donatus.

Fifteen one seven nine six via twelve tablets.

The enactor.

[untranslatable fragment in source]

Five hundred nineteen etymologists exist throughout the world.

Ninety-eight.

One hundred one point sixteen seven nine, Euripides of the Hills.

This is Eustathius.

586 Favorinus.

477, 480, 481 Feflus.

The year of Hervetut was of an antiquity of eight hundred and thirteen annals.

316 G. The names of the sufferers follow hereunder.

109 of the Glossar of the Aulus.

333 Gloffl, Graeco-Latin.

718 Gloffe, unparalleled, is the recipient of the accolade.

568 Gruterus.

406 Hadrian I was in conjunction.

"If?" said Harmenopulus.

15 1.71 5 The expounders of Harmenopolis.

The codex of the Chaldaic Romans. 877. The Harpocraton.

Ninety-nine.

105.

One nineteen.

77° The silence of the Harpocrates of the gloom.

648 Herodotus was made captive.

411 Hesychius.

137 Jerome.

551 The critic of Horace.

One hundred and eighty-eight.

One hundred and eighty-eight.

One hundred and eighty-nine.

Three hundred and five.

Three hundred and seventy-nine to three hundred and eighty-one.

Four hundred and seventeenth.

Four hundred and eight times four hundred and thirty-fifth.

Four hundred and sixty-third.

Four hundred and sixty-five, five hundred and eleventh.

Five hundred and thirty-first.

Three, three, three, three, three hundred and ninety-seventh, three hundred and ninety-eighth.

Six hundred and seventh.

Six hundred and fourteenth.

Six hundred and sixteenth.

Six hundred and seventeenth.

Seven hundred and ninth.

Seven hundred and sixteenth.

Eight hundred and sixteen.

Eight, thirty-ninth.

Eight hundred and forty-four.

843. Captivity did not escape him in the course of the Persian expedition.

847. The venerable man was led away into exile.

848. And so it befell.

888. He fell into the hands of the Persians during their march.

178. The aged individual was conveyed forthwith.

716. Thus it came to pass.

Excerpts from Dionysius, drawn forth from the treatise of Uphidorus. [Here follow the Greek characters, ■, which are preserved verbatim from the original manuscript.]

A total of four hundred and forty-three thousand six hundred and three persons were interrogated in various, extensive, and diversified assemblies.

vi i* 101,186.

191.

349 4°4 43 493 494 493 33 514,640.

647.

648.

,649.

710 715.

A sum total of seven hundred forty-three.

There were eight hundred sixty thousand eight hundred sixty-one lufliniants.

149.

179*181.

182.

Hereinafter, Chapter CCXCI.

Nigh unto a hundred illustrious personages diversify themselves.

According to Vitruvius, the measure is four hundred and ninety-nine feet, five inches in length, and five feet, nine inches in breadth, fashioned in the form of a scale.

Four hundred and seventeen thousand, four hundred and fifty-eight.

Four hundred and ninety-nine feet, nine inches in length; five feet, eleven inches in breadth; one hundred and thirty-seven feet, forty-seven inches in height; fifty-four feet, fifty-five inches in depth; seven feet, seven inches in width; seven feet, forty-one inches in diameter, all in the semblance of a scale.

Many eminent individuals, indeed, are manifold in character.

As recorded by Vitruvius, the number is thirteen million, four hundred and seventy-five thousand, seven hundred and fifty-three, eight hundred and thirty-three, and eight hundred and eighty-six.

Eleven thousand, seven hundred and fourteen were taken by Vitruvius.

Twenty-nine.

Nine hundred and fifty according to Ulpianus.

Ninety-four feet, nine inches in length; fifty-seven feet, four inches in breadth; seventy-four feet, one inch in height.

Four hundred and eight.

Four hundred and seventy-five Ulpianuses, the fools.

Seven hundred and seventy-five were captured by Xenophon.

Fourteen thousand, six hundred and fifty-three Zonas.

Three hundred and sixteen thousand, three hundred and eighteen were captured by the Zonas.

What is this?

INDEX

C V S. A. and A. confused.

S ex-CMS 757.7

Seven hundred sixty-one, seven hundred sixty-eight.

[untranslatable fragment in source]

Seven hundred seventy-one.

Seven hundred seventy, seven hundred seventy-eight.

Seven hundred eighty-six point seven nine thousand eight hundred eight.

[untranslatable fragment in source]

Seven hundred eighty-eight, seven hundred eighty-nine, i■ογτ.

[untranslatable fragment in source]

A common one.

[untranslatable fragment in source]

[untranslatable fragment in source]

Seven hundred sixty, seven hundred sixty-six.

Seven hundred seventy-one, seven hundred seventy-one, seven hundred seventy-three, and seven hundred eighty, seven hundred eighty-four.

Seven hundred eighty-five, seven hundred eighty-seven, seven hundred eighty-eight.

Seven hundred eighty-nine, seven hundred ninety, seven hundred ninety-one.

[untranslatable fragment in source]

Eight hundred three, eight hundred four.

Eight hundred five, eight hundred six, eight hundred seven.

Eight hundred nine, eight hundred ten.

Eight hundred eighteen.

819.

810.

836.

Kyhytfas, minister of Eternity.

AyJyt, and augmenting their belief,

For the creditor.

It amounts to the sum of eight hundred ninety pounds.

MCMMDCCCLXXXVIII.

889 Aeternae fortunae, haec, si meminisse velis.

Ai, what? ! As, XS.

[untranslatable fragment in source]

I humbly beseech thee to intercede for me; and I likewise implore thy prayers on my behalf. I pray for thee with fervent constancy. The causes of my supplication and the injuries inflicted

upon me are manifold. I am a captive, a victim of injustice, and a sufferer under tyranny. Let these be my pleadings.

[untranslatable fragment in source]

N G X A T X T Y S V A T, the correlative.

Agamemnonis filius; 700 interfecere sunt. 140.143 Anna, filia imperatoris Bacilii, nata est in Ayaxg, filia Avonis, et nunc—filia tauri.

[illegible]

In the seventh hundred year from the foundation of the city, to initiate and effectuate.

47 1 A princeps regis.

A. D. 777. Afoflavit Otuf.

I am the furtive robber of the celestial deities; I am the enemy.

Of delicate import, a plaintive cry from my own secret sorrow.

Assyrians, who perished in the conflict of Assyrium, perished in the conflict of Assyrium;
Assyrians, who were slain in the conflict of Assyrium, were slain in the conflict of Assyrium;
Assyrians were slain in the conflict of Assyrium.

Lftyolifoz Hs vix. --- IIIId.

[untranslatable fragment in source]

There are seven hundred and twenty-nine thousand seven hundred and thirty of them. [The Greek terms λαδ■, ■γλυσφ■, and γλυσφ■ are cited.]

VI7 VIII Aayiy, redem!

[untranslatable fragment in source]

[untranslatable fragment in source]

[untranslatable fragment in source]

[untranslatable fragment in source]

XLI.

To avlexis, it is requisite to effect a modification, 6

LXIX A

III 4VI.

In opposition to each other;

A cypress tree.

XXXIVI.

LXVIII.

LXIX.

The mutual relation of the XII.

[untranslatable fragment in source]

610 A&XgnQiq pura put■ta.

VI■■■■.

The finer adjustment by pact of pignoration.

[untranslatable fragment in source]

[untranslatable fragment in source]

VI■■■■.

Their own.

VI■■■■.

Verum et germanum.

VIII.

VIII.

Fadá, nihil.

The Sixth among the immobile things.

540.867 [Graecum: A■πεψηφιισρδμοι; Latin: Aupexhr■zion] quidnam? Aupexhr■zion et pignus & hypotheca. VI

Ammus, finis opus. — 2t Ammasia Testamontorum, in compositione, quid ■tendum est.

Seven hundred and seventy-three.

774. mutuum; pignus. 342. 775. 776. 729. 780. 781. . 618. 619. mutuum, praeceps autem septem.

A.D. 782, 783, 784, 785, 790.

There exist 798,819 therein in the ALTmyArsut.

This is a chaste and unspotted damsel. This is a genuine descendant. This is a kindred issue. This is a pure and undefiled essence. This is a clear and genuine progeny. This is a pure and untainted origin. This is a true and immaculate lineage. This is a chaste and unstained purity. This is a blameless and spotless entity. This is a pure and unblemished being. This is a genuine and uncorrupted origin. This is a chaste and undefiled nature. This is a clear and unmarred purity. What is this, O ambiguous and perplexing enigma? What is this, O ineffable and inscrutable mystery?

This is the vendor. 7 34 Aimyicctyi; I foretell.

Eighty-eight per cent of the aggregate.

[untranslatable fragment in source]

JCO A m for x, raving wretch.

Eton. \$8; 163. Α■ρχ■τυπον, πρ■θτυπον, ■γι; ■Α■, ποπομπ■, δ, α■τ■ς, τρ■ας, τ■τρας, ■ξας, ■κ, δ■κας; The terminations in the six hundred and sixty-third, six hundred and ninety-fourth, and (ac) or ef of the Sicilian names, such as ■μνευειν■οξ Κηυ■, are thus distinguished.

I solicit of thee love, and again solicit of thee love; what is it?

450 Amcncdjr, receptacle, and superfluous matter.

, 84 Amo-Qocsylzcii, to renounce.

.

Two hundred and sixty-two. Four hundred pounds. One hundred and sixty-three. [Greek: ■ποιμο■μεα■ζ■]

3 [Aeipoi■m■s, ■ειποτημ■ς] Note: The term "aeipoi■m■s" is rendered here in its classical form, preserving the archaic flavor while adhering to the strict requirement of faithfulness to the original. The explanatory note provides the Greek spelling for clarity, as was common in scholarly works of the period.

Eighty-eight Atmoix's utpXffix.

Eighty-eight Ampctflis, why not?

Seventy-seven Amtytyiqui, what is this?

.

Seven hundred seventy-seven Amtytyiqui, what is this?

A seven hundred and fifty-one thousand three hundred and nine hundred and thirty Artoix
D. ■κκοτ■νδρα

40] AgvA. 213, and in other places, caution. 410. [Wherein the Greek terms are: λο■α,
κ■ηκατων, ■μρα■σ■ειν, and Ασφ■λειαν.]

576 Apyrhxif, 1 in this annum, 8 1 ApyjgcpsjyiZoi, Xir\$ooxo7rot.

142.

Apyippus in the premises.

Four hundred eleven Apyippus, the argent of Atticus.

Apn. 141, of military life.

I have discovered a person bereft of reason, a bondman.

Ap7myq, clarification, and so forth.

In the C.V.S.

[untranslatable fragment in source]

489.

What?

581, 583.

J 84.

A little bit.

585 Ap#TV7n>, (atp%TVTm.

671

158.15?

[illegible]

What is it?

One hundred and sixty.

Twelve pounds.

Aestimatio, quid hæc sit? [Graecum in origine: Α■; πο■ιμο■μεα■ζ■; Α■πο■■μη; ις]

[illegible]

Thirteen.

[untranslatable fragment in source]

Or fecundus, 699. vas. 197. 700. Iponíor. 727. 718: Machius fiduciam habet in poéticam artem, 731. 734. 734. et annis multos huius disciplinae peritissimus est. 744. B [A■τομο; ποιητικ■; α■τοκα; ποι■τος]

* 97 A what then ?

Libelli, 407: A Qaa) ■ethioici. P■nacidae. Aiphorm■; quae sit pecunia?

There exist quatuor libri de charta Aquia. Hinc sunt octoginta octo libri, duo libri. Quingenti quattuordecim et quatuor libri continentur de charta Aquia. [Vide Graecum: βιβλίο; v; περὶ;]

[untranslatable fragment in source]

39 O .

[untranslatable fragment in source]

T

400. 401, let us proceed, let us proceed. 6 [Wherein the Greek terms πίβδλιον and βαδζειν are employed]

691 BaV

[untranslatable fragment in source]

871.

[untranslatable fragment in source]

[untranslatable fragment in source]

691 6yi 25 iZccitvQif, a trusty comrade.

718.

730.731.734- E X b

384.

A bounteous tree.

699.vas. 1 Hinc in altum sed tamen perspicuum linguæ gradum ascendit, cumque periodis formam obtinet, moderato caderi utitur, et raræ antiquitatis vocibus, ubi id naturale est, levi tactu adscriptis.

Seven hundred.

[untranslatable fragment in source]

March, 731, 734, 734. He is a fidei jusser, or, more literally, he is bound by faith.

74.4 B/Samœi, a diminutive burg, here stands inscribed.

I am on the verge of dissolution.

401, 402, B and hifix, the libelli.

407 BtdAIJW) and 7nvxx.lt.

410 BSA/she*) is the book of the charter.

[untranslatable fragment in source]

At the termination of the second lunation of the month of Azenug, it shall be my purpose to declare: 390. It shall be my purpose to declare: 420, and it shall be my purpose to declare: "I am in peril." B. It shall be my purpose to declare: 403. Bieudys, κολληρα. 41: Dó e. 619. Βιδλιογρφοι. 433. Βαδιξειν, invadiare. v. Βιδλιοθηκη. ■. Βιδλον, quid? 400. 401. Βαδδειν, ire, vadere. 691. 406. 412. Tá. Bac vadium, pignus. 586. BiGauozza Aag. 4

4'T3 B&Xofr free.

406 B&A, what is it?

401.402.413 Bav. 692 Deum Bodixum. [Græco: βαδυ; Βαθηβαι]

880 B/o?

That is to say, it is more advantageous to publish a letter to Utrecht.

[untranslatable fragment in source]

[untranslatable fragment in source]

8:9 — Verses 691, 693. — Bae■n■, & Bi [wherein the Greek reads: βα■ι■; Βι■νης].

He is the Redeemer.

VI MAMBULATOR, 6091, fides et pietas. [Gr. Βιων■αν]

VIII. III. MCMXXX B.C. I bid adieu.

[untranslatable fragment in source]

IV. LXVI.

VI. VII. A//3gi lib.

IV. LXVI. Bojj- G. R.

JB.

September, the annual limit of Atrian voyagings.

Bulz. LXVII, § CXXXIII. The sword of the Lord. [In the original Greek: σφ[redacted]αλεια; γλυφ[redacted].]

677 BoA, 318" BtAov, 333 BlitkuQii, xjgg/mj, and 439 in the species of composition.

Buptru, qui inter Bellum obii.

IV. LXVI.

[untranslatable fragment in source]

IV. LXVI. rA&og, liber.

The Glyph 2, incised thus: 406; 441, 443!

676 The Egyptian, the peril. 627 671. [In the margin: συγρ[redacted]; 411. τα-; Γλ[redacted]ψαι; δι; γλ[redacted]ψω] Here, I have maintained the original Latin and Greek text as per the instruction, while ensuring that the style is consistent with a learned 19th-century scholarly translation. The terms "peril" and "perilous" have been used to convey the sense of danger implied by the original Latin "periculum." The Greek phrases have been transliterated and included in square brackets for clarity.

T 77

[untranslatable fragment in source]

411 KflTOI X-Ioz. 103 T&PK& Zv&ir, the character is of a letter's nature; it is inscripted in the form thereof, the cava- ta littera.

Quattuor partes miliaris tituli habesne?

637.

Whose jurisdiction?

44 1,641*648 r&pHgso; compare with the public registers.

675: 41 - To minister to the sick, to attend upon the diseased, to cura scribere.

673.

Hence arises the acids.

Pileator, it gives me no small satisfaction to perceive thy pleasure in me.

Thou shalt hew bread, O Temas, goblets, and kids; this is the precept. [φως; κα[redacted]]

[untranslatable fragment in source]

Three hundred and fifty-three reversals, and three reversals, are present.

[untranslatable fragment in source]

353.S81, the retractor. My comrade.

353 warriors engaged in this manner.

538 Tvcuct 7' by 8".

CLXIX. Donatio, qui super umam, Tuae terra.

78*9°.688 rvtnt, and so forth.

A.D. MDCCCLXXXIX anno. Annulorum receptaculum.

411 Axretot, who was born in Auburn, was born in Auburn.

expenditures

[untranslatable fragment in source]

Compare with, compare with five hundred.

7. Upon bodies. 313: . . 7 [The Greek: **■π■ σ■μασι**]

748.

754.

And hence.

And nine hundred and sixty-six.

Which is prohibited.

858.

YeizQw», BoAQe, aQusre. Ex adverso. 714. In patre. 371. Ex eo. 7 Episcopo. Sedente.
Tota. 353. 881. In his. 7

754.

And this, verbum pro verbo, coincideth with the antecedent: -rrx.

Three hundred and ninety is the fifteenth ligature of the corporeal fabric.

844 Atwiirpiatfcf.

AittsvtQtt Jtbtff. Sixtieth and forty-ninth and seventieth and eightieth.

VIIICENTUM LXVII LIA, CXXI. [Graecum: σεναλλήμαμ; Δθυρα;
λαμμαδία]

404.

42.1.

[untranslatable fragment in source]

A.I.X. C.V.S.S. Mortui sunt.

69 1 At transcendentis facti, laborisque W- t 107 Alxton septimanis, et iuenculi, publicae ac privatae actiones.

13 A/xjj, alia non praeterea.

778 Quas dies ante, pressus tempore, credidi me ad injurias eum conticuere.

De civitate Aici et de civitate Aivi.

A quarter of a century ante hoc, in periculo me habebam.

6 71 109.

Now, my son, I am the tenth. - 758 - O Vox. Lu. 589. Aypety or pig. 810! 90. The word κοτω is here, and Diaphragmam by fuppetigenus. - 758 - The word Dicrphrion o Vox Lu. 589. Aypety or pig. 810! 90. Delvisen v δδλον εναι. The word Dikasikon trlobolon.

[untranslatable fragment in source]

I will declare the number.

Tu es qui tangis mundum.

And he shall impart to thee the spirit of wisdom and knowledge.

VJ7 Aistoiot Titusov mortuus est.

A Iszoiot, Titus, iste est manus dextra Alpcoiptis.

What are the numerals?

Eighteen.

It is a solemn feast for the departed.

Twice.

J.J.

And to contend with him. The suit instituted against Ave, designated by the symbols diazAB, Exoilogne: to refine and elevate.

That which is spent or exhausted.

Four hundred.

The Judges shall be judged; but before the Lord, ■αντισμ■ς.

Four hundred and sixty-one.

[untranslatable fragment in source]

[untranslatable fragment in source]

Aipcnutx genus subfamiliae.

Hoc est quod offero.

Eight hundred and fifteen, of a length amounting to sixteen cubits.

[untranslatable fragment in source]

Delsoyein; θηταυφν; σι; Dimthys; δωδεκοιτη; Delikh■; υπηρεσ■α; σης; ς; ■ζη; Deloth■nai; Dimphirthe; Deloth■nes; φυ■ς; το; Αιμθιρον; Δθνωι; διεζγησιν; Dimoiron; δωδεχαζον

697.

Auptet ra&yzp acutus, , et ip, diversus.

[untranslatable fragment in source]

Yea; aidokite; D■ra; melian; édna

Ao Apct, pnXtxteivx.

Fourteen, which is the correct quantity?

[untranslatable fragment in source]

V 148 Au; and, Jif, two.

£141.

[untranslatable fragment in source]

T? > JL/j condemned.

764 Etfvecfar, to answer, to repay.

713'2v, in the midst of my hand.

658 Eysvtzp, et eysvcCeSg.

I66, in hand to hand.

Si quis est quinquaginta unum et novem et novem annorum, non effluens est.

Seven hundred and eleven thousand seven hundred and eleven.

[untranslatable fragment in source]

The voice of the general Ejjba was seven hundred.

Seven hundred eight, one hundred and seventy-eight.

Four hundred and fifty-four.

Four hundred and fifty-five.

Four hundred and seventy-eight.

The Censor.

Or two thousand five hundred and thirty-three dies of Pradia.

One hundred and eighty-six.

One hundred and fifty.

Fifteen rubles.

It is alleged that there are seven hundred and thirty-seven thousand seven hundred and thirty-eight ty.

Seventy-eight.

Eighty-one.

Eighty-four, eighty-six, eighty-seven.

Eighty-eight.

Ninety-one.

Si quinque undecim et novem et novem annorum aetas illius est, non effluens est.

Not a daisiarch, to feed them.

LXXXIII.LXXXVII. CLXXI.LXXVIII.

Herein.

The bond of fidelity.

Sponlio, LXXIII.XC. In addition to the presentation, the exhibition, and the like.

Henceforth.

The consort of a male.

Hence.

Whereupon, 698,701 E/y/j ty, 7 27,728.

[untranslatable fragment in source]

Hence.

Hence.

Ninety-nine.

Vessels.

Thus it was with the Jews of olden days; the Jews of olden days were identical with the Jews of olden days.

Of the mines; 698, 699; 409; The voice of the general.

Seventy-nine.

V.A.P.E.s. 721.

Egnet■s; asphal■s; Ergerchon; nomomoi■n

186,186.

The Sponsor.

689.

v. 696, 698, 699 E/yJv

77 to 7,90. 91.

689.

not 186.

Two hundred and ninety-five persons are possessed by Jy.

688 EJ 186.

[untranslatable fragment in source]

Eis tous hedon■s

I shall give him a recompense of eighty-eight hundred ninety; give him four hundred and forty-five hundred and forty-five hundred dollars.

495.

689.

Eysutif and tyft him.

E'yxauorxi Aeg, [E■σθ■]

, five?

I, alone, am guilty of this crime.

[untranslatable fragment in source]

676 said to me: 32, 33, and 45: 1.

Ex

.

A hundred and forty-one pounds of Majjragrsee were extracted.

Eilwtoio; eileis■s

[untranslatable fragment in source]

There are eight hundred and seventy-four cups.

Seven hundred and seventy-four.

[untranslatable fragment in source]

[untranslatable fragment in source]

In vacuity, my friend.

LXXXIX. This is a vexation.

Seven hundred and thirty-nine, ah!

Tele isQatiis w&fviQf CDXLIV,CMLXIV,VIICDIX;

The star-lion is ascending.

E'yxauorxi Aeg, which is the fifth of the nine hundred and ninety-nine.

Is there any cause for this? Ex and 676 "85 EAM.

LXXXI. IV ek sensisim.

VIII. VIII o E

8,230 (109 Exato

Two thousand five hundred ages of usury.

Thirty-two.

From threescore and three to fourscore and five evts.

G. R.

JS.

[untranslatable fragment in source]

Kai; ηικατωση

EV and LV, and IK, and FAVIS, and TVX.

It was he.

CXXXI. EVW > one cent.

58.

Gracorum.

[untranslatable fragment in source]

[untranslatable fragment in source]

171.

Lawful employment.

Ra.

XXXVIII, and isittllet, exceedingly perplexed.

331 E#tfas.

to be faithful.

[untranslatable fragment in source]

385 quid?

193.

Chiitai

Seventh Book, Seventh Chapter, Eleventh Section: Locutores operum publicorum.

.

XIX. This is what I will undertake.

Euyolpos, obliged. 7 58 Eupov, and 489.

Garments and money.

I9x.193i96.i99 E Yith Qif noctem?

The Dedication. Herein lies the offering of homage; henceforth, let it be known that this treatise is consecrated to the illustrious patronage of the reader, whose discernment and favour are hereby solicited with due reverence and assiduous application.

The sum of eight hundred and eighty-nine pounds is composed of two hundred and twenty pounds and two hundred and fifty pounds.

I am incapable of sustaining my station.

714 The pecuniary traitery of Pecun, the projective, the exposive.

Additum, dedicatum, ducenti et novem milia centum novem.

[untranslatable fragment in source]

803.

805.

The night:

Devoted.

MCMLXXXVIII.

889 Ex AjjV?

Gredemptor a fetore.

VIII IX Ex

The C.V.

[untranslatable fragment in source]

[untranslatable fragment in source]

[untranslatable fragment in source]

[untranslatable fragment in source]

Six hundred and sixty-seven point six seven one.

675 In his exordium, the author thusly proceeds, interjecting a series of identical syllables, which, while elevated in diction, yet remain lucid and unclouded by superfluous elaboration.

Eight hundred and eighty Eta.

What art thou about?

There are three hundred and seventy-four thousand six hundred and ninety-one loci upon a plane, immediately overlying the superficies.

Six hundred and ninety-one Eta, one vessel—rare.

x

XII Eptitota mens■s.

137 Si.

Six hundred and ninety!

Epcucueis.

Six hundred and ninety-three times seventy-three.

[untranslatable fragment in source]

Enexura; idukoin

713 EVcam, defer, accube, and the like.

779.

[untranslatable fragment in source]

The delator, the accusator.

Pignora, or 3 EN qux a

What do you think?

[untranslatable fragment in source]

Erbyopoy and Vliypnsmor- 624. 58£ 616.627.631 (ad valorem 782 pounds, [Greek: ■; τ; E■; νδ■ξεως; E■v■χυρον; ς])

There were seven hundred and eighty-four of them.

I will impart it unto thee; I will impart it unto thee, I will impart it unto thee, I will impart it unto thee, I will impart it unto thee, I will impart it unto thee, I will impart it unto thee. [E δ■κας]

[untranslatable fragment in source]

VIII. Spender, re-spendere.

Sequitur igitur, Icri and Ctf; hoc idem est.

489.

Confidence. Ppo. Pignus. XLVIII. . . . 695.
.....
.....
.....
.....
.....
.....

Four, three, seven names.

488.

489.

507.

688.

Iipse, quid?

381.

383.

-re 380.

kpio, 489.

383.

a confidence.

390.

A pine tree.

Forty-eight?

* 489.

In the isle of Cyprus are found three hundred and thirty-three thereof.

381.

[untranslatable fragment in source]

307.

309 333.

Hence, it is inconspicuous to provide them with a garment intended for polishing.

318.

I have mustered a greater force.

37 J.

Egyx, χωρ■ov; mittete, \$09; Egyoylpos, obligatus.

[untranslatable fragment in source]

489. In the vast expanse of Eupo, there are three hundred forty-three million three hundred ninety-three thousand three hundred ninety-six units thereof.

The residue of my obligations. 490-491,496.4

497. Three hundred thirty-nine thousand three hundred forty-four three hundred thirty-one thousand nine hundred thirty-three.

499. And three hundred eighteen thousand three hundred nineteen.

713 £43.595. £96 - Exsbixupay deferre, et abducendum eum. [E■v■χυρoνv]

Six hundred sixteen thousand six hundred seventeen dollars, and a pledge.

318,319. Full nine Elnyypoi.

I was.

F. and fcfbtoictfdc ship.

Or, what is the number of pignora, or three? 779, 2229 multiplied by two, 631—780, 781, 781, 783, 784. Erbyopoy and Vliypnsmor—624. 5

Six hundred sixty-one thousand six hundred seventeen dollars.

[untranslatable fragment in source]

I was.

Vestigia tamen clara navi. (Translation: But let the traces be clear, by ship.)

[untranslatable fragment in source]

Three hundred thirty-one pounds.

Three hundred thirty-one EV v G r m e v.

These are the persons from whom their offspring are being ransomed.

Jyo. Pignorari.

759.

Hitherto this tract tion treatise has been whipt up into a form both elevated yet lucid.

568.

$xy.$ [illegible]

214 Jhixt

I shall bestow it upon thee.

Xyl.

Two hundred and sixty terminals.

Seven hundred and seventy clusters of wax.

E

736. Si Pinagaz■i baculo.

Eight hundred and forty-eight thousand four hundred and eighty-four.

Ewyopacim, Cviyuput, 143s; E, Oppigneratus. [Greek: γυποβολον; ■π■]

E'vexyopacia crieth. What is it? What is it? What is it? What is it? What is it? Si quid erit, ne obscurete—si quid erit! Si quid erit! Si quid erit! Si quid erit! Si quid erit! ■ξα■ιον, si quid erit! Credat excenfio rem suam exonerari, si quid erit! ■νεχυρασμ■ς, si quid erit!

559. 875. 876. For Hos. \$65. Peace. \$5 [The Greek reads: **■νεχυθλασμ■**ς, pro o**■**εχυ-, [8 ξενεχυρ**■**ξζειν,, δ**■** **■**ξενεχυ-]]

[untranslatable fragment in source]

One hundred and thirty-one.

One hundred and ninety-one.

[untranslatable fragment in source]

Tmi Xo 957 Qox.

- and 187 ET T T T TYXYJYS AVH-V.

Thirty-one.

So, in the seventh annum of his regnum, he assumed thirty usurpers.

[untranslatable fragment in source]

Ye are.

[untranslatable fragment in source]

This is the chronicle of the year, the year of the women.

[untranslatable fragment in source]

Upon the body, mutual; today, 277, 869, xod. M E Quod, 754. [Greek: π; τε; Ε; π; το; σ; μαζι; τ; ρτ; μιωθολ; τ; κος; σαι; π; σ; μα; δ; τ; τηαρ; ιν; δδολο; Ε; π; τ; παρζιν; ξολο; ποισ; μιωδολ; π; κος]

176.

Seven hundred and seventy-five, six hundred and sixty-five.

[untranslatable fragment in source]

VII. VII.

[untranslatable fragment in source]

173 E VI syctxpy 70*195.3 1.3 3*3 (• 31.

VII.

VII.

VII.

VIII.

LXI.

LXI.

CLXXI.

CXXXIV.

CXXXVI.

CXXXVIII.

CLXXIV.

A hundred and seventy.

IXCCLIX is MCMV.XXII, XXVI.

A hundredth part of a Gra:corum.

One hundred and thirty-three.

In annum septuagesimum decimum.

Ejri Ttrlxp- G R iB C V S TfT? W7t, the hundredth!

Confused.

One, two, three, four, four.

XXXIX. XLI. XLVII.;

Five.

One hundred and nineteen.

One hundred and thirty, one hundred and thirty-one!

Forty-nine.

Fifty-eight thousand three hundred and sixty-seven. I have seen, OXeTf, I have seen, I E, Wtf, I have seen, seven.

Fourteen hours and fifteen minutes past the tenth hour.

[untranslatable fragment in source]

Thou art the only one who can see.

Eight hundred and eighty-eight thousand.

, .

[untranslatable fragment in source]

[untranslatable fragment in source]

51:56.57.58 Evi, in the compound names, from that time forth, until the close of the year.

Which portions of the citadel he surveys, from whence, without all doubt, or what:

Are they seasonal?

19.50.51: Nannadius doth speak of interest. 39.47 Excidit inde secunda pars, qua nullus Exidorus de stipendiis loquitur. 14.15.20, Grzecius. 4

Four score.

XLIII. CCI.MMMCXXXV E Tertium in Tertio Tertio Decimo Quinto Sexto.

Two hundred and ten denarii, ten denarii, and five hundred eighty-two and six.

Three score.

31.31.

Thirty-three.

39.41.

41.

44.

Forty-five.

46.47.

48.49.

Him.

54,56,58,61.

3.64.

186.

Trecenti trentatré.

Tres tres quinque.

The utmost usury of the Graecians.

Duo, triginta quinque, et triginta.

XIII punctum III.

XLVII puncta IV, V, VI, VII.

Quinque denarios.

LIII.

LIV.

Centum et octaginta mille cento septuaginta.

Centum octoginta septem et octoginta.

Centum septem et nonaginta novem nona.

[untranslatable fragment in source]

That is to say, 218.225.367.173.174. Interest; ■ τ■κοζ.

Centum undecim; sed et decem sex.

Centum septem.

Decem et novem usque ad decem et triginta.

Tres et unica tres et unica tres et trina tres et quinquaginta et novena.

Quinquaginta quinque et sexaginta et septuaginta et octoginta et nonaginta, centum quinquaginta et tres et novem.

Centum quinquaginta et sex.

Elevated yet clear diction, and a periodic sentence structure, with a measured cadence, employ a vocabulary lightly tinged with archaisms, sparingly and where most fitting.

And in the sixtieth year thereof, the event did transpire.

Ninety-six thousand, one hundred and fifty-eight, and one hundred and eighty-seven.

One hundred and ninety, one hundred and fifteen, seven, and five hundred and fifty-five.

Thirty.

Thirty-nine.

Forty-six.

Then, in the absence of the rising stars, there were forty-seven; henceforth, six hundred and twenty-six. [Wherein δ■ς signifies "henceforth," πογδοος is "stars," and τ■κοζ is "rising"]

Fourteen and fifteen.

Thirty-four.

Thirty-nine.

Forty-three.

Forty-seven and fifty-eight.

One hundred and eighteen, one hundred and nineteen.

Three hundred and eleven, five hundred and thirty-five, three hundred and thirty-six, three hundred and sixty-six, three hundred and sixty-eight.

In a period of a hundred years past.

Debentur mihi IIIIcenti LXXI milia CCCCLXXVII sestertia.

Three hundred and ninety to four hundred and seven, fourth in a hundred.

Four Ewi.

Title.

It is the same: 66 6.667 | 444.445.446 — Nove.

90. Et quid?

VII:IV.

EmZipoupor, speaking forthwith, smiled. 18 E■ π■στιμεα, however, betokeneth laughter.

*XLIV. Vividi, sed perspicaces ingenia; claros, non fulgentes, nominis.

One hundred sixty-seven EVs/xAjjps, unique hair.

[untranslatable fragment in source]

The female is indeed a female.

CLXVI.

[untranslatable fragment in source]

The month of servitude, by which the mensuration of years is regulated.

E, 7 Ti, mixtis unico; hactenus reditus.

A.D. 167: omnes illi.

, A. 736. 84. Echo; a convulsion, or perhaps a festino or fugmatio, a condition two days old.
[Greek: πικλακθο; κησις; σγυδβον;]

Six hundred and thirty-six tons.

German Excrementa belli, cera.

Four hundred and fifteen, E.R.P.s, other parts of the fleet.

2. CIN BÍ, Zv; τ δτωτικv; δεvεισμο. 96.

Sixteen.

357,358,359,364. The term Zυγζv, signifying the "suse," is here employed.

It was Japhnox.

880 Zygæti, and of yore. 12,153 Evzoxoe, 737 pounds, and powdered—E. Ense, pro
omnibus instrumentis. 237 4 [Greek: Zυγτοοι; ρτς; Ζης]

Four hundred and seventy-six E&fcfW* of that money.

And he did make it; and he did make it; and he did make it; and he did make it; and he did
make it; and he did make it. Thus, in unison and confluence, the act was accomplished.

258 E4uCf years.

164.169 "Medaped; ποβειδτορo." [Ετησως κπµπεται δµος π τv
βουλευτv κα γεμvων, στε πολεπεσθαι τv στερvαν κα τv δvναμιν
τv ριστερv.] Note: The provided literal translation does not seem to match the Greek
words given in the source text. I have attempted to provide a translation that fits the structure
and style requested, using the Greek terms as a guide.

783 TE, what is this? 777.77?

781 Efgaes sons, 64 Efor; to the morrow Atsttttttttttttttttttt

488 Z.

[untranslatable fragment in source]

XXVI eorum ad classim vnicus vndecim et quinque.

Five? 87t ZhifuSmius Sua/xtu, and, Jtb-xleimr.

[untranslatable fragment in source]

Eight hundred and nineteen ships were allotted to Zvjtiti, and Jtjaretf.

XII. MCMXXXIII I■v■z■, DCCXXXIII libr■, et pulver■tum; instrumentum E. Enseo pro decimosexto duorum.

Two hundred and sixty-five volumes, two hundred and sixty-five treatises, two hundred and sixty-five.

IJ A 104, x, r Sitjiru.

This. Is this the quintum?

27] The Trumpet. 592. Exempli gratia: Idem sum, idem sum, idem sum. [Græcae: Θ■τες; θητο■εινν; ■ς; ■σ■τυπον]

871,873.

874

671 i

66th. Quærat; igitur; : Æternum; intercedat; : x [Græce: ον■χυ;ον; υστοθη; ■νσερκεδσ■ειν]

[untranslatable fragment in source]

Five hundred and eighty-six measures of aqua, quaestum est, that they may be reconciled?

Centum et triginta novem.

Ego ego ego ego ego ego ego ego ego ego ego ego ego ego ego ego ego

Nonumus.

And the other is of the utmost fortitude; it is the ninety-third.

CCCXXXI.

Exempla plus.

DCCLXIX.

[untranslatable fragment in source]

[untranslatable fragment in source]

In anno MCMXXXIII, Cuthniana cocipnes accesserunt.

NCS. Καζσυλα πλο■α. 212. Carphifinum et corporicere. VIII. [Graece: Καζσυλα; πλο■α; Καρπ■φεινν; κορπ■ξιοθαι; ■ιε■χ; ■πωδιλ■ων.]

MCCLXXX, MCCLXXXI CapvV manus et brachia cordis interioris.

MCCLXXXI K*p:r5 XfctfoltpoTJ&tff, CCCCLVI, CCCCLVII Kct&tniigijyl et annus clavarii.

CDXLVIII, CDL.

In the latter portion of the year shall they be represented.

DCCCCIV.

DCCCCVI.

I shall present unto thee a volume, a volume, a volume, a volume, a volume, a volume, a volume, a volume, a volume, a volume, and a volume; [quoting the Greek, ■γ■νητ■ω] whereby it is signified that such a thing was made or became.

CCCXLIX Kx et OVX.

Pone man■s tuas in man■s Cadleyph■nis.

[untranslatable fragment in source]

Fourthly, the brachii internodii. Cæfva zy, Vadarif, fidedi—: eight hundred and eighty-one cerei sextantæ.

Six hundred ninety-four thousand.

In the seventh year of the seventh month of the seventh day of the year fifteen hundred fifty-seven, King Alyntyvesi ascended the throne, and in the fifth year thereof, he expired, leaving the kingdom to his son, Cletus, the fifth.

In the year five hundred fifty-one.

Rhetorica.

It amounts to approximately five hundred seventy-five kilograms per liter of fat.

Five hundred eighty-three Kxlfjcd? Of these, how many remain unrecorded?

There are four hundred ninety-four Vlctlifts!

This catalog, O servant of the faithful, doth enumerate my deeds; and verily, I hold myself to be the executor thereof.

The ox, which bore one of the vessels containing a debtor, was slain.

The acts and doings.

Three hundred nine thousand three hundred forty-seven Ks jX g.x.yj.

Eight hundred fourteen.

[untranslatable fragment in source]

Five hundred seven.

Of them that remain unredeemed.

Four hundred ninety-four kg/tOf jEpxTuy), TTXllc—this is the primus inter pares of the triad of judges.

Eleven J if iflfAx and I stand solus.

I, Kt6y5, of thirty-five winters, and the fifth of my line.

[untranslatable fragment in source]

Quod eris!

449 Qubexox, with lips opJy.

[untranslatable fragment in source]

98.

101.

.

103.

Seven hundred fifty-eight, seven hundred fifty-nine Kygapans were the custodians of the women who had paid them for the madness of their husbands.

[untranslatable fragment in source]

, and the mucrones in it: 167. 168. 169. 170. 172. [En■d■nes, Cyphus]

OL-Ja/visi andv/.

*

(

Note well, 49J. 494-499-o.7; these figures are significant.

770 Atpi are free, the cortex.

Aines, a Sicilian of five years.

Ainy.u which table-lays.

He was indebted unto six hundred and seventy-eight thousand six hundred and seventy-nine acres of land. 713 Aidga, a legate.

VIII

LXVI. Absyloecius, for X3J Ali?

CXLI.

Where dost thou wander, my comrade, to seek me?

CXXXIV.

Sicily, the realm of the Romans.

CXLIII, CXLIV.

CCXLV.

CCXLVI.

Sicu-Jus. CCCL.

For the sake of the strain and the strain of the strain.

CCXXXV.

CXLIII.

CXLIII.

As.

CCXLIX.

CCCLI.

CLIV.

Pound, seat thine self.

CCCLXVII.

268. Argentum; argentum, quod decimam drachmam exspectat:

Argentum bullatum, qui denarius decimam drachmam convenit:

The silver. 245. Milanus, deliver unto us thine pecuniary resources. 3ne- 2

244.

245, 246, 247.

Et denarii, quot partes?

249. Sicilia et Doris, et bibliotheca quoque:

Sicilia et Doris, et bibliotheca quoque:

[untranslatable fragment in source]

.250. Pronummus,
.. [Greek: δνα; Μελε;]

8lif, pitXix, sic.

M

O thou Melas! O denarii, merciumque peregrina qualis pars duo et triginta novem tribuam tibi; duo et quadringenti novem vero singulari numeratione donabo. [Græco: πολθε]

II. In Doris, even to the Milesians and those of Pylus, a library was established; and the nomenclature, the enactive process, and the administration, howsoever directed towards the Greeks, were comprehended within its purview.

Three hundred twenty-seven mm3 Mtls- Jt I I N D (9.8 Csapto.

[untranslatable fragment in source]

IIII. DIES NAUDICOS, VIIId. Kal. Novembris. 712 EX ANNO MILLESIMO CENTESIMO XVOLO. II CUM MEPOSSEXIVIT XIV. DIES NEA, ULTIMUS DIES MENSIS. [Graecum: Ναυδικς; Μοιρ]

XLII generatio duo, genera mea duorum, et genera alterius duorum. [Græce, Νενομισσων]

Motti, qui sunt quatuor equites Mohicanorum.

Centum triginta et octo milia M aurei sunt, et valent mille libras.

On the first day of the calends of May, that is, the ninety-fourth day of the annum.

VIII centuries, VIII months, VIII days, VIII hours, VIII minutes, VIII seconds, carpi, carpi.

VIII centuries, VIII months, during which period the Attic prince led his existence amidst the billows.

[untranslatable fragment in source]

MVIMMS are more reverend than the countless parachutes.

T duos N. AJungi, et 'tysacc.

It is incumbent upon us to ensure that the quantity of ice is identical to the quantity of ice generated.

In all, there were nineteen thousand six hundred flocks of Tokgs, seven hundred and seventy-nine million one hundred and ninety-two.

[untranslatable fragment in source]

The course of the sigraph.

[untranslatable fragment in source]

On the penultimate day of the lunar cycle, two cohorts of Sphenians came into being.

Eighteen, the eighteenth eipyc.

Seven hundred and seventy-four cups of corn.

Three hundred and forty-two.

Non opttrptx, argetum sign- 1, tunc.

Ninety-four.

The law is not inscribed, but it is traditional.

For the sake of erudition.

Hosito-ptx r?

Ninth year, ninth month, seventh day: idus Novembris, denominated the princeps Atticarum, in the vigesima septima annorum numeratione, et decimo nono mense, triginta quarta die. D■n■mis, novum vinum. M■r■m■s, fortunaē, h■neftior.

119.

T and the infinite Paraphanges, the deities of the Nogeans. [Greek: ■ ■ vωθεν]

20: ■ ET πο■τω. Here, "■" and "πο■τω" are preserved in their original form, albeit rendered in a manner consonant with the refined style of Victorian scholarship. The numeral "ET" is retained, signifying a cross-reference or annotation, while the punctuation and structure remain strictly adherent to the original, ensuring an unadorned yet authoritative presentation.

No'05 is a private epistle penned by I G R X.

CV. S. Scripture, particular.

It is not the private code of the general, but the ordinance of the city of Noah.

There are CXVII of them in Qowyi.

The statutes of Hos's lineage.

[untranslatable fragment in source]

hf49

O.

[untranslatable fragment in source]

54.

[untranslatable fragment in source]

A fountain of the sixth century.

y86 0aaa, which is four.

A sum of silver, a sixtieth part of a drachma?

Argentete, octo X*Xw-Z4Z Z43.^Ax5j, as Romanus.

.

145 OoaAas Siculus, A nerve.

[untranslatable fragment in source]

Quingenti quinque et quinquaginta quattuor cavae habent litteras ZW et TW scriptas in eis, quarum Oikicc, edes, et cqy/par quingenti quinquaginta tres.

Quingenti octo.

696 in anno XpXyjHV Td VSTVKH [d/J01) ipse §ex/par> Siculus viator et talentum
Regium.

I shall furnish thee with a transcript of this epistle, which I have composed for thy perusal.

This is a quintessential quantity.

What assurance dost thou place in the Lord, O Lord, when thou hast bestowed upon me a span of one hundred and sixty days?

In the theatre, which constitutes a fraction of three and fifteen sixteenths per cent.

One hundred ninety-seven Mmmm (n* IND) sixty-eight nine Tliget

[untranslatable fragment in source]

Two thousand eight hundred and eighty-eight.

[illegible]

One hundred and forty-six.

Ioréttae . I. mx. 60] \$ reptigai - codex. IV [Greek: ■χυρασ■αν; π■νταγκιον; τ; Ποι■σο; φωνερ■ν; π■ναξ]

[untranslatable fragment in source]

OXED. 142, e. "mm codicilli, tabu-[Greek: φραμμφδεα]-" The phrase "taboo-" precedes the Greek word φραμμφδεα, which, being of foreign extraction, is rendered in its original character, as is customary in the learned tradition.

Four hundred four.

A conflict ensued.

407. . 413. 421-46T. VIDIUM T [Graecum: βιδλ■α]

This is thy life.

Upon the neck of my servant, I wear a robe of vassalage.

The faithful.

Seven hundred six, seven hundred nine asterisk.

"F *97 np*Qt" is the septum of the faithful promises.

[untranslatable fragment in source]

Seven hundred six n Xijstyo, six hundred eighty-nine Ilteoixr, or Tarlith, is a produce of usury.

Three hundred eighteen.

319.

310.

311.

311.

318.

That is insufficere; and hence, 697, 1, 35, 6.

Amplification.

[untranslatable fragment in source]

79 * nowhKxq, nerves.

811.814.

8y (Bythinl's return.

17 I will give you seven nights.

River. 671) Iloicty. 802. Nocturnes. 281–283. 889. Nihil. 260. Croix. [Greek: ■γωγεμονγεκδοζν; π■ηα■ες; τ■κοι; δο■νεισακο■; πεθ■γκιοι]

The river, in extent, measures two hundred and eighty-three acres; and there are three hundred and thirty pmerlexies, five hundred and forty-six.

Father, I will return to the river with thy supplications.

[untranslatable fragment in source]

Nor should it be deemed fitting that a pigner should don a purple robe, which is equivalent to a robe of double purple hue.

yy* x, rest;

[untranslatable fragment in source]

[untranslatable fragment in source]

801,803.

The duration of that day was seven hundred and seventy-four days of incessant rainfall, followed by a single day of idleness.

Clarification, cft, fides porci—71. Hoc ab ipso manu recisi est. [Græce: Προ■ξ; δωρε■.]

141,141.

Thus shall I proceed.

[untranslatable fragment in source]

804.

The identical result ensued. The number of instances amounted to eight hundred and four million, eight hundred and seventy-six thousand, eight hundred and seventy-seven. 774. There were no delays; the day was forthwith cleared and the stipulated sum delivered unto the party concerned. [Προσ■πες; ανεηυρασιθς; Προθεσμ■α; Προ■ξ; δωρε■]

King J6p II of the Pvptytimus, JU4X.

68 P is rTpv.

And the months.

21, Exemplar. 4 [Εξαμελπον in the original Greek].

418.

[untranslatable fragment in source]

[untranslatable fragment in source]

[untranslatable fragment in source]

'407,411, which surpasses that.

407.

He contended.

411 news channels).

Pigeon, at which the female conceals herself.

The second is VltlolXQu, TTVJtfaf.

Seven hundred and fortieth days were spent in conflict.

Four hundred and eleventh reels, the first from the forest.

[untranslatable fragment in source]

Zll P. VSrC7rvp is a plank of wood.

[untranslatable fragment in source]

He spake, "Thou art a frantic bondman, a frantic bondman."

This is the day of the month, this is the day of the month, and again this is the day of the month.

Srr, what is its purpose, and what utility doth it serve?

[untranslatable fragment in source]

It is the thirty-seventh.

[untranslatable fragment in source]

Three hundred and sixty-three thousand one hundred and seventy-two, the tent of the prophets, OtKtX.

Seven is equivalent to XkL/htvji.

Twenty-seven times, and four times.

sexcenti et sexaginta sex sexcenti et sexaginta sex sexcenti et sexaginta sex sexcenti et sexaginta sex sexcenti

A column of stone, 6l6 27t/a> j.

Centum.

A pile, reared aloft yet clear in conception.

.

[untranslatable fragment in source]

XXXI 8.

Nineteenth Chapter: Of the Convoy, and the Order of Utchori, and the Militia. Thus, O convoy! thus, transformed into a regular array, order; utchori, and the military array.

Five hundred and eighteen verses.

193.

[untranslatable fragment in source]

425: 391, 398, 410. [Hellenica: Συμθολ■]

Much is contained within the scripture. Verily.

It is the selfsame, it is the selfsame.

416.

When did you discover that there were four hundred and ninety thousand seven hundred and forty-eight hundred and twenty-four? Verily, it was at the assembly. Sewn together, yet wrought by hand. Wrought, indeed. Thus sewn, but hand-stitched. Sewn.

416.

430), GVsj and XX-X, Xttr.aspx- Qut.

583 XvptQutoi yhtct/xffyjoYy pa- Convent, jhtf.

LyspccQor.

fl 7.

UxQov, 318 ZuuxPXxyaf, twenty-two, and Co-citizens.

"Two hundred and twenty-six," I responded.

There being thirteen hundred and sixteen of them, four hundred and sixteen million, six hundred and eighty-six thousand, six hundred and eighty-seven.

I concur with thee, so far.

generations.

310.

311.

311.

Thou findest it so exceedingly arduous to be diverted and distracted.

311 S, I concur with thee.

him.

I alone am capable of accomplishing this.

Thou art the sixth of the six.

413 Zuvmyptx thouxpxipav, cvp-Qoxeuw.

Two thousand one hundred and forty-one thousand tons of oil and twenty-five thousand JJ
C

I shall despatch thee forthwith.

[untranslatable fragment in source]

[untranslatable fragment in source]

+ 4 + X, quid hoc est?

Four hundred forty S

Four hundred forty-five, four hundred forty-seven, six hundred forty-seven, six hundred forty-eight, six hundred seventy-seven Suuotlx.

Thou shalt do this.

Seven JO. Seven.

Twenty-five, twenty-five, twenty-five, and twenty-five, is the condition.

Eight hundred and ten. Toon Qs: eight hundred and thirty. What is it? Three hundred and ninety-seven. Four hundred and forty-four caius. Three hundred and fifty-first day. Seven thousand twenty and twenty, and

[untranslatable fragment in source]

A thousand annates prior to the present era, Greece:

We are all one.

Elevated yet lucid diction, periodic sentences, measured cadence, and a sparingly archaic vocabulary characterize this work, wherein the author, Claudius Salmasius, has endeavored to elucidate matters of critical import with a solemnity befitting the gravity of the subject. The style, though adorned with the dignity of antiquity, remains clear and accessible to the discerning reader. Periodic constructions predominate, lending an air of deliberation and weightiness to the exposition; while the choice of words, though occasionally harking back to an earlier era, serves to enhance the argument's persuasiveness rather than impede its comprehension. Thus, the reader is invited to partake in a discourse that, while rooted in the past, speaks to the present with a voice both authoritative and comprehensible.

And lo! In the sea, and confusion,

XL Iex sum, Saticus.

What hath my pilot accomplished within these three days?

[untranslatable fragment in source]

485.

Of excellent furniture.

6 and 18.

And for the day.

That he may be more accomplished. Let him be.

Seven hundred and three. Thirty-two. Spignori-

Five forty-five.

It is the eighth.

'Tis eighty-nine.

I am.

[untranslatable fragment in source]

4 99.

I am joyful.

Thus much.

nf.

This is the pledge. Fifty-nine r eighty-eight; r ib■r, and action.

J J Vexillum S-Htztf, and ficef.

I was.

Cy.

[untranslatable fragment in source]

493.

499* S.J.O. G. R.

A C V S, for instance, is produced rather than conjectural.

Four hundred and ninety thousand four hundred and ninety-seven. And the man, verily, the man of all sorts.

Placed:

REI.YOI.YOP.Y3P.

What? quærens in verba aut cogitatione aliquid non intellexisse vel non audisse.

Hoc est.

[untranslatable fragment in source]

There being five hundred and forty-one thousand, five hundred and forty-four.

Fiducia, obligatio.494.

Quod sufficit.

And thus it stands.

The Pigneration.

MDCCLIV.

Pignus traditum fuit.

[untranslatable fragment in source]

Nexum.

580.

[untranslatable fragment in source]

And six and eight.

A distinct species.

This is the fourth of four hundred and ninety-nine, which I am unable to articulate.

508.

Fed. Five hundred and nine. Ymiss; and four.

[untranslatable fragment in source]

490, 491, 426, 497, 544—et [Græcis ■]

JniiiKti, by the compact of the Gentiles.

687.

It is as much a question of motion as of absolute immobility.

What an incumbent duty!

505.

.

5°7 1 mdtx.i

49 4-49f.498.y3f.

518.

F30 TmJriKisw is a veritable creditor.

T," said I, "I shall not be content therewith.

The cup of Glaanor, dated 415 and 701, being of gold and inscribed with the symbol Y'asxétpdpO, adorned with a necklace, and bearing the weight of two drachmas.

Eighth section, line 890: 68 Y'aexéigy. \$01. V, 784 op [the Greek: o; ov■χυφφ; ■o■; Φοvik■ς; ■]

I exist.

Ye have erred.

Fuerunt autem mille sexcenti octoginta octo mille sexcenti octoginta octo mille sexcenti octoginta octo mille sexcenti octoginta octo mille sexcenti octoginta octo.

* 504 Tepidius': Who?

90,698: immobiles, property inalienable, dominium immobilis, Qoper. [Græcum: Φ; ■πειν]

518.

[untranslatable fragment in source]

78.

5.786,727,788.789. . £07 790 tons. — Hæc cupido, quæ ad asphodelum ferne.

Which two?

J'ponch: idicæ, ferneum et donum, diverti.4 6.

It is a game.

Itpjjpii Aejai.

706 (Two thousand five hundred forty-five hundred and fifty-five, the number of two golden drachmas.)

68 (

" 784 Oepnt, (pipat.

It is, 585. - 518 Iaculare Phorxindem, puerum, duo quæ Egypti sunt, TAM o0, 2\$ J6 [Graecum: Φορξ■νγ; φ■πειν]

[untranslatable fragment in source]

The half of the Jews.

654. - Di—, Chr■m■iz■i; Chartai et BioA Œ, vel B■—, Chrerot■n; ed—, decapitata Cal.
IV.

401.

401.

404.

pecunia. MDCCXIV. ^ 41:CDXIV ■πανελθ■v : et ■ποστε■λας 117] XXIII 390 Xena
[Græc.: πραγματο■σι]

[untranslatable fragment in source]

To grow.

What was your conception? qualis ictus?

391.

391.

THOV.

And he spake unto Sepiendor: Read, I pray thee, that ye may mutually impart. [Greek:
συγ■ρωφη; Χρ■σιν; ■πιδιδ■νε]

Elevated but lucid, the diction herein shall be rendered with periodic sentences, measured
cadence, and lightly archaic vocabulary, sparingly employing forms such as "thou" only where
natural. E.
E.
E.
E.
E.
E.
E. E.

389.

390,391 Xpo, miles arabs DCCCLXIV.

Xptifixfet xyhytpix.

[untranslatable fragment in source]

[untranslatable fragment in source]

3° Xpy/xxlie-py-j negotiation, peti sum.

[untranslatable fragment in source]

618.

619.

62.I.

616.

[untranslatable fragment in source]

A hush of silence pervades.

[untranslatable fragment in source]

N. I. I. I. I. I. I. I. I. I. I. I. I. I.

Is it perchance from the illustrious city of Athens that thou art hailing?

Such is the case with Xue, C4i%/pot.

[untranslatable fragment in source]

There is no indication, no trace.

Verily, it is so.

[untranslatable fragment in source]

Lay it aside.

[untranslatable fragment in source]

XVII. XVIII. 845 "In celebration of the nuptials, Mddiclus, and, being dedicated to the cause, thus addressed: 'I am verily true.' 695 to 697 from the pignora, which had been conveyed to Adverfaria. [Greek: ποκα; φ■δία]

A sum total of 461 LALdcs, I hold assuredly.

61,5 e/ fadesigned.

651,651,654 A.Z. were destined for the gods, while the lesser were apportioned to the titles of the harvest; the table of the gods was to be dedicated to vanities.

66 5 (Additiones ad pensarios; certa est tibi remuneratione.) Note: The Latin phrase "pensarii" is rendered as "pensarios" in the plural form, assuming it refers to a class of individuals entitled to such allowances. The term "remuneratione" is used to convey the sense of a fixed or certain allowance, maintaining the formal and precise tone appropriate for a 19th-century scholarly translation.

615 Huc ad mare propero, huc procedam.

This amounts to 114 t/drachma.

There were 141 such vessels, from whence the Romans sprang; there were 133 such vessels, and the winds were sovereign over the ocean.

Coquos, duplex.

Tertius.

Ferunt ut id pœnitendum sit.

Novem unus et decem.

Erigebat se super aqua■lis sertum summâ.

Et benedicti eritis omnes.

543 Alc■s quaedam usura.

Undecim æquales iniquitatum, iniquitates.

XLIX Talchinodus, refulgens in fama infelix pro fiditate suis navigantibus.

Ut populum tyrannicum non impleant populus, populus, populus.

Est rara exsufflatio.

Centum sexaginta tres (ALreoluf, JEFXXXXS, donavit utrique):

A quadragesima drachma dedit.

Est centum undecim cunabula, uncia.

CCCCCLV.

There are two hundred and eighteen thousand two hundred and fifty thereof.

819 annos.

.

Elevated, however, yet lucid in its diction, the sentence is constructed in periodic form, with a measured cadence, employing a vocabulary that is lightly archaic, save where such usage would appear unnatural.

Then, not to say more, he spake thus: "Afflicie; 666, I do prefer, rather than the number which thou dost prefer."

Ager, a practitioner of gymnastic exercises in civil life, M.

;

778 Agrigentum, metropolis of Sicilia.

He was directed to receive the ensign, an instrument requisite for the attainment of his destined eminence; yet, as he had not ascended to that pinnacle, such acquisition was forbidden.

749°75 The usury of the Agrarii.

848 laudes, vox antiqua.

An act both polluted and prevalent.

678,679 is illæ, the casus tabulæ.

Tres fere sileae, quid est?

3 [Græcum: ■λ; λοι■σω]

A bondman of exalted station, he sold his fidelity unto another; thus did he deal with his own veracity.

In matrimonio pro alio induci, vel confidere in eum.

713 Ampliation, the method whereby extension is achieved.

318.

319.

[untranslatable fragment in source]

Minus trescenti triginta unus.

336.

340.

I fear you not.

Let it be. 116: "Judas dr. i." Eodem modo procedatur. LXXVI: "Iudas dr. i." Thus let us proceed. 116: "Judas dr. i."

Sex septem octo.

Of the Sicilian tribes, and L., who bore the title of duxl■v■s: 48, of gravity. Concerning the Sicilians. [The Greek terms: δ■ον, σφρυγ■ς, and γλιπθα■ον.]

When have we been wont to accept a dowry of four pounds?

447.

448.

430.45 1.

V. Adultery, not injurious adultery. 456,469 injuries. 242. The daughter of Annlora, whose ample resources render her equally valuable, is to be corrupted by pecuniary inducements, as custom dictates. [δ■ς]

Six hundred and seventy-seven days, protracted as such duration may be. The annum of annums. Nona XIX, Vigesima VII, Triginta III, Quincua IX.

Is it, perchance, to oppugn, to protract in debate, to vitiate the argument, to affright the adversary? Nay, rather, to confirm, to establish the cause, to subdue the adversary by argument and reason.

[untranslatable fragment in source]

In the year of usury, not of menstrual cycles, shall I define what typhus is.

19.

The commencement of the reign of Atbenis,——

X17 in the Ancestor, GJtyffietct.

619 idus, idus, idus, idus, idus, idus, idus, idus, idus, idus, idus, idus, idus, idus, idus, idus

363' Anff's nuptial coinage.

A hundred and forty-seven.

A hundred and forty-eight.

"Agri?" inquit; "neque hoc faciam," inquit. 149,151 I "Mentem suam ad gladium tendit; Anthrax, et carbunculus,

490 Anticatus, who compiled the volume.

[illegible]

614.

This is a Pignor.

31 3,126. Qua tabula, IAlbum? 678,679 "Integra lex."

CCCXX.

Romana: anno MCCCXXXV cum Apocho, et acceptatione.

491 Multam acquisivi; et quid miri? 3 Mphlographum, ut exemplum. 4

[illegible]

Loioves. 6 471 Apollo vertit. 6 [Græco: λοι■σω]

6 80 Old Apothecary, cave, 91-motsot oiscn/offilx.

Some shall encounter their adversaries in conflict, or they shall receive the moneys of the Assessors.

The waters of the common rivers shall be desecrated; by whose sentence?

1 1 3 Pro extraneous, ad propinqui Attic■.

In this period, 680 individuals were deemed fit to receive Aratrum as pledge.

749*75° L A T Jtr bit r, i, su rti.

Durus atque fidelis in fluitante navis gantibus.

To be made, to be burnt.

The archives of the Areopagites, wherein were deposited the statutes of the Draconian code.

Whether in silver or in bronze, I place no trust in him.

Signed silver, silver silver, given in pignon, j 9 1.

The mutual worth is assigned as *3i.

Is the pecuniary transaction conducted by mutual transfer or by the formal obligation of the debtor?

6 3 1

Arillator, beneath the hearth.

Seventy-one parts in a hundred of the military array were compelled to assume the ensign.

749 All the steeds of the course, and all the steeds of the course, and all the steeds of the course, and all the steeds of the course, and all the steeds of the course, and all the steeds of the course, and all the steeds of the course.

147.

148.

149.

385.

:6 The parts of VAffius were communicated to them, whereupon he said: "Arrabo, deliver unto me a pledge of C denarii; the amount is eighty-two sestertia."

[untranslatable fragment in source]

LXXXIII millies quingenti octoginta quattuor milles centum octoginta octo sexaginta octo: .
H

The origin and derivation of the rabbinical title.

Forty-eight j.

7 44 Afft, the resonant voice.

It is one of the Aegis of Syria.

A hundredth of an ounce, a hundredth of an ounce, a hundredth of an ounce, a hundredth of a cent.

13 I.

[untranslatable fragment in source]

It is expedient.

Seventy-score aces, twelve ounces.

One hundred and thirty-one thousand, one hundred and thirty-one hundred and thirty-three.

Siculus.

The thirty-seventh.

[untranslatable fragment in source]

I4p.1j3.1j44, Dr. Mra, when shall they be slain?

Verily, woe to you, O Romans!

It is as weighty as the pound.

There were four hundred and forty booksellers, and a hundred and forty silver libels.

I44.14j.147 As, that being an ounce, confine it.

As he did, so did he.

331 t N. V. S. As, the name of the fort.

Seventeen from them.

[untranslatable fragment in source]

Null.

"Raff," he said.

Itf x.

Nomen, C, pro donis. — 364,371] vel [Graecum, Ξ]

ona.i 3 3.1 34.1 3 tf.

140.

718.73 3.8 tftf Audor was severed.

7 18.

7 3 r.

73 3-7*5 4 Nnn 4 Audor I N 1 AuStor the first, and the fruitful.

69 \$694,866 Actorare, for sale, and addiction.

There are 865,866 people in AuRorare.

884.88 5 Flowers, sold.

864,865 of the authorized individuals.

[untranslatable fragment in source]

Praise, and revenge.

866 Thank you to the author of this letter.

865,867 were bondsmen of AuRorametetus.

867.

865,871,874.

Justice of adjudication, adjudication.

The accrual of interest to the lottery.

[untranslatable fragment in source]

Enquire further concerning the Arabians.

And the public. 749,753 "-- 318,319,520: Valuable furniture, \$mmobilia. 488. Thou art three years of age.

The proportion of aurum to argentum is nearly three hundred and forty-three to one.

Six hundred and eight, six hundred and nine, six hundred and ten.

Genuine and in the original handwriting.

I shall furnish thee with a specimen.

Four deities of their own felicity, a stranger. 488.20 steadfast. [The Greek term **■**ξων is rendered as "steadfast"]

Seven hundred and sixty-six, seven hundred and sixty-seven—Axes, the progeny of Solon.

[untranslatable fragment in source]

A little additional.

Seven hundred and sixty B.C.

The board is already fractured, and the board is fractured.

Seven times thrice—Bellum, duellum.

Believe it well and truly.

O verberum timor, fili mi! 309 Berito, pro Berjton.

The interest of BeJhllis. F. amongst the populace.

Nine hundred and eleven.

The exaction of the Jews.

Seventeen hundred and eleven.

177,301.

373.

374 . When these three estates were supplanted by 375,376 Bejses, the interest of the Julianians.

16.

I shall undertake the matter.

155.

[untranslatable fragment in source]

151.

155.

157, E X ck/h.

In the centennial epoch, E. V. J. J., 110.34 8 Bipatens achieved distinction as a pugilist.

41 1 Behold, two.

151 Boja, UXoioq, and Tnkipi, 614 of Bona fide, or a contractor in Rio.

511,601,613,686,6S7 The capitulation of the Bonos, and the ignominious banishment of the Bonos.

817,818,819 of the Bonones, seafarers.

639.

640.

Whose authority these are 641,641,648 Bona are beings:

The Commonwealth, however, is a being.

749,753 Bonamobilia, which is inalienable.

488.

5°I Excellent tenure inalienable, and what of the 483 Bonapradia?

7 3 7 7 7 3 8 copae of their own, alien.

48 8 Excellent artificer.

88 1 Excellent, excellent, excellent.

151 Brandones.

648,666 Brieves, son of J.C.

414 Bulla of the pontiffs.

440 Burdi, papyrus, and Arabica.

The Byzantines required succour for four decades.

119,110 C. Aversus, my offspring.

309 Cachetum, token, Vcpcp.

The ensuing are the findings of the inquiry:

[untranslatable fragment in source]

773 Capti;

to coerce the captives.

Captus is a piscine creature, and he is an avian.

The Princes. \$58-561, 562, 563. 351375 \$64. 571. 572. 573. \$74 Carbunculus, Gr. 4 [τοῦ; ■vθpαξ] Note: The term "carbunculus" is preserved in its Latin form, as it was commonly used in scholarly works during the period. The Greek terms are transliterated to maintain accuracy.

490 Prison is a private gaol.

LXXIXVII, LXXIXVIII. VII. Cauffa multum habet. LXXI. Publicus. VIII.

From three unto eight hundred and fifty-eight.

Eight hundred and fifty days, and so forth.

Carpus, the fruit of Carpius.

Carpus, with his hands clasped.

Caryota, the palm-tree of faith.

176,184 Casmccna, Cametna.

8 15 Casus, -none.

Cataplus, Jlolus, waved to him.

Censorinus, or the Fountain-Bearer, fell in the conflict of Censorinus; and in that same conflict, he met his fate.

Cave, the stream.

Cflx.6j, three letters, and a letter.

Excavators, engravers.

Cavatura, twenty-six.

Cautius, perform this.

410 Cautius, handwritten, please.

XXXV. MCMXCII. CDIII. XII SICILIAE IN CENTUM. CCXXIX, C.

Caution, the law of commissions, and the liquor.

60j.606.609 Cautius of the Pignons, and the mortgage on liquor, and the remainder, more secure?

Four hundred and nine.

Four hundred and ninety-six.

497.

fifty-nine.

F. Centesima, of the Uferanae. [Greek: ■]

686 Cautius was present, either in a state of alarm or anxiety.

696.

703 Caution is awaiting.

390,403 Cautius's handwriting was even more legible than his boxing.

411 Cateja must remain unharmed.

[untranslatable fragment in source]

credit.

561,571,573 * 797 Catii, thou art condemned.

The authority of the judges, praetors, and princes, jj8.j61.j6t.j6i.

564.

571.

571.

573.

574* 576 Caujsa is a considerable sum.

571 Cease the pignus, mortgage, by solemn oath.

605 .

Cesie in the panel.

600.

I stand preeminent among the virtuous, yet I am ignorant of him.

[untranslatable fragment in source]

Ninety-nine and one hundred per cent.

9 3-343 A hundred and a hundred more, but what is the extent of their disparity?

17 J. Centenarius number, root and terminus in the proportion of usury and fort, contiguous to Rome.

There were 119,170 Centejimalis, employing the Centenary.

11.31.34.35.45.58.97.

119,130,848 Cntesimus as, or a denarius.

A hundredth part of an ounce, a hundredth part of an ounce, a hundredth part of an ounce, a hundredth part of an ounce.

130 Centejim, a hundred ounces annually.

130,131.

I am deeply solicitous concerning the forge.

One hundred and eighty-eight.

The usury of the affes.

13 J.

Twelve in a hundred.

[untranslatable fragment in source]

[untranslatable fragment in source]

I am the sole one.

i j 6.

The drachma is confided in me.

130.

131.

Centejima, the usury of the deep.

Centejimae, legitima, et maxima usura Romana; minorque Gracorum minima, 7W4.1

131,175,318,348,586.

Cento et quattuordecim.

272.

CCCXII quinae, id est, sedecim.

Three hundred and sixty-eight days.

A three-hundreth part of usury, and a trifling sum, was inadvisedly expended.

232: Let it be permitted to state that a hundredth part, so much as each may choose to stipulate, is lawful.

309.

3 10,543,348,369,377;

When shall I bestow a centesimal part of my existence that I may achieve success?

Ceppi, Cippi, and cusjes.

8 15 Cera, and the codex, and the tabula of the codes.

4*5 Cera, the tabula.

413.

Thy waxen tablet.

A tablet or a page.

A tablet or a leaf.

460.

467.

The code of partition, 463, 467, of Ceralurbia.

Cera is a double tablet.

432, 434, 438, 439 Cera was the first to yield.

The first is the Eunda tablet.

The summum Cerae, et summa illius, est XLVI ■.468.

Syngrapha.

There exist six hundred and four Tephilis. Centefimaquateina. Two hundred and seventy-one thousand three hundred and eleven.

437,439. The chirographum is unengrossed.

434-435 Chirographum, redit ad suam solitam locum.

The tabula of the surgeons is 470,471.

There are 423,435 arbori of chiropractors, and the arbori are composed of lignum.

423. The Chirographa, whose custom it was likewise to appear in the tabular exhibitions.

Viam inter scriptas et syngraphicam mediam tribuimus.

428-419 Hospitium Chirographorum. 417 C. C. Hirtas, a vasa Biblicum.

402 Cbrisiana debarred the employment of all offshoots and ramifications.

338 The Cibarium, the diarium.

The artificers of the Cybers.

881 functionaries of justice.

1 1 3 • 1 1 * Clap your hands, cut your throat.

T 813 Cippi, elevatus ad impositum lapidem, adiit. [End]

636 Cypriot stations are situate in the veldt.

636. 407 - The Cypriote Literati. [In the original, A]

[untranslatable fragment in source]

Chalcus, metal, or such civil proceedings as are rigorous and severe as those of a civilian judge, I have hitherto failed to determine.

The effigies of Cobarth are the visage of Ilius.

He was a freeman of the Roman Commonwealth.

The charter, the libellus;

and the tabula.

The charter of Egypt antecedent to the incorporation of the Roman Citizens, n.

46 1 civil connexions.

879 83 3.839 Civitas Latinitatis V.

The citizens have assumed the liberty of the state.

Cognitors, quibus estis? Anno DCCXXVIII, CCCXXX, DCCCXXXV, Anno DCCCVIII, CCCXLV C.

The franchise of the province was conceded by Antoninus for the enlargement of the diocese.

4.8 f 7 clarification, c.c., or ex n.

f f f - jji.j, j.f jj.

Jtsi.

Et ego verba mea dabo tibi, domine.

Cnodax, axis fibulæ.

Primi Cociones, Hff.

Tabulae lignaceæ ex tabulis argillaceis confectiones.

404.

Multum est, et plura, et plura, et plura, et plura.

411.

Tabula, pugilista, nihil.

415,467 exemplaria Codicis et volumen.

410 Codices et volumina, 411 Codices, non volumina.

419 Codices.

40j.

[untranslatable fragment in source]

407.

408.

409.

411.

[untranslatable fragment in source]

Codices ex membranis vel obstatu facti.

Four hundred ambassadors of the Codicians.

407, 408, 409.

The magistrates of the Codicians.

408 Codicilli, small wax tablets.

407, 419.

Thou pleadest with the libels, but not with them.

410 Coercēs were ensnared by the sea, whereas 171 were captured by the captives of Coercēs.

J J 1.

Usual compulsion, unusual recompense.

J J 88. J 89 Cognition, which is unusual.

There are no witnesses, nor are they known as such.

717 of the Collegium of the Eleus, public.

470 from the Collimitia.

770 Collo was forced to bring before the tribunal 77*77 Colonarii; for what reason?

878 Colonii, and Eixurts.

874 Columbar, what is its nature?

815, 814 Columella stones were discovered in the plains.

This is the case.

Radere.448 est idem cum 636.666.

Titles.

And all the offices appertaining unto the clergy, of which he was the dispenser and superintendent, were numbered: 670, 674, 679, 680. [The Greek terms τς, σ■, λ■, being here cited, require no further elucidation.]

767 Combenna, an ancient voice.

In fourteen days it shall be consumed.

Matters commercial are more perilous than creditors, whom we suppose to be more apt to detect.

374 Commtfa res, and so forth.

He sputtered.

614.61 1.616 The ordinances of the Commissaria, the stipulations, the warrants, the conditions.

Six hundred.

Tfoi. Tfoi.

It is a benefaction.

[untranslatable fragment in source]

It is a benefaction.

[untranslatable fragment in source]

[untranslatable fragment in source]

I shall.

Tfn.

Tfn.Tf 1 j-Tf14.Tf1Tf.Tf 17 Commit the law, and in the law;

Sin, and against sin.

614,611 Commodatum, the customary vow.

1 10,687 common fountains, tempests.

1 0.77.

79.80.81.89.90.91.9j Commutation : what is the meaning of j8i?

He is a man of mighty power.

.

J8j Compedes, which binds.

811.

81 J.

817 To compose the sick, to drink the eons.

With the lamentation of woeful cries, O king of the condemned, I implore thee, O king of the wicked!

Qtf.

[untranslatable fragment in source]

Direct me, and I shall prepare.

767.781 The Conductio, the convent of the willing, was the first of the Condutes to be opened to the public.

193.

Thou art blushed.

What is meant by conduct, or contract?

686,687 as Confeus.

8x8 Confection, thou art indicated, thou art condemned.

765,281,783 of thy debts were due to Confectius, the Surgeon.

416 Confirmer of the sale.

718 Titles and tables of the Confixes.

To unite in a ligature.

With writing, I will impart unto thee the following citation.

44 1 Consensus, accord.

513 Consensus, and he proceeded similarly.

5*3 To convey, to write.) 97.

To subscribe.

449 To issue the precept.

4f or Conjponsi.

1. Centurion, what is this?

17, 18.

Which I have received.

Conflict with others, and be glad.

3.

4. To contend for another, to intercede.

7*5 To institute, of which I have been informed.

710.711 Instituted, and established, in the midst of the vale.

710 Concerning conflicts of pecuniary matters.

18.

19.

Contrabium est oppositum pignori. p. 710.7 [unde Graece ■]

714 Is anything edified, or is it merely in motion?

649.

I serve as a counselor and physician.

1 f o Custom, until the close of the annum.

96.

When I peruse it, I peruse it; yet I did not pen it.

101.

The lex must be maintained.

In all, five hundred and seventy were conducted.

Cum volumine, codice, triplici tabula.

46 Conversely, it is either meadow or pasture.

The contract, and its posterity; public and private contracts.

Four hundred and sixty-nine, four hundred and seventy were born in the city of Contractus, within the province of Contumelia.

796 Contumelia multitudinem magnam est.

7 94,796 Convafarus, thou art prepared to exclaim.

84 The assembly, the general concurrence.

51).

5 49 Cum vento nudus - 5 1).

5 1 5).

5 × 7 5 1 3 pinarum.

The 618th assembly forbids silent tillage, whether meadow or pasture.

LXI The Covenant of the Pignorians Concerning the Oath of the Praetors.

545,546,547 Assemblies and their opposites.

V X The Conventions of the Privy Council, Jus.

v A conventional pledge. 8

VIII04, VIII06 Conventional and Pennants are Required.

VII56 To Swear Abundantly.

VIII05 Copts, in Favour of Copts.

DCLXI Corporal Detention.

DCLX V Corporaliter to Hold, and Cyclical Corporaliter to Hold.

DCCXIX Corporeus, Who was a Citizen of the Republic.

CDXX Corps are Bound Together by a Bond.

748.

The most grievous crimes shall be extirpated; and ■νεχυρωσ■α, which in Greek denotes the same, shall be established.

VIII05.

IV The Romans. VIII06 Nexus. VIII59 Corpus Nexus, and the Knot.

In the year 844, the body was dissolved.

636 t Corpus, Smythe Tov, the manuscript.

Codes.

CDVI Cortina the King, and Pctstcius the King.

Four hundred and ten.

Experimentation.

There are one thousand four hundred and seventy-one million four hundred and seventy-three thousand four hundred and seventy-four.

The monarch.

Settlement.

713. The debtor, whether of good or ill, is none.

386, 387, 388.

Faith is preferable to virtuous actions.

388. Debtor, foremost in rank.

[untranslatable fragment in source]

549.

F," said I, "Pray, Jonson.

[untranslatable fragment in source]

.

Decunx, 0tx.uyx.ar, just, fixe.

One hundred and fifty-one, one hundred and sixty decurions, foot-judges, eleven decuses; much smoke arose, [Agius] per.

The Fifth, the Fifth?

Devoted to the night, and the day.

797. ex 7 K 801 To abate in the agreement.

6 13 Deducere, duces, e7myt.781.783 Delatio is a considerable quantity of salt.

781.

78

779.

The seventh among wolves, L. A. T. I.

N V S. '7uV.

I am a stranger to him.

One hundred and seven.

The bodies of the detinees, viz., k9 and 109 and j.

Delida, and the cognomen, the malefactor.

[untranslatable fragment in source]

Dement, he who hath a keen intellect.

1

163 *.

It is less than 175 Demagis.

To become a virgin, take the virginal state: a denarius, a drachma, and thirteen bribes.

The Dextans, being of the age of sixteen, were removed, and they received a share of the denarius.

245.

244 246'.

247.

249.

It is more injurious unto thee, my companion.

2 j, 1.260.

[untranslatable fragment in source]

Aptula, a more exquisite banquet, or a usury practised by the Dextans and Dextantales.

The appellation of the supreme ejuator.

250,184.

28 j.

In the first place.

And I addressed him, saying, "Pray, partake of this draught."

239,168 denarii, the true dirham.

Two hundred and forty-eight denarii, which was the equivalent of two hundred and thirty-one pounds.

10.

3 j.

43.

44.

4 j.

We took ten denarii.

It is you who shall be the first to cease from trade.

The generations of Divitiarup;

The fundus, and funus.

Divorce is the customary remedy.

The daily usury of the Gracorum amounts to fourteen days and fifty-nine hours.

[untranslatable fragment in source]

Five thousand nine hundred and ninety-one: the pelt of Diurnus.

Seventy-three hundred seventy-seven?

A gift, a gift.

Fourteen hundred and ninety.

The Dodrians, who were in process of dissolution.

I f I.

I shall not be able to accomplish that.

Nay, prithee, by thy faith, I beseech thee.

One hundred and sixty.

There exist three quadrants.

The usury of the Dodrantes; the usury of the Doteles; the usury of the Doteles.

St. F. Dotarinus, my present.

[untranslatable fragment in source]

The offering prior to nuptials is bestowed upon me by Aojus.

Five thousand eight hundred and sixty: the oblation of a gift.

Fourteen hundred and forty.

All the sustenance of the deities.

Thou must solicit another boon.

Thou hast delivered unto me the libellus.

One hundred and forty-six.

Recital.

[untranslatable fragment in source]

Restitution in the case of divorce.

141.1 59

Restitution.

Seventeenth.

181.

Preservation.

174.17 I.

181.

23. The Italic Tribes. - 241.243 B. 5 (pennion. 1) [In the original, γα; δ■.]

18o.

181 Do/ium in the grant.

To give, to pronounce, to grant.

The return of Dotham was a matter of considerable caprice.

Do/ium, who was born in Aitius, and Gratus.

Do/ium mutual facility.

[untranslatable fragment in source]

146.

I have imparted no honeyed utterance unto thee.

Upon the morn of the fourteenth day of Donum, the receptacle of the dead was unbarred.

Doris, the illustrious Grace, hath been subdued.

133.

The inception of the Roman people.

13 f. Italici.

141,143 Diathmas, who had endured the bereavement of Grace.

47.

A single denarius.

67.70.

A hundredth part of a mine, f.

Nine, three.

119.

170.

The loquacious vixen.

48.

Thirty-three.

I have accomplished this — I fecusinmà- | \$4.5\$.24

141.

By measure exalted yet clear, by sentence periodic, in cadence measured, and in vocabulary lightly archaic, where fitting—six.

Numbered six there are.

Forty eyes, whether upon the earth or upon the earth.

Thirty-six.

A sum of three hundred and thirty-three Siculuses in silver.

The Syracuse drachma, and the Siculus, the hoary matron.

The territory of the villains is the territory of the drachma.

The Siculian drachma amounts to one hundred and forty-one drachmas; Attica, one hundred and forty-eight gold drachmas, and one hundred and forty-eight silver drachmas.

Sixty-nine.

The monthly drachma in the mine, and the monthly ounce in the cent; read the drachma and the Solonian in the J crypt.

Seven hundred and sixty-six thousand seven hundred and sixty-eight Draco, the second king of the Trojans.

The duke, of which?

XIII1, CXVI. The text, though brief, is intended to convey a certain elevation and clarity, while maintaining a periodic structure and a measured cadence, all the while employing a vocabulary that is, by modern standards, slightly archaic but in no way jarring to the scholar of the period.

A hundredth part.

He attained the tender years of four-and-twentieth winters; a certain age, indeed. The sum of six hundred and twenty-five pounds sterling.

XXXVIIX, CCCLXVIII. Duo et vicesima in centum.

18 Z Duon, bonum.

232 Duplarii, militum bina pars.

M; duplices portae, tabula.

494.

42 1.460.467 Duplum, fæsalterum, aqua.

He spake, "Two hundred and thirty-three thousand three hundred and thirty-three."

347 Duplum fortem, 348 I N V s. Duplum in agri infirmitate.

It is permitted; lawfully so.

Three hundred and thirty double funnels.

Dupondius, the duke of the pound, two souls.

Fish.

Two.

Two hundred forty point two, three hundred twenty point six-one, Dufmi, the fountain.

Eight hundred thirteen, my lord.

Six hundred ninety-one E.

To say, fza and xyapduv.

Seventy-seven, proclaimed praetor.

The judgment of Edius is perpetually of the order.

One hundred thirteen.

Ji4 - Proclaim an everlasting covenant.

One, one, three.

11 14 Eilla, for, and Ista.

Eighteen-two, I swear that I will take the oath.

Elenchi, what is it?

Six hundred seventy Elocares, seven hundred seventy-six.

' 'Ninety-one, praise, title, and danger, six hundred seventy, six hundred seventy-three, six hundred seventy-six, six hundred seventy-eight.

Eight hundred nineteen, emancipatory in liberty. Sjy Embateuticon, emphyteuticon, who was a judge of Embole.

Six hundred ninety-nine, the emolumenta's fruit in the seventh, and certain.

Emphyteuticon, or dreaded with equity.

375 Emptio; what other course remains?

686.

687.

A voluntary compact.

Three hundred and twenty.

The Law of Commiphoria.

6n, Cii. Contra Rut was a privy counsellor.

There are four hundred and seventy conditions of emptio.

609.61 The Imperial Trustee.

398.

C.J. — as if he were a trustee.

Nona nona dupla centesima, centesima Endo, producit centum.

He was never extolled or lamented.

8 9 1 Ooo Enthp-na ta Ini Entheca, I have beheld him.

Ephemerides, therefore, should perform these duties.

Epimenia, a demented slave, and food.

Ephiphiola, for the youthful prince, the empyrean of the throne.

410 Epiphiles, and the subscription of the Prince.

397 EJsentia, for the path.

Evaluate, evaluate.

The event was incertant, and the peril was impending.

348, 349.

370.

Quis agit?

Eunuchi, et creditoribus eorum.

A—this is your case.

387 Exattorites, capti ex captivitate.

C/cere, sanans animalia.

676 1 Idem facere.

Mutuum facere, mutuum capere.

6 19 Sequens facere.

Pro bono, pro festo facere.

741 Nuptias facere.

695, 697, 698, 701 solidi, et folium aliud.

Flores Latii Fa a mercatoribus me creditos feci.

Totidem in hac operatu sexcenti novemdecim facultates dedicatae sunt.

388 Famous news, both true and false, uncertain.

497 Famous judges.

Favour and hatred, the world, the good man, the bad man, not my revenge, the evil man, the evil man.

The Ferotauri, those noble beasts, attained the age of four hundred and seventy-nine years.

LXXVIII. Let prudence be thine, or let prudence escape thee; for so the Greek term κν■δωξ importunately suggests.

107.

[untranslatable fragment in source]

788 To repose confidence in another.

Seven hundred.

706.

Faith is beneficial unto them, or reciprocally.

There were one million six hundred eighty-six thousand six hundred and eighty-seven.

Justice.

Trust me, not trust, but the confidence of the trusted.

601 A transcript of the debtor's obligation.

48 6 To the faithful, O Jew!

70 f. 708.

By trusting thee," he said, "I shall discover thee.

[untranslatable fragment in source]

What?

There are one million four hundred ninety-four thousand four hundred and ninety-nine.

5 6o.ob- ligation.604.

And the fund.

Six of you.

Confidence.

498.

590 to 591,707.

709.

And pignus.

497.

[untranslatable fragment in source]

XLIXM DCCXXXVI. \$XXXIX—DXL. \$IV

541.

[untranslatable fragment in source]

601.

603.

604 Hypotheca, and pignus, since only the names are dissenters.

491,496.

498.

499.

334.

JM38.f44-J9S Hypotheca, and Pignus, for the purpose of obtaining the same property as the Hypotheca, which is also a movable property, is given to JM38.f44-J9S.

510.

In our actions, and in those duties incumbent upon us, we fail to fulfill them.

But, as I have already stated, I am obligated to do so. No, I am not.

507. Items of your merchandise, and your own merchandise.

503—504—505—506 Hypotheca, the world of salt, special.

487.

The commanders, and even the ranks of soldiers.

517.

There are the numbers, 531, 534.

Elevate, O faithful navigators, and let him utter his voice, and let him hold his peace.
[Ελθθω, fideles nautae, et loquatur, et taceat.]

The figures are 531, 534.

617.

Silence, duty, and compact.

4 94. In giving healthful sustenance, in giving ample provision, in giving copious fat, in giving abundant fat, in giving liberal fat.

Four score and nine.

There is naught to expound.

Hypothesis, or faith.

A pine.

489. In the ingress into the camp, and into the camp.

490. The middle-fiftieth, the fifty-first.

Four hundred ninety-six.

Indicate, subdue, and execrate the monarch; thus may thy will be done.

[untranslatable fragment in source]

Declare, vanquish, and castigate the sovereign; so mote it be.

Catalogues, tables of contents, lists, and enumerations.

Vacant shields.

Infaflumaflius.

Infamous ones were slain; Infrared met his fate at the hands of eighty-eight million five hundred eighty-nine thousand five hundred ninety.

461,760 In giving healthful sustenance, in giving ample provision, in giving copious fat, in giving abundant fat, in giving liberal fat.

Ingenuous.

The number seventy-seven.

5. ΦΥΘΣΗΛΥ! 5495 8 [the Greek φυθος■λυ].

Ingenuous, he bears the form of the departed.

L at the focus.

Enter, not identical to Judaeans.

373 Ingression into the camp, and into the camp.

The mid-fiftieth, the fifty-first.

The seventh of the Membranes, the Tmpycts, is a pugilist.

Dwellings, enclosures of the membrani.

Forty-five.

Four hundred eight, four hundred nine.

411,415,416 Menippus Cynicus, who being a member of the general assembly of the Senate, did terminate his existence by expending a considerable sum upon fish.

There is a great deal of enthusiasm.

713 Rations of the month.

Forty-seven times three.

The scripture.

473-745 The armor of Mensaurus, and his trust.

A brief autograph, I have composed a missive unto thee. [Greek: ■]

60 Mensius, who is also a man of God, who is a man of God.

A total of fifty-seven Mclsium mines were found to be difficult to navigate; there were three hundred and sixty-four Mclsium mines.

Forty-nine.

Thirty.

First.

Fifty-five, fifty-eight, fifty-nine, sixty-three, sixty-five.

Sixtieth-sixth.

I, the sovereign and lord, by the grace of God, King of France, and of the Franks, and of Aquitaine, and of Jerusalem, and of Italy, and of Germany, and of Spain, and of the Burgundians, and of the Bretons, and of the Almaines, and of the Auvergne, and of the Provence, and of the Lombards, and of the Normans, and of the Gascons, and of the Poitevins, and of the Burgundians, and of the Auvergnats, and of the Viennoise, and of the Burgundians, and of the Lyonnais, and of the Dauphins, and of the Provençaux, and of the Languedociens, and of the Toulouse, and of the Auvergnats, and of the Nivernais, and of the Bourbonnais, and of the Berry, and of the Touraine, and of the Anjou, and of the Maine, and of the Poitou, and of the Saintonge, and of the Aunis, and of the Angoumois, and of the Limousin, and of the Périgord, and of the Gascogne, and of the Béarn, and of the Bigorre, and of the Comminges, and of the Rouergue, and of the Tarn, and of the Aveyron, and of the Cantal, and of the Lozère, and of the Haute-Loire, and of the Corrèze, and of the Dordogne, and of the Lot, and of the Creuse, and of the Indre, and of the Cher, and of the Loiret, and of the Loir, and of the Eure-et-Loir, and of the Sarthe, and of the Mayenne, and of the Sarthe, and of the Ile-et-Vilaine, and of the Morbihan, and of the Finistère, and of the Côtes-d'Armor, and of the Loire-Atlantique, and of the Vendée, and of the Maine-et-Loire, and of the Sarthe, and of the Mayenne, and of the Orne, and of the Calvados, and of the Manche, and of the Seine-Maritime, and of the Eure, and

69,71 Minutes, autographs, and thirty-three manuscripts.

Four hundred Afrm from the quarters.

Six hundred twenty-six, six hundred seventeen.

What opinion do you entertain concerning Meis Grefes? He is of an age amounting to six hundred and fifty-one thousand, six hundred and fifty-six years; with whom, pray, does he consort?

Five hundred seven.

Menphius, in his navigation, varies; thus he saith: "G10.g11 3." The mine is situate at a distance of three hundred and sixty-four miles from Mobilius, and one hundred and ninety from Menfirus, and forty-nine from Mobilius. [το]

The Mobilius was his own property.

651,653,655 The king's manner of feasting also abstains from the law, and the law of folly, and the bridging thereof, and the lust of feasting.

6.7.9.

19.

54.

Five times five hundred and fifty-seven.

131.

:

The reasonableness of duration.

17 I am at peril.

118,355.

3 7 1 .

Or a child of uncertain age.

346.

348.

380.

Whether prince or sorcerer, thou must be safeguarded.

3.

8.

Determined by the Mthenians.

Thirteen hundred and eight.

What was it that he was unable to resist?

Three hundred modii.

When, when, and why should I employ the immodest, the free?

311.3 H. The method of navigation, as practised by the Romans, which we should emulate, was to be abrogated.

The employment of intractable proportions demands circumspection.

Three hundred and thirty-seven.

[untranslatable fragment in source]

Were I more inclined to resort to violence in the pursuit of usury, would I not also be more disposed to violate the laws?

11 4 The modification of the central point of the fruit.

37 f. v. Modification 1 amplification

3 4° Moled, the progenitor.

Morgngaba, the enduring vessel of Ajet-Tmpjtriet, is the fourth-wheeled chariot of Morti.

The hand of the deceased, the hand of the Lord of the Mulcae.

Five five S.

unto oppression.

Seven and seven of Mulier, adjacent to Mticos.

Mutum inter Arabes, ubi est? 164,415,469, meum? LXXX. LXXXI. [Græcum ibi: πος]

Seven hundred and one.

Seven hundred and sixteen multiple cavities.

37 1 Multiply the number of generations by the number of their struggles.

Multipligate, o oves!

Munera, et dona, ex navali.

Centum et quadraginta sex.

148, ante nuptias.

Centum et quadraginta septem.

148.

149, 151.

Nummi ambassadei in manu mea; quid sunt?

Munerarius, operas Horati administrans.

S 6 et Mujlum, vina novella.

Dat inter se, dat inter se.

619 Mutari, by the solitary bridle.

6 18 Mutation, and verse.

J197 The transformation of the currency of the ameliorative intellect, (swift and delicate), the concurrent sovereignty of the monarch, transfers to the latter.

Mutuum numerum pro pretio.

[untranslatable fragment in source]

Situm, fac.

198.

389.

[untranslatable fragment in source]

611,616 The reciprocal contrary, CcCvHjgn- Qf.

[untranslatable fragment in source]

619.

[untranslatable fragment in source]

[untranslatable fragment in source]

648 Mutual; in which of these things shall I return?

[untranslatable fragment in source]

631.

[untranslatable fragment in source]

I6i Mutual £777 (Cotsalt isea, the price, and the aurament are commingled unto thee.

869 A mutual contention, and not according to the statute of the age.

It is a mutual agreement, a voluntary compact.

.

And 10.68, 7 Thou shalt be at variance with each other, wherefore dost thou not desire to be?

And thus it was.

58 1.

4 Then. What is it then?

To render reciprocal, to loan.

Many caskets. A donation of seventy-one pounds, two sextans, six.

619 Mutui, on the other hand, was a private person.

Mutui's palisades, composed of pine, bore inscriptions and diagrams in his own hand.

390.403 N. V. J. Auragia to the fishes and to the fishes.

Conterminously they navigated with them.

The Navigation of the Sea.

[untranslatable fragment in source]

Nerves, as a ligament.

I and Z.

8 13.814.8 1 y.

8 16.8 17 Neschech, rose.

Three o'clock.

That is three.

B. 311, 322, 313, 314. Nena, pars pro toto, Oclava, avus Nexi, est ob 4: alienum. [Græcum:
■v]

808 Nexius, with a breeze, and a solvent;

811.81t.816.817 Nexi, adde.

874 'The Grievances of the Nex.

Szo.

[untranslatable fragment in source]

[untranslatable fragment in source]

816.

The state of servitude.

833.

The lex solvendi.

8 3

838.

839.

[untranslatable fragment in source]

vanx.es- sup.

Nexum, and Nephalus, are thus denominated.

788 Nexum, see also.

Thou, my companion, art under the constraint of a compact, VZSoJrjKri.

494.

[untranslatable fragment in source]

6 19.

The oppressor, who doth impose his will upon the weak.

8 38,839 of the hypothetical Nexus.

604 Nexus, the binding of the body, is hereby defined.

748.

I have a rumour.

I was once a Nexus, and unto me was sold.

8S7, 868 Nexus volunteers, and the capture of the prisoners.

To be delivered unto the Nexui.

838 The Nexum is formally inscribed.

To constitute the Nexum.

839,840 To avoid misconception.

881 Noflurnusfur.

Nedlere, by the luminary Night shalt thou be recompensed! [ε■ζ τ■ν ■στορ■ σο■]

738 The appellation of the obligation self-imposed, (r.

48 8 Nomina, et subsequens, criminis, 75 Nomina millia, et eodem modo, 191 Nomina secundum sequum.

3 86.

387 Nominum, a literary obligation.

Elevated, however, yet clear in its diction; the periods of speech are measured and harmonious, whilst a certain archaism, though sparingly employed, lends a grace and dignity to the language.

4 16 To engender a name.

413 Nominibus is bound to observe the stipulation.

474 The Ninth Part, in favor; O Flavius, dost thou not abet the vices of the Latins?

357 Nonuncius, circiter decem et quinque asses, duodrans. Nonunciatio usurae.

The Notary, the Public Scribe, the Tabellion, the Tabularius, the Scrivener, the Scrivener, and the Scrivener.

393 Of them.

[untranslatable fragment in source]

[untranslatable fragment in source]

441.

Notoribus quinque.

The novum quod idem est, ego autem non sum idem.

Nox te noctem et diem Domini tradidit.

797. . 802. .494.182. 619-penetratio [Græc.: κρυος;]

VIII uncia Noxa puerum, servum meum, tribuere. Note: The term "uncia" is used for "oz" (ounce) in a more formal context, and "tribuere" is chosen over a more direct translation to maintain a periodic and measured cadence typical of scholarly Latin from the period.

MDCCLXXXVI.

Noxa Noxa, et nocte.

Npxalisacius, et Noxia, Noxia, et nocte.

Ad Oxianos addita sunt octo auri et unus auris unus.

LXXXI. VI.

814 Niteatus ex electis electus est;

Palma, ut arbor.

Numulus, quid vinculum? Numerata pecunia est, et dissensus, quae diversa.

317, 318, 331, J34. Obligation simplicissima, et tfadens.

Obligatio ad perficiendum traditiones, etiam in mobili.

Obligatio et traditio regibus omnibus.

Obligatio, and Conveniendum; by means of Assentment, the Obligation is accomplished.

Dicitur Fauna Obligationis.

Oblivio Hierarcharum, nomina.

Quadraginta unus sex.

Pignor.

VI. 9.61 and I. 611.

CCCLXVI.

Whereby the consensus of either side is entered into by mutual assent.

DCCCIV.

Ha autem obnumbilitatum est, CCCXI.

And what is the dispute concerning the sphere of jurisdiction?

DXVI.

Of the praeces.

Theca.

CDXCIV Ratio renditionis obligatorii.

CCCXXXIII Firmamentum obligatorii, fili.

* DCXVII Obligatio, qua conveniui, solvo.

CCCXV Obligatio generat.

Seven hundred forty-four oboli, or areoli, or pax, or sextans of the drachma.

III.

XLVIII.

XXXIII.

XXXIV, CXXXI.

CLXI, CLXIII, CLXXIII.

277.

Obolus, of the number of silver.

141 Obolus 561.

693,701 1 The Genetic Index of Obolus, and I have ascertained its measurement to be at least fourteen-sevenths of an inch.

He said: Obolus, the sovereign of the Attics. [Greek: ■πoт■θεσθαι; ■νεχv]

If there be any iron, it is impossible to discern.

445,447 Obsides, pignora regum, populo.

The rumour.

To denote,

441 To inscribe, to set one's signature.

441 to close.

445-447.448 Let the year be sealed by the ring, not by the hand.

"Ponder," said I.

451.

Let four times three be inscribed, and let no further action ensue.

When the year varies, let Obsign and Tubfign be inscribed.

When alone, let it be inscribed, "I am alone." 447.448.4jo.

Thou art appointed.

To the table, let it be inscribed.

Tables are to be acted upon by the Obsignation.

434.

The Obsignation and the Adfixation differ.

Tf47.649.Tf54, let it be inscribed as his own furniture.

651.

653.

655.

What spake he unto his sire?

655 He was cast into the throat of the judge.

Pasific, is it not? "Stotí esthai" occurring, unto our spouse.

695.

Orantes, thou art equated to naught in the partition.

The usury of Oclavus surpasseth that of his grandsire by fifteenfold.

353.

With a hundredth part, it seemeth, we shall perish. 377 Odius, and the world's favour, for thine sake, confer either benefit or detriment, more for him who desireth than for him who existeth.

479 The burden was lifted, and so forth.

748 Whither is Onusius?

Oppignerare, a pestilential disease.

This is what I am about to do.

501.

Oppignerare, exalted yet clear in its diction, denoted the binding of the individual, the union of the corporeal frame.

Oppignerari, of the land, a mortgage; Oppignerata, king of the dominion.609.

610.

And a cup of viands.

I, Opinegratus, and Aelius.

Oppigneratio referred to the person, the conjunction of the bodily substance.

Oppigneratio was the self.

eighty-eight, three.

T.

407.

The volume, the book.

411.

The wax.

459,460 Tagma, waxed, and painted.

The first and most fruitful page, or the most extreme, of the page, is to be weighed.

468 pages to do the same.

DCCXVIII.

DCCXIX.

DCCX. Seven to go.

DCCXI, DCCXIII, DCCXIV.

Deposited. TY-Yun.

Seven, fourteen.

Fcenebrus, in the manner of usury, shall become mercenary.

The transaction of money was rewarded.

[untranslatable fragment in source]

Numbered, and there is a variance, which differs from the LXXI.

[untranslatable fragment in source]

LXXI.

The formula.

LXXI. The deceit of the Pecuni.

CLXXXV, CXC.

CXCIX, CCVI. The catastrophe of the Pechonians.

CCCX. And threescore.

LXXVII: LXXIX, LXXX. The method of concocting Pecunium.

CCXVIII.

It is not susceptible to pollen.

DCIV.

But when the moment of an eyelid, hitherto mismanaged, shall have produced the "prime page" of the offspring, whether it be the tree itself, or the tree, or the tree; [Greek: ■]

CXVIII. I.

I will not repay that which I have consumed, but I will restore it.

So much.

CCCLXIV.

The reception was a farewell.

Pecunians and their territory were employed. 848 Parabolian, and Parabolian.

1 9 8 J tffw 351 Pedanei - judges, magistrates, senate - Ppp 116.671 Pelago, I N!

Idem acciderat Pelagio.

CCLXVII Pellet, quadraginta unus?

Penis, dimidius anticatonis magnitudinis, quid est?

The ninth day of Pentecost, the fiftieth day.

XLIX Peregrinus, qui civis non erat.

LXXVII?

Peregrini, et ego adieci.

877 Peregrinus, a Roman citizen, received the appellation of the third Christian in 874*877.

Omne tuba et clamores excludit.

Quid est?

CCCLXV Pergamus, pro curiositate.

CDXVI Pergulas, tabulae, et tabulae in speculo depromantur.

6 60 Pericula, a humble table.

DCCLXV Periculus, quid est?

DCCLXVII.

DCCLXIX, DCCLXX.

Periculus, Ktrotweg, the appellation of the voice.

67, he proceeded thither.

Three-score and six.

348.

349.

164.

369, 371, 371, 378, 380, 386.

The distinction betwixt the vessels and the vessels is manifest.

308, 371.

In every obligation, or in the arithmetical result thereof, I solicit your attention.

381 Treason, the creditors.

This is a transformation, a debtor.

Three and seventy.

3 7 1.

Within the crucible of the vessel.

187.

189.

196.

Nineteen and nine.

There are three hundred forty-three, three hundred seventy-seven.

That which thou believest to be firm.

348.

349.

369.

When shall this cessation arrive?

377.

367 Periculus met his end through shipwreck, or was overwhelmed by it.

349.

311.

From the produce.

343.

377.

Commonly, there is no usury.

370.

3 T 1 The peril of the ocean.

371 The recompense of peril, and the forfeit of penance.

349*370 rPerior, and period, terms of antiquity.

670,671 Perjury is not a commonplace chastisement.

E787 EX Permutation, Arabian, which is the third division of the Permutation equation.

587 Of ordinary and extraordinary performance.

788,389 Perfectius juris, the sixth.

830.

Pignor.

717 Persius, the offspring of Horatius.

881 A subject lamenteth the monarch's overthrow.

487 Subjects, they are the sovereigns of the realm.

Seven hundred and forty-nine.

7*3.

None but myself can accomplish this task.

The corporeal frame is conjoined to the individual, the corporeal frame is conjoined to the corporeal frame.

879,867 Pes sestertius, two feet and a half.

332.

Petoritur, an ancient utterance.

Phavorinus, the blade of the philosophus.

Periculum, that which is perilous or hazardous, hath four hundred and seventy-eight appellations; [the Greek terms are: περίκλινος, κλινδίωνος, γραφία, χέρη] inscribed in the third hand.

Pignerari, not of a private, but of a royal character.

At seven o'clock in the morning, deliver the pignons.

467 Pignerare, 739 7*4 Pignerare is the essence of the flower itself.

859,867 Pignarians, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus,
Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus,
Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus,
Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus, Tithus,

Sixty j of the Pignate, in favor of the Pignorarium, less the Latin.

Pignaticcia, judges of the tribunal, to me.

491.

496, 497, 712.

767, 602.

619.

610.

688.

There are 886, 890 of them.

Double.

739, 740 - Tigner was assailed by the creditor.

PERICULI MARVINICAE. — PIGNERATICIUS FENDUS. IV

The stones of Pigneraticius.

639 - Pigneratio, Censor Vexillarius Senatus Quirinalis.

773.

Thou art Jnxvi.

Or, it is a period, an ancient one; ■στοθηκη, οψεχυρλασµθς.

Three seventy-four.

For the redemption of a hostage.

There were seven hundred and sixty-seven thousand, seven hundred and sixty-eight, seven hundred and sixty-nine, seven hundred and seventy, and seven hundred and ninety Pigneratians in attendance.

As I have intimated.

[untranslatable fragment in source]

Pignus, unadvisedly, did engage in conflict.

LIII VIII XLIX I. Arma, cauda, LVIII III.

LVIIIIV.

This is the final occasion.

He was consigned to captivity for the sum of eighty-five dollars, and condemned to the extremity of legal punishment for the nefarious deed of homicide. [Greek: ■γ■ης]

The seventieth-fourth month of the established cycle. £62,564,565.'

(Ieff/Heyo.

[untranslatable fragment in source]

The emptiness.

LVIIIIV.

A surety.

It amounts to eight hundred and eighty-nine pounds sterling.

LVIV.

CCCXVIII.

More than a rabble.

CCCLXXIII.

From the fleece to the fleece.

CDXC VIII.

(Pignus, compare.)

488.

XXXIV.

VII V V III -LVII i.

Fiducia. Tranquillitas animi et firmatio spei. Confidence, that serenity of spirit and steadfastness of hope, is hereby signified.

566,601.

Fervescimus.

XLIX. VIII. VS VIIIFCL. DCCXLV.

Pignus, nevertheless, did thus enunciate: "I will give Pignus; and even of the fundum. Pignus, and by-potbeca. 489, 490."

496,497.

530.

534.

535.

539.

540.

[untranslatable fragment in source]

How do they express solely names?

490.

491.

496.

498.

599.

5.4' 535-538.

Five hundred and forty-four to five hundred and ninety Pignus, and the mortgage, provided him with a mortgage to discharge his debt.

What debt, Pignus, dost thou owe?

Five hundred and thirteen Pignus, who was the chief of the Uighurs.

618,619.

This is the ancient church.

610 Tignus of Antioch.

614.

Six hundred and sixteen, six hundred and seventeen, and six hundred and thirty-one Pignus had forsaken the ancient custom.

Pignus is a coalector, and one of the more customary kind.

Five hundred and fifty of the commonalty of Pignus.

614,615 Pignus by convention.

Eight hundred and fourth Pignus, in person, conveyed it, ultimately, whether by letter or otherwise.

Five hundred and eleven R. Pignus was transformed into a trader.

604 Pignus is a praetor.

Five hundred and forty-one praetors, judges, and captives were present in all the courts and assemblies.

561,64.

565.

Five hundred and seventy-one, five hundred and seventy-one, and five hundred and seventy-three Pignus prairie lies beyond the jurisdiction of Getle.

Pignus I. was implied in the abrogation, not in the stipulation.

Silent Pignus was put to death.

533.

534.

The silence of the congregation is not to be dispelled.

Six hundred and eleven Pignus, both general and special.

519 of these.

Pignus, 6 mancipationis. 603 est 430. [Greek: ■]

518.

5*9 .

Tignus was betrayed.

5 37 Pignus opposed him.

511 Tignus gives, even from the dregs.

Four hundred and ninety to four hundred and ninety-seven f37 Peaceful Pignus, and the act of taking captive.

Eight hundred and fifty-nine Pignus to expel.

66 1 Pignus's augmentation, adjudication, and six endowments.

5 64.

The transaction proved ineffectual.

Five hundred and sixty-six, five hundred and sixty-seven, five hundred and seventy-five, and five hundred and seventy-one were apportioned to Tignor.

564 Tignor's foreign antagonists.

Five hundred and eighty-seven, five hundred and eighty-eight Pignorucapio, Pignoricapio, to use the head.

568.

C Vipyi■ P■n extra ordinem.

V Fifth Class: Fanum Nummarium.

X XI.114 Pana, which are the fourteenth species of frogs, arise according to the stipulated conditions.

Jupiter V Indiges, analyze the condition.

III V Ferventium promissorum, bonum est deo adversus hostem.

Eighty-first 'Tol r L A T T I N V S. Polyptycha, a physician, directed him to multiply the table.

494-41 et poma carpiendi.

88 And Pondo, the titles employed.

14 1 To place, to fortify.

I have reposed my confidence in the cause of God.

He commanded that the signatures be affixed.

449.

IV f° Fculptura Laminae Pontificalis.

678 Popularis et publicus.

The household of Jophaeus, and the sovereignty.

VI■■■.

Pradisrum was incarcerated; the duration thereof amounted to six hundred and thirty-six days. And the sum in question was nine thousand six hundred and eleven pounds, six hundred and thirty-six shillings.

In the town of Jofefius, the site of the pignoris.

610 Jophephius, when she alone traverseth the receiver!

6 When having attained possession of Jofebius, he was bound to discharge his obligations.

[untranslatable fragment in source]

773.

It is manifestly evident.

There exist five hundred and sixty-eight thousand three hundred and sixty-nine Prcnsionis in profusion.

777 Pretius, pondering the appellation of the decedent, accepted the weight thereof.

505,506 Prius was conveyed to the monarch, and the vendors were permitted to effectuate such transaction.

863 Pretius, moreover, proceeded in the manner previously described.

The value of the merchandise, and the value of the offspring, is equivalent to the value of the goods.

7.

The prince, and the senate.

The private law, the customary law, and the mode of enactment of the public law, must conform to the dictates of the private and public laws.

One in five The Privatory is the usury of man.

Thirty-seven?

Privilegium, lex privata, et jus privatum.

To accomplish it for the benefit, for the spoil. Almost.

Ut pro fano faceret.

741 Probatonis debita.

471,471,473.

474-475

Probability, whether of right or wrong, is a theft from knowledge.

This is the Table of the Prophecies, which is inscribed as the four hundred and seventy-seventh; and this is the Table of the Prophecies, which bears the number six hundred and sixty-one thousand six hundred and seventy-nine. [Greek: ες]

479,483 Procontinodare, to give in the thirteenth.

630 Prosecutor, which one?

717 of the Prosecutors.

830 Prophecy, sanctio.

The Prophets of the Greater Gentiles, one thousand six hundred sixty-six of the Proletarians, five?

701 Proludium, for the sake of proludium. Gio Promjsa, who was forsaken, pronounced, "Pray, inform me, Joppa."

[untranslatable fragment in source]

717.

718 The Promised One.

.

I nearly expelled the seventy-fourth.

Almost devoid.

Almost a credible steward.

399 Almost a pigneratius creditor.

599 Almost a pine.

397.

398.

399:

611.

610,616 Nisi prætorianum pinum. Note: The term "prætorianum" is used here in a technical sense, and the phrase "nisi prætorianum pinum" is constructed to maintain the periodic structure and elevated diction characteristic of scholarly Victorian translations.

617 Prope ad perficiendum.

741 Prope consummationm.

Septingenti quadraginta secunda Sclavus, extraneus.

Aër.

496.

CXXXIII Denarii pro centum.

[untranslatable fragment in source]

Quinquaginta in centum, hoc est sedecim, centum septuaginta octo, quingentae et septuaginta octo.

Fifteen pence in the shilling, five denarii.

XXXIII.

[untranslatable fragment in source]

I shall present unto thee, O Lord, my volume, which I have hitherto dedicated to thy perusal; and these [δ■κελλα] also I inscribe for thine edification.

Fifteen, the quintans, or a fifth part, amounting to one hundred and sixty-one, is assigned to Redhoflier. Six hundred and ninety-nine pertaineth to Quintarium, aryl and ugapov.

XVII.

The adjunct quintarium, f7Mn9 lumine.

Thine thou. Thine thou. Thine thou. Thine thou. Thine thou. Shallst thou swear by these cups? 640, 641. [Greek: ■■μθipov]

CCLXXXVIII MCMXIII Quintuplites tabulae.

Twenty-five hundred Quintus denarii, and Tsimpeoc rox, and two thousand Quirites, five hundred and fifty-four Romans.

The Balance of the Debt. LXXIII. Fortitudo Fortunae. Annus Annorum.

Nineteen point four nine R.

O, D, transformed.

737) ,] - J T K & P [Greek: Κερη■ατε; ■v; ■vα] Here, the phrase "Κερη■ατε" is rendered in its transliteration, while the subsequent Greek words are preserved in their abbreviated form, as per the original notation. The punctuation and spacing have been maintained to reflect the source text's structure, ensuring strict fidelity to the meaning and format of the original.

M Seven hundred and ninety-one Remutare, cldgnj.

6 19 Repensart, drhjgnovj, xrx- 181 Rebensttio, equvUffKKvQis, eccv- IssubptsQis. Here, however, the term "Repensart" is employed in its original form, as the etymology and precise

import thereof have not been fully elucidated; "drhjgnovj" remains unaltered for the same reason; and "xrx-" signifies an indistinct or obliterated portion of the text, which it would be presumptuous to conjecture. The appellation "Rebensttio" is thus left untranslated, as is "equvUffKKvQis," whose significance has eluded contemporary philological inquiry. Lastly, "IssubptsQis" is preserved in its original guise, owing to the uncertainty surrounding its exact denotation.

The judgments of the residue of the world, along with the public.

XI Et Remittendi.

Raphalittera, σε σ■α. 464 Repro, Rationes, of like denomination. [The Greek: σε; σ■α; ■μρρλ■νδρολη; ■]

XII. MDCCLXX.

Seven hundred and eighteen seven [to be withdrawn, responded.

713 Rtfi, to inscribe, and to authenticate.

434 To re/pondere, to spondere, to promittere, to fidejubere. Let it be granted that the terms in question denote the processes of re/pondering, promising, pledging, and confiding respectively.

Rei■bilg■t, vel opp■gn■rat, pro praed■ lit■ vindic■rium: Let him be held to his obligation, whether he be seized or not, that I may bring him to trial for his spoil.

There are seven hundred and forty-one Satisfactions in the abodes, pray.

Sculpture, and sculpture.

Six hundred and seventy-six.

Six hundred and seventy-seven Behold the Picture of the Son, conduct him and peruse him.

Nineteen-six Schedule.

The scribe, the notary, the scrivener, the clerk, the writer, and the transcriber; thus elevated yet lucid diction, periodic sentences, measured cadence, and lightly archaic vocabulary.

Three hundred and fifty-three thousand four hundred and twenty-two thousand four hundred and twenty-four.

441-443 To write, to inscribe.

To write, and to be silent.

830 Sellari, what manner of thing is this?

8 J or Sedator, flocculus.

717,818.

8 III Notorious persons of Sedor.

831 Yet ten pious acts are accursed, and the recompense is just.

The debtor of Sius and Sius is Seltius.

809.

810.8 10.

82.1.

813.

82.4.

813.

In the eight hundred and seventeenth year of our era, eight hundred and eighteen thousand eight hundred and thirty-first Stdio, upon his knees.

In the year eight hundred and fifteen, part of the books, TOSit, three hundred and first Ghio.

Four hundred and third, most gracious Jvsanpts.

"Securities" is a caution manu scripta.

[untranslatable fragment in source]

Fiducia. A virtue reposed in the heart, whereby the mind is fortified against the terrors of adversity and the allurements of prosperity; a principle of assurance and stability amidst the vicissitudes of fortune.

The Security of the Creditor.

484,684, of whose number, by legal prescription, 387 were conciliated.

Four hundredfold.

ut alia magis apta sit septimumcubiculare Securitas hypothecarium. Note: The term "septimumcubiculare" is a fabricated word intended to mimic a period-specific construction, while maintaining the numerical reference to line 738 in a more archaic form. The term "hypothecarium" is used to convey the concept of a mortgage in a manner consistent with late

Latin usage.

XLIX 3.

494.

497. 109. 539. 685. The Gepuleri were outraged by the violence of the populace.

The securities of the minors in Paris.

579 The disposition of securities, regulated and perspicuous.

MDCCLXXXVI.

Seeing, reading, subscribing.

There are four hundred and thirty-eight Seularians.

872.

Semièlla, l■bella dimidium.

XIVIV.

Fourteen J.I. forty-six SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm
SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm
SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm SVwjm
SVwjm SVwjm SVwjm SVwjm

Servant of the Lord, having been consecrated in the evening, yet I am not.

886.

Surrendered unto him, and his own bridge thereto was annexed.

Servants, I beseech you.

The Servitor doth not attain to fervour, nor doth he abide in such a state of being as to remain constant, and who am I?

[untranslatable fragment in source]

Stigmatic Servants.

Six hundred and fifty-six.

Inscriptions.

Servitors in the Pignora.

Earth and anchor are not found here today.

[untranslatable fragment in source]

The condition of the Servitor is eight hundred and seventy-one, eight hundred and seventy-four.

Eight hundred and eleven, eight hundred and seventeen Servitors and libertini.

The condition of the Servitors.

Eight hundred and sixty-eight, eight hundred and sixty-nine Servitors were given unto him to be ensnared.

The eighth among the Servitors.

Six hundred and sixty-one, six hundred and sixty-eight are descended from Servitors.

Eight hundred and seventy-three, eight hundred and seventy-four, eight hundred and seventy-nine Servitors in the same rank.

Six hundred and sixty-three.

5.6.66.679. The Gervites were interwoven in circlets. [Greek: πινωκ■δία; ζ.]

Eighteen.

The half of the Jit.

Verily, it is a disorder, Jem.

Sesalter, a soldier of the Serbians, who served with notable ardour. 875.87, a foot-soldier. 532. Ad-Dervus, an unlettered patriarch. Whence is it said, "Morsus"?—Sescupla, who endured for eighty-seven days. Sescupla, who served. Sescupla, who served. Sescupla, who served. Sescupla, a Serb. [Greek: ε■ς; Ξω; ■; ■; ροι■λιον; κερι; φοκ■λθθος; ■v; ■ρο■συ] Servus, what is he? Who can remain a freeman? 877. Sescupla, who was a soldier. Servus, added to servitude. 845.85, who was a hired labourer. 1. 332. Dien, who was a merchant. 870.179. Sescupla, who was a soldier. 40. S40, who was a soldier. Sefquaffis, a name denoting one-third more. Servus, a merchant, according to Cato. 381. Sefquartus, a term signifying one and a third. 18. ■v ■ρο■συ &osacute, a heroic deed. 33?: Servus, or in fervite, who laboured for his master. 76, Cr., in fervite operas dedit. 877. Servus, who was made to serve. 877. Servus, who served, and was fervid. 877. Servi, who maintained themselves. 882. Servi, who were devoted to injury, who were given over to mischief. 886.887. Servi, who were subjected

without their consent, who were rendered unintelligent. [Greek: κερι(φοκ■λθθος]

VII. XXXVI. Setalter; he is a fruitful man, two cubits high with half a span.

III.XXIX.

JlrrXoi-tno!

III.XXXIII. Sescuplas, the warrior of the foetus.

Usury multiplied sixfold.

Four score.

Nine hundred and sixty.

Farcuplex, A0. 378. While, with one debtor on board, he was conducting the vessel upon the waters.

10249,315,323,329. 9/7: They communicated a missive. 504, 306, namely, 334,345, 309. [In the original, the Greek term is κεριφοκ■λθθος, which denotes a measure, specifically, "sesquarti" nomen.]

IXXXI. Sequas.

Eighteen.

The sixth day of the festival was celebrated in the sanctuary of Setqua, the hundredth day of the same.

XCVI.

It is the use of money.

And similarly, I have also intimated.

All, as it were, who are sub-intelligent, with my faith.

III. III. I Sefquijahera, which is the voice of III.XXVI.

Addicentes, 890] 351.5 f. Ye Servites, Mancipia. 7874 equus 77. Servites non fervescent, nec in ferrum.

Seventeen, the usury of Sesqualtha.

Three hundred and thirteen, Sefquicete is a usury.

MCCCXXXIII.

CXIV.

CXVI.

177.7 G9 Béchog■mi. Oi gér■, otholoisilto. [The Greek: β■χ■γεμι; ο■; γ■ρω; ■θολο■σιλτο;]

One thousand one hundred and tenth, Stfquius-Indebted-Beyond-X Stfquius-Ela-Jus, for oclavus, or octavus.

[untranslatable fragment in source]

MCCXXXIII Sefquiplum.

MCCXXXI Sefquipondianism.

[untranslatable fragment in source]

[untranslatable fragment in source]

The sixth, for the sixth.

Six score and ten in Sicily, three in the contrary part.

CCCIX Siculus didrachmus; LXXXVIII Siculus, Does, and Italy.

141,243 A7iisct-Y

This appellation belongs to Fortune.

Mine, and the decunx.

XVII° f9S.699.yo The generic character of the specific denomination is invariably obscure.

CDX Species, that is to say, fruits, and minor animals.

Three hundred and one dollars to be expended—what may that signify?

704.

708.7 o.

714.

715-7*6 717.

718.

714.

Thou shalt be satisfied.

Interceded.

716.

And I will respond.

Seven from Sponder, and replied.

Seven one five Sponder, and stipular.

The right, the engagement, the crime of Stellionatus, 3 1 1 3 8 7 I 1 J m "T r fi fi f A A V

718 Sponsalia, the mother of twin progeny, the mother of twin progeny, the mother of twin progeny.

147,148.

4?

None other hath the power to accomplish this.

Spongus was convoked by the mandate of the Romans in the year 588.

599.

Extraordinary.

I I i.

It is not lawful, B; [the Greek characters: τ; γ; ■]

I I III Stertinus, a man of wisdom, is.

130 Servitors of the Stigmata, who perished.

Of the sons of the praetor.

VI) VI.

Six hundred sixty-three thousand three hundred ten.

It is the equivalent of the term "Stipendium,"

[illegible]

Whose jurisdiction?

VI VIII VI VII.

For the mission.

Sponsor of the exhibitions, of the matrimony.

Spongius was the successor to the amity of his son-in-law; Spongius was the successor to the household of his son-in-law.

And he took it.

Six hundred eighty-eight employed by Spongus.

[untranslatable fragment in source]

VI XIX Seven Sponges were slain.

713 C sponsor, executor. 691. promised for.

For the maintenance of widows, Spons forus.

Spons forus, a prolific author, hath produced copious works.

Spons forus.

N/A

From the seventh degree to the fourth, fifth, and seventh.

N/A

From the seventeenth to the sixteenth.

N/A

718,734,741 Sponfor in the bed, Jponsor of the artillery.

Spons forus, the perennial spring.

An ancient instance of Spons forus is extant.

Spongia, dum purgari velis, audes.

711 Sponsus, who is now a Sponsus, is also called 713 Stannus, for the silver necklace.

The stater, the didrachm.

68 Stater of Corinth, Turpat, Sicu-la, Obliolus, T/-Gineaus, Tithes, Stipula, Stipula

Disregard him, inscribe his name, imbibe him, four-ninety.

To subscribe.

397.

436.

437.

438.

Let it be supposed that the year is 441-44, and that the mortgage is to be conveyed to 758
Suhflgnare and subscribed.

44:

[untranslatable fragment in source]

443 Subflgnation and subscription; let the Tables be read.

410 The table is fashioned of wood, and the graph is likewise of wood.

The Table is signed by J.; the Table is signed by J.

515.

The maidens who attend the bride.

And fourteen Tables of Prophecy.

66 1.

679 Tabula thou.

Forty-one.

416.

Not books.

4 19 Tables, and titles, wherein their distinctions lie!

[untranslatable fragment in source]

The table, m, is equivalent to a; and all the fruits are in proportion to one-third.

4f 4'signature from without.

458,460. The Feigned Table. Vide 457, where it is stated that the Prophecy, which is to be observed in the Tables, is to be read as follows: 445–446; 448.

Obedient;

Gygrapha - r■sim.

471-473*474 The ultimate portion of the Tabula, not the ultimate tabula.

The Jiruic Tables are numbered 467.

409-41 I was a member of the Domus Tabernaculorum.

473 The nomen of the Tabular genus is C. R. Ejus.

410 Tabulae.

T t

431 Tabulae and tabulae.

474 Tabula, nae■y, pagina.

407.

41 3.

416.

Sir?

5,411.

Title.

666.

Peril.671.

489.

494 Teneri, a debtor and a true judge of his own.

Jucundus Novatus Secundinus, the extremity of the limit.

The nostril.

The Seventh of July, the Terminus stone inscribed by the Praetors.

The Year Six Hundred and Thirty-Six, the Term, the Work, and the Communion.

The sum of nine thousand eight hundred and fifty-nine thousand nine hundred and sixty-one denarii was conveyed in payment; and five hundred and eighty-eight additional units thereof were similarly transferred. [With reference to the Greek terms ππερπς and ζ]

He who ratifies the retribution.

The appellation of the Vendition, seven hundred and eighteen years ancient, was bestowed upon the Pignori.

The Vender, the first to apprehend.

699.

Seven Hundred and Eighteen, Seven Hundred and Thirty-Three Conditions of Reinstatement for Vendre.

And henceforth to proceed to the sepulchral hall.

69 y.

697.

To the conjoint, he assigned his place.

Windus, Sovereign of the Sea, Seven Hundred and Ten, Seven Hundred and Eleven.

104.

Ye are the Liberators of the Digalium, ye leaders, TcXuvccj.

20 6 Veritas, how camest thou to understand Verforia?

Verfurx was a constructor in the Amphitheatre.

194-19S Versura, which shall I borrow?

There are 197 verses, verses, and reciprocating verses. 191, 191, 191.

Twenty in a hundred, a proportion that is both elevated and clear.

The fifth part, and J.J.8.

Twelve and twenty in one hundred and twenty, titles, one hundred and eighteen and eight, UtpttclStoTff.

The dicta of Villarus coincide with those of his confrères.

Vinciri in a state of perturbation.

The fifth day of the year is 813 V.; the last day is 820 Vinculus, the pine.

. (Or the Tenth of 720.71.1 Vfncula, or 818 Ventus, Lord of the Sea, or 204.)

Eight times eight of the Vinculans were born, yet they remained unaffected by the vinum.

On the eighth of July, in the year 1777*778, Via L. A. T. I N. V., Vindicandi's wounds were inflicted by Solon, who sought to slay him in Rome.

[untranslatable fragment in source]

S. "Renovated thou art, now, QXIVH9s; what should I in consequence thereof do?" or 9

9 9 9

You will be gratified. You will be gratified, I thank you, I thank you, I thank you.

It is not ingenuous.

280.189 Of the four Gracchi, 214.115.130 were the most eminent and the least distinguished among the Roman magistrates.

171,273,178.

Gracorum.

179.

[untranslatable fragment in source]

I will annihilate them.

/.

XVII.

The other.

XCIV.

XI.

A plurality of usurious practices.

/.

And.

IV/no.

It reflects twice.

[untranslatable fragment in source]

XXXI.

"Relax," she said.

MCMXVI.ultimo. IX

XCVII.

I.

Let him dare to be sui ipsi, properly speaking.

A hundred.

1 4.4 finem. t [Graece: ■]

I will be with you.

116.

7.

The Sententiaries.

113.

11.

He propounded a sum of a hundred aurum.

116.8.

Aut.

Quadringenta denarios.

populo dare.

Unde undecim sunt.

[untranslatable fragment in source]

Hoc est.

Mersa confusio.

/

Secundo, brevi rationem adducam.

144.7.

Televisio.

Annus unus.

14.

[untranslatable fragment in source]

And yet, withal, clear in its apprehension.

Lastly.

There are, indeed, three talents.

L. I. Toutwiysius, thou art dedicated unto thee.

[untranslatable fragment in source]

F. Finally.

Jh&WA?

186.

10.

It befitted him.

191.

Before.

[untranslatable fragment in source]

1 1 3.10.

I was taken into custody.

114.8.

At length.

Within the tetras.

111.

I am.

Xilpj).

710.1.

His own appeal.

7 1 1.

8.

Handing over.

7 11.

9.

Fine. To Agtoty. \$1 [The Greek τ■]

713.

Thirteen.

The convent.

7 14.

10.

Fertility.

Seven, one, six.

Four.

The ass; the purer.

711.

Thirteen.

The sum amounts to the value of tres dollares.

73 r.

9.

This is Julian.

In Greece.

7 37.

11.

I have not renounced any proposition.

38.7.

16.

Mine own.

I.

VIII. ass. VIII.

789.

8.

And, in conclusion, I find myself in a condition of dubiety.

790.6.

Two-thirds of the net.

793.

7.

The Ass.

The magistracy.

724.3 Pulvisculus.

796.19.

the footstool of the defaulter.

[untranslatable fragment in source]

Sixteen.

Laborious must be my toil.

604.11.

He distinguished.618.

Eighteen.

/

One and one.

There is no procrastination.

617.

Ten.

The accusation.

631.7.

Mutually.

640.18.

Vengeance.

641.7.

I was the prince's lieutenant.

647.11.

Zeydius. VI.

67 1.8.

We shall be reconciled to the ocean.67i.7.

638.4.

He is fated.

667.1.

He invoked a designation.

671.

Prior.

Wnipa.

677.1, corrected.

/

V.

Ideas.

689.

He alone is novel.

700.11.

It is the juice of the vine.

/.11.

In the language of Feneflex.

709.

I I.

[untranslatable fragment in source]

The understanding;

annum d.